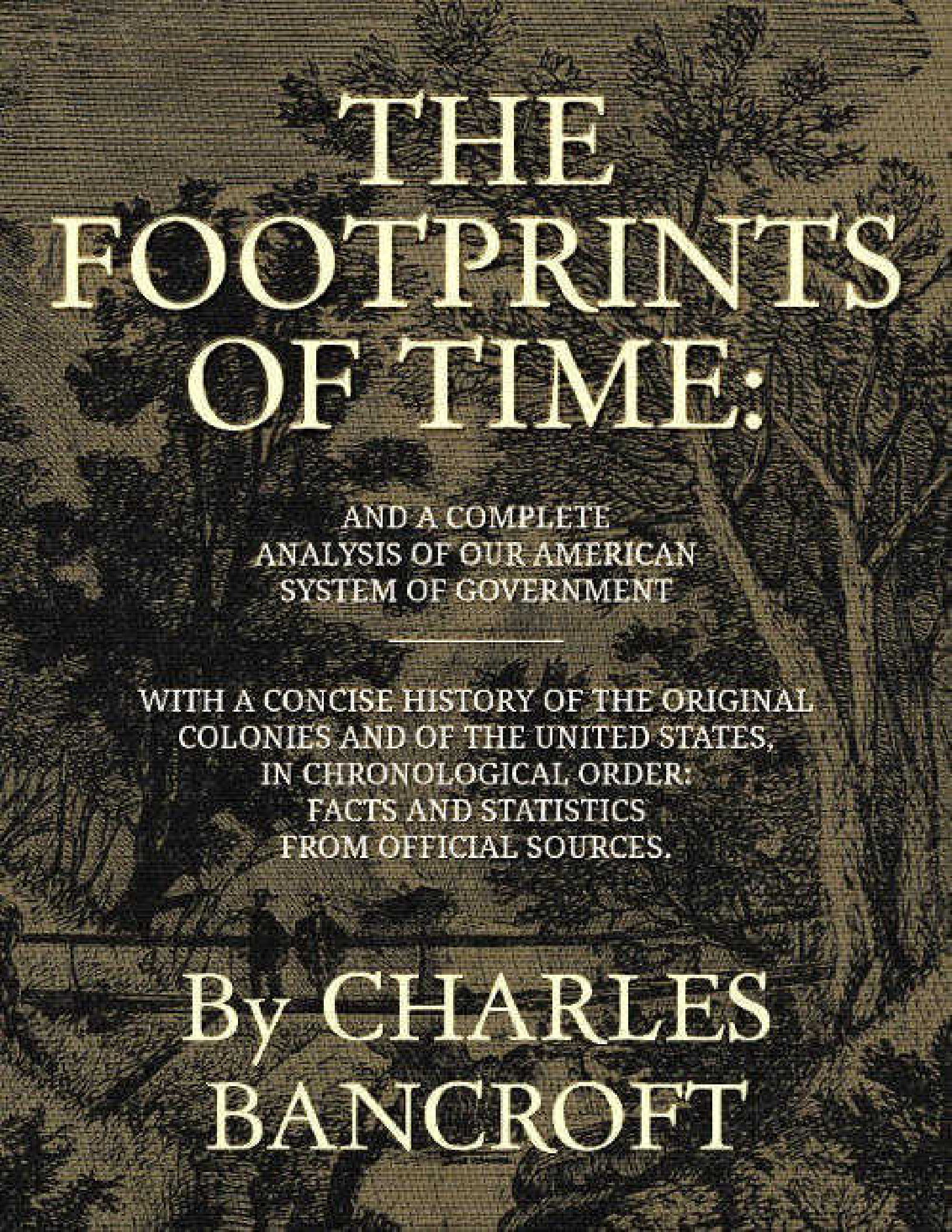


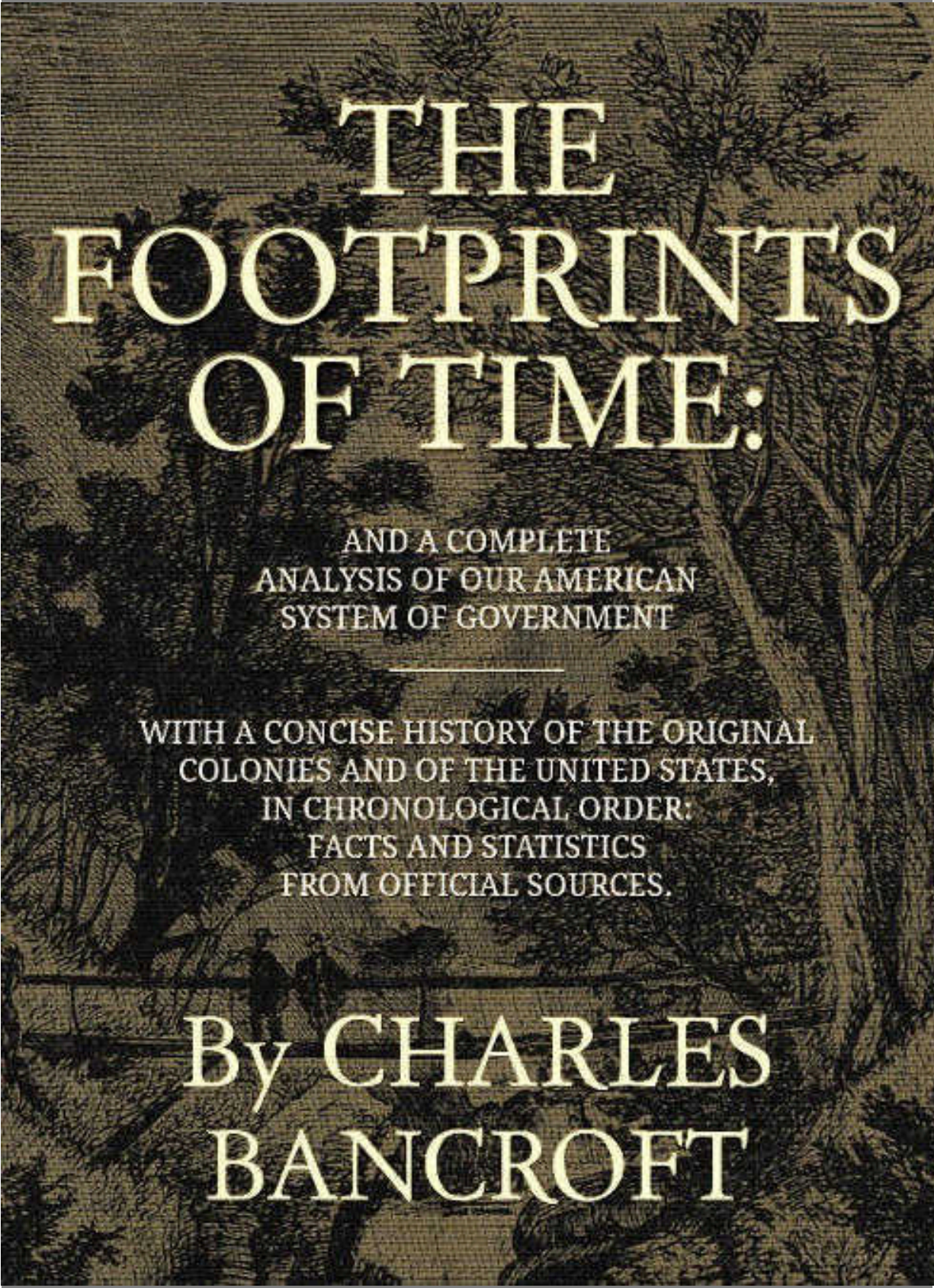


THE FOOTPRINTS OF TIME:

AND A COMPLETE
ANALYSIS OF OUR AMERICAN
SYSTEM OF GOVERNMENT

WITH A CONCISE HISTORY OF THE ORIGINAL
COLONIES AND OF THE UNITED STATES,
IN CHRONOLOGICAL ORDER:
FACTS AND STATISTICS
FROM OFFICIAL SOURCES.

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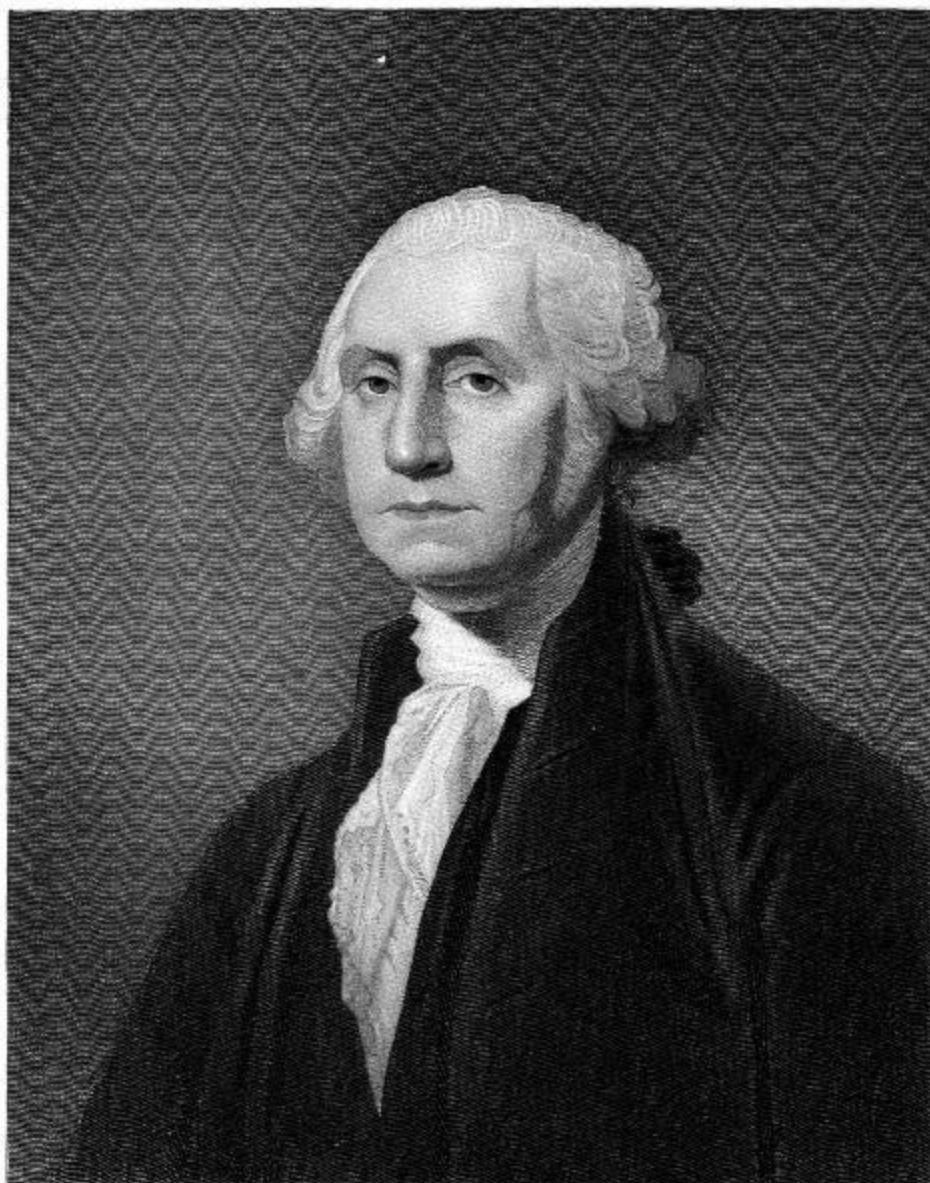
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George Washington

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PREFACE.

It is the object of this book to supply the means of forming an accurate idea of the American government. The author has adopted the proposition that the highest style of government is one “*of the people, by the people, and for the people,*” and believes that a constant progress, commencing in the earliest times, has reached its full development in the Great Republic. He therefore traces THE FOOTPRINTS OF TIME through all history; notes the gradual unfolding of institutions, the rise and fall of empires, the causes that produced and destroyed the ancient republics, and the origin of the forces that give so much more strength and stability to modern civilization. All this he considers essential to a correct appreciation of the wonderful events of our age and country.

He then proceeds to a close and clear analysis of the whole structure of the government. Each general division, with its sub-divisions, is examined in detail, but successively; so that a definite picture of it, with all its branches, operations, and relations to other parts, stands before the mind as a sharply defined whole. The Executive, Legislative, and Judicial divisions—the dependent parts of each kept in proper place—come in order, one after the other, before the mind, the structure, powers and working of each being fully explained.

The book is indeed a compilation, and the matter in large part from official sources, but collected from an astonishingly large number of books, all of which are not to be found even in the largest public libraries; but the labor and merit of gathering so much from all directions and compressing a library into a form and compass so convenient, and so well arranged, in so few and well chosen words, has been great indeed.

All the works heretofore brought before the public proposing to meet this want have been fragmentary, or have treated at too great length but a portion of the subject. A complete summary, or Citizens’ Manual, is here furnished, that includes a sufficiently detailed Analysis of the entire structure of the government, developing in a clear and comprehensive manner the organization, powers, relations, and mode of working of each

department, small or large, the principles on which they rest and the spirit that permeates them all. It lays our history so far under contribution as to show us the occasion that produced each institution, the gradual growth of the grand edifice and the causes that controlled and shaped the whole. In short, it gives us an adequate reason for the form of our institutions, even so far back as the earlier history of humanity, when the tendencies that have borne this fruit first began to appear in human history.

THE PUBLISHER.

INTRODUCTION.

It is our happiness to live in an age whose master-pieces of accomplishment, in science, industry and commerce, put to shame the extravagant fictions of Oriental tales and the wonders ascribed to the gods and heroes of ancient mythology. The changes produced by recent investigations and discoveries are so vast and so rapid that it is difficult to follow them or comprehend the power and thoroughness of the transformations that are taking place in the world around us. The applications of steam and electricity astonish us by their wide spread influence on the condition and relations of men; the ease and speed of movement and intercourse, constantly increasing, are ever putting us in new and unfamiliar situations. We have hardly accustomed our thoughts and habits to one before we are hurried on into another. The constantly clearer and more abundant light shed by science and the press does not suffice to keep our minds fully up to the progress that goes on in all departments of life.

It is plain that we have entered on a New Era, the most extraordinary and momentous the world has ever seen. The old and imperfect is being cleared away and everything thoroughly reconstructed. The explanation is that we are now setting up the grand Temple of Civilization, the separate stones and pillars of which each nation and age was commissioned to hew and carve, and, so to speak, left in the quarry to await the time when, all the material being ready, the Master Builder should collect all the scattered parts and raise the whole edifice at once, to the astonishment and joy of mankind.

All the institutions and civilizations of the past may be considered temporary, erected in haste from the materials nearest at hand, not for permanence, but to serve the present turn while the special task of the nation or age was being performed. The races and ages nearer the birth of mankind worked on rougher parts of the edifice, that entered into the foundations; those grand races, the Greek and the Roman, furnished the noble outline which the nations of modern Europe perfected while they supplied what was still lacking for use and adornment.

America was reserved, designedly, for so many ages, to furnish a suitable and unencumbered location for the central halls and mightiest pillars of the completed structure. Our fathers cleared the ground and laid the foundation deep down on the living rock, that is to say, on Human Rights. That they seldom failed to place stone, pillar and column in just position the work, as we find it, proves, and we have little to do but to clear away the rubbish, beautify the grounds, and put the whole to its proper use.

We begin to see that Time, Thought and Experience have not wrought in vain, that Progress is not a phantom of the imagination, that the human race is essentially a Unit, that it has been growing through all the centuries and is now approaching the prime of its manhood, just ready to enter on its special career with its grandest work still to do. The energies of all the races are preparing for unheard of achievements. The world was never so completely and so wisely busy as now, and America stands between modern Europe and ancient Asia, receiving from, and giving to, both. Her institutions are founded on principles so just and so humane that, when administered with due wisdom and skill, they will embarrass and restrain the proper activities of men at *no point*. America stands a *model* which other nations will carefully copy, in due time, as they can adapt themselves and change their institutions. It may not be a *literal* copy, a servile imitation; but there is little doubt that our Declaration of Independence will finally enter, in spirit and potential influence, into the intimate structure of all governments.

It is the Course of Human Progress, and the important elements that were successively added as each leading phase of civilization appeared, that is endeavored to be traced in the Historical Review of the First Part of this book. While following the general march of events chronologically, we have stopped here and there to take a general survey, in order the better to understand the significance of detached facts, or to examine a new influence that enters among the forces moulding the future. Our space did not allow an exhaustive process; nor was it desirable. We have taken note of only the more important landmarks of Progress. Too much detail would confuse the mind by engaging it in an intricate mass of facts. It is the *thread* of events, that joins the nations and ages together, or the *channel* by which they sent down to our day—from Asia to Europe, and from Europe to America—each their special contribution to the political wisdom and the free institutions of America, that we have endeavored to find.

We hope we have not underrated any people or any time, and that we have not *overrated* the value and glory of America. America is yet young. Its founders, the authors of its Constitution, were unaware of the singular excellence and nobility of their work. Like all other people, they built according to their genius and instincts. Time only could show whether they built for immortality. They feared and trembled over their work; but Time has set on it his seal of approval. Our people are busy using their liberties and energies, each for his individual benefit, as is quite right and proper; since the welfare of individuals makes the prosperity of the community. But a government left to take care of itself is prone to do that work only too well. We have done well and wisely in important crises; but a more intelligent and constant watchfulness over the ordinary course of public affairs would have been still better.

It is plain that the general mind among us has grown clearer and more accurate in its judgments as experience has accumulated, for the original direction toward popular freedom has not changed. Various incongruities have been laid aside and oversights corrected, the severe strain of civil war and an unheard of rapidity of growth have not shaken, but more clearly revealed the strength and unity of the nation. Yet, more intelligence and more care would have saved us many shocks and made our success more pronounced and more brilliant. "Knowledge is power," when wisely applied; and a more accurate acquaintance with their government and its history will enable American Citizens to mould it more wisely still, to correct all defects of administration, and to speedily reach that minimum of governmental interference with the efforts and interests of the citizens which shall give them the fullest liberty consistent with security and surrender the whole round of human life, as completely as possible, to the beneficent action of natural law.

C. B.

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THE FOOTPRINTS OF TIME.

PART FIRST.

CHAPTER I.

SECTION I.

THE DAWN OF HISTORY.

1. The early traditions of every nation that has undertaken to relate the story of its origin, have given us a confused account of supernatural persons and events which the judgment of more enlightened times has almost uniformly considered fabulous and impossible. It has always been an interesting inquiry how much of fact was veiled under this mythical dress, and a great variety of ingenious and contradictory explanations have been produced by the learned in all ages. In most cases, as in Greece, the national religion has been based on these legends which form its authority and explanation, and they passed with the people of all early times as facts which it was impious to question. So the wise and good Socrates was supposed to have denied the existence of the national gods, and was condemned to death. This sacred guard placed over early traditions, increased at once the interest and the difficulty involved in their examination.

2. During the present century the improved methods, larger range and more exact style of inquiry, and the assistance and hints which one branch of study has given to others, have produced the most surprising and satisfactory results. These inquiries are not yet complete; they seem, on the contrary, to have only commenced, and promise, ultimately, to satisfy all the useful purposes and legitimate curiosity of mankind; still, their conclusions, so far as they go, are unimpeachable. They prove themselves.

The study of Ethnology, which gives an account of the races of mankind; a critical comparison of all languages, ancient and modern; the patient study

and ingenious deciphering of architecture and inscriptions found in ancient ruins, and various relics of human activity imbedded in the soil of different countries, have thrown down the barriers which the glowing imaginations of the poets and the want of authentic documents in early times had raised, and have given us a clue to many of the secrets of history, and a safe guide through some of the dark passages of man's primitive life.

To show how this is done would require a treatise on Ethnology, another on Comparative Philology, a third on Antiquarian Research, and a fourth on the Geological Antiquities of Man. Each of these brings a large and valuable contribution to early history. We give only a brief summary of their conclusions.

3. The human race appears to have had its birth on the high table lands of central Asia, south and east of the Caspian Sea. The structure and growth of language, and the remains of early art, indicate an extremely infantile mental condition and successive emigrations from the primitive home of the race. Families and tribes which had remained together long enough to build up a common language and strong general features of character and habit, at length separated and formed a number of families of allied races.

4. The first emigrations were made by the Turanian nations, which scattered very widely. Turanian means "outside," or "barbarian," and was given by the later and better known races who found them, commonly in a very wild, undeveloped state, wherever they themselves wandered in after times. There are reasons for believing that the first Turanian migration was to *China*; that they were never afterward much interfered with, and that they early reached a high stage of civilization. It has certainly many very crude and primitive features. Having worked out all the progressive impulses dwelling in the primitive stock of their family almost before other races were heard of, and being undisturbed, their institutions stiffened and crystalized and made few improvements for thousands of years. Chinese history presents a curious problem not yet fully investigated.

Another stream of Turanian emigration is believed to have settled the more north-easterly portions of Asia. Some time after the tide set down through Farther India, and to the islands of Malaysia. In still later periods Hindoostan was peopled by Turanian races; the ancestors of the Mongols and Turks were spread over the vast plains of northern and central Asia; and

somewhat later still an irruption into Europe furnished its primeval people. The Finns and Lapps in the north, and the Basques of Spain, are the living representatives of the ancient Turanian stock, while the Magyars, or Hungarians, are a modern branch of the same race, which made an irruption into Europe from Asia in the ninth century of the Christian era. The first appearance of this race in written history was in the establishment of a powerful empire at Babylon, which must have been cotemporary with the earliest Egyptian monarchy, and seems, from the inscriptions on the most ancient ruins, to have been conquered by, and mingled with, an Egyptian or Hamite family. It came to an end before the Assyrian Empire appeared, but seems to have reached a very considerable degree of development.

5. The other two great families of related languages, and therefore of common stock or race, are the Semitic and the Aryan. But previous to the appearance of either of these on this buried stage of history is a family, apparently related, distantly, to the Semites, but who might have separated from the common stock of both before them, called Hamites, who founded the very ancient and mysterious Egyptian monarchy. A section of this race conquered the Turanians of Babylon, and established the largest dominion then known to men. The Chedor-Laomer of Abraham's day was one of its mightiest sovereigns, and ruled over a thickly-settled region a thousand miles in length by five hundred in breadth. Faint traces of it are found in profane history, and the Bible narrative is sustained and largely amplified by inscriptions on ancient ruins. A second Hamite empire in Babylon is believed to have followed this, continuing four hundred years, carrying agriculture and the peaceful arts to a high state of development.

6. Egypt was peopled by the Hamitic race, who founded two kingdoms, afterwards united. Here, social, political, and industrial institutions developed very early in great strength. Their language, the pictorial representation of their social, political, and religious affairs, and the grand and gloomy majesty of their works of art, imply a long period of growth before they reached the maturity in which we find them when written history commences. Their institutions, even in the earliest historic times, showed signs of the decrepitude and decay of age. The vastness and the grim maturity of their monuments and language seem to lend much support to their claim of an immense antiquity. The future study of their remains of art and literature will settle some important problems in the chronology of

the human race. The children of Ham were clearly the first to lead off in the march of civilization.

The Semitic family, deriving its name from Shem, or Sem, the eldest son of Noah, is not as large nor as widely spread as the Turanian and Aryan, but has exerted an even greater influence on human destiny. It never strayed much from Asia, except to people small portions of Africa. They early appear in Western Asia as the successors of the second Hamitic empire in Babylon and Assyria. Settled in Phenicia, on the eastern shore of the Mediterranean sea, they became the first maritime and commercial people, and, with their colony established in Carthage, in the north of Africa, exerted a powerful influence in promoting the civilization of the ancient world. The Semites early peopled the Arabian peninsula, and established a state in Ethiopia, as some believe, before Egypt had attained its full development. The Ethiopians established a flourishing commerce on the Red Sea, with the eastern coasts of Africa, and with India, and contributed greatly to the resources of ancient Egypt.

They have always been a religious race, and gave the three great religions, Judaism, Mohammedanism, and Christianity, to the world, as well as some of the most debasing superstitions and forms of idolatry ever known. The larger part of the population of Asia is still Turanian, and the Semites now occupy about the same area as in prehistoric times; but the Hamites have been overpowered and have lost their clearly distinctive character as a family, unless represented by the negro tribes.

7. The third great family, the Aryan, called also the Japhetic, from Japhet, the third son of Noah, and from the regions they peopled and made illustrious by their genius and activity, the Indo-European, was the last to leave the birthplace of mankind. The other races were incapable of carrying the fortunes of humanity beyond a certain point, of themselves alone, as the history of Turanian China, Hamitic Egypt and the Semitic Mohammedans and Jews clearly proves. The history of the Aryans shows them to possess inexhaustible mental power and physical stamina, with a vigorous ambition, always dissatisfied with the present, and constantly seeking something better in the future and the distant, that have produced the happiest effect on the destinies of the human race.

8. It would seem that while the Turanians, Hamites, and Semites were taking the lead of the world and building up the empires of prehistoric times, whose mighty ruins have been the wonder of later ages, the Aryans were all united in following peaceful pursuits, which the common features of their languages indicate were chiefly the care of flocks and herds. They were much farther removed from barbarism than any of the other races when they began their wanderings. Warlike, agricultural and nautical terms, and the names of wild animals are not often found in the common vocabulary; while family relations, domestic animals and their uses, the heavenly bodies in connection with worship and the priestly relation of the father of the family, and terms indicating a considerable cultivation of sensibility and thoughtfulness, imply a purer social and religious condition, and more elevated mental traits, than in the primitive forefathers of the other families. Their language was highly picturesque, and its peculiar terms for natural phenomena are believed by some to have originated the mythological histories of the ancient Greeks and Romans and Teutonic nations. The ancient language used epithets and names, so glowing with personality, that the imaginative descendants of the primitive stock, when their early history was forgotten, believed them to contain an account of the origin of things, and the early deeds of gods and heroes; and the genius of the poets clothed the supposed marvels in the immortal dress of fiction which we find in Homer and Hesiod, in Virgil, the Indian Vedas, and the Sagas and Scalds of northern Europe. This, at least, is the conclusion reached by some of the most eminent scholars and philologists, whose study of the formation and growth of languages has thrown so much light on the ante-historical periods. These myths, the germs of which were embodied in their language, embellished by the supposed inspired genius of the poets, formed the literature and theology of the early historic nations, and were received as undisputed truth.

9. The first migration of the Aryan family appears to have occurred through the passes of the Caucasus, northwest to the northern part of Asia Minor and Southern Europe. The Turanian nations, or “barbarians,” were everywhere found in advance of them, in a very degraded condition, and the native spirit and ambition of the Aryan people rendered them the uniform conquerors. Afterward, another migration southward peopled India, and, in the earliest historic times, the part of the family still remaining in the ancient home of the race established the brilliant empire of the Medes and

Persians, who extended their sway over all the central and western parts of Asia, broke down the ancient monarchy of Egypt, and, in the height of their power and glory, swept like a tempest into Europe with the purpose of subjugating a few self-governing tribes of their own race dwelling on the shores and among the mountains of the small peninsula of Greece. The failure of the mighty empire in this effort, through the indomitable resolution of a handful of hardy republicans, forms one of the most glorious pages of history. It was a grand era in the development of civilization, and Grecian culture became the inheritance of the world.

SECTION II.

THE DIRECTION OF PRE-HISTORIC GROWTH.

1. The three classes of indications on which we rely for a knowledge of the advance of mankind previous to the period when authentic history comes to our aid—the researches of geologists among the accidental traces of man's early activities, the ruins of ancient cities, and the study of the growth of language—unite in testifying to an extremely rude, feeble and childish condition of the earliest representatives of the race, and to a progressive improvement in knowledge and capacity, precisely like what occurs in the case of every individual of our kind. A fourth more general observation also confirms this view. This is the obscurity that covers the early ages. Aside from the Bible narrative, a cloud rests on the early history of every people. A long period passes before they begin to reflect, to look around and back toward their origin, and still another of groping thought and study before they are led to record their reflections and experiences. The necessities and habit of social intercourse give rise to language and gradually mature it; a long period would necessarily pass before the natural aversion to other than desultory labor, the increase of population and the habit of obedience to an authority requiring continued painful toil, would render the massive monuments of some of the earlier peoples possible, and before their attempts at architecture could mature and originate the elaborate ruins which time has not been able to destroy during so many centuries.

2. One of the most striking traits of pre-historic times is the simplicity and awkwardness that characterize childhood. The Chinese language has

been remarked upon as showing the extremely infantile cast of mind among the people who formed and retained it to our times. Each word is a sentence, standing by itself originally; the tone and gesture give it much of its signification. It would seem as if its authors had never grown to the idea of an elaborated sentence. There is an average of eight words, spelled and pronounced exactly alike, for every sound used. There are, it is said, 212 characters pronounced *che*; 138 pronounced *foo*; and 1165 which all read *e*, and each letter is a word, a phrase and a sentence, and may be an adjective, a noun, or a verb, or all three together. The difficulty of expressing shades of meaning, or all that may be in the thought, where so much must be acquired before expression is possible, has kept the Chinese mind, in many respects, in a state of childhood, though they have preserved a stability of character and institutions nowhere else observed. The primitive mind and habits are maintained as if crystalized. The principle of decay, so universal elsewhere, would seem, by some singular process, banished from a vast nation, as it is in the human body in Egyptian mummies. The same feature is observable in a smaller degree among the Hindoos, and seems to have characterized the ancient Egyptians.

3. Such a habit of fixity among the early races, whose position secured them from disturbance by the more restless tribes, was favorable to the construction of the stupendous monuments which have been the wonder of after ages. All those races have been remarkably exclusive. It was not until nearly four hundred years after the era of authentic history that Egypt was freely open to all the Greeks. These observations apply only to those portions of the human family which were stranded in some quiet nook outside of the current of movement that carried along the most of mankind. Change of place, intercourse, conflict and conquest were the chief early educators. The isolated nations, after exhausting the power of their first impulses, ceased to improve. Their minds, institutions and habits stiffened and petrified. Nor did the families that wandered far from the general centre of movement usually acquire any high degree of development. They were characterized by unsettled habits; not favorable to highly organized institutions.

4. It was around, and westward of, the common centre of the race that a course of steady improvement went on. Here the laws of inheritance and suggestion, the stimulus of constant friction, and the infusion of newer and

more enterprising blood worked the freest and developed the elements of a true civilization the soonest. If the legendary history of Greece is not to be trusted in its details, it at least establishes the certainty of active movement and incessant conflict out of which was, at length, evolved a noble, if incomplete, civilization. The Greeks were near enough to the scene of stirring action in Western Asia to be benefited by its influence without having their institutions frequently disturbed and broken up before they had reached any degree of maturity, as was the case with the Assyrians, Persians and Phenicians. They reaped the fruit, without sharing the disasters, of the great surgings back and forward which we find to have been the condition of the Asiatic peoples at the time reliable history begins to observe them. It appears to have been the same in that region (Western Asia) as far back as monument, legend, or science can trace. The fruit of this shock of races and mental activity matured on the spot the greatest and best religious systems the world has ever known, the three greatest of which have survived to our own day, viz.: the Judaic, the Christian and the Mohammedan. The germs of the other two were contained in the system of Abraham and Moses. Thus the three most important influences needed for the progress of civilization in the true direction were supplied in pre-historic times—the seething and surging of the nations in the West of Asia, a high religious ideal, and the primary discipline of the Greeks.

5. The lantern of science has guided us on the Track of Time by his advancing Footprints down to the period when the grand luminary, Written History, begins to shine from the hills of Greece. Looking over what was then known of Asia we find it a vast battlefield, on the western border of which were the Jews, receiving lessons of instruction or chastisement from the surrounding nations, and slowly evolving the Master Religion of the world, the massive grandeur of Egypt is dimly visible in the south, and on the eastern horizon rise the immense walls and towers of the huge cities of Nineveh and Babylon. On the north and west all is darkness, though we subsequently learn that the elements of a high culture among the Etrurians of Italy were waiting their destruction at the hands of valiant Rome, yet to be. The Phenicians were beginning to scour the sea and to build up a flourishing commerce, and the cities of Greece had already learned, from the tyranny of their petty kings, the advantages of free government.

The period of authentic history is held to have commenced seven hundred and seventy-six years before the Christian era. In that year the Greeks began to record the name of the conqueror in the Olympian games—a national and religious festival, which had been commenced long before—and it was called the First Olympiad. It formed the first definite starting point of the true and fairly reliable historians who, some four hundred years later, began to write a carefully-studied account of what was known of their own and of other countries. It was the time when dates of passing events first began to be stated in the records of the cities and kingdoms of Greece, and marks the beginning of a real civilization and culture, and the course of events began to be rescued from the magnifying and marvel-loving imaginations of the people.

6. The seven hundred and fifty years that follow are in the highest degree interesting and important; for they record the achievements of the early manhood of humanity, as represented by the nations that were most advanced in civilization, or contributed to the general progress of the world. Men developed their inherent capacities far more during that period than in all the previous centuries, however numerous they may have been. It was followed by about five hundred years of gradual decline, and that by a thousand years of confusion caused by the corruption of the old society and the imperfection of its elements, together with the irruption of vast hordes of barbarians, who brought in fresh and vigorous, but untamed blood, with rude and fierce manners. They were gradually tamed by fusion with the cultured races, and out of this union arose a civilization broader and more just, toward the perfection of which we ourselves are now rapidly advancing, and which, by its multiform vigor and unlimited resources, seems above the reach of decay. Its power of infusing new life into worn-out peoples and renewing the youth of nations as well as of civilizing barbarians appears irresistible.

From this outlook we return to consider the steps by which Time has led us to such a desirable eminence.

SECTION III.

THE GRADUAL DEVELOPMENT OF INSTITUTIONS.

1. Man, at first, had no institutions. He existed in the simplest and most spontaneous way, finding shelter in caves and clefts of the rocks and beneath the primeval forests, groping his way by strong instincts which soon began to dawn into intelligence of the lowest and most material kind. How long he led a purely *animal* life we have no means of knowing; but we may suppose that the necessities of self-preservation and his powerful social instincts very soon developed the germs of the family and of language.

Childhood is comparatively long, and many generations must have passed before language could have acquired the distinctness and fixity that permitted it to come down through so long a period, and by so many different channels, to us. Yet there is plain evidence of an Eastern origin of all the various families of the race, and of a considerable mental development previous to the wanderings that peopled the East, the West, and the South. It has been remarked by Geologists that the introduction of any class of animal life was never made by its very *lowest* orders, but usually by a class intermediate in organization between the highest and the lowest; some of the very lowest orders being represented in our own time.

2. A tolerably hardy race, which could endure the exposures and overcome the difficulties that must be greater for the first few generations than ever afterward, as we have every reason to believe, was first introduced. It has been common to suppose that man must have been supplied with a fund of knowledge, and a basis of language, to have successfully met the difficulties of his condition; but the uniform law that the *faculties*, the *innate capabilities* of his race, are conferred on him, and that he works them out by a process of development is observable in his entire history, so far as we can trace it. All needful capacities being lodged in him, with strong appetites and instincts to impel him to the objects most vitally necessary to his own preservation and the continuance of his species, and the material from which to work out his predestined ends being placed within his reach, it is made his indispensable duty and his glory to realize those ends, soon or late, by his own endeavors. The evidences of his early activity, unearthed here and there by geologists, show him to have advanced by degrees from the lowest points, and such corroborative proof as the earliest forms of language afford are decidedly in the same direction.

3. Many of the terms employed for the first and most familiar objects with which the necessities of life brought him in contact, show the very imperfect extent of his early knowledge and resources, and they gradually change in a way to indicate, most significantly, a slow and laborious, but constant enlargement of ideas by experience. He advanced then, as now, by degrees. The races latest in development, as well as most vigorous and intelligent, were the Aryan, or Indo-European. They have left the most definite traces of their early condition and advancement in the common elements of their various languages, which show very clearly how much time and toil were required to work out the features of their first Institution—The Family. The proper family type established relations of protection and dependence, of care and trust, of purity and tenderness, of provident foresight, and the shelter and comforts of Home. Apparently it was many centuries after the other races had begun to migrate that this last and most valuable stock commenced to be “fruitful and multiply,” to tame animals for their use, to enclose and render their habitations comfortable, and to organize and designate their family relations down to son-in-law and daughter-in-law, as well as to name the most common domestic animals and occupations.

4. The fact doubtless existed long before common experience and common consent had settled on the terms that have remained the same in the language of the Hindoos, the Greeks, the Romans, and the Germanic families; but by many certain signs we know that it was only gradually that the tenderness and beauty and usefulness of this institution had laid the sure foundation of a future vigorous and virtuous civilization. This race devoted themselves mainly to the care of flocks and herds, though we find among them the knowledge of wheat and some other grains; they had very little experience of war until they separated and began their wanderings, as we infer from the fact that their common terms are nearly all peaceful—those designating a warlike habit differing in all the various branches of the stock.

The Family, with them, was usually founded on marriage—the union of one man and one woman—which laid great restraints on vice and preserved the growing society from manifold evils. The other races—Turanian, Hamitic and Semitic—appear to have been much more careless in this respect, and admitted a vicious element into the base of society, which loosened the bonds of relationship and discipline. They practiced polygamy,

which magnified the position of the father, while it deprived him of the closer and more intimate relations to his household on which refinement depends, and degraded the mother who became the simple minister of pleasure to, and the means of increasing the influence of, the Patriarchal head. This point is very vividly shown in the earlier history of the Israelites where the unhappy effects of polygamy are distinctly portrayed. From the same source we see how the first institution among men gradually grew into the Tribe, and the foundations of Organized Government were laid.

5. Population rapidly increased, the original progenitor, or the oldest of his male descendants, became the fountain of authority and influence, and was, in many cases, the chief or king, exercising an undefined control, sometimes absolute and despotic, and again that of a merely nominal head, the variations taking every shade between the two. Occasionally, special gifts, as energy, foresight and skill, favored by circumstances, raised one in the tribe to eminence, and he became the acknowledged ruler to the exclusion of the patriarch, or hereditary heir of the patriarchal office, as in the case of Joseph in Egypt, and, in later times, Moses, Joshua and the Judges.

6. Again, a pastoral life being abandoned, the people gathered for various reasons in towns, and cities were built up, where the original style of government became impossible, from the mixed character of the population; the oldest, or family government, being founded on relationship and traditional respect. The need of leadership and the service rendered by some member of the community founded a despotic authority. In many cases a city was founded by an adventurer who had gathered supporters around him by some special ability, or by some accidental pre-eminence, as we see in Nimrod and Romulus; or, as often occurred, the head of a family or tribe which forsook the pastoral life and founded a city, from a patriarch or chieftain became a king.

Government, in early times, was very imperfectly organized. It gradually advanced with some people to a high point; while with others it continued in a very undeveloped state for long periods—some races never having reached any high stage at all, or only temporarily under some talented individual.

The first settled governments are found in fertile river valleys where the cultivation of the soil arrested roving and desultory habits, and often formed the nucleus of an empire. There is reason to believe that the first emigration from the early home of the race was toward the east, that a state was soon formed in China which became considerably civilized and fairly well organized the earliest of all. Their national traditions and some of their recorded dates claim a vast antiquity. It is not yet determined by scholars how much credit is to be allowed to these claims.

7. As it appears at present, two other governments were organized at nearly the same time, one in the lower valley of the Euphrates and the other on the Nile. It is also possible that a fourth was built up in India nearly cotemporary with these. Certain similarities between the ancient ruins of Egypt and India, and the traditions in the latter country have given rise to the suspicion; but no certainty has yet been reached. Several systems of chronology, independent of each other, are found in Egypt, all agreeing as to its enormous antiquity, but disagreeing in some important points, and satisfactory tests have not yet been met with, so that the early days of Egypt are very obscure. The evidences of a clearly defined progress are presented in its monuments, but the earliest bear so strong a resemblance to the later that there is some reason for supposing that the first inhabitants had reached a considerable degree of maturity before settling there. As yet, however, that point is only an inference—the most probable escape from a difficulty. The empires established on the Euphrates, and north of that on the Tigris, mark the steps of progress very distinctly, and furnish fairly satisfactory means of computing their general chronology.

8. In all these cases it appears from monuments, traditions, and from whatever information the records of the Bible and other histories give us, that when men began to gather in communities, cultivate the ground and build cities, their governments were controlled by kings. Despotic sovereignty was the natural and necessary instrument of government. The vigorous will of an admired chief concentrated the energies of the community, and a state was formed. The beginnings were very rude and improvement was slow, never reaching beyond the simple application of force as to the structure and modes of government. But another element, founded on the religious nature of mankind, which also had entered as an

important influence into family government from the earliest times, became organized in the early days of monarchy, viz.:

THE INSTITUTION OF A PRIESTHOOD.

9. It would appear, from such traces of a religious tendency as are found in the primary languages, that the religious instinct was awakened by an observation of the forces of nature, which struck the mind with wonder, admiration, or terror. The mysteries of growth, the power of winds and storms and waters, the calm beauty, beneficence and brilliance of the sun, moon and stars riding undisturbed in the heavens, impressed man with a sense of something superior to himself. The moods of nature suggested some unknown being with a varying disposition like his own. His wants, his hopes and fears, and his sense of helplessness soon led him to seek to propitiate these unknown powers. The first religion, among all the primitive nations, seems to have been a worship of the powers of nature. The head of the family was naturally the first priest of the family. This office increased the respect in which he was held by his multiplying descendants, and contributed to strengthen his authority.

10. But when, in the organization of cities and states, patriarchal influence decayed, and was replaced by the authority of the chieftain or the king, a class of men was set apart to fill the office of religious instructors, to discover the art and conduct the acts of general worship. The great mystery and uncertainty surrounding the objects of worship, required exclusive study and a supposed purity and elevation of mind impossible to others which soon raised the priesthood into an institution much revered. It acquired great influence, and afforded an opening to ambition only inferior to that of the chief or king. The two commonly united for mutual support, and thus mankind gained two institutions destined to be of incalculable value, as well as of almost boundless injury. In the earlier ages they must have been an almost unmixed good. They disciplined, the one the labors, the other the minds, of communities. They were the two most powerful instruments for initiating progress. They moulded the mass, gave it form, and directed its energies.

To a certain degree they each formed a check on the excessive tendencies of the other. But, the power of each fairly established, they often united to

set very hurtful limits to spontaneous action. The king used his power to the common injury, and the priests their knowledge to the common debasement. The first exhausted the sources of prosperity and growth among his people to gratify his caprices and pleasures, and the priesthood promoted degrading superstitions and a gross idolatry to strengthen their influence. It was for the interest of both to keep the people in pupilage, and check all tendencies to independent action or thought. Had it been possible for them to be wise and high-minded, the race would have been saved many centuries of debasement and misery.

11. These evils were, in some degree, checked by influences which have ever since been the mainspring of progress—*War* and *Commerce*. In early times, relationships of blood or of immediate interest were the chief bonds among men. All outside the family, tribe, or nation were usually held as enemies; and passion, interest, or ambition in the ruler led to constant conflict. But the shock of peoples awakened their minds, made them acquainted with each other, made their inventions and arts in some degree common property, and mingled the thought and blood of different races; and this greatly enlarged the ideas and capacities of both conquerors and conquered. The acquaintance made in this way, with men and countries, led to an interchange of products, during quiet times, and trade and commerce soon sprung up. This, appealing to the best interests and instincts of the most enterprising among the people, has always been a powerful instrument of advancement. It led to distant voyages and travels, to observation and intercourse, with a view to pecuniary advantage, to inventions and improvements in industry and art, that kept the peoples so related in a state of constant progress.

12. A growing population required increasing attention to agriculture and the mechanic arts, and increasing wealth led to architectural display and the increase of instruments of luxury, the production of which disciplined the skill of the artisan and contributed to the general growth. All these were the elements and foundation of civilization. An organization commenced, and a state founded, the king soon found leisure to look about and envy the wealth and territories of his neighbor. He made war and commenced a career of conquest, or fell, under defeat, into his neighbor's hand, when time took a step forward, and a new consolidation, wider and higher than

the former, was laid on a broader base. Slowly but surely an advance was made.

13. We are now to observe this gradual development in the successive history of five monarchies in Asia and the kingdom of Egypt, down to the time when they all fell before the conquering power of Greece, under Alexander the Great, which introduces new and far higher elements of progress among the civilized races, and forms the full opening of a new Era.

SECTION IV.

ANCIENT MONARCHIES.

1. The Chaldean Monarchy was the first in order of time. It seems very likely that the first settlement which, in the slow development of the earliest races, finally produced an organized kingdom on the lower part of the Euphrates, was made somewhere in the neighborhood of 3000 years before the Christian Era. It is, however, a matter of dispute between the best authorities whether it can be placed so far back. The monuments of that age are difficult to decipher, but it seems pretty certain that a Scythian or Turanian government preceded that which the traditions of ancient history, the statements of the Bible, and the indications of the ruins unite in placing at 2234 B. C. The founder appears as Nimrod, or Bilu-Nipur. Many indications render it fairly certain that the early formative stages of a kingdom had already passed, and that Nimrod merely changed the capital. The first people had learned to subdue their soil, had begun to build and to bring language and art to some degree of order, when it appears that a Hamitic race, more advanced than they, and showing strong likeness to the early Egyptians, mingled with them. In the first inscriptions the language is Turanian, but the character Hamitic, or Egyptian. So far as can be judged, the displacement was peaceful and gradual. About the time above named, a man of great genius, Nimrod, a Hamite, or Cushite, as he is termed in the Mosaic record, a "mighty hunter," as his name implies, founded a kingdom farther up the Euphrates, and on the plain which lay between the rivers Euphrates and Tigris.

2. The existence of the first empire is dimly made out, and that is all. Nimrod had clearly a foundation to build on, and he made a great impression on his own times. After his death he was deified under the name

of Bel, and became the favorite among the fifteen or sixteen principal deities of the early Chaldeans. These gods and goddesses seem to represent the heavenly bodies; while the earlier Turanian worship was a veneration of the powers of nature. Nimrod's dynasty appears to have covered a period of about two hundred and fifty years, including the reigns of eleven kings. They made great advancement in draining the marshy valley and regulating the supply of moisture to the growing crops. They became expert in the manufacture of cloths and in building with bricks which are covered with inscriptions. The priesthood acquired a strong development at this time, as appears in the ruins and inscriptions of their temples. The kings do not appear to have been very warlike, or to have extended their dominion far.

3. A second Chaldean kingdom was founded about 1976 B. C. It is called Elam in the Bible, and furnishes the first known example of what was afterward so often seen in that region—an extensive kingdom formed by a series of rapid conquests, that fell to pieces again as soon as a vigorous hand failed to uphold it. The kingdom continued till about B. C. 1500. Kudur-Lagamer, the Chedor-Laomer of the Mosaic account, overran a territory one thousand miles in length by five hundred in width. In one of his incursions into Palestine his forces were defeated by Abraham, which ended a control over that region lasting twelve years. There is no indication that the following sovereigns exerted authority beyond Chaldea and Babylonia.

There, however, they grew rich and civilized, extending their commerce to India and Egypt, becoming famous and envied for their splendor and luxury. A single small dwelling house of that period has been preserved in the ruins of Chedor-Laomer's capital "Ur of the Chaldees," south of Babylon. It was built on a platform of dried bricks, the walls of great thickness, with two arched doors, and, apparently, lighted from the roof. The rooms were long and narrow. Iron was at that time unknown. All implements were of stone or bronze. Religion seemed to increase in its grossness, apparently under the policy of the priesthood, who laid the foundation of astronomical science and began to acquire the reputation for hidden knowledge for which they became famous in after centuries. Nothing of any importance is related of the kings of this monarchy except the one conqueror. Despotism and priestly craft kept most of the feeble

tendencies to political improvement curbed—waiting for better times. That arrived with the advent of the *Assyrian Empire*, about B. C. 1500.

4. It appears that for a long time before, a family, or tribe, of Shemites had been settled in Chaldea, where they acquired its civilization and arts, and some time about B. C. 1600 emigrated north, settling on the river Tigris. They were a strong race, physically and mentally, quite too fierce and resolute to be held in leading-strings by the Chaldean priesthood. The country they occupied was higher and more varied, abundantly supplied with stone, which was wanting in Babylonia and Chaldea.

Here, in process of time, the most vigorous and progressive race that had yet been seen among the families of man, built up a succession of cities within a small circuit, each of which was, at different times, the capital, and which were all finally united and made the famous Nineveh of the Greek historians, and the immense “city of three days’ journey,” visited by the Jewish prophet, Jonah. Within a few years these ruins have been examined by competent men of science with great care, and have been found to confirm the Bible narrative, in all essential points, and most of the glowing descriptions of profane historians; while their higher style of art and greater vigor and pride of achievement led them to build monuments and engrave records that promise to make us very intimately acquainted with their social, political and moral life.

5. They seem to have acquired the habit in Chaldea of raising a vast elevated mound for their more important buildings. The largest mound is found to be nearly one hundred feet high, and to cover an area of one hundred acres, and on the summit of this were placed their temples and the palaces of their kings. This immense foundation, it is said, would require the labor of twenty thousand men for six years. After this were to be constructed their vast buildings, covered with sculptures and adorned with statues. Another mound, higher but embracing a smaller area—about forty acres—served the same purpose.

They were extremely religious in their way, but the vigor of the kings appears to have overshadowed the priesthood much more than in Chaldea. It seems to have been about three hundred years after the establishment of this enterprising stock in Assyria that they became famous for foreign conquest. Babylon had been gradually rising in importance, often in

subjection, more or less nominal, to the growing northern power, but retaining its own kings and habits.

6. The reign of Shalmaneser I., about 1290 B. C., was distinguished by his building a new city and improving his kingdom; and his successor, in 1270, signalized his reign by establishing, for a time, a complete sovereignty over Babylon, and the historical Assyrian empire is commonly dated from that event. For a century and a half there are few important records. Tiglath-Pileser I., in B. C. 1130, commenced a series of efforts to extend his dominions by conquest, which his success led him to describe with unusual detail. It embraces five campaigns and a description of the conquest of all the neighboring people. He established a compact and powerful empire, which was surrounded by wild tribes whose conquest was of little honor or value, and whom it was difficult to hold long in subjection. In a return from a campaign against Babylon, which he had conquered, he suffered a great reverse, losing the images of his gods which he kept in his camp for protection and assistance in his enterprises; and they were carried to Babylon, remaining there, it is said, 400 years. A long period of apparent quiet was followed, after more than two hundred years, by another warlike king who pushed his conquests to the Mediterranean sea. His public works were larger and more magnificent than those of any of his predecessors. He has recorded ten successful campaigns.

7. His son, Shalmaneser II., increased the number, extent and thoroughness of the conquests of his father. Still, most of the countries conquered retained their laws and government, simply paying an annual tribute, and the conquest set lightly on them. Babylon seems to have retained comparative independence. In the following reign, Babylon was captured and remained some time tributary to Assyria and the Ninus, or Ivalush IV., whose wife was the celebrated Semiramis, still further extended Assyrian power. The wonderful tales related by Grecian historians of Semiramis are not confirmed by the monuments. She appears to have been an energetic Babylonian princess, the principal queen of Ninus, who ruled conjointly with him. The novelty of a female ruler in that rude age, and the splendor of the empire at the time, seem to have originated the fabulous tales related of her.

8. At this time the development of the people of all the western parts of Asia was so great, and the wars as well as peaceful intercourse of different

nations had so stimulated them all, that improvement kept a tolerably even step. Multitudes of populous cities and kingdoms existed in all directions. The magnificence of Solomon belongs to this period, the Jewish monarchy having reached the height of its glory and power, too high to be long endured by the proud and enterprising Assyrians. Commerce filled the east with activity and manufactures flourished, in some directions reaching a high degree of excellence. A true progress marked the general course of human effort. The psalms of David show to what a lofty point the religious ideas of that age were capable of being carried. Industrial pursuits and agriculture reached, in the next hundred and fifty years, the highest development they ever attained in some regions.

9. In the midst of this busy industry Nineveh rose, peerless in grandeur, enriching herself with the tribute and spoils of all countries, beautified by the master race, which was wise enough not to dry up the sources of their prosperity by the destruction of cities and kingdoms. The common policy, up to nearly the close of her splendid career, was to leave the real resources of all conquered nations untouched. After defeating her opposer in a battle, she received the submission of the king, imposed a heavy tax, or forced contribution, and an engagement to pay a definite annual tribute, and went on her way to subdue another nation to a like formal control. With misfortune, or a change of rulers in the dominant kingdom, the subject-kings would withhold tribute, raise an army, and the whole work of conquest had to be repeated.

Thus the empire consisted of a stable nucleus, Assyria, and a vast floating mass of half independent kingdoms, states and cities which were now submissive and now in revolt. We may easily conceive how this comparatively mild mode of warfare would contribute to the general advance of the whole population. This mingling and clash of armies, surging to and fro of vast bodies of men, and the knowledge and culture received from the great and wealthy capital made the school of that period for the education of humanity.

10. The Assyrian annals show a continued growth in splendor and power and extent of dominion until the very eve of its fall. In the course of that time Egypt was invaded and partially subdued for the first time; and, in the impatience of frequent revolt, the practice commenced of removing whole nations from their original homes, supplying their place by others. Thus the

Ten Tribes were transported from their homes in Samaria, and other nations brought to occupy their places.

The last king of Assyria inherited an authority that extended farther and over larger numbers than had ever before been known. The vigorous governing race were perhaps corrupted and weakened by a thousand years of power and success; but various extraordinary circumstances united to bring on a sudden catastrophe. A considerable part of the central kingdom was devastated by an irresistible host of Scythians, immediately after which the Medians, who were as fierce and warlike as the Assyrians in their best days, attacked Assyria. A large army, sent by the king to meet the invaders, went over to the enemy by the treachery of its general, Nabopolassar, and the combined armies laid siege to Nineveh, which fell, the king burning himself and his family in his palace. Nineveh was destroyed, and Nabopolassar received as his reward the kingdom of Babylonia, and the Assyrian conquests in the south and west. He founded the

11. Babylonian Empire, which has made a greater impression on posterity than Nineveh. He was a man of great energy and resources. The treasures and captives of that mighty city, that fell to his share, were employed in rebuilding and improving Babylon. During his reign of twenty-one years, and the forty-three years of his still more illustrious son and successor, Nebuchadnezzar, that city was made the wonder of the world. Each side of it was fifteen miles in length, the river Euphrates passing through its center. They repaired the wall, which was eighty-seven feet thick and more than three hundred feet high. This wall was so immense as to contain more than twice the cubic contents of the great wall of China, which is 1,400 miles in length, and the vast enclosed space was filled with palaces, temples, hanging gardens, and all the impressive evidences of boundless power and resources in which the gross ambition of that period delighted. A second wall was built within the first, the river was, for a time, turned out of its bed and its bottom and sides paved with masonry, and huge walls erected on either bank; canals and aqueducts, for agricultural purposes, of the most stupendous character, were constructed all over the broad valley. The wealth and energies of the richest and most populous part of Asia, as then known, were employed to build up the great capital and improve the central province.

12. The Jews were kept there, as captives, for seventy years, all the treasures of their city and temple, and the accumulated wealth of their nation, were poured into the Babylonian treasury, and their people employed, with other countless multitudes, in the construction of its walls and buildings, and the cultivation of its fields. Tyre, the most renowned commercial city of ancient times, was taken, after a siege of thirteen years, and much of Egypt was reduced.

It was the culmination of the centralizing system of the Assyrians and Chaldeans which had lasted for two thousand years.

13. A dominion so resting on physical force, and gorged with booty wrested from others, with no moral power or national spirit underlying it, could not last long. A more vigorous and warlike power rose by the union of the Persians and Medes under the Persian warrior, Cyrus, who, after a series of conquests farther north and west, in Asia Minor, turned his arms against Babylon. The walls were impregnable, but the river proved a source of weakness. It had been once diverted from its course to pave its bed within the city; the hint was accepted, and, on a night of feasting and carelessness, it was again turned aside to give free entrance to the besiegers, and the Babylonian Empire fell in the very height of its pomp and glory. We find a regular progress in organization, in most institutions, from the first Chaldean to the last Babylonian Empire. In popular religion alone was there an increasing grossness, which reached its limit about this time by the fall of the Chaldean priesthood, purer practices and ideas were circulated by the Jews in their captivity, and the Magian religion was reformed by Zoroaster.

14. The Medo-Persian Empire lasted for 200 years. Those nationalities were both of the Aryan or Indo-European race. They had long been maturing on the highlands bordering the north and east of Chaldea and Assyria, with which their connection was close enough to communicate the general value of the growing organization, but too slight to drag them down to its level. They brought now, to the common stock of progress, the freshness of youth and the healthy habits and pure blood of the mountaineer. They had a higher capacity for organization, by which the experience and progress of the older nations, for more than two thousand years, was prepared to profit. They had already subdued Asia Minor and their vast Empire soon extended from India to the sea that washed the shores of Greece. A complicated civil and military organization

consolidated this extensive region more perfectly than before by armies and governors located in each nation and principal city; a system of easy communication was introduced; and the preparation for the higher Greek models of thought, and the severe regularity of Roman institutions went on apace.

15. Babylon fell gradually into decay, being only occasionally the capital of the Persian Empire; the love of the sovereigns of that race for their native highlands leading them to build splendid capitals in the borders of their own country. A reform of great significance occurred about this time in the Persian national religion, which gradually displaced the debasing superstitions and gross idolatry of all the nations of the Empire.

The government was still despotic, somewhat relieved by the more humane and independent habits and traditions of a hardier race. A number of changes of dynasty by violence occurred, but they were merely revolutions of the palace. The vast wealth and power inherited from the subject empires gradually corrupted the conquerors. Their armies became vast crowds of comparatively undisciplined troops, who were accustomed to bear everything before them by their irresistible weight. Their conquests on the northern and eastern coasts of Asia Minor brought them in conflict with the Greeks, who had many colonies long settled in that region, and the Persians soon undertook to subdue that intelligent and independent people. Their signal failure had the effect to greatly stimulate the development of the Greek national spirit, and to awaken its intellectual enthusiasm, and the mighty armies of the Persians were destined to be annihilated by the small but resolute forces of the little republics.

16. Thirteen sovereigns ruled during the continuance of the Persian empire. Except the conquest of Egypt, they did not very greatly extend the boundaries formed by Cyrus; but the national features of the subject peoples were gradually effaced, and the whole brought to the common level of civilization. When Alexander, the great Grecian soldier, appeared with his army of 35,000 men he scattered the hosts of the Persian king, Darius, as the wind drives the leaves of the forest; and the vast empire, so long accustomed to bow to the fate of battles, became the unresisting heritage of the conqueror.

These five great monarchies were continuous—in part on the same soil—the centre having always been the fertile valleys of the Euphrates and the Tigris; the successor stepping into the place and carrying out the general plans of his immediate predecessor, but on a broader scale and in an increasingly enlightened manner. Through all these long centuries a mysterious, and, apparently, still more ancient race had occupied Egypt, only occasionally interfering with, or being disturbed by, the surging sea of strife that raged and foamed so near them, which at length forced them from their seclusion and bore them on in the general tide of improvement.

17. The Egyptian monarchy presents many very curious and difficult problems. Possessing the most perfect organization in the earliest times of which we have any knowledge, the traces of its beginnings quite fail us, although, more than any other nation, it loved to build great and impressive monuments and record on them, in the most minute manner, the singular habits and monotonous daily life of its people. The first of those monuments, which, by many signs, must date very nearly as far back in the remote past as the earliest dawn of organization among any other people of whom we can gather any certain traces, indicate a long settled state, a high degree of organization, considerable culture and great resources.

18. The first king, who is called Menes by several independent and very ancient authorities, made his reign memorable by a system of vast and useful public works. It is conjectured that the previous rulers were the sacerdotal class and that, up to that time, they had no kings. The habits of the people were quiet and peaceful, and they seem to have been first gathered around temples. In all stages of their history, down to the time when foreign intrusion by force disorganized their peculiar institutions, the priesthood was the most influential element in their constitution, and their sway seems to have been, in some respects, singularly mild and beneficent. Except for the extreme inflexibility and minuteness of their regulations, which repressed all spontaneous growth, and the gross and absurd worship of animals which they introduced, they might be considered an unmixed blessing to those early times. It is certain that they were successful in controlling men and moulding them to their own views without producing discontent or revolt.

19. Everything in Egypt was remarkable—its river, its country, and the institutions and habits of its people. The Egyptians dwelt in the valley of the

Nile for a space of 500 miles above its mouth; but this valley was so narrow that the habitable part of it contained only about 6,000 square miles in all. It was shut in by the Red sea on the east and by trackless deserts on the west, and a fall of rain was so rare as to be considered a prodigy. In June each year their mysterious river, whose sources are yet almost unknown, began to rise till it covered the whole valley like a vast sea. The rise and fall occupied the summer months and to the middle of October. The waters left a rich coating of mud and slime, which rendered the valley fertile beyond measure. The productive season occupied the remainder of the year, and their agricultural resources were only limited by their skill in spreading and husbanding the fertilizing waters. Vast canals and reservoirs covered the whole valley. Lake Moeris, a reservoir partly natural and partly artificial, was said by the first Greek historian, Herodotus, to have been 400 miles in circuit. When the waters had reached their highest point, the cisterns, canals and lakes were filled and the waters kept in reserve for late periods of the year, and a succession of crops.

20. The mysterious character of the river seems to have deeply impressed the nation with awe and reverence for unseen powers, and contributed to the influence of the priestly caste. Their peculiar source of wealth and the amount of leisure periodically afforded, perhaps led to the construction of the temples and palaces, whose gloomy strength is as mysterious as their river, or the origin of the people. Far back in the twilight of time, Thebes, the “city of a hundred gates,” was a colossal capital. Its vast temples and palaces were built on a scale of grandeur that seems almost superhuman; yet, before history begins its narrative in Greece, Thebes had had its youth, its long period of splendor and glory, its hoary age, and was already a thing of the past, and nearly in ruins; not by violence or conquest, but by the natural transfer of the center of activities to another region. Considering the small extent of Egypt, its always overflowing population, and the tenacious habits of the Egyptians, nothing could more impressively show its great age.

21. Egyptian sculpture was descriptive of religious ceremonies on the temples, and on the palaces of domestic life and general habits, and furnishes us with details of the whole social structure and all their industrial pursuits, as well as the events in the campaigns of their few warlike

monarchs. Add to these the minute delineation of their temple service and religious teachings, and its ruins describe the entire round of its ancient life.

The people were divided into classes, or castes, the son being obliged to follow the occupation of the father; and all branches of business and industry, public and private, were arranged in the most methodical manner. The priest, the soldier, the husbandman, the artisan of whatever branch, was so because his ancestors had been such for numberless generations. A king could be selected either from the priestly or the soldier caste; but he must previously have been initiated into all the mysteries of the priesthood, and therefore Moses, the acknowledged heir of the throne, “was learned in all the wisdom of the Egyptians.” Otherwise, not belonging to the priestly caste, he must have remained in ignorance. With this exception, the priest alone had the key of knowledge, and all the employments requiring intellectual studies, or scientific culture, as we should now say, were filled from that class. They kept all records, measurements, and apportionments of land; prescribed the times, seasons, and conduct of all public transactions; were the constitutional advisers of the king; they were physicians, astronomers, philosophers, and guides of the people in every respect. They alone did the thinking, and they guarded their prerogative with the most jealous care.

22. A people are debased and gross in proportion to their ignorance, and the ignorant masses of Egypt were amused with the greatest possible multiplication of gods, and their leisure and simple minds fully occupied in religious ceremonies and absurd fictions. But the priests were as wise and moderate as they were crafty and persistent. Their discipline was extremely judicious and well administered, and was laid on the king as well and sternly, as to his general life, as on the lowest peasant. The priesthood were as absolute, as impartial, and as unvarying from age to age as it is possible to conceive. Their services to humanity were very great. They laid the foundation among men, of unvarying law, of diligence in the employment of time, of exactness in the division of labor, and inculcated, in an effective way, the idea of divine justice and of immortality.

23. Their “wisdom” was the highest and the most fruitful that was, perhaps, possible in their times; their fame was wide-spread, and their influence on the legislation of other lands has laid all ages under great obligations. The political economy of the Jews was the product of one of

their most intelligent disciples, and the fact that he was so probably added greatly to his influence and success with his own people; and all the great legislators, philosophers, and historians of Greece went to them to complete their education. In after times, when the nation lost its liberty and became the province of a distant kingdom, they sunk the priest in the scholar, and Egypt had the largest libraries and the most eminent philosophers in the world. After Greece was carried, as it were, bodily, to Rome, far down into the Christian Era, Alexandria was the university of the world.

The history of Egypt is thus entirely peculiar, being mainly that of its own influential class. They impressed a peaceful, generally virtuous, laborious, as well as monotonous character on its history, and, besides the vast monuments which the patient industry they inspired reared up, and the names of their interminable list of kings, there was, perhaps, little to record.

24. The entire number of their dynasties of kings, as they have handed them down to us, is thirty-two, the last being the Ptolemies, founded by a Greek general of that name, after the death of Alexander the Great, which lasted more than three hundred years, closing B. C. 44. The first twelve dynasties are called the Old Empire, whose period it is impossible to determine accurately. The five following dynasties are ascribed to the reign of foreigners, called “shepherd kings,” who are supposed to have established their authority between the times of Joseph and Moses, and are called the Middle Empire; while thirteen dynasties, including the royal families that reigned down to the time of the conquest of Egypt by the Persians, comprise the New Empire. They were generally exclusive, shut up within themselves, too much absorbed in exact observance of the endless routine prescribed by their priests to be inclined to the ambition of foreign conquest; but several of their kings gathered large armies and invaded Palestine and Syria, or made a trial of strength with the Assyrians or Babylonians. They never made permanent conquests in that direction. Some of the later kings became friendly to the Greeks, and employed them in their armies, to the great disgust of their subjects, the soldier caste retiring, almost in a body, to Ethiopia, and refusing to return. The kingdom soon after fell into the hands of foreigners, and the accumulated discipline, knowledge and wealth of that wise people became the inheritance of humanity.

Nebuchadnezzar was the first who made a conquest of Egypt, but the country soon regained its independence. It was not till after the death of Cyrus, and when the details of the new Medo-Persian kingdom had been settled, that Cambyses, the son of Cyrus, subdued the whole of Egypt, and made it a Persian province, in which condition it remained most of the time to the Grecian invasion.

25. About twenty-five hundred years before the time of Alexander the Great, the cities of Sidon and Tyre were founded, in Phenicia, on the eastern shore of the Mediterranean sea. Their territory extended only twenty miles back, from the sea. They were of the Semite race, and their enterprising spirit led them to build ships and become at first pirates and then merchants. They were thrifty and grew rich, improved their vessels and became famous for their commerce. They at length planted colonies for trading purposes on the northern coasts of Africa, in Sicily and in Spain.

One of those colonies, Carthage, became more wealthy and powerful than the parent state. The merchandise they gathered from distant countries they distributed through Asia by a land trade, and their caravans reached Nineveh, Babylon and Persia, and, for long periods, were almost the only link that joined Egypt to the rest of the busy and growing world. They learned many useful things among the Egyptians, among others the invention of letters, or at least hints on which they improved. Many flourishing cities were built up by this internal commerce in places surrounded by desert regions, as Baalbek and Palmyra in Syria, and Petra in Arabia, a city excavated in the rocks, which, lying between Syria and Phenicia in the north and the rich districts of Arabia in the south, and between Babylon and Persia on the east and Egypt on the west, became a great mercantile depot. The Phenicians were the busiest and most enterprising people of ancient times. Their vessels reached the shores of England, where they had valuable mines of tin, as of silver in Spain; they visited the northwest coasts of Africa and the Madeira islands, and brought the rich products of India and gold from eastern Africa to the markets of the world. The amount of their contributions to civilization and progress by making known the discoveries and arts of distant nations to each other, by causing roads and inns to be built, and facilitating communication, was immense; as well as by awakening the love of gain and turning the activities of a part of mankind from warlike to more peaceful and useful pursuits. The

arts and inventions that have done the most, in the long run, for the improvement of men, as shipbuilding and writing, were communicated from one nation to another. Their commercial routes were the highways over which the intelligent and inquiring Greeks traveled in search of the knowledge which they used for the education of their people. Tyre was destroyed by Alexander B. C. 332; but he replaced it the same year by building Alexandria, at the mouth of the Nile.

26. We have thus seen nations and institutions gradually unfolding, passing through a period of youth, of vigorous organic action, and finally decaying, to give place to another of higher order which inherited all its general gain and proceeded to carry still further the banner of civilization. As this process continues the field widens, and with the increasing number and variety of the elements engaged in acting upon one another, the product becomes more valuable, the organization more complete and the institutions more useful.

The institutions purely political, however, the modes of government and the style of administering them, are imperfect, at best. They are too arbitrary, too restrictive; the masses are too large and too closely crowded to permit free play to the component parts. The mingling of the whole was, at first, evidently necessary to prevent the crystalizing of the separate nationalities and the arrest of progress; but when that process was stopped and a plastic condition and progressive tendency assured, the absolute despotism of the king and the priest stood in the way of advance. They had educated society and developed its resources until a power of vast combination had been gained; then a change must be introduced, or the entire resources of the civilized world would be employed to repress its further advancement, the fountains of wealth would be exhausted and the springs of activity dried up. This barrier against a destructive centralization had long been preparing among the Grecian states.

SECTION V.

THE GRECIAN STATES.

1. They were of the Aryan race, and showed a high capacity to receive the lessons taught by the experience and genius of all the past, and make them the stepping-stone to a higher civilization and freer institutions. They

were preceded in the occupation of Greece by the Pelasgi, of the same stock, but too rude and uncultured to leave many traces of their presence except the ruins of immense cyclopean buildings, without inscriptions, indicating only a dawning culture, but a vigorous combination of physical force. The mythic history of Greece is in part a veiled and distorted account of the struggles of Hellens, or true Greeks, against those uncouth aborigines; the actual facts being mingled by the lively creative fancy of their poets with the religious traditions brought from their original home. The highly picturesque language of the primitive Aryan people accorded with the imaginative and observant character of that family, and its inclination to extemporize some plausible explanation of the natural phenomena which awakened their attention, and, apparently, suggested the general course of invention and embellishment adopted by the poets, who were the historians, the theologians, and the only literary class of their period. Thus the early speculations and crude religious ideas assumed, in poetic hands, an exceedingly fanciful and marvelous garb; and their heroes, who succeeded in overcoming the difficulties of a new settlement, and in laying the foundation of their communities in a rude country filled with men and beasts almost equally wild and savage, were endowed by their grateful and admiring descendants with superhuman qualities, and wonder and reverence ascribed to them a descent from the gods.

2. A characteristic feature of Grecian heroic mythology is the number and mutual contests of these mythical heroes which indicate a leading characteristic of the nation—a disposition toward independence and decentralization. Every small community had its divine hero, and insisted on maintaining its government in its own hands. In the early times the immediate descendants of these local benefactors commonly obtained the sovereignty, more or less qualified, over their city and community. They all greatly respected the tie that bound them together in kinship as one race; but they never would permit it to deprive them of local independence. If they had a king he should be of their own tribe and choice; if they were ruled with harshness it should be only because they chose to submit to their own tyrant. They seldom permitted another community to manage their internal affairs. Various leagues were early formed among contiguous cities or states closely related by origin; but they dealt only in matters of common interest, and if one city or king was acknowledged as the head, it was only in a general sense for the sake of realizing some general plan.

3. This instinctive and resolute refusal to accept a centralized government was a new and important feature in the history of men in a civilized, or highly organized state. It was the direct opposite of that which characterized Asiatic and African civilization, and held the Greek race open to a spontaneous growth and a mental development which made them the benefactors of the human family. With less individuality and mental force, or a less favorable time and situation, it would have kept them forever barbarous; but time had matured them and the nations about them, and their restless spirit of inquiry and constant movement among themselves stood in the place of the foreign action and shock of races that proved so beneficial and necessary to the Asiatics. The Egyptian, Chinese and Hindoo peoples reached a certain point of well regulated order, apparently by an original impulse, and stopped; the Chaldean, Assyrian and Persian races kept in the stream of progress by a sort of mechanical or forcible stir and intermingling of races and civilizations; and the principle accomplished, in each case, all it was capable of. Time and progress then transferred the care of the best interests of mankind to *intelligence* as embodied in the Greek race. Without being conscious of such a high destiny, they fulfilled it with fidelity, and remained true to themselves and faithful to the impulses of their own minds until humanity required training of a different kind, and another race, receiving their mental culture, added to it administrative ability and carried the old world as high as it could possibly go on its ancient base.

4. It seems probable that about B. C. 2000, or in the time of Abraham, the progenitors of the Greeks reached that country from the highlands east of the Caspian Sea. Greece extends about 220 miles from north to south, and 160 from east to west, with a very irregular outline, and contains about 34,000 square miles, much of this being mountainous and barren. The separation of the different states by these mountain ranges much favored the disposition of the people to local independence, and formed a bold and hardy race. Access from three sides to the sea led to commerce and colonization, while it brought them into frequent contact with the most civilized people of the east without endangering their independence, and the lofty mountains on the north were an effectual barrier to the irruption of the wild and wandering tribes of northern Asia and Europe. Early in the history of the Greeks colonies came from Egypt and Phenicia and introduced the arts of those countries, then the most civilized in the world. This was about the time that the Jewish nation was founded by Moses, and we can easily

understand that the native intelligence of the Greeks and their teachable spirit, led them to profit greatly by this early light.

5. The most celebrated traditions of this people relate to an expedition by the collective young chivalry of Greece, called the “Argonautic,” which indicates their enterprising spirit and early acquaintance with the sea, and also seems to have introduced the habit of planting colonies. Two wars against Thebes, in the central part of Greece, induced by the ambition and combinations of the kings of the various States, seem to have made much impression on the whole nation, while a combination of nearly all of its petty sovereigns, gathering an immense army, stated at 100,000 men, to punish an injury done to one of their number by the King of Troy, on the opposite coast of Asia, occupied ten years, and filled the whole country with confusion. This was soon followed by an event called the Return of the Heracleidæ, or descendants of Hercules—a mythic hero of great celebrity—to their ancient dominion in the southern peninsula, called the Peloponesus. It appears to have been attended by the migration of one tribe into the domains of another, which they forcibly dispossessed and produced the emigration of the conquered people into Asia, where they formed extensive colonies—independent—but preserving a love for their race, and forming an important element in Greek progress.

6. The commotions and miseries of this period and of subsequent times, which had their rise mainly in this, most of which were due to the restless ambition and personal quarrels of their kings, came at length to disgust the spirited and progressive people with that form of government, and before the time that authentic history begins they had very generally set aside the kings and established a democracy; and where this was not the case, as in Sparta, the power of the kings became so limited that they were little more than leading magistrates in their respective cities. This was not often done by violent revolution, but generally in a quiet way, showing the steady and intelligent resolution of the people.

This rare nation knew how to adapt its governments to its needs. Not that everything went on without struggle or difficulty, nor that they did not share in the rude and sanguinary passions of their times. Their governments were often unsettled; there were frequent conflicts among aspirants for place and power in the state; they had a balance of power among the leading states to maintain; and the want of a strong central authority led to innumerable

collisions and sometimes to desolating wars. But amidst all the confusion and imperfection of an early civilization they still maintained such an independence of any superior in each state that they could settle their internal affairs to suit themselves. They were yet uneducated men, in the enthusiastic young manhood of the world, but with spirit enough to be free.

7. That freedom had many defects. The true character of freedom was imperfectly apprehended in that age of the world. It was often violent; and much Grecian blood was shed by Greeks. It was frequently turbulent; and sometimes the strife of parties and factions did great injury to the welfare of the state. It was usually a restricted liberty in which all the inhabitants did not share, for the slave, the freedman, and the foreigner were admitted to no influence in the government, or in framing the laws; and there was always much oppression and injustice somewhere. It was not a well understood and well balanced liberty, as we comprehend it, but it left room for a large amount of free and spontaneous action. It made little account of the *individual*; that point was to be learned and made duly prominent after the lapse of more than two thousand years. The Greek identified himself with his state. He would not have it large in order that each free citizen might have a personal influence in it. His public life was an education to him; and the very defects of his institutions fitted them more perfectly to meet the wants of that age than anything more complete could have done.

8. They developed rapidly under a system so free from restraint, coupled with a nature so ardent, and a thirst for knowledge so absorbing. Still it was at least two hundred years after they had re-arranged their primitive modes of government before they reached a degree of order and system that influenced them to record events as they passed, and observe the world outside of their state, and even then their most learned men wrote little. Men were absorbed in their private matters, or in the affairs of the state. They thought little of the future; they were devoting themselves diligently to the only means of education that existed in those days, intercourse and action. Their priesthood was quite different from what we found it in Chaldea and Egypt. They did not form a class, nor attempt to exercise an influence on government. They were appointed from the body of the citizens to offer sacrifices and conduct religious ceremonies. The high spirited and active minded Greeks were not fit subjects for the dominion of a priestly caste. Although Cecrops, an Egyptian, settled and civilized

Athens, and introduced some of the social arrangements of his country, he did not plant the all-controlling priesthood. The Athenians, of all other Greeks, were the thoughtful, progressive intelligence of the nation. The poets compiled the genealogies and histories of the gods, the heroes, and the past records of the people. There was no other literature, there were no other sources of information but those from which the poets drew—tradition and inherited customs. Of these the poets explained the origin and reason, and no one thought of questioning their tales. They were supposed to be inspired; and their marvelous legends rested, to a certain extent, on monuments, habits, and oral tradition. Their lively narratives charmed and satisfied the public mind and gratified their pride. It was only in later years that the philosophers explained them away.

In the early days they had no standard by which to criticise them. All they required was that they should offer a pleasing explanation. The wisest of the Greeks came, ultimately, to believe in one God who ruled with wisdom and justice, and they laid the foundation of all useful knowledge by teaching men to think and reason; but true science was not possible in their age of the world. They, however, prepared the way for it.

9. Their religion was cheerful and bright, they had altars and temples in great numbers, and countless ceremonies in honor of particular deities. One class of these was festivals, or games, established, according to tradition, by their divine heroes. The Olympian Games were the most celebrated, and took place every fiftieth month at Olympia. In the year 776 B. C. they began to record the name of the victor in these games, and as that was done ever afterward, this became a fixed date and the interval between each was called an Olympiad. It was the beginning of reliable history, although it was one hundred and fifty years later that men of real wisdom, extensive observation and careful study began to flourish. But the eagerness with which the people sought information, and the honor in which they held men of thought and wisdom, encouraged study, reflection and travel for the sake of knowledge, so that this class, in time, became extremely numerous.

Their researches, and systems of what they held to be truth, were often imperfect, and, in many parts, false; but they were upright and earnest in the studies that were then possible, and did as much good, one might say, by their failures as by their successes. Inquirers, in after times, noted *where*

and *how* they failed; so that all their pioneer work was useful—their mistakes for a warning, their success for instruction.

10. The course of Grecian development took two contrary directions, under the two leading states, Sparta and Athens. The last represents the generally received idea of Greece—as a land where the people were lively and beautiful, intelligent and richly endowed with *taste* in the arts, or an exquisitely quick and thorough *judgment* of *fitness*, developed to the very highest point. Sparta, on the other hand, through its whole career, was a military state. Somewhere about one hundred years before the first Olympiad (B. C. 776), a lawgiver, named Lycurgus, had reformed the institutions of the Spartan state with the avowed and only object to render it capable of producing the most vigorous and hardy warriors. He made an equal distribution of lands, which were cultivated by the ancient inhabitants, reduced to slavery. They were called Helots, and were treated with great cruelty. Lycurgus abolished every species of luxury, subjected the young, both boys and girls, to the most rigorous training, and discouraged all the amenities of family and social life that he supposed might interfere with the rude hardiness of the soldier. The whole intelligence, activity and vigor of the Greek mind was, in this state, confined to military life. These institutions continued to exist in Sparta for more than five hundred years. Among any other race they would have secured to them the supreme dominion of the nation; but among this liberty loving people they merely sufficed to render them the general leaders in war, and *one*, only, among the most powerful and respectable Greek states. Besides, this experiment shows that there is little real advantage in systematically trampling down the native instincts of humanity in order to promote superiority in a particular direction.

11. The entirely spontaneous character of the Athenians made them, in general, the equal of the Spartans in military fame, and gloriously eminent in many other directions. But the various members of the Greek nation seem to have been made, by their intelligence and the earnestness, the completeness, of all their lines of development, the pioneers of humanity in their experiments. They exhausted all the capacities of a complete military education in an entire state, and presented the most perfect achievements of a genius that had no models to commence on, in poetry, in painting, in

sculpture, in philosophy and in such elements of science as were possible to humanity in their day.

It is worthy of remark that most of the Greek colonies, the Phenicians and their colonies, and a great part of the numerous nations in Italy became republican about the same time—as did the Romans later—and that those states which preserved hereditary monarchy, or tyrants—as those kings were called who were elected by the populace—had counterbalanced the individual despotism of the kingly office by various institutions that controlled and limited it.

12. At the period when history began to be carefully written and dates accurately given, civilization was under full career and rapidly moving westward. The Greeks had been struggling with the difficulties of the early times for more than a thousand years and had already begun to mature the institutions and to show the traits of character that afterwards made them so eminent and so useful in advancing the progress of mankind. The Tyrians, or commercial people of Phenicia, had formed the net-work of communication with all the parts of the earth then sufficiently civilized to produce anything which could be useful to the rest of the world, and Italy was alive with the energies of the primitive races, mainly Aryan—some of them transplanted from the East, and possessing many of the highest elements of the ancient culture—who fought the Romans with a vigor and persistence that contributed much to the discipline and strong development of that remarkable people, to whose instruction the Greek colonies in eastern Italy added not a little.

From this point the advance of the center of development toward the western continent, and of mental preparation for more perfect ideals of government was continuous. A more complete view of this progress will be gained by considering the general events of each century apart, or in chronological order.

13. B. C. 776. This is the first definite and positive date in reliable history and commences the First Olympiad. The Olympic religious and national festival was celebrated by foot and chariot races, boxing, wrestling, etc., and was commenced by religious sacrifices and ceremonies, mainly in honor of the god Apollo. This peaceable assembly of all the representatives of the Grecian race was one of the chief means of maintaining the national

union, and greatly promoted the maintenance and importance of a kind of national congress, called the Amphictyonic League. The first object of this League was the protection of their common worship; but it came to have, afterward, considerable importance as a political body; its decrees having the character and force of the Laws of Nations in modern times. It was composed of two delegates from each of the twelve leading states of Greece, and held two meetings yearly; one at Delphi, where was a celebrated temple and oracle of Apollo, and one at Thermopylæ. The twelve chief cities of the Æolian colonies of Greece in Asia Minor, and also the same number of Ionian colonies on the same coast more to the south, had each Amphictyonic, or International Leagues; but the Greeks from all the various regions they settled, as well as from the mother country, took a pride in participating in the Olympic games.

14. B. C. 753. This is one of the most important dates in the history of mankind. In this year, Rome, “The Eternal City,” was founded by a band of adventurers and outlaws, under the lead of the twin brothers, Romulus and Remus. A spirit of adventure was the most characteristic feature of that era, in Greece and about the Mediterranean sea, together with a passion for colonizing, or founding new states. Education, or growth, seems to pursue parallel lines in the same era, so that the same general tendencies move the masses of widely separated nations. Greece began, at this period, to send out a large number of colonists, in rapid succession, to Italy and the islands of the Mediterranean. The tendency had commenced more than three centuries before, but the colonies had not gone far from the native state, and only one had been established in Italy, at Cumæ. Carthage, a commercial colony of the Tyrians, had been founded 127 years before, and was now beginning to rival the parent city.

Rome gathered its population from all the neighboring states. The mingling of races has always been favorable to the progress of mankind. A single race, isolating itself and receiving no new blood or impulses from without becomes stationary and fixed in all its habits and advancement ceases beyond a certain point. The men who founded Rome were, apparently, a crowd of adventurers who had resolved to found a state. After building the walls of their city and providing themselves with habitations, they were destitute of wives—a serious want which would soon leave their new city without inhabitants. They remedied it in true Roman style—by

violence. They made a festival without the walls to celebrate the founding of their state, and invited their nearest neighbors, the Sabines, to take part in it. The Sabines came with their wives and daughters. At a concerted moment the young Romans each seized a young Sabine woman, and carried her off into the city; the gates were closed and each proceeded to make his captive his wife.

The Sabines were powerless to prevent the deed, but they soon made war on their violent sons-in-law, and the young city would have been destroyed but for the interference of the stolen women who had become satisfied with the bold deed which gave them valiant husbands. The Sabines were induced to unite with the young state so far as to build a new city adjoining and take part in its rising fortunes. Romulus was elected king by his followers, but popular institutions were established to limit his power, under the strong instinct of vigorous organization that, from the first, characterized the new nation. The people maintained their right to make laws in conjunction with the king, and preserved a limited monarchy for 250 years. At this time the prophet Isaiah flourished in Judea, and the kingdom of Samaria was approaching extinction.

15. B. C. 747. The Chaldeans established, or revived, their dominion in Babylon, under their king, Nabonassur, and seem to have been independent of Assyria for a time, but afterward to have been brought into a qualified subjection to that enterprising monarchy. It commences authentic history in the East, so far as well ascertained dates are concerned. In that year the Chaldean astronomers or priests, first introduced the Egyptian solar year, which furnished an accurate mode of measuring time. This was about the commencement of the Sixth Olympiad. Egypt was approaching its most perfect condition under its ancient system.

B. C. 743. Messenian war of 23 years—Sparta conquers Messene.

16. B. C. 735. A colony from Corinth founded the celebrated city of Syracuse in Sicily, and a fashion of colonizing seems to have obtained in Greece, which continued for a hundred years. The native enterprise of the Greeks, the great increase of inhabitants in their small territory, and the commotions and contests of parties in their states, which preceded the establishment of more complete popular governments, were probably the ruling causes of these foreign emigrations, and all contributed to the

increase of knowledge, improvement in navigation, and the prevalence of a commercial spirit. Miletus, the leading Greek city of Ionia, in Asia Minor, became almost as powerful and prosperous by her commerce as Tyre in her best days. There were Grecian colonies on the coast of Africa west of Egypt, on the eastern coast of Italy, several in Sicily, one in France. They were, generally, very enterprising and prosperous, and diffused Greek intelligence and culture over a large part of the world as known at that time. They usually established a republican government. Syracuse remained republican for 251 years.

17. B. C. 728. The Assyrian Empire was now having its palmiest days, and spreading its dominion over all the central parts of western Asia, from the Mediterranean to the Persian Gulf. At this time Shalman-assur, or Shalmaneser, the king of Assyria, led away the Ten Tribes of Israel into a hopeless captivity, and planted a different race in Samaria. Soon after this time the Ethiopians from the upper Nile established their dominion in Egypt, without apparently changing the general condition of things there. Three Ethiopian kings successively reigned in Egypt, and made conquests in Asia to some extent.

18. B. C. 600. About the beginning of this century the foundation of Greek philosophy was laid by Thales of Miletus, a Greek city in Asia. He represents the growth and acuteness of the Greek mind and the approach of its period of greatest activity. He travelled into Egypt in search of wisdom, and was the most able astronomer of his times. He calculated an eclipse of the sun, which, coming on just when two armies, the Median and Lydian, were about to engage in battle, so terrified them that they immediately separated and made peace. He was celebrated as a mathematician, and taught many truths concerning the existence of God which were far in advance of his time, and undertook to account for the origin of all things in a very bold and independent manner. He was one of the famous “Seven Wise Men” of Greece. Solon was held to be the first among the seven. He was an Athenian law-giver and writer, and established a very wise and enlightened system of government in Athens. He was a pure-hearted and clear-sighted man, enjoying the universal respect of the Greeks. Chilo, another of the seven, was a Spartan magistrate, held in the highest esteem for his wisdom. Pittacus of Mitylene, was a law-giver, held in high honor. Bias of Priene, in Ionia, was a very noble-hearted and public-spirited

citizen, of universal reputation for wisdom. Cleobulus, of the island of Rhodes, was remarkable for his skill in answering difficult questions, and Periander of Corinth, the ruler, or tyrant, of that place, was the last of the seven. They were all living at the same time. They were only the most eminent among a people who could fully appreciate mental ability. The spirit of inquiry continued to spread rapidly for two hundred years, when the greatest masters, who immortalized themselves and their race by their genius, appeared.

19. In the early part of this century the kingdom of Lydia, in the central part of Asia Minor, rose to great wealth and power. The Lydian kingdom was ancient—many of its customs being similar to those of the Egyptians—and the Etrurians of Italy, a much more polished and cultivated people than the Romans who conquered them, are thought, by some eminent historians, to have been a Lydian colony planted in Italy in unknown times. The Lydian kings made war on the Asiatic Greek colonies and reduced many of them to subjection. Cræsus, the last king of Lydia, was proverbial for his vast wealth. He was conquered by Cyrus, the Persian, in the middle of the next century.

679 B. C. Numa, the second king of Rome, is said to have died. The Romans abstained from war during nearly the whole of his reign, which was occupied in settling the internal affairs of the new state, especially those relating to religion. He was followed by Tullus Hostilius, a very warlike prince, who did much to extend the Roman state.

20. About 650 B. C. a great change was introduced into Egypt, by Psammeticus, its king, who, having several rival claimants to the throne, employed the services of Greek soldiers to overcome them. For the first time the country was freely opened to foreigners, and the power of the priesthood broken. Thus the Greeks were instrumental in changing the current of Egyptian history.

The Median Kings began to make head in the east, and ventured—after various successful efforts to extend their dominion in other directions—to make direct war on Nineveh. At the close of the century, by the aid of the rebellious Nabopolassar, they succeeded in taking and destroying that city, and the whole of that immense empire was divided between Media and Nabopolassar, who made Babylon his capital.

21. B. C. 590 to 500. Events in this century begin to crowd thick upon each other. The Greeks rapidly advanced; the Romans succeeded, amid constant wars, in securely establishing their state in Italy, marching from conquest to conquest, not without heavy reverses at times, from which they soon recovered.

598—Nebuchadnezzar took Jerusalem for the first time.

594—Solon was made archon at Athens, with almost unlimited power to change the existing institutions, and he introduced many very useful reforms.

588—Jerusalem was destroyed by Nebuchadnezzar, and the Jews carried into captivity to Babylon, where they remained seventy years. Soon after, Nebuchadnezzar conquered Tyre, after a siege of many years, but he found himself in possession of the walls only, for the inhabitants had built another city on an island near by, but inaccessible to the conqueror, and left him a barren conquest.

560—The most memorable event that followed was the union of Media and Persia under the military prowess of Cyrus. He first employed the forces of the Medo-Persian kingdom in Asia Minor, conquering Lydia and the rest of that region, 549—and dethroning Cræsus. Babylon and Egypt had both entered into an alliance with Cræsus against Cyrus, but before they could send Cræsus effectual aid Cyrus had triumphed. He then turned his arms against Babylon 538—which he took by stratagem after a long siege. Egypt was afterward obliged to become tributary to the universal conqueror.

534—Cyrus, who had before been the Persian general of the united armies under the Median king, Cyaxares, who was his maternal uncle, succeeded to the kingdom, and soon after sent the Jews home to their native land. During this period the Greeks swarmed on the eastern part of the Mediterranean sea and carried on nearly all its commerce, the Tyrians being mainly confined to the trade with India, Arabia and the various parts of the Persian empire.

529—Occurred the death of Cyrus, full of years and glory. History has described him as the most amiable of all the great conquerors. He was succeeded by his son, Cambyses, who, to punish the revolt of the Egyptians 525—invaded that country and made it a Persian province.

522—Cambyses died and was succeeded by a Persian nobleman, Darius Hystaspes, the line of Cyrus being extinct. He finally broke the power of the priesthood in his dominions, which perished at once

in Egypt and Babylon, where they had so long reigned supreme over the minds of men.

515—The second temple was dedicated at Jerusalem.

510—In this year occurred a very important event in Roman history—the establishment of the republic. Kings had reigned there two hundred and forty-three years.

SECTION VI.

THE ROMAN REPUBLIC.

1. The Romans, more than any other people of ancient times, understood how to establish a well ordered state. Respect for order and law among them was very great. The idea of a government with a definite constitution, which the rulers should always respect, and which should be an adequate bulwark to the people against oppression, had never occurred to any of the Asiatic nations. The nearest approach to it among the Greeks was in Sparta; but as their aim was directed, not so much to the general welfare of the state as to training a race of soldiers, their experiment was a failure. The Greeks had a great impatience of subjection; they had no great ambition to rule, but were impulsive, and each state wanted freedom to pursue its own particular fancy. Their exhaustless energy and acute minds were devoted to the pursuit of ideal objects. Even the sober and resolute Spartan put aside every other consideration in order to realize his idea of a well formed, thoroughly trained, and invincible warrior. Weakly and deformed children were destroyed in their infancy, by order of the state. The young women were subjected to the most rigorous physical training, that they might become mothers of hardy children. Physical training was one of the passions of all Greece, originating in their delight in beauty and symmetry of person. Sports that contributed to this were as pleasing to the Greeks as to our modern school-boys.

2. Athens, which most perfectly represented the Grecian mind, esteemed a fine poet, an able writer, a skillful painter or sculptor, as much as an enthusiastic scholar of our day can do. They had a passion for beauty, and their love of liberty was in great part produced by their ardent longing for mental freedom and the gratification of their mental tastes. The worship of

their gods was chiefly their admiration for superhuman majesty, sublimity, and beauty, as they conceived them, and their theology was compounded of their thirst for knowledge and their love of the mysterious, the grand, the terrible, and the beautiful. Life was of no value to them, if they could not gratify these instincts, and their tenacity in maintaining their liberties found its inspiration in them. They were a nation of mental enthusiasts. They had no love of conquest for the sake of power. They were invaded by the Persians, and a handful of Greeks conquered its immense hosts with ease, by their intelligence and ardor. It was only when they saw the splendor and wealth of the East, and felt that they could repeat the glorious deeds of their mythic heroes, that they became enthusiastic over the romantic idea of conquering a magnificent empire. It was the mental charm of the undertaking that gave to Alexander his miraculous success.

But the Greeks were not practical. They wanted worldly wisdom. The Lacedaemonians of Sparta had no adequate object when they sacrificed almost all that common humanity holds dear, to rear up model soldiers. Their ambition was confined mainly to preserving the headship of their state among the petty republics of Greece; and the resources of all the states were wasted in the effort to preserve a balance of power among the various members of the nation; or in struggles of the more powerful to obtain a leading influence. They had little political wisdom, when the independence of their territories was secured and the governments that restrained them too much from their favorite enthusiasms were abolished. Athens and all Greece admired immensely the wise measures of Solon, when he reformed the government and gave it excellent laws. But they had not the prudence to maintain them. In ten years all was again confusion. Most of their great men who possessed a special genius for government, were abandoned when they showed the most ability for benefitting their country by their wise statesmanship. Pericles alone, who was the most perfect embodiment of Grecian character, preserved his influence to the last; but it was by falling in perfectly with the tone of Grecian feeling, and he laid the foundation of innovations that corrupted and finally overthrew their liberty. He was as little practical and prudent as his countrymen. Beautiful in person, cultivated in mind, possessed of exquisite taste in literature and art, to which he devoted himself with boundless enthusiasm, Greece could always appreciate him. His age was the glory and joy of Greece; but when more homely political virtues were required to preserve his creations and protect

this literary and artistic state, the people could not follow them. Their best statesmen were ostracised, banished, or slain, when their practical genius was most needed.

3. Rome was the opposite of this. She had a genius for producing and preserving a constitution, adding to it by slow degrees, maintaining checks and balances that preserved the machinery in working order, and rendered it capable of producing the most valuable results that were possible in those times. To rule was her passion. She was not wanting in intelligence, but it was the homely prudence of common life, the skill to adapt means to ends. Of all the nations, she was the first to carry organization into every part of her government, and conduct everything by inexorable system and order. If Rome was resolved to rule others, she was no less resolved to rule herself. The mission of Greece was in the domain of thought, to develop the intellectual capabilities of mankind. That of Rome also required intelligence, but of a lower and more material kind. She was to teach mankind to follow an orderly development, to introduce system, to prevent ruinous clashing of interests, to teach respect for law. Greece taught the world to think to purpose; Rome to govern with effect. Each served an important purpose. Without either the world was not prepared for Christianity, which added moral order, nor for true science, which was the mature fruit of these three, and prepared the perfect civilization which was to be developed to its conclusion in a New World.

4. Rome commenced, not with the king, but with the *Senate*—a body of experienced men, who made the laws and appointed a king to administer them. The king, except in time of war, was only the executive, the chief magistrate. The later kings were restive under this restraint and sought to place themselves above law, and the Romans at once dismissed them, appointing various officers to fill their place. The fundamental principles of government were not changed at all, or very little, except by the subsequent course of development. The Romans knew how to adapt their invincible spirit of order to all changing circumstances, and when external changes arose corresponding changes were developed, in a regular manner, within.

Thus the Roman *spirit* was constant under the regal government, throughout the republic, and to the close of the empire, and had then become so thoroughly established in laws and institutions as to govern the

development of the new states that rose out of its ruins and produced modern civilization.

At first the Roman government consisted only of the Senate and the king. The Senate was chosen from the body of citizens, and represented them. In the course of time the descendants of the first people became the aristocracy, called patricians, who enjoyed great privileges. A class was gradually formed called the *plebs*, or common people, who, for some time, had no share in the government. The patricians alone could hold office, and marriage between them and plebians was illegal. But, says an able writer, "the Roman commons were the greatest commons the world ever saw, except the commons of England and America." In the course of time, by wise and prudent management, and taking advantage of favoring circumstances, resulting from the fact that they supplied the body of soldiers to the state, without revolution, breaking the laws, or violating the ancient constitution, they obtained changes or additions to it, one after another, until they had acquired a due influence in the conduct of affairs and became fully a match for the patricians. It was a new lesson to mankind, and one that has had great influence on the good order of society in all later times.

5. The religious system of that great people was conducted with as much worldly prudence as all their other affairs. Their religious ceremonies were, in great part, derived from the Etruscans. They were conducted with much pomp by state officers, appointed for the purpose, embodying all the superstitions of the time, and embracing comparatively little of the lofty sentiment that was so prominent in Greece. Their religion was an affair of state, and intimately connected with the political working of the government. The gravest public business was made to depend on the flight of birds, on omens and accidents, and on the appearance of the entrails of the animals offered in the sacrifices. An artful use of these circumstances enabled the officers in power to compass many political ends. Their original gods were those of Greece, adapted to their purposes and national character; but they readily adopted the divinities of all the nations they conquered. Their religion was in a high degree cool and calculating.

The preceding observations apply especially to the periods of Greece and Rome when their peculiarities were most fully developed in the days of their greatest glory. Though always more or less characteristic, in later

times they melted more or less into one another, or were toned down and transformed by decay and a rising spirit of innovation. Especially were they displaced by Christianity.

SECTION VII.

GREECE AND ROME.

1. We are now prepared to return to the year

500 B. C.—and follow events in chronological order, with a fair appreciation of their import. Just before the close of the last century, Darius Hystaspes, the king of Persia, sent an army into Europe, to the north of Greece, to chastise the Scythians, and it conquered Thrace. The Greek colonies in Asia Minor, which had been recently added to the Persian empire, became restive under foreign control, and when the Persian army returned home, 500—organized a rebellion and took and burned the city of Sardis, the ancient capital of Lydia. They were assisted by the European Greeks; but the vast resources of Persia soon enabled Darius to take vengeance on them, and Miletus was besieged and destroyed. Darius summoned the Grecian states to offer their submission, but Athens and Sparta sent back a defiance. Darius thereupon gathered a large armament and prepared to invade 495—Greece, which he commenced by the conquest of Macedon. But a tempest destroyed his ships and 20,000 men, and the expedition returned to Persia. In the same year the Roman plebeians obtained their first success against the patricians, by which the debts of the poor plebeians to the wealthy patricians were cancelled and Tribunes of the People appointed.

490—This year the glory of Greece broke forth. Darius having sent another and larger army into Greece, it advanced on Athens and encamped at Marathon, within twenty-two miles of the city. The Persian host was said to number from 100,000 to 200,000 men. The Athenians had but 10,000 citizens, but armed 20,000 slaves, and the city of Plataea sent them 1,000 troops. Miltiades, the very able Athenian general, marched out and, taking a good position, offered battle. It was the 20th of September. The little army of the Greeks obtained a complete victory and the Persians returned home in

confusion. The great services of Miltiades were rewarded with imprisonment, on a frivolous charge, and he died there of his wounds.

485—Darius Hystaspes, the Persian king, died while preparing a still larger armament for the invasion of Greece.

484—An insurrection in Egypt completely subdued by the Persians.

480—Xerxes, king of Persia, invaded Greece with a million soldiers. The battle at the pass of Thermopylæ was fought by a thousand Spartans under Leonidas, their king, and all but one slain. The Persian fleet was beaten the same day by Themistocles, the Athenian admiral. Xerxes soon advanced on Athens, which was abandoned by its inhabitants and burned by the Persians. Soon after, Themistocles fought the Persian navy again at Salamis and totally destroyed it. Xerxes, leaving a large army in Greece, returned to Asia.

479—The battle of Plataea ended the Persian invasion. The allied Greek army numbered 70,000, under Pausanias, the Spartan king; the Persians 300,000. The Persians are said to have had 200,000 slain, and their army was totally routed. Another victory was gained on the coast of Asia Minor the same day, and the last remnants of the Persian fleet destroyed.

478—Athens was rebuilt and surrounded with walls from the treasures of the conquered Persians. This was the age of great men in Greece. Phidias, her greatest sculptor, flourished at this time. The Persians, at the time of their first invasion, brought a piece of marble to commemorate the victory of which they were confident. The Greeks caused Phidias to produce out of it a statue of Nemesis, the goddess of vengeance, and set it up on the field of Marathon.

478—Themistocles died in banishment about this time, and Aristides of old age. Both were leading statesmen and generals of Athens during the Persian war.

470—Socrates, the most eminent philosopher of all ancient times, was born this year.

” —The death of Xerxes by assassination occurred this year.

466—Cimon, son of Miltiades, was now the great man of Athens. He was soon superseded by Pericles. From 480 B. C. to 430 was the golden period of Athens. She was pre-eminent politically, conducting the war of the Grecian allies against Persian supremacy on the western shores of Asia and in the Mediterranean sea. Republican liberty was everywhere predominant. The greatest writers, painters and sculptors lived in this period or immediately after it. Socrates, Plato, Aristotle, philosophers; Æschylus, Sophocles, Euripides, tragic poets; Zeuxis and Apelles, painters; and Phidias in sculpture, were a few among the many great names which are found in or immediately following this period.

457—Cincinnatus was made dictator at Rome. During this period the Romans laid the foundation of their dominion over all Italy by waging successful war with the Etruscans and Samnites, the most vigorous and powerful of their opponents.

450—The Decemvirate was appointed at Rome. They were ten magistrates empowered to produce a more perfect code. It was called the “Laws of the Twelve Tables.” The plebeians about this time succeeded in wresting important privileges from the patricians, which more equally balanced the different powers of the state.

2. Athens was the centre of civilization, and Greek culture and ideas were penetrating all the nations in her vicinity. Rome was rapidly developing and Carthage was at the summit of her glory. She had control of much of the Spanish or Iberian peninsula. Persia, after absorbing all the old monarchies of the east, was declining. The “march of empire” was distinctly defining its “westward course.”

It was about the middle of this century that Herodotus, the “Father of History,” was rising to fame, and a few years later Xenophon, the Greek general and historian, was born. Thucydides, another historian, dates from this period. The great career of history now fairly commenced.

443—Herodotus emigrated from Halicarnassus, in Asia, to Greece.

431—The Peloponnesian war, a bitter contest between Athens and Sparta, commenced. It lasted twenty-three years, and was again revived, ending in the conquest of Athens by Sparta. This war was

followed, after some time, by the rise of the power of Thebes, under their famous general, Epaminondas, who broke the power of Sparta. Thebes sunk into insignificance after his death, and Philip of Macedon commenced the subjugation of all Greece. He was followed by Alexander the Great, who, in return for the loss of republican liberty, rendered Greece illustrious by conquering the Persian empire, and imbuing all the Eastern World with its philosophy and arts. For all these great events one hundred years were required.

429—The death of the illustrious Pericles occurred in this year.

” —Plato, the disciple of Socrates, and, in some points, superior to him in mental discipline, was born.

420—About this time Alcibiades, the nephew of Pericles, became prominent in Athenian affairs. He had brilliant powers, but little principle.

406—The battle of Ægospotamos, gained by Lysander the Spartan, broke the power of Athens.

404—Athens was taken by Lysander, its walls demolished, and the government of the “Thirty Tyrants” established by the Spartans. Alcibiades, banished from Athens, was assassinated by the Persians, at the instigation of the Spartans.

401—Occurred the battle of Cunaxa, in Babylonia, between Cyrus, the brother of Artaxerxes, king of Persia, and that king. Cyrus, who had been governor, or satrap, in Asia Minor, gathered a large army including more than 10,000 Greeks. Cyrus was killed and his own army defeated, but the Greeks repelled all assaults. Their generals having been decoyed into the power of the Persians, on the plea of making terms with them, were treacherously slain. The army appointed other commanders, chief among whom was Xenophon, afterward the celebrated historian, and they made good their return to Greece. It was finely described by Xenophon, and known as the “Retreat of the Ten Thousand.”

400—Socrates taught doctrines too pure and high-toned for his countrymen to understand, and was condemned to drink poison, as a

dangerous man and despiser of the gods, in the 70th year of his age. The Athenians soon repented it.

396—The capital of Veii, taken by the Romans, ended the contest with the Etruscans.

389—Rome was conquered and, except the capitol, destroyed, by the Gauls under Brennus. The barbarians soon retired and the city was rebuilt.

384—Aristotle, the most learned of the Grecian philosophers, was born at Stagira, in Macedon. He laid the foundation of scientific study, and was the tutor of Alexander the Great.

371—Epaminondas defeated the Spartans at Leuctra, and 362—again at Mantinea, where he was killed.

360—Philip became king of Macedon, and soon began to undermine the liberties of Greece in a very artful way.

357—The “Sacred War” against the Phocians, who had plundered the temple of Apollo, at Delphi, commenced.

356—Birth of Alexander the Great. Rutilius, the first plebeian dictator at Rome.

349—Death of Plato, the brightest light of Grecian philosophy. He systematized and enlarged the doctrines of Socrates.

338—Occurred the battle of Chaeronea between Philip and the allied Athenians and Thebans. The Greeks were totally defeated and their liberty lost. Demosthenes, the most celebrated orator of the Greeks, spent his whole life and his magnificent eloquence in the effort to rouse the Greeks against Philip; but Philip was too crafty and the Greeks too little accustomed to act in concert. For nearly a hundred years the states of Greece had been exhausted by wars among themselves, and they were too weary of fighting to make the necessary effort against so powerful and skillful an adversary.

336—Philip was assassinated on the eve of an expedition against Persia, as chief of the Grecian states. This popular idea consoled them for the loss of liberty. Alexander succeeded his father.

335—Thebes rebelled against Alexander, and he took and destroyed that ancient city.

334—Alexander carried out the project of his father and invaded the Persian empire. The battle of the Granicus, his first great victory, took place this year.

333—Darius, the Persian king, was again thoroughly defeated in the battle of Issus. Damascus, in Syria, was taken and Tyre besieged by Alexander.

332—Tyre was taken and finally destroyed, and Alexandria, at the mouth of the Nile, founded.

331—A final battle at Arbela, in Assyria, overthrew the Persian Empire. Darius escaped, but was murdered by Bessus, one of his officers. Four years were spent by the Greeks in subduing the wild tribes on the eastern border of the Empire, and settling the government of these vast conquests.

327—Alexander invaded India and was constantly triumphant till his soldiers refused to go farther from home. They had grown tired of conquering, and Alexander reluctantly returned to Babylon to consolidate his government.

323—Alexander died of a fever, the result of excessive drinking. He left no heir, and his generals divided his empire.

322—The Samnites obtained a temporary success by surprising a Roman army in a narrow defile of the mountains called the Cantine Forks, and subjected it to a humiliating capitulation. The Romans never bowed before misfortune or defeat. They prosecuted the war with invincible resolution until the Samnite power was wholly broken, a contest, in all, of about 50 years, which was soon followed by the complete subjugation of the whole peninsula.

3. In this year died the two greatest Grecians, Demosthenes, the orator, by suicide; and Aristotle, by old age. On the death of Alexander, Demosthenes aroused the Athenians to make a stand for their liberties. Few of the Grecian states joined them and they were totally defeated by Antipater, the governor appointed by Alexander. Demosthenes avoided punishment by taking poison. The Achaian League, about forty years after,

maintained the liberties of Greece for fifty years or more, which then fell before the invincible Romans. For many years all the eastern world was in confusion from the struggles of competitors for the Empire of Alexander. Ptolemy established himself soon and firmly in Egypt, and Seleucus, after various

312—Reverses, obtained full possession of the eastern parts of the empire, Babylonia, Assyria and Persia. This year is called the era of the Seleucidæ. Asia Minor and Greece were a scene of the greatest confusion for seventy years, so far as rulers were concerned. But nearly all these were Greeks, and Greek culture and philosophy exerted a wide spread influence. In the end it became fully evident that the want of genius in the Greek mind to organize, and steadiness in Greek character to sustain, settled institutions was absolute. They had, at different times, men of the greatest ability, but when they passed away their plans and institutions perished with them. The acute and accomplished Greeks were ever children in the science of government, and the advent of Rome alone, whose special skill was in government, saved the world from irretrievable anarchy or fatal despotism.

300—The Roman plebeians completed their struggle for constitutional liberty by acquiring a share in the priestly office, which was essential to the full value of their other victories over the patricians, and the Roman constitution was complete. It was maintained very fairly for more than one hundred and fifty years, when the spoils of their conquests corrupted the virtue of the citizens and produced the internal disorder that, about a century later still brought about the establishment of the Roman Empire. Yet the forms of government, municipal and other regulations, and the administration of justice, though often interfered with in particular cases, were so well settled on sound principles, and secured so uniformly the welfare of society, that they were preserved longest from general ruin, and revived first in more modern times. Greek thought and culture, and Roman law remained indestructible.

290—The Samnites, Sabines and Gauls, being all defeated, Rome was virtually mistress of Italy, although the Grecian cities on the eastern coast remained to be subdued. They had little strength in

themselves against a power so warlike, and invited Pyrrhus, the king of 281—Epirus, to their assistance. He twice defeated the Roman consuls, but they inflicted on him so much loss that they vainly offered him battle immediately after, and rejected all his overtures to treat for peace. He was at length vanquished and obliged to abandon Italy to the Republic.

4. The Romans soon subdued all opposition and began to look about for other lands to conquer.

264—The Carthaginians, on the opposite coast of Africa, had become a colossal power, and sought to establish their control over Sicily—not an easy task, since it had many colonies of Greeks whose national spirit and bravery did not desert them. In this year a call for assistance from a plundering band who had captured a Greek city, a part of whom had also invited Carthaginian aid, brought Rome and Carthage in conflict. The Carthaginians were enraged at this interference with an island which they had long intended to make their own, and raised an immense army to drive out the intruders. The Romans defeated the army and took Agrigentum, one of the best strongholds of the Carthaginians on the island.

260—The Carthaginians were masters of the sea, and the Romans had little knowledge of naval affairs. Taking a Carthaginian vessel which had been driven ashore for a model, they, in a short time, created a fleet and worsted their enemies on their own special element.

256—The Romans again defeated the Carthaginians in a sea fight near the island of Lipara.

255—The Romans determined to carry the war into Africa, and fitting out a large fleet, inflicted a still heavier loss on the Carthaginian armaments, landed in Africa and defeated an immense army. The Carthaginians sued for peace, but the terms proposed by Regulus, the Roman general, were so severe that they resolved to continue the war. A Grecian general, Xanthippus, took command of their army and totally defeated the Romans, taking Regulus prisoner, and destroying or 248—capturing all his army but 2000. The Romans lost three fleets by storms, but conquered once in a sea fight, and

defeated an army in Sicily. The Carthaginians again sought peace, but the Romans would not abate their first terms, and continued the war until the 240—Carthaginians, completely humbled, accepted the severe alternative of submission or destruction. The temple of Janus, the god of war, never shut but in time of absolute peace, was now closed for the second time since the building of the city.

The people, whose special occupation was war, soon grew tired of peace, and carried on various conflicts with the Gauls settled at the foot of the Alps in the 227—north of Italy. They invaded Illyria, on the east coast of the Adriatic Sea, whose people were very troublesome pirates. This war was again renewed with a more complete defeat of the Illyrians. They had before this subdued Sardinia and Corsica.

219—The Carthaginians pursued their conquests in Spain, and the celebrated Hannibal took Saguntum, which 218—brought on the second Punic war, as the war with Carthage was termed.

217—Hannibal, with great celerity, crossed the Pyrenees and the Alps—having first completed the conquest of Spain—and defeated the Romans in the battle of Ticinus, and again at Trebia.

217—The Achaian confederacy, now in the height of its glory in maintaining the liberties of Greece, united all the Greeks in a confederacy under the influence of Philip, king of Macedon, with the hope of arresting the power and ambition of Rome.

216—Hannibal inflicted a dreadful defeat on the Romans near the Thrasymenean Lake. The Romans were greatly alarmed, and made Fabius Maximus dictator, whose habit of refusing a pitched battle, wearing out his adversary by skirmishes and cutting off his supplies, is called “The Fabian Policy.” This plan is, by maneuvering and delay, to wear out and destroy an invader in detail without peril of defeat in battle. The Romans kept armies in Spain to prevent the Carthaginians from sending reinforcements to Hannibal.

215—At the close of this year Fabius resigned his dictatorship and the consuls appointed to succeed him abandoned his policy. They offered battle to Hannibal at Cannæ and the army was annihilated.

40,000 Romans were slain on the field. These defeats had destroyed the flower of their fighting population, but Roman courage and resolution always rose with defeat. They did not despair, but raised a fresh army and put Fabius again at its head, against whom the talents of Hannibal were vain. They fomented disturbances in Greece to keep Philip, King of Macedon at home, and besieged Syracuse in Sicily, which had joined the Carthaginians, 212—for three years, and then took it by stratagem. Archimedes, a celebrated mathematician of Syracuse, who had protracted the siege by his ingenious and powerful engines was killed in the sack of the city. Soon 210—after the whole island was subdued and remained a Roman province.

206—Asdrubal, the brother of Hannibal, general of the Carthaginian forces in Spain, crossed the Pyrenees and the Alps to reinforce Hannibal, but was defeated by the Romans and slain before Hannibal knew of his march.

202—Scipio, who had conquered in Spain, led an army into Africa, Hannibal being considered too formidable to attack, though his forces were very small. Scipio put 40,000 Numidians, allies of Carthage, to the sword, besieged the neighboring cities and defeated a large Carthaginian army. Hannibal was now called home to defend the metropolis. He fought a battle with raw 201—troops, at Zama, and was defeated—20,000 Carthaginians being slain. The Carthaginians begged for peace, Hannibal declaring that the war could not be protracted. The Roman terms left them little but their city. Such was the fruit of inflexible resolution.

5. The Romans are an example of a people, who, from first to last, had one clearly defined end, to which everything else was subservient. They formed their state for conquest, and that idea controlled the Kingdom, the Republic and the Empire. They were much wiser than the Spartans, for, devoting themselves to war, they meant to secure and enjoy all the fruits of conquest, and they did all that was possible to promote the prosperity of their people that they might produce warriors in abundance; but they relied mainly on actual war for discipline. They were constantly exercised in the art in the field and the orderly and sensible instinct of the race made discipline a matter of course. They were sometimes defeated when they

encountered unfamiliar difficulties, or by the mistakes of their leaders, but never abandoned a purpose once adopted and never sued for peace.

Morally, the object they set before them was entirely unjustifiable, according to the standard of national rights accepted in our day. But such a conception never entered the minds of men in the ancient times. It is the fruit of modern civilization alone. The Romans, and many a nation after them, must work out the destructive consequences of that doctrine that "Might makes Right" before the universal sense of mankind would recoil from it. It was the accepted doctrine of the ancients, and has not yet disappeared from the world.

197—Sicily, Spain and Carthage were conquered, and Roman valor looked around for opportunities of winning fresh laurels. Philip of Macedon, an ambitious prince, threatened the Athenians, who implored help from Rome. An army immediately proceeded to Greece, penetrated into Macedonia, and completely defeated Philip at Cynocephalæ.

6. The Romans were now the mightiest people in the civilized world. Their obstinate contests with the vigorous nations of the West had often perilled the existence of their state, and a people of ordinary stamina and persistence would not, at the best, have risen above the rank of the Etruscans and Samnites, nor have made Rome greater than Syracuse or Carthage. They, however, matured and grew into an invincible power, whose solid and stately grandeur struck the intelligent but unpractical Greeks with admiration, and all the old peoples of the East with awe.

The Romans were not without admiration for the ancient valor and the graceful culture of the Greeks. When, two hundred and fifty years before, the Romans revised their laws, under the Decemvirate, they sent to Athens to obtain models from that republic. Athens was now treated by them with much consideration, and finally became the University City of the Empire. When Roman influence became paramount after the battle of Cynocephalæ they did not at once proceed with brutal force against the land of Beauty and Art, but took it under their protection, and proclaimed the full liberty of the Grecian States. It filled the Greeks with transport, and for some time Rome played the noble and dignified part of a disinterested protector; but when the Achæians, under their excellent and talented leader Philopœmen,

sought to realize the fact of liberty, the Romans abandoned that pretence and made Greece a Roman province. Thus the whole of Europe that was sufficiently civilized to maintain a settled government was ruled by the Roman Republic. The period of rude and restless valor among the Greeks was past. The stage of cultivation they had reached inclined them to the quiet and elegant refinements of the scholar, and they readily received the Roman rule which suppressed the turbulence of ambitious adventurers and suffered no oppression but their own. The Romans represented the strength of the male element in human nature, the Greeks the grace of the female. They now coalesced, were married, so to speak, and the product of their union was, in the course of ages, modern civilization, which, when mature, was to share the eminent qualities of both.

7. The broken fragments of Alexander's immense empire in Western Asia and Egypt were all that now stood between Rome and the mastery of the world. The Roman people were too well convinced that it was their grand destiny to achieve universal dominion to hasten prematurely the conquest of the primitive home of civilization. They watchfully waited until the course of events should throw the dominions of the Seleucidæ and the Ptolemys into their hands, without offending the majesty of the republic by an undignified violence and haste.

190—Antiochus the Great, who now reigned over the empire of the Seleucidæ, with true Grecian imprudence, became ambitious of conquests in Europe. He invaded Greece 191—and was defeated at Thermopylæ by the Romans and driven into Asia. The younger Scipio, brother of the conqueror of Hannibal, followed and totally defeated 189—him at Magnesia, in Asia Minor. He purchased peace by the loss of all the fruits of his ambition, but was left in possession of the Syrian kingdom. The failure to destroy so powerful an enemy appears to have brought on the two Scipios the rebuke of the republic, the conqueror of Carthage having aided his brother in the war. They were condemned to a heavy fine, which Scipio Africanus refused to pay and went into 183—exile, where he died. His death occurred in the same year that Hannibal, pursued by the vengeance of the Romans for having aided Antiochus, committed suicide by taking poison to avoid falling into their hands; and in this year also Philopœmen, the last patriotic hero 170—of Greece, was slain by his

enemies. Perses, king of Macedon, revolted, and, after some successes, was finally overthrown under the walls of Pydna and dethroned.

168—The Carthaginians could not altogether forget their ancient greatness, and having displeased the Romans by some independence of action, it was resolved to 148—destroy their city. With the courage of despair they set the Romans at defiance, and defended themselves with a resolute bravery that engaged the lively sympathies of all after times for their painful fate. For two years they maintained the combat against their pitiless foes, who could pardon everything but rivalry in their 146—sweeping ambition, and then perished in the ruins of their once glorious metropolis. A revolt of the Achaeans was punished, in the same year, by the destruction of the splendid city of Corinth, in Greece.

140—The embers of independence in Spain broke forth in war, which was checked by the assassination of Viriathes, a patriotic chieftain of great ability, and 133—quenched in blood by the self-destruction of the citizens of Numantium. About the same time the republic acquired the kingdom of Pergamus, covering the richest parts of Asia Minor, by the will of Attalus, its king, who, on his death, bequeathed it to Rome. This led, in a few years, to contests with the neighboring Asiatic sovereigns, and resulted, in about half a century, in the conquest and reduction into the state of Roman provinces of all Western Asia.

SECTION VIII.

DECAY OF THE ROMAN REPUBLIC.

1. But while Rome was thus steadily advancing to universal dominion, great and unfortunate changes were taking place in its internal constitution. The spoils of Carthage and the east, rich in accumulations of the industry, commerce and art of two thousand years, flowed into Rome and was gathered into the hands of those in power; the equilibrium between the plebeians and the patricians was lost; the selling of captives taken in war filled Italy with slaves; and the inequality of conditions produced the most disastrous consequences.

133—The eldest son of a noble house, the Gracchi, undertook to stem the torrent that was sweeping away the ancient barriers of the constitution, and to raise the people from the misery into which the increase of patrician wealth and power and the innumerable multitudes of slaves had plunged them. In the year in which Numantia fell and Spain was thoroughly subdued, Tiberius Gracchus was slain in a tumult, produced by the patricians, who determined that his project should not succeed. He had attempted to revive the old agrarian law, by which the landed possessions of the republic were shared among the people as well as the patricians, which would have rescued the plebeians from poverty and oppression; but the patricians were too powerful and too violent. He was removed by assassination.

2.

121—Twelve years later his brother, Caius Gracchus, attempted the same thing and was likewise slain. This point was vital to the internal liberties of Rome. The failure of the Gracchi announced the overthrow of the constitution; and, after seventy years of civil anarchy and the murderous conflict of rival factions, the empire was found the only refuge against the ruin of the state. Vigorous Rome, who could govern all the world but herself, must have a master, and became the prey of the strongest. It is a melancholy history, a sad conclusion for a people whose strength and grandeur of character had made them masters of the world, but a perfectly legitimate result of the immoral principle that lay at the foundation of the state. That principle legalized the doctrine of force, or robbery on the grandest scale. They carried it out with great consistency and skill, with all the ability of a race eminently sagacious and steady in the pursuit of an end. The conservative force that dwelt in their organization, so instinctively and exceptionally wise, and the power of religious faith, strong in a hardy and simple people, however weakened by pagan ignorance and superstition, long maintained the integrity of their institutions—but Greek culture, too imperfect not to culminate in skepticism, came in to confuse their moral sense at the same time that boundless wealth flowed into their hands to corrupt their manners, that slavery assumed gigantic proportions to demoralize labor, and

the conquest of the world relieved them from the severe discipline that might not, otherwise, have left them the leisure to become deeply vicious.

The sternness of even Roman character was unequal to the heavy strain and virtue gave way. The native vigor of the race made them as excessive in unrestrained passion as wise in council and invincible in war. The cruelty and rapacity that were common in the civil wars of the Republic, and under many of the early emperors, educated giants in crime, and only the Roman spirit in the army, and the vigorous organization everywhere maintained through the institutions established in the subject world by Roman law, could have held its vast dominions together. Rome had vitality and sense to govern others, even in the midst of civil war.

3. From the death of the Gracchi to the consulship 107—Of Marius, Rome was in a tumult of corrupt intrigue, which rendered easy the usurpation and inhuman cruelty of Jugurtha, king of Numidia. Marius, a plebian of the lowest rank, became consul. He was unequalled at once as a general and a tyrant. He conquered 106—Jugurtha, who was brought to Rome and starved in prison. In the same year Cicero, the great Roman orator, was born.

A vast horde of Cimbri and Teutons from northern 105—Europe, invaded Gaul and defeated several Roman consuls.

100—Marius led an army against these barbarians and defeated them, more than 100,000 being slain or made prisoners. He was equally successful in a second engagement. During the war 200,000 barbarians were slain and 90,000 taken prisoners. A revolt of the slaves was put down about the same time with circumstances of extreme cruelty. More than a million of these unfortunates were slain or thrown to wild beasts for the amusement of the Roman populace.

4.

100—In this year Julius Cæsar, one of the greatest men of any time, and virtual founder of the Roman Empire, was born. His supreme ability put an end to civil dissention and saved society from total ruin.

90—The Italian allies revolted against Rome. They claimed the privileges of Roman citizenship, which the Senate refused. A war of three years followed and half a million of men perished, when, having conquered them, the Senate granted their first request.

88—Mithridates, king of Pontus, talented and ambitious, sought to drive the Romans out of Asia and Greece, and warred with them for twenty-five years. Sylla procured the banishment of his rival, Marius, and conducted the war against Mithridates.

86—Marius regained power in the absence of Sylla and slaughtered his enemies, the patricians, without mercy, but soon after died.

83—Sylla, after obliging Mithridates to sue for peace, hastened to Rome, conquered his enemies, and slew more than 6,000 Roman citizens in revenge.

81—Sylla caused himself to be made perpetual dictator

77—But after three years resigned and soon after died from the effects of his vices. Civil war was continued for a time in Spain and Italy, but finally put down by Pompey, 70—the greatest general of the patrician party.

The war of the gladiators—men trained to fight in the theatres for the amusement of the populace—broke out under an able leader, Spartacus, who, collecting an army of 120,000 gladiators, endangered Rome itself, but 70—he was conquered by Crassus. Spartacus was defeated and killed. It was the inhuman oppression of the patricians that produced all these dreadful conflicts.

65—Pompey and Crassus, by paying court to the people, were made consuls. Pompey proceeded to Asia and made war on Mithridates, who was again formidable, 63—whom he defeated and slew in battle. He subdued nearly all western Asia, visiting Jerusalem, and treating the Jews with kindness. He also cleared the Mediterranean of pirates, who had always infested it.

62—A dangerous conspiracy of Cataline, a patrician of the most corrupt morals, at the head of the depraved young nobility of the time, would have been successful but for the ability and eloquence of

Cicero, who was consul. Cataline and his fellow conspirators were taken and slain.

59—Cæsar, Pompey, and Crassus formed the first “Triumvirate,” and divided the rule of the world between them. Cæsar was the head of the popular party. He 57—took Gaul as his government. Here he spent eight years in his “Gallic wars,” showing unparalleled talents as a general, training his army to become invincible in battle, and completely subduing the fierce Gauls. He 55—entered Britain and laid the foundation of civilization there, thus carrying the march of empire to its farthest bounds in Europe.

5.

49—He was ordered to return and lay down his authority by the Roman Senate, headed by Pompey, who was now his enemy. They were the rival champions of the two parties in the state, the people and the patricians, whose quarrels had so long filled Rome with tumult and slaughter. The tribunes in Cæsar’s interest interposed a veto, which the Roman Constitution authorized them to do. The Senate voted to suspend the Constitution, which really terminated the Roman Republic, Jan. 7, B. C. 49. Cæsar at once crossed the river Rubicon, the boundary of his government, and marched his army on Rome. Pompey and the aristocratic party fled in haste, leaving the public treasure behind. In sixty days Cæsar had possession of all Italy. Sicily, Sardinia, and Spain were next conquered from the officers of Pompey, when he returned to Rome, and was created dictator by his party. He treated all his enemies with clemency. Pompey had gone into Greece, 48—where he gathered a large army. Cæsar followed with his veteran legions, and defeated him in the battle of Pharsalia in Thessaly. Pompey fled to Egypt, where he was treacherously slain, to the great indignation of Cæsar, who would shed no blood but in necessary battle. Thus he became sole master of the world.

In a conflict with the Egyptians in Alexandria Cæsar set on fire their fleet, he being attended by but few troops, and the conflagration extended to the Alexandrian Library, filled with inestimable treasures of ancient literature, which were destroyed, to the great loss of future

generations. Cæsar soon subdued Egypt, 47—defeated Pharnaces, son of Mithridates, and returned to Rome.

46—He soon passed into Africa, where he defeated his enemies. The celebrated Cato, an inflexible enemy of Cæsar, committed suicide rather than submit to him. In Spain he soon after defeated the sons of Pompey, the last of his foes in arms. He rebuilt Carthage and 45—Corinth. He projected many great public works and useful reforms. The whole power of Roman sovereignty 44—was formally conferred on him by the people, when he was suddenly assassinated by a band of senators and certain conspirators, who imagined it possible to restore the ancient Republic. His nephew, Augustus, succeeded him soon after.

43—The eminent Cicero, never a friend to Cæsar, was assassinated by the connivance of Augustus.

42—The republican and aristocratic conspirators were defeated by Augustus and Antony at Philippi, in Greece. Brutus and Cassius, the republican leaders, and assassins of Cæsar, were slain. The second “Triumvirate,” composed of Augustus, Antony and Lepidus, having acquired possession of all the powers of the state, ruthlessly murdered thousands of their political enemies. They soon grew jealous of each other, and fought and intrigued for eleven years, Augustus, with great prudence, firmly settling himself in Rome, and Antony becoming the slave of the beautiful and infamous Cleopatra, queen of Egypt.

31—At length, at the battle of Actium, Antony was defeated, and soon after both Antony and Cleopatra committed suicide. Egypt became formally a Roman province, and Augustus absolute emperor of the world.

SECTION IX.

THE ROMAN EMPIRE.

1. B. C. 28—In this year Augustus, having fully consolidated his power, was formally recognized emperor. During all the contests of factions, and when Rome was itself in the throes of revolution, the subjection of all the

provinces to the imperial city, and whoever was in power there, was rigorously maintained. The inhabitants were protected from invasion, and if they were often oppressed by Roman governors, it was far less than under their native rulers, and, in general, they were not desirous of a change. Roman law and order, and the power of appeal from great injustice to the Roman senate or emperor, maintained a state of generally tranquil prosperity, only disturbed by the contests of rivals for the control of the imperial city and its power.

A long period of almost absolute quiet followed the establishment of the empire, which gave Rome and Italy great satisfaction, after nearly a hundred years of civil war. It is called the “Augustan Age,” when industry and commerce, literature and the arts, reached their highest development.

The Roman Empire and the Christian era commenced nearly together. During the thirty years that followed the battle of Actium, which secured to Augustus the sole control of the civilized world, by the defeat of his last rival, Antony, he was occupied in organizing the vast machinery of his government, and centralizing all the parts of the administration in his own person. For near three hundred years Western Asia and Greece had been a scene of violent commotion. Rival adventurers were constantly seeking to reconstruct the empire of Alexander. Some of these had the genius and the good fortune to succeed, in part at least, and swayed a powerful scepter over a large region during their own lives, and, in some instances, their dominions were held together for several generations. But there was no sufficient base for a strong and permanent government. There was no stable element on which to rest it. The Greeks were brave, intelligent and enterprising, and no Asiatic people could withstand a Greek army under Greek leaders; but the Greeks were too restless, too easily carried away by enthusiasm for a new leader or a new idea to be capable of upholding an empire.

2. Thus, Asia and Greece had been a vast battle field, and the battles served no general interest and founded no permanent state. The Greeks grew tired of supporting the claims of each new aspirant, who returned their favor by depriving them of liberty, and the whole eastern world readily submitted to the Romans, under whom there was, at least, a prospect of civil order. Augustus, then, had little trouble in settling the affairs of the whole empire, and, about thirty years after the battle of Actium, finding the

entire world quietly content and the administration everywhere in fair working order, directed the gates of the temple of Janus to be closed, and a census to be made of all his subjects. At this time Jesus Christ was born and the Christian era commenced.

The Roman Empire under Augustus was the culmination of the ancient and pagan civilization. It had great vitality, and strength enough to rule the world four hundred years longer; but it had also fatal weaknesses. We have seen that the existence of the empire originated in the inability of the old society to free itself from the vices which long and great prosperity had developed. It had no purifying element strong enough to drive out the disease which its moral weakness had allowed to fasten on it. It was, in fact, based on wrong and could not but perish. Its fall was only a question of time. Its ferocious valor and contempt of the rights of nations broke down the very virtue that was essential to the stability of society. The Romans were robbers on a grand scale, and it was very natural that, when there were no more foreign nations to slay and plunder, the citizens should fall to cutting each others throats and robbing their neighbors. As this would lead to the immediate ruin of society and the state, the empire, which gave them an absolute master, was a necessity.

3. But a full comprehension of the moral laws on which society, institutions and states are founded, was the last to be gained. Most modern nations have not yet attained it, notwithstanding that Christianity has so long stated the principles with clearness and force.

The common mind of humanity could master them only by growth through thousands of years and innumerable experiences. The object of all earthly experience is to develop the value of the *individual man*; and the object of society, of institutions and of government, is to protect the rights and to favor the development of *each man* of the race. When this end is fully secured, history will have solved its problem. As the commencement of the Christian era was the turning point of history in some most important respects, it is proper to glance back and forward over the state of this problem, and the relation of Christianity to it, before proceeding with the general course of events.

At first men were like children, with everything to learn; and, like children, they learned one thing at a time; and they also made an addition to

their common stock of knowledge at every remove of the centre of growth. In Asia and Egypt the general lesson was industry and obedience, while the Jews, on the western shore, more or less assisted by the Assyrians, the Egyptians and the Greeks, labored at the development of a pure religion which culminated in Christianity. The removal of the centre to Greece added mental and artistic culture, and the further westward journey to Rome gave them a new class of most important ideas concerning public organization, law and order.

4. If each of these lessons had been perfect in themselves the addition made by Christianity, which defined the relations between men, the law of human rights and the doctrines essential to the stability and purity of society, would have enabled mankind to build up satisfactory institutions and a complete civilization from the Roman period. But the elementary lessons were very incomplete. The Asiatics became very superstitious; the Greeks could teach men the *art* of thinking, or exercising their minds, but they could not find the true starting point; they did not discover what subjects it was useful, and what it was useless, to reason upon; and wasted a good part of the thought of their times on profitless questions. Their failure to obtain a clear and valuable result from philosophy made men skeptical and contributed much to the decline of civilization in the time of the Roman empire. The Romans built their whole structure of law and order on *force* and a wholesale violation of the rights of mankind, and the minds of men became greatly confused. The doctrine of the Epicurean philosophers—"Let us eat and drink for to-morrow we die"—a despair of working out the problem of life to a satisfactory answer, became the most popular in the empire. The splendor and glory of Oriental, Grecian and Roman civilization seemed to end in degrading servility and superstition, in the endless and absurd speculations of so-called philosophers, and in the vast brutal tyranny of the emperors. The east failed of a pure religion that was generally accepted. Greek philosophy did not have science to guide her thought, and Rome could not be just as well as strong.

5. It was only in modern times that these lessons were made complete. The discoveries in Geography, in Astronomy, in Natural Philosophy, in Chemistry, in Geology, made men acquainted with the structure of the universe, the properties and the laws of matter, and corrected the extravagances of the ancient speculative philosophy. For want of science,

Greek thought wandered about in an unreal world and lost a good part of its labor. A long experience under the control of this, corrected thought was required to construct a science of Government that should supply what was wanting to Roman jurisprudence, and Christianity itself could not be rightly understood while so many false theories and wrong practices prevailed.

But the ancient times were as essential to the building up of the modern as the modern to the completion of the ancient. It was the renewed study of the Greek classics, of Roman law, and of the original teachings of Christianity, under more favorable circumstances, and after many new experiences for a thousand years, that gave birth to all our later improvements in religion, in government and in science. The Asiatic Jews gave us in Christianity, a pure and simple worship, and a system of public morality so perfect that no society has yet been able to embody it completely in practice, although it is now recognized, very generally, as the highest conceivable standard, to be constantly aimed at and conformed to as far as possible; the Greek Philosopher, Aristotle, gave us the first notions of science, and Roman law formed the base of modern legal practice.

6. The difficulties of progress are very great. It is not easier for nations to unlearn what they have learned amiss in their youth, than for individuals. No nation that has matured institutions has ever yet thoroughly reformed them. The best and most clear sighted minds discover their defects and show what is to be remedied; but the force of habit and the veneration men feel for what is old, offer so much resistance to complete reforms that it has been necessary to establish and build up institutions on new principles on fresh ground. So all the light and power of science, of the reformed religion, of a more complete system of law, the greater intelligence of the masses of men and the activity of commerce and trade did not suffice to do for modern Europe what has been done with ease in America. But Europe furnished the ideas which America worked out; and the sight of those principles embodied in institutions that greatly improved the condition of mankind has reacted on Europe, and bids fair, in time, to produce a novelty in human experience—a complete regeneration of old nations and governments. When Greece rose to power it subjected but lightly, and only superficially transformed, the nations of Asia; Rome absorbed them both, and Christianity gave its simple and noble lessons to them all. But the slight influence of Greece, Rome and Christianity on the old nations of western

Asia is shown in the rise and permanence of Mohammedanism, so inferior, in all respects, to Christianity. After a career of more than twelve hundred years, it still rules many more millions than were contained in all the Roman Empire in its most prosperous days.

7. But the power of a progressive civilization constantly increases, and will, by and by, be equal to the thorough reform of even crystalized China. Without America, Europe would be still struggling with the incipient stages of reform. With it, she has gone far toward correcting the imperfections which existed one hundred years ago, and will presently complete the process. With these general observations, we proceed to examine the influence of Christianity on the old civilization.

SECTION X.

THE INFLUENCE OF CHRISTIANITY.

1. It was developed on the western borders of Asia, and was the completion or perfect development of the system of religion existing among the Jews from a very early period. Soon after Abraham, the father and grand patriarch of the Jews, had given his descendants the outlines of the system, they were led, by circumstances, to Egypt, and remained there for many generations. When they left Egypt, it was under the leadership of one of the greatest of the world's great men, who had been heir apparent of the Egyptian throne, and was consequently versed in all the mysterious wisdom of the priesthood of that country. That he became wiser than they is evident from the history of his contest with them before the king when endeavoring to gain his consent to the migration of his people from the country. Instructed in all the celebrated "wisdom of the Egyptians," together with the reflections and additions of forty solitary years as a shepherd in Arabia, he produced a remarkable system of mingled theology and legislation which has come down as a sacred record to our day.

2. The Jews were, nine hundred years afterwards, transported as a nation to Babylon, remained there for more than two generations, and received such light as the Babylonian priests and Persian magi were able to give them. The conquest of Asia by the Greeks and the vicinity of Judea to commercial Tyre, furnished them all the aid these nations could give in the line of religious suggestion. A Jew produced, in the early days of the Roman

Empire, the simple, yet sublime teachings of Christianity. It had the comprehensiveness and directness requisite to give it authority as a universal religion. In few, but plain and convincing words, it laid down the principles of human rights and of divine law. It defined the nature and stated the sanctions of virtue in the clearest terms; tore away every covering from vice and denounced without fear the favorite ambitions and follies of men. It seems almost incredible that such a system should have had its origin even among a people like the Jews, and at the time when the Roman Empire represented the highest civilization of the world.

3. The Jews, as a nation, however, rejected and bitterly persecuted it, and the Romans, who were, on principle, extremely tolerant of all foreign religions, soon became extremely hostile. It was humble, unostentatious, very simple in all its forms, carefully refrained from all interference with established government, and presented many new and consoling truths, with great force. It would have seemed that it had only to speak to gain a hearing and take a leading place at once in the work of the future. The few unprejudiced among the great, and thousands of the poor and oppressed whom the cruel power of the Romans had deprived of nationality, property and personal liberty, and many whose minds recoiled from the vices, crimes and skepticism of the age, heard and embraced it with joy. But it rebuked with most severity the ambitions, the injustice and the love of luxury that were most prevalent in that age and that were most distinctly Roman. It was peculiarly severe against all other systems of religion, and that formed the strongest barrier against its immediate spread over the pagan world at large. It was, therefore, persecuted with the greatest rigor for three hundred years.

4. But persecution called public attention to it and won it sympathy, and it continually spread beneath the surface of society. The brutal features of Roman character were gradually softened; very gradually, indeed, for Roman manners and morals were an Augean stable which it was a more than herculean task to cleanse; but after a time, the gigantic crimes of a Marius, a Sylla, a Nero, or Domitian became impossible, and the horrors of the theatre, where gladiators killed each other and men were thrown to wild beasts for the amusement of the populace, became rare. Atrocious crimes awakened a disgust that showed a different view and a new standard of judgment in the community. Christianity created a purer moral atmosphere even in Rome, and while it was persecuted with the utmost barbarity.

5. It is then no matter of surprise that Christianity did not at once meet with general acceptance, and did not fully reconstruct Roman society and manners. The marvel is that it could be produced at all by an age to whose whole spirit it was so absolutely contrary. It was the doctrine of peace proclaimed among nations who knew no occupation so glorious as war; whose institutions all rested on conquest; whose dominant race—admired as much as feared—was the very genius and embodiment of martial force arrayed against the independence of all nationalities by an organization the most complete. It proclaimed the *rights* of *man* and the equality of all classes and persons before the Divine Law, to a people who had plunged in a common ruin Carthage and Corinth, the Republics of Greece, and the absolute rulers of monarchical Asia. It scorned equally gorgeous ceremonies of worship, the subtleties of an imperfect philosophy and pride of place and power.

It is not possible to imagine a greater contrast to all the modes of habit and thought prevalent in those times. The most sensual of all races it exhorted to spirituality, to the most cruel and insolent it preached meekness and forbearance. It placed the slave to whom the recognized laws of war left no rights, beside the master who gloried in setting his foot on the neck of the prostrate; and recognized as equals the great and the small, the ignorant and the wise, the bond and the free.

We cannot be surprised that it did not obtain immediate currency, that it was everywhere scorned and cast out, that it aroused unheard of persecutions, and that it could only obtain, a triumph when the old Roman inflexibility and fierceness had died out of its degenerate children, and the spirit of the ancient world was burned out in the hot fires of its own passions. Character does not change in a day, and the ruling impulses of a race can be modified only by slow degrees. Such is the supreme law which has ruled all history.

6. From all these causes Christianity was slow in penetrating society and moulding institutions; but it spread so extensively that a clear sighted emperor at length found it politic to profess Christianity in order to gain the support of so large and vigorous an element against his rivals in power. Constantine was victorious and proceeded to make Christianity the state religion. It had maintained its growth by its real superiority and ever after remained the most powerful and productive among the influences that aided

the progress of mankind. It was actively aggressive and had made the barbarians who overthrew Rome converts to the faith before the invasion, and thus broke the force and diminished the disastrous effects of that event. In after times, no sooner did a barbarian tribe appear and establish itself in any part of the old empire than Christianity commenced the work of teaching and proselyting, which aided much in restoring order and repairing ruin. Had Christianity preserved its purity its usefulness and power would have been much greater.

7. But as it gained in numbers and in position it lost internal strength. Both Oriental and Greek philosophy tainted its simple doctrines and introduced in various forms the hurtful speculations so dear to the ancients; and when it became the court religion the simplicity of its ceremonies was gradually replaced by the pomp and splendor of pagan worship. Constantine and his successors in the empire assumed the virtual headship of the church, called councils and packed them for political purposes, and pronounced for or against supposed heresies. The offices of the church became the rewards of ambition and gradually a hierarchy, or regular gradation, was established in the priesthood, and both faith and manners came to be strangely in contrast with their original simplicity. Yet, Christianity, aping the forms and infected with the superstitions of paganism, and become the tool of the aspiring, was still alive with a youthful vigor by which she eased the fall of the old civilization, and was abundant in valuable service for the civilization yet to be.

SECTION XI.

THE SERVICES OF GREAT MEN TO MANKIND.

1. It is difficult for us to comprehend the embarrassments which a want of diffused information presented to the progress of the ancient days. With no books, or, at best, but very few, with little or no record of the past, or the distant present, but what confused, distorted and uncertain tradition and rumor could give, with almost no *instruments* of thought and education, it would seem natural that they should fall into a hopeless barbarism. That they raised themselves so far out of a condition so low and so helpless, that they created so many instruments for *us*, is a proof of the wonderful

capacity for advancement that lies in humanity, and a prophecy of stupendous things yet in store for mankind.

2. One of the most important elements of their progress lay in their *great men*. It is indispensable that a man, to become great, or famous, by exercising a wide influence, should represent in a large, well defined and successful way, the general tendency and aspiration of his times. He must unite a clear perception of these tendencies in his mind, with the power to give them adequate expression in his words or deeds. He must be so far ahead of his times as to be able to clearly work out what is lying unexpressed in the general mind, but not so far ahead that it cannot come into sympathy and co-operation with him; else he will not be recognized as great. Great men are a summary of their times, or of the people they dwell among; they gather its tendencies to a point and express the undefined desire of that period. Their value for later times is that they represent the spirit of their race at that time in a form to make a striking impression, and those who have the good fortune to represent the qualities of the best races, or of nations at the most important stage of their history, become the general exemplars of mankind; teaching in a forcible and striking way the lessons which have been wrought out in the experience of a whole people for ages.

3. The poets are the first of these great men of whom history gives us any account, except, perhaps, the heroes whose deeds they sung, which are more or less uncertain, because they clothed the common tradition of their times in an imaginative and fictitious dress. The poets Homer and Hesiod had great influence on early Greece. They summed up its theology and the history of its admired heroes, and gave expression to the early thought and literary turn of that people.

Their legislators came next. They gave expression to the genius of their people in institutions and laws. Lycurgus arranged the Spartan state into a military school. His laws remained in force more than five hundred years. Solon was the legislator of Athens and his laws were much admired for their wisdom and justice. The Greeks could think more wisely than they could act. Lycurgus organized the warlike spirit in Greece as well as Sparta. The small Grecian states, determined to keep Sparta and each one of the other states from destroying their individual liberties, were trained by the

necessity of combating the vigorous military organization of Sparta to great ability in war.

Under Pericles, a republican statesman of Athens, nearly a century later than Solon, the full glory of the Grecian genius shone forth. He encouraged his countrymen to give the support to art and literature that produced the famous master pieces which have made Greece illustrious and influential to this day.

4. Socrates appeared soon after. He was the apostle of thought. His influence in leading men to use direct and effective modes of examination and reasoning was incalculable, and has perhaps had more effect on the world than the victorious career of Alexander or of the Romans. He was followed by Plato, a disciple of his, who pushed out to further results the same principles. He is called the prince of philosophers, and has exerted a world-wide influence. He had not the simplicity and plain directness of Socrates, though his mind was more polished, and he was more learned. Some scholars, however, consider his masterpieces to indicate as powerful a mind as the world has produced. He spent twelve years in travel, and used all the means of education, and study then to be found. His works are still the delight of the most accomplished scholars.

5. Aristotle began his career in the last years of Plato. He was the tutor of Alexander the Great. He followed a different line of study, wrote on logic, or the art of reasoning, on the natural sciences, and introduced method in the exercise of the mind and in study. Herodotus, Xenophon, Thucydides, and many other great writers, artists and sculptors, lived about the same period; and thus Grecians did for the mind what the Romans did for law and government—laid down the fundamental principles which formed the basis of real progress.

The free government of Athens encouraged oratory and the art of persuasion. Demosthenes was the most celebrated orator among the Greeks, and if his state had only been more powerful he would have conquered Philip of Macedon. He was indeed one of the greatest orators of all times. Cicero, among the Romans, was a writer and orator of almost equal merit. They both lived just at the downfall of the liberties of their states, and they spoke with more effect to the times after them than to their contemporaries. If they did not succeed in preserving the liberties of Greece and Rome, they

made a great impression, the name of Liberty was consecrated by their noble words, and those who destroyed it made infamous by their burning invectives. When a more favorable time came for restoring it, they lived again in influence, and triumphed by the memory and record of their great patriotism and powerful eloquence.

6. Great conquerors and warriors, in all times, have also been representative men, giving expression and gratification to the warlike spirit of their people, and producing great changes that have been favorable to the real advancement of mankind. The energies they stirred up, and the mingling of nations they produced generally promoted civilization. Alexander the Great displayed the wonderful genius and fertility in resources that was peculiarly Greek. His nation was almost consoled for the loss of their liberties by the conquests to which he led them. He opened to their study unknown regions, and gave their mental genius a broader play and a fuller occupation. They, to such an extent as change was possible with old civilizations, *Hellenized* the East and prepared the way for the reception of Christianity. Alexander, in three great battles, conquered the great Persian Empire with a small army. He never suffered defeat, and died at thirty-three years of age. Had he lived, he might have done what Hannibal could not do—have crushed the rising power of the Roman republic. It would have been a misfortune, for the Romans did incalculable service to humanity. Greek learning exerted its influence on the East for two hundred and fifty years before its final conquest by the Romans. Alexander did great service to mankind by his military success. Hannibal is an instance of a great man not as fully representative of his own people, perhaps, and whose misfortune it was to have to struggle against a people whose united genius was greater, more inventive, and more patient than his own. The Roman Pompey represented the aristocratic element of his people, and though a great general, hardly deserved to succeed. Julius Cæsar possessed the merciful character and intelligence of the Greek and the prodigious energy and resolution of the Roman. His conquest of Gaul and Britain introduced civilization into the lands that were, five hundred years later, to begin a new career for mankind. His thorough subjection of the Gauls preserved the ancient civilization from the inroads of the vigorous Germans until all was ready for the new order of things. More than any other great man, he may be said to have been representative of the best spirit of his time. Perceiving that the Roman republic was dead, and could not possibly be restored, from

the strength of the vices ruling in the state, he repressed its anarchy and set aside its forms, wisely and prudently, with as little bloodshed or cruelty as possible. He thoroughly represented the practical sense and immense vigor of the true Roman. He has been severely reproached for destroying the republic, but the republic virtually fell with the Gracchi, seventy-five years before, and he established the only government that could possibly preserve the Roman state from disorganization.

7. The office of all these, and multitudes of other great men, less representative of the greater qualities of their fellows, or representative of less striking features of their times, has been to sum up the character of their people, and present their special features, *condensed*, for the observation of mankind, and by their position as leaders, to give their times an opportunity for powerful development, as well as to show what mankind are capable of. In this last view they stimulate individuals to aspiration and effort. Millions of men, probably, have had the qualities of Alexander and Cæsar, millions more those of Demosthenes and Cicero, of Socrates, Plato and Aristotle, and so of all the different classes of great men, but have wanted the opportunities and peculiar stimulants to develop them. Whoever can appreciate them, can, with a favorable balance of faculties to give equally sound judgment, together with equally favorable circumstances, imitate them. Modern times have shown multitudes of men who, their character and talents taken as a whole, have shown themselves far greater than any of the ancients. Culture and the mingling of races will, perhaps, finally make *all* men greater than the greatest of the ancients.

8. Brutus, one of the murderers of Cæsar, wished to restore the glories of the ancient Roman republic, and thought Cæsar stood in the way. He removed him by violence, and found the difficulties greater than ever. A hundred years of conquest had sapped the virtues of the Roman people, and Brutus killed himself in despair, saying: "O Virtue! thou art but a name!" To Cæsar succeeded Augustus, by a necessity of things. Without Cæsar's clemency, he deluged Rome with the blood of its citizens. Afterward, however, his rule was less sanguinary, and for thirty years he ruled with mildness, though with despotism. The limited amount of virtue in pagan civilizations wore out; and notwithstanding the intelligence of Greece and the good sense of Rome, the ancient world was obliged to close its career as it began, by absolute monarchy. It remained for the modern world to find,

among its more abundant resources, the means of forever preserving itself from decline. Education and purity, science and religion, freedom and fraternity among all races and nations; a knowledge and wisdom not conceived by the ancients, a replacing of war and violence, which are essentially demoralizing, by peaceful means, which shall benefit all and injure none; perfectly free intercourse under the guidance of absolute justice and benevolence; such is the way by which the modern world will work out the problem impossible for the old world to solve. America has gone far toward the goal. In time, all nations will be persuaded to join her in attaining it.

9. Before we proceed with the chronology of the Christian Era we must briefly notice the *one perfect man*, Jesus Christ. To pronounce on the miraculous and divine claims made for his character and deeds would carry us outside of our theme. We can only deal with him as with other historical men, in his historical character and relations. These are extremely remarkable.

That individual sprang, like Socrates, from the poorer classes, and, like him without the advantages of education, produced a system which proved a marvel of perfection, adapted to all times, but most perfectly to the most perfect state of mankind, and consequently growing up with the progress of nations to an ever-increasing influence. Its moral precepts, even in our day, are as far ahead of our civilization as that is behind a perfect condition. This man made an extraordinary impression. In three hundred years, by merely publishing his ideas in a quiet way, which was the only mode the hostility of the Roman rulers would permit, his followers overthrew the prevailing religious systems which had been established as many thousand years, and spread his influence world-wide.

His birth became the commencement of the Era of Humanity. Like Socrates, he went about among the people with a few chosen friends, setting forth his ideas, chiefly in conversation. He did not write; the simple record of his life and a few of his discourses being recorded by his disciples. Again, like Socrates, his life was ended by violence. All the records of that life show that he was as perfect as we can conceive. In no respect does he seem to have wanted any feature of a noble manhood, in any degree, nor to have shared the prejudices or defects of his age. He lived as we may conceive man to live when his mental and moral habits are

accurately adjusted and harmonized with his relations and his duties, which he has learned perfectly to appreciate. His public career lasted but three years and a half, and shines in history a beam of light. He inspired his appreciative followers with rapturous admiration, a passionate attachment to his person, and pleasure in obedience to his teachings, stronger than death; and in those whose plans and prejudices he crossed, and whose ambitions he rebuked, a deadly hatred which could only be satisfied with his blood.

10. Immediately after his death his followers commenced to publish and enforce his teachings with great success, and on the outbreak of persecution, without making opposition, they scattered in all directions, proclaiming them with undiminished zeal. Very soon their converts numbered tens of thousands, in all parts of the Roman Empire. Persecution increased their fervor and their numbers, without leading them to revolt or resistance, until, in the course of time, an emperor found it politic to profess Christianity. This high patronage, and the active part the emperors took in the affairs of the church from that time, had the effect to corrupt its simplicity of manners, as the adhesion of Greek philosophers, who imported into its doctrines their crude theories, adulterated its teachings, and much that was quite foreign to its essential character continued associated with its promulgation and institutions for fifteen hundred years, and, indeed, remnants of the same foreign element yet linger in it.

Notwithstanding the embarrassing load which the fantastic distortion of its original simplicity and directness laid upon it, it continued to exert great influence, and seems destined to return, in time, to its original form and purity, and to employ its primitive power to crown the work of civilization.

11. Such is the historical report of the man who introduced into the process of human progress an element of unexampled power. An impartial estimate of the influence of Jesus Christ on history must allow that he is the most important character that has ever appeared among men. The unhappy association of his ideas with the vagaries of an imperfect philosophy and the unwholesome ambitions of power, greatly curtailed their usefulness; but the simple majesty of his character and his discourses could not always be obscured, and the luster of both has never shone more clearly nor exerted more influence than they do in this age.

The course of the history of Christianity will be seen to be intimately connected with every stage of advancement from the time the Roman Empire began to wear out; it was the nucleus which survived its fall, around which the surging waves of invasion raged in vain, and which immediately began the work of reconstruction.

SECTION XII.

THE CHRISTIAN ERA.

4—By some chronological confusion the new era has been made to begin four years before the appearance of the founder of Christianity. When Augustus had settled the whole empire he ordered the temple of Janus to be closed and a census taken of all its inhabitants, which numbered one hundred and twenty millions. On this occasion Jesus Christ was born.

10—A Roman army under Varus was defeated and cut to pieces in Germany. It was the severest defeat the Romans had suffered since the overthrow and death of Crassus, by the Parthians, sixty-three years before.

14—The Emperor Augustus died and was succeeded by his step-son, Tiberius.

29—Jesus Christ was crucified by Pontius Pilate, Roman governor of Judea, at the solicitation, and on the accusation, of the leading Jews.

37—Tiberius died and was succeeded by Caligula. The commencement of the reign of Tiberius was wise and moderate, but he soon became violent and cruel. Caligula was a still greater monster of wickedness.

40—Growing weary of his cruelty he was assassinated by one of his officers, and his uncle, Claudius, was raised to the throne. He was of feeble intellect and became the tool of infamous favorites. He was poisoned by order of his wife, Agrippina.

54—Nero, the son of Agrippina by a former husband, was made emperor at seventeen years of age. He exceeded all description in folly, extravagance and crime. His violence and barbarity fell

generally on the patricians and members of his court, but he was esteemed by the common people, as were most of the emperors, who spent vast sums on theatres and spectacles for their amusement. The two bases of the empire were the populace and the army. The emperor was terrible and tyrannical chiefly to the patricians, while the army made him formidable to the provinces and the barbarians. A conflagration which some attributed to the orders 64—of Nero lasted nine days and destroyed the greater part of Rome. Nero cast the blame on the Christians, who had become numerous, and raised a horrible persecution against them.

66—The Jews rebelled and defied the Roman Empire.

68—Nero was dethroned by the Roman senate and army, and committed suicide to avoid punishment for his crimes.

69—Three emperors, Galba, Otho and Vitellius, were placed on the throne in succession, but rebellions were raised against them and all were put to death. Vespasian, then besieging Jerusalem, was proclaimed emperor by his army at the desire of the rulers of the eastern provinces, and, in the same year, overcame all opposition and commenced the first reign since Augustus that was free from disgraceful profligacy and public crime.

70—Titus, the son of Vespasian, captured and destroyed Jerusalem. Vespasian, during a reign of ten years, restored order and prosperity to Rome and the empire, but not without great labor and danger.

79—Titus succeeded as emperor, and was remarkable for his clemency and care for his subjects. During his reign occurred the most fearful eruption of the volcano Vesuvius on record. Herculaneum and Pompeii, two wealthy and flourishing cities, were destroyed, being buried by the ashes. Pliny, an eminent writer, was suffocated while observing the eruption.

81—Titus died, to the great grief and loss of mankind, and was succeeded by his brother, Domitian, who was one of the most infamous rulers that ever desolated the earth. He raised a violent persecution against the Christians for refusing to adore his statues and worship him as a god. Among the victims was his own cousin,

Clemens, who had embraced Christianity. He 96—was assassinated by his wife and officers in self-defense, and the senate proclaimed Nerva, a native of Crete, emperor. He was remarkable for his lenity and all the gentle virtues. He was followed, after a reign of two 98—years, by Trajan, whom he had adopted as his colleague and successor, who is said to have been the greatest and most deserving person of his time. He was, by birth, a Spaniard, was wise and successful as a warrior and statesman, and extremely noble as a man. He bridged the Danube and the Euphrates rivers and conquered both the Germans and Parthians on the north and east of the empire. A stain on his memory was the persecution of the Christians.

117—He was succeeded by Adrian, in whose reign all the Roman laws, or annual edicts of the prætors, were compiled into one body, and law assumed the dignity of a science. He promoted literature, but continued the persecution of the Christians. A rebellion of the 139—Jews was punished with merciless severity. He was followed by Antoninus Pius, who suspended all persecution of Christians, promoted the best interests of all parts of the empire, and introduced, during a prosperous reign of twenty-two years, the most important reforms into every part of the government.

161—Marcus Aurelius, called the Philosopher, succeeded. He carried on a successful war with the Germans, and made the welfare of his subjects his special care, but was seduced, by the pagan philosophers, into a persecution of the Christians. Having discovered his error he stopped it, toward the close of his reign. Commodus, 180—his son, inherited the purple. He also inherited a vicious and cruel disposition, and received a demoralizing education from his mother. He was a monster of vice and cruelty. He was assassinated in 192—his bed by his own family and guards to save their lives. Pertinax reigned three months, but, attempting to restrain the license of the soldiery, he was murdered by them. The soldiers in Rome then proclaimed that the empire was for sale, and a rich merchant, Didius, bought it from them and reigned in Rome two months, 193—when he was also slain by the army. Septimus Severus, an able general, seized the purple which he secured against many rivals, and retained for eighteen years. His

vigor alone prevented general anarchy, but he was systematically cruel.

211—Caracalla, his son, succeeded. He was a bloody and atrocious tyrant, supported on the throne only by his soldiers, whose aid he secured by large pay. He was 217—murdered by the commander of his guards, Macrinus, who succeeded in acquiring his place, but was soon 218—murdered by the soldiers. They raised Heliogabalus, a young Syrian priest of fourteen years of age, through the assurance of his female relatives that he was the son of Caracalla, to the purple. He is described as the most cruel and infamous of all the Roman emperors.

222—After four years of horrible crime, he was slain in a mutiny of his guard and his body thrown into the Tiber. Alexander Severus succeeded. He was apparently a secret admirer of Christianity and a model 235—prince. He was murdered by Maximin, a Thracian peasant, who had, by his valor, risen to high command in the army, who seized the reins of power. He was successful in war, but his severity provoked mutiny in 238—various parts of the empire, and he was slain by his own soldiers. Gordian succeeded, a heroic youth of a noble family. He was successful in war, but was murdered 244—by his own prime minister, Philip, an Arabian, who became emperor. He favored the Christians, and reigned five years. In his reign, the thousandth year of the foundation of Rome was celebrated by public 249—games. He was slain in a revolt by Decius, the general of his army, who occupied the throne. He raised a most violent storm of persecution against the Christians, who were despoiled of their goods and driven to caves and deserts. From this time is dated the sect of 250—anchorites, or hermits, who imagined they could acquire superior holiness by abandoning society and devoting themselves to meditation and prayer. The idea appears to have been derived from the Persian Magians, who, in this century restored the ancient dynasty and religion of the Persians, or Parsees, in Persia. During the political and social disorganization that soon commenced the anchorites became numerous, and the system was extensively prevalent for a thousand years to the great injury of active and true Christianity.

251—Decius was slain in a battle with the Goths, who had invaded the empire, and Gallus became emperor.

253—He was put to death by Emilianus, who attempted to seize the reins of government, but the army elected Valerian, governor of Gaul. The empire was invaded by the Goths on the north and the Persians under their king, Sapor, on the east. From this time, it had to 259—fight for its life. Valerian was defeated by Sapor and remained nine years in captivity, Gallienus, his son, becoming emperor. He was extremely incompetent and a multitude of rival claimants for the supreme authority arose in all directions. They were called the “Thirty Tyrants.” One of them, Odenatus, king of Palmyra, in the Syrian desert, defeated Sapor, and Gallienus proclaimed him his colleague. On the death of Odenatus, his wife, Zenobia, assumed the title of “Queen of the East,” conquered Egypt and ruled a wide region with success and splendor. Both Goths 262—and Persians invaded Asia Minor. Gallienus was murdered 268—and Claudius succeeded. He defeated the Goths 270—but died in a pestilence. Aurelian succeeded. He was an able general. He subdued the Germans and 272—Goths, and conquered Zenobia, one of the most remarkable 275—women of history. Aurelian was assassinated by some victims of his severity, and Tacitus, a Roman senator succeeded, but died in seven months, and was followed by Probus. He was a vigorous general, and drove back the barbarians on all sides, but attempting to employ his soldiers in labor on public works, they 282—revolted and murdered him. Carus, the captain of the 283—imperial guard, was raised to the throne. Dying the next year, his sons, Carinus and Numerianus, inherited his authority, but Numerianus was assassinated in a 284—few months by his father-in-law, and Diocletian, said to have been formerly a slave, was proclaimed emperor by the army. This was called “The Era of the Martyrs,” from the long and bloody persecutions against the Christians. This was the tenth general attack on them, and proved to be the last. The barbarians pressing in great force on all sides, Diocletian appointed several colleagues, and their united ability drove the invaders back.

305—Diocletian resigned his power to Galerius, who appointed three associates, making a division of the empire. One of these,

Constantius, died in Britain, and was succeeded 306—by his son, Constantine. For a time, there were six emperors, but one was killed, Galerius died, and Constantine conquered the others.

312—Constantine changed the whole character of the empire by embracing Christianity and relying largely on that element for the support of his power, while he disbanded the Pretorian, or royal Guard, which had for two hundred years assumed to make and unmake emperors, and whose example, imitated by the other armies, kept the world periodically disturbed by the disputes and battles of rival claimants to the imperial purple. By the 313—edict of Milan, Constantine abolished all laws unfriendly to Christianity; he restored the authority of the senate and magistrates, and removed his capital from Rome to Constantinople.

324—The pagan element was now so worn and decrepit that no general disorders resulted. Whatever was left rallied under Licinus, who was conquered by Constantine. It appears to have been the strength of the Christian element and its essential hostility to the Roman principle of violent subjugation that produced so many and fierce persecutions. Had it not been for the pressure of barbarians on the empire the prevalence of that system would have preserved society and the state for a thousand years more, as it actually did in the Eastern empire; but every thing that man has the management of must be affected by his limitations, his mistakes and his follies. Christianity needed a better ally, a fresher and purer society, built up by the young blood and better instincts of another and newer people.

Constantine paid great respect to the clergy of the church and took a leading part in its general counsels—a great mistake and a great misfortune.

325—His spiritual supremacy was virtually acknowledged at the council of Nice which he convoked.

330—Constantine died leaving his vast dominions to his three sons, who, in the course of ten years, were reduced to one, Constantius. After a troubled reign of twenty 361—years more, he died, and was succeeded by his cousin Julian, called the “Apostate,” from his renouncing Christianity and laboring to restore the pagan religion. In

this he signally failed. He undertook to rebuild the Jewish temple at Jerusalem, without success.

363—He was mortally wounded in an invasion of Persia, and was succeeded by Jovian, who restored imperial favor 364—to the Christian religion. He died after one year's reign and Valentinian was elected emperor by the council of ministers and generals. He divided the empire with his brother, Valens, and afterward Rome and Constantinople usually had each an emperor. Valentinian died 375—and was succeeded by his son, Gratian.

378—The Huns appeared in Europe, having wandered from the borders of China, and defeated Valens with dreadful slaughter. Valens himself was among the slain. This was the commencement of the great migrations that finally overwhelmed the Roman Empire of the west.

379—Gratian, left sole emperor, appointed Theodosius, called The Great, his colleague, who subdued the Goths, repelled the Huns, and restored order.

383—Gratian was murdered by the usurper Maximus.

388—Theodosius conquered and put Maximus to death and restored Valentinian II., brother of Gratian, to the throne of the western empire. In a few years the whole 394—empire was reunited by the death of Valentinian. Theodosius soon died, universally lamented, leaving the two empires to his sons, Honorius and Arcadius.

402—Alaric, the Goth, invaded Italy and, though defeated, endangered the safety of Rome.

408—Theodosius II. succeeded to the empire of the east.

410—Alaric again invaded Italy and sacked Rome. Alaric soon after died and his forces were persuaded, by negotiations, to leave Italy, but they permanently established themselves in Spain and Southern Gaul (France). Thus the empire began to fall to pieces.

425—Honorius died and Valentinian III. became emperor.

429—The Vandals soon conquered the Roman provinces in Africa, under their king, Genseric. They extended 440—their conquests to

Sicily.

447—Attila, called the “Scourge of God,” appeared at the head of the Huns, and Theodosius made a humiliating treaty with him to save his dominions from desolation.

448—In the next year the Saxons and Angles were invited into Britain by the civilized Romans, to protect them from the Picts and Scots, and laid the foundation of the modern Anglo-Saxon race, and the Franks invaded Gaul laying the foundations of the modern kingdom of France. England received its name from the Angles—France from the Franks.

451—Attila, the Hun, invaded Gaul, and was defeated at 452—Chalons, by the united Romans and Visigoths. Attila then invaded Italy and laid it waste, but died before he 454—had completed the ruin of the empire. Valentinian III. was murdered, and the Vandals from Sicily invaded Italy and sacked Rome.

SECTION XIII.

THE RISE OF MODERN NATIONS.

476—After a succession of puppet emperors in Rome, Odoacer abolished the name and took the title of king of Italy. He was a German in command of the auxiliaries in Roman pay. Thus ended, in disaster and disgrace, the once mighty Roman Empire. Its ruin was gradual and the barbarians who overthrew it had already embraced Christianity, so that the institutions of the church did not share its fall.

486—Clovis, king of the Franks, defeated the Romans and Gauls at the battle of Soissons. The Ostrogoths invaded 492—Italy under Theodoric the Great, deposed Odoacer, and founded a new kingdom.

496—Clovis defeated the invading Germans and embraced 500—Christianity. Clovis next defeated the Burgundians.

507—He subdued the Visigoths and all France was united under one rule. He was of the Merovingian line, or dynasty, of kings, which lasted over two hundred years, during which the remains of Roman

civilization and the influence of the church were gradually modifying and penetrating the character of a new and energetic race.

527—Justinian became the ruler of the Eastern or Grecian Empire.

534—His generals waged war with the Vandals in Africa and the Ostrogoths in Italy, and after eighteen years of conflict, succeeded in reconquering part of Italy, which the Greek emperors continued to hold nominally for about three hundred years; the seat of their representative being at Ravenna. He was called an Exarch. Rome itself was left, substantially, to the control of the Christian bishop. When the Lombards founded a kingdom 568—in the north of Italy they were prevented, by the exarch and bishop, from spreading over the southern part; and when the exarch threatened to become too powerful to suit the views of the bishop, he supported the Lombards. Thus the temporal or political power of the popes arose, and they were the politic authors of the “Balance of Power” theory, or system, that has played so large a part in European history. The result has been exceedingly favorable to progress in all directions, since it has secured the independence of states, and a more various and perfect civilization by the development of the special genius of each people. Many circumstances conspired to support this idea, in later times, and render it very prominent and influential.

This gradual advance of the bishop of Rome in political influence associated him with the mighty memories of the “Eternal City,” and suggested the idea of a spiritual empire over all Christendom, which gradually became realized and quite changed the character of Christianity for near 800 years. Hurtful as it ultimately became, by reviving a universal despotism over conscience and freedom of thought, it was long powerful for good by giving a common centre to Europe, broken into fragments as it was by the rise of feudalism. That was disorganizing; this was centralizing, and kept the channels of communication open and the missionary spirit and the elements of a restored learning in activity. Its influence in commencing and carrying forward the crusades, which substantially broke the strength of feudalism, was of immense importance.

622—Mahomet arose in the Arabian peninsula, and his new religion spread with astonishing rapidity. In one hundred 732—years from the death of Mahomet the Saracens had established a vast empire, covering two thirds of the Roman empire, viz.: all of the old Persian empire, Egypt, and all of northern Africa and Spain, and threatened to inundate Europe. They poured a vast army over the Pyrenees into France. This was defeated in a great battle at Tours, by Charles Martel, who founded a new dynasty, replacing the Merovingian, called the Carolingian, and made France the most powerful, as it became the leading, nation in Europe, for promoting civilization during many centuries.

By this means the center of political influence, “The Star of Empire,” took another step westward. His son, Pepin le Bref, or the Short, caused himself to be 752—crowned king of France by the Roman Pontiff, Stephen II., which added to his own prestige, as it also did to that of the pope. It was a sort of league between the rising temporal and spiritual powers in Europe, and set an example long followed. Charlemagne, or Charles the Great, the son of Pepin, ascended the throne in 771, 771—and by his intelligence, energy, and wise statesmanship, by his encouragement of learning, his organizing talents and his success in conquering and civilizing the seething mass of nationalities in Germany, he may be said to have really founded modern civilization during his long reign of forty-three years. He conquered the Lombard kingdom in Italy, and was crowned by the pope, Adrian I, “Emperor of the Romans,” kneeling at the altar in Rome; but he virtually confirmed the temporal authority of the popes, and associated their influence in all his conquests. He thoroughly broke the spirit of the pagan Saxons, in northwestern Germany, by a war of thirty-three years, carried his conquests east over most of the present Austrian empire, civilizing and bringing the barbarians into the pale of Christendom by the aid of Christian missionaries, and conquered some portions of Spain from the Saracens.

It seemed as if the history of the western Roman Empire, which had fallen three hundred years before, was to be repeated. That was the hope and dream of both Charlemagne and the Roman Pontiff, who joined hands to realize it. This new western emperor had great

abilities and the church was very strong. The centre of Europe had so long been within the reach of civilizing influences, and had attained such a point of development in its various nationalities, that they readily accepted permanent institutions, when presented by a power so strong as that of the mighty Frank ruler.

814—But when he died, it was found that there was no other hand strong enough to wield his sceptre. All the memories of the old empire, all the influence of the Christian church, the remains of the Roman organization, and the ripening vigor of new races, which had begun to lay aside their barbarous impulses, were united to aid the vast designs of this great statesman. But the tendencies of the new society, in general, were in a different direction. The Germanic civilization was totally different from the Roman, and had there been a succession of rulers as large minded and strong willed as Charlemagne, they could not have repeated the history of the ancient world. The tendency of the races that overthrew the empire was invincibly against centralization, and instead of a new Roman Empire in western Europe, appeared the Feudal System.

SECTION XIV. **THE FEUDAL SYSTEM.**

1. This system was the direct opposite of centralization. Under it all Christendom broke up into fragments; the king exerted but a loose general control, that continued to decrease for several centuries; and most of the real authority was exerted by the feudal lords from their fortified castles, which, for three hundred years, had been springing up over all the territory conquered from the Romans. It had its true origin in the marked *personal assertion*, the strong *individuality* of the Teutonic Race, which was, and is, one of its most prominent traits. While in their native barbarous state their armies were formed for their expeditions of foreign conquest, that proved so fatal to the Romans, on the voluntary principle. The prowess and fame of a leader, or chief, drew to him a multitude of warriors, longing for activity and booty. So long as he could lead them to success, to gain their individual ends, they obeyed him. When he failed to reward their ambition they held themselves free to leave him.

2. It was not immense disciplined armies, but innumerable bands, organized in this way, that, through a long course of years, gradually overran Britain, Gaul, Spain and Italy. For four hundred years the civilized world had been accustomed to the control and protection of a distant ruler whose powerful armies rendered resistance vain, and all thought of organization for self-protection against the terrible barbarians was wanting when they were attacked. Each city or region defended itself as well as possible, or submitted at once. The conquerors took what they wanted and passed on to other lands, or spread themselves out over the province. They usually settled in the country parts, fortifying the country seats of the richer inhabitants, or building themselves castles near the larger towns, to hold them in awe. The leader considered himself the owner of the conquered territory, and divided it among his followers, who settled themselves, each in his new domain, as its owner and ruler. The conquered inhabitants were his subjects from whom he took tribute. The conquerors were few in number in proportion to the conquered; but there was little resistance throughout the old Roman provinces. Organization and spirit were wanting to them, and resistance would provoke complete ruin, since the conqueror could easily call to his aid any number of his fellows in return for a share of the spoils. Thus they gave what was demanded and made themselves content with what was left.

The cities paid tribute, the cultivators gave a portion of their harvests to the new rulers. The territory not given to his followers was considered the property of the original leader. In return for the gift each of the recipients of territory was held bound to aid him in his wars, and each larger chief stood in similar relations to the king of his tribe or nation. Out of this grew, at length, what was called the Feudal System, feudal being derived, by some, from the old German words “fee,” salary, and “od,” landed possessions—a payment, or salary, in land, for services rendered, with a certain obligation to the giver.

3. The kings of the Franks—the German nation that conquered Gaul—up to the time of Charlemagne, labored to consolidate their power and rule like the Roman emperors. But the genius of their race and the peculiarities of the situation were both opposed to that purpose. Charles Martel, Pepin, his son, and Charlemagne, his grandson, were all rulers of great vigor, and the last, apparently, succeeded for a time. But the military strength lay only in

the scattered feudal chieftains, each of whom sought to build up his own power on his own estates. It was not possible to maintain a strong central government for any length of time, or under an ordinary man. For two hundred years these petty lords grew in strength at the expense of the king. They were still held to him by the necessity of supporting him in war, by a system of checks, which, in time, were increased, and still more enlarged, when the people began to make themselves felt in the twelfth century; but from the fifth to the fifteenth century feudalism was the prevailing system in all the civilized European nations.

4. It was a very rude and violent period, but some of the most happy traits of modern life grew out of it. The isolation of the feudal lord in his fortified chateau or castle, where his wife and children were his only equals, combined with the constant influence of the church, gradually elevated the condition of the woman, the rudeness and violence of the time were modified by the rise of chivalry, which was, in great part, founded on this new respect for the gentler sex, and sympathy for her helpless condition when exposed, without a powerful protector, to unrestrained insolence and passion; and the feudal system held all the elements of society in suspense until the mighty forces—revived learning, the printing press, and a new commerce and industry—were ready to take a prominent part in making it what we now find it—far superior to the old society.

5. Feudalism held men apart, and individually subject to the refining influence of Christian precepts, from the fifth to the ninth century, when the romantic practice of chivalry became popular as a relief from the tedium of isolation, and a channel for the flow of the softer sentiments of respect for woman, of compassion for weakness, and, at the same time, a vent for the martial spirit which the constant conflicts of the time cultivated. The age of chivalry indicates that Christianity was powerfully moulding the character of the new nations. Working on qualities as stern and rude as those of the old Roman of the Republic, its partial control, the beginnings of its power, were manifested in a romantic way. The isolation of feudal life, and a sense of wrong in employing all their energies in unceasing contests of ambition produced the chivalric outbreak and the crusades. The knights of chivalry were feudal lords and gentlemen, trained in all the warlike arts of the period and in all the courtesies which the new influence of female society produced. When starting forth as knight-errants, they were exhorted by the

stern feudal warrior to valor, and by the Christian priest to gentleness toward the weak and defenseless, and they made it the business of life to wander about on horseback incased in armor, displaying their warlike accomplishments and combatting petty tyranny. There was little power in the king to right the wrongs of his subjects, and brutal violence in the feudal lords had no other effectual punishment. Chivalry flourished for more than five hundred years; but its most useful days were from 1000 to 1200. It was the first, and seems to later times a somewhat amusing indication of a more humane social state than the world had ever known.

6. The crusades commenced about 1100, the object being to rescue the sepulcher of the founder of Christianity from unbelievers. It first engaged the sympathy of the people at large, then of the feudal nobility and finally interested the ambition of kings. For two hundred years a large part of the best blood of Europe was poured out in Palestine in a vain effort to expel the Saracens from it. The transportation of armaments and supplies to that country from various parts of Europe gradually led to commerce and skill in navigation; so much of ancient civilization and knowledge as still existed in the Eastern, or Greek Empire at Constantinople, was introduced into modern Europe, which at the same time was relieved of its more turbulent and adventurous elements; and a heavy blow was given to the smaller feudal proprietors by the expense incurred in a distant expedition where they died without issue, reduced their families to poverty, or whence they returned penniless to mortgaged estates. It rapidly hastened the movement, begun by other influences, to reduce the number of feudal proprietors, and render government more vigorous over increasingly large territories.

SECTION XV.

THE LIBERTIES OF THE PEOPLE.

1. Between 1000 and 1200 the independent and enterprising spirit—the individualism—that we have seen at the base of European character, and which first produced the Feudal System, began to move among the masses in various ways and laid the foundation for that influence of the People that was afterward to become the most powerful element in political life.

It first presented itself in the development of industrial arts and commerce in cities which obtained, as corporations, the rights, or a part of

the rights, of the feudal proprietor, which they proceeded to exercise under the form of Free Cities in Germany, privileged Communes in France and commercial Republics in Italy.

2. A second development, highly favorable some centuries later to the reaction of popular freedom against centralizing despotism in the government, was the religious protest against the claims of the church over freedom of thought. This spirit grew up in Germany, and its first remote beginnings are to be found in the imperial title conferred by the pope on Charlemagne. In the course of time (A. D. 963) that title was inherited by the German rulers who, for a long time, struggled for the control of Italy and a feudal superiority over the popes. This was carried on for two centuries with much acrimony, in which the terms Guelph, the general name of those who supported the side of the popes, and Ghibellines, of those who rallied to the emperor, came to be the watchwords of Germany and Italy. The popes triumphed in this contest, which prevented the establishment of a vast and powerful political despotism, and gave the church a temporal kingdom in a part of Italy, with an immense spiritual empire highly embarrassing to free mental growth. The reaction against this spiritual control produced the Protestant Reformation of the sixteenth century, in which was wrapped up the germ of modern Republicanism.

3. The Crusades loosened the bonds of Feudalism, taught nations and rulers to act together to gain a common object, enlarged the experiences of men immensely, and cultivated and organized the spirit of personal adventure which afterwards expended itself on commerce.

It was at about the crisis of this period (1215, A. D.) that the Magna Charta—the foundation of English constitutional liberty—was produced; that the Hanseatic League and Free Cities began to flourish in Germany; the commercial republics of Venice, Genoa and Florence rose in Italy; and the communal corporations in France sprang up. They were all more or less stimulated by influences growing out of the Crusades, and brought forward the *people* and their distinct and separate interests and activities into political importance. This was the beginning of an entirely new order of things, which required a new continent for its full development.

4. A first circumstance, above all favorable to the liberties of the people, was the Invention of Printing, producing rapid diffusion of information, the

coincident revival of learning and the foundation of modern science. All these, working together with various other agencies, gradually swept away feudalism, checked the towering spiritual tyranny of the church and corrected a crowd of minor evils that embarrassed society, enterprise, and progress in the science of government.

The intermediate stage in this progress appeared like a return to old principles. The dissolution of feudalism left the governments of Europe centralized. The lords inheriting feudal rights had become intolerable despots. For a certain period the authority of the king was the bulwark behind which the people sheltered themselves from the oppressions of their feudal superiors, and they united with him to reduce the feudal nobility to the comparatively harmless condition of the modern aristocracy, whose greatest distinction is social pre-eminence. It left them, indeed, a high, but not overwhelming, position in the body politic, which the growing education and wealth of the middle and lower classes constantly tended to reduce. This change was commencing when America was discovered. The feudal chiefs labored to extend and strengthen their power at the expense of each other, of the king and the people. The increasing activity and importance of commerce, trade and industry required the support of a broad legislation that could not be obtained while nations were broken up into petty lordships, principalities and kingdoms almost independent of each other, and whose rulers were often hostile to or at war with each other; while the support of so many rulers became a heavy burden on the resources of the people. The king represented the nation and was the rallying point of reform. To strengthen him was to promote the larger interests of the country.

5. For these reasons, and from the resistance offered by the feudal institutions, which had existed a thousand years, authority became centralized in the monarch to an extravagant degree, and this at a time when freer institutions were most required by the larger and wiser views of the people. The great usefulness of the Roman Catholic Church in civilizing and educating the modern nations and founding a center or common bond between them, which produced a degree of unity in their progress, had continually added to her power, while the disposition to free thought was ever becoming more pronounced. Thus two despotic forces, each claiming absolute obedience in their respective spheres, were rising in strength to a

degree extremely embarrassing to the growing intelligence and increased activities of the commonalty. The traditional authority of the church and the king came, in the course of a hundred years after the discovery of America, to directly oppose the most important interests and instincts of mankind.

6. The progress of the people, as distinct from that of their governments, may then be described as starting in the last great service done for Europe by the church—the organization of the Crusades. The feudal system separated men too much for healthy progress, and this singular display of religious zeal united the various nationalities in a common effort, and stirred up powers that had long slumbered. It was in this period that the adventurous and comprehensive activities of modern life commenced. Wealth had been largely confined to the feudal nobility. It now began to flow out through the general community. The nobles expended vast sums in fitting out princely retinues to lead to the Holy Land, for which their estates were security. They died, or returned penniless, and their lands passed into the hands of the commercial classes, whose successful diligence had made them wealthy. It was the first heavy blow to feudal institutions, and laid the foundation of the power of the people.

Corporations and cities which had obtained the rights of feudal proprietors, employed them for the purposes of self-government, and so used an instrument of despotism to shield and sustain a virtual democracy. With this freedom of action, popular liberty, controlled in a general way by feudal obligations to the prince, king, or emperor, grew fast and strong protected by the growing despotisms of the church and the state. The Hanseatic League, in the north of Germany, was, in the fourteenth and fifteenth centuries, perhaps as wealthy and powerful as any king or emperor in Christendom; and in the sixteenth, the small commercial province of the Netherlands could defy the whole power of Spain, with the wealth of the Indies at her back.

7. The revival of learning, and the invention of the art of printing, gave an immense impulse to this uprising of the people, commenced near three hundred years before; about the same time the Portuguese discovered the way to India by the Cape of Good Hope, Columbus threw open the “Gates of the West,” and the wealth of both Indies flowed in a full stream through the channels of commerce and trade; that is to say, into the hands of the

busy and industrious people. All events seemed to conspire to build up a base for the power and development of the commonalty.

This growing intelligence and strength among the masses, with the habit of ruling themselves under feudal forms, made a conflict with the two arrogant despotisms inevitable in the near future. Feudal institutions were still a serious and vexatious embarrassment to freedom of movement, and a very heavy tax on industry, and the only legal way to remove it was by strengthening the central or kingly power, which continued to increase for more than a hundred years; but the conflict with priestly despotism was entered on at once. A vast rebellion against the church commenced, called "The Reformation of the Sixteenth Century," which embraced nearly all the most enterprising and commercial nations.

SECTION XVI.

THE SITUATION ON THE DISCOVERY OF AMERICA.

1. We have said that great men were a kind of summary of the tendencies of their period; an expression of a wide-spread thought or state of mind, which their fortunate combination of faculties and more favorable circumstances enabled them first to state, or embody, with distinctness; that the great following they obtained, and the extensive influence which enabled them to make great changes, were due to a coincident development in their generation of the same thoughts and tendencies. This explains the existence of *eras* in all departments of life. Men grow, or progress, silently, from one to the other; when the general progress has reached the suitable point it breaks out in a leader more bold and positive than the rest.

The discovery of America was such an era; and the sudden advance in many ways at about the same time was the result of gradual growth during many centuries. It was shown by the sudden appearance of great men in different spheres. Columbus lived in the midst of a great era. Printing, the use of the compass, the science of astronomy and the successful protest against spiritual despotism all commenced their great career just before, or just after him. The great painters, whose works are now so much esteemed, were all living in 1500. Copernicus discovered the true planetary system in the year Columbus died. Gunpowder, which enabled Cortez to conquer the Mexican Empire, came into general use about the same period. Luther

commenced the Reformation, while the first adventurers were creeping, with amazed curiosity, around the shores of the American continent. The foundation of all the sciences was then laid. Correct principles were enunciated for religion, government and thought; and the laws of nature, of human relations and of religious liberty were promulgated almost simultaneously.

2. But not all the European nations, and not *all* of any one nation, were prepared for this vast advance. The southern part of Germany, and the people in general in southern Europe, resisted what they regarded as a dangerous innovation, and the reform spread only north and west. The close connection instituted by Constantine between church and state, which was renewed under Charlemagne, raised at this time, a long series of religious wars, which contributed to embarrass Protestantism in the same way by the necessity under which it lay, (or supposed it lay,) of seeking the protection of princes. Luther's reorganized church became the state religion of northern Europe, and fell under government control in Switzerland and Holland. Henry VIII. of England, while yielding, like a true Englishman, to the general tendency of his people, in taking the reformed faith under his protection constituted himself its head.

In the long contest between Catholic and Protestant, it became apparent that full religious liberty was not then possible in Europe; and the more, that a political element was involved in the contest. Free thought naturally led to free institutions, and the leading European governments were, by the breaking up of feudalism, centralized and made more despotic than ever. Thus its tendency to political revolution organized strong governments against it, or prevented its development by the check of governmental supremacy.

3. While this contest was working itself out in the firm establishment of Protestantism under state patronage in northern Europe, and its entire extinction in the stronger and more conservative southern monarchies, the discovery and subjugation of Mexico and Peru, with their wealth of precious metals and tropical productions, together with the trade with the East Indies by the Cape of Good Hope, passage to which was discovered before the daring venture of Columbus, had greatly enriched Europe. A large part of this wealth passed immediately, or in process of time, into the hands of the people as the result of personal adventure or of the activity of

commerce, trade and industry. The maritime regions of northern Germany, Holland and England gathered much of this golden fruit; the maritime republics of Italy fell into decay; and Spain spent its vast treasures in war. It was led to this suicidal policy by various royal marriages which united the German Empire, Spain and the Netherlands under one scepter. This vast ascendancy, united with great wealth, excited the alarm of other nations, and contributed to strengthen the Reformation. The Protestant princes of Germany and the king of France united to reduce this dangerous pre-eminence in order to uphold the existing nationalities of Europe, or the Balance of Power, as it was called. Thus the emperor, Charles V., was led to pour out the treasures of Mexico and Peru to sustain his political aspirations, and his wars turned the wealth of the Indies into the channels of commerce and industry.

His successor, Philip II., still uniting Spain and the Netherlands, undertook to crush the reformed faith in the latter states, and failed in a war of nearly half a century. This vast expense made Spain, the richest country of Europe, the poorest, still to the profit of commerce and the greater strength of Protestant lands. The United Netherlands became free Protestant states and remarkably prosperous.

4. The English people advanced in laying the foundations of a free constitution from the time of the Magna Charta in 1215. They became strongly Protestant, and finally their commons engaged in a contest with the king, Charles I., for the maintenance of popular rights. He resisted to the last extremity, and the commons precipitated a revolution that dethroned and beheaded him, and established a republic. This was premature and expired with the great leader, Cromwell, who had successfully headed it. Royal power was restored, but a few years later was rearranged and so modified as to be suited to the independent but moderate tendencies of the people. A certain part of the English people, however, aspired to more complete liberty than a monarchy could afford them, and passed over the sea to secure freedom of conscience and political enfranchisement in the New World.

With the moderate and steady maintenance of their rights, characteristic of Englishmen, they were governed under charters from the English sovereigns who, for the sake of extending their dominions, allowed them much freedom. European governments could not conform to the demands

of progress by loosening the bands of arbitrary rule, and the new colonies became the refuge of such as aspired to more liberal institutions, as well as of adventurers in search of gain. Thus the English colonies became the escape valve of European politics and society, the Appendix of the Reformation, and the Hope of Liberty.

SECTION XVII.

CONCLUSION.

1. We see here again the operation of the constant law that impelled men, or moved the “Star of Empire,” westward. The form of the continents, the character of the surface and the climate, provided a natural and desirable opening only in that direction. The overplus of population, the discontent of some part of the people with existing government, the restlessness of adventurers, or the requirements of trade and commerce produced a migration. The colony, instructed by the experience of the parent state, was free to improve on its institutions. Colonies have almost always prospered more than the mother country. Transplanting seemed to improve both the stock and the institutions. Greece was colonized from Asia, as was Rome; Miletus, Syracuse, and other Greek colonies excelled the mother cities in wealth, and though the free structure of Grecian government allowed a natural development at home and made Athens the metropolis, yet its marvelous genius was nourished and stimulated by the colonies. Carthage was greater and stronger than Tyre, and contended with Rome for the control of the world; the most western nations of Europe were colonized from Rome and Germany, and have taken the lead in later progress, while America has always displayed the lusty, fertile vigor of a young life.

Thus the conformation of the surface of the earth, and the peculiarly fruitful character of a transplanted civilization, have always furnished an escape from the embarrassing fixity of an old state, in the same western direction, and the old and the new unite to establish frequent stages of progress. In this way a continuous growth has been secured that impresses on advancing culture the same unity, from first to last, that we see in the growth and mental development of the individual man.

2. We have seen the aggregation and primary discipline of mankind in the simple but extensive despotisms of western Asia, varied in Palestine by a

theocratic system which has produced the world's great religion, and in Egypt by the predominance of a learned priestly caste. We saw an improvement made in Greece to meet the demands of intellectual development. Their intelligence, however, was a spontaneous outburst, of necessity immature. Two thousand years of training, and the addition of many new elements were required before mind could *rule* the world; but Greece, by the attractiveness of her art and culture, set men at work on the great problem of politics and life.

Rome followed to organize government and consolidate the civilizations, to ripen their fruit and transmit the seed to a more favorable time, and to new and better races. A complete civilization was impossible without well digested science, which had its remote roots in Greece; and law, which was gradually produced by the grand Roman republic; and a clear understanding of the profound yet simple precepts of Jesus Christ.

3. Western Europe received all the wisdom and experience of the ancient world, and labored well at the grand problem, though she did not completely solve it. She, however, made an immense advance toward it, and her children, rich in her experience, instructed at once by her success and her mistakes, and aided always by her wisdom, found (let us hope) in America the goal of their noblest aspirations. Thus we find the spirit of progress traversing the whole course of human history, constantly advancing through all the confusion of rising and falling states, of battle, siege and slaughter, of victory and defeat; through the varying fortunes and ultimate extinction of monarchy, republic and empire; through barbaric irruption and desolation, feudal isolation, spiritual supremacy, the heroic rush and conflict of the Cross and the Crescent; amid the busy hum of industry, through the marts of trade and behind the gliding keels of commerce; through the bloody conflicts of commons, nobles, kings and kaisers to New and Free America. There the Englishman, the German, the Frenchman, the Italian, the Scandinavian, the Asiatic and the African all meet as equals. There they are free to speak, to think, and to act. They bring their common contributions of character, energy and activity to the support and enlargement of a common country, and the spread of its influence and enlightenment through all the lands of their origin. As America is the common ground on which all the currents and ideas of all the civilizations meet, so also it is the point from which return currents, hastened by

lightning and by steam, seek again every quarter of the earth with kindly greetings, to renew the relations broken in the original separation of the races, and to cement, by exchanges mutually profitable, a new and better unity of mankind. As the heart in the human body receives the current of blood from all parts of the system, and, having revitalized it, returns it with fresh elements of strength, so America adopts the children of all lands only to return a manhood ennobled by a sense of its own dignity through the practice of a system of self-government which improves the condition and promotes the interest of each while it produces harm to none.

4. America, then, will colonize Ideas, extensively, when her institutions are thoroughly matured. The process, indeed, commenced with her birth, and her Spirit sails with her ships in every sea and visits all lands. All the past has contributed to the excellence of her foundation, and modern Europe has supplied her with the most desirable building material both of ideas and of men. Without Asia, Greece and Rome, there would have been a very imperfect modern Europe; and without modern Europe, America must have begun at the beginning, with all the lessons, discoveries and discipline of thousands of years to learn. Happily, we seem authorized to believe that, as she concludes the possible great migrations of humanity, she has so well learned the lessons of experience as to have given due flexibility and capacity of improvement to all her institutions, and, when necessary can *reconstruct* herself *within* herself. If this be true, she will reach the goal of all progress by furnishing to each individual among her citizens such aid as a state can give to make the most of himself, to reach the fullest expression of his value.

CHAPTER II.

THE DISCOVERY OF AMERICA.

1. Civilization, or the history of it, at least, commenced in the Eastern continent. The Western was, until a comparatively recent period, quite unknown to those who recorded the progress of mankind, and the events by which it was marked. The science of the most learned men and nations of ancient times did not extend to a comprehension of geography beyond the

limits of their own countries, and of the countries conquered by their rulers, or those which, bordering on these, held some relations with them.

2. The world appeared to be a flat surface, and no one thought of questioning that it was so *only* in appearance. It was reserved for a daring Genoese sea captain, about four hundred years ago, to conceive the happy idea that this appearance was deceptive; that it was really round; and that, by sailing westward, the distant East, or India, might be readily reached. Columbus, having become fully satisfied that this theory was correct, and not being rich enough to fit out an expedition himself, endeavored to convince others, who had the means, of the truth of his views, and to induce them to aid him to put them to the test.

3. The Genoese, living by commerce, and, at that time wealthy and powerful, gave him no encouragement. They even regarded him as a madman. He applied to the Governments of Portugal, England, and Spain, but gained little attention for many years. At length Queen Isabella, of Spain, became interested in his theories, and, with much effort, assisted him to put them to proof. He set sail August 3, 1492, with three small vessels, on an unknown sea. His crew were filled with fear to find themselves so far from land, and sailing toward unknown dangers. He had great difficulty in calming their terrors, and was in great danger of perishing in the mutiny they contemplated. He was saved by the opportune appearance of land on the 11th of October. He had reached the group of islands lying between North and South America. The one first discovered was called, by the natives whom he found inhabiting it, Guanahani. He named it, in remembrance of his peril, San Salvador—St. Savior. Supposing he had reached the Indies lying to the eastward of Asia, and not dreaming of a new continent, he called the inhabitants Indians. Cuba and Hayti, larger islands lying further south, were soon after discovered, and he hastened to carry back the wonderful tidings of his discovery to Spain. He reached home seven months and eleven days after his departure.

4. He and his discoveries immediately became famous. The world had never been struck with a surprise so great, and all Europe was in a ferment at the news. He soon returned as Viceroy of the newly discovered lands, to establish a colony and extend his researches. Five years later, in 1498, he discovered the main land near the river Orinoco, in the northern part of South America. He died in 1506, unaware of the magnitude of his

discoveries, still believing he had only reached India from the west, and treated with much ingratitude by the government he had so much benefited by his bold genius. The first published account of the new continent was by a Florentine, Amerigo Vespucci, who visited the main land in 1499, claimed the merit of the discovery, and gave it his name, America. His claim has long been disallowed, and Columbus duly honored as the real discoverer, though the name was never changed.

5. It is believed that North America was known to the mariners of the North of Europe as early as the tenth century; and that settlements, that afterwards perished, were made from Iceland and Greenland as far south as the shores of New England. This, however, is only a dim tradition, there being no detailed and authentic history of these events left on record so far as is yet known.

6. An English mariner, by descent a Venitian, disputes with Columbus the first sight of the main continent in 1498. He first touched the coast of Labrador, and sailed as far south as Florida in the next year. It was near a hundred years later before a permanent settlement was made within the territory that is now the United States, by the English, though the city of St. Augustine was founded in Florida by the Spaniards in 1565.

In 1607 a settlement was made at Jamestown, on the Potomac river, in Virginia, and in 1620 the Puritans of England, persecuted there for their religious views, sought liberty of worship in the new world, establishing a colony at Plymouth, in the eastern part of New England. Others followed in succession until many distinct colonies had been planted on the eastern coast of the United States; all of which—except Florida, belonging to the Spaniards, on the south, and Canada, settled by the French, on the north—were under the control of, and received their laws from, England.

CHAPTER III.

CHRONOLOGICAL HISTORY OF ANGLO AMERICAN COLONIZATION FROM 1492 TO 1763.

1493—October 12, Christopher Columbus discovered land belonging the Western Hemisphere—one of the Bahama Islands. He touches at Cuba and Hayti before his return.

1497—John Cabot, master of an English vessel, and his son Sebastian, touched at Newfoundland in June, and soon after explored the coast of Labrador.

1498—Columbus, on his third voyage, discovers the American Continent, near the mouth of the Orinoco river, in South America.

—Sebastian Cabot, in a second voyage, first of Europeans, explores our Atlantic coast as far south as Maryland.

1499—Amerigo Vespucci, or Americus Vespucius, a Florentine merchant, conducts a vessel to the coast of South America. Returning to Europe he publishes a book, claiming to have first discovered the continent, and it receives his name, America.

1500—Columbus is sent to Spain in chains by a Spanish officer whom the jealousy of Ferdinand, the Spanish King, placed over him. Treated with injustice and neglect, he died at Valladolid, Spain, in 1506.

1512—Ponce de Leon, a Spaniard in search of the “Fountain of Youth,” discovers Florida, near St. Augustine.

1524—John Verrazani, a Florentine, commanding a French vessel, touches the coast near Wilmington, North Carolina, and explores it north to Nova Scotia. He wrote a narrative describing the country and the Indians.

1535—James Cartier, a French navigator, discovers the St. Lawrence.

1541—He builds a Fort at Quebec, but soon abandons it.

—De Soto, a Spaniard, discovers the Mississippi. He traveled, with six hundred men, through Georgia and Alabama, and fought a bloody battle with the Indians near Mobile. These Indians had a walled town of several thousand inhabitants. Thence he traveled west to the Mississippi and Red Rivers. He died at the mouth of the Red river, May 21, 1542.

1553—Persecution of the English Puritans commences.

1562—French Huguenots attempt a settlement in Florida. They gave the name Carolina to the coast on the north. The first colony is discouraged, and returns. In the year 1564 another Huguenot colony is founded on the River May.

1565—Melendez, a Spaniard, founds St. Augustine, September 8th, with five hundred colonists. It was the first permanent settlement in the United States.

—Melendez destroys the French colony.

1567—The Chevalier Gouges (French) attacks St. Augustine, and puts to death two hundred Spaniards in retaliation.

1578—The first English settlement contemplated. Queen Elizabeth grants a patent to Sir Humphrey Gilbert “to such remote, heathen, and barbarous lands as he should find in North America.” He makes two attempts to plant a colony—in 1579 and in 1583—fails in each, and perishes with his vessel, September 23, 1583.

1584—Sir Walter Raleigh receives a similar patent, and sends two vessels to the shores of Pamlico Sound. Queen Elizabeth names the country Virginia.

1585—Raleigh sends a colony to Roanoke Island, but it is unfortunate, and returns home.

1587—He sends another colony, but the Spanish Armada threatening England, he could not send it supplies for some time, and when visited, later, no trace of it could be found. Discouraged, he gives up his patent to a London company of merchants, who content themselves to trade with the Indians.

1602—Bartholomew Gosnold visits New England.

1603—Henry IV., King of France, grants Acadia (Nova Scotia) to Sieur de Monts, who founds a colony on the Bay of Fundy, at Port Royal in 1605.

1606—James I., King of England, establishes the London and Plymouth companies for settling North America.

1607—The Plymouth company land a colony at the mouth of the Kennebec river. It is unfortunate, and returns to England.

—The London company send out an expedition, which, accidentally discovering Chesapeake Bay, enter, and found a colony on James River, at Jamestown. The romantic Captain John Smith was one of the colonists. This was the first permanent English settlement in North America.

1608—Smith seeking, by orders from the London company, a passage to the Pacific ocean, up the Chickahominy, is taken prisoner by the Indians, condemned to death, and saved by Pocahontas.

—Quebec founded by the French under Champlain.

—The English Puritans, persecuted in England, take refuge in Holland.

1609—Lord Delaware is appointed Governor of Virginia, which receives a new charter, and a considerable accession of numbers.

—Part of the expedition, however, was shipwrecked, and the colony, embracing a large unruly and indolent element, is near perishing. Pocahontas repeatedly saves them from the Indians. Hudson river and Lake Champlain discovered.

1610—Lord Delaware, having been delayed, arrives (after the discouraged colonists had embarked to return to England) with supplies, and saves the settlement.

1613—Pocahontas marries John Rolfe, an Englishman.

—The Dutch erect a fort at New York.

1615—They build Fort Orange, near Albany.

1619—The first General Assembly elected by the people is called in Virginia, by Governor Yeardley. Eleven boroughs, or towns, were each represented by two Burgesses, or citizens. It was the dawn of civil liberty in Virginia, and a germ of the future republic.

1620—Convicts are sent to Virginia, and negro slaves introduced.

—September 6th, the Puritans, discontented in Holland, set sail in the Mayflower, from Plymouth, England, for America, under the auspices of the “Plymouth Company.”

—December 21st they land on Plymouth Rock, and, amid great hardships, found a religious colony.

—James I. grants a charter to the Grand Council of Plymouth for governing New England.

1621—A district called Mariana granted to John Mason.

—Plymouth colony makes a treaty with Massasoit.

—Cotton first planted in Virginia.

1622—Sir Ferdinand Gorges and John Mason obtain a charter of Maine and New Hampshire. They plant a colony on the Piscataqua river.

—An Indian conspiracy nearly proves fatal to the Virginia colony. March 22d, at noon, an attack is made on all the settlements, and in an hour nearly a fourth part of the colony is massacred. The colonists, in a bloody war, thoroughly chastise the Indians.

1624—Virginia becomes a royal province, but stoutly maintains its legislative authority.

1625—Death of Robinson, the distinguished Puritan divine, in Holland.

1629—Massachusetts colony patented, and settlement made at Salem, by John Endicott.

—Charlestown, Mass., founded.

—The Dutch colonize the west side of Delaware river.

1630—Patent of Carolina made to Sir Robert Heath.

1631—Massachusetts General Court confines the privilege of voting to church members.

—Clayborne plants a colony on Kent Island.

—The Dutch erect a trading fort at Hartford.

1632—Maryland granted to Lord Baltimore.

1633—Connecticut colony founded.

1636—Roger Williams founds Providence.

1637—Pequod war in Connecticut.

1638—Rhode Island settled by followers of Anne Hutchinson.

—Harvard college founded.

—Swedes and Finns settle Delaware.

—Colony of New Haven founded. Persecution in Massachusetts.

1640—Montreal, Canada, founded.

1641—New Hampshire united to Massachusetts.

1643—The germ of the American Union is planted by a confederation of Plymouth, Massachusetts, Connecticut, and New Haven. It was for mutual protection and support, and was kept alive about forty years.

1645—Clayborne causes an insurrection in Maryland.

—The Mohawks mediate between the Dutch and Algonquins.

—Witchcraft superstition commences.

1646—John Elliott becomes a missionary to the Indians.

1649—The Mohawk war on the French settlements and Jesuits.

1650—Common School laws passed in Connecticut.

1651—English “Navigation Act” forbids colonists to trade with any country but England, and restricts trade among the colonies. Thus the English make all the profits. English merchants set the price of purchases and sales.

1651—Persecution of the Quakers in Massachusetts.

—Proprietary government subverted in Maryland.

1657—Elliott translates the Bible into the Indian language.

1662—Winthrop obtains a liberal charter for Hartford and New Haven.

1663—Carolina granted to a company of Noblemen.

1664—The Dutch conquer the Swedes on the Delaware.

New York granted to the Duke of York, who sends a force to dispossess the Dutch. It is done without fighting.

New Jersey granted to Berkely and Carteret.

1665—Lake Superior discovered by Father Allouez.

1668—St. Mary's, between Lake Superior and Lake Huron, the first French settlement within the boundaries of the United States, founded.

1670—Mr. Locke's philosophical constitution introduced in Carolina. It soon proved an absurd failure.

1673—The Upper Mississippi discovered by Marquette.

1675—King Philip's war in New England. He was a warrior of great ability and activity. Fourteen towns were destroyed by the Indians, and six hundred inhabitants killed. Philip is killed August 12, 1676, and the Indian tribes very nearly destroyed.

1676—Three of the Regicides (Judges of Charles I., King of England) came to New England.

—New Jersey divided into East and West Jersey, at the suggestion of Wm. Penn.

Bacon's rebellion in favor of popular rights, in Virginia.

1677—Virginia obtains a new charter.

Massachusetts purchases Maine.

1678—Sir Edmund Andross, royal governor of New York, usurps the government of the Jerseys.

1679—New Hampshire becomes a royal province, but the people make a successful stand for their legislative privileges.

—Massachusetts having disregarded the Navigation Act, Edward Randolph was sent as Inspector of Customs. He failed to enforce the act, and in 1682 the charter of Massachusetts was annulled.

1680—Charleston, South Carolina, founded.

1681—Wm. Penn receives a grant of Pennsylvania from Charles II.

—Penn restores the proprietary government in the Jerseys.

—He founds Philadelphia; makes a treaty with the Indians; and governs East Jersey.

1682—La Salle visits and names Louisiana.

1686—Sir Edmund Andross being made Governor-General over New England, proceeds in a very tyrannical manner. He endeavored to get possession of the charter of Connecticut, but failed, though he took possession of the government.

1688—New York and New Jersey came under the jurisdiction of Andross; but James II., the tyrannical King of England, being deposed, Massachusetts imprisoned Andross. Rhode Island and Connecticut resumed their charter governments; but Massachusetts, having given offense by resistance to the Navigation Act, never recovered her original charter.

—France having espoused the cause of the dethroned king, a war broke out between France and England, known as “King William’s” war.

1689—The government of New York is seized by Jacob Leisler for King William.

1690—May 1st, a Congress of colonial delegates meets at New York to concert measures for the common defense.

February 18th, destruction of Schenectady, N. Y., and massacre of the inhabitants by the Indians, sent by the French, from Canada.

—March 18th, Salmon Falls, New Hampshire, on the Piscataqua river, is destroyed by the French and Indians. Casco, Maine, is also destroyed.

—Sir William Phipps, Governor of Massachusetts, invades Canada, unsuccessfully.

—French Protestants settle in Virginia and Carolina.

1691—Slaughter becomes Governor of New York. He executes Leisler.

1692—Massachusetts receives a new charter. Her limits are enlarged, but her privileges restricted.

—Texas settled by the Spaniards, at Bexar.

1695—Rice brought to Carolina, from Africa.

1697—The Peace of Ryswick terminates King William's war.

1698—Piracies of Captain Kidd. He was tried and executed in England, in 1701.

1699—Pensacola is settled by the Spaniards.

1701—William Penn grants a new charter to Pennsylvania.

1702—The Jerseys united and joined to New York.

“Queen Anne's war” breaks out. New England suffered much from the ravages of the Indians.

—Governor Moore, of South Carolina, attacks St. Augustine, but without success.

—Mobile founded by d'Iberville, with a colony of Canadian French.

—The Massachusetts Assembly contend with the royal governor for their former liberties. Their charter is still further restricted.

1703—Delaware (called The Territories) is separated from Pennsylvania.

1706—The French and Spaniards invade Carolina. They are repulsed with loss.

1707—Detroit, Michigan, settled by the French.

1710—Many thousand Germans, from the Palatinate, settle in the colonies, from New York to the Carolinas.

1712—A war with the Tuscaroras, in North Carolina, results in their complete defeat. They unite with the Iroquois.

1713—Crown Point, on Lake Champlain, and Niagara, are fortified by the French.

The Peace of Utrecht closes Queen Anne's war.

1715—In a war with the Yamassees, South Carolina loses four hundred inhabitants, but expels the Indians.

1716—Natchez founded by the French.

1717—Father Rasles, a Jesuit Missionary at Norridgwock, Maine, excites the Indians to drive out the English from Maine. He is the last of the Jesuit missionaries, and is slain in the capture of Norridgwock, in August, 1724, by New England troops.

1718—New Orleans founded by the French.

1720—A royal government supersedes the proprietary, in Carolina.

1723—First settlement made in Vermont.

1729—North and South Carolina erected into separate governments.

1732—A company in England prepare to settle Georgia.

1733—General Oglethorpe, with a colony, arrives in Georgia.

1736—Many Scotch Highlanders and Germans settle in Georgia.

1738—Insurrection of the slaves in South Carolina.

1740—General Oglethorpe invades Florida. He is repulsed. The Moravians settle in Pennsylvania.

1742—The Spanish invade Georgia, but retire with loss.

1744—"The Old French War" begins.

1745—The New England colonies raise a force and capture Louisburg, the "Gibraltar of America," from the French.

1748—The treaty of peace of Aix la Chapelle, restores Louisburg to France, to the great disgust of the colonies.

1750—The French and English both claim the Mississippi and Ohio valleys. Lawrence Washington, and others form the Ohio Company. Parliament grants it six hundred thousand acres of land on, or near, the Ohio river. The French dispute the possession, and threaten summary ejectment.

1753—George Washington is sent by Governor Dinwiddie, of Virginia, as an envoy to the French and Indians in Ohio.

1754—The French build Fort Du Quesne (now Pittsburgh). Washington defeats a French party headed by De Jumonville. The French are reinforced by fifteen hundred men, and Washington with four hundred men, after defending himself one day, capitulates.

—The British government, in expectation of a speedy war with France, recommend the colonies to form a Union for defense. Delegates from seven colonies meet at Albany, June 14, 1754. A plan of Union was drawn up by Benjamin Franklin. Connecticut rejected it as giving too much power to the English government. Parliament rejected it as giving too much to the colonies.

1755—Braddock's defeat in Pennsylvania.

—War with the Cherokees, in Tennessee.

—The French, under Dieskau, are defeated at Lake George.

1756—War was formally declared, two years after it actually begun.

1757—Fort William Henry, being attacked by an overwhelming force of French and Indians, surrenders, and the garrison are massacred by the Indians.

1758—July 6, Louisburg captured by the English under General Amherst.

—General Abercrombie is repulsed in an attack on Fort Ticonderoga, and Lord Howe, much liked in the colonies, is killed.

—August 27, Fort Frontenac, now Kingston, Canada, taken by Col. Bradstreet.

—November 25, Fort Du Quesne taken by the English, under General Forbes.

1759—General Wolfe, commander of the English, and General Montcalm, of the French army, meet in battle on the Heights of Abraham, near Quebec. Wolfe's army conquered, but both commanders lost their lives. Quebec capitulated.

George III. ascends the throne of England.

1760—September 8th, Canada surrendered to the English.

Massachusetts vigorously opposes "Writs of Assistance" (search warrants for goods that had not paid the duty).

1761—The Cherokees reduced to peace by Colonel Grant.

In October, Mr. Pitt, the English Prime Minister, always a friend of the colonies, resigns.

CHAPTER IV.

CHRONOLOGICAL HISTORY OF THE ANGLO-AMERICAN COLONIES, FROM 1763 TO JULY 4, 1776.

In February, 1763, The Peace of Paris, concluded between the governments of England and France, closed the war in America that had been so painful to the colonies from the part which the French persuaded the Indians to take in it. But, while the colonies bore a large part of the burden, (they had raised \$16,000,000 of its expenses, and had lost, in battle or in hospital, 30,000 men,) of a war that drove the French out of all their possessions in Canada and east of the Mississippi river; they were, at the same time, trained to act in concert, which paved the way for a future confederation, and hardened them to war. Being called into battle under celebrated English commanders, and to fight side by side with European veterans, they had opportunity to learn the art of war, as well as to compare themselves with the soldiers of the mother country and of France. This comparison was favorable to them, and inspired them with confidence in their own ability.

The fatal blunders of Gen. Braddock, and the skill and bravery of Washington and his provincial troops which, alone, saved the British army from entire annihilation in the Pennsylvania wilderness, was never forgotten. They felt themselves, even as raw militia, equal to the best European soldiers, when on their own ground.

It was a great mistake of the Home Government to put on an arrogant tone with them just when they had learned their strength. In the year 1764 that government, plunged in debt by its long wars with the continental powers, (it amounted to \$700,000,000,) and on the plea that the colonies who had been protected, should bear a fair share of the pecuniary burden, determined to impose taxes on them. Previously they had restricted their commerce to English ports, had laid duties on various imports, and assumed authority to change the governments of the colonies without their consent. This had produced much dissatisfaction, but had no further immediate effect than to lead them to remonstrance, evasion, or legal resistance. The proposal to lay *internal taxes* was quite another affair. Submission to this they thought would be fatal to their liberties. They resisted with general moderation, respectfully, but with determined resolution.

The British ministry were provoked by this resistance, holding it to be rebellion; and determined to put it down, by force, if need be. The struggle continued for ten years with growing obstinacy on either side. The home government was exceedingly obtuse or it would have either proceeded to extremes at once or yielded the whole case, as it finally determined to do in 1776, when it was too late. In this period of lively discussion, and of organization to secure the strength of union in resistance, the separate colonies were gradually moulded into a nation, imbued with common sympathies and ideas, and moved by common interests. They had not thought of independence during all this preliminary struggle. The war had lasted a year before that idea became prominent. That was not, even then, regarded as an *end*, so much as an indispensable *means* to secure their liberties. Thus we see that no taint of *conspiracy* attached to the revolutionary struggle. The colonies were thoroughly loyal, until loyalty came to mean loss of liberty, and the rights enjoyed by Englishmen in England. The exercise of arbitrary power they felt it right to resist; but they exhausted all other modes and means of resistance before they resorted to arms.

They did not even make a first attack. They waited till armies were sent to subjugate them, and until those armies commenced the attack; then the whole country rose in the stern resolve to right their wrongs.

1763.

The Peace of Paris was signed in February of this year. July 7th began “Pontiac’s War,” with the simultaneous attack on all the forts in the peninsula of Michigan, and the whole frontier of Pennsylvania and Virginia. Pontiac was an Ottawa chief, of great ability, and had drawn many Indian tribes into the war. It was virtually ended in September of the same year.

1764.

April 5.—“The Sugar Act” was passed in the English Parliament. This levied duties on coffee, pimento, French and East India goods, and forbade iron and lumber to be exported except to England. It was for the avowed purpose of raising a revenue, and raised instead a storm of indignation. The Massachusetts House of Representatives said: “If we are taxed and not represented, we are slaves.”

1765.

Feb. 27—Was passed the obnoxious Stamp Act. Also the military law was made to authorize the ministry to send any number of troops to the colonies, for whom the colonists were to find “quarters, firewood, bedding, drink, soap, and candles.”

May 29—Patrick Henry introduced five “Resolutions” into the Virginia House of Burgesses, claiming for Virginians the rights of British subjects; that only their own representatives could lawfully tax them; declaring the attempt to vest that power in any other hands subversive of both British and American liberty.

Sept. 1—The Pennsylvania Assembly passed similar resolutions.

Oct. 7—A congress of delegates, or committees, from nine colonies, met in New York. It was the first Continental Congress. Its spirit harmonized with that of Massachusetts, Virginia, and Pennsylvania, and its “Declaration of Rights and Grievances” was cordially approved by all the colonial assemblies.

1766.

Mar. 29—The Stamp Act could not be enforced in America, and it was repealed by Parliament; but the repeal was followed by another act asserting the power and right of Parliament “to bind the colonies in all cases whatsoever.” Thus yielding the *thing* and asserting the *principle*, they both strengthened the colonies by a sense of their power, and exasperated them by a total denial of their Declaration of Rights.

May—Yet their triumph filled the colonies with joy, and gratitude toward the King and their English friends. Virginia voted the King a statue.

1767.

June—But their exultation was short-lived. In this year taxes were levied on tea, paints, paper, glass, and lead. This led to the determination, on the part of the colonies, to pay no more taxes or duties at all.

Oct. 28—The Governor of Massachusetts having refused to call the General Court (or legislative body of the colony) together, a public meeting was held and resolutions passed to encourage “economy, industry, and manufactures,” and a committee appointed to get subscribers to an agreement to discontinue the importation of British goods not absolute necessities. This was imitated in other colonies.

1768.

Feb. 11—Massachusetts General Court issues a general circular to other colonial assemblies, inviting coöperation for the defense of colonial rights. Those bodies mostly gave cordial replies. This General Court having July—been dissolved, the new one being called on to rescind this circular, refused by a vote of ninety-two to seventeen. These seventeen became the butt of public scorn.

Sept. 12—Four regiments of British troops ordered to Boston.

” 22—The governor had been desired, by a Boston “town meeting,” to call a General Court. He refused, and the “meeting” issued a call for delegates from the towns to a colonial convention. More than a hundred towns were represented in the convention meeting this day. Their main effort was to vindicate the ” 28—colony from the charge of a rebellious spirit. The day after this meeting adjourned two regiments of British troops arrived in Boston.

1769.

Jan’y—Parliament severely censures all the colonial acts, and directs that persons arrested in the colonies for treason be sent to England, to be tried.

May—The Virginia Assembly take strong ground against this, and agree with the Massachusetts Convention.

” 31—The Massachusetts General Court assembles, but refuses to transact business in the midst of an armed force. After long contest with them the Governor adjourned them to Cambridge.

June 13—Required to support the troops, they respectfully and temperately, but firmly, refuse, and decline to vote any supplies for government till their grievances are redressed.

July 15—All the colonies manifest the same spirit.

1770.

Mar. 5—The indignation of Boston at the presence of troops breaks out into an affray. The troops fire on the citizens. Three are killed and

five wounded. It was called the “Boston Massacre.”

April—British Parliament repeals the last tax on all articles but tea. The non-importation agreements had exerted a great influence in promoting economy, encouraging manufactures, and bringing “home-made” into fashion. The graduating class in Harvard College took their degrees in “home-spun” this year.

1771.

Throughout this year the same disputes were maintained between the governors and colonial legislatures as formerly; but as the home government did not push the struggle to an issue, there was comparative quiet, but no yielding.

1772.

June 10—The *Gaspe*, a British revenue schooner, burned by a party from Providence, Rhode Island. Parliament offers six hundred pounds sterling and a pardon to any accomplice who will confess and give up the offenders. They were well known by colonists, but no legal evidence could ever be obtained.

Oct. 28—A committee appointed in Boston to state the rights of the colonists and correspond with other sections on this subject. They publish an address, which is extensively circulated. Franklin, agent for the colonies in England, republishes it there.

1773.

March—This address led to the first measures for a political union of the colonies.

July—The British ministry attempt to import tea into the colonies.

Oct. 2—The people of Philadelphia declare that any one who shall “aid or abet in unloading, receiving, or vending the tea is an enemy to his country.”

Nov. 3—The Boston consignees required by the people to resign. They refuse.

” 5-19—A legal town meeting takes them in hand, and at length they resign.

Dec’r—Three ships loaded with tea having arrived, the people labor for near a month to have them sent back. Not succeeding, the cargoes are all emptied into the sea.

1774.

Mar. 25—Parliament retaliated by the “Boston Port Bill,” closing it to commerce.

May 13-20—Meetings held in the principal cities to consider the state of affairs, recommended the assembly of a Continental Congress. This body was appointed in all the provinces but Georgia. There were fifty-three delegates.

Sept. 4—These assemble at Philadelphia, and Peyton Randolph, of Virginia, is chosen President. They publish a “Declaration of Colonial Rights.” They agree on fourteen articles as the basis of an “American Association” to support these rights. This body was henceforth the real government, all their directions being obeyed by the people. They completed the organization of the Union and took preliminary measures for defense in case of attack.

1775.

Feb. 1—Lord Chatham introduced a bill in Parliament which might have accommodated all differences, but it was treated with great discourtesy. Parliament determines to humble and subdue the colonies.

April 19—Battle of Lexington. General Gage sends eight hundred British troops to destroy some colonial military stores at Concord, twenty miles from Boston. The “minute men” assembled at Lexington, are fired on and dispersed. The troops march to Concord,

destroy the stores, and hastily retreat before the gathering minute men, who assail them on all sides. They would have been completely destroyed but for a timely reinforcement at Lexington of nine hundred men and two cannon. The loss of British killed and wounded was nearly three hundred; of the provincials eighty-five. Boston is immediately beleaguered by some twenty thousand minute men.

” 22—Massachusetts Legislature assembles. It sends depositions, proving that the soldiers fired first, to England, with an address to the English people, declaring that they will “die or be free.” This body voted a levy of thirteen thousand men for the protection of the colony.

May 10—The second Continental Congress assembled at Philadelphia.

Colonels Ethan Allen and Benedict Arnold surprise the fortress of Ticonderoga, on Lake George, New York. Its small force of three officers and forty-four privates cannot defend it, and they surrender without fighting. Crown Point, on Lake Champlain, is occupied without resistance.

Peyton Randolph again chosen President of Congress.

” 24—Peyton Randolph being called home, John Hancock, of Massachusetts, is chosen President of Congress.

” 25—Generals Howe, Clinton, and Burgoyne, with large British reinforcements, arrived at Boston.

June 15—George Washington unanimously chosen commander-in-chief of the Continental forces.

” 17—The battle of Bunker Hill (or Breed’s Hill), near Boston. The British were twice repulsed, with great loss, when the ammunition of the Americans failing, they retreated in safety. British loss over one thousand; American, four hundred and fifty. British forces engaged, three thousand; American, less than fifteen hundred. The British commander burned Charlestown during the battle. General Warren, American, was killed.

” 23—Congress issue bills of credit for \$2,000,000.

” 30—Articles of War are agreed to in Congress.

July 8—A last petition to the King is sent by Richard Penn, grandson of William Penn.

” 17—Another million dollars in bills of credit is issued. The liability for these was distributed among the Colonies.

” 26—Benjamin Franklin appointed first Postmaster General.

Aug. 30—General Schuyler embarks on Lake Champlain, for an expedition against Canada. He leaves the command with General Montgomery. Early in September General Arnold starts with eleven hundred men to Canada by Maine.

Sept. 24—Ethan Allen is taken prisoner, near Montreal.

Oct. 18—Falmouth (now Portland, Maine) burned by the British.

” 22—Peyton Randolph, of Virginia, died. He was the first President of Congress.

Nov. 3—Montgomery captures St. Johns, Canada.

” 13—Montreal surrendered to the Americans under Montgomery.

” 20—\$3,000,000 more in bills of credit issued by Congress, payable in eight years.

Dec. 7—Lord Dunmore, British Governor of Virginia, defeated near Norfolk, Virginia.

” 13—A navy of thirteen vessels created by Congress. Letters of marque and reprisal granted.

” 21—The British Parliament pass a bill declaring all American vessels and goods, and those of all persons trading with them, a lawful prize, and authorizing the impressment of American sailors into the royal navy, where they might be required to fight against their own cause and friends.

” 31—General Montgomery and Colonel Arnold make an unsuccessful attack on Quebec. Montgomery is killed, Arnold wounded, and four hundred men killed, wounded, or taken prisoners. Arnold withdrew, but kept Quebec blockaded through the winter.

1776.

Jan. 1—Lord Dunmore, Royal Governor of Virginia, ravages the coast and burns Norfolk, but is obliged to fly to Bermuda.

” 20—Georgia prepares to join the other twelve colonies.

Feb. 4—McIntosh, with an American force, destroys several vessels loading for England, near Savannah, Georgia.

” 17—Four millions more of paper money issued by Congress.

March 4—Washington fortifies Dorchester Heights, overlooking Boston, which renders it untenable by the British.

” 10—The inhabitants and merchants of Boston plundered of their lighter property by the British army.

” 17—The British embark for Halifax, and Washington occupies the town.

” 18—Sir Archibald Campbell sails into Boston, and his whole force of seventeen hundred men are taken prisoners.

” 23—Congress declares all British vessels a lawful prize.

April 26—Washington removes his army to New York.

May 3—Sir Peter Parker, with ten ships of war and seven regiments, joins the force from Boston under General Clinton, at Cape Fear.

” 15—Congress declared that all authority under the British crown ought to be totally suppressed and government conducted by colonial representatives alone. This was only an expression of their sense of the danger to their interests and liberties of allowing British agents to act.

June 7—Richard Henry Lee, of Virginia, moved the Declaration of Independence.

” 8—American army in Canada, under General Sullivan, make an unsuccessful attack on the enemy. They are pressed by superior numbers, and retreat in good order, though with a loss of one thousand men prisoners, out of Canada, losing all their conquests.

” 11—Congress appointed Thomas Jefferson, John Adams, Benjamin Franklin, and Robert R. Livingston a committee to prepare the Declaration of Independence.

” 28—British fleet attack Fort Moultrie, on Sullivan’s Island, near Charleston, South Carolina, but were defeated with loss of two hundred men, one vessel, and death of Lord Campbell, the ex-royal Governor.

July 4—*Declaration of Independence* by the Congress at Philadelphia.

CHAPTER V.

FORMATION OF THE ORIGINAL UNION.

“The Boston Tea Party” provoked the English Parliament into passing “The Boston Port Bill,” closing that city to commerce. This act led to immediate measures for assembling delegates, representing twelve colonies in North America (Georgia, only, was not represented), for the purpose of consultation on the measures required for the protection of colonial rights. This body, called “The Continental Congress,” assembled in Philadelphia, September 5, 1774. It drew up a “Declaration of Colonial Rights;” and, for the purpose of enforcing them, agreed to accept as a basis of common action fourteen articles, known as “The American Association.”

This was the origin of the American Union. Though it did not assume organic political power, and its ordinances were only advisory in form, it was better obeyed than most governments. Arrangements were made for another Congress in May following. Its day of meeting was hastened by the battle of Lexington, and it immediately proceeded to assume the powers of a General Government, at the request of *some* of the provincial Legislatures, and with the tacit consent of *all*. It received its authority from its representative character; from the imperious necessity of a head to organize and direct; and from the voluntary obedience rendered to its mandates. It performed all the functions of a government until all prospect of reconciliation with Great Britain was lost, when, June 11, 1776, a

committee was appointed to prepare “A Declaration of Independence.” This was adopted and signed July 4, 1776.

On the 12th of July, a committee of one from each State reported on the terms of confederation, and the powers of Congress; but differences of opinion, and the pressure of military affairs prevented action on it. On the 9th of September, 1776, the name “United Colonies of America” was discarded for that of “United States of America.” Georgia had appointed delegates on the 4th of July, so that there were “Thirteen United States.”

On Saturday, November 15, 1777, “Articles of Confederation and Perpetual Union of the United States of America” were agreed to in Congress, and sent to the States for approval. Eight of the State Legislatures had ratified these articles on the 9th of July, 1778; one ratified July 21st; one July 24th; one November 26th, of this year; one February 22d, 1779; and the last, March 1, 1781.

This document was little more than a digest of the powers before assumed by Congress, and tacitly acknowledged by the States from the commencement of the war. This, now legal, bond had existed before as a free, though unspoken, submission to the dictates of prudence and patriotism.

CHAPTER VI.

DECLARATION OF INDEPENDENCE.

This immortal state paper—“the general effusion of the soul of the country” at the imperiled state of liberty, and of the rights of Englishmen—was given to the world on the 4th of July, 1776. The war of the Revolution had been raging more than a year, and many of the leading minds of the country had been actuated by the hope that their wrongs would be redressed, and the mother country and her colonies reconciled. The course of events had convinced them, however, that there would be no redress, and that no reconciliation was possible other than that based on a slavish surrender of rights and privileges dear to free men.

And hence a more decided course was approved by the people, and finally adopted by their delegates in Congress, on the 2d day of July, 1776. This resolution changed the old thirteen British colonies into free and independent States. And now it remained to set forth the reason for this act, together with the principles that should govern this new people. By this declaration the new Republic, as it took its place among the powers of the world, proclaimed its faith in the truth, reality, and unchangeableness of freedom and virtue. And the astonished nations, as they read that all men are created equal, started out of their lethargy, like those who have been exiled from childhood when they suddenly hear the dimly remembered accents of their mother tongue.

THE DECLARATION OF INDEPENDENCE.

When, in the course of human events, it becomes necessary for one people to dissolve the political bands which have connected them with another, and to assume among the powers of the earth, the separate and equal station to which the laws of nature and of nature's God entitle them, a decent respect to the opinions of mankind requires that they should declare the causes which impel them to the separation.

We hold these truths to be self-evident, that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness. That to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed; that, whenever any form of government becomes destructive of these ends, it is the right of the people to alter or to abolish it, and to institute a new government, laying its foundation on such principles, and organizing its powers in such form, as to them shall seem most likely to effect their safety and happiness. Prudence, indeed, will dictate that governments long established should not be changed for light and transient causes; and, accordingly, all experience hath shown that mankind are more disposed to suffer, while evils are

sufferable, than to right them by abolishing the forms to which they are accustomed. But when a long train of abuses and usurpations, pursuing invariably the same object, evinces a design to reduce them under absolute despotism, it is their right, it is their duty to throw off such government, and to provide new guards for their future security. Such has been the patient sufferance of these colonies, and such is now the necessity which constrains them to alter their former systems of government. The history of the present King of Great Britain is a history of repeated injuries and usurpations, all having in direct object the establishment of an absolute tyranny over these States. To prove this, let facts be submitted to a candid world:

He has refused his assent to laws the most wholesome and necessary for the public good.

He has forbidden his Governors to pass laws of immediate and pressing importance, unless suspended in their operation till his assent should be obtained; and when so suspended, he has utterly neglected to attend to them.

He has refused to pass other laws for the accommodation of large districts of people, unless those people would relinquish the right of representation in the legislature; a right inestimable to them, and formidable to tyrants only.

He has called together legislative bodies at places unusual, uncomfortable, and distant from the depository of their public records, for the sole purpose of fatiguing them into compliance with his measures.

He has dissolved representative houses repeatedly for opposing, with manly firmness, his invasions on the rights of the people.

He has refused, for a long time after such dissolution, to cause others to be elected; whereby the legislative powers, incapable of annihilation, have returned to the people at large for their exercise; the State remaining, in the

meantime, exposed to all the danger of invasion from without, and convulsions within.

He has endeavored to prevent the population of these States; for that purpose, obstructing the laws for naturalization of foreigners; refusing to pass others to encourage their migration hither, and raising the conditions of new appropriations of lands.

He has obstructed the administration of justice, by refusing his assent to laws for establishing judiciary powers.

He has made judges dependent on his will alone, for the tenure of their offices, and the amount and payment of their salaries.

He has erected a multitude of new offices, and sent hither swarms of officers to harass our people, and eat out their substance.

He has kept among us, in times of peace, standing armies, without the consent of our legislature.

He has affected to render the military independent of, and superior to, the civil power.

He has combined with others, to subject us to a jurisdiction foreign to our constitution, and unacknowledged by our laws; giving his assent to their acts of pretended legislation.

For quartering large bodies of armed troops among us:

For protecting them, by a mock trial, from punishment for any murders which they should commit on the inhabitants of these States:

For cutting off our trade with all parts of the world:

For imposing taxes on us without our consent:

For depriving us, in many cases, of the benefits of trial by jury:

For transporting us beyond seas to be tried for pretended offenses:

For abolishing the free system of English laws in a neighboring province, establishing therein an arbitrary government, and enlarging its boundaries, so as to render it at once an example and fit instrument for introducing the same absolute rule into these colonies:

For taking away our charters, abolishing our most valuable laws, and altering fundamentally, the powers of our government:

For suspending our own legislatures, and declaring themselves invested with power to legislate for us in all cases whatsoever.

He has abdicated government here, by declaring us out of his protection, and waging war against us.

He has plundered our seas, ravaged our coasts, burnt our towns, and destroyed the lives of our people.

He is, at this time, transporting large armies of foreign mercenaries to complete the work of death, desolation, and tyranny, already begun, with circumstances of cruelty and perfidy scarcely paralleled in the most barbarous ages, and totally unworthy the head of a civilized nation.

He has constrained our fellow-citizens, taken captive on the high seas, to bear arms against their country, to become the executioners of their friends and brethren, or to fall themselves by their hands.

He has excited domestic insurrections amongst us, and has endeavored to bring on the inhabitants of our frontiers, the merciless Indian savages, whose known rule of warfare is an undistinguished destruction of all ages, sexes, and conditions.

In every stage of these oppressions, we have petitioned for redress, in the most humble terms; our repeated petitions

have been answered only by repeated injury. A prince, whose character is thus marked by every act which may define a tyrant, is unfit to be the ruler of a free people.

Nor have we been wanting in attention to our British brethren. We have warned them from time to time, of attempts made by their Legislature to extend an unwarrantable jurisdiction over us. We have reminded them of the circumstances of our emigration and settlement here. We have appealed to their native justice and magnanimity, and we have conjured them, by the ties of our common kindred, to disavow these usurpations, which would inevitably interrupt our connections and correspondence. They, too, have been deaf to the voice of justice and consanguinity. We must, therefore, acquiesce in the necessity which denounces our separation, and hold them, as we hold the rest of mankind, enemies in war, in peace, friends.

We, therefore, the representatives of the UNITED STATES OF AMERICA, in GENERAL CONGRESS assembled, appealing to the Supreme Judge of the World for the rectitude of our intentions, do, in the name, and by the authority of the good people of these colonies, solemnly publish and declare: That these United Colonies are, and of right ought to be, FREE AND INDEPENDENT STATES; that they are absolved from all allegiance to the British crown, and that all political connection between them and the State of Great Britain, is, and ought to be, totally dissolved; and that, as FREE AND INDEPENDENT STATES, they have full power to levy war, conclude peace, contract alliances, establish commerce, and to do all other acts and things which INDEPENDENT STATES may of right do. And, for the support of this declaration, and in a firm reliance on the protection of DIVINE PROVIDENCE, we mutually pledge to each other our lives, our fortunes, and our sacred honor.

The foregoing declaration was, by order of Congress,
engrossed, and signed by the following members:

JOHN HANCOCK.

New Hampshire.

JOSIAH BARTLETT,
WILLIAM WHIPPLE,
MATTHEW THORNTON.

Rhode Island.

STEPHEN HOPKINS,
WILLIAM ELLERY.

Connecticut.

ROGER SHERMAN,
SAMUEL HUNTINGTON,
WILLIAM WILLIAMS,
OLIVER WOLCOTT.

New York.

WILLIAM FLOYD,
PHILIP LIVINGSTON,
FRANCIS LEWIS,
LEWIS MORRIS.

New Jersey.

RICHARD STOCKTON,
JOHN WITHERSPOON,
FRANCIS HOPKINSON,

JOHN HART,
ABRAHAM CLARK.

Pennsylvania.

ROBERT MORRIS,
BENJAMIN RUSH,
BENJAMIN FRANKLIN,
JOHN MORTON,
GEORGE CLYMER,
JAMES SMITH,
GEORGE TAYLOR,
JAMES WILSON,
GEORGE ROSS.

Massachusetts Bay.

SAMUEL ADAMS,
JOHN ADAMS,
ROBERT TREAT PAINE,
ELBRIDGE GERRY.

Delaware.

CÆSAR RODNEY,
GEORGE REED,
THOMAS M'KEAN.

Maryland.

SAMUEL CHASE,
WILLIAM PACA,

THOMAS STONE,
CHARLES CARROLL, of Carrollton.

Virginia.

GEORGE WYTHE,
RICHARD HENRY LEE,
THOMAS JEFFERSON,
BENJAMIN HARRISON,
THOMAS NELSON, JUN.,
FRANCIS LIGHTFOOT LEE,
CARTER BRAXTON.

North Carolina.

WILLIAM HOOPER,
JOSEPH HEWES,
JOHN PENN.

South Carolina.

EDWARD RUTLEDGE,
THOMAS HEYWOOD, JUN.,
THOMAS LYNCH, JUN.,
ARTHUR MIDDLETON.

Georgia.

BUTTON GWINNETT,
LYMAN HALL,
GEORGE WALTON.

CHAPTER VII.

ARTICLES OF CONFEDERATION AND PERPETUAL UNION BETWEEN THE STATES.

*To all whom these Presents shall come, We, the undersigned Delegates of the States affixed to our names, send greeting—*Whereas, the Delegates of the United States of America, in Congress assembled, did, on the 15th day of November, in the year of our Lord 1777, and in the Second Year of the Independence of America, agree to certain Articles of Confederation and Perpetual Union between the States of New Hampshire, Massachusetts Bay, Rhode Island and Providence Plantations, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina, and Georgia, in the words following, viz.:

Articles of Confederation and Perpetual Union between the States of New Hampshire, Massachusetts Bay, Rhode Island and Providence Plantations, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina, and Georgia.

ARTICLE 1. The style of this Confederacy shall be “The United States of America.”

ART. 2. Each State retains its sovereignty, freedom, and independence, and every power, jurisdiction, and right, which is not by this confederation expressly delegated to the United States in Congress assembled.

ART. 3. The said States hereby severally enter into a firm league of friendship with each other, for their common defense, the security of their liberties, and their mutual and general welfare, binding themselves to assist each other against all force offered to, or attacks made upon them, or any of them, on account of religion, sovereignty, trade, or any other pretense whatever.

ART. 4. The better to secure and perpetuate mutual friendship and intercourse among the people of the different States in this Union, the free inhabitants of each of these States—paupers, vagabonds, and fugitives from justice excepted—shall be entitled to all privileges and immunities of free

citizens in the several States; and the people of each State shall have free ingress and egress to and from any other State, and shall enjoy therein all the privileges of trade and commerce, subject to the same duties, impositions, and restrictions, as the inhabitants thereof respectively, provided that such restriction shall not extend so far as to prevent the removal of property, imported into any State, to any other State of which the owner is an inhabitant; provided, also, that no imposition, duties, or restriction shall be laid by any State on the property of the United States, or either of them.

If any person guilty of or charged with treason, felony, or other high misdemeanor in any State, shall flee from justice, and be found in any of the United States, he shall, upon demand of the Governor, or executive power of the State from which he fled, be delivered up and removed to the State having jurisdiction of his offense.

Full faith and credit shall be given in each of these States, to the records, acts, and judicial proceedings of the courts and magistrates of every other State.

ART. 5. For the more convenient management of the general interest of the United States, Delegates shall be annually appointed, in such manner as the legislature of each State shall direct, to meet in Congress on the first Monday in November, in every year, with a power reserved to each State, to recall its Delegates, or any of them, at any time within the year, and to send others in their stead, for the remainder of the year.

No State shall be represented in Congress by less than two, nor more than seven members; and no person shall be capable of being a Delegate for more than three years in any term of six years; nor shall any person, being a Delegate, be capable of holding any office under the United States, for which he, or another for his benefit, receives any salary, fees or emolument of any kind.

Each State shall maintain its own Delegates in any meeting of the States, and while they act as members of the Committee of the States.

In determining questions in the United States in Congress assembled, each State shall have one vote.

Freedom of speech and debate in Congress shall not be impeached or questioned in any court or place, out of Congress, and the members of Congress shall be protected in their persons from arrests and imprisonments, during the time of their going to and from, and attendance on Congress, except for treason, felony, or breach of the peace.

ART. 6. No State, without the consent of the United States in Congress assembled, shall send an embassy to, or receive an embassy from, or enter into any conference, agreement, alliance, or treaty with any King, Prince, or State; nor shall any person holding any office of profit or trust under the United States, or any of them, accept of any present, emolument, office, or title of any kind whatever from any King, Prince, or Foreign State; nor shall the United States in Congress assembled, or any of them, grant any title of nobility.

No two or more States shall enter into any treaty, confederation, or alliance whatever between them, without the consent of the United States in Congress assembled, specifying accurately the purposes for which the same is to be entered into, and how long it shall continue.

No State shall lay any imposts or duties which may interfere with any stipulation in treaties, entered into by the United States in Congress assembled, with any King, Prince, or State, in pursuance of any treaties already proposed by Congress, to the Courts of France and Spain.

No vessels of war shall be kept up in time of peace by any State except such number only, as shall be deemed necessary by the United States in Congress assembled, for the defense of such State, or its trade; nor shall any body of forces be kept up by any State in time of peace, except such number only, as in the judgment of the United States in Congress assembled, shall be deemed requisite to garrison the forts necessary for the defense of such State; but every State shall always keep up a well regulated and disciplined militia, sufficiently armed and accoutred, and shall provide and have constantly ready for use, in public stores, a due number of field-pieces and tents, and a proper quantity of arms, ammunition, and camp equipage.

No State shall engage in any war without the consent of the United States in Congress assembled, unless such State be actually invaded by enemies, or shall have received certain advice of a resolution being formed by some

nation of Indians to invade such a State, and the danger is so imminent as not to admit of a delay, till the United States in Congress assembled can be consulted; nor shall any State grant commissions to any ships or vessels of war, nor letters of marque or reprisal, except it be after a declaration of war by the United States in Congress assembled, and then only against the Kingdom or State, and the subjects thereof, against which war has been so declared, and under such regulations as shall be established by the United States in Congress assembled, unless such State be infested by pirates, in which case vessels of war may be fitted out for that occasion, and kept so long as the danger shall continue, or until the United States in Congress assembled shall determine otherwise.

ART. 7. When land forces are raised by any State for the common defense, all officers of, or under the rank of colonel, shall be appointed by the legislature of each State respectively, by whom such forces shall be raised, or in such manner as such State shall direct, and all vacancies shall be filled up by the State which first made the appointment.

ART. 8. All charges of war, and all other expenses that shall be incurred for the common defense or general welfare, and allowed by the United States in Congress assembled, shall be defrayed out of a common treasury, which shall be supplied by the several States, in proportion to the value of all land within each State, granted to or surveyed for any person, as such land and the buildings and improvements thereon shall be estimated according to such mode as the United States in Congress assembled shall, from time to time, direct and appoint. The taxes for paying that proportion shall be laid and levied by the authority and direction of the legislatures of the several States, within the time agreed upon by the United States in Congress assembled.

ART. 9. The United States in Congress assembled shall have the sole and exclusive right and power of determining on peace and war, except in the cases mentioned in the sixth article—of sending and receiving ambassadors—entering into treaties and alliances: provided that no treaty of commerce shall be made whereby the legislative power of the respective States shall be restrained from imposing such imposts and duties on foreigners as their own people are subjected to, or from prohibiting the exportation or importation of any species of goods or commodities whatsoever—of establishing rules for deciding in all cases what captures on land or water

shall be legal, and in what manner prizes taken by land or naval forces in the service of the United States shall be divided or appropriated—of granting letters of marque and reprisal in times of peace—appointing courts for the trial of piracies and felonies committed on the high seas, and establishing courts for receiving and determining finally appeals in all cases of captures, provided that no member of Congress shall be appointed a judge of any of the said courts.

The United States in Congress assembled shall also be the last resort on appeal in all disputes and differences now subsisting, or that hereafter may arise, between two or more States concerning boundary, jurisdiction, or any other cause whatever, which authority shall always be exercised in the manner following: Whenever the legislative or executive authority or lawful agent of any State in controversy with another shall present a petition to Congress, stating the matter in question, and praying for a hearing, notice thereof shall be given by order of Congress, to the legislative or executive authority of the other State in controversy, and a day assigned for the appearance of the parties by their lawful agents, who shall then be directed to appoint, by joint consent, commissioners or judges to constitute a court for hearing and determining the matter in question; but if they cannot agree, Congress shall name three persons out of each of the United States, and from the list of such persons each party shall alternately strike out one, the petitioners beginning, until the number shall be reduced to thirteen, and from that number not less than seven nor more than nine names, as Congress shall direct, shall, in the presence of Congress, be drawn out by lot, and the persons whose names shall be so drawn, or any five of them, shall be commissioners or judges to hear and finally determine the controversy, so always as a major part of the judges who shall hear the cause shall agree in the determination; and if either party shall neglect to attend at the day appointed, without showing reasons which Congress shall judge sufficient, or, being present, shall refuse to strike, the Congress shall proceed to nominate three persons out of each State, and the Secretary of Congress shall strike in behalf of such party absent or refusing; and the judgment and sentence of the court to be appointed, in the manner above prescribed, shall be final and conclusive; and if any of the parties shall refuse to submit to the authority of such court, or to appear or defend their claim or cause, the court shall, nevertheless, proceed to pronounce sentence or judgment, which shall in like manner be final and decisive, the judgment

or sentence and other proceedings being in either case transmitted to Congress and lodged among the acts of Congress for the security of the parties concerned: provided that every commissioner, before he sits in judgment, shall take an oath, to be administered by one of the judges of the Supreme or Superior Court of the State where the cause shall be tried, “well and truly to hear and determine the matter in question, according to the best of his judgment, without favor, affection, or hope of reward:” provided also that no State shall be deprived of territory for the benefit of the United States.

All controversies concerning the private right of soil claimed under different grants of two or more States, whose jurisdictions, as they may respect such lands and the States which passed such grants, are adjusted, the said grants, or either of them, being at the same time claimed to have originated antecedent to such settlement of jurisdiction, shall, on the petition of either party to the Congress of the United States, be finally determined, as near as may be, in the same manner as is before prescribed for deciding disputes respecting territorial jurisdiction between different States.

The United States in Congress assembled shall also have the sole exclusive right and power of regulating the alloy and value of coin struck by their own authority, or by that of the respective States; fixing the standard of weights and measures throughout the United States; regulating the trade and managing all affairs with the Indians not members of any of the States—provided that the legislative right of any State within its own limits be not infringed or violated; establishing or regulating post offices from one State to another, throughout all the United States, and exacting such postage on the papers passing through the same as may be requisite to defray the expenses of the said office; appointing all officers of the land forces in the service of the United States, except regimental officers; appointing all the officers of the naval forces, and commissioning all officers whatever in the service of the United States; making rules for the government and regulation of the said land and naval forces, and directing their operations.

The United States in Congress assembled shall have authority to appoint a committee to sit in the recess of Congress, to be denominated “A Committee of the States,” and to consist of one delegate from each State,

and to appoint such other committees and civil officers as may be necessary for managing the general affairs of the United States under their direction; to appoint one of their number to preside—provided that no person be allowed to serve in the office of president more than one year in any term of three years; to ascertain the necessary sums of money to be raised for the service of the United States, and to appropriate and apply the same for defraying the public expenses; to borrow money or emit bills on the credit of the United States, transmitting every half year to the respective States an account of the sums of money so borrowed or emitted; to build and equip a navy; to agree upon the number of land forces, and to make requisitions from each State for its quota, in proportion to the number of white inhabitants in such State, which requisition shall be binding; and thereupon the legislatures of each State shall appoint the regimental officers, raise the men, and clothe, arm and equip them in a soldierlike manner, at the expense of the United States; and the officers and men so clothed, armed, and equipped, shall march to the place appointed, and within the time agreed on by the United States in Congress assembled; but if the United States in Congress assembled shall, on consideration of circumstances, judge proper that any State should not raise men, or should raise a smaller number than its quota, and that any other State should raise a greater number of men than the quota thereof, such extra number shall be raised, officered, clothed, armed and equipped in the same manner as the quota of such State, unless the legislature of such State shall judge that such extra number cannot be safely spared out of the same, in which case they shall raise, officer, clothe, arm and equip as many of such extra number as they judge can be safely spared; and the officers and men so clothed, armed and equipped shall march to the place appointed, and within the time agreed on by the United States in Congress assembled.

The United States in Congress assembled shall never engage in a war, nor grant letters of marque and reprisal in time of peace, nor enter into any treaties or alliances, nor coin money, nor regulate the value thereof, nor ascertain the sums and expenses necessary for the defense and welfare of the United States, or any of them, nor emit bills, nor borrow money on the credit of the United States, nor appropriate money, nor agree upon the number of vessels of war to be built or purchased, or the number of land or sea forces to be raised, nor appoint a commander-in-chief of the army or navy, unless nine States assent to the same; nor shall a question on any

other point, except for adjourning from day to day, be determined unless by the votes of a majority of the United States in Congress assembled.

The Congress of the United States shall have power to adjourn to any time within the year, and to any place within the United States, so that no period of adjournment be for a longer duration than the space of six months; and shall publish the journal of their proceedings monthly, except such parts thereof relating to treaties, alliances, or military operations, as in their judgment require secrecy; and the yeas and nays of the delegates of each State on any question shall be entered on the journal when it is desired by any delegate; and the delegates of a State, or any of them, at his or their request, shall be furnished with a transcript of the said journal, except such parts as are above excepted, to lay before the legislatures of the several States.

ART. 10. The committee of the States, or any nine of them, shall be authorized to execute, in the recess of Congress, such of the powers of Congress as the United States in Congress assembled, by the consent of nine States, shall, from time to time, think expedient to vest them with; provided that no power, be delegated to the said committee, for the exercise of which, by the Articles of Confederation, the voice of nine States, in the Congress of the United States assembled is requisite.

ART. 11. Canada, acceding to this confederation and joining in the measures of the United States, shall be admitted into, and entitled to all the advantages of, this union; but no other colony shall be admitted into the same unless such admission be agreed to by nine States.

ART. 12. All bills of credit emitted, moneys borrowed, and debts contracted by or under the authority of Congress, before the assembling of the United States, in pursuance of the present confederation, shall be deemed and considered as a charge against the United States, for payment and satisfaction whereof, the said United States and the public faith are solemnly pledged.

ART. 13. Every State shall abide by the determinations of the United States in Congress assembled on all questions which, by this confederation, are submitted to them. And the articles of this confederation shall be inviolably observed by every State, and the union shall be perpetual; nor shall any alteration at any time hereafter be made in any of them, unless

such alteration be agreed to in a Congress of the United States, and be afterwards confirmed by the legislatures of every State.

And whereas, It hath pleased the Great Governor of the World to incline the hearts of the legislatures we respectively represent in Congress to approve of and to authorize us to ratify the said Articles of Confederation and perpetual union: Know ye that we, the undersigned delegates, by virtue of the power and authority to us given for that purpose, do by these presents, in the name and in behalf of our respective constituents, fully and entirely ratify and confirm each and every of the said Articles of Confederation and Perpetual Union, and all and singular the matters and things therein contained. And we do further solemnly plight and engage the faith of our respective constituents, that they shall abide by the determinations of the United States in Congress assembled on all questions which, by the said confederation, are submitted to them; and that the articles thereof shall be inviolably observed by the States we respectively represent, and that the union shall be perpetual. In witness whereof we have hereunto set our hands in Congress. Done at Philadelphia, in the State of Pennsylvania, the ninth day of July, in the year of our Lord 1778, and in the third year of the Independence of America.

CHAPTER VIII.

THE REVOLUTIONARY WAR FROM 1776 TO 1783.

July 4—The British troops had been driven from Boston about the middle of March. From that time to the last of June no British soldiers had a foothold anywhere in the thirteen colonies. England had been preparing, however. The aid of German troops had been secured, and an expedition made ready. It was a fortunate respite, after a great success, and finding the mother country inexorable in her determination, in which to carefully consider the situation. That consideration had produced that noble protest of freemen against tyranny—The Declaration of Independence. It now remained to make it good by force of arms against a rich and powerful European empire, which was summoning its energies to the work of

subjugation. On the 28th of June General Howe landed the late garrison of Boston, and other troops, on Staten Island.

July 12—Lord Howe arrived from England; Gen. Clinton returned from his repulse at Fort Moultrie, several Hessian regiments soon after arrived, and the British force amounted to 24,000; Gen. Carleton was near Lake Champlain with 13,000 men. The forces under Washington did not amount to half as many, but the British had a salutary respect for American prowess, and were laboring to win the American leaders back by promises of pardon.

Aug. 27—The battle of Long Island. The Americans, 9,000 strong, are attacked by the British, 15,000 strong. The Americans are worsted, but hold their intrenched camp. Washington silently and safely retreats during the night. The Americans lost 1,600 in killed, wounded and prisoners. British killed and wounded, 400.

Sept. 1—General Howe sends General Sullivan (American, taken prisoner in the late battle), to Congress to discuss a compromise of the dispute between England and the Colonies. Benjamin Franklin, John Adams, and Edward Rutledge, are appointed to meet English commissioners. They meet on Staten Island, but can make no arrangements.

Sept. 15—British army takes possession of New York. General Washington's army being largely made up of militia, which come and go, he adopts "The Fabian Policy" of avoiding general engagements, keeping the enemy harrassed and in constant movement. This saved the American cause.

Sept. 26—Benjamin Franklin, Silas Deane, and Arthur Lee appointed commissioners to France.

Nov. 1—Henry Laurens, of South Carolina, chosen President of Congress.

Nov. 16—Fort Washington, at the north end of Manhattan Island, assaulted by the British, in force. The fort was taken with 2,000 prisoners. The British loss was 1,200 in killed and wounded.

Nov. 18—Americans evacuate Fort Lee, on the Hudson, above New York.

Nov. 28—Washington retreats across the Delaware into Pennsylvania.

Dec. 7—Gen. Lee disobeys the instructions of Washington and is taken prisoner by the British.

Dec. 8—A British naval force takes possession of Newport, Rhode Island.

Dec. 12—The British army being stationed along the Delaware, in New Jersey, Congress adjourns from Philadelphia to Baltimore.

Dec. 26-27—Washington suddenly crosses the Delaware and surprises Trenton. He captures 1,000 Hessians and six cannon, with a loss of four killed. In this year about 350 British merchant vessels had been taken by Americans.

1777.

Jan. 2—Washington having re-occupied Trenton, Lord Cornwallis marches a strong force to attack him.

Jan. 3—The American army silently retreat in the night and capture Princeton, with 300 prisoners. British loss in killed and wounded, 100. American loss about the same. General Mercer killed.

Feb. 6—Letters of Marque and Reprisal granted by the English against American commerce.

March 4—Congress returns to Philadelphia.

” 23—American stores destroyed at Peekskill, New York.

April 26—Danbury, Connecticut, burned by the British.

May 24—This outrage is retaliated by Colonel Meigs, of Connecticut, who lands on Long Island with 200 men, destroys twelve vessels, large quantities of provision and forage, takes ninety prisoners, and retreats without the loss of a man.

May 27—Button Gwinnett, of Georgia, one of the signers of the Declaration of Independence, is killed in a duel.

June 22—Gen. Howe evacuates New Brunswick, New Jersey, and retires in order to draw Washington into a battle. Washington advances till he penetrates the design of the enemy, when he retreats to a strong position and foils the British.

June 30—General Howe embarks 16,000 troops at Staten Island for Philadelphia. About this time the French Marquis De Lafayette, a youth of nineteen, arrived in America, with twelve other foreign officers, to aid the American cause.

July 1—British Gen. Burgoyne appears before Fort Ticonderoga.

” 5—Americans evacuate Ticonderoga.

” 7—Americans retreating from Ticonderoga, are defeated at Hubbardton.

” 7—United States frigate Hancock captured by three English vessels.

” 29—Burgoyne’s army, constantly victorious, reaches the Hudson.

Aug. 3—British Gen. St. Leger invests Fort Stanwix (Utica, New York).

” 6—American Gen. Herkimer defeated near Fort Stanwix. American loss 400. Gen. Herkimer killed.

” 16—Battle of Bennington, Vermont. A victory for the “Green Mountain Boys.” British lost 200 killed, 600 prisoners, 1,000 stand of arms, 1,000 swords, and four cannon. American loss fourteen killed and forty-two wounded. This turned the tide against Burgoyne.

” 22—Gen. Arnold raises the siege of Fort Stanwix. St. Leger loses his artillery, tents, and stores.

” 11—Washington’s army defeated by the British at the battle of the Brandywine, near Wilmington, Delaware. Washington retreats in good order.

” 18—Congress adjourns from Philadelphia to Lancaster, Pennsylvania.

” 19—Battle of Stillwater between Gates, American, and Gen. Burgoyne. Burgoyne held the field, but lost 500 men; Gates 300.

Sept. 16—Washington advances across the Schuylkill to attack the British, when a violent storm stops the conflict. The arms of the Americans are rendered unserviceable by the rain.

” 20—Gen. Wayne, surprised at Paoli, retreats with loss of 300 men.

” 26—The British enter Philadelphia.

Oct. 4—Battle of Germantown. Washington, with an inferior army, is again defeated. British loss 600. American loss over 1,000.

” 7—Battle of Saratoga. Burgoyne is defeated, and part of his camp with stores and ammunition, much needed by the Americans, captured. British loss 400. They retreated in the night.

” 15—Kingston, New York, burned by the British. They had taken forts Clinton and Montgomery, defending the river below, October 6th. This was an effort to aid Burgoyne, but it failed, being too late, and they retreated down the river.

” 17—Gen. Burgoyne surrenders his whole army to Gen. Gates. The prisoners amounted to 5,647. Burgoyne had lost about 4,000 since his capture of Ticonderoga. Thirty-five brass field-pieces and 5,000 stand of arms fell into the hands of the Americans. Washington, as commander-in-chief, had diminished his own army till it was much inferior to the British he was facing, to secure the success of the northern army against Burgoyne. This was the turning point of the war. Its immediate result was a treaty of alliance with France.

” 22—Count Donop, with 1,200 Hessians, attacks the American fort at Red Bank, below Philadelphia, and is repulsed by Colonel Green with 400 men. Donop is killed, and the British retire with a loss of 500 men and two vessels of war.

Nov. 15—“The Articles of Confederation” adopted by Congress.

” 16-18—Americans abandon Mud Island, and Fort Mercer, below Philadelphia.

Dec. 11—Washington establishes his army in winter quarters at Valley Forge. During this year American prisoners were treated with great cruelty at New York. General Gates, who had really succeeded in capturing Burgoyne only by the aid of Generals Schuyler and Arnold, intrigues against Washington. When this became known the general indignation killed the scheme.

1778.

The American cause was really gained by the war of the previous year. The Americans were so far unanimous, and so spirited, that the British had not been able to get a permanent hold on any part of the country, save what was occupied by their armies in force.

Jan. 30—A treaty of alliance is made with France.

Mar. 4—The American frigate Alfred, of twenty guns, captured by two English vessels of war.

” 20—The American Minister presented at the French Court.

Apr. 18—Count d’Estaing leaves Toulon, France, with a fleet to aid the Americans in the war.

Jun. 12—Philip Livingston, of New York, one of the signers of the Declaration of Independence, died.

” 17—The British Parliament having appointed three Commissioners, the Earl of Carlisle, Lord Auckland, and Governor Johnstone, to treat for peace with the colonies, on the basis of granting everything they had asked, except independence, Congress replies, refusing all intercourse unless the independence of the States were first recognized, and the English army withdrawn. Two years before, this would have been eagerly accepted. England had lost, at the beginning of this year, twenty thousand men, and 550 vessels, taken by American cruisers, worth twelve million dollars, and had spent one hundred million dollars on military armaments in America.

” 18—The English, afraid of being blockaded in the Delaware river, by the French fleet, evacuate Philadelphia.

Jun. 28—Battle of Morristown; Washington wins. The British retreat in the night. Lord Cornwallis commanded.

July 4-5—"The massacre of Wyoming" by the Indians, under Tory influence. About 400 troops, and most of the inhabitants killed.

Aug. 15—General Sullivan besieges the English in Newport.

" 28-29—Count d'Estaing, who was to have supported General Sullivan by a naval attack on Newport, Rhode Island, having suffered severe loss in an engagement with the English fleet, and withdrawn to Boston to refit, Sullivan retires, but is attacked by the British. He repulses them, and retreats from Rhode Island.

Dec. 29—Savannah, Geo., taken by the British.

1779.

The British direct their main efforts, this year, to the Southern States, and overrun Georgia and part of South Carolina.

Mar. 3—American force under Ashe surprised by Brigadier-General Prevost; loss 1,600.

May 2—Verplank's Point, on the Hudson river, surrenders to British forces.

" 10—Norfolk and Portsmouth taken and partially burned by the British. Stony Point, on the Hudson, evacuated by the Americans and occupied by the British.

" 12—Prevost makes an attempt on Charleston, South Carolina, but fails.

June 6—Patrick Henry, a distinguished patriot, died, aged 63.

" 20—Gen. Lincoln, American, attacks Prevost, at Stone River. He is repulsed, and Prevost retires to Georgia.

July 4—Governor Tryon makes a descent, in Connecticut, destroys the shipping at New Haven, and burns Fairfield, Norwalk, and Greenwich. He is called off

July 16—from this barbarous work by the alarm of Gen. Clinton at the attack of Gen. Wayne on Stony Point. It was a complete surprise. Sixty of the British were killed and 550 made prisoners. American loss, 100.

” 19—Major Lee (“Light Horse Harry”) captured the garrison at Paulus’ Hook (Jersey City). The British lost 30 killed, and 159 prisoners.

Aug. 29—Gen. Sullivan is sent with an army to punish the Indians for the massacre of Wyoming and Cherry Valley. He defeats them in a fight near Elmira, New York, and lays waste their country. He burned more than forty of their towns, and destroyed their provisions and crops.

Sept. 24—Paul Jones, in a desperate naval engagement with seven English vessels, on the coast of Scotland, captures two of the enemy’s vessels.

Oct. 9—The combined French and American forces make an attack on Savannah, Geo. They are repulsed with a loss of 1,000 men. Count Pulaski was killed.

Joseph Hewes, of N. C., Thomas Lynch, of S. C., and George Ross, of Pa., signers of the Declaration of Independence, died during this year.

1780.

Jan.—The British send a large force to capture Charleston, S. C., and overrun that State.

Feb. 11—British troops are landed on St. Johns Island, and the fleet blockades Charleston.

May 6—Fort Moultrie, being invested by sea and land, surrenders to the British.

” 12—Charleston surrendered by Gen. Lincoln.

” 29—Col. Tarleton surprises Buford, American, at Waxhaws. Buford is totally defeated. South Carolina is now treated as a royal province,

all opposition being overcome, for the present.

June 23—A sharp action between the British Generals Kniphausen and Clinton, with 6,000 troops, and Gen. Greene, with 1,500. The town of Springfield was burned, but Greene, taking a strong position, stopped the advance of the enemy, and he retired to Staten Island.

July 10—The Count de Rochambeau, with a fleet and 6,000 French troops, arrives at Newport, R. I. They are blockaded by the British.

Aug. 6—Col. Sumter gains a brilliant victory at Hanging Rock, S. C.

” 16—Battle of Camden, between Lord Cornwallis and Gen. Gates. The American army was superior in numbers (5,600; Cornwallis not much more than 2,000). Gates' army was largely composed of militia, which caught a panic at the first attack. The Americans lost 1,800 killed, wounded, and prisoners. British loss, 325.

” 18—Tarleton surprises and totally defeats Sumter.

Sept. 21—Major André, of the British army, arranges with Arnold for the surrender of the fortress of West Point, on the Hudson, to the British. The plot miscarries, Arnold escapes, and André is captured.

Oct. 2—Major André is hung as a spy.

” 7—The British commander, Ferguson, is defeated and killed by a body of American back-woodsmen, at Kings Mountain, South Carolina. 300 British killed and wounded, and 800 made prisoners.

John Hart, of New Jersey, one of the signers of the Declaration of Independence, died this year.

1781.

Jan.—An insurrection broke out among the Pennsylvania and other troops of the American army in this month, on account of the failure of Congress to pay them. It threatened serious consequences, but was subdued by the moderation and influence of Washington.

” 4—Arnold, the traitor, landed in Virginia, and laid waste the country.

” 17—Battle of the “Cowpens,” South Carolina. Colonel Morgan, American, totally defeated Colonel Tarleton, who lost six hundred men, with his baggage and artillery. Morgan lost eighty men.

Feb. 23—George Taylor, of Pennsylvania, signer of the Declaration of Independence, died.

” 28—Richard Stockton, of New Jersey signer of the Declaration of Independence, died.

” 15—Battle of Guildford Court House North Carolina. Gen. Greene, American commander, and Lord Cornwallis, after long skirmishing, came to a battle. Greene’s army was mostly raw militia, which broke and fled. Greene was worsted, but retreated in quiet. His loss was 400; Cornwallis’, 500. So heavy a loss was as bad as a defeat to Cornwallis.

Apr. 25—Battle of Hobkirks Hill. General Greene attacked by Lord Rawdon. The Americans driven from the field. Loss on each side, 250.

May 10—Lord Rawdon evacuates Camden, South Carolina.

” 21—Several British forts in South Carolina captured by Marion and Sumter, the British losing in them 800 troops.

” 28—The American frigate Alliance captures two British sloops of war.

June 5—General Pickens, with militia, captures Augusta, Georgia. Lafayette had been maneuvering with the British forces in Virginia since April, with great ability. Though much inferior, he constantly held them in check, and avoided a battle.

July 6—Cornwallis, after a sharp skirmish with Lafayette, at Jamestown, retires to Portsmouth, Virginia. The British troops had, in three months, destroyed \$10,000,000 worth of property in Virginia.

Aug. 1—Cornwallis takes post at Yorktown, Virginia, and fortifies it. His force consists of 8,000 men.

” 17—It is arranged that the combined French and American forces shall attack Cornwallis, in Virginia.

” 25—Supplies and money for the American armies landed at Boston, from France.

Sept. 5—Forts Trumbull and Griswold, in Connecticut, taken by the British, under Arnold, with circumstances of great atrocity, and New London burned.

” 8—Battle of Eutaw Springs. Both sides claim the victory. The loss was about equal—seven hundred on each side. The advantage, in the end, was in favor of the Americans, though they were repulsed. The British soon retired.

” 10—The French fleet enter the Chesapeake Bay with heavy artillery for the siege of Yorktown, while De Grasse, the French Admiral, with a large squadron, guards the entrance against the British.

Oct. 6—The allied army, 16,000 strong, commence the siege of Yorktown.

” 19—Cornwallis surrenders Yorktown, and 7,000 troops, prisoners of war.

” 25—Colonel Willett repulses 600 Tories, at Johnstown, New York, with loss.

Dec. 31—Henry Laurens, United States Minister to France, sometime a prisoner in London, England, was exchanged for Gen. Burgoyne.

1782.

The war was now practically concluded. The finances of the United States, the sad condition of which had so much interfered with the collection and support of strong and well-disciplined armies, had been lately supported by loans from France and Holland. The Americans were stronger than ever, the British could not hold possession even of the Southern States, where there were more royalist inhabitants than further north; and the aid of France on the sea really made the Americans invincible. England could no longer raise the money or the troops to continue the struggle.

The year 1782 was mostly spent in negotiations. The difficulties of arranging the terms were great; and the boundaries of the new Government were a subject of much dispute.

Mar. 4—Resolutions were passed in the English Parliament, in favor of peace.

Apr. 19—Holland acknowledges American independence.

July 11—Savannah, Georgia, evacuated by the British, and occupied by General Wayne. The British carried off 5,000 negroes. Great discontent arose in the army in regard to pay, and only the great influence of Washington, and the wise moderation of American statesmen in Congress, prevented serious outbreaks.

Franklin, Adams, Jay, and Laurens, were the American Commissioners who arranged terms of peace.

Various Indian wars raged on the frontiers during this year.

1783.

Jan. 20—The preliminary treaty, providing for the cessation of hostilities between England and the United States, was signed.

Feb. 5—The Independence of the United States acknowledged by Sweden.

Mar. 24—The Independence of the United States acknowledged by Denmark. The Independence of the United States acknowledged by Spain.

Apr. 19—Cessation of hostilities officially proclaimed in the United States—just eight years from the beginning of the war. Estimated loss of men during the war, seventy thousand.

CHAPTER IX.

THE CONSTITUTIONAL CONVENTION OF 1787.

The successful termination of the Revolutionary War of seven years made the United Colonies which had commenced it, in fact, as well as in their Declaration, Free and Independent States. Toward the close of the war they had adopted Articles of Confederation. These were soon found to be inadequate to secure the general welfare, and without sufficient authority to carry their measures into effect. No sufficient means were supplied by them to maintain the public credit, and all the interests of the country languished.

They formed the Bond of Union for six years or more, and served an excellent purpose in calling the attention of statesmen and the people to the points most important in the constitution of a vigorous government. It was the trial essay, and the intelligence of the leading men of that period turned it to great profit.

In 1786 the legislature of Virginia proposed a convention of commissioners to improve the condition of trade and commerce. These commissioners met and recommended Congress to call a General Convention to revise the Articles of Confederation. This convention assembled in May, 1787, in Philadelphia; all the States except Rhode Island being represented. George Washington was chosen president. The members of this convention were the representatives of a people who had proved their firmness and attachment to liberty during a long war and against great difficulties. The delegates were men of tried patriotism, and the event has proved their wise and discriminating foresight. The system of government they planned is their most eloquent eulogy. The severe tests to which the expansion of the nation and the conflicts of sections and interests have subjected it, have served only the more fully to reveal how perfectly they comprehended the principles of a republican government, and their singular skill in arrangement. They combined the utmost vigor with the greatest security of rights. It is a glorious monument to their political insight. They, themselves, were not aware how profound was the wisdom, how complete the adaptation of its provisions. They signed it with many misgivings, on the 17th of September, 1787, after four months of diligent labor. It was then presented to the people for their ratification. They were cautious and prudent in those times, and could not appreciate as we do now, the extreme value of the work that had been accomplished. Time was required to bring out its excellences, and show how few and comparatively unimportant were

its defects. It was examined with careful attention, and finally adopted as follows:

By Convention of	Delaware	7th December, 1787
”	”	Pennsylvania 12th December, 1787
”	”	New Jersey 18th December, 1787
”	”	Georgia 2d January, 1788
”	”	Connecticut 9th January, 1788
”	”	Massachusetts 6th February, 1788
”	”	Maryland 28th April, 1788
”	”	South Carolina 3rd May, 1788
”	”	New Hampshire 21st June, 1788
”	”	Virginia 26th June, 1788
”	”	New York 26th July, 1788
”	”	North Carolina 21st November, 1789
”	”	Rhode Island 29th May, 1790

As shown above, two years passed before it was finally ratified by all the States. Both the delay and the final unanimity in its acceptance, giving testimony to the prudence and thoughtfulness of the people.

Electors of President and Vice-President were chosen in the winter of 1788-1789. March 4th had been appointed as the time for the government to go into operation, but a delay in assembling the members of Congress deferred the inauguration of Washington, as first President, until April 30th. Congress immediately organized the new government, and, in conjunction with the President, appointed the necessary officers. Some minor provisions were added or changed by the first Congress in the manner provided by the Constitution itself, that is, by a two-thirds vote in both Houses, and ratification by three-fourths of the States.

Ten amendments were made at this time. The eleventh amendment was added in 1794. The twelfth in 1803. The thirteenth, fourteenth and fifteenth amendments have been added since 1863.

A resolution to amend is passed by the requisite majorities in both Houses, sent to the legislatures of the States, and, when three-fourths of them have approved it, the Secretary of State causes the resolution and

amendment to be published in all the States and Territories, and it becomes valid as part of the Constitution.

Containing the wisest provisions of English law, it rejects all that is not in harmony with our circumstances, and our fundamental doctrine that all men have equal rights to life, liberty, and the pursuit of happiness. This it keeps continually in view, and, by the sense of dignity and worth which it tends to promote in the humblest man, gradually educates him up to the standard necessary for a free citizen, and, by its respect for the rights of all, tends to induce in each the same disposition.

The wisest men of the Republic, by infusing into this document their own self-respect, and respect for others, gave tone and direction to all the future. Their own *characters* were so far imparted to their work as to exert a salutary influence on the destiny of the people whose fundamental law they compiled.

This document is the law of the land, obliging the highest to obedience, to justice, and right, and raising the lowest to an equal share in its political privileges, and to its vigorous protection. Consequently a steady improvement in these respects has marked the growth of the country, and the benign influence of this respect for *man* and his *rights* has gone forth from the American Republic as a Regenerator among the nations of the earth.

CONSTITUTION OF THE UNITED STATES OF AMERICA, AND ITS AMENDMENTS.

We, the People of the United States, in order to form a more perfect union, establish justice, insure domestic tranquillity, provide for the common defense, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, do ordain and establish this CONSTITUTION for the United States of America.

ARTICLE I.

SECTION 1. All legislative powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

SEC. 2. The House of Representatives shall be composed of members chosen every second year by the people of the several States, and the electors in each State shall have the qualifications requisite for electors of the most numerous branch of the State Legislature.

No person shall be a Representative who shall not have attained to the age of twenty-five years, and been seven years a citizen of the United States, and who shall not, when elected, be an inhabitant of that State in which he shall be chosen.

Representatives and direct taxes shall be apportioned among the several States which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, three-fifths of all other persons. The actual enumeration shall be made within three years after the first meeting of the Congress of the United States, and within every subsequent term of ten years, in such manner as they shall by law direct. The number of Representatives shall not exceed one for every thirty thousand, but each State shall have at least one Representative; and until such enumeration shall be made the State of New Hampshire shall be entitled to choose three, Massachusetts eight, Rhode Island and Providence Plantations one, Connecticut five, New York six, New Jersey four, Pennsylvania eight, Delaware one, Maryland six, Virginia ten, North Carolina five, and Georgia three.

When vacancies happen in the representation from any State, the Executive authority thereof shall issue writs of election to fill such vacancies.

The House of Representatives shall choose their Speaker and other officers, and shall have the sole power of impeachment.

SEC. 3. The Senate of the United States shall be composed of two Senators from each State, chosen by the Legislature thereof for six years; and each Senator shall have one vote.

Immediately after they shall be assembled in consequence of the first election, they shall be divided as equally as may be into three classes. The seats of the Senators of the first class shall be vacated at the expiration of

the second year, of the second class at the expiration of the fourth year, and of the third class at the expiration of the sixth year, so that one-third may be chosen every second year; and if vacancies happen by resignation or otherwise, during the recess of the Legislature of any State, the Executive thereof may make temporary appointments until the next meeting of the Legislature, which shall then fill such vacancies.

No person shall be a Senator who shall not have attained to the age of thirty years, and been nine years a citizen of the United States, and who shall not, when elected, be an inhabitant of that State for which he shall be chosen.

The Vice-President of the United States shall be President of the Senate, but shall have no vote unless they be equally divided.

The Senate shall choose their other officers, and also a President *pro tempore*, in the absence of the Vice-President, or when he shall exercise the office of President of the United States.

The Senate shall have the sole power to try all impeachments. When sitting for that purpose they shall be on oath or affirmation. When the President of the United States is tried, the Chief Justice shall preside. And no person shall be convicted without the concurrence of two-thirds of the members present.

Judgment, in cases of impeachment, shall not extend further than to removal from office, and disqualification to hold and enjoy any office of honor, trust, or profit under the United States; but the party convicted shall nevertheless be liable and subject to indictment, trial, judgment, and punishment according to law.

SEC. 4. The times, places, and manner of holding elections for Senators and Representatives shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by law make or alter such regulations, except as to the places of choosing Senators.

The Congress shall assemble at least once in every year, and such meeting shall be on the first Monday in December, unless they shall by law appoint a different day.

SEC. 5. Each house shall be the judge of the election, returns, and qualifications of its own members, and a majority of each shall constitute a

quorum to do business; but a smaller number may adjourn from day to day, and may be authorized to compel the attendance of absent members in such manner and under such penalties as each house may provide.

Each house may determine the rules of its proceedings, punish its members for disorderly behavior, and, with the concurrence of two-thirds, expel a member.

Each house shall keep a journal of its proceedings, and from time to time publish the same, excepting such parts as may in their judgment require secrecy; and the yeas and nays of the members of either house on any question shall, at the desire of one-fifth of those present, be entered on the journal.

Neither house, during the session of Congress, shall, without the consent of the other, adjourn for more than three days, nor to any other place than that in which the two houses shall be sitting.

SEC. 6. The Senators and Representatives shall receive a compensation for their services, to be ascertained by law, and paid out of the Treasury of the United States. They shall in all cases, except treason, felony, and breach of the peace, be privileged from arrest during their attendance at the session of their respective Houses, and in going to and returning from the same; and for any speech or debate in either House they shall not be questioned in any other place.

No Senator or Representative shall, during the time for which he was elected, be appointed to any civil office under the authority of the United States, which shall have been created, or the emoluments whereof shall have been increased during such time; and no person holding any office under the United States, shall be a member of either house during his continuance in office.

SEC. 7. All bills for raising revenue shall originate in the House of Representatives; but the Senate may propose or concur with amendments as on other bills.

Every bill which shall have passed the House of Representatives and the Senate, shall, before it becomes a law, be presented to the President of the United States; if he approve he shall sign it; but if not, he shall return it, with his objections, to that House in which it shall have originated, who

shall enter the objections at large on their journal, and proceed to reconsider it. If, after such reconsideration, two-thirds of that House shall agree to pass the bill, it shall be sent, together with the objection, to the other House, by which it shall likewise be reconsidered, and if approved by two-thirds of that House, it shall become a law. But in all such cases the votes of both Houses shall be determined by yeas and nays, and the names of the persons voting for and against the bill shall be entered on the journal of each House respectively. If any bill shall not be returned by the President within ten days (Sundays excepted), after it shall have been presented to him, the same shall be a law, in like manner as if he had signed it, unless the Congress, by their adjournment, prevent its return, in which case it shall not be a law.

Every order, resolution, or vote to which the concurrence of the Senate and House of Representatives may be necessary (except on a question of adjournment), shall be presented to the President of the United States, and before the same shall take effect shall be approved by him, or, being disapproved by him, shall be repassed by two-thirds of the Senate and House of Representatives, according to the rules and limitations prescribed in the case of a bill.

SEC. 8. The Congress shall have power—

To lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States; but all duties, imposts, and excises shall be uniform throughout the United States;

To borrow money on the credit of the United States;

To regulate commerce with foreign nations, and among the several States, and with the Indian tribes;

To establish a uniform rule of naturalization, and uniform laws on the subject of bankruptcies throughout the United States;

To coin money, regulate the value thereof, and of foreign coin, and fix the standard of weights and measures;

To provide for the punishment of counterfeiting the securities and current coin of the United States;

To establish post offices and post roads;

To promote the progress of sciences and useful arts, by securing, for limited times, to authors and inventors, the exclusive right to their respective writings and discoveries;

To constitute tribunals inferior to the Supreme Court;

To define and punish piracies and felonies committed on the high seas, and offenses against the law of nations;

To declare war, grant letters of marque and reprisal, and make rules concerning captures on land and water;

To raise and support armies, but no appropriation of money to that use shall be for a longer term than two years;

To provide and maintain a navy;

To make rules for the government and regulation of the land and naval forces;

To provide for calling forth the militia to execute the laws of the Union, suppress insurrections, and repel invasions;

To provide for organizing, arming, and disciplining the militia, and for governing such part of them as may be employed in the service of the United States, reserving to the States respectively the appointment of the officers, and the authority of training the militia according to the discipline prescribed by Congress.

To exercise legislation in all cases whatsoever over such district (not exceeding ten miles square) as may, by cession of particular States and the acceptance of Congress, become the seat of the government of the United States, and to exercise like authority over all places purchased by the consent of the Legislature of the State in which the same shall be, for the erection of forts, magazines, arsenals, dock yards, and other needful buildings; and

To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department or officer thereof.

SEC. 9. The migration or importation of such persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the year one thousand eight hundred and eight, but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person.

The privilege of the writ of habeas corpus shall not be suspended, unless when in cases of rebellion or invasion the public safety may require it.

No bill of attainder or *ex post facto* law shall be passed.

No capitation or other direct tax shall be laid, unless in proportion to the census or enumeration hereinbefore directed to be taken.

No tax or duty shall be laid on articles exported from any State.

No preference shall be given by any regulation of commerce or revenue to the ports of one State over those of another; nor shall vessels bound to, or from one State, be obliged to enter, clear, or pay duties in another.

No money shall be drawn from the Treasury, but in consequence of appropriations made by law; and a regular statement and account of the receipts and expenditures of all public money shall be published from time to time.

No title of nobility shall be granted by the United States; and no person holding any office of profit or trust under them, shall, without the consent of the Congress, accept of any present, emolument, office, or title, of any kind whatever, from any king, prince, or foreign State.

SEC. 10. No State shall enter into any treaty, alliance, or confederation; grant letters of marque and reprisal; coin money; emit bills of credit; make anything but gold and silver coin a tender in payment of debts; pass any bill of attainder, *ex post facto* law, or law impairing the obligation of contracts, or grant any title of nobility.

No State shall, without the consent of the Congress, lay any imposts or duties on imports or exports, except what may be absolutely necessary for executing its inspection laws, and the net produce of all duties and imposts laid by any State on imports or exports, shall be for the use of the Treasury of the United States; and all such laws shall be subject to the revision and control of the Congress.

No State shall, without the consent of Congress, lay any duty on tonnage, keep troops or ships of war in time of peace, enter into any agreement or compact with another State, or with a foreign power, or engage in war, unless actually invaded, or in such imminent danger as will not admit of delay.

ARTICLE II.

SECTION 1. The Executive power shall be vested in a President of the United States of America. He shall hold his office during the term of four years, and, together with the Vice-President chosen for the same term, be elected as follows:

Each State shall appoint, in such manner as the legislature thereof may direct, a number of electors, equal to the whole number of Senators and Representatives to which the State may be entitled in the Congress; but no Senator or Representative, or person holding an office of trust or profit under the United States, shall be appointed an elector.

[The electors shall meet in their respective States, and vote by ballot for two persons, of whom one at least shall not be an inhabitant of the same State with themselves. And they shall make a list of all the persons voted for, and of the number of votes for each; which list they shall sign and certify, and transmit sealed to the seat of the government of the United States, directed to the President of the Senate. The President of the Senate shall, in the presence of the Senate and House of Representatives, open all the certificates, and the votes shall then be counted. The person having the greatest number of votes shall be the President, if such number be a majority of the whole number of electors appointed; and if there be more than one who have such majority, and have an equal number of votes, then the House of Representatives shall immediately choose by ballot one of them for President; and if no person have a majority, then from the five highest on the list the said House shall in like manner choose the President. But in choosing the President, the vote shall be taken by States, the representation from each State having one vote; a quorum for this purpose shall consist of a member or members from two-thirds of the States, and a majority of all the States shall be necessary to a choice. In every case, after the choice of the President, the person having the greatest number of votes

of the electors shall be the Vice-President. But if there should remain two or more who have equal votes, the Senate shall choose from them by ballot the Vice-President.][^[1]

^[1] This clause within brackets has been superseded and annulled by the 12th amendment.

The Congress may determine the time of choosing the electors, and the day on which they shall give their votes; which day shall be the same throughout the United States.

No person except a natural born citizen, or a citizen of the United States at the time of the adoption of this Constitution, shall be eligible to the office of President; neither shall any person be eligible to that office who shall not have attained the age of thirty-five years, and been fourteen years a resident within the United States.

In case of the removal of the President from office, or of his death, resignation, or inability to discharge the powers and duties of the said office, the same shall devolve on the Vice-President, and the Congress may by law provide for the case of removal, death, resignation, or inability, both of the President and Vice-President, declaring what officer shall then act as President, and such officer shall act accordingly, until the disability be removed, or a President shall be elected.

The President shall, at stated times, receive for his services a compensation which shall neither be increased nor diminished during the period for which he shall have been elected, and he shall not receive within that period any other emolument from the United States, or any of them.

Before he enters on the execution of his office, he shall take the following oath or affirmation:

“I do solemnly swear (or affirm) that I will faithfully execute the office of President of the United States, and will, to the best of my ability, preserve, protect, and defend the Constitution of the United States.”

SEC. 2. The President shall be commander-in-chief of the army and navy of the United States, and of the militia of the several States, when called into the actual service of the United States; he may require the opinion, in writing, of the principal officer in each of the Executive departments, upon

any subject relating to the duties of their respective offices, and he shall have power to grant reprieves and pardon for offenses against the United States, except in cases of impeachment.

He shall have power, by and with the advice and consent of the Senate, to make treaties, provided two-thirds of the Senators present concur; and he shall nominate, and by and with the advice of the Senate, shall appoint ambassadors, other public ministers and consuls, judges of the Supreme Court, and all other officers of the United States whose appointments are not herein otherwise provided for, and which shall be established by law; but the Congress may by law vest the appointment of such inferior officers as they think proper in the President alone, in the courts of law, or in the heads of departments.

The President shall have power to fill up all vacancies that may happen during the recess of the Senate, by granting commissions which shall expire at the end of their next session.

SEC. 3. He shall from time to time give to the Congress information of the state of the Union, and recommend to their consideration such measures as he shall judge necessary and expedient; he may, on extraordinary occasions, convene both Houses, or either of them, and in case of disagreement between them, with respect to the time of adjournment, he may adjourn them to such time as he shall think proper; he shall receive ambassadors and other public ministers; he shall take care that the laws be faithfully executed, and shall commission all the officers of the United States.

SEC. 4. The President, Vice-President, and all civil officers of the United States, shall be removed from office on impeachment for, and conviction of treason, bribery, or other high crimes and misdemeanors.

ARTICLE III.

SECTION 1. The judicial power of the United States shall be vested in one Supreme Court, and such inferior courts as the Congress may from time to time ordain and establish. The Judges, both of the Supreme and inferior courts, shall hold their offices during good behavior, and shall, at stated times, receive for their services a compensation, which shall not be diminished during their continuance in office.

SEC. 2. The judicial power shall extend to all cases, in law and equity, arising under this Constitution, the laws of the United States, and treaties made, or which shall be made, under their authority;—to all cases affecting ambassadors, other public ministers, and consuls;—to all cases of admiralty and maritime jurisdiction;—to controversies to which the United States shall be a party;—to controversies between two or more States;—between a State and citizens of another State;—between citizens of different States;—between citizens of the same State claiming lands under grants of different States, and between a State, or the citizens thereof, and foreign States, citizens, or subjects.

In all cases affecting ambassadors, other public ministers, and consuls, and those in which a State shall be a party, the Supreme Court shall have original jurisdiction.

In all the other cases before mentioned, the Supreme Court shall have appellate jurisdiction, both as to law and fact, with such exceptions, and under such regulations as the Congress shall make.

The trial of all crimes, except in cases of impeachment, shall be by jury; and such trial shall be held in the State where the said crimes shall have been committed; but when not committed within any State, the trial shall be at such place or places as the Congress may by law have directed.

SEC. 3. Treason against the United States shall consist only in levying war against them, or in adhering to their enemies, giving them aid and comfort. No person shall be convicted of treason unless on the testimony of two witnesses to the same overt act, or on confession in open court.

The Congress shall have power to declare the punishment of treason, but no attainder of treason shall work corruption of blood, or forfeiture, except during the life of the person attainted.

ARTICLE IV.

SECTION 1. Full faith and credit shall be given in each State to the public acts, records, and judicial proceedings of every other State. And the Congress may, by general laws, prescribe the manner in which such acts, records, and proceedings shall be proved, and the effect thereof.

SEC. 2. The citizens of each State shall be entitled to all privileges and immunities of citizens in the several States.

A person charged in any State with treason, felony, or other crime, who shall flee from justice, and be found in another State, shall, on demand of the Executive authority of the State from which he fled, be delivered up, to be removed to the State having jurisdiction of the crime.

No person held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered up on the claim of the party to whom such service or labor may be due.

SEC. 3. New States may be admitted by the Congress into this Union; but no new State shall be formed or erected within the jurisdiction of any other State; nor any State be formed by the junction of two or more States, or parts of States, without the consent of the Legislatures of the States concerned, as well as of the Congress.

The Congress shall have power to dispose of and make all needful rules and regulations respecting the territory or other property belonging to the United States; and nothing in this Constitution shall be so construed as to prejudice any claims of the United States, or of any particular State.

SEC. 4. The United States shall guarantee to every State in this Union a Republican form of government, and shall protect each of them against invasion, and on application of the Legislature, or of the Executive (when the Legislature cannot be convened), against domestic violence.

ARTICLE V.

The Congress, whenever two-thirds of both Houses shall deem it necessary, shall propose amendments to this Constitution, or, on the application of the Legislatures of two-thirds of the several States, shall call a convention for proposing amendments, which, in either case, shall be valid to all intents and purposes, as part of this Constitution, when ratified by the Legislatures of three-fourths of the several States, or by conventions in three-fourths thereof, as the one or the other mode of ratification may be proposed by the Congress. Provided that no amendment which may be made prior to the year one thousand eight hundred and eight shall in any

manner affect the first and fourth clauses in the ninth section of the first article; and that no State, without its consent, shall be deprived of its equal suffrage in the Senate.

ARTICLE VI.

All debts contracted, and engagements entered into, before the adoption of this Constitution, shall be as valid against the United States under this Constitution, as under the Confederation.

This Constitution, and the laws of the United States which shall be made in pursuance thereof, and all treaties made, or which shall be made, under the authority of the United States, shall be the supreme law of the land; and the judges in every State shall be bound thereby, anything in the Constitution or laws of any State to the contrary notwithstanding.

The Senators and Representatives before mentioned, and the members of the several State Legislatures, and all executive and judicial officers, both of the United States and of the several States, shall be bound by oath or affirmation, to support this Constitution; but no religious test shall ever be required as a qualification to any office or public trust under the United States.

ARTICLE VII.

The ratification of the Conventions of nine States shall be sufficient for the establishment of this Constitution between the States so ratifying the same.

DONE in Convention by the unanimous consent of the States present, the seventeenth day of September, in the year of our Lord one thousand seven hundred and eighty-seven, and of the Independence of the United States of America, the twelfth. IN WITNESS WHEREOF, We have hereunto subscribed our names.

GEO. WASHINGTON,
President, and Deputy from Virginia.

New Hampshire.

JOHN LANGDON,
NICHOLAS GILMAN.

Massachusetts.

NATHANIEL GORHAM,
RUFUS KING.

Connecticut.

WM. SAM'L JOHNSON,
ROGER SHERMAN.

New York.

ALEXANDER HAMILTON.

New Jersey.

WIL. LIVINGSTON,
WM. PATERSON,
DAVID BREARLEY,
JONA. DAYTON.

Pennsylvania.

B. FRANKLIN,
ROBT. MORRIS,
THOS. FITZSIMONS,
JAMES WILSON,
THOMAS MIFFLIN,
GEO. CLYMER,
JARED INGERSOLL,

GOUV. MORRIS.

Delaware.

GEO. READ,

JOHN DICKINSON,

JACO. BROOM,

GUNNING BEDFORD, JUN'R,

RICHARD BASSETT.

Maryland.

JAMES M'HENRY,

DANL. CARROLL,

DAN. OF ST. THOS. JENIFER.

Virginia.

JOHN BLAIR,

JAMES MADISON, JR.

North Carolina.

WM. BLOUNT,

HU. WILLIAMSON,

RICH'D DOBBS SPAIGHT.

South Carolina.

J. RUTLEDGE,

CHARLES PINCKNEY,

CHAS. COTESWORTH PINCKNEY,

PIERCE BUTLER.

Georgia.

WILLIAM FEW,

ABR. BALDWIN.

WILLIAM JACKSON, *Secretary.*

**ARTICLES IN ADDITION TO, AND AMENDATORY OF, THE CONSTITUTION OF THE
UNITED STATES OF AMERICA.**

Proposed by Congress, and ratified by the Legislatures of the several States, pursuant to the fifth article of the original Constitution.

ARTICLE I.

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the government for a redress of grievances.

ARTICLE II.

A well regulated militia being necessary to the security of a free State, the right of the people to keep and bear arms shall not be infringed.

ARTICLE III.

No soldier shall, in time of peace, be quartered in any house without the consent of the owner, nor in time of war, but in a manner to be prescribed by law.

ARTICLE IV.

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated; and no warrants shall issue but upon probable cause, supported by oath or

affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

ARTICLE V.

No person shall be held to answer for a capital or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the militia when in actual service in time of war or public danger; nor shall any person be subject for the same offense to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.

ARTICLE VI.

In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor; and to have the assistance of counsel for his defense.

ARTICLE VII.

In suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved, and no fact tried by a jury shall be otherwise re-examined in any court of the United States, than according to the rules of the common law.

ARTICLE VIII.

Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

ARTICLE IX.

The enumeration, in the Constitution, of certain rights, shall not be construed to deny or disparage others retained by the people.

ARTICLE X.

The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.

ARTICLE XI.

The judicial power of the United States shall not be construed to extend to any suit in law or equity commenced or prosecuted against one of the United States by citizens of another State, or by citizens or subjects of any foreign State.

ARTICLE XII.

The electors shall meet in their respective States, and vote by ballot for President and Vice-President, one of whom, at least, shall not be an inhabitant of the same State with themselves; they shall name in their ballots the person to be voted for as President, and in distinct ballots the person voted for as Vice-President, and they shall make distinct lists of all persons voted for as President, and of all persons voted for as Vice-President, and of the number of votes for each, which list they shall sign and certify, and transmit sealed to the seat of the government of the United States, directed to the President of the Senate. The President of the Senate shall, in presence of the Senate and House of Representatives, open all the certificates, and the votes shall then be counted. The person having the greatest number of votes for President, shall be the President, if such number be a majority of the whole number of electors appointed; and if no person have such majority, then from the persons having the highest number not exceeding three on the list of those voted for as President, the House of Representatives shall choose immediately, by ballot, the President. But in choosing the President, the votes shall be taken by States, the representation from each State having one vote; a quorum for this purpose shall consist of a member or members from two-thirds of the

States, and a majority of all the States shall be necessary to a choice. And if the House of Representatives shall not choose a President whenever the right of choice shall devolve upon them, before the fourth day of March next following, then the Vice-President shall act as President, as in the case of the death or other Constitutional disability of the President. The person having the greatest number of votes as Vice-President, shall be the Vice-President, if such number be a majority of the whole number of electors appointed, and if no person have a majority, then from the two highest numbers on the list, the Senate shall choose the Vice-President; a quorum for the purpose shall consist of two-thirds of the whole number of Senators, and a majority of the whole number shall be necessary to a choice. But no person Constitutionally ineligible to the office of President shall be eligible to that of Vice-President of the United States.

ARTICLE XIII.

SECTION 1. Neither slavery nor involuntary servitude, except as a punishment for crime, whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.

SEC. 2. Congress shall have power to enforce this article by appropriate legislation.

ARTICLE XIV.

SECTION 1. All persons born or naturalized in the United States and subject to the jurisdiction thereof, are citizens of the United States, and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law, nor deny to any person within its jurisdiction the equal protection of the laws.

SEC. 2. Representatives shall be appointed among the several States according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed; but when the right to vote at any election for the choice of electors for President and Vice-

President of the United States, Representatives in Congress, the executive and judicial officers of a State, or the members of the Legislature thereof, is denied to any of the male inhabitants of such State, being twenty-one years of age and citizens of the United States, or in any way abridged except for participation in rebellion or other crimes, the basis of representation therein shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such State.

SEC. 3. No person shall be a Senator or Representative in Congress, or elector of President and Vice-President, or hold any office, civil or military, under the United States or under any State, who, having previously taken an oath as a Member of Congress, or as an officer of the United States, or as a member of any State Legislature, or as an executive or judicial officer of any State, to support the Constitution of the United States, shall have engaged in insurrection or rebellion against the same, or given aid or comfort to the enemies thereof. But Congress may, by a vote of two-thirds of each house, remove such disability.

SEC. 4. The validity of the public debt of the United States authorized by law, including debts incurred for payment of pensions and bounties for services in suppressing insurrection or rebellion, shall not be questioned. But neither the United States nor any State shall assume or pay any debt or obligation incurred in the aid of insurrection or rebellion against the United States, or any loss or emancipation of any slave, but such debts, obligations, and claims shall be held illegal and void.

SEC. 5. The Congress shall have power to enforce, by appropriate legislation, the provisions of this act.

ARTICLE XV.

SECTION 1. The right of citizens of the United States to vote, shall not be denied or abridged by the United States, or by any State, on account of race, color, or previous condition of servitude.

SEC. 2. Congress shall have power to enforce this article by appropriate legislation.

CHAPTER X.

PRESIDENTS OF THE CONTINENTAL CONGRESS, AND THE VARIOUS SEATS OF GOVERNMENT FROM 1774 TO 1789.

Peyton Randolph, Virginia	5th Sept.,	1774
Henry Middleton, South Carolina	22d Oct.,	1774
Peyton Randolph, Virginia	10th May,	1775
John Hancock, Massachusetts	24th May,	1775
Henry Laurens, South Carolina	1st Nov.,	1777
John Jay, New York	10th Dec.,	1778
Samuel Huntingdon, Connecticut	28th Sept.,	1779
Thomas McKean, Delaware	10th July,	1781
John Hanson, Maryland	5th Nov.,	1781
Elias Boudinot, New Jersey	4th "	1782
Thomas Mifflin, Pennsylvania	3d "	1783
Richard Henry Lee, Virginia	30th "	1784
Nathaniel Gorham, Massachusetts	6th Jan.,	1786
Arthur St. Clair, Pennsylvania	2d Feb.,	1787
Cyrus Griffin, Virginia	22d Jan.,	1788

The seat of government was established as follows: At Philadelphia, Pa., commencing September 5th, 1774, and May 10th, 1775; at Baltimore, Md., December 20th, 1776; at Philadelphia, Pa., March 4th, 1777; at Lancaster, Pa., September 27th, 1777; at York, Pa., September 30th, 1777; at Philadelphia, Pa., July 2d, 1778; at Princeton, N. J., June 30th, 1783; at Annapolis, Md., November 26th, 1783; at Trenton, N. J., November 1st, 1784; and at New York City, N. Y., January 11th, 1785.

On the 4th of March, 1789, the present Constitution, which had been adopted by a convention and ratified by the requisite number of States, went into operation.

PART SECOND.

THE GOVERNMENT UNDER THE CONSTITUTION.

The plan of this part of our work requires us to give a complete view of the government of the United States, and in such detail as to be adequate to all the purposes of the citizen and the student who wish to understand its structure and modes of working. It will be found, we think, a clear, concise, and complete account of what it is indispensable to the American to know.

There are three branches, each independent, having its sphere of general action entirely distinct, and clearly defined by the Constitution; yet working in harmony with the others, and locking in, so to speak, with them at special points, like the cogs of a system of wheels. The adjustment was more perfect than the authors of the Constitution themselves believed; probably because the spirit of the whole was in harmony with the people whose interests it was designed to guard.

These three branches are the Legislative, the Executive, and the Judicial. All the institutions or general subdivisions of each are given in connection, with such explanations and data as they seem to require. We commence with the Executive, as being most immediately in contact with the people at large, having a wider field, and a larger number of distinct organizations and agents. This branch exhausted, we present the Legislative, and finally the Judicial, closing with such matters as belong to the government as a whole.

No human government is perfect, neither can exact and equal justice be done in every case by human laws. But the scope and design of our legislation and jurisprudence is to dispense justice to all, to place all on an equality before the laws, and to give the same rights to the rich and to the poor. No privileged class is known to our laws, and the lowest may aspire to the highest places of distinction and honor; many have done so, and have reached the most exalted positions. The fullest religious liberty is granted to all; every man may worship as he pleases, when and where he pleases, without molestation or fear. He is not, as in many other countries, taxed to support a church established by law. He may pay for religious purposes as

much or as little as he pleases, and to any church he prefers, or he may pay nothing, and no one can call him to account or use any compulsion whatever in this matter.

Every citizen has a vote for the choice of his rulers, and through his representatives a voice in making the laws by which he is governed.

As to his business or calling, he may do that which best suits his interests or his tastes. He may go when or where he desires, he may stay in the country or leave it without restraint or hindrance; in short, he may do whatsoever seemeth good to him, provided he does not infringe on the rights of others.

To this liberty, to these equal rights, privileges, and advantages do we attribute our rapid growth and power. The advantages and benefits of so wise, so liberal, and so beneficent a government are not unknown to the people of other countries where they do not enjoy so much freedom; and this accounts for the wonderful immigration to the United States from nearly every country in Europe. This flow has continued for more than three-quarters of a century, and is still unabated. It has added many millions to the natural increase of our population, while very few of our own people ever leave their own country with the hope of bettering their condition, or of finding a government under which they can enjoy more liberty or better protection. To gain a clearer conception of the intimate connection between a good government and the prosperity of the country, let us, for example, place Mexico in contrast with the United States. Mexico was settled long before the United States, and in climate and mineral wealth has the advantage of us; yet the ever unsettled condition of its government, together with intolerance of any but the Catholic religion, has prevented any increase of population or any advancement in anything which gives a nation respectability, greatness, or power.

Let us draw another contrast by considering Ireland. An oppressive government has diminished the population, prevented any advancement, and impoverished the country. We might draw many such contrasts between the United States and other countries in Europe, Asia, Africa, and South America, which would convince any one who has the power to trace causes to effects, and effects to causes, that a just and liberal government is an essential condition upon which the prosperity of any country depends.

THE EXECUTIVE DEPARTMENT.

CHAPTER I.

THE PRESIDENT.

1. Congress legislates, or enacts laws; the officers of the Supreme Court decide whether those laws are in conformity with the Constitution; but the real ruler, the actual possessor of power, is the President. In the language of the first section of the second article of the Constitution, “The executive powers of the government shall be vested in a President of the United States of America.” The other branches of the government decide *what* is to be done, and what is constitutionally legal, and the President is the agent. He executes, or puts in actual operation, the measures determined on by them. Should he attempt to do anything not so prescribed, or to do anything in an improper manner, contrary to or different from the manner prescribed by the law, he may be impeached and removed, and all the subordinate officers and agents of the government released from the obligation to obey him.

2. The other branches are composed of many persons. He has no associate. The execution of the law requires vigor and decision, such as can be found only in a single mind and will. All history shows that there is constant danger of power being misused, whether one, two, or any number of men are the depositaries of it; but one man is much better than two or more, when vigor and promptness are required. All the securities and checks that could be applied without embarrassing his necessary freedom of action have been provided. They can not, indeed, supply the want of judgment and uprightness, and so no absolute security against mismanagement can exist; but the danger may be in large part avoided by carefulness in the selection of the man who is to wield the whole power of a great nation.

It is an office of great dignity, responsibility, and power, and requires a man of great ability and probity to properly fill it.

3. The President is elected for four years, and may be reëlected if the people see fit. Several times in our history the President has been once reëlected, and so held the office for eight years; but none have been twice reëlected, though there is no law against it. The term commences and terminates on the fourth day of March. He is elected by the people, every voter having an equal influence in the choice; but it is not done by voting for him directly, but by voting first for men called electors, who cast their votes according to the wish of the people. This system we shall hereafter examine.

4. A Vice-President is elected at the same time and in the same way, who, in case of the President's death, removal, resignation, or inability to discharge the duties of his office, becomes acting President during the remainder of his term, or while the disability continues. The first Congress passed a law giving the President a salary of \$25,000 per annum, with the use of a furnished house, and it remained the same until 1873, when it was raised to \$50,000 per year. He is forbidden by the Constitution to receive any other public income during his term of office, nor is he at liberty to accept presents from any foreign power.

Before entering on the duties of his office he is required to take an oath "to preserve, protect, and defend the Constitution of the United States," to the best of his ability.

5. It is required that he shall be a native-born citizen of the United States, that he shall have been fourteen years a resident in the United States, and that he shall not be less than thirty-five years of age; which are designed to insure his attachment to American interests, his thorough acquaintance with American affairs, and the full maturity of his mind and character.

6. It is his duty to appoint such officers in every department of the public service as are not otherwise provided for. He usually sends the nomination to the Senate for their approval or consent, and when that is given appoints them by commission, signed with his name, to the office. In this manner he nominates the Justices of the Supreme Court, ambassadors, resident ministers, chargé-d'affaires, consuls, and other representatives of the government abroad, all the Heads of Executive Departments, and the more important subordinate officers of each department. When the Senate is not in session he may appoint all these directly, to serve until it meets again.

The clerks and minor officers are usually appointed by Heads of Departments. In all other cases the advice and consent of the Senate are required before the appointment and commission can be legal.

7. It is his duty to make treaties with Foreign Powers, but these require confirmation by two-thirds of the Senate to be valid. He receives the Representatives of Foreign Powers, and superintends all diplomatic intercourse with them and with our own Representatives abroad.

He is commander-in-chief of the army and navy, and must sign the commissions of all the officers in each. He may grant reprieves and pardons at his discretion, except in cases of impeachment, and he is required to approve and sign the laws passed by Congress before they can take effect. If he does not approve a law he “vetoes” it by returning it to Congress, with his reasons for not signing it. If that body reconsiders it and reënacts it by a two-thirds vote of each house, it may become a law without his signature.

8. He may call extra sessions of Congress for special reasons, and may adjourn it in case of disagreement between the two houses as to the time of adjournment. It is his duty to give information to Congress, at the commencement of each session, of the state of the country, and to recommend to it such legislative enactments as he may judge are required. This is called “The President’s Message,” and is looked for with much interest in this and in foreign countries, since his position makes him intimately acquainted with every subject relating to the public welfare. When he considers that the occasion demands it, or when he is requested by Congress to give information on a special point, he communicates with them by similar documents, called messages.

He may be impeached for treason, bribery, or other high crimes, by the House of Representatives, and tried by the Senate, the Chief Justice of the Supreme Court presiding over that body during the trial, and in case of conviction is removed from office.

9. It will be seen that he possesses great power, and that he is almost overwhelmed by responsibilities. The members of his cabinet are his constitutional advisers, and share more or less of this responsibility, although his will may override them all if he so chooses.

There are many provisions for preventing an abuse of power in the Constitution and in the laws of Congress, but all history proves that nothing but watchfulness and wisdom on the part of the people can preserve to them their rights and liberties. Power, wherever lodged, is naturally aggressive. Fortunately the people themselves in this country are the *source* of power, and may legally restrain its exercise in their representatives and executive officers, when it threatens to become excessive.

The following are the names of all the Presidents, from Washington, the first, down to the present incumbent:

George Washington, Va., 30th April, 1789, to 4th March, 1797—seven years ten months and four days.

John Adams, Mass., 4th March, 1797, to 4th March, 1801—four years.

Thomas Jefferson, Va., 4th March, 1801, to 4th March, 1809—eight years.

James Madison, Va., 4th March, 1809, to 4th March, 1817—eight years.

James Monroe, Va., 4th March, 1817, to 4th March, 1825—eight years.

John Quincy Adams, Mass., 4th March, 1825, to 4th March, 1829—four years.

Andrew Jackson, Tenn., 4th March, 1829, to 4th March, 1837—eight years.

Martin Van Buren, N. Y., 4th March, 1837, to 4th March, 1841—four years.

William H. Harrison, O., 4th March, 1841, to 4th April, 1841—one month.

John Tyler, Va., 4th April, 1841, to 4th March, 1845—three years and eleven months.

James K. Polk, Tenn., 4th March, 1845, to 4th March, 1849—four years.

Zachary Taylor, La., 4th March, 1849, to 9th July, 1850—one year four months and five days.

Millard Fillmore, N. Y., 9th July, 1850, to 4th March, 1853—two years seven months and twenty-six days.

Franklin Pierce, N. H., 4th March, 1853, to 4th March, 1857—four years.

James Buchanan, Pa., 4th March, 1857, to 4th March, 1861—four years.

Abraham Lincoln, Ill., 4th March, 1861, to 15th April, 1865—four years one month and ten days.

Andrew Johnson, Tenn., 15th April, 1865, to 4th March, 1869—three years ten months and twenty days.

Ulysses S. Grant, Ill., 4th March, 1869, to 4th March, 1877—eight years.

Of these William H. Harrison died 4th April, 1841, just one month after his inauguration. On the death of Harrison, Tyler, the Vice-President, became acting President. Taylor died 9th July, 1850, and Fillmore, Vice-President, became acting President. Lincoln was assassinated on the 14th April, 1865, one month and ten days after he was inaugurated upon his second term, and Andrew Johnson, the Vice-President, became acting President—this being the third time that such an event has occurred since the government went into operation.

CHAPTER II.

THE VICE-PRESIDENT.

This officer is elected by the people at the same time, and in the same manner, as the President, and for the same term. He must be a native citizen of the United States, and thirty-five years of age.

His high-sounding title would lead one who is but little acquainted with our government to think that he stands next to the President himself in dignity and power; that on his shoulders rests a large amount of the duties and responsibilities of the administration. Such, however, is not the case. He is, in fact, nearer a cipher than any of the high officers of State. He is merely the presiding officer of the Senate, with not even the power to vote, except in case of a tie vote in that body, when he may give the casting vote. It is only in case of the death, resignation, impeachment, or disability of the President to discharge his duties, that the Vice-President becomes an officer of much power or dignity.

The following is a list of all the Vice-Presidents:

John Adams, Mass., April 30th, 1789, to March 4th, 1797—seven years, ten months and four days.

Thomas Jefferson, Va., March 4th, 1797, to March 4th, 1801—four years.

Aaron Burr, N. Y., March 4th, 1801, to March 4th, 1805—four years.

George Clinton, N. Y., March 4th, 1805, to April 30th, 1812—seven years, one month, and sixteen days.

Elbridge Gerry, Mass., March 4th, 1813, to November 23d, 1814—one year, seven months, and nineteen days.

Daniel D. Tompkins, N. Y., March 4th, 1817, to March 4th, 1825—eight years.

John C. Calhoun, S. C., March 4th, 1825 to March 4th, 1833—eight years.

Martin Van Buren, N. Y., March 4th, 1833, to March 4th, 1837—four years.

Richard M. Johnson, Ky., March 4th, 1837, to March 4th, 1841—four years.

John Tyler, Va., March 4th, 1841, to April 4th, 1841—one month.

George M. Dallas, Pa., March 4th, 1845, to March 4th, 1849—four years.

Millard Fillmore, N. Y., March 4th, 1849, to July 9th, 1850—one year and four months.

William R. King, Ala.

John C. Breckenridge, Ky., March 4th, 1857, to March 4th, 1861—four years.

Hannibal Hamlin, Me., March 4th, 1861, to March 4th, 1865—four years.

Andrew Johnson, Tenn., March 4th, 1865, to April 15th, 1865—one month and eleven days.

Schuyler Colfax, Ind., March 4th, 1869, to March 4th, 1873—four years.

Henry Wilson, Mass., March 4th, 1873, to March 4th, 1877—four years.

Of these, Clinton died April 20th, 1812; from which time till March 4th, 1813, the Vice-Presidency was vacant.

Gerry died November 23d, 1814; from which time till March 4th, 1817, the Vice-Presidency was vacant.

Tyler became acting President upon the death of President Harrison; and until March 4th, 1845, the Vice-Presidency was vacant.

Fillmore became acting President upon the death of President Taylor, July 9th, 1850; and until March 4th, 1853, the Vice-Presidency was vacant.

King was elected with President Pierce, in 1852, but died April 18th, 1853. He never took his seat, and the Vice-Presidency was vacant till March 4th, 1857.

Johnson became acting President upon the death of President Lincoln, April 15th, 1865, and the Vice-Presidency again became vacant, and remained so until March 4th, 1869.

CHAPTER III.

THE CABINET.

1. The members of the President's Cabinet are seven in number, viz.: Five Secretaries, at the head of their respective departments, of State, Treasury, War, Navy, and Interior; and the Postmaster General, and Attorney General. It is through these departments and their various bureaus, officers, agents, and clerks, that the President performs most of the duties of his position, viz.: that of *executing*, or putting in force, the laws of Congress. He must, therefore, necessarily take them into his counsels, and arrange, by their assistance, the conduct of public affairs. Each one has the affairs of his department so thoroughly systematized that he can tell, with a little examination, the means at his disposal for carrying into effect any special measure; and precise records of the whole state of the public service may, at all times, be found in their offices.

2. They are also selected for their several positions from among those regarded as the most eminent statesmen of the country, and each is supposed to be specially adapted, by his experience, acquirements, and capacity, for his special position, as well as in harmony with the general policy adopted by the President. They are, therefore, properly, and *ex officio* (by virtue of their office), his advisers. No one else can tell as well as they the condition of public affairs at any particular time, nor, in consequence, give as good advice on any special measure requiring such knowledge. Without their aid the President would have few means of judging what was best, or possible, to be done at any particular crisis. They furnish the material for his decisions, and the instruments to execute them. They are heads of the Executive Departments, and, together with the President, who is the head of them all, bringing them all into harmony, and under the control of a single purpose and will, they are called the administration. They administer, or carry on, the government.

3. In other countries these administrative heads are usually called Ministers, probably because they serve the ruler—servant being the original meaning of the term minister—and are commonly chosen among the members of the legislative bodies—perhaps because that brings the government into closer sympathy with the legislators, and promotes harmony of action; but with us, no member of the Cabinet can have a seat in, or take any part in the proceedings of, Congress. Great care was taken to keep the different branches of the government distinct and independent of each other. Each branch, and each subdivision, is kept separate, and confined to its own range of duties, being united to the others only by its head, so that confusion and conflict might be impossible.

4. Each sub-department reports at stated intervals to its head, and he to the President, and through him to Congress; and at the same time they present such suggestions and arguments for legislation in regard to their several departments as their knowledge, experience, and reflections may have convinced them to be desirable. They are supposed to give their whole time and thought to the care and improvement of their several branches of the public service, and to be in condition to know what further improvement should be provided for by law, better than any one else.

5. Under Washington's administration the departments and members of Cabinet were but three—of State, of the Treasury, and of War. In 1798,

during the administration of John Adams, the Department of the Navy was added, and its Secretary took his seat in the Cabinet. It then had only four members down to Jackson's administration (1829 to 1837), when the Postmaster General was made a Cabinet officer, which increased the number to five. During Mr. Tyler's administration (1841-1845) the Attorney General was made a member, and the number was then six. At the close of Mr. Polk's term as President, in 1849, the Department of the Interior was created, and its chief given the seventh seat in the Cabinet; since which time there has been no increase. Congress may, at their discretion, as the country grows, and the public service with it, create other great or independent departments requiring its representative to have a seat in the Cabinet, that the state of the entire service may be readily known from the officer most familiar with each branch.

CHAPTER IV.

DEPARTMENT OF STATE.

1. As the Chief Executive of a government cannot, for want of time, attend to all the details of the business belonging to his office, he, according to the usage of all times, appoints various officers to attend to the different branches of public business. In most countries these officers, who are next in importance to the chief of the government, are called Ministers. In accordance with the practice of using plain and simple terms which was adopted in this country at the beginning, they are called Secretaries. They are subordinates of the President and supposed to act in his name and under his direction.

2. They are not specially named in the Constitution, but are several times referred to as Heads of Departments, and thus it was assumed that there would be such offices and officers, and their appointment was provided for. The first Congress under the Constitution organized these Executive Departments, the President nominating and the Senate confirming the appointment of the more responsible officers.

3. The first of these in rank is called the Department of State, and its head is named the Secretary of State. He is, by a law passed in 1853, aided by an Assistant Secretary, appointed in the same manner as himself. The numerous under officers required by the extensive business falling to this department are appointed by the Secretary at its head.

4. This Department has charge of such business as may arise between this government and the governments of other countries. In most countries it is called the Department, or Ministry, of Foreign Affairs, but the term Department of State was preferred here. The great Seal of the United States is in his keeping, and it is his duty to affix it to all civil commissions given to officers of the United States who are appointed by the President and Senate, or by the President alone. It is his duty, under the supervision and control of the President, to conduct the correspondence with, and give instructions to, the Foreign Ministers, Consuls, and Agents of the government abroad, to take charge of the official business and intercourse of the government with the representatives of foreign governments sent to us, and to attend to such other business arising from our Foreign Relations as shall be committed to him by the President.

5. It is his duty to keep in his office the original copies of all acts, resolutions, and orders of Congress. He must deliver to each Senator and Representative in Congress, and to the Governor of each State, a printed copy of the same; and during the session of each Congress he must publish the acts and resolutions passed by it in one newspaper in the District of Columbia, and in not more than two in each State and Territory of the United States. He must also publish in like manner all amendments of the Constitution, and all public treaties made and ratified between the United States and any foreign State, Prince, or Power, or with any of the Indian tribes.

6. And at the close of each session of Congress he must cause to be published 11,000 copies in book form of all the laws, etc., as before stated; and to distribute the same as directed by law to the President and Vice-President, and to every ex-President; to all the members of the Senate and House of Representatives; to all the heads of the various departments and bureaus; to all the Judges of the United States Courts, their Clerks and Marshals; to all our Foreign Ministers, Consuls, and Public Agents; in short, to all the important officers of the government at home and abroad; in order

that all who are in government employ may know what the laws are, and what changes have been made in acts formerly existing. The remaining copies are distributed to the States and Territories according to the number of Representatives in Congress from each of them.

7. It is also made the duty of the Secretary of State to give passports to our own citizens who wish to travel in foreign countries; to cause passports to be issued by such Diplomatic or Consular officers of the United States as the President shall direct; to give such information to our people through the newspapers as he may from time to time receive from our Diplomatic and Consular agents abroad, as he may deem important to the nation, respecting our commercial interests in foreign countries, and to prepare a form of passport for the ships and vessels of the United States.

8. In the execution of extradition treaties between us and foreign governments, it is lawful for the Secretary of State, under his hand and seal of office, to issue an order for the rendition of any person who has been found guilty of crime in a foreign country, to any properly authorized person; that such criminal may be taken out of the United States to the country where the crime was committed.

9. It will be seen that, in addition to the duties connected with our Foreign Relations, he is a kind of General Secretary of the Legislative branch of the government, which probably led to his being called Secretary of State rather than Secretary of Foreign Affairs. The highest officer, in most other governments, under the Executive, is commonly called Prime Minister; but he usually has care of the general interests of the government, internal as well as external, and the term would not be fitting to the Secretary of State.

Our Foreign Relations require to be managed with great wisdom and skill, since they often involve peace and war, and the general prosperity of the country. It therefore requires a man of great ability, and of extensive knowledge. He is a member of the Cabinet, and one of the advisers or counselors of the President. His appointment is for four years, or during a Presidential term; but he may be removed by the President at any time, if he deems it advisable.

10. As a matter of historical reference, we append the names of all the statesmen who have filled this high office, commencing with the first,

placing them in the order of the dates of their appointments, together with the States from which they came:

SECRETARIES OF STATE.

Thomas Jefferson, Va., Sept. 26th, 1789.
Edmund Randolph, Va., Jan. 2d, 1794.
Timothy Pickering, Mass., Dec. 10th, 1795.
John Marshall, Va., May 13th, 1800.
James Madison, Va., March 5th, 1801.
Robert Smith, Md., March 6th, 1809.
James Monroe, Va., April 2d, 1811.
John Quincy Adams, Mass., March 4th, 1817.
Henry Clay, Ky., March 7th, 1825.
Martin Van Buren, N. Y., March 6th, 1829.
Edward Livingston, La., May 24th, 1831.
Louis McLane, Del., May 29th, 1833.
John Forsyth, Ga., June 27th, 1834.
Daniel Webster, Mass., March 5th, 1841.
H. S. Legaré, S. C., May 9th, 1843.
A. P. Upshur, Va., June 24th, 1843.
John Nelson, Md., Feb. 29th, 1844.
John C. Calhoun, S. C., March 6th, 1844.
James Buchanan, Pa., March 5th, 1845.
John M. Clayton, Del., March 7th, 1849.
Daniel Webster, Mass., July 20th, 1850.
Edward Everett, Mass., Dec. 9th, 1851.
William L. Marcy, N. Y., March 5th, 1853.

Lewis Cass, Mich., March 6th, 1857.

Jeremiah S. Black, Pa., Dec. 14th, 1860.

William H. Seward, N. Y., March 5th, 1861.

Elihu B. Washburne, Ill., March 5th, 1869.

Hamilton Fish, N. Y., March 11th, 1869.

Hamilton Fish, N. Y., reappointed March 4th, 1873.

CHAPTER V.

OUR REPRESENTATIVES IN FOREIGN LANDS.

1. Nations have business with each other, as individuals have; and their governments employ agents to represent them and transact business in their name. By these means their political and commercial relations and intercourse are regulated, treaties are made, and any disputes that may arise between them settled. Officers of this character have been employed from very early times, and by all nations. They are considered to be clothed with the authority and dignity of the government they represent, and therefore the office has ever been held in great honor, and men most familiar with the affairs of their own nation, of most extensive knowledge, prudence, and wisdom, are supposed to be selected for so eminent a service.

2. By the law (or general consent) of nations ambassadors are exempt from arrest, imprisonment, or prosecution. Any interference with them in this way might hinder the execution of the duties assigned them, and be a great damage to the public welfare, and an offense of that kind committed against them is considered as a dishonor to the government whose agents they are. On the other hand they require much judgment and tact that their conduct may not bring discredit on their government. Their inviolable character is carried so far as to exempt their servants from arrest, and their property from seizure for debt. The law of Congress protecting the Representatives of foreign governments to this country is but a re-enactment, or acceptance, of what has been known as the Law of Nations for many centuries all over the civilized world. A violation of this

established usage among nations, without due atonement and satisfaction, would be recognized as a sufficient cause for war against the nation so offending.

3. Our own foreign ministers of all grades are appointed by the President, by and with the advice and consent of the Senate. They are not, however, the representatives of the President, but of the government of the United States. We said of all grades, for there are grades of these officials, different in dignity and power. They are distinguished also by different names which indicate their rank, viz.: Ambassadors, Envoys Extraordinary and Ministers Plenipotentiary, Ministers Resident, and Chargé d’Affaires.

AMBASSADORS.

4. This title in our country has no very specific meaning. It designates, however, a minister of the highest grade; but does not distinguish between one who goes to reside in the country whither he is sent, and one who is sent for some special purpose; such as that of negotiating a treaty of peace, or some other particular matter with which he is charged, and when that is accomplished returns home. In the latter case he is frequently styled a commissioner, because he was duly authorized, and *commissioned* by his government to act for it; but in both cases the officer is an ambassador, for that word means a person authorized and sent to transact business for his government.

ENVOYS EXTRAORDINARY AND MINISTERS PLENIPOTENTIARY.

5. These titles designate ministers of the highest class; but generally refer to such as go to reside in the country where sent, and with full power to act for their government, in all matters and things of a diplomatic character.

Where negotiations become necessary between the two nations, permanent ministers of this grade are only sent to great powers—governments of the higher class.

MINISTERS RESIDENT.

6. These are not considered so high in rank as those termed envoys extraordinary and ministers plenipotentiary. Yet they are clothed with nearly the same powers, but are sent to countries of less importance, and receive less salaries.

COMMISSIONERS.

7. There are a still lower grade of ministers (if we may call them so), or government agents, who reside abroad. They are sent to look after the interests of our government and its citizens in places of not much importance, and where there is but little to do. They also receive but small pay.

CHARGE D’AFFAIRES.

8. These officials rank as the lowest grade of ministers or diplomatic officers, and are not clothed with much authority or power, excepting when authorized to act in the room of a minister of higher rank, whose place is for the time being vacant. In this case consuls have been authorized to act in place of ministers; but not unless authorized to do so by the President of the United States.

SECRETARIES OF LEGATION.

9. Secretaries of Legation may with propriety be noticed under the general head of ministers, although they are not ministers of any grade, but are appointed by the same powers that appoint ministers, and accompany them merely as their secretaries. In the absence of a chargé d’affaires, they are sometimes authorized to act in his place. The position is not one of great dignity, nor is the compensation large.

CHAPTER VI.

TREATIES—EXTRADITION TREATIES.

1. A treaty is a written contract, entered into by two nations, on some question of interest or intercourse between them. It is precisely of the nature of a contract between two persons when they bind themselves to do, or not to do, certain things specified in the contract. That would be a treaty between individuals. Treaties between nations are only different in the solemn and formal manner of arranging and confirming these agreements.

2. Treaties have often been of great service to the world, both in ancient and modern times. By these negotiations, wars have been prevented, friendly relations maintained, and commercial intercourse kept up, advantageously to both parties. Treaties may be negotiated by any persons properly authorized by their governments to do so; and any government may authorize such persons as they see fit, to perform these important acts. In many cases the ordinary ministers who represent their governments to other governments, negotiate ordinary treaties. But in cases where something of an extraordinary character is to be arranged, special ministers or commissioners are sent for this express purpose. This was the case at the treaty of Ghent (so called from the name of the place where the commissioners met to arrange it), in 1814; by which a peace was brought about between England and the United States, after the last war between those powers. Special ministers, or commissioners, as they were denominated, were appointed and sent for this very purpose. A treaty of peace was agreed upon by the commissioners of the respective countries, and hostilities ceased as soon as the news reached the United States.

3. In some cases our government has authorized its commanding generals to make a treaty with the hostile nation. It has also given the same power to the commanders of our national vessels; and also, in a few cases, to our consuls, in countries at a great distance from home, such as China, Japan, Siam, and Turkey.

The persons authorized to negotiate a treaty, rarely act without instructions from their government, as to the times and conditions of the proposed treaty. Much, however, must be left to the sound judgment and discretion of the negotiators as to the details.

4. It must be borne in mind that a treaty, although mutually agreed upon by the agents of the nations concerned, is not binding upon either party until properly ratified according to the forms of the respective governments

interested. The modes of ratification differ in different governments. In ours the Constitution confers this power upon the President, by and with the advice and consent of two-thirds of the Senate.

In absolute monarchies this power rests in the hands of the King or Emperor alone. As before stated, every government may confer the power to negotiate a treaty upon such agents as it pleases. It also has the power to prescribe such modes of ratifying or confirming it, as it pleases.

5. But when once made and approved, it becomes binding not only upon the respective governments that made it, but upon all the citizens and subjects of that government. It has been held in this country by our greatest lawyers and statesmen, that the provisions of a treaty bind Congress, the President, and every citizen as much as any Constitutional provision or act of Congress. And for this reason our treaties are published in the papers in every State and Territory in the Union, in the same manner, and to the same extent, as the laws of Congress.

6. The violation of a treaty by either of the parties thereto, is reprehensible and criminal. It is derogatory to the character of any nation or individual that does it. It destroys the confidence of one nation in the other, leads to unfriendly feelings and acts between the parties, and may bring on a war, if satisfaction is not given. Yet such things have been done, and evil consequences have always followed. "If you make a bargain, stick to it," is a common, trite, and wise saying.

Just here it seems proper to call attention to the fact that the Constitution prohibits any State from making any treaty with any foreign government. The reason for this provision is very obvious, for, if allowed, a State might confer privileges upon foreign powers which would be incompatible with the interests of other States. Therefore the treaty-making power is kept wholly in the hands of the general government, for in it every State has its representatives, and a voice in every treaty which it makes.

7. So numerous are the treaties which the United States has made with nearly every civilized nation upon earth, that it would require a very large volume to contain them. They are published with the laws, and generally in English and in the language of the nation with whom the treaty is made. They may be found in the United States Statutes at Large. It would require too much space in a work of this kind, to give even their titles.

8. Wars have been stopped; boundary lines between nations have been established; commercial intercourse arranged; the purchase and sale of lands, and a variety of other things have been the subjects, and formed the matter of treaties. Several of our most important ones relate to the purchase of territory. We acquired the States of Louisiana, Arkansas, and Missouri, by a treaty with France in 1803. It was called the Louisiana purchase; for it was nothing more than a purchase and sale of lands. We also acquired Florida of Spain, in 1819, in the same way, and California and New Mexico of Mexico, in 1847.

9. The immense quantities of land purchased of the Indians, were obtained by treaties with them. We are sorry to say that in some cases they have treacherously violated their treaty obligations; but at the same time it should be said by way of extenuating their offense, that our own government agents appointed for the purpose of taking care of the interests of the poor Indians, have, in connection with the white traders among them, shamefully cheated and wronged them, and provoked them not only to disregard their obligations, but to perpetrate murders, robberies, and thefts upon the whites who live near them. At different times during the years past, the Indians have been very hostile to us, and have waged war against the whites in their vicinity for the reasons above stated. "Honesty is the best policy."

10. In the early part of the year 1867, a treaty was negotiated by William H. Seward, our Secretary of State, on the part of the United States, and Edward de Stoeckl, the Russian Minister to the United States, on the part of Russia, for the cession of the Russian possessions in North America to the United States.

This treaty may be regarded as one of the most important of all our treaties with foreign powers; for by it the United States acquire between 350,000 and 400,000 square miles of territory, in addition to our already immense possessions; and it places by far the greater part of the Northwestern coast of North America under the control of the United States government.

For the purpose of giving a specimen of a treaty, and showing some of the details of this negotiation, we here insert it in full, as agreed upon by the contracting parties. \$7,000,000 in gold is the consideration which the

United States paid Russia for this territory. This treaty has been ratified by the United States and Russian governments, and the money, (\$7,000,000 in gold) has been appropriated for the purpose, and paid to the Russian Minister.

THE RUSSIAN TREATY.

The following is the text of the Russian-American treaty:

The United States of America, and his Majesty, the Emperor of all the Russias, being desirous of strengthening, if possible, the good understanding which exists between them, have for that purpose appointed as their plenipotentiaries, the President of the United States, William H. Seward, Secretary of State, and his Majesty the Emperor of all the Russias, Mr. Edward de Stoekl, his Envoy Extraordinary and Minister Plenipotentiary to the United States, and the said plenipotentiaries, having exchanged their full powers, which were found to be in due form, have agreed upon and signed the following articles:

ARTICLE I. His Majesty, the Emperor of all the Russias, agrees to cede to the United States, by this convention, immediately upon the exchange of the ratifications thereof, all the territory and dominion now possessed by his said Majesty on the continent of America and in the adjacent islands, the same being contained within the geographical limits herein set forth, to wit: The eastern limit is the line of demarcation between the Russian and British possessions in North America, as established by the convention between Russia and Great Britain, of February 28 (16), 1825, and described in articles third and fourth of said convention in the following terms: Commencing from the southernmost point of the island called Prince of Wales' Island—which point lies in the parallel of 50 deg. 40 min. north latitude, and between the 131st and 133d deg. of west longitude, meridian of Greenwich—the said line shall ascend to the north along the channel called Portland Channel, as far as the point of the continent where it strikes the 56th degree of north latitude. From this last mentioned point the line of demarcation shall follow the summit of the mountains situated parallel to the coast as far as the point of intersection of the 141st degree of west longitude of the same meridian, and finally from the said point of intersection the said meridian line of the 141st degree in its prolongation as

far as the Frozen Ocean. With reference to the line of demarcation laid down in the preceding article, it is understood—first, that the island called Prince of Wales' Island shall belong wholly to Russia, and now, by this cession, wholly to the United States; second, that whenever the summit of the mountains which extend in a direction parallel to the coast from the 56th degree of north latitude to the point of intersection of the 141st degree west longitude shall prove to be at the distance of more than ten marine leagues from the ocean, the limit between the British possessions and the line of coast which is to belong to Russia as above mentioned—that is to say, the limit of the possessions ceded by this convention—shall be formed by a line parallel to the winding of the coast, and which shall never exceed the distance of ten marine leagues therefrom. The western limit, within which the territories and dominion conveyed are contained, passes through a point in Behring's Strait on the parallel of 65 deg. 30 min. north latitude, at its intersection by the meridian which passes midway between the island of Krusenstern, or Ignaalook, and the island of Ratmanog, or Noonerbook, and proceeds due north without limitation into the same Frozen Ocean. The same western limit beginning at the same initial point, proceeds thence in a course nearly northwest through Behring's Strait and Behring's Sea, so as to pass midway between the north-west part of the island of St. Lawrence and the south-east point of Cape Choukottki to the meridian of 172 deg. west longitude. Thence, from the intersection of that meridian, in a south-westerly direction, so as to pass midway between the island of Attou and the copper island of the Koranddorski couplet or group in the North Pacific Ocean, to the meridian of 193 deg. west longitude, so as to include in the territory conveyed the whole of the Aleutian Islands east of that meridian.

ART. II. In the cession of territory and dominion made by the preceding article, are included the right of property in all public lots and squares, vacant lands, and all public buildings, barracks, and other edifices which are not private, individual property. It is, however, understood and agreed that the churches which have been built in the ceded territory by the Russian government shall remain the property of such members of the Greek Oriental Church resident in the territory as may choose to worship therein. Any government archives, papers, and documents relative to the territory and domain aforesaid, which may be now existing there, will be left in possession of the agent of the United States; but an authenticated copy of such of them as may be required will be at all times given by the

United States to the Russian government, or to such Russian officers or subjects as may apply for them.

ART. III. The inhabitants of the ceded territory, according to their choice, reserving their natural allegiance, may return to Russia within three years; but if they should prefer to remain in the ceded territory, they, with the exception of uncivilized tribes, shall be admitted to the enjoyment of all the rights, advantages, and immunities of citizens of the United States, and shall be maintained and protected in the free enjoyment of their liberty, property, and religion. The uncivilized tribes will be subject to such laws and regulations as the United States may from time to time adopt in regard to aboriginal tribes of that country.

ART. IV. His Majesty, the Emperor of all the Russias, shall appoint, with convenient dispatch, an agent or agents, for the purpose of formally delivering to a similar agent or agents, appointed on behalf of the United States, the territory, dominion, property, dependencies, and appurtenances which are ceded as above, and for doing any other act which may be necessary in regard thereto; but the cession, with the right of immediate possession, is nevertheless to be deemed complete and absolute on the exchange of ratifications, without waiting for such formal delivery.

ART. V. Immediately after the exchange of the ratifications of this convention, any fortifications or military posts which may be in the ceded territory shall be delivered to the agent of the United States, and any Russian troops which may be in the territory shall be withdrawn as soon as may be reasonably and conveniently practicable.

ART. VI. In consideration of the cession aforesaid, the United States agree to pay, at the Treasury in Washington, within —— months after the exchange of the ratifications of this convention, to the diplomatic representative, or other agent of His Majesty, the Emperor of all the Russias, duly authorized to receive the same, —— million dollars in gold. The cession of territory and dominion herein made is hereby demanded to be free and unincumbered by any reservations, privileges, franchises, grants, or possessions, by any associated companies, whether corporate or incorporate, Russian or any other, or by any parties except merely private individual property holders; and the cession hereby made conveys all the

rights, franchises, and privileges now belonging to Russia in the said territory or dominion and appurtenances thereto.

ART. VII. When this convention shall have been duly ratified by the President of the United States, by and with the advice and consent of the Senate, on the one part, and on the other by His Majesty, the Emperor of all the Russias, the ratifications shall be exchanged at Washington within —— from the date hereof, or sooner, if possible. In faith whereof the respective plenipotentiaries have signed this convention, and thereto affixed the seals of their arms.

EXTRADITION TREATIES.

1. Treaties have been made from time immemorial between rulers and nations for the purpose of promoting the interests of one or both parties in their commercial relations, or to secure allies in war; but the kind of treaties mentioned at the head of this section are of modern origin; and shows strongly the progress of nations toward a substantial unity of interests and of discipline.

2. The security of society demands that when men commit a crime in one place they shall not be able to find a safe asylum to which they may fly whenever the retributions of the law, which watches over the welfare of the citizen, threaten to overtake them. The readiness with which criminals can pass from one country to another since steam has made travel so speedy and pursuit for any long distance so difficult, increases the evil. When criminals fly to another country they cannot be punished there, since their courts have no jurisdiction over a criminal from another nation, unless the act was committed in the country where they were established; nor are governments usually willing to deliver an individual on accusation only, unless there is an express stipulation, or treaty to this effect, between them. To overcome the difficulty a treaty was made in 1842 between this country and England, in which it was mutually agreed that each country, on the demand of the government of the other, should give up criminals of certain kinds named in the treaty, when these after the crime had fled into their jurisdiction. It worked well, since it multiplied the chances of punishment, and tended to check crime.

3. Subsequently, treaties of the same kind were made between the United States and the following countries:

France	in 1843
Prussia, and 17 other German States	” 1852
Switzerland	” 1855
Baden	” 1857
Sweden	” 1860
Venezuela, South America	” 1861

The time is probably not distant when treaties of this sort will be made between us and all the civilized nations of the world; for the intercourse between us and foreign nations is greater than ever before.

The effect of these international arrangements is to render the perpetration of crime more dangerous than it would be if they did not exist. Flight from the country where the crime was committed was formerly one of the most effectual methods of escaping the penalty. But extradition treaties, Atlantic cables, and land telegraphs, have nearly spoiled this game.

3. An extradition treaty, then, is a mutual agreement between two nations to deliver up, each to the other, upon demand and proper proof of criminality, such persons as have committed crimes in one country and then fled to the other, that they may be taken back, tried, and punished where the offense was committed. But these demands for escaped criminals can not be sustained if made for every crime whatever. They will only be complied with when the crime is one which is named in the treaty itself. These crimes, upon examination of a number of such treaties, we find to be: 1. Murder, or an assault with an intent to commit murder. 2. Piracy. 3. Arson. 4. Robbery. 5. Forgery, or the uttering of forged papers, or the making or circulating counterfeit money, either paper or coin. 6. Rape. 7. Embezzlement, and 8. Burglary.

4. It should be observed that a mere demand for an alleged offender is not sufficient. Proof enough to convince the judge before whom the case is brought must accompany the demand. He must be satisfied that the party demanded has committed the alleged offense; when this is done the judge reports his finding to the Secretary of State, whose duty then is, under his hand and seal of office, to issue the final writ of extradition; after which the

criminal may be taken out of the United States (by force, if necessary), and back to the country where he committed the crime, there to be dealt with according to the laws which he violated.

5. In some of our extradition treaties it is expressly stipulated that neither party (government) shall be bound to surrender its own citizens, or any person for merely a political offense. In others it is agreed that the provisions in the treaty shall not apply to cases where the crime was perpetrated before the treaty was made. This plea, we think, would be held to be a good defense in all cases, whether so stipulated in the treaty or not.

6. The treaties between different nations for the surrender of criminals are so analogous to one of the provisions contained in our Constitution, that to insert it here will give the reader a clear comprehension of its meaning. It is found in the second section of article 4, and reads thus:

“A person charged in any State with treason, felony, or other crime, who shall flee from justice, and be found in another State, shall, on demand of the executive authority of the State from which he fled, be delivered up, to be removed to the State having jurisdiction of the crime.”

CHAPTER VII.

BUSINESS REPRESENTATIVES.

1. These officers, called Consuls, are employed by most civilized nations, all those at least who have an extensive intercourse with foreign countries, and they are recognized by the Law of Nations as being clothed, when acting in their official capacity, with the authority and inviolability of their respective governments. Their place of official business is protected by the flag of their country, an insult to which renders reparation or war necessary to maintain its honor. Consuls are agents of their governments, but most of their duties have reference to the interests of private citizens who may be within their Consulate. There may be a great number of them in one country, and they are usually located in the seaports.

2. The Constitution provides that the President and Senate shall appoint all our Consuls. The President signs their commissions, which bear the

great seal of the United States, and which prove to the government where they are sent that they are duly appointed and authorized to discharge the duties of Consuls at the ports or places to which they have been appointed.

3. In order to show the nature of a Consul's duties, such as the laws impose upon him, we will state the substance of several acts relating to this subject.

1. Whenever a vessel belonging to a citizen of the United States arrives at the port where he is stationed, it is his duty to receive the ship's papers, and to see if they are all correct.

2. It is his duty to provide for sick, disabled, and destitute American seamen, and to send them home by some vessel going to the United States.

3. He must hear the complaints of seamen, and settle disputes between the captain and men; and for good cause he may discharge the whole ship's crew.

4. It is made his duty to receive and take care of the personal property of any citizen of the United States who has died within his Consulate, and to send any balance which may be left after paying his debts and necessary expenses, to the treasury of the United States, to be held in trust for the legal claimants. He must also give notice to the Secretary of State of the death of such person.

4. For the purpose of carrying out and executing certain treaties made between the United States and China, Japan, Siam, and Turkey, Consuls to those countries have been empowered with judicial functions. They were allowed to act as judges, and to try and punish citizens of the United States who had committed crimes there. These, however, were extraordinary powers in special cases, and by no means common to the consular office.

5. In the absence of a minister or diplomatic agent of the United States, the President may authorize a Consul to perform the duties of such foreign minister; but these powers are rarely conferred on them. Their ordinary duties relate to commercial affairs, and to such as are before stated.

6. A Vice-Consul, or deputy Consul, is one appointed to act temporarily in case of sickness or absence of the Consul. His powers, while acting, are the same as those of the Consul in whose place he acts. Every Consul is required to give bonds for the faithful performance of his duties.

7. Our commerce has been extended to almost every part of the globe, and for this reason we need a great number of these officials. Their services are required at all great seaports, and at many smaller ones. The compensation varies according to the amount of business to be transacted by them, from \$7,500 down to \$500. Some do not receive any salary, but are allowed the fees they are authorized to charge for their services.

8. It is his duty to give his government and countrymen all such information as he possesses in relation to the laws and practices of the country to which he is sent, which it would be important for them to know; and especially is it his duty to look after the interests and welfare of his countrymen when they are within his Consulate, and to see that no wrong or injustice is done to them by the people or government where he resides.

CHAPTER VIII.

PASSPORTS.

1. These are written documents, in due official form, signed and sealed by the proper authority, to convey official information, or serve as a means of protection, and to readily distinguish the American Citizen abroad, or to give a permission or authority to go where those not having passports are forbidden to go. The passport conveys authentic information to whom it may concern, to what nation the bearer of the passport belongs; and second, to protect him, and secure to him all the rights and privileges which the government has a right to claim for its citizens by virtue of any treaty of amity and friendship existing between it and the country whither its citizens may go.

The passport informs the world that the bearer of it is a citizen of the United States, and that he travels under its protection, and that it would demand and exact satisfaction of any one who wronged or injured him who bears such credentials.

2. In the United States, the Secretary of State is the officer authorized by law to issue passports. He has the authority also to cause them to be issued in foreign countries by our foreign ministers and consuls, under such

1. If the Executive Department that has charge of the public moneys is not highest in nominal rank, it certainly does not hold a less important and interesting place in the estimation of the country and of the world than the Department of State. Every part of the government is dependent on this for its efficiency. It is the heart of the country. The in-and-out-flowing of the tide of money from the central point marks the pulses of the nation's prosperity. Especially has this been the case since the Civil War, and the immense developments and changes that followed it. The banking system, making the Treasury responsible for the issue of all the hundreds of millions of bank notes used in the business of the country, adds immensely to the importance of the United States Treasury.

2. The management of this Department is committed to the Secretary of the Treasury. He is selected for that office by the President, and when his nomination is approved by the Senate his appointment takes place. He holds office during a presidential term, unless sooner removed. He is a member of the Cabinet and one of the President's advisers.

3. The financial policy adopted by the country depends very much on his views on that difficult question, and the interests and wealth of millions on the ability and integrity he possesses. He is therefore chosen on account of his real or supposed qualifications on questions of finance.

He is aided in his duties by an Assistant Secretary, a Comptroller and Second Comptroller, five Auditors, a Treasurer and his assistant, a Register and his assistant, a Commissioner of Customs, a Comptroller of the Currency and his deputy, and a Solicitor of the Treasury. All these have their offices in connection with the Treasury Department at Washington. In several of the large cities are sub-treasuries, each presided over by an assistant Treasurer, where public funds are received and disbursed. The Treasurers of the Mints are also, many of them, Assistant Treasurers of this Department. All these are appointed by the President and Senate in the same manner as the Chief Secretary.

4. The sums of money actually handled, and the accounts of all moneys received and disbursed without passing into the vaults of the Treasury, amount to many hundreds of millions annually, and require the constant service of some hundreds of clerks. These all need to have clean hands and pure hearts, which is, unfortunately, more rare among men of all classes than could be wished. Yet the whole is reduced to so accurate a system that a loss at any point immediately produces a disturbance in the whole machinery, and a short examination suffices to reveal the point of difficulty and the person responsible for it. Accordingly, losses and defalcations are seldom experienced in or near the central point of the Department. If they occur, which is sometimes the case, it is usually some officer at a distance who is found to be at fault, whose sphere of operations lies far from the centre and only occasionally passes under scrutiny. Each has his separate sphere of duties which no one else interferes with, and assumes his own responsibility; and probably no other institution in the world loses less in proportion to the amount of money involved and the number of persons handling it.

5. Every account must be carefully examined and approved by the proper officer before it can be presented for settlement and the money paid out, and whatever moneys may flow in, none can flow out but according to some law of Congress definitely appropriating it.

All officers having the handling of public funds are required to give security for the faithful discharge of their duties. This must, by the requirement of the law, be done before they can enter their respective places.

SECRETARIES OF THE TREASURY.

Alexander Hamilton, N. Y., Sept. 12, 1789.

Oliver Wolcott, Ct., Feb. 4, 1795.

Samuel Dexter, Mass., Dec. 31, 1800.

Albert Gallatin, Pa., May 14, 1801.

George W. Campbell, Tenn., Feb. 9, 1814.

Alexander J. Dallas, Pa., Oct. 6, 1814.

William H. Crawford, Ga., Oct. 22, 1816.

Richard Rush, Pa., Mar. 7, 1825.

Samuel D. Ingham, Pa., Mar. 6, 1829.

Louis McLane, Del., Aug. 8, 1831.
William J. Duane, Pa., May 29, 1833.
Roger B. Taney, Md., Sept. 23, 1833.
Levi Woodbury, N.H., June 27, 1834.
Thomas Ewing, O., Mar. 5, 1841.
Walter Forward, Pa., Sept. 13, 1841.
John C. Spencer, N.Y., Mar. 3, 1843.
George M. Bibb, Ky., June 15, 1844.
Robert J. Walker, Miss., Mar. 5, 1845.
W. M. Meredith, Pa., Mar. 7, 1849.
Thomas Corwin, O., June 20, 1850.
James Guthrie, Ky., Mar. 5, 1853.
Howell Cobb, Ga., Mar. 6, 1857.
Philip F. Thomas, Md., Dec. 10, 1860.
John A. Dix, N.Y., 1861.
Salmon P. Chase, O., Mar. 5, 1861.
William P. Fessenden, Me., July, 1864.
Hugh McCulloch, Ind., 1864.
George S. Boutwell, March 11, 1869.
W. A. Richardson, March 17, 1873.
B. H. Bristow, Ky., June 3, 1874.

CHAPTER X.

THE FINANCIAL SYSTEM OF THE U. S.

1. Revenue, or the income of the government, is derived from various sources. A tax—or duty, as it is often called—laid on goods imported into the country, is one of the most important. It is easy for a government to manage without producing a very sensible effect on the people, and has been a favorite mode of raising a revenue with nearly all governments since commerce became general.

2. The sale of public lands has, in this country, been a source of large revenue; though the desire to encourage emigration and develop the unsettled parts has led the government to sell them for a nominal sum. Still, these lands were so attractive and extensive as to sell rapidly and produce a considerable income. The Post Office Department has been a source of income, in great part supporting itself. Duties paid on the tonnage of vessels, the forfeiture of goods smuggled, or introduced into the country without paying the lawful tax or duty, and the forfeiture of vessels used in that unlawful trade, prizes taken in war, and fees required to be paid to various officials when their services are employed, are minor sources of revenue.

3. When all these are not sufficient, as in time of war, or when an immense war debt is to be paid, direct taxes are laid on the property and business of the country. This is called

THE INTERNAL REVENUE,

and is borne with more or less patience, according as the people regard the end to be gained important. The revenues of the States are mostly derived from this source. They are not allowed to raise their revenue from foreign commerce, since that would be a tax on goods liable to be paid by the people of another State.

4. The necessity of laying large direct taxes does not, in this country, often arise in case of the General Government; but during and after the gigantic Civil War between the North and South, when enormous expenses had to be met, and the credit of the government sustained, the direct taxes became very large indeed. In 1861 Congress passed the "Internal Revenue Law," by which twenty millions of dollars were to be annually raised from direct taxes on houses and lands in each of the States and Territories.

By subsequent acts not only houses and lands were taxed, but almost every sort of property and business. Licenses were required for persons to carry on their profession, trade, or business; incomes were taxed; deeds, mortgages, notes, bonds, bank checks, and papers of almost every kind were invalid unless they had a revenue stamp upon them. Manufacturers had to pay a certain per-centage on whatever they made. Scarcely any calling, trade, profession, or business escaped it, directly or indirectly.

5. To carry out these provisions, the whole country was divided into Revenue Districts, corresponding, so far as convenient, with Congressional Districts. An officer of the Treasury Department, called the Commissioner of Internal Revenue, was appointed, charged with the duty of preparing instructions, forms, blanks, stamps, and licenses, to be used in the collection by the multitude of minor officers employed, and of overseeing the whole work. Each district had its chief officer, and his deputies, assessors, and collectors, by whom the money at length reached the Treasury at Washington. It created an army of officers to be paid. It was laid aside as soon as possible, and taxation made less onerous and expensive. The remarkable prosperity of the country at that particular period made it easier to bear. Direct taxes laid by the General Government are more economically collected by the State or local officials, in all ordinary cases. This was a very extraordinary and pressing one, and the people were so eager to put their debt in the way of extinction that it was endured with much patience for several years, when most of this cumbrous and costly machinery was laid aside.

6. The vast war debt, the large number of government officers employed in attending to the interests of so large and prosperous a country, the support of the army and navy, the great number of foreign representatives and agents of the government, and the public works necessary for the development or protection of the country, make a large revenue indispensable.

7. It is best when the people are free and intelligent that they be governed as little as possible—or rather that they govern themselves as much as possible, and that as few officials as may be live on the fruits of other people's labor. There must necessarily be an army of them, at the least; but such arrangements should be made that public expenses may be reduced, to the lowest point, and republican simplicity everywhere reign.

The principle and habit of public economy should be earnestly insisted on, since the handling of immense sums of public money is much more demoralizing than the acquisition of private wealth in legitimate ways. It is a strong temptation to men of weak moral character; and private property is more likely to be carefully used and economically expended than public funds. The smaller the revenue, consistent with the general development of the country, the better.

CHAPTER XI.

DUTIES AND TARIFFS.

1. Duty is a term used to designate a sum paid by foreign merchandise coming to our country for sale, for the privilege of entering and being offered to purchasers. Tariff is a rate, or scale, of duties.

2. Ever since intercourse has become frequent between different nations commerce has been occupied in effecting interchanges of the products and industries of each country with others. Each country has peculiarities that specially fit it for the production or manufacture of some article, or list of articles, which others would be unable to produce, or would produce at greater inconvenience and expense, and which is of high value to all, or many of the others. The social principle has proved to be of extreme value to the improvement of men, and to their happiness; and we might say that, in this unequal distribution of capacities in the lands, and the races who inhabit them, the exercise of the social principle, on a broad scale, was made, by nature, indispensable.

3. Each nation, then, devotes itself to its special features of production, and exchanges its surplus with others for what it wants of their different surplus, to mutual profit. Just as A is a farmer, and raises grain, while B is a mechanic. Each has a natural adaptation to the business he pursues, and each needs what the other produces. So

they exchange, and each has the full benefit of the success and different genius and resources of the other. Commerce is the same in principle, and interchange becomes constantly more extensive.

4. Government naturally regulates commerce because it is one of the general interests of the country. It finds an indefinite amount of foreign merchandise waiting to enter to be put on sale. It was long ago discovered that here was a convenient mode of producing a government income without disturbing the people with a constant demand for money to pay its expenses. Whatever foreign goods had to pay for permission to enter, was quietly added to the price afterward, and so the people paid their taxes to the government in an indirect way in the form of a Duty. They pay the price asked, if it be within their means, without knowledge, or thought, of what part goes to the government, unless they study the subject carefully.

It has always been the case, then, that a government could get all the money it wanted, from this source, in ordinary times, with very little trouble. That mode is naturally a favorite with them. Whether it is the best way for the people is another question, which has been, at different times, very warmly debated in our government. It is not our place here to take up the argument, but it is worthy of a careful study by the people.

5. A Tariff of duties is established to carry on the government. There is another object that has had many advocates, and has quite commonly exerted an influence to raise the tariff on some things. It is stated in the preamble, or introduction, to the first act passed by the first Congress, on this subject, July 4th, 1789, "Whereas, it is necessary for the support of the government, for the discharge of the debts of the United States, *and the encouragement and protection of manufactures*, that duties be laid on goods, wares, and merchandise imported." It was considered important to protect and encourage our manufactures, by putting so high a price on the same kind of foreign goods that ours would have the advantage and sell at a *less price* or greater profit.

This might have been a wise measure, in the early days of the country, when there were few manufactures. Whether it has been so since, or is so now, is not so clear.

6. Every man should make up his mind what is right and best and act as he sees to be most for the general good. It has two disadvantages. It embarrasses the interchange that we have described as so profitable, and under a high tariff sometimes practically forbids it. It is unsocial, and we declare by it, that we will, so far as possible, live within ourselves, and have as little to do with our neighbors as we can. Besides, it is our own people who have to pay the duty, mainly, if they use the foreign goods; or the higher price on domestic goods if they buy them; so that one class of the people, that is, the mass of them, pay another small class large sums to manufacture what might be bought from foreigners with less money. It is a fine thing for the manufacturers, but not quite so fine for those who buy them, unless they feel like making their countrymen a present for every piece of goods he will manufacture for them, beside the proper cost as made by others.

It has the advantage of encouraging industries of different kinds; and has been believed to contribute greatly to the general prosperity in that way. Some think it best to let all those things arrange themselves, and leave each nation to bring us what they can produce cheapest and sell them more of what we can produce cheapest. They believe this is the secret of prosperity, besides being more social. It is a question to be carefully examined. It seems probable, that, in the end, all nations will agree on this policy, and raise their revenue in some other way. It is perhaps too soon to expect that, as yet.

We have never been without a tariff, though there has been much discussion in Congress, and between parties, whether it should be protective or not. So it has often changed from low to high and back again. The necessities of our war, and the heavy debt, made it important, in the highest degree, to raise all the revenue we could, and the subject has not been much discussed for many years.

7. The Duties are mostly collected in the cities, and, as foreign goods come mainly by water, in the seaports of the country. Duties are often called Customs, and the places where they are collected Custom Houses; and the officers Custom House Officers. These places are located in ports along our sea coast, and there are some thousands of custom house officers of all grades. The buildings erected by the government have cost many millions of dollars. The larger part of the duties are collected in the great seaport cities, as Boston, New York, Baltimore, New Orleans, and San Francisco.

Places, designated for foreign vessels to present their goods for examination and collection of the duty, are called Ports of Entry. If they are delivered at some other place, where there is no custom house they are called Ports of Delivery.

8. Congress alone has power to lay these duties. There are two modes of imposing them; sometimes one and sometimes the other being adopted, according to the views of the Congress legislating. They are called specific and

ad valorem duties. Ad valorem means, according to the cost, and is counted on the cost in the country the article comes from. Specific duties are so much on the article, without regard to the cost. On many things imported there is no duty, and they are called "free goods."

Changes are continually made in the tariff to conform to the requirements of the Treasury, the desires of the people, and the changing views of the legislators.

DRAWBACKS.

9. When the duties on foreign goods have been paid, and they are afterwards exported, the duties which have been paid are refunded to the owner. The money thus paid back is called a drawback. All imported goods are entitled to drawback whenever they are taken out of the United States.

BOUNTIES ON EXPORTED GOODS,

take money out of, instead of putting it in the treasury, yet the government in a few cases has allowed bounties upon exported articles. Fish taken by American vessels, refined sugar and distilled spirits made from imported sugar and molasses, are examples. This was done to encourage domestic industry and enterprise.

CUSTOMS REVENUE FOR FIFTY-ONE YEARS.

A Comparative Statement showing the Customs Revenue, Amount of Dutiable and Free Goods Imported, and the Average Rate of Duty on Imports, every year from 1821 to 1871, inclusive.

YEAR.	Receipts from Customs.	IMPORTS.			*Per cent. on dutiable.	*Per cent. on aggregate.
		Free.	Dutiable.	Total.		
1821	\$18,475,703 57	\$ 10,082,313	\$52,503,411	\$62,585,724	35.6	29.5
1822	24,066,066 43	7,298,708	75,942,833	83,241,541	31.7	28.9
1823	22,402,024 29	9,048,288	68,530,979	77,579,267	32.7	28.8
1824	25,486,817 86	12,563,773	67,985,234	80,549,007	37.5	31.6
1825	31,653,871 50	10,947,510	85,392,565	96,340,075	37.1	32.8
1826	26,083,861 97	12,567,769	72,406,708	84,974,477	34.6	30.7
1827	27,948,956 57	11,855,104	67,628,964	79,484,068	41.3	35.1
1828	29,951,251 90	12,379,176	76,130,648	88,509,824	39.3	33.8
1829	27,688,701 11	11,805,501	62,687,026	74,492,527	44.3	37.1
1830	28,389,505 05	12,746,245	58,130,675	70,876,920	48.8	40.0
1831	36,596,118 19	13,456,625	89,734,499	103,191,124	40.8	35.4
1832	29,341,175 65	14,249,453	86,779,813	101,029,266	33.8	29.0
1833	24,177,578 52	32,447,950	75,670,361	108,118,311	31.9	22.4
1834	18,960,705 96	68,393,180	58,128,152	126,521,332	32.6	15.0
1835	25,890,726 66	77,940,493	71,955,249	149,895,742	36.0	17.2
1836	30,818,327 67	92,056,481	97,923,554	189,980,035	31.6	16.2
1837	18,134,131 01	69,250,031	71,739,186	140,989,217	25.3	12.4
1838	19,702,825 45	60,860,005	52,857,399	113,717,404	37.8	17.3
1839	25,554,533 96	76,401,792	85,690,340	162,092,132	29.9	15.8
1840	15,104,790 63	57,196,204	49,945,315	107,141,519	30.4	14.1
1841	19,919,492 17	66,019,731	61,926,446	127,946,177	32.2	15.6
1842	16,662,746 84	30,627,486	69,534,601	100,162,087	23.1	16.6
1843	10,208,000 43	35,574,584	29,179,215	64,753,799	35.7	15.7
1844	29,236,357 38	24,766,881	83,668,154	108,435,035	35.1	26.9
1845	30,952,416 21	22,147,840	95,106,724	117,254,564	32.5	26.4
1846	26,712,668 00	24,767,739	96,924,058	121,691,797	26.5	21.9

1847	23,747,865 00	41,772,636	104,773,002	146,545,638	22.5	16.2
1848	31,757,071 00	22,716,603	132,282,325	154,998,928	24.0	20.4
1849	28,346,739 00	22,377,665	125,479,774	147,857,439	23.0	19.2
1850	39,668,686 00	22,710,382	155,427,936	178,138,318	25.2	22.3
1851	49,017,568 00	25,106,587	191,118,345	216,224,932	26.0	22.6
1852	47,339,326 00	29,692,934	183,252,508	212,945,442	26.0	22.2
1853	58,931,865 00	31,383,534	236,595,113	267,978,647	25.0	22.0
1854	64,224,190 00	33,285,821	271,276,560	304,562,381	23.5	21.1
1855	53,025,794 00	40,090,336	221,378,184	261,468,520	23.0	20.3
1856	64,022,863 00	56,955,706	257,684,236	314,639,942	25.0	20.3
1857	63,875,905 00	66,729,306	294,160,835	360,890,141	21.5	17.7
1858	41,789,621 00	80,319,275	202,293,875	282,613,150	20.0	14.8
1859	49,565,824 00	79,721,116	259,047,014	338,768,130	19.0	14.6
1860	53,187,511 00	90,841,749	279,872,327	362,166,254	19.0	14.7
1861	39,582,126 00	†117,469,962	218,180,191	335,650,153	18.14	11.79
1862	49,056,398 00	† 69,136,705	136,635,024	205,771,729	35.90	23.84
1863	69,059,642 00	44,826,029	208,093,891	252,919,920	33.19	27.30
1864	102,316,153 00	† 54,241,944	275,320,951	329,562,895	37.16	31.04
1865	84,928,260 00	54,329,588	194,226,064	248,555,652	43.75	34.17
1866	179,046,630 00	69,728,618	375,783,540	445,512,158	47.65	40.12
1867	176,417,811 00	45,203,970	372,627,601	417,831,571	47.34	42.22
1868	164,464,596 00	29,379,149	342,245,659	371,624,808	48.05	44.25
1869	180,048,427 00	41,454,568	395,859,687	437,314,255	45.48	41.17
1870	192,878,265 00	46,560,050	415,817,537	462,377,587	46.37	41.71
1871		57,851,808	483,641,966	541,493,774		

* The percentages in these columns are approximately, not absolutely correct, owing to the fact that the rates are computed upon the value of merchandise, etc., imported, instead of the value of goods entering into consumption in the respective years.

† These amounts do not include imports into the Southern ports during the war, from which no revenue was derived, namely, in 1861, \$17,089,234; in 1862, \$90,789; and in 1864, \$2,220.

TONNAGE.

11. Tonnage designates the capacity of a vessel for carrying goods, which depends on the tons of weight it can receive, and is computed by assigning so much space, in height, length, and breadth, to each ton. A revenue, additional to that raised from the goods brought in vessels, is produced by a tax on the tonnage, or carrying capacity of vessels.

It is laid, not only on foreign vessels, trading with our seaports, but on our own vessels; a distinction being made so as to produce protection in favor of our own commerce and ship-builders. This also is paid by those who buy the goods brought in these vessels; since whatever duty is laid on the carrying trade must be made up by the higher price of the article brought. It is a way of levying taxes without directly calling the attention of the people to the fact.

12. It is worthy of careful consideration whether the country would not gain as much, by removing all these embarrassments to commerce with other countries, and different points on our coasts, as has been gained by free trade between the different States. The Constitution forbids taxes to be levied on inter-State commerce, or trade, and the country is undoubtedly the gainer by such a provision.

In 1790 a tonnage duty of 50 cents per ton was laid on foreign vessels, and six cents on American vessels. During the Civil War the tonnage duty was raised ten cents per ton on both foreign and American shipping.

Tonnage is collected only once a year by the collector of the port where the vessel happens to be.

CHAPTER XII.

COLLECTION OF DUTIES.

1. The Tariff, or Scale of Duties, laid by the Laws of Congress, on goods brought from foreign countries, requires to be paid when they are first introduced; or we might say, *before* they are introduced. All these goods are stopped as they approach the boundary line, or *on* the boundary line, and carefully examined; and they can go no farther until the duties imposed by Congress are received. When they have “passed the Custom House” they may be as freely sold as goods produced at home. No government officer has any right to interfere with them. They have paid the duty and have the freedom of the land. If they, by any chance or effort, get in by any other way, they are treated as stolen goods, and may be seized and confiscated. However much they may have cost their owners, however highly they may prize them, however unquestioned was their ownership before they passed the limits of the country, if they are introduced by any other than the Custom House Door, all right and title to them by the former owners ceases, and they become the property of the government.

2. So carefully is this point guarded that not only are government officers provided for the sole purpose of watching against this illegal introduction of goods, but a premium is offered to unofficial persons to secure their aid. Any one who can point out (and prove the fact) goods of any kind, liable to duty, that have not passed the custom house, and paid that duty, is entitled to half the value of the goods; the other half belonging to the government. Smuggling, as bringing goods into the country without paying the duty is called, is held to be robbery of the government, and ranks as a serious offense; and it really is so, as long as the government produces its income, or part of it, in this way. The law makes it part proprietor in the property until its claim is settled. Besides, to take from the government is to take from the people; since they must make up, in some other way, for what is subtracted in this.

3. To secure this payment of Duty, then, a large number of officers of different grades are appointed, not only to examine the goods, determine the amount required to be paid, receive the money and keep all the accounts connected with it, but to take care that all the goods, of whatever kind, that are not permitted an entrance free of duty, shall duly pass examination, and be “entered,” as it is called, at the custom house.

4. The Head of these officers is the

COMMISSIONER OF CUSTOMS.

He superintends the Customs Bureau in the Treasury Department. He is nominated, and, with the consent of the Senate, appointed by the President. All the accounts of officers employed in the collection of duties on imports pass through his bureau for examination and adjustment; he prepares the forms of all papers used in this department of the revenue; directs the form of keeping the accounts; brings suits when necessary for the recovery of money due from officers of the department; and makes a report of any neglect of duty to Congress. A complete summary, therefore, of the past and present condition of the customs department may be found, at any time, in his office. With so perfect a system of supervision it does not matter how extensive the organization may be. No confusion is possible. There are more than 30,000 persons employed Under this officer; and they are scattered through the whole country where there are Ports of Entry or Delivery, as well as keeping guard along the whole coast line and frontier of the United States; yet they are under as complete discipline and surveillance as the army or navy. This bureau was organized in 1849; its business having previously been under the oversight of the First Comptroller of the Treasury. It has general supervision of the conduct and accounts of all customs officials. The highest in rank below this are

THE COLLECTORS.

5. Wherever there is a Port of Entry a Collector is appointed to superintend the collection of duties, receive the money, and transmit it to the United States Treasury. He is the principal officer of the Collection District connected with this Port, which often embraces several Ports of Delivery, and is required to see that all is properly conducted in his district. He receives his appointment directly from the President and Senate, and is removable at the pleasure of the President.

6. As, in ordinary times, the most of the revenue required for the support of the government is derived from Customs, this is a responsible office. Great care is required to secure the services of competent and faithful men,

and the bonds they are required to give are large. He nominates the subordinate officers connected with his custom-house, and the Secretary of the Treasury appoints them, if he sees no objection.

7. The Collectors take care that all the goods, on which Congress has imposed a duty, pay the amount due. To this end he often requires one or more deputies. The entire commerce of the part of the country falling in his district, with other countries, passes under his examination. He receives all reports, manifests, and documents required to be exhibited by all vessels, domestic and foreign, on their entry into his port, and all accounts of all the goods they have on board. On these he must estimate the duties, receive the moneys, or bonds securing their payment, and grant all permits for landing the goods. He transmits, quarterly, all the moneys collected in his department, with an accurate account of all the transactions of his office during the quarter, to the Secretary of the Treasury. These accounts pass to the Customs bureau, and the money to the Treasurer of the United States.

8. His duties, as described in the previous section, make him acquainted with all the imports of the country, in his District or Port. He is also required to examine the manifests of all the vessels, and the accounts of their cargoes, that leave his port for a foreign country. This secures a knowledge of all the exports of the country. It is his duty to give clearances, or permits, to all vessels leaving for foreign ports. It is unlawful for any vessel to depart without this document. A ship's clearance can be properly given only when her manifest, or detailed account of the quantity, kind, and value of her cargo is ascertained to be correct.

9. We give the form of a ship's Manifest, and also of a Clearance.

A SHIP'S MANIFEST.

"Report and manifest of the cargo laden on board of the _____, whereof _____ is master, which cargo was taken on board at the port or ports of _____, burthen _____ tons, built at _____, in the State of _____, and owned by _____, merchants at _____, and bound for _____."

This, together with a particular description of the marks and numbers of every bale, box, case, barrel, bundle or parcel on board of the vessel, is the manifest. It must be given to the collector of whatever port the vessel arrives at; and the master of her must swear that it is in all respects a true and accurate account of all the cargo on board, to the best of his knowledge and belief.

10. The collector of the port can then compute the duties to be paid upon each article, and when these are paid, or secured to be paid, he gives permits to land the cargo, and deliver the goods to their respective owners. Then come in the duties of weighers, gaugers, measurers and inspectors of the customs, after permits are obtained to land the goods. If they are such as require to be weighed, gauged, or measured, these officers are sent to do it; and the inspector must allow nothing to leave the ship until he has examined the marks and numbers, to see if they correspond with the permit and the manifest. If he suspects that there is an attempt to defraud the government by false names and marks, he is authorized to open the package, box, case, cask, or whatever contains the goods, and to examine them. In this way smuggling is prevented, and the revenues arising from duties on imported goods secured.

A SHIP'S CLEARANCE.

This document is couched in the following terms:

"District of _____, Port of _____, ss.

"These are to certify, to all whom it may concern, that A. B., master or commander of the ship (brig, barque, schooner) burthen _____ tons or thereabouts, mounted with _____ guns, navigated with _____ men, _____ built, and bound for _____, having on board _____, hath here entered and cleared his said vessel according to law.

"Given under our hands and seals, at the custom-house of _____, this _____ day of _____, one thousand _____, and in the _____ year of the Independence of the United States of America."

This is signed by the collector and by the naval officer of the port, when the commander is prepared to depart with his vessel to his destination.

11. The compensation of collectors is not all given in the form of a salary, but in part the fees for services rendered, and part of the forfeitures of smuggled goods. In the larger ports it is enormous, but in the smaller ones is often insignificant. It is a common mode of doing business of this kind, and is supposed to stimulate the activity and secure the faithfulness of the officer in preventing frauds on the government. The working of this plan is

sometimes complained of as inspiring an over-officiousness embarrassing to trade and unnecessarily annoying to importers; and as producing too great an inequality in incomes. It is difficult to make a system quite perfect. Whether this admits of improvement remains to be seen.

SURVEYORS

12. Are next in rank and authority to the Collectors. They are appointed in the same manner and receive their compensation in the same way. The Surveyor's duty is to superintend the inspectors, weighers, measurers, and gaugers in his port; to visit all vessels arriving in it; make a detailed report of them to the Collector; and examine all goods entered for the benefit of drawback.

THE NAVAL OFFICER

13. Of a port, is another of the superintendents, appointed to oversee the collection of the revenue. His appointment depends on the President and Senate, and his compensation on the amount of business done in his port, in the same manner as the Collector and Surveyor. His duties are, to some extent, parallel to those of the Collector; or he may be called a local examiner and auditor of the Collector's work and accounts, for the sake of accuracy and correctness. He receives copies of all manifests and entries, and computes the duties on all goods, keeping a separate record of them. He must countersign permits, clearances, certificates, debentures, and other documents issued by the Collector. He examines the Collector's accounts, bonds, and expenditures, and certifies to them, if correct.

A great number of deputies and employees are required to carry out the details of the collection of duties, since the entire amount of imports into the country are required to be carefully examined.

REVENUE CUTTERS

14. Are employed to guard against smuggling. They are vessels of small size, some steamers, and others sailing vessels, properly manned and armed, of high powers of speed; and are stationed as a coast guard near the ports, and lines of ocean travel, to prevent the landing of imported goods before they have paid the duty. Their officers are appointed by the President and Senate.

They look after all the ships going into any port, or any that may approach the coast; board them when within four leagues (or 12 miles) of the coast; examine the manifest of the cargo and every part of the vessel; put proper fastenings on the hatches, to prevent unlawful communication with the hold until the Custom's officers have discharged their duty; and place a watch on board to remain until the vessel is delivered into the charge of the proper revenue officer.

15. They are revenue officers, and under the control of the Secretary of the Treasury, and the Collectors at the ports near which they are stationed. In case the President judges it best, they may be called on, at his direction, to coöperate with the Navy, and, in case they are disabled in the discharge of their duty at such times, are entitled to be treated in the same manner as officers and sailors in the Navy.

16. These vessels carry a pennant and ensign with such marks on them as the President may designate. If any vessel liable to seizure refuses to bring to at the direction of the commander of the Cutter, he is authorized to fire into it after having shown his pennant and ensign, and compel it to submit to be boarded and examined. Much depends on the vigilance of these revenue cutters, as the sums paid on goods imported amount to a great many millions of dollars, and want of due precaution would cause the income of the government to be defrauded of large sums.

The commanders of revenue cutters report all matters relating to their duties weekly to the Collector of the port.

CHAPTER XIII.

GOVERNMENT COINAGE.

1. The United States mint, located at Philadelphia, is one of the most important establishments of the government. An act of Congress, passed in 1792, was the first step towards its creation. Its design was, and its principal business has been, to coin the precious metals into money. It has been for more than eighteen hundred years the usage of civilized governments to coin their own money. Ours, at a very early period of its existence, began to do the same thing, and will probably continue to do it as long as it shall exist. Before the art of coining was known, the precious metals were used as a standard of value, but they passed from one to another by weight. The plan of cutting them into small pieces, and then stamping their value upon them, by which their worth could be known as soon as seen, was an improvement upon the former mode. This process is denominated coining. It has of late been brought so near perfection that our pieces of money are fine specimens of art.

2. The officers, who manage and conduct the operations of this establishment, are a Director, a Treasurer, an Assayer, a Melter and Refiner, a Chief Coiner, and an Engraver. They are all appointed by the President and Senate in the usual manner. The director appoints the assistants and clerks.

All must give bonds for the faithful performance of their respective duties upon which they enter under oath. The duties of these different officers may almost be known by the names they bear. The director is the head of the institution, and the others act under his general direction, each having his appropriate duties to perform. In the month of January of each year the director must make a report to the President of the operations of the mint and its branches for the preceding year.

3. Any person may take gold or silver bullion or ores to the mint and receive it back in coin, for a very trifling expense. Before it is coined, after its value has been determined by the assayer, the director will give a certificate for it, which is of the same value as the bullion deposited.

4. We have stated that the principal business at the mint is the conversion of the precious metals into coin or money. But this is not its exclusive business. Another part is to melt and assay these metals, and to run them into ingots or bars either of pure or standard gold and silver, according to the wish of its owner.

Until 1835 the mint at Philadelphia was the only establishment in the United States for coining money. But in that year a law was passed establishing branch mints at New Orleans, in Louisiana; at Charlotte, in North Carolina; and at Dahlonega, in Georgia. In 1852, another branch was established in California; in 1862, another at Denver, in Colorado Territory; and in 1863, another at Carson City, in Nevada Territory, since made a State; in 1864, another at San Francisco, in California, and another at Dallas City, in Oregon. Except the one in California, but little has ever been done at these branches. They are all similar to the principal one at Philadelphia; and the laws relating to that are made to apply to these branches.

6. The Constitution gives Congress the exclusive right to coin money, and prohibits all the States from doing it. This Congress does by the laws it passes in relation to the subject, and the various officers and workmen employed to execute the work are only the agents of Congress.

The various coins which Congress has from time to time ordered to be made are of the following names and value:

<i>Gold.</i>	<i>Value.</i>
Eagle,	\$10 00
Half-Eagle,	5 00
Quar. Eag.,	2 50
Doub. Eag.,	20 00
Three Dols.,	3 00
One Dollar,	1 00

<i>Silver.</i>	<i>Value.</i>
Dollar,	\$1 00
Half-Dollar,	50
Quar. Dol.,	25
Dime,	10
Half Dime,	5
Three ct. piece,	3

Copper.

One cent,
Two cents,
Three cents,
and formerly ½ c.
But these are now discontinued.

7. Our coins are not made of pure gold and silver; a certain amount of other metals being added to produce a coin that will be less affected by the friction of constant use. This alloy, or mixture, of the precious metals is called Standard gold or silver, since a definite amount of the alloy is required in all the coinage of the government for currency purposes. It does not alter the value of the coin; that being dependent on the actual merchantable value of the sum of the metals used. By the law of 1837, standard gold and silver were declared to be nine hundred parts of pure metal, and one hundred parts alloy—equal to one-tenth alloy. Gold coins are alloyed with silver and copper, equal parts of each. Silver coins are alloyed with copper alone. Gold is declared to be worth fifteen times as much as silver by weight.

In addition to our own coins, Congress has, from time to time, passed laws declaring the value of foreign coins, and making them a legal tender. But these laws were all repealed by the act of 1857, and it was made the duty of the director of the mint to have them assayed, and to determine their weight, fineness, and value; for they are still used by banks and merchants, and pass at the value determined by the mint.

The mint, up to 1861, had coined in gold, silver, and copper coin, 800,662,475 pieces, worth \$799,923,362.

THE UNITED STATES MINT.

Statement of Domestic Gold and Silver deposited at the United States Mint and Branches, for Coinage, to June 30th, 1872.

FROM.	GOLD.	SILVER.	GOLD AND SILVER.
California	\$642,965,026.09	\$156,423.03	\$643,121,449.12
Montana	30,648,265.24	176,838.57	30,825,103.81
Colorado	20,338,420.96	1,114,543.43	21,452,964.39
Idaho	17,141,523.84	291,681.59	17,433,205.43
Oregon	11,594,979.33	1,863.74	11,596,843.07
North Carolina	9,865,252.97	44,110.95	9,909,363.92
Nevada	1,010,280.17	8,539,868.04	9,550,148.21
Georgia	7,232,346.96	403.83	7,232,750.79
Virginia	1,629,188.79	—	1,629,188.79
South Carolina	1,379,121.92	—	1,379,121.92
Lake Superior	—	1,062,540.81	1,062,540.81
Arizona	975,401.39	39,873.08	1,015,274.47
New Mexico	823,021.29	—	823,021.29
Utah	146,147.18	261,204.71	407,351.89
Nebraska	24,381.57	200,976.53	225,358.10
Alabama	213,750.66	—	213,750.66
Wyoming Territory	138,878.12	86.48	138,964.60
Tennessee	81,529.69	—	81,529.69
Washington Territory	67,745.38	—	67,745.38
New Mexico and Sonora	—	51,653.31	51,653.31
Dakota	5,760.00	—	5,760.00
Vermont	5,611.97	—	5,611.97
Kansas	1,009.62	468.00	1,477.62
Sitka	397.64	—	397.64

Maryland	108.00	—	108.00
Other Sources	85,226,912.42	2,751.15	85,229,663.57
Parted from Silver	4,690,402.30	—	4,690,402.30
Fine Bars	—	5,298,490.02	5,298,490.02
Parted from Gold	—	5,821,721.97	5,821,721.97
Total	\$836,205,463.50	\$23,065,492.24	\$859,270,962.47

ASSAY OFFICE.

1. In 1853 the Secretary of the Treasury was authorized to establish an office in the city of New York for the receipt, melting, refining and assaying of gold and silver bullion and foreign coins, and for casting the same into bars, ingots, or disks. The assistant treasurer of the United States in New York, is treasurer of this assay office, and the Secretary of the Treasury appoints such other clerks, assistants, and workmen as shall be necessary for the management of its business.

2. Persons having gold or silver bullion, ores or foreign coin, may deposit them in his office, and it will be refined and assayed (at no more cost than the actual expense of doing the work), its value ascertained, and the owner will be paid for it in coins of the same value and metal as that deposited. It is not coined in this office, but cast into bars, ingots or disks—either of pure metal or of standard fineness, as the owner may prefer—the true weight and value of which are stamped thereon; and the owner may either take them in payment for his bullion or foreign coin, or it will be coined for him at the United States Mint, if he wishes. The bars spoken of are often kept in that form, and are used as coin among banks, brokers, and merchants, who receive and pay large amounts of the precious metals. With them it passes as coin, for its exact weight and value are stamped upon it.

3. This establishment was located at New York more for the convenience of those who do business there, than for the necessity of such an institution; for at the mint at Philadelphia there is a department for doing the same work as is done here. But at New York there is a larger amount of foreign coin than in any other place, and it is often advantageous to its owners to have it converted into American coin, that it may be used with greater facility. Although many foreign coins do circulate in this country, but few know their value. Consequently they do not pass so readily; and for this reason they are melted and run into bars of known value, or re-coined into American money.

CHAPTER XIV. NATIONAL BANKING.

1. The present banking system was established by an act of Congress in 1863. The plan is quite different from any before in use, and commends itself to the whole country by the stability it gives to the currency in use in the transaction of its business, and the security it furnishes against loss of values common under the old systems. They are managed by private parties and corporations, apart from the government, but under a certain degree of supervision, and by its authority. By the act referred to any number of persons not less than five may associate themselves together for the purpose of banking, by compliance with the following conditions:

2. First: They must, under their hands and seals, make a certificate which shall specify—

1. The name assumed by such association.

2. The place where its business is to be conducted.

3. The amount of its capital stock (which cannot be less than \$50,000), and the number of its shares.

4. The names of its shareholders, and the number of shares held by each.

5. The time when such association shall commence business.

6. A declaration that said certificate is made to enable such persons to avail themselves of the advantages of this act.

3. This certificate must be properly acknowledged before some competent person, and must be sent to the comptroller of the currency in the Treasury Department, to be recorded and kept by him. When this, and all other acts which the law requires, has been done by the association, the comptroller of the currency gives them a certificate under his hand and official seal, to that effect, and that they are authorized to commence business. This constitutes the association a corporation. They have the right to make and use a common seal, and have all the rights, and are liable to all the responsibilities of ordinary legalized corporations; and may exist not to exceed twenty years from the passage of this act. Every shareholder is made personally liable for the debts of the association or bank, to the amount of the par value of his stock.

4. In order to secure the holders of bills issued by these banks, they must deposit with the Treasurer of the United States, United States bonds bearing interest to an amount not less than one-third of the capital stock paid in. These bonds are safely kept by the Treasurer. The comptroller of the currency then issues to the bank an amount of bank notes equal to the amount of bonds thus deposited, less ten per cent. In case the bank should fail to redeem its circulating bills, its bonds are sold, and with the proceeds the comptroller of the currency redeems them, or orders them to be paid at the United States Treasury. The bonds held by the Treasurer as security for the redemption of the bills issued by the association, must be transferred to him in trust; thus giving him entire control of them in case it becomes necessary to sell them in order to redeem the bills of any association which may have failed to pay them on demand.

5. This act has brought a great number of banks into existence, besides organizing most of the banks formerly existing under State laws under this system; so that we have a nearly uniform system of banking all over the United States. The bills of these banks pass in any part of the country, which was not often the case formerly. In case the bank should be mismanaged, or fail to pay for any cause, there is ample security for their redemption deposited in the United States treasury, where they will be paid on presentation.

6. The bill-holder is also better protected against counterfeits than he was under the old system; for all the bills issued by these associations are engraved by the government, and the plates and dies on which they are printed are kept by the comptroller of the currency in the Treasury Department. The engraving is done in the best possible manner, and it is exceedingly difficult to counterfeit them. Besides this, they all have the imprint of the seal of the Treasury on their face, and are numbered and countersigned by the treasurer and register. With all these guards and precautions, we have the best paper currency ever used since the establishment of the government.

7. This act necessarily threw upon the Treasury Department a great increase of labor, and in order to provide for it a separate bureau was created, which is denominated the bureau of currency, the chief officer of which is called the comptroller of currency. He acts under the general direction of the Secretary of the Treasury. This bureau is charged with the execution of this and all other laws that may be passed by Congress respecting the national currency. The comptroller of the currency is appointed by the President and Senate, has a deputy, receives a salary of \$5,000 per year, holds his office five years, has an official seal, gives bonds to the amount of \$100,000, and takes and subscribes the oath of office prescribed by the Constitution and the laws. His duties are numerous and very responsible, he having hundreds of millions under his care.

The term national banks, given to these institutions, and national currency to the bills they issue, were given from the fact that they were organized by an act of Congress, and that the security for the redemption of their bills consists exclusively of national bonds; no other securities will be taken.

CHAPTER XV.

FINANCIAL CONDITION OF THE UNITED STATES.

1. The United States government belongs to its people. Those people own property estimated at upwards of thirty billions of dollars. The public lands belonging to the government are between one and one and a half billions of acres. Besides, the public domains contain gold, silver, iron, coal, and a large number of other mineral deposits, chiefly in regions worthless for agricultural purposes, of unknown, but ascertained to be, at least, a very great quantity—enough to make all its present inhabitants millionaires if (besides paying the debt) their value could be divided among them. The capacity of the country for production is very far beyond what is drawn from it now. The future will probably increase it a thousand fold, for we are yet a new people, and in the act of settling ourselves to the work of development.

We are very rich, if all our resources are taken into account, yet we are in debt. In five years from the commencement of the civil war the public debt had run up from less than one hundred million dollars to over two billion seven hundred millions. This we began to reduce at once, for as a nation we do not like to be in debt; and it was, December 1st, 1873, a little over two billion one hundred and fifty millions. The debt is, indeed, a trifle compared with our vast national property; but we do not wish to sell our property at a loss, nor disturb the regular course of business; so it stands to be gradually paid in the regular course of things, as we find it to be convenient.

It is a vast sum, but gives more trouble by reason of the desire and determination of the people to pay it soon, and sacrifice no property, than from any inability to meet it.

We add a table of the Public Debt for every year since 1791, a Statement of the debt in detail Dec. 1st, 1873, and various Statistics relating to the finances, resources, and business of the country.

**THE PUBLIC DEBT OF THE UNITED STATES,
IN EACH YEAR, FROM 1791 TO 1874.**

1791	75,463,476.52
1792	77,227,924.66
1793	80,352,634.04
1794	78,427,404.77
1795	80,747,587.38
1796	83,762,172.07
1797	82,064,479.33
1798	79,228,529.12
1799	78,408,669.77
1800	82,976,294.35
1801	83,038,050.80
1802	80,712,632.25
1803	77,054,686.30
1804	86,427,120.88
1805	82,312,150.50
1806	75,723,270.66
1807	69,218,398.64
1808	65,196,317.97
1809	57,023,192.09
1810	53,173,217.52
1811	48,005,587.76
1812	45,209,737.90
1813	55,962,827.57
1814	81,487,846.24
1815	99,833,660.15
1816	127,334,933.74
1817	123,491,965.16
1818	103,466,633.83
1819	95,529,648.28
1820	91,015,566.15
1821	89,987,427.66
1822	93,546,676.98
1823	90,875,877.28
1824	90,269,777.77
1825	83,788,432.71
1826	81,054,059.99
1827	73,987,357.20
1828	67,475,043.87

1829	58,421,413.67
1830	48,565,406.50
1831	39,123,191.68
1832	24,322,235.18
1833	7,001,032.88
1834	4,760,081.08
1835	351,289.05
1836	291,089.05
1837	1,878,223.55
1838	4,857,660.46
1839	11,983,737.53
1840	5,125,077.63
1841	6,737,398.00
1842	15,028,486.37
1843	27,203,450.69
1844	24,748,188.23
1845	17,093,794.80
1846	16,750,926.33
1847	38,956,623.38
1848	48,526,379.37
1849	64,704,693.71
1850	64,228,238.37
1851	62,560,395.26
1852	65,131,692.13
1853	67,340,628.78
1854	47,242,206.05
1855	39,969,731.05
1856	30,963,909.64
1857	29,060,386.90
1858	44,910,777.66
1859	58,754,699.33
1860	64,769,703.08
1861	90,867,828.68
1862	514,211,371.92
1863	1,098,793,181.37
1864	1,740,690,489.49
1865	2,682,593,026.53
1866	2,783,425,879.21
1867	2,692,199,215.12
1868	2,643,753,566.38
1869	2,652,533,662.28
1870	2,509,270,608.00
1871	2,303,573,543.00
1872	2,197,743,440.72
1873	2,153,489,155.96
Apr. 1874	2,152,690,728.62
Oct. 1875	2,122,466,227.

UNITED STATES BONDS.

SIXES OF 1861.—Dated 1861, and redeemable in twenty years from January 1st and July 1st of that year. Interest six per cent. in gold, payable semi-annually—January 1st and July 1st. These Bonds were issued in three series:

Under Act February 8th, 1861, \$18,415,000; dated variously in 1861. Under Acts July 17th and August 5th, 1861, \$50,000,000; dated November 16th, 1861. Under Acts July 17th and August 5th, 1861, in exchange for 7-30's, \$139,317,150; dated November 16th, 1861. Under Act March 3d, 1863, and principal made especially payable in gold coin, \$75,000,000; dated June 15th, 1864. Total issue, \$282,732,150.

FIVE-TWENTIES OF 1862.—Commonly termed *Old Five-Twenties*, dated May 1st, 1862. Redeemable after five years, and payable in twenty years from date. Interest six per cent. in gold, payable the first of May and November. Issued under Act February 25th, 1862, \$514,771,600.

FIVE-TWENTIES OF 1864.—Dated November 1st, 1864. Redeemable after five, and payable in twenty years. Interest, six per cent. in gold, payable 1st of May and November. Issued under Act March 3d, 1864 (principal specified as payable in gold), \$3,882,500. Issued under Act June 30th, 1864, \$125,561,300. Total issue, \$129,443,800.

FIVE-TWENTIES OF 1865.—Dated July 1st, 1865. Interest, six per cent. in gold, payable January and July. They are redeemable in five years, and payable in twenty years. Issued under Act March 3d, 1865, in exchange for 7-30 notes converted, and amount, August 1st, 1868, to \$372,346,350.

FIVE-TWENTIES OF 1865.—Dated November 1st, 1865. Redeemable after five, and payable in twenty years. Interest, six per cent. in gold, payable 1st of May and November. Issued under Act March 3d, 1865, \$197,777,250.

FIVE-TWENTIES OF 1867. Dated July 1st, 1867. Redeemable in five, and payable in twenty years. Interest, six per cent. in gold, payable 1st of January and July. Issued under Act March 3, 1865, in exchange for 7-30 notes, and amount, August 1st, 1868, to \$371,346,350.

FIVE-TWENTIES OF 1868.—Dated July 1st, 1868. Redeemable in five, and payable in twenty years. Interest, six per cent. in gold, payable 1st of January and July. Issued under Act March 3d, 1865, in exchange for 7-30 notes, and amount, August 1st, 1868, to \$39,000,000.

TEN-FORTIES.—Dated March 1st, 1864. Redeemable in ten and payable in forty years. Interest, five per cent. in gold, payable on the 1st of March and September on all Registered Bonds, and on all Coupon Bonds of the denomination of \$500 and \$1,000. On the \$50 and \$100 Bonds, interest is paid annually, March 1st. Issued under Act March 3d, 1863, and Supplement, March 3d, 1864; principal, payable in gold, \$194,291,500.

FIVES OF 1870.—Redeemable at the pleasure of the United States, after May 1, 1881, in gold. Interest, five per cent. in gold, payable quarterly—February, May, August, and November 1st. Exempt from all taxation. Issued under Acts of July 14th, 1870, and January 20th, 1871. Amount, \$200,000,000.

U. S. PACIFIC RAILROAD CURRENCY SIXES.—Dated January 16th, 1865, and variously thereafter. These Bonds are issued by the Government, under Acts July 1st, 1862, and July 2d, 1864, to companies receiving their charter from Congress, which gives them the right to construct railroads to and from the Pacific Coast, and on the completion of each twenty miles of track, to receive at the rate of \$16,000, \$22,000, or \$48,000 per mile, according to the difficulty of constructing the same. They are payable thirty years from date of issue, and are registered in Bonds of \$1,000, \$5,000, and \$10,000. Amount issued to September 1st, 1870, \$64,618,832. All of the Bonds are issued "Coupon" or "Registered." Coupon Bonds can be changed into Registered Bonds, but Registered Bonds cannot be changed into Coupons. Coupon Bonds are in denominations of \$50, \$100, \$500, and \$1,000: the Registered Bonds the same, with addition of \$5,000 and \$10,000.

STATES AND TERRITORIES.	Real and Personal Estate.	Real and Personal Estate.	Real and Personal Estate.
	1870.	1860.	1850.
United States	\$30,068,518,507	\$16,159,616,068	\$7,135,780,228
States	29,822,535,140	16,086,519,771	7,115,600,800
Alabama	201,855,841	495,237,078	228,204,332
Arkansas	156,394,691	219,256,473	39,841,025
California	638,767,017	207,874,613	22,161,872
Connecticut	774,631,524	444,274,114	155,707,980
Delaware	97,180,833	46,242,181	21,062,556

Florida	44,163,655	73,101,500	22,862,270
Georgia	268,169,207	645,895,237	335,425,714
Illinois	2,121,680,579	871,860,282	156,265,006
Indiana	1,268,180,543	528,835,371	202,650,264
Iowa	717,644,750	247,338,265	23,714,638
Kansas	188,892,014	31,327,895	—
Kentucky	604,318,552	666,043,112	301,628,456
Louisiana	323,125,666	602,118,568	233,998,764
Maine	348,155,671	190,211,600	122,777,571
Maryland	643,748,976	376,919,944	219,217,364
Massachusetts	2,132,148,741	815,237,433	573,342,286
Michigan	719,208,118	257,163,983	59,787,255
Minnesota	228,909,590	52,294,413	—
Mississippi	209,197,345	607,324,911	228,951,130
Missouri	1,284,922,897	501,214,398	137,247,707
Nebraska	69,277,483	9,131,056	—
Nevada	31,134,012	—	—
New Hampshire	252,624,112	156,310,860	103,652,835
New Jersey	940,976,064	467,918,324	200,000,000
New York	6,500,841,264	1,843,338,517	1,080,309,216
North Carolina	260,757,244	358,739,399	226,800,472
Ohio	2,235,430,300	1,193,898,422	504,726,120
Oregon	51,558,932	28,930,637	5,063,474
Pennsylvania	3,808,340,111	1,416,501,818	722,486,120
Rhode Island	296,965,646	135,337,588	80,508,794
South Carolina	208,146,989	548,138,754	288,257,694
Tennessee	498,237,724	493,903,892	201,246,686
Texas	159,052,542	365,200,614	52,740,473
Vermont	235,349,553	122,477,170	92,205,049
Virginia	409,588,133	793,249,681	430,701,082
West Virginia	190,651,491	—	—
Wisconsin	702,307,329	273,671,668	42,056,595
Territories	245,983,367	73,096,297	20,179,428
Arizona	\$3,440,791	—	—
Colorado	20,243,303	—	—
Dakota	5,599,752	—	—
District of Columbia	126,873,616	41,084,945	14,018,814
Idaho	6,552,681	—	—
Montana	15,184,522	—	—
New Mexico	31,349,793	20,813,768	5,174,471
Utah	16,159,995	5,596,118	986,083
Washington	13,562,164	5,601,466	—
Wyoming	7,016,748	—	—

THE AVERAGE WEALTH TO EACH INDIVIDUAL.

1. New York \$1,483.27
2. Massachusetts 1,463.03
3. Connecticut 1,441.30
4. Rhode Island 1,366.28
5. California 1,140.15
6. Pennsylvania 1,081.31

7. New Jersey	1,038.49
8. Ohio	838.73
9. Illinois	835.34
10. Maryland	824.37
11. New Hampshire	793.66
12. Delaware	777.35
13. Indiana	754.58
14. Missouri	746.48
15. Nevada	732.72
16. Vermont	711.99
17. Wisconsin	665.90
18. Michigan	607.41
19. Iowa	601.03
20. Oregon	567.06
21. Nebraska	563.26
22. Maine	555.35
23. Minnesota	520.60
24. Kansas	518.36
25. Kentucky	457.46
26. Louisiana	444.51
27. West Virginia	431.32
28. Tennessee	395.89
29. Virginia	334.31
30. Arkansas	322.81
31. South Carolina	294.99
32. Mississippi	252.67
33. North Carolina	243.39
34. Florida	235.23
35. Georgia	226.47
36. Alabama	202.46
37. Texas	194.30

FINANCIAL CONDITION OF THE STATES OF THE UNION.

STATES.	Populat'n 1870.	Assessed Valuation.	Funded Debt.	Floating Debt.	Town, County, and City Debt.	Receipts from Taxes and Investments.	Expendit
Alabama	996,992	\$143,139,262	\$5,661,800	\$600,108	*\$4,799,136	\$1,064,960	\$1,461
Arkansas	484,471	90,196,763	10,771,000	800,000	1,285,693	944,611	972
California	560,247	527,203,982	1,982,500	266,669	*14,660,065	3,104,242	2,771
Connecticut	537,454	348,855,457	4,970,000	none	*9,813,006	2,654,465	1,528
Delaware	125,015	64,787,223	—	—	*526,125	—	.
Florida	187,748	30,000,000	4,664,000	848,269	*897,141	257,234	302
Georgia	1,184,109	243,620,466	8,186,500	—	*15,209,212	1,678,412	1,345
Illinois	2,539,891	884,731,999	2,060,151	none	*37,300,932	4,049,543	3,762
Indiana	1,680,637	654,519,016	176,890	none	*3,651,203	2,191,529	2,395
Iowa	1,194,020	366,076,206	300,000	none	*7,508,635	1,154,993	1,182
Kansas	364,399	127,690,937	1,342,275	201,109	*4,848,976	958,538	965
Kentucky	1,321,011	403,296,567	none	—	*15,061,004	2,016,494	2,025
Louisiana	726,915	228,666,654	21,801,800	2,291,608	*28,065,707	4,312,034	4,371

Maine	626,915	224,552,406	6,186,100	none	*8,556,724	1,334,860	1,147
Maryland	780,894	419,323,067	10,911,679	none	*15,715,102	1,876,369	2,350
Massachusetts	1,457,351	1,696,599,969	25,876,104	none	*40,940,657	5,661,295	5,465
Michigan	1,184,059	630,000,000	2,209,000	none	*4,340,203	1,915,122	1,632
Minnesota	439,76	84,135,332	none	none	*2,438,797	799,272	876
Mississippi	827,922	148,159,873	347,150	683,207	*798,185	1,249,276	1,596
Missouri	1,721,295	572,293,377	18,748,000	none	32,537,776	3,467,742	3,526
Nebraska	122,993	69,873,819	none	none	*1,841,964	529,352	365
Nevada	42,491	12,129,110	556,000	none	*1,343,199	538,492	392
New Hampshire	318,300	149,065,290	3,914,195	226,050	7,210,527	928,606	775
New Jersey	906,696	603,665,497	2,796,300	none	*19,858,104	2,491,195	2,515
New York	4,382,759	2,129,626,386	32,392,101	none	188,373,280	18,569,403	13,926
North Carolina	1,071,361	123,507,628	29,900,045	7,813,898	*2,573,991	700,477	801
Ohio	2,665,260	1,524,323,118	8,583,546	—	17,559,498	4,607,798	4,411
Oregon	90,923	34,744,460	290,477	76,884	*111,903	337,316	382
Pennsylvania	3,521,951	1,313,236,042	27,303,495	none	*57,915,469	7,048,637	4,666
Rhode Island	217,353	244,278,854	2,638,500	none	*3,025,142	700,133	632
South Carolina	705,606	183,913,337	15,851,627	5,306,398	*5,409,320	1,658,083	1,655
Tennessee	1,258,520	272,674,352	20,966,382	5,200,000	*10,285,389	1,938,330	1,072
Texas	818,579	222,504,073	1,166,832	644,745	*1,105,266	1,105,710	1,105
Vermont	330,551	102,366,300	380,000	none	*2,592,200	627,490	348
Virginia	1,225,163	365,437,708	30,478,741	1,289,405	*8,530,416	2,421,945	2,761
West Virginia	442,014	132,356,703	15,239,371	644,703	*561,767	679,690	715
Wisconsin	1,054,670	390,454,875	18,157	—	8,880,029	1,624,559	1,648
Total	38,115,641	\$15,762,006,108	\$318,670,718	\$26,893,053	\$586,131,743	\$86,598,187	\$77,786

CHAPTER XVI.

WAR DEPARTMENT.

Men, unfortunately, have never been able to so arrange their mutual relations as to dispense with violent and deadly contests. Although they are less frequent and shorter now than formerly, they are more costly and more destructive, and every nation is still, as formerly, obliged to anticipate the possibility of war and to make provision for its sudden occurrence, that it may not be borne down and overwhelmed by the first shock. It is an event so probable, even, and especially if the country should be in a defenseless state, that it has become a maxim of prudence with statesmen to avoid war by being prepared for it. The nation that can best repel an attack is least likely to be attacked.

Most governments, like our own, had their birth and early history in the confusion and devastation of that great destroyer of life and property; and it is natural that the first leisure of peace should be occupied in preparing themselves, in the most effective manner possible, for both defensive and offensive operations in case of its return.

The Constitution contemplates the existence of an army and navy for warlike purposes, and makes the President Commander-in-chief of both. The first Congress assembled under the Constitution hastened, in its first session, to provide him an army and navy to command by organizing the Department of War. At its head was placed the Secretary of War, and so necessary was it deemed to the dignity and security of the nation that he was made one of the principal officers of the government, having a seat in the cabinet and being regarded as one of the advisers of the Chief Magistrate. He is appointed by the President with the consent of the Senate. A Chief Clerk, to be appointed by the Secretary, was provided for by the act of 1789 creating the Department, who was the second authority in it, and acted as Secretary, in case of a vacancy; but when the Civil War raised this Department to great prominence, in 1861, a law was passed authorizing the appointment of an Assistant Secretary, and, in 1863, two additional Assistant Secretaries were provided for by law; all to be appointed by the President. This last measure

was temporary only, designed to expire when returning peace should reduce the Department to its ordinary condition.

At first the affairs of the national navy were managed by the Secretary of War. This was changed, as we shall see, when our commerce and foreign relations became more important.

The Secretary of War ranks next to the President in military authority and dignity, and has the whole oversight, under him, of the army and its affairs. He makes out military commissions to be signed by the President, has the care of providing for the support, clothing, pay, and equipment of the army, and of all military stores required to keep the army in efficient drill, and in readiness against a possible war. He has the care of all books, records, and papers relating to the army and to military affairs. The names, grades, time of enlistment, term of service, and time of mustering out of all officers and privates in the army, whether in the regular or volunteer service, are to be found in his office. All military accounts are kept and adjusted under his supervision. These cares and duties have become so numerous and important as to require a careful organization of the Department into sub-departments, or bureaus, as the Commissary's, the Quartermaster's, and the Ordnance bureaus. The general management of the whole depending on the Secretary of War, he evidently requires to be a man of judgment, thoroughly versed in military affairs, and of eminent organizing ability.

A Solicitor, to have charge of the legal business of this Department, was provided for by law in 1863, to be appointed by the President and the Senate.

SECRETARIES OF WAR.

Henry Knox, Mass., Sept. 12, 1789.
Timothy Pickering, Pa., Jan. 2, 1795.
James McHenry, Md., Jan. 27, 1796.
James Marshall, Va., May 7, 1800.
Samuel Dexter, Mass., May 13, 1800.
Roger Griswold, Ct., Feb. 3, 1801.
Henry Dearborn, Mass., March 5, 1801.
William Eustis, Mass., March 7, 1809.
John Armstrong, N. Y., Jan. 13, 1813.
James Monroe, Va., Sept. 27, 1814.
William H. Crawford, Ga., March 2, 1815.
Isaac Shelby, Ky., March 5, 1817.
G. Graham, Va., April 7, 1817.
John C. Calhoun, S. C., Oct. 8, 1817.
James Barbour, Va., March 7, 1825.
Peter B. Porter, N. Y., May 26, 1828.
J. H. Eaton, Tenn., March 9, 1829.
Lewis Cass, Mich., Aug. 1, 1831.
Benjamin F. Butler, N. Y., March 3, 1837.
Joel R. Poinsett, S. C., March 7, 1837.
John Bell, Tenn., March 5, 1841.
John McLean, O., Sept. 13, 1841.
John C. Spencer, N. Y., Oct. 12, 1841.
James M. Porter, Pa., March 8, 1843.

William Wilkins, Pa., Feb. 15, 1844.
William L. Marcy, N. Y., March 5, 1845.
George W. Crawford, Ga., March 6, 1849.
Charles M. Conrad, La., Aug. 8, 1850.
Jefferson Davis, Miss., March 5, 1853.
John B. Floyd, Va., March 6, 1857.
Joseph Holt, Ky., Dec. 30, 1860.
Simon Cameron, Pa., March 5, 1861.
Edwin M. Stanton, Pa., Jan. 13, 1862.
Ulysses S. Grant, Ill., 1868.
J. M. Schofield, 1868.
John A. Rawlins, Ill., Mch. 5, '69. Died Sept. 6, '69.
Wm. T. Sherman, Sept. 9, 1869.
Wm. W. Belknap, Oct. 25, 1869.
" " reappointed March 17, 1873.

CHAPTER XVII. THE UNITED STATES ARMY.

1. The military successes of the United States would seem to prove undeniably, that, if the nation had adopted a career of conquest as did Ancient Rome, it might have played an important part in the history of warlike peoples. The undisciplined militia shut up a strong army in Boston in 1774, and, had not their powder failed, would very likely have forced the British to evacuate that place immediately after the battle of Bunker Hill.

2. Washington's army, made up in large part of militia, seemed always on the point of dissolution, and yet the British, after spending more than a hundred millions in fitting out armies against them, and possessing the important superiority of free movement on the sea, for the transportation of forces easily and rapidly to any desired point, never could gain a permanent foothold, though opposed only by a ragged, famished, and half disorganized army.

3. The war of 1812—the Mexican War—and the Civil War, all bear testimony to the excellence of the material for military operations to be found among us. Yet we are a peace loving people. The government has never had more than the skeleton of an army in times of peace. While the Great Powers of Europe keep up armies of half a million of men, our army, very soon after the late gigantic war, was reduced to less than 30,000 men; barely enough to keep the Indians in order, garrison the frontiers slightly, and furnish a nucleus of soldiers and trained officers in case of a war. By a law of Congress, it was enacted that every sound and healthy man, with a few exceptions in special cases, between the ages of 18 and 45, should be enrolled and equipped for military duty. Then, by the laws of the States, they are required on certain days in each year to meet in companies, regiments or brigades, for drill and practice in military exercises.

4. By these means military organizations are kept up in every part of the country, together with some knowledge of the military art. These, in time of war or domestic insurrection, may be called out with but a few days' notice; and a large army of citizen soldiers can be raised in a very short time. With such facilities for raising men, it is unnecessary to keep a standing army of much magnitude. A few thousand men to guard our fortifications and military posts are sufficient.

The late civil war between the South and the North gave ample evidence of this; for when it became necessary to raise a million of men, it was done in a short time, and after a little practice they became good soldiers.

CHAPTER XVIII.

THE MILITARY ACADEMY.

1. The success of military affairs in time of war depends, in great measure, on a thorough knowledge of the science of war, and especially of engineering, so often requiring to be applied with haste and accuracy to the *construction* or *destruction* of military defenses. It requires a complete knowledge of certain branches of mathematics, and an understanding of their application to warlike purposes. Various other special studies are required to prepare men for prompt and able action in military operations. For the purpose of keeping a corps of officers, well fitted to meet these requirements, ready for possible occasions

A MILITARY ACADEMY

was established. It is located on the west bank of the Hudson river, at West Point, in the State of New York, and about 50 miles from the city of New York, and is one of the government institutions. It had its origin in an act of Congress passed as early as 1802. Under this act this far-famed military school was commenced, but on a scale, in every respect, very much inferior to what it has since become.

2. Its name explains its character and objects. It was established and has been continued at a great expense, for the purpose of teaching and training up young men in the science and art of war, that in any emergency the country might have a sufficient number of men, educated and skilled in all such arts and sciences as appertain to war. Hence, mathematics, engineering, gunnery, drawing, natural and experimental philosophy and military tactics, are among the principal branches taught. In all of these, able professors give instruction to the cadets, as the pupils are called. Chemistry, geology, and the French language are also taught at this institution. The instruction is thorough, the discipline excellent, and some of the graduates of this celebrated school rank high among the scientific men of the country.

3. Congress controls and regulates this establishment, as it does all other departments, institutions, and works belonging to the government. It enacts all laws relating to its officers, professors, and cadets, and to the management of the institution.

4. By a law passed in 1843, the number of cadets to be admitted was made to correspond with the number of Senators and Representatives from each State. Every State and Territory is entitled to send as many cadets as it has Senators and Representatives in Congress. This gives each Territory, however, but one; as a Territory has no Senators, and but one Representative. By the same law the District of Columbia is allowed one. To give every part of the country an equal chance, it was enacted that each Congressional district in each State and Territory should be allowed to send one cadet, to be educated at West Point. These are generally nominated for appointment by the Congressmen from their respective districts, and the President appoints. The cadet must be an actual resident of the district for which he is appointed.

5. In addition to these, it is provided by the same act, that ten more cadets may be appointed at large; *i. e.*, without regard to Congressional districts. In order to be admitted as a cadet, the candidate must be well versed in reading, writing, and arithmetic; must not be under 14 nor over 21 years of age; and must sign articles, agreeing to serve the United States eight years. After he has finished his studies and has graduated, he is considered as a candidate for a commission in the army, according to the duties he may be competent to perform.

6. The Military Academy may be considered a branch of the War Department. Men who have been educated there have rendered the country signal service in times of war, have made able commanders, and have proved themselves thoroughly skilled in military science. Not only in the military service has it been a benefit to the country, but in the civil walks of life. Many of its graduates have distinguished themselves as engineers, astronomers, and in other scientific professions and useful employments.

7. There is an annual examination of the cadets, and of the general affairs of the institution, by a committee appointed by the President, for that purpose.

It is composed of Congressmen and military officers. It is the duty of these examiners to attend the examination, inspect its discipline, and course of instruction, look after its fiscal affairs, and all other matters relating to the Academy, and report the same to the Secretary of War, for the use of Congress.

CHAPTER XIX.

DEPOTS OF WAR MATERIAL.

We have seen that the government can be sure of the support of the citizens in time of war and that they furnish the best kind of material of that description for military purposes. An army of great effectiveness can be organized in a comparatively short time, when important interests of the country are at stake. Not so, however, with the arms they require to use for offensive purposes. These require time and skilled workmen to construct them. They are therefore kept in readiness for use in Depots constructed for the purpose.

As early as 1794, Congress enacted that three or four arsenals and magazines, with an armory attached to each, should be established for the safe keeping of military stores. An arsenal is a place where arms and military stores are kept. An armory is a place where arms are made or repaired. The armories where arms are manufactured are at Springfield, in Massachusetts, and at Harpers' Ferry, in Virginia. But there are many others where they are repaired.

In 1808, the President was authorized to purchase sites and to erect as many more arsenals and manufactories of arms as he might deem expedient. Each of these establishments was formerly under the direction of a superintendent; but they are now placed under the direction of the Ordnance Department. The office of superintendent of the armories at Springfield and Harpers' Ferry, was also abolished in 1842; and its duties have since been performed by such officers of the ordnance corps as were designated by the President. In each armory there is employed a master armorer, who superintends the workmen. In addition to those already named there are arsenals and armories at Pittsburgh and Bridesburg, in Pennsylvania; at Washington City; at Watervliet, in New York; Watertown, Mass.; at Columbus, Ohio; at Indianapolis, in Indiana; and at Rock Island, in Illinois. They are parts of the military establishment of the country, and belong to the War Department.

CHAPTER XX.

ARTICLES OF WAR.

1. An army is designed, in idea, to supply a powerful instrument of offense and defense, that shall so thoroughly organize and fuse together a large number of individuals that the whole shall act as one, and be perfectly under the control of the directing mind. An army fully realizing this idea, would suppress, in its military acts, all thoughts and sentiments of its individuals, and be used by its commanding general as he would use his own hand, arm and foot. It should move at his will, strike where, as long and as heavily as he saw best, and be to him a perfect machine as to obedience.

2. This idea is seldom more than partially realized; but it is the aim of all military drill, discipline, and law. The Articles of War are the body of laws enacted by Congress defining the relations of soldiers to their officers, so as to secure as fully as possible among a free people this thorough subordination, defining the conduct of the soldier toward his superior, prescribing the duty of the officer, and securing as far as possible in connection with such subordination the rights of the soldier.

3. They contain general directions concerning the organization, enlistment, and discharge of men, rules for leaves of absence, punishment for absence without leave, or for desertion, and other penalties for conduct improper or criminal in a soldier. Many of these rules are very strict and the penalties severe, since a neglect to obey might endanger the safety of an army or the country, or interfere with the most important operations. War is a very exacting pursuit.

4. It is relaxing also in some directions and rules are made requiring, and often without effect, obedience to some of the most common principles and practices of morality. It often becomes quite impossible to enforce these amid the fierce excitement and wild disorder of active warfare.

5. Offenses committed in the army are not tried before a civil tribunal, but by a military court called a "Court Martial," for the guidance of which a special code of rules is prepared. These are characterized by the brevity, decisiveness, and summary action that is so important to the effectiveness of all military affairs. The decisions of a

court martial may impose all punishments even to condemning a man to death; but they are subject to modification, or commutation, or even may be wholly set aside by the President of the United States, who is Commander-in-Chief of the Army.

The Articles of War relate to all things important to the welfare, effectiveness, and safety of an army, and aim to provide for the comfort and protect the rights of the individual as well as circumstances permit. They consist of one hundred and one articles. The first one requires every officer in the army to subscribe to them before he enters on his duties.

CHAPTER XXI.

MILITARY HOSPITALS AND ASYLUMS.

1. It is plainly a dictate of humanity that a government should provide for the comfort and skillful treatment of those persons who are wounded in its service, or who become diseased under the hardships of a military life and are disabled from active duty. Our century is specially distinguished by the benevolent care bestowed on the indigent and the suffering, in all civilized countries, and we have reason to expect that the United States would take a leading place in this care for her own citizens.

2. This has been done, and all the thoughtful attention that the case called for has been given to hospitals and asylums for the disabled and suffering, both of the Army and Navy, equally in peace and war.

3. In 1851, Congress passed an act for the establishment of military asylums, for the purpose of making the same provision for wounded and disabled soldiers as had already been made for that class of seamen. These institutions are located in different sections of the country where deemed most eligible and convenient for those who need such a place of refuge. They are placed under the government of a board of commissioners, consisting of the general in chief, and eight other military officers of high rank, who submit their acts to the Secretary of War for his approval.

4. The officers of these asylums must be taken from the army, and consist of a governor, a deputy governor, and secretary, who is also treasurer. The funds for their support are raised by a tax of twenty-five cents per month on the soldiers, to which are added the fines and penalties adjudged against soldiers by courts martial, with forfeitures for desertion, &c.

Persons receiving pensions from the government may be admitted into these asylums upon condition that they surrender their pensions to the use of the institution while they remain in it.

The commissioners are authorized to buy sites and buildings for these institutions, and to receive donations of them. They also furnish them with whatever is necessary for the comfort of the inmates, and make such laws and regulations for their government as they deem proper.

Deserters, mutineers, and habitual drunkards, are excluded from the benefits of these asylums.

INSANE ASYLUM.

5. Among these benevolent institutions provided by a generous government for the support of those who have faithfully served their country, the insane asylum ought to be noticed. The title of this establishment is "the government hospital for the insane." Its objects are the cure and kind treatment of the insane of the army and navy, and of the District of Columbia. It is under the control of a board of nine visitors, all of whom must be citizens of the said District. They are appointed by the President, and annually report to the Secretary of the Interior the condition of the asylum and its inmates. They serve without compensation.

6. The superintendent must be a physician. There is a farm attached to the asylum, which is under the direction of the superintendent, who receives patients upon the order of the Secretary of the War, or the Navy, and upon the order of the Secretary of the Interior. He may receive indigent insane persons residing in the District of Columbia. If other than indigent persons are admitted, they must pay for the privilege a sum not less than the cost of their support.

7. The military hospitals in time of war are for temporary purposes, and are established wherever the army happens to be, and especially near where the great battles have been fought, that immediate relief may be given to the sick and wounded. These are established by the commanders of the army, and are under their control. And here let it be recorded to their praise, that since military hospitals were known, never have any been seen which for order, cleanliness and efficiency in administering to the comfort and care of the sick and wounded soldiers, surpassed those of the United States during the late civil war.

CHAPTER XXII.

NAVY DEPARTMENT.

The position of the United States naturally gives it great prominence as a naval power. Situated between the two great oceans, with thousands of miles of coast on each, and a profusion of good harbors, bays, and great rivers, accessible to large ocean vessels for long distances into the interior; with a soil of great fertility, and numerous and inexhaustible sources of mineral wealth, besides all the conditions favorable to the establishment and success of manufactures—it requires large foreign markets for its various products, and an extensive commerce is essential to its development. It should be, and perhaps it is, the strongest naval power in the world.

The War of Independence was much increased in length and difficulty by the want of a navy, the maritime resources of England giving her a great superiority in striking suddenly, and in force, at distant points.

It was natural, then, that so important an arm, for both attack and defense, should be prepared to act with energy, and this was one of the first cares of the new government; and so efficient did this branch of national strength become in the thirty years of peace, to the war of 1812 with England, that the easiest and some of the most important successes of the Americans, in that conflict, were on the sea.

The care of Naval affairs was, at first, committed to the Secretary of War. In 1798 it was erected into a separate Department, and a Secretary placed at its head. He was entitled to a seat in the Cabinet, as one of the advisers of the President, and received his appointment by nomination of the President and concurrence of the Senate, in the same manner as the Heads of other Departments.

As the President is the highest officer, in command, in the Navy, he ranks as second, and acts under his direction. It is his duty to procure naval stores and materials, and to oversee the places where they are deposited; to attend to the construction, equipment, armament, and employment of vessels of war, to make out the commissions of naval officers; to see that efficiency and discipline are maintained in the service; and to assume the control of the movements of the vessels of war that are kept cruising in every sea for the protection of our commerce and citizens in foreign parts, and the preservation of the international rights and dignity of the United States.

3. A chief clerk was formerly the second officer in rank in the Department, but, in 1861, provision was made, by Congress, for an Assistant Secretary, who should act as Secretary in the absence of that officer.

Formerly there were five bureaus in this department, but in 1862, three more were added, making eight, as follows:

1. A Bureau of Yards and Docks.
2. A Bureau of Equipment and Recruiting.
3. A Bureau of Navigation.
4. A Bureau of Ordnance.
5. A Bureau of Construction and Repairs.
6. A Bureau of Steam Engineering.
7. A Bureau of Provisions and Clothing.
8. A Bureau of Medicine and Surgery.

The President and Senate appoint all the heads of these bureaus, and select them principally from officers of high rank in the navy. They are all appointed for four years.

The Secretary appoints all the numerous clerks employed in the various bureaus and assigns their duties.

He must annually report to Congress the condition of his department, the manner and amount of all expenditures, furnish estimates for the expenses of the following year, and give such advice in regard to the naval interests of the country as his intimate knowledge of that branch of the service may suggest. He requires an intimate knowledge of maritime affairs, and of International law, and a high and enlightened appreciation of the policy to be pursued in our official and commercial intercourse with all foreign nations.

The following list embraces the names of all the Secretaries of the Navy, from George Cabot, the first, to George M. Robeson, the present incumbent:

George Cabot, Mass., May 3, 1798.

Benjamin Stoddert, Mass., May 21, 1798.

Robert Smith, Md., July 15, 1801.

J. Crowninshield, Mass., May 3, 1805.

Paul Hamilton, S. C., March 7, 1809.

William Jones, Pa., Jan. 12, 1813.

B. W. Crowninshield, Mass., Dec. 17, 1814.

Smith Thompson, N. Y., Nov. 9, 1818.

John Rogers, Mass., Sept. 1, 1823.

S. L. Southard, N. J., Sept. 16, 1823.

John Branch, N. C., March 9, 1829.

Levi Woodbury, N. H., May 23, 1831.

Mahlon Dickerson, N. J., June 30, 1834.

J. K. Paulding, N. Y., June 20, 1830.

G. E. Badger, N. C., March 5, 1841.

Abel P. Upshur, Va., Sept. 13, 1841.

David Henshaw, Mass., July 24, 1843.

T. W. Gilmer, Va., Feb. 12, 1844.

John Y. Mason, Va., March 14, 1844.

George Bancroft, Mass., March 10, 1845.

John Y. Mason, Va., Sept. 9, 1846.

William B. Preston, Va., March 7, 1849.

William A. Graham, N. C., July 20, 1850.

J. P. Kennedy, Md., July 22, 1850.

J. C. Dobbin, N. C., March 5, 1853.

Isaac Toucey, Ct., March 6, 1857.

Gideon Welles, Ct., March 5, 1861.

Adolph E. Borie, Pa., March 5, 1869.

George M. Robeson, N. J., June 25, 1869.

” ” reappointed March 17, 1873.

CHAPTER XXIII. THE UNITED STATES NAVY.

1. The original thirteen States were all on the Atlantic coast, and had each one or more sea ports. They were naturally given to commerce, and the second Continental Congress, in December, 1775, resolved to form a navy of thirteen vessels of war. Eight were soon fitted out; but the superiority of England on the sea, and the great financial difficulties with which Congress had to struggle during, and for some years after, the Revolutionary War, made it impossible to give any great degree of development to naval affairs. The sea swarmed with American privateers during the war, and many hundreds of English merchant vessels were captured; but Congress never was able to collect a formidable fleet. The daring exploits of Paul Jones, in European waters, and the bold and successful raids of Privateersmen under Letters of Marque and Reprisal gave indication of what might be looked for in the future, but they could not cope with British fleets.

2. The Navy Department was for some time under the control of the Secretary of War; but, as the finances began to improve, care was taken to develop this important branch of national power, and a special Secretary appointed. In the war of 1812 with England 25 years of peace had unfitted the people for great *immediate* success in the army; but the navy was the pride and glory of the nation. The disasters attending military operations for the first year or two were more than compensated by the brilliant and solid advantages gained by our men of war.

3. This gave a great impulse to the naval tendencies of the nation, and it soon became the settled determination of the people to supersede England as the strongest naval power. She had been *Mistress* of the Seas; there were strong reasons for our ambition to become *Masters*, at least in American waters. We had an extensive line of coast, and our "Monroe Doctrine," that Americans ought to rule America, and that European governments should never be permitted to acquire a preponderating influence in North America, rendered a strong navy important. Our people, however, are so largely commercial that skillful mariners are always at command; and the government has never maintained, in time of peace, a very large naval force.

4. What they can do in time of need was demonstrated during the Civil War, when the navy was increased in two years by more than 400 vessels—many of them very expensive and powerful; proving in actual conflict the inability of the strongest land fortresses to resist them. The thousands of miles of the Atlantic and Gulf coast blockade, that was rendered so effective as to *smother* the Confederate government, so to speak, destroying its finances by rendering its cotton unavailable, is the best comment on the naval resources of the United States. The extreme boldness and vigor with which the Confederate cruisers that managed to escape the blockade fell on our merchant vessels, and laid waste our commerce, is another point in the argument; for they were Americans, and demonstrated the natural prowess of Americans on the sea, of which we could well be proud but that it did fatal harm to our mercantile marine.

5. Not half of the vessels belonging to the navy are, however, now (in time of peace) in commission—that is, in active service. The rest are either laid up, or in process of repair. Most of those in commission are employed in what is called squadron service. The Secretary of the Navy in a late report enumerates seven of these squadrons; viz.: the European, the Asiatic, the North Atlantic, the South Atlantic, the North Pacific, the South Pacific, and the Gulf squadrons. The names given to these squadrons indicate their whereabouts, and their cruising grounds. These squadrons consist of six, eight, ten, twelve or fifteen vessels, as the work to be done may require. It is their duty to visit the seaports of the various countries along the coasts of which they cruise, in order to protect our merchantmen against pirates or enemies of any description, which may molest them or interfere with their rights and privileges; and also to look after the interests and dignity of the United States.

6. The squadrons are under command of a high naval officer of the rank of commodore or rear admiral, whose ship is called the flag ship of the squadron. Many of our naval officers have distinguished themselves for bravery, skill, and patriotic devotion to their country, and have occupied the highest positions of honor, and the most exalted places in the esteem and affection of their countrymen.

In 1862, Congress enacted that there should be nine grades of officers in the navy, and that their corresponding rank with military officers should be as follows:

1. Rear-Admiral	with Major-General.
2. Commodores	" Brigadier-Generals.
3. Captains	" Colonels.
4. Commanders	" Lieutenant-Colonels.

- | | | |
|----------------------|---|---------------------|
| 5. Lieut.-Commanders | ” | Majors. |
| 6. Lieutenants | ” | Captains. |
| 7. Masters | ” | First-Lieutenants. |
| 8. Ensigns | ” | Second Lieutenants. |
- Midshipmen have no corresponding rank in the army.

CHAPTER XXIV.

NAVY YARDS.

1. We have seen that the Secretary of the Navy has several different Bureaus, having each its separate part of naval interests and stores to care for. The material for the equipment of the army is, in large part, stored in arsenals and armories; in the navy in or near Navy Yards. Here are gathered such stores and materials as are required for the construction or repairs of vessels, and hundreds of skilled workmen, constantly employed in rendering the navy effective; replacing vessels that have become unseaworthy, repairing damages, or building such vessels of special construction as the varying demands of the service may require.

2. These are established at different places along the coast, most convenient for the purpose. There is one at Philadelphia, Pa., at Brooklyn, N. Y., at Portsmouth, Va., at Pensacola, Fla. Here vessels are laid up when not in “commission” or active service, or are sent for repairs, or to obtain their stores before departing to their distant stations. All the officers necessary for keeping all these matters in order are stationed at these yards; and the Navy Department, by these means, preserves the same perfect system of organization and efficiency as we have seen to characterize other branches of the executive administration.

CHAPTER XXV.

THE NAVAL ACADEMY.

1. Naval affairs, quite as much as military, perhaps even more, require the aids of science, and a careful and thorough training. Much of this, indeed, is gained in active service, but for this a basis of scientific study must be laid, and this school of preliminary instruction is called the Naval Academy. As a preliminary even to this, the government has established schools on board of ships, for the instruction of boys in navigation and naval warfare. These are called apprentices; and for good conduct and proficiency in their studies, they are advanced to the Naval Academy, and placed in the line of promotion.

2. This school is now established at Annapolis, in the State of Maryland, near Washington. Like the Military Academy, it has its superintendent and professors. The pupils are called midshipmen. They are taught navigation and such other branches of science as are necessary to make them good seamen and naval officers. They are selected upon nearly the same plan as cadets. Each Congressional District in every State and Territory is entitled to send two students to be educated at the Academy. The District of Columbia is also entitled to send two. Besides which, the President is allowed to appoint ten additional ones at large, and three more from the boys enlisted in the navy.

3. After their graduating examination, if they pass, they are commissioned as ensigns in the navy, and rank according to merit. Before admission, they are examined according to the regulations made by the Secretary of the Navy, and must be between the ages of fourteen and seventeen years, sound, robust, and of good constitution.

4. The course of study in this, as well as in the Military Academy, is adapted to the profession which the students are expected to follow—the one in the navy, the other in the army. More are educated at these great national schools than the government needs in time of peace. Many of the graduates are engaged in civil employment. Thus these institutions have been of great service to the country, outside of the army and navy, for they have added to the number of well-educated and scientific men, who may be useful in any of the walks of life. Their graduates elevate the standard of intelligence in the community, especially when they engage in the work of instruction.

Both of these institutions are supported at the expense of the government. The tuition and board of cadets in one, and of the midshipmen in the other, costs them nothing.

CHAPTER XXVI.

THE NAVAL OBSERVATORY.

1. An observatory is a building erected for astronomical purposes, and supplied with the necessary apparatus for studying the heavens. A thorough knowledge of certain portions of astronomy is indispensable to the commander of a vessel, since it is by means of this alone that he can ascertain his exact position on the open ocean out of sight of land. Nautical Science and Astronomy have advanced hand in hand; and to perfect the former as much as possible the United States Government established the Naval Observatory. This institution is located in Washington, and was originated by act of Congress in 1842, and put in operation in 1844.

2. This institution owes more to that enlightened and truly patriotic President, John Q. Adams, than to any other man. He recommended it as far back as 1823, and again in his first message to Congress. But political opposition to the man prevented his recommendations from being acted upon till nearly 20 years after they were made. This opposition was finally overcome, and we, and posterity after us, will reap the fruits of Mr. Adams' suggestions and labors.

3. The observatory was built and furnished with various astronomical and philosophical instruments, and a corps of professors were appointed to watch the movements of the heavenly bodies, and to make such observations and experiments as would enable them to determine many unsettled questions which relate to the science of navigation; and incidentally to another great government work, having especial reference to the same subject; that is, the coast survey.

The coast survey has already been of great service to the interests of navigation—whether national or commercial vessels are regarded—and, when finished, much greater benefits are to be expected. When a sufficient number of observations and experiments shall have been made at the naval observatory, and published to the world, much valuable information will be added to what is already known. And indeed it would be disreputable to a nation having so large a navy and such a vast number of merchant ships upon the ocean, to do nothing for or add nothing to the science of navigation. It would be an unwise policy if economy only were studied, and we would justly deserve the reproach of being penurious, short-sighted, and miserably wanting in disposition to promote the general good of the world.

4. The professors are assiduous in their labors, and publish the results of their observations and the facts they have determined. These are not only of use to our own seamen, but to those of all nations who are doing business on the great deep. Here the charts made by the coast survey are deposited, and from hence all our national vessels are furnished with them, and with all the nautical instruments they require.

The charts, instruments and books relating to astronomy and navigation, found here, make it the headquarters and depot of nautical science in the United States.

CHAPTER XXVII.

THE COAST SURVEY.

1. While the Naval Observatory is a government institution for studying the heavens in the interest of the Navy; the Coast Survey is an organization employed in a thorough and scientific study of the shores of our country for a sufficient distance out from the land to ascertain all the features concealed by the water that may have a bearing on the safety of our navy and commerce. One examines the heavens, the other the depths of the waters. They are both of great importance.

2. This government undertaking has not been as vigorously prosecuted as some other enterprises conducted by it. As early as 1807, Congress passed an act authorizing the President to have this work done. Much of it has been done, yet it is not finished at this day. Our acquisition of Florida, Texas, and California has greatly extended our

sea coast since the work was commenced, and its accomplishment has cost more time and labor than was anticipated at the beginning, yet we think it ought to have been completed in much less than 60 years.

3. This work, like that relating to light houses, is under the management of a board, consisting of a superintendent, two principal assistants, two naval officers, and four officers of the army. These nine constitute the board. Then there are as many officers of the army and navy employed in the execution of the work as are deemed necessary. And the public vessels, by direction of the President, may be used in order to facilitate the work, for much of it must be done at sea. The survey extends 20 leagues from the shore. The surveyors must make accurate charts of the whole coast, in which are laid down all the islands, shoals, roads or anchorage grounds within twenty leagues of any part of the shore of the United States. The courses or distances between the principal capes or headlands must be laid down, together with the soundings (depths of water) and everything else necessary to make a complete and accurate chart of every part of our coasts.

4. An annual report of this work must be made to Congress in December of each year, accompanied with charts, showing the progress of the work, the number of persons employed, the expenses incurred, the amount of work finished, and what is unfinished. These reports and charts are carefully preserved, and copies of them may be had at Washington for the use of our naval and merchant ships, to which they are of great service, as guides, whenever they are on or near the coast. This work, in its utility, is not confined to ourselves; but the important information obtained by it is of great use to the navigators of all nations who come into our ports or cruise on our coasts. They derive the same benefits from this work that we derive from theirs of the same kind. It is creditable to any nation to do such things as are beneficial to the world, such acts as contribute to the welfare of humanity. Shipwrecks belong to the list of terrible calamities which often befall those "who go down to the sea in ships, that do business in great waters." Whoever diminishes these is a public benefactor.

CHAPTER XXVIII.

LIGHT HOUSES.

1. These, with Buoys, and Beacons, are a necessary practical supplement to the labors of the Coast Survey. Buoys and Beacons indicate the shoals, or dangerous rocks and reefs beneath the surface of the water, in the daytime; while light houses indicate the same, and show the mariner the bearings of the land, in the night; and, by studying, in connection with these, the charts of the coast supplied by the Coast Survey, he may make his way as securely in the night or day through the concealed dangers of the treacherous waters as a landsman along a beaten highway. They are way-marks along the sea coast, at the entrance of harbors, and on lakes and rivers. They speak a language very well understood by the seaman; and are invaluable for the protection of his vessel from the dangers of the Deep.

2. Keepers are appointed by the government to keep them in repair, and to see that they are properly lighted every night. We have no means of knowing the number of these useful establishments, but there must be several hundred of them; for we have more sea coast than any other nation upon the globe, with a still greater length of lake and river shore. They are located at prominent points, and at dangerous places, all along the extensive lines of coast and shores.

3. To the end that light houses should be constructed and kept in repair, and that competent men might have the whole matter in charge, a law of 1852 authorized the President to appoint two officers of the navy of high rank, one officer of the corps of engineers of the army, one officer of the topographical engineers, and two civilians of high scientific attainments, to form a LIGHT HOUSE BOARD for the United States. This board is attached to the Treasury Department, and the Secretary of the Treasury superintends its operations. The board has in charge the building, illumination, and inspection of light houses, light vessels, buoys, beacons, sea marks, and their appendages.

4. The Secretary of the Treasury is president of the board, and may convene them whenever he deems it necessary.

The law makes it the duty of the board to divide the whole of the sea, gulf, and lake coasts, into light house districts; not exceeding 12 in number. An officer of the army or navy is assigned to each district, as a light house inspector.

They have the control of everything relating to light houses, light ships, buoys, beacons, or other means of directing vessels in and out of port, or of guiding them while sailing along the coast in the night.

5. As foreign vessels receive the same benefits from our light houses as our own, there is nothing unfair or illiberal in requiring them to contribute something towards the expense of maintaining them. For this purpose Congress has imposed a tax, or laid a duty of 50 cents per ton on all foreign vessels entering any ports of the United States. This is called "LIGHT MONEY." It is collected in the same way as tonnage duties are, *i. e.*, by the collector of the port where the ship arrives. Light money is not required of vessels owned by citizens of the United States, provided that they are regularly registered as the law directs, or have a sea letter.

7. A sea letter is a document or certificate, given by the collector of a port, to the captain of an American vessel, certifying that she belongs to a citizen or citizens of the United States. Armed with this, the captain can prove to all whom it may concern, anywhere in the world, the ownership and nationality of his vessel. This is a protection to her and her cargo, especially in times of war. It is one of a ship's papers.

CHAPTER XXIX.

LETTERS OF MARQUE AND REPRISAL.

1. The somewhat barbarous custom has prevailed among nations, from early times, of making war in every possible way upon the citizens of a hostile country, and of taking or destroying their property, on the principle that injury to the citizens of the power warred against would diminish its power of defense and attack.

This has been carried into effect on the sea by authorizing private vessels to be fitted out for warlike purposes and preying on the commerce of the enemy. Such authority is given by Letters of Marque and Reprisal. The Constitution confers on Congress the power to do this; and Congress authorizes the President to do it. A law was passed in 1863 expressly conveying it to him.

2. It is a formal commission given to the commander of a private armed vessel, called a privateer, authorizing him to capture the ships and goods of the subjects of a nation with which we are at war. When such letters are issued by the United States they are signed by the President and sealed with the great seal. Without such commission, thus signed and sealed, any capture made by the commander of a private vessel would be piracy. If a capture is made, it must be made according to the laws of war, as recognized by civilized nations, and according to the instructions given by the President. Any conduct on the part of a privateer, contrary to these rules, would vitiate his proceedings, and he would not be entitled to the property he had captured.

3. The captured vessel is called a prize, and must be taken into some port of the United States, or into some port of a country in amity with the United States, where legal proceedings are taken before some court of competent jurisdiction; and the capture and all the circumstances of it inquired into; and if all is found to have been done according to the laws of civilized nations, the captured vessel and cargo is condemned as a prize. But if not condemned, the captors lose her. When adjudged to be a lawful prize, the ship and cargo are sold, and the money is divided between the officers and men, according to rank, and according to the laws of Congress on this subject. These laws give the whole to the captors, when the ship taken is of equal or superior force to the ship making the capture; but if of inferior force, then the United States takes one-half.

4. Privateering, as this business is called, was once considered a lawful and honorable mode of warfare. It was generally practiced between belligerent nations; but in later days its propriety and morality have been questioned. It is beginning to be looked upon as a kind of robbery not very distantly related to piracy. That it is robbery no one can deny, and, query, "Can it be justified on the ground that the robber and the robbed are the subjects of nations at war with each other?"

5. In Europe an effort has been made to do away with this species of warfare. We hope it will yet succeed, and that all nations will agree to abolish this system of plunder. Innocent parties are generally the sufferers, while but small injury is done to the power of the hostile nation.

CHAPTER XXX.

NAVY AND MARINE HOSPITALS.

1. These institutions are still more important for sailors than for soldiers; as the sailor is more likely to have lost his adaptation to any kind of business on land, and to lose sight of family relations by reason of his long absences to foreign regions. The government very early took this subject in hand and made ample, and extremely comfortable, provision for disabled seamen belonging to its navy.

2. In 1811 an act was passed to establish navy hospitals, for the exclusive use of such seamen as belonged to the navy. This new institution was at first placed under the management of a board of commissioners known as the commissioners of navy hospitals. This commission consisted of the Secretaries of the Navy, Treasury, and War. But in 1832 this was changed, and the Secretary of the Navy was made sole trustee of the navy hospital fund, which was made up of \$50,000 appropriated by Congress for that purpose, together with twenty cents per month collected from seamen belonging to the navy, and the fines imposed on navy officers, seamen, and marines.

The commissioners were authorized to purchase or erect suitable buildings for navy hospitals.

THE MARINE HOSPITALS.

3. These are located near important seaports. At these places seamen depart for, and arrive from their voyages, and are found in the greatest numbers; and here the funds for the support of the marine hospitals are collected, as is the tonnage on ships, viz.: by the collectors of the ports. For this purpose the law authorizes the collectors of customs to demand and receive the sum of twenty cents per month from the wages of every sailor; and every master of a vessel is obliged to render to the collector an accurate account of the number of seamen on board his vessel, and of the time they have been employed by him, since his last entry into any port of the United States. These twenty cents the captain must pay the collector, but he is allowed to deduct it from each seaman's wages. In this manner the funds for the building, furnishing, and support of the marine hospitals are raised. The collectors of the ports pay them into the United States Treasury, and the Treasurer disburses them to the directors of the hospitals as they are needed. The directors are appointed by the President. They appropriate the funds, and have the general direction and management of the institutions.

4. These provisions are contained in an act entitled, "An act for the relief of sick and disabled seamen," passed in 1798. Seamen, whether in the merchant service or in the naval service of the United States, were indiscriminately taxed for the support of these hospitals; and both have the same rights, privileges and benefits in them. The money thus collected from seamen is called "hospital money," and the fund is denominated "the marine hospital fund." In 1864 there were 24 marine hospitals in the United States.

CHAPTER XXXI.

DEPARTMENT OF THE INTERIOR.

1. At the first general census, in 1790, there were but little over three millions and a half of inhabitants in the United States, and these mostly settled along the Atlantic seaboard; the country was oppressed with debt, and not recovered from the effects of a desolating war. Its public business, therefore, was comparatively small in amount, and was readily managed by the three Departments, of State, of the Treasury, and of War. The energy of the people, and the great resources at their command, enabled them to surmount all their difficulties in a short time, and the country entered on a career of remarkable prosperity. Its public business kept pace with the general expansion, and new departments were from time to time created, to improve the efficiency of the public service.

2. In 1849 Congress passed a law creating the Department of the Interior, and a Secretary of the Interior, having a seat in the Cabinet, appointed in the same manner, and possessing the same rank, as the other members of the Cabinet, was installed in office.

3. The bureau of the Commissioner of Patents was transferred from the Department of State, and the General Land Office from that of the Treasury.

The supervisory power before exercised by the Secretary of the Treasury over the accounts of the marshals, clerks, and other officers of all the courts of the United States, was placed in the hands of the new Secretary. The office of the Commissioner of Indian Affairs, heretofore attached to the War Department, was also transferred to this; and the powers and duties of the Secretary of War, in relation to Indian affairs, were devolved on the Secretary of the Interior.

4. The Secretaries of War and of the Navy were by the same act relieved of their duties in regard to the Commissioner of Pensions, and those duties were thereafter to be performed by the Secretary of the new department.

The Census Bureau, heretofore attached to the State Department, and the duties of the Secretary of State in relation thereto, were also transferred to this department.

To the Secretary was also given the supervisory power over the lead and other mines belonging to the United States, heretofore executed by the Secretary of the Treasury.

The powers of the President over the Commissioners of Public Buildings were also transferred to him.

5. He was also charged with the control over the Board of Inspectors and Warden of the Penitentiary of the District of Columbia.

The Secretary of the Interior has the same power in appointing and removing clerks and other subordinates in his department, that the Secretaries of the other departments had over these several bureaus before they were transferred to this department.

This office has a seal, which must be affixed to the commissions of all its subordinate officers.

The President and Senate appoint the Assistant Secretaries.

From the foregoing it is easy to understand what branches of the public service are conducted in this office, and what are the duties of its Secretary.

6. The following is a list of all who have filled the office of Secretary of the Interior since the establishment of the department:

Thomas H. Ewing, Ohio, March 7, 1849.

T. M. T. McKennan, Pa., 1850.

Alexander H. H. Stuart, Va., Sept. 12, 1850.

Robert McClelland, Mich., March 5, 1853.

Jacob Thompson, Miss., March 6, 1857.

Caleb B. Smith, Ind., March 5, 1861.

John P. Usher, Ind., Jan. 7, 1863.

James Harlan, Iowa, 1865.

Orville H. Browning, Ill., 1866.

Jacob D. Cox, Ohio, March 5, 1869.

Columbus Delano, Ohio, Nov. 1, 1870.

” ” reappointed March 17, 1873.

CHAPTER XXXII.

PUBLIC LANDS.

1. ALL the land in the United States, to which individuals or corporations have not acquired a legal title, is held by the general government. This includes the land, or the part of it not under special reservation, belonging to the Indians. As the settlements push on into the territory roamed over by the thinly scattered Indian tribes, an equitable

arrangement is made with them, by which certain Reservations, large enough for their purposes are set aside for their occupation; and an indemnity, commonly in the form of an annuity, is made them for the lands to which they renounce their right. As they are gradually melting away, their lands will soon become all, or nearly all, the property of the government.

2. The lands free for settlement are sold under certain regulations; and given to certain classes—to soldiers, to actual settlers for Homesteads, to corporations to aid in promoting the public welfare—as Railroads and Colleges—and to support education in various ways; and the remainder held until required for use in the expansion of the country.

Nearly 200,000,000 acres have been given to assist in building railroads through unsettled parts of the country. A large part of this, however, has been only conditionally given, and not yet appropriated by the corporations. Many millions more have been given to the States as a fund in aid of public schools and collegiate institutions—and one thirty-sixth part is reserved, in every new township surveyed, for the benefit of public schools in that township. The rest is sold, at very low rates, to any who will buy.

3. To manage this property a bureau was established by act of Congress, in 1812, called The General Land Office. It was under the oversight of the Secretary of the Treasury until 1849, when the Department of the Interior was established, to which it was then transferred. Its head is called

COMMISSIONER OF THE GENERAL LAND OFFICE.

4. He is appointed by the President and Senate, must take the usual official oath before entering on his duties, and must give the usual official bond. He keeps the seal of his office, and fixes an impression of it upon all papers emanating from the Land Office. He, with his clerks and assistants, forms the bureau, keeps all the records and papers pertaining to the public lands, and performs all duties relating thereto. He receives reports from surveyors and from the district land officers, gives them their instructions, and reports to the President and to Congress when required to do so.

He issues all patents for lands granted by the United States, and sends and receives by mail all papers and documents relating to his official business, at public expense. Every patent for land is issued in the name of the United States, is signed by the President and by the Commissioner of the Land Office, and is then recorded in books kept for that purpose.

SURVEYORS GENERAL AND DEPUTY SURVEYORS.

5. When it is deemed necessary and expedient to bring the lands in any particular State or section of the country into market, a surveyor general is appointed for that State or section, and also a sufficient number of deputy or assistant surveyors to perform the work; which is done under the direction of the surveyor general, who is himself directed by law as to the manner of procedure. He is appointed for four years, taking the usual oath, and gives bonds for the faithful performance of his duties.

MODE OF SURVEYING THE PUBLIC LANDS.

6. The law directs how the lands shall be surveyed and mapped. Where it is practicable, they are laid out into square miles, each of which contains 640 acres, and is called a section.

These sections are then sub-divided into halves, quarters, and eighths of sections; that is, into lots of 320, 160, and 80 acres. The boundary lines are all run north and south, and east and west. Thirty-six of these sections, which make a plat of six miles square, are put into a township. These townships are designated by numbers, but when inhabited are named by the inhabitants as their fancy dictates.

SALE OF THE PUBLIC LANDS.

7. After the lands have been surveyed and properly mapped into townships and sections, they are brought into market and offered for sale in such quantities as are wanted by the purchaser; from 40 acres, one-sixteenth of a section, up to a whole section; or as many sections as the buyer pleases to take.

DISTRICT LAND OFFICES.

8. District land offices for the sale of lands are established for this purpose at as many places in the State or Territory where the lands are situated, as is deemed necessary for the convenience of purchasers. Here are kept maps of all the lands lying in the district, and buyers may make their selections both of quantity and location as suits them. Here they will find

A REGISTER OF THE LAND OFFICE AND A RECEIVER OF PUBLIC MONEY FOR LANDS.

9. The first named officer will register the application made for land in a book kept for that purpose, and the second will receive the money paid for it. These officers are appointed by the President and Senate, and report their proceedings to the General Land Office at Washington. The receiver transmits all moneys received by him to the United States Treasury once in a month or once in three months, as directed.

SCHOOL LANDS.

10. As before stated, the public lands are surveyed into sections of one mile square, and thirty-six of these sections make a township. For the purpose of encouraging education, Congress has enacted that section number 16, in every township, shall not be sold, but reserved for the township, to be applied to the support of common schools in that town. By this measure the government appropriated one thirty-sixth part of its lands to aid the work of educating the children in the new States. And in addition to this it has made other munificent donations of land for the establishment and support of colleges and other institutions of learning.

11. In addition to all this the United States have donated large tracts of land to the several States in which it lay, to aid them in building their State houses, &c. Large quantities of land have also been given to aid the construction of railroads.

HOMESTEADS.

12. The government has always sold its lands at a very low price, preferring to give the people cheap farms, rather than to raise more revenue from this source.

But in 1862, Congress passed an act called “the Homestead Law,” the object of which was to cheapen the public lands to a mere nominal price to heads of families, male or female, or to persons 21 years of age or over, or to persons who had served in the army or navy of the United States, whether 21 years old or not. By the provisions of this act such persons are allowed, for the trifling sum of ten dollars, to enter upon and claim 160 acres of land, provided the claimant swears that the land is applied for his or her own use, and for settlement and cultivation. But no patent (deed) is to be given until the applicant has actually settled upon and cultivated the land for the space of five years. Such applicant must also make affidavit that he has never borne arms against the United States.

By this liberal policy, persons of very limited means may provide themselves with comfortable homes for life; and the unoccupied lands will be settled and occupied faster than if the old price of one dollar and twenty-five cents per acre had been demanded. The revenue from the sale of lands will of course be less, but the wealth of the country will undoubtedly be increased by the measure.

13. Exceedingly rich and valuable mines of gold, silver, copper, lead and other minerals have been found upon the public lands. That the benefits of mining them might be extended to the many, instead of being monopolized by a few, a different rule for selling them has been made. After they have been surveyed, mapped and described, they, like other lands, are offered for sale, but in quantities of not more than 40 acres. These are generally sold at auction, but no bid less than five dollars per acre will be received. If not sold at public sale, they are then subject to private sale at that price.

CHAPTER XXXIII.

HOW TO SECURE PUBLIC LANDS.

There are two classes of public lands subject to entry; one at \$1.25 per acre, known as *minimum*, and one at \$2.50, known as *double minimum*, the latter being the alternate sections along the lines of railroads. Title may be acquired by purchase at public sale, or by “private entry,” and in virtue of the Pre-emption and Homestead Laws.

At Public Sale.—Lands are offered at auction to the highest bidder, pursuant to proclamation or public notice.

Private Entry.—Lands subject to private entry, are those which have been once offered at public sale without finding purchasers. In order to acquire title to these lands, a written application must be made to the Land Register of the District in which the land is located, describing the tract desired. The Register certifies the fact to the Receiver, stating price, and the applicant then pays the money and takes a receipt, and at the close of the month the Register and Receiver make return of the sale to the General Land Office, when a patent or full title issues on due surrender of the receipt, and will be delivered at the option of the purchaser, at the General Land Office in Washington, or by the Register at the District Land Office.

Land Warrants.—When lands are to be located with land warrants, application must be made as in cash cases, accompanied by an assigned warrant. When the tract is \$2.50 per acre, \$1.25 per acre must be paid in addition to the warrant. Receipts are given and patents delivered, as in the preceding case. At the time of location, a fee of 50 cents for a 40 acre warrant, and a corresponding amount for larger ones, must be paid to the Register, and a like sum to the Receiver.

Agricultural College Scrip.—This may be used in the location of lands at private entry, but is only applicable to lands subject to entry at \$1.25 per acre, and is restricted to a technical “quarter section,” and to three sections in each township of land. The proceeding to acquire title is the same as in cash and warrant cases, the fees being the same as on warrants. This scrip may be used in payment of pre-emption claims.

Pre-emption.—Any person being the head of a family, or widow, or single man over 21 years of age, and a citizen of the United States, or a person who has filed his declaration to become such, by settling upon and improving any of the “offered,” “unoffered,” or unsurveyed lands of the United States, may obtain a pre-emption right to purchase 160 acres so occupied, at the regular government price, whether it be \$1.25 or \$2.50 per acre. Where the tract is “offered” land, the settler must file with the District Land Office his statement as to the fact of settlement, within thirty days thereafter, and within one year must make proof to the Land Office, of his actual residence and cultivation, and secure the land by payment in cash or Land Warrant. Where the land has been surveyed and not offered at public sale, the statement must be filed within three months after settlement, and payment made within 21 months. Where settlement is made upon unsurveyed lands, the settler is required to file a statement within three months after the survey, and pay within eighteen months thereafter. No person is entitled to more than one pre-emption right.

The Homestead Privilege.—The Homestead laws give to every citizen the right to a Homestead of 160 acres minimum, or eighty acres double minimum. To obtain Homestead, applicant must swear that he is the head of a family, or over the age of twenty-one, a citizen, or has declared his intention to become such; and that the entry is for his exclusive use and benefit, and for actual settlement and cultivation. When an applicant has made actual settlement upon the land he desires, he must make affidavit of the fact before the Land Register, and pay fees amounting, on 160 acres of minimum land, to \$18, or an equal sum for eighty acres of double minimum, for which he gets a receipt; and after five years’ occupation and cultivation of the land, he is entitled upon proof of such cultivation to a patent or full title to the Homestead. Any loyal person in the naval or military service of the United States, may acquire a Homestead by reason of his family occupying land and making the application in his stead. All officers, soldiers, and sailors who have served in the army or navy for ninety days and remained loyal, may enter 160 instead of 80 acres of double minimum lands. The fees above for entering Homestead apply to surveyed lands in Michigan, Wisconsin, Iowa, Missouri, Minnesota, Kansas, Nebraska, Dakota, Alabama, Mississippi, Louisiana, Arkansas, Florida, Ohio, Indiana, and Illinois. In California, Nevada, Oregon, Colorado, New Mexico, Washington Territory, Arizona, Idaho, Utah, Wyoming, and Montana, the fees are \$22 instead of \$18. A settler having filed a pre-emption declaration, may change his filing into Homestead, and receive the benefit of the Homestead laws. If a Homestead settler does not wish to remain five years on his land before obtaining title, he may pay for it in cash or Land Warrants. Lands obtained under the Homestead laws are exempt from liability for debts contracted prior to the issuing of the patent.

United States Land Offices are located at Fort Des Moines, Council Bluffs, Fort Dodge and Sioux City, Iowa; Menasha, Falls of St. Croix, Stevens’ Point, La Crosse, Bayfield and Eau Claire, Wisconsin; San Francisco, Marysville, Humboldt, Stockton, Visalia, Sacramento, and Los Angeles, California; West Point, Beatrice, Lincoln, Dakota City, and Grand Island, Nebraska; Taylor’s Falls, St. Cloud, Du Luth, Alexandria, Jackson, New Ulm, and Litchfield, Minnesota; Oregon City, Roseburg, and Le Grand, Oregon; Topeka, Junction City, Humboldt, and Augusta, Kansas; Carson City, Austin, Belmont, and Aurora, Nevada; Vermilion, Springfield, and Pembina, Dakota; Denver City, Fair Play, and Central City, Colorado; Boonville, Ironton, and Springfield, Missouri; Mobile,

Huntsville, and Montgomery, Alabama; New Orleans, Monroe, Natchitoches, Louisiana; Detroit, East Saginaw, Iona, Marquette, and Traverse City, Michigan; Little Rock, Washington, and Clarksville, Arkansas; Boise City, and Lewiston, Idaho; Chillicothe, Ohio; Indianapolis, Indiana; Springfield, Illinois; Jackson, Mississippi; Tallahassee, Florida; Olympia, and Vancouver, Washington Territory; Helena, Montana; Prescott, Arizona; Salt Lake City, Utah.

PRE-EMPTION LAWS.

A pre-emption right is the right of a squatter upon the lands of the United States to purchase, in preference to others, when the land is sold. Such right is granted to the following persons: Any citizen of the United States; any person who has filed his declaration of intention to become a citizen; any head of a family; any widow; any single woman of the age of twenty-one years or over; and any person who has made a settlement, erected a dwelling-house upon, and is an inhabitant of the tract sought to be entered—*provided* such settlement was made since June 1, 1840, and previously to the time of application for the land, which land must, at the date of the settlement, have had the Indian title extinguished, and been surveyed by the United States.

A person bringing himself within the above requirements by proof satisfactory to the Register and Receiver of the land district in which the land may lie, taken pursuant to the rules hereafter prescribed, will, after having taken the affidavit required by the Act, be entitled to enter, by legal subdivisions, any number of acres, not exceeding one hundred and sixty, or a quarter-section, to include his residence; and he may avail himself of the same at any time prior to the day of the commencement of the public sale, including said tract, where the land has not yet been proclaimed.

Where the land was subject to private entry, June 1, 1840, and a settlement shall thereafter be made upon such land, or where the land shall become hereafter subject to private entry, and after that period a settlement shall be made, which the settler is desirous of securing, notice of such intention must be given within thirty days after such settlement; and, in all such cases, the proof, affidavit and payment must be made within twelve months after such settlement.

The tracts liable to entry are embraced under the following designations: *First*, a regular quarter-section, notwithstanding the quantity may vary a few acres from one hundred and sixty; or a quarter-section, which, though fractional in quantity by the passage of a navigable stream through the same, is still bounded by regular sectional and quarter-sectional lines; *second*, a fractional section containing not over one hundred and sixty acres, or any tract being a detached or anomalous survey made pursuant to law, and not exceeding such quantity; *third*, two adjoining half-quarter-sections (in all cases to be separated by a north and south line, except on the north side of township, where the surveys are so made as to throw the excess or deficiency on the north and west sides of the township), of the regular quarters mentioned in the first designation; *fourth*, two half-quarter or eighty-acre subdivisions of a fractional or broken section, adjoining each other, the aggregate quantity not exceeding one hundred and sixty acres; *fifth*, a regular half-quarter and an adjoining fractional section, or an adjoining half-quarter subdivision of a fractional section, the aggregate quantity not exceeding one hundred and sixty acres; *sixth*, if the pre-emptor do not wish to enter one hundred and sixty acres, he may enter a single half-quarter section (made by a north and south line), or an eighty-acre subdivision of a fractional section; *seventh*, one or more adjoining forty-acre lots may be entered, the aggregate not exceeding one hundred and sixty acres; and, *eighth*, a regular half-quarter, a half-quarter subdivision, or a fractional section, may each be taken, with one or more forty-acre subdivisions lying adjoining, the aggregate not exceeding one hundred and sixty acres. Forty-acre tracts, or quarter quarter-sections, may be entered in the same manner that eighty-acre, or half-quarter sections, have been.

Only one person upon a quarter-section is protected, and he the one who made the first settlement, provided he conform to the other provisions of the law. A person who has once availed himself of the provisions of the Pre-emption Act, cannot, at any future period, or at any other land office, acquire any other right under it. No person, who is the proprietor of three hundred and twenty acres of land in any State or Territory of the United States, or who quits or abandons his residence on his own land to reside on the public land in the same State or Territory, is entitled to the benefit of the Pre-emption Acts.

The approval of the tracts by the local land office is the evidence of the survey; but the land is to be construed as surveyed when the requisite lines are run on the field, and the corners established by the deputy surveyor. No assignment or transfers of pre-emption rights are recognized at the land office; the patents issuing to the claimants, in whose names alone the entries are made.

The following description of lands are not liable to entry: *first*, lands included in any reservation by any treaty, law, or proclamation of the President of the United States, and lands reserved for salines and for other purposes; *second*, lands reserved for the support of schools; *third*, lands acquired by either of the last two treaties with the Miami Indians in Indiana, or which may be acquired of the Wyandot Indians in Ohio, or any other Indian reservation, to which the title has been, or may be extinguished at any time during the operation of the Pre-emption Acts, by the United States; *fourth*, sections of lands reserved to the United States, alternate to other sections granted to any State for the construction of any canal, railroad, or other public improvement; *fifth*, sections, or fractions of sections, included within the limits of any incorporated town; *sixth*, every portion of the public lands which has been selected as a site for a city or town; *seventh*, every parcel or lot of land actually settled and occupied for the purposes of trade and agriculture; and, *eighth*, all lands in which are situated any known salines or mines.

Persons claiming the benefit of the Pre-emption Acts are required to file duplicate affidavits, such as are specified by law, and to furnish proof, by one or more disinterested witnesses, of the facts necessary to establish the requisites mentioned in the first paragraph of this article; such witnesses having first been duly sworn or affirmed by some competent authority.

If adverse claims are made to the same tract, each claimant is to be notified of the time and place of taking testimony, and allowed to cross-examine the opposite witnesses, and to furnish counter-proof, itself subject to cross-examination. If, by reason of distance, sickness, or infirmity, the witnesses cannot personally appear before the register of the land office, their depositions, taken in conformity with the following regulations, may be received:

The notice to adverse claimants must be in writing, and served in time to allow at least one day for every twenty miles which the party may have to travel in going to the place of taking evidence. The proof, in all cases, should consist of a simple detail of facts merely, and not of broad and general statements. If the pre-emptor be "the head of a family," the witnesses must state the facts constituting him such; whether he be a husband having a wife and children, or a widower, or an unmarried person under twenty-one years of age, having a family, either of relatives or others, dependent upon him, or hired persons. All the facts relative to the settlement in person, inhabitancy, or personal residence, the time of its commencement, the manner and extent of its continuance, as also those sharing the apparent objects, must be stated. It must be stated that the claimant made the settlement on the land in person; that he has erected a dwelling upon the land; that he lived in the same, and made it his home, etc. In the event of a decision by the land officer against the claimant, he may appeal to the Commissioner of the Land Office at Washington.

No entry will be permitted until the affidavit required of the claimant is taken. Duplicates thereof must be signed by the claimant, and the fact of the oath being taken must be certified by the register or receiver administering the same; one copy to be filed in the Register's office, and the other to be sent to the Land Office at Washington.

A purchaser of public land is only required to make written application to the Register of the local land office for the tract desired to be entered, and to pay to the Receiver the purchase money therefor. Blank forms of such application are furnished gratuitously at the Land Office where the tract is desired to be entered.

SOLDIERS' HOMESTEAD LAW OF 1872.

The following is the full text of the Amendatory Soldiers' Homestead Bill, approved by the President on the 3d of April, 1872.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled: That every private soldier and officer who has served in the army of the United States during the recent rebellion for ninety days or more, and who was honorably discharged, and has remained loyal to the government, including the troops mustered into the service of the United States by virtue of the third section of an act entitled "An act making appropriations for completing the defenses of Washington, and for other purposes," approved February 13th, 1862, and every seaman, marine, and officer who has served in the navy of the United States, or in the marine corps, during the rebellion, for ninety days, and who was honorably discharged, and has remained loyal to the government, shall, on compliance with the provisions of an act entitled "An act to secure homesteads to actual settlers on the public domain," and the acts amendatory thereof, as hereinafter modified, be entitled to enter upon and receive patents for a quantity of public lands (not mineral) not exceeding one hundred and sixty acres, or one quarter-section, to be taken in compact form according to legal subdivision, including the alternate reserved

section of public lands along the line of any railroad or other public work not otherwise reserved or appropriated, and other lands subject to entry under the homestead laws of the United States: *Provided*, the said homestead settler shall be allowed six months after locating his homestead within which to commence his settlement and improvements: *And provided also*, the time which the homestead settler shall have served in the army, navy, or marine corps aforesaid shall be deducted from the time heretofore required to perfect title, or if discharged on account of wounds received, or disability incurred in the line of duty, then the term of enlistment shall be deducted from the time heretofore required to perfect title, without reference to the length of time he may have served: *Provided, however*, that no patent shall issue to any homestead settler who has not resided upon, improved and cultivated his said homestead for a period of at least one year after he shall commence his improvements as aforesaid.

SECTION 2. That any person entitled under the provisions of the foregoing section to enter a homestead, who may have heretofore entered under the Homestead law a quantity of land less than one hundred and sixty acres, shall be permitted to enter under the provisions of this act so much land as, when added to the quantity previously entered, shall not exceed one hundred and sixty acres.

SECTION 3. That in the case of the death of any person who would be entitled to a homestead under the provisions of the first section of this act, his widow, if unmarried, or in case of her death or marriage, then his minor orphan children, by a guardian duly approved and officially accredited at the Department of the Interior, shall be entitled to all the benefits enumerated in this act, subject to all the provisions as to settlement and improvements therein contained: *Provided*, that if such person died during his term of enlistment, the whole term of his enlistment shall be deducted from the time heretofore required to perfect the title.

SECTION 4. That where a party, at the date of his entry of a tract of land under the Homestead laws, or subsequently thereto, was actually enlisted and employed in the army or navy of the United States, his services therein shall, in the administration of said Homestead laws, be construed to be equivalent, to all intents and purposes, to a residence for the same length of time upon the tract so entered: *Provided*, that if his entry has been canceled by reason of his absence from said tract while in the military or naval service of the United States, and such tract has not been disposed of, his entry shall be restored and confirmed: *And provided further*, that if such tract has been disposed of, said party may enter another tract subject to the entry under said laws, and his right to a patent therefor shall be determined by the proofs touching his residence and cultivation of the first tract and his absence therefrom in such service.

SECTION 5. That any soldier, sailor, marine, officer, or other person coming within the provisions of this act may, as well BY AN AGENT as in person, enter upon said homestead: *Provided*, that the said claimant in person shall, within the time prescribed [SIX MONTHS FROM DATE OF ENTRY] commence settlement and improvement on the same, and thereafter fulfill all the requirements of this act.

SECTION 6. That the commissioner of the General Land Office shall have authority to make all needful rules and regulations to carry into effect the provisions of this act.”

CHAPTER XXXIV.

PATENTS.

1. These originated in the desire of the founders of the government to encourage invention, in the belief that the general welfare of the country would be promoted by such a stimulus to genius, and the power to grant patents was expressly bestowed on Congress. That this was a very wise forethought there is no doubt. The hope of reward has given birth to innumerable inventions, among which some have been of incalculable value to the country, increasing its wealth almost beyond our power to estimate. It is, however, worth considering if there may not be a limit to the usefulness of the system, in its present form, in the changed conditions of the country. It is often the case that what accomplished the greatest good in its proper day, is at length outgrown, and becomes an embarrassment, requiring to be either essentially modified or laid aside.

2. A patent right is an exclusive right, granted by an officer denominated the Commissioner of Patents, in conformity to law, to the inventor or discoverer of any new and useful article. The exclusive right is conferred by acts of Congress, on compliance of the inventor with certain conditions which are clearly specified in the law. The

evidence that such exclusive right has been conferred on any individual, is contained in a document, called "letters patent," issued at the patent office in Washington; signed by the Secretary of the Interior, (formerly by the Secretary of State), countersigned by the Commissioner of Patents, and sealed with the seal of his office. Thus protected, he alone can make, use and sell the article he has invented, for the term of fourteen years; and upon showing a good reason therefor, the commissioner will extend the term seven years longer, or Congress will pass a special act for that purpose.

3. This was the law up to 1861; and is still in force as to patents granted anterior to that date. But a new act was then passed, extending the term of an original patent to seventeen, instead of fourteen years, and prohibiting any extension of such patents.

An inventor, before he can obtain a patent, must swear that he believes he is the inventor or discoverer of the art, machine, or improvement, for which he solicits a patent. He must also give in writing a clear, minute description of it; and, when necessary, must make and deliver a model of his invention; which in all cases must be something new, unused and unknown before, or his application will be rejected. There is considerable expense attending the procurement of a patent right.

4. But when obtained, no person except the patentee, has any right to make, sell, or use the article patented, until the time has expired for which this exclusive right was granted, without the permission of the patentee. Any person doing so is liable to a heavy penalty, and may be prosecuted in the Circuit Court of the United States; this court having original jurisdiction in all cases arising under the patent laws. But a writ of error or an appeal lies to the Supreme Court of the United States.

5. The Patent Office, when first established, was a bureau of the State Department, and the Commissioner of Patents acted under the direction of the Secretary of State. But after the creation of the Department of the Interior, in 1849, it was transferred to it, became a bureau of the new department, and the commissioner now acts under the general direction of its secretary.

THE COMMISSIONER OF PATENTS

6. Is appointed by the President and Senate. His duties are best explained in the language of the law itself, which, in speaking of the creation and appointment of this official, says that his duties shall be "to superintend, execute and perform all such acts and things touching and respecting the granting and issuing of patents for new and useful discoveries, inventions and improvements, as are herein provided for, or shall hereafter be by law directed to be done and performed."

He has the charge and custody of all books, records, papers, models, machines, and all other things belonging to the patent office; and has the privilege of sending and receiving letters and packages by mail, relating to the business of the office, free of postage. He has the power to appoint his clerks, examiners and subordinates; among whom are patent office agents, who may be appointed in not more than twenty of the principal cities and towns in the United States. It is their duty to forward to the patent office all such models, specimens and manufactures, as shall be intended to be patented.

7. In cases of appeal from the decision of the commissioner, the appeal may be made to the board of examiners, or to the Chief Justice of the District Court of the United States for the District of Columbia. There is a seal for the patent office, which the commissioner keeps, and which he must affix to patents when granted, and to other papers and records issued from his office, which are wanted as evidence in other places.

He is also authorized to publish a classified and alphabetical list of all patents issued at the patent office. This he frequently does, for the information of the public.

CHAPTER XXXV. PENSIONS.

Pensions are a provision, made by the general government, for the officers and privates of the army and navy disabled in the service of the country. They peril their lives for the protection of the public, and it has always been regarded as just that a support, proportioned to the extent of injury received, should be given to them, or to those

dependent on them in case of their death. It is properly a continuance of pay in consideration of the services rendered. It does not often amount to a full support, and is graduated by the amount each received, according to rank.

A COMMISSIONER OF PENSIONS

Was appointed and placed at the head of a bureau, at first in the War Department, but afterward transferred to the care of the Secretary of the Interior. It is a Pension Office, in fact. This commissioner is appointed by the President and Senate in the same manner as other important officers. It is his duty to carry into effect the pension laws. He is authorized to appoint pension agents in all the States and Territories, who receive and distribute the money due to pensioners in their several districts, the agents receiving from the government a percentage for their services.

There has always been a large number on the list. At first they were the disabled soldiers and sailors of the Revolutionary War; then of the War of 1812 with England, followed in 1846 by the Mexican War. But all these were few compared with the number disabled in the Civil War. The amount appropriated by Congress for the year 1873-4, for pensions was \$30,480,000. The law carefully protects the pensions against frauds and forbids its attachment by any legal process whatever. The nation is grateful to its brave defenders.

The proper officials to whom all applications should be made, by letter or petition, in Washington, are, by a soldier having his discharge, to the Paymaster General; when the discharge paper is lost, to the Second Auditor of the Treasury; when by those who represent a deceased person, to the second Auditor of the Treasury; when for commutation of rations, to the same officer; when for pensions, or any matter connected with pensions, to the Commissioner of Pensions.

Instructions have been prepared for all applicants, by the Commissioner of Pensions for the purpose of preventing fraud or misunderstanding. They are, in substance:

INSTRUCTIONS.

By the act of Congress approved July 14th, 1862, and amendatory acts, pensions are granted as follows:

1. Invalids, disabled in the military or naval service of the United States, in the line of duty.
2. Widows of persons who have been killed or have died in the military or naval service of the United States.
3. Children under sixteen, of the classes of persons on account of whose death widows are entitled; provided said widows have died, or have remarried.
4. Mothers of all classes of persons on account of whose death widows are entitled, provided said mothers were dependent on the deceased for support and no minor child survived.
5. Fathers, the same as mothers, in case of the death of the latter.
6. Brothers and sisters, under sixteen, provided they were dependent for support upon the person on account of whose decease they claim.

The First Section of the Act of July 14th, 1862, showing the rates of pension to the several classes and grades, is as follows:

Be it enacted by the Senate and House of Representatives of the United States of America, in Congress assembled, That if any officer, non-commissioned officer, musician, or private of the army, including regulars, volunteers, militia, or any officer, warrant, or petty officer, musician, seaman, ordinary seaman, flotillaman, marine, clerk, landsman, pilot, or other person in the navy or marine corps, has been, since the fourth day of March, eighteen hundred and sixty-one, or shall hereafter be, disabled by reason of any wound received or disease contracted while in the service of the United States, and in the line of duty, he shall, upon making due proof of the fact according to such forms and regulations as are or may be provided by, or in pursuance of law, be placed upon the list of invalid pensions of the United States, and be entitled to receive, for the highest rate of disability, such pension as is hereinafter provided in such cases, and for an inferior disability an amount proportionate to the highest disability, to commence as hereinafter provided, and continue during the existence of such disability. The pension for a total disability for officers, non-commissioned officers, musicians and privates employed in the military service of the United States, whether regulars, volunteers, or militia, and in the marine corps, shall be as follows, viz.: lieutenant-colonel and all officers of a higher rank, thirty dollars per month; major, twenty-five

dollars per month; captain, twenty dollars per month; first lieutenant, seventeen dollars per month; second lieutenant, fifteen dollars per month; and non-commissioned officers, musicians and privates, eight dollars per month. The pension for total disability for officers, warrant or petty officers, and others employed in the naval service of the United States, shall be as follows, viz.: captain, commander, surgeon, paymaster, and chief engineer, respectively, ranking with commander by law, lieutenant commanding, and master commanding, thirty dollars per month; lieutenant, surgeon, paymaster, and chief engineer, respectively, ranking with lieutenant by law, and passed assistant surgeon, twenty-five dollars per month; professor of mathematics, master, assistant surgeon, assistant paymaster, and chaplain, twenty dollars per month; first assistant engineer and pilots, fifteen dollars per month; passed midshipman, midshipman, captain's, and paymaster's clerk, second and third assistant engineers, master's mate, and all warrant officers, ten dollars per month; all petty officers, and all other persons before named employed in the naval service, eight dollars per month; and all commissioned officers, of either service, shall receive such and only such pension as is herein provided for the rank in which they hold commissions.

ACT OF JULY 4, 1864.

Various supplementary Acts have been passed by the Act of July 14, 1862, modifying in some particulars the provisions of previous legislation.

By the Act of July 4, 1864, it is provided that biennial examinations will hereafter be made by one surgeon only, if he is regularly appointed, or holds a surgeon's commission in the army. Examinations by unappointed civil surgeons will not be accepted, unless it can be shown that an examination by a commissioned or duly appointed surgeon is impracticable.

Increased Pensions in Certain Cases.—A pension of twenty-five dollars per month is granted to those having lost both hands or both eyes in the military service of the United States, in the line of duty, and twenty dollars per month to those who, under the same conditions, shall have lost both feet, if such parties were entitled to a lower rate of pension under the act of 1862. This higher pension will date only from the 4th day of July, 1864, in case of pensioners already enrolled, or of applicants discharged prior to that date.

Evidence of Muster-in.—In accordance with the 11th Section of the Act of July 4, 1864, evidence of the muster-in of the soldier will not be required in any case, but there must be positive record evidence of service. Evidence of muster-in in the case of commissioned officers is still required.

ACT OF JUNE 6, 1866.

The Supplementary Pension Act, approved June six, eighteen hundred and sixty-six, provides increased rates of pensions over those granted by the Act of July fourteen, eighteen hundred and sixty-two, in the following cases, viz.:

1. Twenty-five dollars per month to all those invalids entitled, under the Act of July fourteen, eighteen hundred and sixty-two, to a lower rate of pension, on account of service rendered since March four, eighteen hundred and sixty-one, "who shall have lost the sight of both eyes, or who shall have lost both hands, or been permanently and totally disabled in the same, or otherwise so permanently and totally disabled as to render them utterly helpless, or so nearly so as to require the constant personal aid and attendance of another person."

2. Twenty dollars per month to those invalids who, being entitled under like conditions to a lower rate of pension, "shall have lost both feet, or one hand and one foot, or been totally and permanently disabled in the same, or otherwise so disabled as to be incapacitated for performing any manual labor, but not so much so as to require constant personal aid and attention."

3. Fifteen dollars per month to those invalids who, under like conditions, "shall have lost one hand or one foot, or been totally and permanently disabled in the same, or otherwise so disabled as to render their inability to perform manual labor equivalent to the loss of a hand or a foot."

In order to obtain the benefits of the foregoing provisions, pensioners already enrolled will file an application in accordance with form F, appended hereto. Proof in addition to that on file with the previous application need not be forwarded, except as shall be specially required in each case, after the application is received. The applicant need only be examined by a pension surgeon when expressly required, on due notice from this office. Applicants not already pensioned, who believe themselves entitled to the benefit of the foregoing provisions, will specifically set forth such claim in their declarations, carefully stating the nature of the disability on account of which such

higher rate of pension is claimed. The declaration must be made before some officer of a court of record, or before a pension notary designated by this office, as provided by the third section of the act of July four, eighteen hundred and sixty-four.

The above specified increased rates of pension will be allowed only to those disabled since the fourth day of March, eighteen hundred and sixty-one, and will date only from the sixth day of June, eighteen hundred and sixty-six.

Teamsters, Artificers, and other Enlisted Men,—not embraced in the terms of the Act of July fourteen, eighteen hundred and sixty-two, or of Acts supplementary thereto, are, by the tenth section of the Act of June six, eighteen hundred and sixty-six, included in the administration of the pension laws, in the class of non-commissioned officers and privates.

Minor Children to be Pensioned, in Certain Cases, instead of the Widow.—The eleventh section provides that when any widow, entitled to a pension under previous Acts, has abandoned the care of a child or children of her deceased husband, under sixteen years of age, “or is an unsuitable person, by reason of immoral conduct, to have the custody of the same,” the pension shall be paid to the duly authorized guardian of such child or children, while under the age of sixteen years, and not to the widow. The proper proof in such case, as provided by this section, is the certificate of the judge of any court having probate jurisdiction, “that satisfactory evidence has been produced before such court” to the effect above indicated. In presenting an application under this section, the guardians of the minor child or children will make a declaration in accordance with the appended form G.

Pensions Granted to Dependent Fathers and to Dependent Orphan Brothers.—By the twelfth section the provisions of the Act of July fourteen, eighteen hundred and sixty-two, are extended so as to include the dependent brother or brothers of a deceased officer, soldier or seaman, and the dependent father of such deceased persons, under like limitations as apply in the case of dependent sisters and mothers; but not more than one pension is granted on account of the same person, or to more than one of said classes. The forms prescribed for the latter cases may be used, with obvious variations, in applications made by dependent fathers or on behalf of dependent brothers.

Limitations as to Number and Date of Pensions.—The thirteenth section declares that but one pension shall be granted to any person at the same time; and that when application is not made within three years after the death or discharge of the party on whose account a pension is claimed, such pension, if allowed, “shall commence from the date of filing the last paper in said case by the party prosecuting the same.” This limitation applies to all classes of pensions.

Evidence of Marriage of Colored Applicants.—The fourteenth section provides that habitual recognition of the marriage relation between colored parties—that is, in the absence of the usually required proof—when shown by “proof satisfactory to the Commissioner of Pensions,” shall be accepted as evidence of marriage, and the children of such parties shall be regarded as if born in lawful wedlock. When the usual proof of marriage can be furnished, it will be required as heretofore. When only evidence of cohabitation and mutual recognition can be adduced, as provided in this section, the testimony of two credible and disinterested witnesses will be required, who must state how long they have been personally acquainted with the parties, and for how long a period the latter are known to have recognized each other as man and wife. If such acquaintance is deemed to be of too recent date to warrant the acceptance of this testimony, or if there is reason to doubt, in any instance, that the marriage relation existed in good faith, more specific instructions will be issued, adapted to the circumstances of the particular case.

ACT OF JULY 25, 1866.

Provost Marshals, Enrolling Officers, and others Entitled to the Benefits of the Pension Laws.—The first section of the Act of July twenty-five, eighteen hundred and sixty-six, extends the benefits conferred by the pension laws to provost marshals, deputy provost marshals, and enrolling officers disabled in the line of their official duty as such, and to the widows or dependents of such officers in like manner.

Declarations will be made in accordance with the instructions issued under the Pension Act of July fourteen, eighteen hundred and sixty-two, and supplementary Acts. The grade of such officers, for the purpose of determining the rates of pensions under this section, is fixed as follows: Provost marshals will rank as captains; their deputies as first lieutenants; and enrolling officers as second lieutenants.

Increased Pensions to Widows, and Orphan Children Under Sixteen Years of Age.—The second section of this act allows to those who are or shall be pensioned as widows of soldiers or sailors, two dollars per month additional pension for each child (under sixteen years of age) of the deceased soldier or sailor by the widow thus pensioned.

On the death or remarriage of such widow, or on the denial of a pension to her, in accordance with the provisions of section eleven of the Act of June six, eighteen hundred and sixty-six, the same amount to which she would otherwise be entitled, under this and previous provisions, is allowed to the minor children. The number and names of the children, with their ages, must be proved by the affidavits of two credible and disinterested witnesses. The provisions of this section only include the children of the widow, and not those of her deceased husband by a previous marriage. The widows of minor children of officers are not entitled to this increase. Declarations for an increase under this section, if for the widow, will be made in accordance with form H, appended hereto; and if for minor children, according to form I. The pension certificate must be sent with all applications filed subsequently to September four, eighteen hundred and sixty-six.

Increase of Pensions under Acts prior to July 4, 1862.—All pensioners under Acts approved prior to July fourteen, eighteen hundred and sixty-two, are, by the third section of the present act, granted the same rights as those pensioned under acts approved at or since that date, so far as said Acts may be applicable, with the exception of soldiers of the Revolution or their widows. This section applies only to pensioners who were such at the date of the approval of this Act.

Declaration of claimants under this section will be made in accordance with the forms previously issued under Act of July fourteen, eighteen hundred and sixty-two, and subsequent pension acts, with the necessary modifications, and the pension certificates will be returned.

Invalid Pensions of Claimants Dying while their Applications are Pending, the Evidence being Completed.—The fourth section of this act is construed in connection with the tenth section of the Act of July four, eighteen hundred and sixty-four, and the sixth section of the Act of June six, eighteen hundred and sixty-six, to which it is supplementary. If an applicant for invalid pension dies while his claim is pending, the evidence having been completed, the pension, under the provisions of this section and of those sections of previous acts above referred to, is disposed of as follows:

1. If he left a widow, or minor child, or children under sixteen years of age, or other dependent relatives, and died of wounds received or of disease contracted in the service or in the line of duty, no invalid pension certificate will issue, but such widow or dependent relatives will receive a pension, in their own right, taking precedence in the order prescribed by law in other cases.

2. If the claimant left a widow or dependent relatives, but did not die of wounds received, or disease contracted in the service and in the line of duty, so that neither widow nor dependent relatives would be entitled to a pension on his account, then the certificate will be issued in his name, and the pension paid to the widow or to the dependent relatives, as the case may be, in the same order in which they would have been pensioned, if entitled, as set forth in the preceding paragraph.

3. If the claimant left no widow or dependent relatives, the certificate will issue in his name, and the pension will be drawn by his executor or administrator.

Certain Accrued Rights Reserved under Repealed Enactments.—The fifth section reserves all rights that may have accrued under the fifth section of the pension Act of July four, eighteen hundred and sixty-four, and the third section of the pension Act of March three, eighteen hundred and sixty-five, though repealed by the first section of the Act of June six, eighteen hundred sixty-six.

Widows Remarrying while their Claims are Pending.—Are entitled, under the sixth section, if their claims are otherwise valid, to receive pensions to the date of remarriage, if the deceased officer, soldier or sailor, on whose account they claim, left no legitimate child under sixteen years of age.

JOSEPH H. BARRETT,
Commissioner of Pensions.

PENSION OFFICE, August 4, 1866.

SECTION 1.—*Dependent Relatives.*—In this section precedence is given to the dependent relatives hereinafter mentioned, in the following order, to wit: First, mothers; secondly, fathers; thirdly, orphan brothers and sisters under sixteen, who shall be pensioned jointly; and the persons enumerated shall each be entitled in their order, after the death of the one preceding.

SECT. 2.—*Invalids Disabled Subsequent to Passage of this Act.*—This section specifies as to pensions by reason of disabilities incurred subsequent to the passage of this Act, and enumerates the circumstances under which said disabilities must have been contracted.

SECT. 3.—*Unclaimed Pensions.*—This section provides that pensions remaining unclaimed for fourteen months after the same have become due, shall be adjusted at the Pension Agency instead of at the office of the Third Auditor; and the failure of any pensioner to claim his or her pension for *three* years, shall be deemed presumptive evidence that the same has legally terminated. On a new application, with evidence satisfactorily accounting for such failure, the pensioner may be restored to the rolls.

SECT. 4.—*Increase of Pensions of Widows and of Children by a former Wife.*—This section gives an increase of two dollars per month for each minor child of a deceased soldier, to commence from the death of their father, and continue until they severally attain the age of sixteen years; and provides that the children of a former marriage shall be “entitled to receive two dollars per month, to commence from the death of their father, and continue until they severally attain the age of sixteen years, to be paid to the guardian of such child or children for their use and benefit; *Provided, however,* That in all such cases such widow is charged with the care, custody, and maintenance of such child or children, the said sum of two dollars per month for each of said children shall be paid to her for and during the time she is or may have been so charged with the care, custody, and maintenance of such child or children, subject to the same conditions, provisions and limitations as if they were her own children by her said deceased husband.”

SECT. 5.—*Widows and Minors not Debarred, etc.*—By this section no widow or guardian to whom an increase of pension has been or may hereafter be granted on account of minor children, shall be deprived thereof by reason of their being maintained or educated at the expense of the State or of the public.

SECT. 6.—*Extension of Limitation.*—This section provides that all pensions applied for within five years after the right thereto shall have accrued, and which have been or may be granted under the Act of July 14, 1862, or Acts supplementary thereto, shall commence from the discharge or death of the person on whose account the pension has been or shall be granted; and in cases of insane persons and minors, who were without guardians or other proper legal representatives previous to said limitation, applications may be filed in their behalf after its expiration. This section applies solely to cases in which the title to pension has accrued subsequent to March 4, 1861.

SECT. 7.—*Arrears.*—In which notification of title to arrears of pension, under the foregoing section is provided for; and also that no claim agent or other person shall be entitled to compensation for services in making application for such arrears.

SECT. 8.—*Widow's Pension to Children, etc.*—In which the requirement of the certificate of the court that satisfactory evidence has been adduced of the abandonment of the care of the minor child or children of a deceased soldier by his widow, or of her unsuitableness to have custody of them is dispensed with. The furnishing of satisfactory evidence thereof to the commissioner shall be sufficient to cause the suspension of said widow's pension.

SECT. 9.—*Pending Claim may be Completed by Heirs.*—In which if any person entitled to a pension has died since March 4, 1861, his heirs or legal representatives shall be entitled to receive the accrued pension; provided no widow or minor child survives the applicant.

SECT. 10.—*Remarriage.*—This section provides for pension to the widow or dependent mother, from the death of soldier to the date of claimant's remarriage, (provided no children under sixteen survive.)

SECT. 11.—*Extension of Time.*—This section provides for the continuance in force of the Act of July 4, 1864, from the 4th July, 1867, for five years.

SECT. 12.—*Loss of an Eye.*—This section allows twenty-five dollars as a pension for total loss of sight from wounds received or disease contracted in the service, though the pensioner may have had only one eye when entering the service.

SECT. 13.—*Pension by reason of Right Accrued since Revolution.*—By this section all persons pensioned by reason of services rendered since the war of the Revolution, and prior to March 4, 1861, are placed on the same footing with those pensioned under Acts passed since that time; and grants eight dollars per month to the widows of revolutionary soldiers and sailors now pensioned at less than that amount.

SECT. 14.—*Limbs to Officers.*—By this section captains in the army and lieutenants in the navy, and those of less rank, who have lost a leg or an arm in such service, shall be entitled to receive an artificial limb upon the same terms as privates in the army.

SECT. 15.—*Special Acts.*—By this section all pensions granted by special Acts shall be subject to be varied in amount, according to the provisions and limitations of the pension laws.

SECT. 16.—*Repealing Clause.*—By this section all Acts and parts of Acts inconsistent with the foregoing provisions of this Act be and the same are hereby repealed.

CHAPTER XXXVI.
INDIAN AFFAIRS.

When America was discovered, in 1492, the whole continent was thinly populated (except in some few regions where a considerable degree of civilization and skill in agriculture had been attained, as in Mexico and Peru) by roving tribes of natives, of unknown origin. These were called, by Europeans, Indians, from the erroneous idea of Columbus, and the men of that age at first, that there was only one continent; and that they had reached the eastern shore of Asia, when America was discovered.

The whole of the region comprising our country was in the possession of a great number of these tribes. Their number, when permanent settlements began to be made, is not known, but probably amounted, in all the vast territory, to only a few million—perhaps two or three. They divided the country between them, in an indefinite way, war and hunting being their chief occupations. They attempted very little cultivation of the soil. The settlements of the Indians were as indefinite and moveable as their boundaries, and they attached little value to land. Territory was acquired from them partly by force and partly by purchase. These last were usually made for a nominal sum, and with little comprehension, on their part, of the importance and future effects of its alienation.

As the settlements of Europeans extended, frequent and barbarous wars, greatly exasperating the whites, arose as a revenge for private injuries, or in retaliation of encroachments on their hunting grounds. As these always ended, ultimately, in favor of the settlers, and the Indians were driven farther back, the country was taken possession of as the spoils of conquest. These desolating contests, and the easily-acquired vices of the whites constantly diminished their numbers. They were so inherently wild men that the conquered remnants usually withered and faded away under the process of civilization.

When, after the War of the Revolution, the settlements came to be consolidated and extensive, under the rapid growth of the population, lands were reserved for these remnants; treaties were made with them, as with independent nations; and, from their improvidence and carelessness as to the economical preservation of their resources, the indemnities allowed them for the lands to which they renounced all claim were paid to them in installments, or as annuities, by the government. This system has been continued to the present day, and has occasioned the establishment of the

INDIAN BUREAU OF THE INTERIOR DEPARTMENT.

It is presided over by the Commissioner of Indian Affairs, appointed in the usual way by the President and Senate. Numerous Superintendents and agents are appointed to reside near the different locations assigned to the Indians, to conduct the business under his supervision, and receive and distribute the goods and moneys given by treaty to each tribe. They give bonds for faithfulness in the employment of funds destined for the Indians. They are appointed for four years, and report and account to the Department of the Interior.

Except a few who are taxed, the Indians are not counted among our population as citizens. They have, therefore, no representative in Congress, nor, except the criminal law to some extent, are they amenable to other of our laws than such as the treaties have established. Their internal government is conducted by themselves alone, neither governor, judge, nor courts being established, as in other Territorial jurisdictions.

They are difficult to control, however, not recognizing, as civilized people do (except a small number who are far on the way to civilization), the obligations of treaties and pledges. Dishonest and self-seeking men often take advantage of their ignorance and their love of ardent spirits and trinkets, to cheat and injure them. To remedy this as far as possible, white men are not permitted to reside on their reservations unless by special license of the government. Nor can they alienate their lands to white men not officials acting under government supervision.

All pains are required to be taken by the government officers to promote their interests, and schools and missions are encouraged among them, and agricultural implements are furnished so far as they can be persuaded to use them. In short, it is the benevolent and enlightened aim of the government to act as the guardians of their true interests, to encourage mental and moral culture among them, and assist them toward the acquisition of the arts and comforts of civilized life.

It will easily be comprehended that many difficulties oppose themselves to this effort with a race whose instincts are so wild and fierce, and who adopt our vices so much more readily than our virtues, and are so easily influenced by bad and designing men. Still, progress is made, as will be seen in the case of

THE INDIAN TERRITORY.

It is situated south of the 37th degree of north latitude, and west of the States of Arkansas and Missouri. Texas bounds it on the south. It has 71,127 square miles, and is about a third larger than the State of Illinois. It is very fertile, for the most part, and a beautiful region. It is inhabited, in great part, by Indians who have been transferred from the regions east of the Mississippi, mostly Cherokees, Creeks, Choctaws, and Seminoles. Some of these were removed by persuasion, and some by force, from their former homes, where they were disturbed by proximity to the rapidly increasing white population.

Each tribe has its own section of the Territory. Here they practice their own customs unmolested, and conduct their own government. Many of them, especially the Cherokees, are intelligent and industrious. They have churches and schools and factories, highly-cultivated farms and good buildings. Improvement is so marked among them that it is not improbable that they may at some future time become a State in our Union. At present they are amenable to the Circuit and District Courts of the adjoining States when certain crimes are committed by them against the whites in those States, but our courts have no authority over their relations to one another.

The population of the Territory is 70,000. The entire Indian population of the country is over 300,000. They are scattered over the States and Territories between the Missouri river and the Pacific coast, and those outside the Indian Territory are often at war with each other and with our citizens, requiring many troops and a large expense to keep them in subjection. It is probable that, as a race, they will soon become extinct, except, perhaps, those in the Indian Territory. They are uneasy, and dangerous neighbors to the whites in those sparsely-settled regions. The amount appropriated to the Indians by Congress for the year 1873-4, was \$5,513,937, which was exclusive of their annuities, or funds invested for them, of which they receive the annual interest.

CHAPTER XXXVII.

CENSUS BUREAU.

1. A census is an enumeration, or counting, of the inhabitants of any country. History informs us that this was done in very ancient times. One of the books in the Old Testament (Numbers) was named from the circumstance that it contains an account of the numbering of the Israelites, by the order of Moses. That numbering was a *census* of the people composing the Jewish nation. It not only gives us the total number of the people, but that of each tribe; much after our own mode of doing the same thing. We take ours by States, and we find the total of the whole nation. In ancient times a census seems to have been taken more for military than for any other purpose. This is one of the objects in the present day; but in modern times many uses are made of a census. It not only shows the military power of a nation, but when taken with the distinction of sex, and age, with an account of the births, marriages, and deaths during each year, it throws much light upon a variety of interesting topics; such as the longevity, the rate of mortality, the ratio of increase, and the average duration of human life. These, and many other important facts are obtained by a census.

2. In the United States the census is the only means by which Congress determines the number of Representatives each State is entitled to have in that body. Hence the Constitution itself makes provision for the enumeration of the people once in ten years—called a decade. The first was made in 1790, the next in 1800, and so on every tenth year. If the number of any year ends with a cipher, we know that the United States census was taken, or will be taken, in that year, whether we look backward or forward.

3. Up to the present time, according to the provisions made in the Constitution, a census has been taken nine times, and under the head of recapitulation (see index) we find what it was each time. We also find that from the first (1790), to the last (1870), the population had increased from 3,929,827, to 38,838,180. Therefore it approximates very nearly to 40,000,000; indicating a growth unparalleled by any nation in ancient or modern times.

We will next state how this great national work is performed. The Constitution simply declares that it shall be done, but the laws specify *how* it shall be done, and *who* shall do it.

The United States Marshals are the officers designated by the law as the persons who shall make the enumeration of the people in each State and Territory; in addition to which they are also required to procure other statistical matter, as directed by Congress.

4. In order to accomplish this work, it is necessary to employ a number of assistant marshals, one of whom must visit every house in his district, and ascertain the number of persons belonging to it, together with such statistical information as is required. This is all returned to the Marshal, and by him sent to the Department of the Interior at Washington, where, under the direction of the Secretary of the Interior, it is made into a report, and then laid before Congress, to be used by it in apportioning to the States their quota of Representatives. This apportionment is actually made in the Department of the Interior, and then laid before Congress for its examination and approval. The Marshal appoints and commissions his deputies, who must be sworn to perform the duties assigned to them, to the best of their ability.

5. In the department of the Interior there is a board whose duty it is to superintend the work of taking the census. It prepares, prints, and sends to every Marshal the blanks to be used by him and his assistants; and when they have made returns of their work, the board arranges them preparatory to laying them before Congress. After this they are published, and make a valuable work of reference; for they contain a vast amount of statistical information—such as the number of acres of land under cultivation, the number of bushels of grain of every kind produced in the year; the number of horses, cattle, sheep, swine, &c., raised; the number of manufacturing establishments, and the amount of their productions; the number of churches, schools, colleges, &c.; the number of deaf, blind, idiotic, and insane persons; together with much other matter, quite too voluminous for insertion here.

6. All this is done by order of Congress, and of course paid for from the United States Treasury.

Elsewhere in this book (see index) we give a tabular statement of the population of each State and Territory, at each time the census has been taken by the United States. It shows the increase at each decade from 1790, the first time it was taken, to 1870—the last at this date. This table also shows the increase in the number of States, from the original 13 to the present 37, besides the Territories, which alone are larger than the original 13 States, and nearly as numerous.

CHAPTER XXXVIII.

THE DEPARTMENT OF AGRICULTURE.

Was established by an act of Congress, May, 1862. It is not, like the other Departments of the Executive Branch of the government, superintended by a Secretary with a seat in the President's Cabinet. Its Head is called The Commissioner of Agriculture, and he is appointed by the President, by and with the advice and consent of the Senate, like other civil officers. The creation of this office is a recognition of the extreme importance of this industry to the prosperity and welfare of the nation. Our country is eminently an agricultural one; and the interests confided to this department are those of a class of the people more numerous than any other, and on the success of whose labors depends the well being of all. In proportion as this industry attains a high state of development, and is generally prosperous, do the professional, mercantile, and manufacturing classes increase in wealth. It is the foundation on which they build.

The great fertility of our country, and the breadth of area adapted to all the most useful products of the world, and the need of instruction, suggestion, and aid in properly adapting agricultural products to the soil and climate, by the large number of settlers in regions with whose peculiarities they are but partially familiar, give a special interest and value to this new Department.

Its duty is to watch over this large field and make such suggestions to Congress in regard to legislation as shall seem called for; to disseminate such practical information among the people as it may be able to acquire by intelligent observation in this and other countries; and the

testing and dissemination of rare and untried plants of other countries that promise to increase our agricultural resources.

For experiments in the latter case, a propagating garden and grounds are provided, and the most skillful and intelligent officers, bringing all the lights of science to their assistance, devote themselves to the study of these plants, as to the soil and climate best adapted to them, the proper modes of cultivation, and to acclimating them to our country. This branch of the department sends, to suitable sections of the country, such plants and seeds as it has reason to believe it will be profitable to introduce and cultivate. This usage, continued for many years, will, no doubt, contribute very greatly to the variety of useful products which add to our comfort and wealth.

The department keeps skillful chemists and naturalists constantly employed to gather information of various kinds, that may be useful to agriculturists. The character of soils, the influences of climate, the best system of farming, the diseases of domestic animals, and plants and their cure, the best mode of preserving crops from the ravages of insects, and many others are the subjects of careful investigation, and the information thus gained is freely communicated to the country at large.

There is a statistical division, in which facts are gathered from the whole country and published monthly. This serves many useful purposes. It also collects data, for purposes of comparison and instruction, from foreign countries. Whatever facts it may be most useful for farmers to know, whatever crops it may be most profitable for them to produce, and whatever improvements in the modes of agriculture and in agricultural implements are discovered to be possible are communicated to all without cost.

Agricultural education receives much attention from the department, and all the facts and influences that can aid in making farmers thoroughly intelligent in their own pursuit, are gathered and employed with effect. Agriculture cannot but improve immeasurably under this fostering care, and this Department is likely to become one of the most important and useful in the government. It is yet in its infancy, but has already accomplished much good.

The commissioner reports annually to Congress. He has power to appoint such officers as Congress considers necessary. In 1868 a fine building for this department was completed at a cost of \$140,000. It contains a chemical laboratory with all the necessary apparatus and materials, and a museum, or collection of specimens, of value in the study of agriculture, store-rooms for seeds to be sent throughout the country, &c. The beauty of the building and grounds adds a very attractive feature to the National Capital, and the Institution itself is a favorable comment on the wise and provident care bestowed by the government on the leading interest of the people.

CHAPTER XXXIX.

POST OFFICE DEPARTMENT AND POST MASTER GENERAL.

This department of the government, whose head, the Post Master General, is a member of the Cabinet, exists by virtue of Section 8, Article 1st of the Constitution, where are these

words: "Congress shall have the power to establish post offices and post roads."

From small beginnings, in early colonial times, and continued through the Revolutionary War, it has grown to be one of the largest and most important departments of the government. The security, speed, and cheapness of intercourse between all parts of the country and with foreign lands, is of the utmost importance to business and commerce; it encourages social intercourse and intimate relations among the people, and is of no small consequence in developing their intelligence and promoting their improvement.

By successive laws of Congress it has been perfected to its present state of excellence. The duties connected with it are performed by many thousands of persons in every part of the country. They are of average intelligence and education, and must be trained to their work almost without personal instruction or supervision, yet so complete is the organization, and so pervading the influence of the central power, the regulations so simple, clear, and precise, that mistakes are extremely rare, considering the great number of transactions, and instances of misconduct in office are probably less frequent than in any other branch of the public service, though employing persons well trained and under close surveillance.

The Post Master General is appointed by the President and the Senate for four years. His office is in the General Post Office at Washington. He has three assistants, appointed in the same manner as himself. He has a seal of his office, an impression from which must be affixed to the commission of every postmaster in the United States; and also to all copies of papers and documents that may be wanted from his office. This only can give them official value of the same importance as the original papers. He must give bonds as security for faithfulness in office, and take the usual official oath.

He has the entire direction and management of the Department, and the appointment of all local postmasters (in law considered as his deputies), whose salary is less than \$1,000 per annum. All others are appointed by the President and Senate.

That its business may be more conveniently arranged and prepared for his final action, it is distributed among several bureaus, or minor departments as follows:

THE APPOINTMENT OFFICE.

Includes the divisions of appointments; bonds given by postmasters, agents, and clerks; salaries and allowances, where they are not provided for by law; free delivery in cities; and the agency of blanks used in the extensive business and reports of the department. This office is in charge of the First Assistant Post Master General.

THE CONTRACT OFFICE.

This includes the divisions of contracts for carrying the mails, by persons or companies; the inspection of the entire process of carrying the mails, to secure their safe, regular, and prompt delivery; mail equipment, or the supply of all the material and conveniences for transportation of the mail, furnished by the department; special agents, and mail depredations, which has the care of all violations of law and the conduct and accounts of all agents employed for the suppression and prevention of abuses; and the Topographical, which has charge of maps and

diagrams of mail routes, and geographical information, required for the various branches of the service. It is in charge of the Second Assistant Post Master General.

THE FINANCE OFFICE.

This is separated into the divisions of Finance, which has charge of the entire cash receipts, transfers, and disbursements of the department; of postage stamps and stamped envelopes, newspaper wrappers, and postal cards; registered letters and seals; and the examination of Dead Letters and their return to the writers. Dead letters are those not taken out of the office to which they were sent. After being advertised three weeks in some newspaper near the office where they were sent, they are returned to the General Post Office, where they are examined; and if they contain money or valuable papers they are returned to the writers and an account of them kept at the General Post Office. The sums, so lost and taken care of, amount annually to tens of thousands of dollars. The Third Assistant Post Master General has charge of it.

THE MONEY ORDER OFFICE.

The Money Orders System furnishes very convenient and safe banking facilities for the transfer of money in small sums. It diminishes as much as possible the exposure of money to loss by theft or otherwise, through the plan of depositing in one office, and sending a certificate of such deposit which is good for the money at another office. Immense sums are so exchanged and business facilitated without any actual passage of the money from one point to the other. When it is necessary to preserve the balances it is done by, and at the risk of, the department.

No more than fifty dollars can be sent in one order, nor more than three orders to the same person in one day. The number of these offices is more than 1,400.

The rates of commission on money orders are,

On orders not exceeding \$10	5 cents.
Over \$10, and not exceeding \$20	10 cents.
" \$20, " " \$30	15 cents.
" \$30, " " \$40	20 cents.
" \$40, " " \$50	25 cents.

No fractions of cents allowed in orders.

When a money order has been lost or destroyed, a duplicate can be got, by the person who bought the order or by the person it was bought for, by applying either at the office where the order was bought or at the office where it should be paid. The Money Order Department is in charge of the Superintendent of the Money Order System.

An international money order system, between the United States and Switzerland, went into operation September 1st, 1869, whereby the exchange of Postal orders between the two countries is effected through the agency of two Post Offices termed International Exchange Offices. The Office of New York City being set apart for the United States, and that of Basle, in Switzerland, for that country. The amount drawn for cannot exceed fifty dollars in one order,

three orders only can be obtained by the same person in one day. The system works satisfactorily, and will no doubt be extended to Great Britain, and perhaps other European Nations at an early day.

THE OFFICE OF FOREIGN MAILS.

It has the care of all foreign postal arrangements and the supervision of the ocean mail service. It is presided over by a Superintendent.

THE AUDITOR OF THE TREASURY FOR THE POST OFFICE DEPARTMENT.

This is a bureau of the Treasury Department, which, for convenience, is located in the General Post Office. To this officer is assigned the duty of auditing the accounts of the Post Office Department, all communications relating to the accounts of postmasters, mail contractors, and other agents of the Department, are addressed to this officer.

The head of so large and important a department of the public service is properly a chief officer of the government and has a seat in the cabinet.

NUMBER OF POST OFFICES AND MILES OF POST ROADS IN THE U. S.

In 1790	there were but	75	post offices, and	1,875	m. of post-roads.
1800	"	903	"	20,817	"
1810	"	2,300	"	36,400	"
1820	"	4,500	"	72,492	"
1830	"	8,450	"	115,176	"
1840	"	13,463	"	155,739	"
1850	"	18,417	"	178,672	"
1860	"	28,498	"	240,594	"
1870	"	28,492	"	231,232	"

POSTMASTERS GENERAL.

Samuel Osgood, Mass., Sept. 26, 1789.

Timothy Pickering, Mass., Aug. 12, 1791.

Joseph Habersham, Ga., Feb. 25, 1795.

Gideon Granger, Ct., Nov. 28, 1801.

Return J. Meigs, O., March 17, 1814.

John McLean, O., June 25, 1823.

William T. Barry, Ky., March 9, 1829.

Amos Kendall, Ky., March 1, 1835.

John M. Niles, Ct., May 18, 1840.

Francis Granger, N. Y., March 6, 1841.
Charles A. Wickliff, Ky., Sept. 13, 1841.
Cave Johnson, Tenn., March 5, 1845.
Jacob Collamer, Vt., March 7, 1849.
Nathan K. Hall, N. Y., July 20, 1850.
S. D. Hubbard, Ct., Aug. 31, 1852.
James Campbell, Pa., March 5, 1853.
Aaron V. Brown, Tenn., March 6, 1857.
Joseph Holt, Ky., March 14, 1859.
Horatio King, Jan. 1, 1861.
Montgomery Blair, Md., March 7, 1861.
William Dennison, O., Oct. 1, 1864.
Alexander W. Randall, Wis., July 15, 1866.
J. A. J. Creswell, Md., March 5, 1869.
" " reappointed March 17, 1873.
Marshall Jewell, July 1874.

CHAPTER XL.

RATES OF POSTAGE IN THE UNITED STATES

On each letter weighing not more than one-half ounce three cents, and for each additional half-ounce or fraction thereof, three cents.

All packages containing matter not in itself chargeable with letter postage, but in which is enclosed or concealed any letter, memorandum, or other thing chargeable with letter postage, or upon which is any writing or memorandum; and manuscripts for publication in newspapers, magazines, or periodicals—three cents for each half-ounce or fraction thereof. Weight of packages limited to four pounds.

On local or drop letters, at offices where free delivery by carriers is established, two cents for each half ounce or fraction thereof; and where free delivery has not been established, one cent for each half ounce or fraction thereof.

On seeds, cuttings, bulbs, roots and scions, one cent for each ounce or fraction thereof. Weight of packages limited to four pounds.

On pamphlets and occasional publications, all transient printed matter, unsealed circulars, book manuscripts, proof sheets, corrected proof sheets, maps, prints, engravings, etc., one cent for each ounce or fraction thereof. Weight of packages limited to four pounds.

On samples of ores, metals, minerals, and merchandise, one cent for each ounce or fraction thereof. Weight of packages limited to four pounds.

On books, one cent for each ounce or fraction thereof. Weight of packages limited to four pounds.

All domestic matter, including newspapers, magazines and periodicals sent to actual subscribers from a known office of publication, must be prepaid by postage stamps affixed thereto.

Newspapers issued weekly, or oftener, and sent from publishers or news agents, to subscribers or dealers, two cents per pound; and if not issued as often as weekly, three cents per pound.

Papers sent miscellaneously, and not regularly, postage the same as on books.

FOREIGN POSTAGE.

FOREIGN COUNTRIES.	Letters per ½ oz.	News papers not exceed'g 4 oz.
Alexandria, Egypt, British closed mail via Southampton	16	4
Aspinwall, U. S. packet *	10	2
Australia, British mail via Southampton	16	4
” ” ” Brindisi	22	8
” German mail, direct, via Brindisi	† 20	12
Austria, including Hungary, German mail, direct	† 6	3
” ” ” ” closed mail via England	† 7	4
Belgium, by direct steamers	† 6	3
” via Great Britain	† 8	4
Bermuda, U. S. packet *	10	2
Brazil	15	3
” British mail	28	4
British Columbia (Letters unpaid 10 cents per ½ oz.)	† 6	2
Canada, England, Wales, Ireland and Scotland (unpaid 10c. per ½ oz.)	† 6	2
Postal Cards to Canada or British Columbia one cent extra.		
Central America *	10	2
Chili, via Panama	22	4
China, via San Francisco	19	2
” Southampton	28	6
” Brindisi	34	8
Constantinople, German mail, direct	10	6
” ” closed mail, via England	11	7
Cuba, U. S. packet *	10	2

Denmark *	7	4
East India, British, via San Francisco	10	—
” ” ” British mail, via Southampton	22	
” ” ” ” ” Brindisi	28	8
Ecuador	20	* 2
Egypt, except Alexandria British mail, via Southampton	20	6
Falkland Islands, British mail, via Southampton	16	4
France, direct *	10	2
Germany, via Hamburg or Bremen, direct	† 6	
” closed mail, via England	† 7	
Postal Cards to Germany one cent additional.		
Gibraltar, British mail, via Southampton	16	4
Gold Coast, ” ” ”	16	4
Great Britain and Ireland	† 6	2
Greece, German mail, direct	† 14	9
Guatemala, U. S. packet *	10	2
Havana, U. S. packet *	10	2
Hawaiian Islands, U. S. packet (Newspapers one cent per ounce)	6	—
Holland	10	4
Honduras, via St. Thomas	18	4
Hong Kong, including Canton, Amoy, Swatow, and Foo-Chow, U. S. packet	10	2
Hong Kong, British mail, via Southampton	28	6
Italy *	† 10	4
Jamaica, U. S. packet *	10	2
Japan, U. S. packet	10	—
Java, British mail, via Southampton	28	6
Jerusalem, German mail, direct	† 11	7
” ” closed, via England	† 12	8
Malta, British mail, via Southampton	16	4
Mexico, U. S. packet (by sea)	10	3
Morocco, British mail, via Southampton	16	4
Natal, ” ” ”	28	4
Netherlands, same as Holland.		
Newfoundland	6	2
New South Wales, British mail, via Southampton	16	4
New Zealand, ” ” ”	16	4
Norway, via England and Christiana	10	4
Panama, U. S. packet	10	3
Paraguay, U. S. packet (Newspapers 4 cents each)	18	4
Peru, British mail, via Panama, ”	22	4
Portugal, British mail, via Southampton	16	6
Prince Edward Island (Unpaid letters 10 cents each ½ oz.)	6	2
Russia, German mail, direct	10	6

” ” closed mail, via England	† 11	7
Sandwich Islands (Newspapers one cent per two ounces)	6	—
Shanghai, U. S. packet	10	2
Sierra Leone, British mail, via Southampton	16	4
Spain, German mail, direct	11	6
” via New Orleans *	10	2
Sweden and Norway, by direct steamers for U. S.	† 6	2
Sweden, via England and Christiana	9	4
Switzerland, via England	† 10	4
” ” Germany	† 8	3
Vancouver’s Island (Letters, if unpaid, 10 cents per ½ oz.)	† 6	2
West Indies, except otherwise stated, via St. Thomas	18	4

* Denotes that the postage is the United States postage only, which must be prepaid on matter sent and collected on matter received.

† Denotes that prepayment of postage is optional; in all other cases it is compulsory.

GREAT BRITAIN AND IRELAND.—Letters wholly unpaid or insufficiently prepaid are subject on delivery, in addition to the deficient postage, to a fine of 6 cents in the United States and 3d. in Great Britain. Book manuscript and corrected proof may be sent at book-packet rate of postage.

CHAPTER XLI.

REGISTERED AND DEAD LETTERS.

REGISTERED LETTERS.

Within the last few years the Registered Letter Department has grown to enormous proportions. In former times the registering of a letter was only a notice to those handling it that it was valuable, the process being to simply paste a Registered Letter Bill to the letter and place it among the ordinary letters. If any officer was dishonest and wanted the letter, all he had to do was to take it and destroy the bill, and the chances of detection were very slight. The fee was small and the safety smaller. Under the new system which has been in operation some few years, and is copied from England, the safe transmission and delivery of money and valuables is almost certain. Only letters or other mail matter on which letter rates of postage are fully prepaid can be registered. Each postmaster is furnished with all the proper blanks, including the package envelopes and seals. The latter is a large whitish brown envelope, longer and broader than an ordinary official size envelope, and “Registered Letter” printed in large red letters across the face. The seal is similar to a postage stamp, only larger, and is placed over the lap after the envelope is sealed, and then cancelled. When a letter is presented for registration at any post office, the postmaster must require that the name and post office address of the writer thereof be endorsed on its face; he must also see that the postage, as well as the fee for registering, is fully prepaid by stamps affixed to such letter; he will then fill out a

receipt, entering thereon the number of the letter, the date and name of his office, the name and address of the writer, and the address of the letter, sign and deliver it to the person presenting the letter. The postmaster then makes out his "registered letter bill" and "return registered letter bill" each of which contains a full description of the letter consisting of address and number. The registered letter bill is then placed in the package envelope with the letter. The package is then sealed up and the name of the post office for which it is destined, and the number and stamp of the mailing office are plainly marked upon the package. It is then ready for delivery to the route agent or postal clerk upon whose route it properly belongs, who is required to give a receipt for it, and also to keep a complete record of it, as are all officers of the Department who handle registered matter in transit. He must also take a receipt from the officer to whom he next delivers the package. The return registered letter bill is sent in an ordinary envelope in the regular mail to the office of final destination, which will, by reason of the fact that no registered letters are sent in through mails, and only in charge of postal clerks upon day trains, nearly always reach the office in advance of the registered letter; and the postmaster, then knowing that such letter is on the way, is on the lookout for it, and if it comes in due time signs the receipt and returns it to the mailing office. All this is done for a fee of only eight cents in addition to the regular postage.

If a registered letter should not reach its destination in a reasonable length of time after the receipt of the return bill, the post master will notify the post master at the mailing office of the non-receipt of the letter. It then becomes the duty of the last mentioned officer to inform a special agent of the fact, who will make out what is called a "tracer," which is a complete description of the letter, with blank space for each person who handled the original letter to state, from his records and receipts, exactly what disposition he made of it and whose receipt he holds; he then passes it along to the next. Thus by this complete chain of records and receipts, though it may reach from the Atlantic to the Pacific, a registered letter may be readily traced to its final destination, or until the records cease. If a break should occur in the chain and the loss be fastened upon any post office or mail agent, the case is rigidly "investigated" by the proper officer, and if it appears that the loss occurs through carelessness, the loser is made to pay the value of the lost letter, and receive a severe reprimand, and if it should occur again is very apt to be dismissed the service. If the special detective is convinced that the missing letter is stolen, he then takes a different course and commences his system of "decoys," etc., to catch the thief, and is almost always successful, as the man who robs the mails always becomes careless, and grows bolder with each repetition of the offense.

The amount and extent of the registered letter business may be judged when it is stated that during the month of January, 1874, at the post office in New York over sixty thousand registered letters were received, nearly thirty thousand of which were for delivery in the city, and the rest for other places, New York being a distributing office.

DEAD LETTERS.

About all that people know or understand of the workings of the Dead Letter bureau of the Post Office Department is that if a letter is not delivered in due time it is sent to the Dead Letter Office, and there opened and returned to the writer. When, each year, they see the report of the Postmaster General, the amount of money and number of letters that are returned to the senders seems enormous, but when it is considered that millions of letters and thousands of

dollars are carried and safely delivered correctly each year in the United States, the number that fails of delivery, by contrast, does not seem so great. During the month of November, 1873, nearly ten millions of letters were received and dispatched in New York City.

Every effort is always made to return money or any articles of value which may be found in dead letters. It is required that everything valuable shall be registered free when returned to the owners; but if for any reason it cannot be delivered to the rightful owner, it is held in the Department subject to the owners control for four years, and after that time it is conveyed to the Treasury, and goes towards decreasing the annual deficit in the Post Office Department. All letters which are properly stamped and addressed, and go to their destination, but are not delivered at the end of one week, by reason of the person addressed not being found, are advertised, either by publishing once in a daily or weekly paper, or by posting the list in a conspicuous place in the office. At the end of four weeks all then undelivered are sent to the dead letter office. The matter of advertising in newspapers is left to the discretion of the Postmaster General, and it is but few of the larger offices that are allowed to do so. The compensation is fixed by law at one cent for each letter, which is to be paid by the person receiving the letter; but by reason of the fact that by far the larger portion of those advertised are not delivered, the expense is so great that but few offices can be allowed to advertise. All letters which are dropped into an office without stamps or only part paid, or the address is not readable, are sent at once to the Dead Letter office, except in some few offices where a bulletin board is provided for the purpose of displaying to the public letters of this character. When a letter which is wholly or in part unpaid, and upon which the address is legible, is found to contain a valuable enclosure a printed circular is sent to the party addressed requesting that the requisite amount of postage be forwarded in stamps and the letter will be forwarded to its proper address.

A great many articles which are of value only to the senders or the persons for whom they are intended, such as little baby shoes, stockings, photographs, etc., etc., find their way to the Dead Letter office. Special effort is always made to deliver things of this character. Perhaps the little shoe or stocking may have belonged to some little one whose feet are still forever, and is being sent to a grandmother or some other near relation as a memento of the little one that is gone. Such articles as this may be of no possible value to any one but the owners, but the post office authorities make as great an effort, even greater to deliver this class of articles, than they do money or jewels. At the present time in the Dead Letter office are great stores of small articles of very little or no value to any but the owners, waiting to be called for.

CHAPTER XLII.

ATTORNEY GENERAL.

It will be readily perceived that, in a country developing so rapidly as ours, producing, thereby, an almost unbroken series of new situations, requiring a cautious application of old laws and the constant enactment of new ones, and so, a danger of confusion of legislative rules, that the President and his Cabinet would need a legal adviser of eminent ability, and of extensive acquirements in legal affairs, to give instruction and counsel on various lines of action contemplated by the executive branch of the government, and of the lawful course to be

taken in the numerous particular cases constantly coming up for determination. Besides, various suits require to be instituted or defended in the courts, by the government, and some officer is needed to prosecute or defend them in its name and interest.

To answer these requirements, the office of Attorney General was created by the first Congress in 1789. He is a member of the Cabinet, is nominated by the President, and confirmed by the Senate, and is removable at the pleasure of the President. He has an assistant and various clerks to aid him in the discharge of his responsible duties.

By an act passed in 1861 he is made Superintendent of all the Attorneys and Marshals in all the Judicial Districts of the United States. His office is at the seat of Government.

The following is a complete list of the Attorneys General:

ATTORNEYS GENERAL.

Edmund Randolph, Va., Sept. 26, 1789.

William Bradford, Pa., June 27, 1794.

Charles Lee, Va., Dec. 10, 1795.

T. Parsons, Mass., Feb. 20, 1800.

Levi Lincoln, Mass., March 5, 1801.

Robert Smith, Md., March 2, 1805.

John Breckinridge, Ky., Dec. 1806.

Cæsar A. Rodney, Del., Jan. 20, 1807.

William Pinckney, Md., Dec. 11, 1811.

Richard Rush, Pa., Feb. 10, 1814.

William Wirt, Md., Dec. 16, 1817.

John McPherson Berrien, Ga., Mar. 9, 1829.

Roger B. Taney, Md., July 20, 1831.

Benjamin F. Butler, N. Y., Nov. 15, 1833.

Felix Grundy, Tenn., July 7, 1838.

Henry D. Gilpin, Pa., Jan. 11, 1840.

John J. Crittenden, Ky., Mar. 5, 1841.

Hugh S. Legaré, S. C., Sept. 13, 1841.

John Nelson, Md., July 1, 1843.

John Y. Mason, Va., Mar. 5, 1845.

Nathan Clifford, Me., Oct. 16, 1846.

Isaac Toucey, Ct., Jan. 21, 1848.

Reverdy Johnson, Md., Mar. 7, 1849.
John J. Crittenden, Ky., July 20, 1850.
Caleb Cushing, Mass., Mar. 5, 1853.
Jeremiah S. Black, Pa., Mar. 6, 1857.
Edwin M. Stanton, Pa., Dec. 14, 1860.
Edward Bates, Mo., Mar. 5, 1861.
James Speed, Ky., Dec. 1864.
Henry Stanberry, O., July, 1866.
William M. Evarts, N. Y., 1868.
Eben E. Hoar, March 5, 1869.
Amos T. Akerman, Ga., July 8, 1870.
George H. Williams, Oregon, 1871.
Edward Pierrepont, New York, 1875.

CHAPTER XLIII.

PRESIDENTIAL ELECTORS.

An Elector, in the sense of the Constitution, is one who has been appointed to choose or elect the President of the United States. Electors have been chosen in various ways. At first they were often appointed by the State Legislatures, or these passed a law directing their election by the people. This has gradually disappeared, and now the people, by law of Congress assemble on the first Tuesday after the first Monday in November preceding the close of a presidential term, and vote for the electors. The electors in each State are called its Electoral College. They meet on the first Wednesday in December following their election, in their respective States, and vote by ballot for a President and Vice-President. These cannot both, according to the Constitution, be citizens of the same State. They count, certify, and seal these votes and send the sealed package by a messenger, appointed for that express purpose, to the President of the United States Senate. On the second Wednesday in February following, the members of the Senate and House of Representatives assemble together, the packages are opened and the votes counted in their presence, and the result is officially proclaimed. It is evident that this is now a mere form, and the President and Vice-President are virtually determined by the people in November. It is not in harmony with the other parts of our system of government, which aims at simplicity and practical usefulness, and it will probably soon be dispensed with. It was originally designed, by those who framed the Constitution, to act as a check to party spirit, and was expected to serve a very useful purpose. They felt the great importance attaching to the office of Chief Magistrate, on whom they had conferred so much power, and thought, by this means, to raise his election above disturbing influences. It was not expected that the candidates for those offices would come in question, in the popular elections.

The choice was designed to be left with the electors, with whom, being chosen by the people for that purpose, it was supposed they would feel safe in leaving it. It was believed that a select body of eminent men would act with more prudence and wisdom than the people at large. But the people felt themselves competent to judge for themselves, and have, like imperious sovereigns, imposed their choice on the Electors, so that that part of our constitutional machinery has become a dead letter. The people know their own minds better, and are more resolute in imposing their will on their representatives than was expected; and they have favorably disappointed the best hopes of those who believed most in their discretion. So we see that the failure of the Electoral System, planned by the Fathers of the Republic, is an honorable commentary on the ability of the people for self-government.

Their success in making their own choice authoritative has led them to overlook the incongruity of the system, so that they have never resolutely required it to be abolished. Perhaps the idea that it might be useful in some important crisis of national affairs has had an influence to prevent interference with it. As its retention is attended with considerable expense, when questions of Economy come to take a leading place in public policy it is likely to be laid aside, in form, as well as in fact.

The elections for President, Congressmen, Governors of the States and their Legislatures, determining the general policy of the government, and the class of men who shall be appointed to the various minor offices under its control; those who feel a strong interest in that policy from their judgment of its effect on the welfare of the country, or their desire to promote special measures; and those who are anxious to obtain or hold office, are very warmly interested in them. They divide into parties according to their views and exert themselves to the utmost to influence the result.

Most human affairs have their good and bad side, and this is not an exception. This party warmth is useful in causing discussion, examination, and thought, and stirring up the people to a careful study of their institutions and the principles of government, and the effect which particular measures may have on the public welfare. Its tendency, in this direction is, to make all the people statesmen—a point of the highest importance in a free government, where the People are Sovereign. The disadvantage is, that it often awakens an undue degree of passion and prejudice, the parties and men who are candidates for office abuse and misrepresent each other in order to destroy each others influence, when, perhaps, they are equally in earnest in seeking the good of the country. For this there is no apparent remedy, but in the intelligence and good sense of the people themselves. They must learn to be careful and candid in their judgment of men and measures, and to examine all sides of a question before rendering a decision. All should strive toward this intelligent moderation during important elections.

CHAPTER XLIV.

THE HISTORY OF PRESIDENTIAL ELECTIONS.

The Presidents of the Continental Congress—as the Legislative body of the United States was called up to 1789, when the new Constitution went in effect—were chosen by its members, which then consisted of only one House, in the same manner as the Speaker of the

House of Representatives is chosen now; nor was his authority more extensive. He was simply the presiding officer of a legislative body; and one that had by no means the effective authority of our present Congress, although no body in the world ever more deserved the gratitude and reverence of all time; for it founded and gave direction and character to a great nation—it may be, the greatest the world will ever know.

These Presidents had little, except the name, in common with the Presidents of the United States, as the Constitution made them. The Presidents were now to be appointed by the people, and become the depositaries of the Power of the Nation in Action. It was fit that, in a government deriving all its authority from the People, as the source of power, its Special Agent, its acting Representative, should be chosen by them.

In the summer of 1788 three-fourths of the States had ratified the Constitution, and it became authoritative as the Fundamental Law of the country. The Continental Congress, therefore, closed its own career by ordering elections for the new Congress, and for the electors who were to appoint the first President. It directed that these elections should take place on the first Wednesday in January, 1789; that the electors should meet on the first Wednesday in February following, to discharge the duty to which they were appointed; and that, on the first Wednesday in March, (which, in that year, was the fourth,) Congress should meet, the President be inaugurated, and the new government be put in operation.

This brought all these important events close upon the heels of one another; and on the 4th of March there was not a quorum of the Members of Congress assembled. The States lay far apart, and the roads were bad in those times, and at that season of the year. Though a bare quorum had gathered by the last of March, and many measures of pressing necessity were attended to, a full representation was waited for before the President elect was notified that they were ready for his inauguration; and that event took place only on the 30th of April. The presidential term, however, was considered to have legally commenced at the time previously ordered, and closed on that day of the year and month; so that it became the first day of our political year. It commences and closes the President's term of office and ends the regular session of Congress.

FIRST ELECTION, 1789.

There were but 69 electors, and the choice of George Washington for President, and John Adams for Vice-President, was unanimous. He had declared, when resigning his commission as commander-in-chief, that he took leave “of all the employments of public life,” and only the earnest solicitations of the leading public men of the time, and their opinion that he alone could successfully inaugurate the new government, decided him to leave his cherished retirement. Washington's ambition was known to be free from spot or stain of self seeking, and his moderation and judgment were trusted in as the sheet anchor of a new government which many feared would become too strong for the liberties of the people. They dreaded an abuse of power; but they had no fear of such abuse while wielded by Washington. There was a solid foundation to Washington's fame, in his character.

The presidential electors were mainly chosen by the State legislatures during the times immediately following the adoption of the Constitution. That instrument did not decide how they should be chosen, but left it to the discretion of the State governments. In some States conventions chose them, and the practice was various; but after a time it proved to be more

satisfactory to refer the choice directly to the people, and very soon the people themselves practically selected the President, the electors being pledged to the choice of the candidate favored by their constituents, so that their significance was lost. It is a proof of the *popular* character of our government. The system of electors indicated a fear of the people; a want of confidence in their judgment and self control. The electors, it was supposed, would be wiser, less accessible to passion and caprice than those who elected them. The people set them quietly aside, and proceeded to do their own work themselves, using the electors only to register their decision. Public men have seldom ventured to oppose the clearly formed and definite purposes of the people.

THE SECOND ELECTION, 1792.

Washington was again unanimously elected. He desired to lay down the burdens of office; but so many perplexing questions and disturbing influences threatened the stability of the government that he could not be spared. His name and character were a rock of strength. John Adams was re-elected Vice-President. Only 11 States had voted at the first election; North Carolina and Rhode Island not having then ratified the Constitution. They had now done so, and Vermont and Kentucky had been admitted, so that there were 15 States voting at this election. There were 132 electors. Washington declined another election absolutely, and the government had proved so suitable as to be fairly settled in the confidence of the people.

THE THIRD ELECTION, 1796.

Four persons were voted for at this election.

John Adams	received	71	electoral	votes.
Thomas Jefferson	"	69	"	
Thomas Pinckney	"	59	"	
Aaron Burr	"	38	"	

As, by the Constitutional provision regarding electors, the person having the largest number of votes became President, and the one who had the next in number became Vice-President, Adams was now President, and Jefferson Vice-President. Tennessee had now been admitted into the Union, and there were 16 States voting.

Conflicting views on foreign policy, and vexing questions of internal administration began to exert a strong influence, and party spirit, for the next twenty years, was very bitter. Mr. Adams was a Federalist; Mr. Jefferson was an anti-Federalist.

THE FOURTH ELECTION, 1800.

The same candidates were again in the field. The political parties had become clearly defined. Adams and Pinckney were the Federal candidates, receiving—Adams, 64, Pinckney 63, electoral votes, while Jefferson and Burr had each 73. They were of the anti-Federal, or Republican party.

The election did not decide which of the two, Jefferson or Burr, should be President and Vice-President, and, by the provisions of the Constitution, the House of Representatives decided it in favor of Jefferson. Party heats were so great that it took 7 days and 36 ballots to reach this result. It was felt that there was a defect in the Constitutional provision that left it undecided, in such a case, which of the candidates was the choice of the electors for President, and it resulted in the ratification of the 12th amendment before the next election.

The Federal party never regained the power of administration lost at this election, though they continued to be a strong opposition until the close of the war of 1812. But an opposition, to criticize and point out faults, is often more useful out of office than in; and the Republican party was obliged to adopt substantially the general features of the policy pursued by their predecessors, while they added some very important ones of their own, in their disposition to favor popular rights.

THE FIFTH ELECTION, 1804.

Thomas Jefferson and George Clinton were the candidates of the Republicans. Charles C. Pinckney and Rufus King of the Federalists.

Jefferson was popular, and received 162 votes—Clinton receiving the same. Pinckney and King received only 14 votes. The admission of Ohio, in 1802, made 17 States to vote at this election.

The Federal party was much weaker than in the following election.

THE SIXTH ELECTION, 1808.

James Madison was the Republican candidate for President, and Geo. Clinton for Vice-President. Pinckney and King were again candidates on the part of the Federalists.

Madison	received	123	electoral votes.
Clinton	"	113	"
Pinckney and King each,	47	"	"

Geo. Clinton died before the end of his term. There was the same number of States voting as in the previous election, viz.: 17.

THE SEVENTH ELECTION, 1812.

Madison was re-elected, with Elbridge Gerry as Vice-President. They each received 128 electoral votes.

De Witt Clinton and Jared Ingersoll, the candidates of the Federal party, received, Clinton 89, Ingersoll 57, votes. Louisiana having been recently admitted into the Union, there were now 18 States.

War with England was formally declared this year. It had actually begun on the ocean sometime before. It was a very trying and painful presidential term, owing to the violent and injudicious opposition made to the measures of the government, and the unfortunate choice of

generals for the first two years; yet the ultimate result was highly creditable to the standing and reputation of the United States, and put an end to the annoying and insulting interferences with our vessels and commerce that had brought it on. It was a war waged for the honor and inviolability of our Flag, which was ever after duly respected.

THE EIGHTH ELECTION, 1816.

James Monroe and Daniel D. Tompkins were the candidates of the Republicans, who now began to be called Democrats. The Federalist party was now near its end. It nominated Rufus King who received 34 electoral votes, Monroe obtaining 183.

Indiana was admitted this year in time to vote, making 19 States. This period marked an important era in the internal history, as well as foreign relations, of the country. The period of trial for the Constitution was passed, and full confidence began to be felt in the system it had founded.

THE NINTH ELECTION, 1820.

Monroe and Tompkins were re-elected, the vote being substantially unanimous, for the first and last time since Washington. The close of this term made the Republican rule in the administration 24 years in succession, under three Presidents, each once re-elected, and all citizens of Virginia.

Four new States had been admitted during the previous term, viz.: Mississippi, Illinois, Alabama, and Maine, so that 23 States took part in this election.

THE TENTH ELECTION, 1824.

Four candidates were in the field for the presidency at this election. Missouri having been admitted since the ninth election there were 24 States to vote. The whole number of electors was 261; necessary to a choice, 131.

The candidates and votes were as follows:

Andrew Jackson	99
John Quincy Adams	84
Wm. H. Crawford	41
Henry Clay	31

By the Constitution the House of Representatives was required to select the President from the 3 candidates having the highest number of votes. They were to vote by States, and a majority of States would elect. J. Q. Adams received the vote of 13 States, and was declared elected. John C. Calhoun having received 182 electoral votes for the Vice-Presidency, was thereby elected to that office. 18 of the States appointed the electors by popular vote and 6 appointed them by their legislatures.

THE ELEVENTH ELECTION, 1828.

Andrew Jackson was elected President, and John C. Calhoun re-elected Vice-President.

John Quincy Adams and Richard Rush were also candidates for President and Vice-President, respectively. The contest was very hot and bitter. Jackson received 178, and Adams 171 electoral votes. The Popular vote was 650,028 for Jackson to 512,158 for Adams. The number of electors was the same as in the 10th election. The most violent excitement divided the north and the south on the tariff question, which culminated during this term in the "nullification ordinance," which Jackson met with the decision and vigor for which he was distinguished, ending in the submission of the nullifiers. Calhoun resigned his office as Vice-President, Dec. 28th, 1832. He was the leader of the nullifiers.

THE TWELFTH ELECTION, 1832.

Jackson's vigorous dealing with nullification was highly approved by the people, and he was re-elected, with Martin Van Buren as Vice-President.

Henry Clay was the candidate of the Whig party for President, and John Sergeant for Vice-President.

Jackson	received	682,502	popular,	and	219	electoral	votes.
Clay	"	550,189	"		49	"	
Jackson's majority		132,313			170		

Van Buren received 189 electoral votes for Vice-President. Twenty-four States voted at this election.

THE THIRTEENTH ELECTION, 1836.

Van Buren was run, by the Democrats, for the Presidency, and Richard M. Johnson for the Vice-Presidency, against Wm. H. Harrison, Hugh L. White, Daniel Webster, and W. P. Mangum. Van Buren's vote was 762,149 popular, and 170 electoral. Harrison and the others united was 736,736 popular, and 124 electoral. The whole number of electors being 294, the number necessary to a choice was 148. Johnson failed by one electoral vote to be elected to the Vice-Presidency, and the case went to the Senate for decision, as directed by the Constitution. The remaining electoral votes for Vice-President being divided between 3 candidates, Johnson was appointed by the Senate.

Michigan and Arkansas having been admitted this year took part in the election, making 26 States.

THE FOURTEENTH ELECTION, 1840.

The Whig party this year concentrated on Wm. H. Harrison for President, and John Tyler for Vice-President.

The Democrats opposed them with Van Buren and Johnson again. The country had been passing through a financial crisis of extreme severity during the thirteenth presidential term, and this election, involving the decision of a financial policy, was very exciting.

Harrison was an Ohio farmer, and, the Democrats said, “lived in a log cabin and drank hard cider.” The Whigs took the hint, built log cabins to hold their campaign gatherings in, drank much hard cider, and sung stirring political songs.

Harrison’s	popular vote was	1,274,783	—his electoral vote	234
Van Buren’s	”	<u>1,128,702</u>	”	<u>60</u>
Majority,		46,081		174

Tyler’s vote as Vice-President was the same as Harrison’s.

Harrison died on the 4th of April, one month after his inauguration, and John Tyler succeeded to the Presidency. His term was made remarkable by his disagreement with the measures of Congress, on financial questions.

This was the first time a Vice-President had been called on to serve as a substitute for the President. There were 26 States taking part in this election.

THE FIFTEENTH ELECTION, 1844.

The slavery question entered into this election as a leading point. The Republic of Texas asked admission into the Union. As it would be certain to be a slave State, and many of the people objected to extending that institution while others favored it, the parties took it up; the Democrats favoring the admission, the Whigs opposing.

James K. Polk was the candidate for President, and Geo. M. Dallas for Vice-President, run by the Democrats.

The Whigs opposed against them Henry Clay and Theodore Frelinghuysen.

The vote for	Polk and Dallas was	1,335,834,	electoral vote	170
”	Clay and Frelinghuysen	<u>1,297,033,</u>	”	<u>105</u>
Polk and Dallas’ majority,		38,801		65

This was the third time Mr. Clay had been defeated as a candidate for the Presidency, to the great regret of many, even of those who voted against him.

The war with Mexico followed as a consequence of the policy of the United States government, decided upon in this election. Texas had formerly been a part of Mexico, and that country considered its admission into the Union as an act of hostility to herself.

SIXTEENTH ELECTION, 1848.

The Whigs were successful in this election, owing to a division in the ranks of the Democratic party. The Whigs nominated Gen. Zachary Taylor for President, and Millard Fillmore for Vice-President; the Democrats Lewis Cass for President, and Wm. O. Butler for Vice-President; the Free Soil Democrats—who opposed the extension of slavery—Martin Van Buren for President, and Charles F. Adams for Vice-President.

The vote resulted thus:

Taylor and Fillmore's	popular vote	1,362,024,	electoral vote	163
Cass and Butler's	"	1,222,419,	"	127
Van Buren and Adams'	"	291,678.		

The third ticket secured no electoral votes.

Four new States had been admitted into the Union since the 15th election, viz.: Texas, Florida, Iowa, and Wisconsin; and 30 States voted this year.

Gen. Taylor died July 9th, 1850, one year, four months, and four days after his inauguration, and Mr. Fillmore filled out his term of office.

THE SEVENTEENTH ELECTION, 1852.

During the previous Presidential term the subject of slavery, and the strategy of politicians in favor of and against it, absorbed public attention. The repeal of the Missouri Compromise of 1820 opened the whole question, and a trial of strength as to which side should occupy the new territory, was prepared for. The crisis of preparation had not been reached when this election occurred, and comparatively little interest was taken in it.

The Democrats nominated Franklin Pierce for President, and Wm. R. King for Vice-President; the Whigs chose as their candidates Gen. Winfield Scott for President, and Wm. A. Graham for Vice-President.

Pierce and King received, of popular votes 1,590,490, of electoral, 254. Scott and Graham received, of popular votes, 1,378,589, of electoral, 42. Pierce's majority, on popular vote, 211,901, on electoral, 212.

California had been admitted since the 16th election, and there were 31 States to vote in this.

This was the last election in which the Whig party nominated a candidate. The contest in regard to slave and free territory absorbing all the interest of the country, the parties were rearranged, those in favor of slavery, or wishing to leave that institution undisturbed, gathered to the Democratic party; while those wishing to actively oppose the extension of slavery to territory not yet occupied by it, united, under the name of the Republican party, the Whigs becoming extinct, as a party.

THE EIGHTEENTH ELECTION, 1856.

The Democrats nominated James Buchanan, and John C. Breckenridge for President and Vice-President; the Republicans, John C. Fremont and William L. Dayton. A third party, in favor of putting only native Americans in office, voted for Millard Fillmore and Andrew J. Donnelson. The result was the following:

Popular vote for Buchanan and Breckenridge 1,803,029, electoral, 174. Popular vote for Fremont and Dayton 1,342,164, electoral, 114. Popular vote for Fillmore and Donnelson, 874,625, electoral, 8.

Buchanan had only what is called a plurality popular vote; the two others united had a majority over him of 413,760 votes. A majority of electoral votes, however, was 149, and he received 174, and a majority of 52 electoral votes over the others united.

Only 31 States voted at this election. Mr. Buchanan was much blamed for not taking more vigorous measures to quench the secession movement that commenced in the last months of his administration. The contrast between his course and Jackson's in 1832 was very marked.

THE NINETEENTH ELECTION, 1860.

The Republican party nominated Abraham Lincoln for President, and Hannibal Hamlin for Vice-President. The south, finding it impossible to uphold the slavery extension system against the growing Republican party, and the compromise that had protected that system having been laid aside in 1850, must submit to the gradual extinction of slavery, or withdraw from the Union. They chose the latter, and favored the division of the Democratic party, which was still much the largest, into several parts. Three tickets of that party were run, against one in the Republican, which assured the election of Lincoln.

The Northern Democrats voted mainly for Stephen A. Douglas and H. V. Johnson; the Southern Democrats for John C. Breckenridge and Joseph Lane; and those who wished to stop the contest on the slavery question altogether, on both sides, voted for John Bell and Edward Everett. The result was as follows:

The vote for	Lincoln and Hamlin was	1,866,452,	electoral	180
"	Douglas and Johnson	1,370,157,	"	72
"	Breckenridge and Lane	847,953,	"	39
"	Bell and Everett	590,631,	"	12

The three divisions of the Democrats together had a popular majority of 947,289 over the Republicans, but the latter had a majority of 57 electoral votes over all the others united.

Two new States had been admitted since the eighteenth election, Minnesota and Oregon, and there were 33 States voting. The census of 1860 gave the population as 31,148,048. All the votes cast at this election amounted to 4,680,193, the largest number by more than 500,000 that had ever been known. The Southern States seceded within a few months, and the Civil War began. It was remarkable as the most gigantic war of its kind, perhaps of any kind, known in history; and for the obstinate bravery and resolution displayed on both sides. It continued during this entire presidential term.

THE TWENTIETH ELECTION, 1864.

The election this year was confined to the States that had remained loyal to the Constitution and the Union. Eleven States had seceded.

The Republicans re-nominated Lincoln for President, with Andrew Johnson for Vice-President. The Democratic party nominated Gen. Geo. B. McClellan for President, and Geo. H. Pendleton for Vice-President. The result was as follows:

The popular vote for	Lincoln and Johnson was	2,223,035
"	"	McClellan and Pendleton
		<u>1,811,754</u>
Lincoln's popular majority		411,281

Electoral votes for	Lincoln	212
”	”	
	McClellan	<u>21</u>
Lincoln’s electoral majority		191

The total number of popular votes was 4,034,789. Lincoln’s vote at this election was the largest that had ever been cast for one candidate, though there were less votes cast by all parties by 600,000 than in the nineteenth election. Two new States, Kansas and West Virginia, had been admitted since the previous election, which with the 11 in rebellion omitted, left 24 States voting.

The civil war closed with the submission of the seceded States to the general government soon after Lincoln’s re-inauguration; but he was assassinated about the same time, on the evening of April 13th, 1865, and died on the following day, leaving a nation in mourning, and the civilized world struck with horror. Andrew Johnson acted as President during the remainder of this term. Mr. Johnson’s administration was marked by the great difference in the policy of reconstructing the seceded States adopted by him and by the Congress, by the limitations which the latter threw around him, and the attempt to impeach him, which failed by a few votes.

THE TWENTY-FIRST ELECTION, 1868.

Gen. Ulysses S. Grant was nominated by the Republicans for President, and Schuyler Colfax for Vice-President.

The nominees of the Democratic party were Horatio Seymour and Francis P. Blair.

Grant’s popular majority was 309,588. Questions of reconstruction and finance were determined by this election, the people upholding the policy pursued by Congress since the close of the war.

THE TWENTY-SECOND ELECTION, 1872.

Grant was nominated by the Republican party for President, and Henry Wilson for Vice-President. The Democrats nominated Horace Greeley for President, and B. Gratz Brown for Vice-President. A second Democratic party had a ticket, nominating Chas. O’Connor and J. Q. Adams.

Grant’s popular majority was 762,991; and he received 218 electoral votes. 30 States gave him majorities, Pennsylvania reaching 137,000 majority in his favor. The whole popular vote at this election was 6,431,149. The colored people voted for the first time, under the amendment to the Constitution abolishing the distinction in citizenship in regard to color.

The elections are now held on the same day in all the States, by a general law. The number of States voting at the 22d election was thirty-seven. This election set a final seal on the policy of the Republican party, leaving the country free to turn its attention to other questions relating to its internal interests.

CHAPTER XLV.
CABINETS OF ALL THE PRESIDENTS.

For convenience of reference we insert a list of the members of the Cabinet in each administration from 1789 down to 1874, to which is added the name of the Vice-President of each presidential term, though he is not a member of the Cabinet.

FIRST ADMINISTRATION, FROM 1789 TO 1797—7 YEARS, 10 MONTHS, AND 4 DAYS.

George Washington, Va., President.

John Adams, Mass., Vice-President.

CABINET.

Thomas Jefferson, Va., Secretary of State.

Edmund Randolph, Va., " "

Timothy Pickering, Mass., " "

Alexander Hamilton, N. Y., Secretary of the Treasury.

Oliver Wolcott, Conn., " "

Timothy Pickering, Mass., Secretary of War.

James McHenry, Md., " "

Henry Knox, Mass., " "

SECOND ADMINISTRATION, 1797 TO 1801—4 YEARS.

John Adams, Mass., President.

Thomas Jefferson, Va., Vice-President.

CABINET.

Timothy Pickering, Mass., Secretary of State.

John Marshall, Va., " "

Oliver Wolcott, Ct., Secretary of the Treasury.

Samuel Dexter, Mass., " "

James McHenry, Md., Secretary of War.

Samuel Dexter, Mass., " "

Roger Griswold, " "

George Cabot, Mass., Secretary of the Navy.

Benjamin Stoddert, Md., " "

THIRD ADMINISTRATION, 1801 TO 1809—8 YEARS.

Thomas Jefferson, Va., President.

Aaron Burr, N. Y., Vice-President.

George Clinton, N. Y., ”

CABINET.

James Madison, Va., Secretary of State.

Samuel Dexter, Mass., Secretary of the Treasury.

Albert Gallatin, Pa., ” ”

Henry Dearborn, Mass., Secretary of War.

Benjamin Stoddert, Md., Secretary of the Navy.

Robert Smith, Md., ” ”

FOURTH ADMINISTRATION, 1809 TO 1817—8 YEARS.

James Madison, Va., President.

George Clinton, N. Y., Vice-President.

Elbridge Gerry, Mass., ”

CABINET.

Robert Smith, Md., Secretary of State.

James Monroe, Va., ” ”

Albert Gallatin, Pa., Secretary of the Treasury.

George W. Campbell, Tenn., ” ”

Alexander J. Dallas, Pa., ” ”

William Eustis, Mass., Secretary of War.

John Armstrong, N. Y., ” ”

James Monroe, Va., ” ”

William H. Crawford, Ga., ” ”

Paul Hamilton, S. C., Secretary of the Navy.

William Jones, Pa., ” ”

B. W. Crowninshield, Mass. ” ”

FIFTH ADMINISTRATION, 1817 TO 1825—8 YEARS.

James Monroe, Va., President.

Daniel D. Tompkins, N. Y., Vice-President.

CABINET.

John Q. Adams, Mass., Secretary of State.

William H. Crawford, Ga., Secretary of the Treasury.

Isaac Shelby, Ky., Secretary of War.

John C. Calhoun, S. C., ” ”

B. W. Crowninshield, Mass., Secretary of the Navy.

Smith Thompson, N. Y., ” ”

Samuel L. Southard, N. J., ” ”

SIXTH ADMINISTRATION, 1825 TO 1829—4 YEARS.

John Q. Adams, Mass., President.

John C. Calhoun, S. C., Vice-President.

CABINET.

Henry Clay, Ky., Secretary of State.

Richard Rush, Pa., Secretary of the Treasury.

James Barbour, Va., Secretary of War.

Peter B. Porter, N. Y., ” ”

Samuel L. Southard, N. J., Secretary of the Navy.

SEVENTH ADMINISTRATION, 1829 TO 1837—8 YEARS.

Andrew Jackson, Tenn., President.

John C. Calhoun, S. C., Vice-President.

Martin Van Buren, N. Y., ”

CABINET.

Martin Van Buren, N. Y., Secretary of State.

Edward Livingston, La., ” ”

Louis McLane, Del., ” ”

John Forsyth, Geo., ” ”

Samuel D. Ingham, Pa., Secretary of the Treasury.

Louis McLane, Del.,	”	”
William J. Duane, Pa.,	”	”
Roger B. Taney, Md.,	”	”
Levi Woodbury, N. H.,	”	”
John H. Eaton, Tenn., Secretary of War.		
Lewis Cass, Mich.,	”	”
Benjamin F. Butler, N. Y.,	”	”
John Branch, N. C., Secretary of the Navy.		
Levi Woodbury, N. H.,	”	”
Mahlon Dickerson, N. J.,	”	”

POSTMASTERS GENERAL,

And for the first time considered members of the Cabinet,

John McLean, O.
 William F. Barry, Ky.
 Amos Kendall, Ky.

EIGHTH ADMINISTRATION, 1837 TO 1841—4 YEARS.

Martin Van Buren, N. Y., President.
 Richard M. Johnson, Ky., Vice-President.

CABINET.

John Forsyth, Geo., Secretary of State.
 Levi Woodbury, N. H., Secretary of the Treasury.
 Joel R. Poinsett, S. C., Secretary of War.
 Mahlon Dickerson, N. J., Secretary of the Navy.
 James K. Paulding, N. Y., ” ”
 Amos Kendall, Ky., Postmaster General.
 John M. Niles, Ct., ” ”

NINTH ADMINISTRATION, MARCH 4, 1841, TO APRIL 4, 1841.

William Henry Harrison, O., President.
 John Tyler, Va., Vice-President.

CABINET.

Daniel Webster, Mass., Secretary of State.
Thomas Ewing, O., Secretary of the Treasury.
John Bell, Tenn., Secretary of War.
George E. Badger, N. C., Secretary of the Navy.
Gideon Granger, N. Y., Postmaster General.

TENTH ADMINISTRATION, APRIL 6, 1841, TO MARCH 4, 1845.

John Tyler, Va., (acting) President, by death of Harrison.

CABINET.

Daniel Webster, Mass., Secretary of State.
Abel P. Upshur, Va., " "
John C. Calhoun, S. C., " "
Thomas Ewing, O., Secretary of the Treasury.
Walter Forward, Pa., " "
John C. Spencer, N. Y., " "
George M. Bibb, Ky., " "
John Bell, Tenn., Secretary of War.
John C. Spencer, N. Y., " "
James M. Porter, Pa., " "
William Wilkins, Pa., " "
George E. Badger, N. C., Secretary of the Navy.
Abel P. Upshur, Va., " "
David Henshaw, Mass., " "
G. W. Gilmer, Va., " "
John Y. Mason, Va., " "
Hugh S. Legaré, S. C., Attorney-General.
John Nelson, Md., " "
Francis G. Granger, N. Y., Postmaster General.
Charles A. Wickliffe, Ky., " "

ELEVENTH ADMINISTRATION, MARCH 4, 1845, TO MARCH 4, 1849.—4 YEARS.

James K. Polk, Tenn., President.

George M. Dallas, Pa., Vice-President.

CABINET.

James Buchanan, Pa., Secretary of State.

Robert J. Walker, Miss., Secretary of the Treasury.

William L. Marcy, N. Y., Secretary of War.

George Bancroft, Mass., Secretary of the Navy.

John Y. Mason, Va., ” ”

Cave Johnson, Tenn., Postmaster General.

John Y. Mason, Va., Attorney General.

Nathan Clifford, Me., ” ”

Isaac Toucey, Ct., ” ”

TWELFTH ADMINISTRATION, MARCH 4, 1849, TO JULY 10, 1850—1 YEAR AND 4 MONTHS.

Zachary Taylor, La., President.

Millard Fillmore, N. Y., Vice-President.

CABINET.

John M. Clayton, Del., Secretary of State.

George W. Crawford, Geo., Secretary of War.

William M. Meredith, Pa., Secretary of the Treasury.

William B. Preston, Va., Secretary of the Navy.

Thomas Ewing, Ohio, Secretary of the Interior.

Jacob Collamer, Vt., Postmaster General.

Reverdy Johnson, Md., Attorney General.

THIRTEENTH ADMINISTRATION, JULY 10, 1850, TO MARCH 4, 1853.—2 YEARS AND 8 MONTHS.

Millard Fillmore, (acting) President by death of Taylor.

No Vice-President.

CABINET.

Daniel Webster, Mass., Secretary of State.

Thomas Corwin, Ohio, Secretary of the Treasury.

Charles M. Conrad, La., Secretary of War.
William A. Graham, N. C., Secretary of the Navy.
Alexander H. H. Stuart, Va., Secretary of the Interior.
Nathan K. Hall, N. Y., Postmaster General.
John J. Crittenden, Ky., Attorney General.

FOURTEENTH ADMINISTRATION, MARCH 4, 1853, TO MARCH 4, 1857.

Franklin Pierce, N. H., President.

William R. King, of Ala., who was elected Vice-President with Mr. Pierce, but died before he took his seat, and there was no Vice-President during Pierce's administration.

CABINET.

William L. Marcy, N. Y., Secretary of State.
James Guthrie, Ky., Secretary of the Treasury.
Jefferson Davis, Miss., Secretary of War.
J. C. Dobbin, N. C., Secretary of the Navy.
Robert McClelland, Mich., Secretary of the Interior.
James Campbell, Pa., Postmaster General.
Caleb Cushing, Mass., Attorney General.

FIFTEENTH ADMINISTRATION, MARCH 4, 1857, TO MARCH 4, 1861.

James Buchanan, Pa., President.
John C. Breckenridge, Vice-President.

CABINET.

Lewis Cass, Mich., and Jeremiah S. Black, Pa., Secretaries of State.
Howell Cobb, Ga., Philip F. Thomas, and John A. Dix, N. Y., Secretaries of the Treasury.
John B. Floyd, Va., and Joseph Holt, Ky., Secretaries of War.
Isaac Toucey, Ct., Secretary of the Navy.
Jacob Thompson, Miss., Secretary of the Interior.
Aaron V. Brown, Tenn., Joseph Holt, Ky., and Horatio King, Postmasters General.
Jeremiah S. Black, Pa., and Edwin M. Stanton, Pa., Attorneys General.

SIXTEENTH ADMINISTRATION, MARCH 4, 1861, TO APRIL 14, 1865,—4 YEARS, 1 MONTH, AND 10 DAYS.

Abraham Lincoln, Ill., President.

Hannibal Hamlin, Me., Vice-President, first term, and Andrew Johnson, Tenn., Vice-President, second term.

CABINET.

William H. Seward, N. Y., Secretary of State.

Salmon P. Chase, Ohio, William P. Fessenden, Me., Hugh McCulloch, Ind., Secretaries of the Treasury.

Simon Cameron, Pa., Edwin M. Stanton, Pa., Secretaries of War.

Gideon Welles, Conn., Secretary of the Navy.

John P. Usher, Ind., Secretary of the Interior.

Montgomery Blair, Md., William Dennison, O., Postmasters General.

Edward Bates, Mo., James Speed, Ky., Attorneys General.

SEVENTEENTH ADMINISTRATION, APRIL 15, 1865, TO MARCH 4, 1869.

Andrew Johnson, acting President.

No Vice-President.

CABINET.

William H. Seward, N. Y., Secretary of State.

Hugh McCulloch, Ind., Secretary of the Treasury.

Edwin M. Stanton, Pa., Ulysses S. Grant, Ill., and J. M. Schofield, Secretaries of War.

Gideon Welles, Conn., Secretary of the Navy.

James Harlan, Iowa, Orville H. Browning, Ill., Secretaries of the Interior.

James Speed, Ky., Henry Stanbery, Ohio, William M. Evarts, N. Y., Attorneys General.

William Dennison, Ohio, Alexander W. Randall, Wis., Postmasters General.

EIGHTEENTH ADMINISTRATION, MARCH 4, 1869, TO MARCH 4, 1873.

Ulysses S. Grant, Ill., President.

Schuyler Colfax, Ind., Vice-President.

CABINET.

Elihu B. Washburne, Ill., Secretary of State.

Hamilton Fish, N. Y., " "

George S. Boutwell, Mass., Secretary of the Treasury.

John A. Rawlins, Secretary of War.

William T. Sherman, ” ”

William W. Belknap, ” ”

Adolph E. Borie, Pa., Secretary of the Navy.

George M. Robeson, N. J., ” ”

Jacob D. Cox, Ohio, Secretary of the Interior.

Columbus Delano, O., ” ”

J. A. J. Creswell, Md., Postmaster General.

Eben Rockwood Hoar, Mass., Attorney General.

Amos T. Akerman, Ga., ” ”

NINETEENTH ADMINISTRATION, MARCH 4, 1873, TO MARCH 4, 1877.

Ulysses S. Grant, Ill., President.

Henry Wilson, Mass., Vice-President.

CABINET.

Hamilton Fish, N. Y., Secretary of State.

W. A. Richardson, Ill., Secretary of the Treasury.

B. H. Bristow, Ky., ” ”

W. W. Belknap, Iowa, Secretary of War.

George M. Robeson, N. J., Secretary of the Navy.

Columbus Delano, Ohio, Secretary of the Interior.

J. A. J. Creswell, Md., Postmaster General.

Marshall Jewell, Conn., ” ”

George H. Williams, Oregon, Attorney General.

Edward Pierrepont, N. Y., ” ”

UNITED STATES GOVERNMENT. 1875.

THE EXECUTIVE.

ULYSSES S. GRANT, of Illinois, <i>President of the United States</i>	Salary	\$50,000
HENRY WILSON, of Massachusetts, <i>Vice-President of the United States,</i>	”	10,000

THE CABINET.

HAMILTON FISH, of New York, <i>Secretary of State</i>	Salary	\$10,000
B. H. BRISTOW, of Kentucky, <i>Secretary of the Treasury</i>	"	10,000
WILLIAM W. BELKNAP, of Iowa, <i>Secretary of War</i>	"	10,000
GEORGE M. ROBESON, of New Jersey, <i>Secretary of the Navy</i>	"	10,000
COLUMBUS DELANO, of Ohio, <i>Secretary of the Interior</i>	"	10,000
EDWARD PIERREPONT, of New York, <i>Attorney-General</i>	"	10,000
MARSHALL JEWELL, of Connecticut, <i>Postmaster-General</i>	"	10,000

THE JUDICIARY.

SUPREME COURT OF THE UNITED STATES.

MORRISON R. WAITE,	<i>Chief Justice</i>	Salary	\$10,500
NATHAN CLIFFORD, of Me.,	<i>Associate Justice.</i>		
NOAH H. SWAYNE, of Ohio,	"		
SAMUEL F. MILLER, of Iowa,	"		
DAVID DAVIS, of Illinois,	"		
STEPHEN J. FIELD, of Cal.,	"		
WILLIAM M. STRONG, of Pa.,	"		
JOSEPH P. BRADLEY, of N.J.,	"		
WARD HUNT, of New York,	"		

Salary of Associates \$10,000. Court meets first Monday in December, at Washington.

MINISTERS TO FOREIGN COUNTRIES

COUNTRY.	CAPITAL.	MINISTERS.	SALARY.	APP'T'D.
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ENVOYS EXTRAORDINARY AND MINISTERS PLENIPOTENTIARY.

Austria	Vienna	Hon. Godlove S. Orth, Ind.	\$12,000	1868
Brazil	Rio Janeiro	James R. Partridge, Md.	12,000	1871
Chili	Santiago	Cornelius A. Logan, Kansas	10,000	1873
China	Pekin	Frederick F. Low, Cal.	12,000	1869
France	Paris	Elihu B. Washburne, Ill.	17,500	1869
Great Britain	London	Robert C. Schenck, Ohio	17,500	1870
Italy	Rome	George P. Marsh, Vt.	12,000	1861
Mexico	Mexico	John W. Foster, Indiana	12,000	1878
Peru	Lima	Francis Thomas, Md.	10,000	1872
Germany	Berlin	J. C. Bancroft Davis,	17,500	1867
Russia	St. Petersburg	George H. Boker, Pa.	17,500	1873
Spain	Madrid	Caleb Cushing, Mass.	12,000	1874

MINISTERS RESIDENT.

Argentine Republic	Buenos Ayres	Julius White, Ill.	7,500	1872
Belgium	Brussels	J. R. Jones, Ill.	7,500	1869
Bolivia	La Paz	John T. Croxton, Ky.	7,500	1872
Central Amer. States	San Jose	George Williamson, La.	10,000	1873
Denmark	Copenhagen	M. J. Cramer, Ky.	7,500	1870
Ecuador	Quito	E. Rumsey Wing, Ky.	7,500	1870
Greece	Athens	J. Meredith Read, Pa.	7,500	1873
Hawaiian Islands	Honolulu	Henry A. Pierce, Mass.	7,500	1869
Japan	Yeddo	John A. Bingham, Ohio	12,000	1873
Netherlands	Hague	Charles T. Gorham, Mich.	7,500	1870
Portugal	Lisbon	Benjamin Moran, Va.	7,500	1870
Sweden and Norway	Stockholm	C. C. Andrews, Minn.	7,500	1869
Switzerland	Berne	Horace Rublee, Wis.	7,500	1869
Turkey	Constantinople	Hon. Horace Maynard, Tenn.	7,500	1870
Uruguay & Paraguay	Montevideo	John L. Stevens, Me.	10,000	1871
U.S. of Colombia	Bogota	William L. Scruggs, Ga.	7,500	1873
Venezuela	Caracas	William A. Pile, Mo.	7,500	1871

MINISTERS RESIDENT AND CONSULS GENERAL.

Hayti	Port-au-Prince	E. D. Bassett, Pa.	7,500	1869
Liberia	Monrovia	J. Milton Turner, Mo.	4,000	1871

LEGISLATIVE DEPARTMENT.

CHAPTER XLVI. CONGRESS.

1. All government consists of three steps, series, or departments. It has a Rule by which its action is governed; and this embraces the general principles guiding all action, as well as the special rules of conduct in regard to limited classes of actions—the next step in the series is the action demanded to put its rules in actual force—to apply them—the third is, to determine the application of the rule when supposed to be violated, and the agreement of the special rule with the general principle. That is to say, government is divided into the Legislative, or law making power; the Executive, or law enforcing power; and the Judicial, or law discriminating, or judging, power.

2. In some governments all these are in the same hands, and this produces a Despotism. In others they are variously divided or mixed. In our country the separation between them is made as distinct as possible. The People are regarded as the source or fountain of Power. The Constitution represents, in its general Principles or Rules, the Will and purposes of the People;

and outside of the principles or regulations of this instrument no legislation is valid. The Constitution, emanating from the people, defines the boundary of all the Departments. Congress is the law-making power, enacting within the prescribed limits. The Judiciary takes care that these limits are not overstepped by legislative enactments, or executive action. The executive power, or the President, is the concentrated force, the vigorous Arm, of the government.

It is Congress, the Legislative Authority, that we have now to consider.

3. The National Congress is a body of men representing, and acting in the place of, the people. They are elected by the people to enact laws for the public good—to do all—and no more nor less—than the people would do, if it were possible for them to assemble in one great body and make the laws by which they wish to be governed.

It was constituted as wisely, to guard against the errors to which humanity is liable, as the experience of the past permitted to the thoughtful and patriotic statesmen who had charge of the organization of the government, when the successful termination of the War of Independence left the interests of a new Nation in their hands. England, from which they had mostly sprung, and which governed them until that period, was in possession of the freest and most enlightened government of those times, in the Old World; and they copied from her institutions and general structure what they judged adapted to our circumstances; prudently avoiding untried experiments, as far as possible.

4. Congress, like the English Parliament, consists of two Houses, one, the House of Representatives, (answering to the English House of Commons) being directly elected, for a short term, by the people, so as to express their views and interests as clearly as possible; the other, the Senate, (answering partially to the English House of Lords) appointed by the State Legislatures for a longer term, and from among statesmen of acknowledged ability and mature character and experience. This was expected to supply the necessary check to hasty and ill considered action, as they were required to mutually agree on all laws enacted.

5. Both are required to assemble, at the same time, in the Capitol at Washington, on the first Monday in December of each year. This is the regular session—extra sessions being occasionally called by the President when unusual circumstances demand it.

The members of the House of Representatives are elected for two years, the members of the Senate for six. As the first contains by far the largest number, a Congress is said to exist for two years, and the 20th Congress would be the one existing during the 40th and 41st years of the Republic, dating from the first Congress in 1789.

THE SENATE

6. Is composed of two persons, chosen by the legislature of each State, to represent it as a whole. It makes no difference whether the State be large or small, whether population counts by the million or the thousand. The States are sovereign in their sphere, and this constitution of the Senate keeps that fact in view, operates against undue centralization of power, and oppression of the smaller States by the larger.

7. A Senator must be thirty years of age, must have been nine years a citizen, (he may have been born in a foreign State, and a citizen of it previously,) and must be a citizen of the State—

(a voter in it) at the time of appointment. He is appointed for six years. The Senate is arranged in three classes so that the terms of one-third of the whole number shall expire every two years. They may be re-elected as often as the State legislatures choose. In one case, a Senator was continued thirty years in the Senate, without intermission. It has equal legislative power with the House of Representatives, except that it cannot originate laws for raising money, but it must approve and adopt all laws made by the House to render them valid. It has some powers that do not belong to the House. It confirms or rejects the nominations of the President, to office, and the treaties he makes with foreign powers, and is the only High Court of Impeachment.

8. When the Senate meets to consider the nominations of the President to office, it is called an Executive Session, and only a majority of votes is required to approve or confirm them; but when a treaty is to be ratified, or judgment given in a case of impeachment, a vote of two-thirds of the members present is required.

The Vice-President of the United States is the presiding officer of the Senate; but in case of a vacancy in that office, when he is acting as President, or if he be absent, it chooses a president from its own members.

THE HOUSE OF REPRESENTATIVES

9. Is composed of persons elected by the people in the various States, in proportion to the number of inhabitants. A Representative is elected for a term of two years. He must be twenty-five years of age, must have been a citizen of the United States seven years, and must be a citizen of the State he represents. This is often called the "Lower House," or popular branch of the National Legislature, as the Senate is sometimes called the "Upper House," because it is more select, and greater in dignity.

10. The House of Representatives has the sole power of presenting articles of Impeachment, and it alone can originate laws for raising revenue. A larger part of the laws are actually originated in it, because it is more numerous, its members better known to the people whom they immediately represent, and the people are better acquainted with them; and more petitions for particular laws are sent to them. Each representative is voted for by the people of his Congressional District alone, and not by all the people of each State; and he specially represents the views and wants of his District.

In each branch of Congress, when a Bill, or plan of a law, has been passed, it is sent to the other House, where it is referred to a Committee who examine it, and report on it to the House; by which it is discussed and adopted, amended, or rejected according to its judgment, and returned to the House in which it originated. By this method every law is meant to be subjected to a careful and cool investigation, its defects discovered and corrected, and its appropriateness clearly made manifest. Whoever will examine, with care and thoroughness the whole structure of our government will everywhere discover traces of the same wisdom and watchful foresight. He will see reason for more admiration of the prudent statesmanship of those who organized our institutions, and feel less surprised at the wonderful prosperity of the country, and at the strength of the government when subjected to the severest trial. Everything human is more or less imperfect, and we shall never be without subjects of complaint, and opportunities for improvement; but every American, well informed concerning his own and foreign governments, will discover many weighty reasons for self-congratulation and pride that our

first statesmen and people were so wise and prudent in laying the foundation, and that their successors have built on it with so much skill.

11. The presiding officer in the House of Representatives is called “The Speaker,” and is chosen by the House, at the beginning of each Congress. He serves during its two years of existence. The Clerk of the House and its minor officers are chosen by its members—and each House makes its own rules, or Parliamentary Laws. The term Congress properly covers both branches of the National Legislature; but, by custom, the members of the upper house are called Senators, and those of the lower Members of Congress, (commonly abbreviated to M. C.)

12. The Compensation of Members of Congress was originally fixed at eight dollars a day, but has, of late years, been several times changed. In 1856 it was made \$3,000 per session, or \$6,000 for a Congress of two years. In 1866 it was increased to \$5,000 per session, and, in 1873 to \$7,500 per session, the Speaker of the House, and the President of the Senate, by this last law, receiving \$10,000 per year; but it produced so much dissatisfaction among the people that the law was changed at the following session, and they now receive \$5,000 per annum.

13. The members of each house receive the same compensation. Mileage is allowed them in addition to the salary. This has been forty cents per mile, by the usual routes between the members residence and Washington. In 1865 it was reduced to twenty cents per mile, which still seems more adapted to the days of stages and slow traveling than to the modern improvements in rapidity and cheapness. They formerly enjoyed the franking privilege, so called, i. e.: they could send letters and documents through the mails free. This was abolished in 1873, and they now pay their postage, the same as other people.

14. The first Congress under the Constitution met in New York City, where two sessions were held, when it was removed to Philadelphia. It remained there until 1800, when Washington became the capital. The Capitol there, in which Congress meets, is one of the largest buildings in the world; and the offices for the different executive Departments are immense structures. In 1874 there were 37 States and therefore 74 Senators. The number of Representatives was fixed by a law of March, 1873, at 292, at which number it will remain until the next census in 1880.

CHAPTER XLVII.

CONGRESSIONAL DISTRICTS—CONGRESSMEN.

1. Each State is entitled to a number of Representatives in Congress proportioned to its inhabitants; but, instead of counting the whole number together, and leaving all the people in the State to vote for all the representatives of their State, it is divided into districts, each containing the prescribed number entitled to representation. The voters, then, in each district, select or nominate the men they wish to vote for—and thus they find it easy to send men they know and on whom they can rely to secure their interests. Besides, it is more convenient for them to meet and ascertain by consultation who would be most acceptable to the majority of those interested. Each Member of Congress, therefore, is chosen by a single district. The districting of States is done by their State Legislatures.

2. Sometimes a State is admitted into the Union before it has as many inhabitants as the law requires to one Congressman, in which case the law is relaxed, and they are permitted at least one Representative. Contiguous counties or towns are set apart in this way and numbered as 1st, 2nd, 3rd, &c., Congressional District. In large cities as many wards, lying together, as include the requisite number, are erected into Districts. In case the number of Congressmen allotted to a State is larger than the number of districts, those in excess are voted for by the State at large. They are arranged as soon as possible after every census, so that this does not often occur. In the Western States the number continually increases and changes must be made after each census. By this means the balance of power gradually follows the emigration from East to West.

CONGRESSMEN.

3. We have already remarked, in the chapter on Congress that, though the term Congressman properly applies to the members of both Houses, it is by common usage, confined to members of the lower House, those of the upper House being distinguished as Senators, so that the abbreviation M. C. (Member of Congress) is understood to specify a Representative.

4. These are the only members of any branch of the government who are chosen and elected directly by the people, and we may see herein the propriety of their having the control of all enactments for raising money, this being a point of vital interest to the people. The short term assigned them, (two years,) and their election by Districts, enables the people to interfere very soon if their purse strings are drawn too widely open—a very satisfactory reflection to the economical. Any citizen, whether native or foreign born, may become a Member of Congress, if he can obtain the consent of the voters in his district; but he must have been a citizen during the previous seven years. It is an office of dignity and responsibility, and the welfare of the country depends on the wisdom of the people in their choice.

CHAPTER XLVIII. **CONGRESSIONAL LIBRARY.**

1. In the capitol there is a large library, consisting of two parts; one part called the Congressional library, the other, the law library. The latter is made a part of the former by an act of Congress. Both are subject to the same laws and rules, and both are supported by appropriations made by Congress.

This institution, called as a whole, “The Congressional Library,” contains the works supposed to be useful to legislators, but is not confined to their use alone. Its use has been extended to the judges of the Supreme Court; to all the heads of departments; to the Attorney General; to all the members of the diplomatic corps, (foreign ministers); to the secretary of the Senate; to the clerk of the House of Representatives, to the chaplains of Congress, to all ex-Presidents, and to the solicitor of the Treasury.

2. It has a librarian, appointed by the President and Senate, who is allowed to appoint two assistants. No book or map is allowed to be taken out of the library by any person, except the

President, Vice-President, members of the Senate and of the House of Representatives.

People in general, who are interested to do so, may obtain information from the books and records when properly authorized, under such restrictions as the circumstances require.

3. Here are kept all the laws which have ever been enacted by Congress, together with a record of all its proceedings, the laws of all the different States, with many of those of foreign countries; also a large collection of books on promiscuous subjects, useful to Members of Congress and to those who have to administer the government. No where else can so complete a history of the acts and proceedings of the government be found, as in the Congressional library at Washington.

This institution dates back to the year 1800, when an act was passed making the first appropriation of \$5,000 for its establishment. The books purchased with this \$5,000, with those belonging to both Houses, were placed together, and thus this library was commenced.

CHAPTER XLIX.

COPYRIGHTS.

A Copyright is an exclusive privilege given to any citizen, or resident in the United States to print, publish, or sell any book, map, chart, engraving, or musical composition of which he or she is the author or proprietor. This right is given by the laws of Congress. No State can give it. The object is to encourage authors, and to compensate them for their labors, which they could not be sure of obtaining if any one might publish and sell their productions. A copyright conveys all the rights of ownership, and may be bought and sold like other property.

DIRECTIONS FOR SECURING COPYRIGHTS UNDER THE REVISED ACT OF CONGRESS, WHICH TOOK EFFECT JULY 8, 1870.

1. A printed copy of the title of the book, map, chart, dramatic or musical composition, engraving, cut, print, photograph, or a description of the painting, drawing, chromo, statue, statuary, or model or design for a work of the fine arts, for which copyright is desired, must be sent by mail, prepaid, addressed, "Librarian of Congress, Washington, D. C." This must be done before publication of the book or other article.

2. A fee of 50 cents, for recording the title of each book or other article, must be inclosed with the title as above, and 50 cents in addition (or \$1 in all) for each certificate of copyright under the seal of the Librarian of Congress, which will be transmitted by return mail.

3. Within ten days after publication of each book or other article, two complete copies of the best edition issued must be sent, to perfect the copyright, with the address

LIBRARIAN OF CONGRESS, WASHINGTON, D. C.

It is optional with those sending books and other articles to perfect copyright, to send them by mail or express; but, in either case, the charges are to be prepaid by the senders. Without the deposit of copies above required, the copyright is void, and a penalty of \$25 is incurred. No copy is required to be deposited elsewhere.

4. No copyright hereafter issued is valid unless notice is given by inserting in every copy published, on the title page or the page following, if it be a book; or, if a map, chart, musical composition, print, cut, engraving, photograph, painting, drawing, chromo, statue, statuary, or model or design intended to be perfected as a work of the fine arts, by inscribing upon some portion of the face or front thereof, or on the face of the substance on which the same is mounted, the following words, viz.: *Entered according to act of Congress, in the year ____*, by *____*, in the office of the Librarian of Congress, at Washington.

The law imposes a penalty of \$100 upon any person who has not obtained copyright who shall insert the notice "*Entered according to act of Congress,*" etc., or words of the same import, in or upon any book or other article.

5. Any author may reserve the right to translate or dramatize his own work. In this case notice should be given by printing the words, *Right of translation reserved*; or, *All rights reserved*, below the notice of copyright entry, and notifying the Librarian of Congress of such reservation, to be entered upon the record.

6. Each copyright secures the exclusive right of publishing the book or article copyrighted for a term of twenty-eight years. At the end of that time, the author or designer, or his widow or children, may secure a renewal for the further term of fourteen years, making forty-two years in all. Applications for renewal must be accompanied by explicit statement of ownership in the case of the author, or of relationship in the case of his heirs, and must state definitely the date and place of entry of the original copyright.

7. The time within which any work copyrighted may be issued from the press is not limited by any law or regulation, but depends upon the discretion of the proprietor. A copyright may be secured for a projected work as well as for a completed one.

8. Any copyright is assignable in law by any instrument of writing, but such assignment must be recorded in the office of the Librarian of Congress within sixty days from its date. The fee for this record is fifteen cents for every 100 words, and ten cents for every 100 words for a copy of the record of assignment.

9. A copy of the record (or duplicate certificate) of any copyright entry will be furnished under seal, at the rate of fifty cent each.

10. In the case of books published in more than one volume, if issued or sold separately, or of periodicals published in numbers, or of engravings, photographs, or other articles published with variations, a copyright is to be taken out for each volume of a book, or number of a periodical, or variety, as to size or inscription, of any other article.

11. To secure a copyright for a painting, statue, or model or design intended to be perfected as a work of the fine arts, so as to prevent infringement by copying, engraving, or vending such design, a definite description must accompany the application for copyright, and a photograph of the same, at least as large as "cabinet size," must be mailed to the Librarian of Congress within ten days from the completion of the work.

12. Every applicant for a copyright must state distinctly the name and residence of the claimant, and whether the right is claimed as author, designer, or proprietor. No affidavit or formal application is required.

Up to 1849 the Secretary of State had the care of issuing copyrights. It was then assigned to the newly created Department of the Interior, and so remained until 1870, when it was transferred to the Librarian of Congress.

CHAPTER L.

PRESIDING OFFICERS OF CONGRESS.

1. These are the President of the Senate and the Speaker of the House of Representatives. The latter is chosen by ballot of the Members of the House. As this position gives him considerable influence over the course of legislation the party having a majority in the House are careful to select one on whose sympathy with their views and aims they can rely. When there is nearly or quite a balance of parties, it becomes an important and difficult matter to adjust; and has, in some instances, required a long struggle to elect the Speaker. The result, in such a case, usually determines which shall control the general legislation of that Congress.

2. The President of the Senate, under ordinary circumstances, is determined by the Constitution, that instrument devolving the office on the Vice-President. It is the only active duty assigned him while the President is in condition to perform the duties belonging to that office. It seems to befit his relations, being the highest honorary place in the government below that of President, subjects him to no superior, and, from the part the Senate takes in the responsibilities of the President, makes him acquainted with the general conduct of affairs; which may be an important advantage to him should he be called to act as President. In the latter case, and in case of the decease, resignation, or disability of the Vice-President, the Senate proceeds to elect its President in the same way as in the House of Representatives, i. e.: by ballot, for a candidate among its own members.

3. Their duties are to open every sitting of their respective Houses by calling the members to order at the appointed time, on the appearance of a quorum to cause the journal of the preceding day to be read, to preserve order and decorum during the deliberations, to decide questions of order that may arise, (from which an appeal may be taken to the House, at the instance of any two members,) to formally state, and call for the votes on, a question to be decided, and to declare the result of the same after the vote has been taken.

This is the regular routine duty of a presiding officer. They, as the recognized Heads of their respective Houses, have the general oversight of its interests, and a general control of the conduct of its business. They examine the Journal to see that it is correct, may order the galleries and lobby to be cleared in case of any disturbance by spectators, and have general control over the unoccupied rooms in the capitol belonging to their respective Houses. They are required to sign all acts, addresses, and joint resolutions, and appoint the members of all committees whose appointment is not specially directed by the House to be otherwise made. In all cases of ballot the Speaker of the House must vote; but he is not required to vote in other cases unless there is a tie, (an equal number for and against,) when he must give the casting vote. The President of the Senate may vote only in case of a tie.

When the House of Representatives goes into Committee of the Whole, the Speaker leaves the chair, but appoints a chairman to preside for the time being; and when the President of the

United States is impeached before the Senate the Chief Justice of the Supreme Court presides.

4. Their duties are very distinctly defined in the rules adopted by each House for their guidance, but many opportunities for exerting great influence often arise, and many cases requiring great tact and judgment and an intimate knowledge of Parliamentary Law. They receive a much larger salary than ordinary Members of Congress.

The following are the names of all the Speakers of the House of Representatives. A list of Vice-Presidents is given in the chapter devoted to that officer.

Frederick A. Muhlenburgh, Penn.,	1789	to	1791
Jonathan Trumbull, Conn.,	1791	"	1793
Frederick A. Muhlenburgh, Penn.,	1793	"	1797
Jonathan Dayton, N. J.,	1797	"	1798
Theodore Sedgwick, Mass.,	1798	"	1801
Nathaniel Macon, N. C.,	1801	"	1807
Joseph B. Varnum, Mass.	1807	"	1811
Henry Clay, Ky.,	1811	"	1814
Langdon Cheeves, S. C.,	1814	"	1815
Henry Clay, Ky.,	1815	"	1820
John W. Taylor, N. Y.,	1820	"	1821
Philip P. Barbour, Va.,	1821	"	1823
Henry Clay, Ky.,	1823	"	1825
John W. Taylor, N. Y.,	1825	"	1827
Andrew Stevenson, Va.,	1827	"	1835
John Bell, Tenn.,	1835	"	1837
James K. Polk, Tenn.,	1837	"	1839
Robert M. T. Hunter, Va.,	1839	"	1841
John White, Ky.,	1841	"	1843
John W. Jones, Va.,	1843	"	1845
John W. Davis, Ind.,	1845	"	1847
Robert C. Winthrop, Mass.,	1847	"	1849
Howell Cobb, Ga.,	1849	"	1851
Lynn Boyd, Ky.,	1851	"	1856
Nathaniel P. Banks, Mass.,	1856	"	1858
James L. Orr, S. C.,	1858	"	1859
William Pennington, N. J.,	1860	"	1861
Galusha A. Grow, Penn.,	1861	"	1863
Schuyler Colfax, Ind.,	1864	"	1869
James G. Blaine, Me.,	1869	"	1873
"	1873	"	1875

CHAPTER LI.

SUBORDINATE OFFICERS OF CONGRESS.

1. The Secretary of the Senate and Clerk of the House of Representatives, are the officers next in rank in the two bodies forming Congress. They are appointed by vote of their respective Houses. They are not necessarily selected from among the members of the Senate or House, as is the custom in case of the presiding officers, but may be chosen by the members at will.

2. Their chief duties are in connection with a record or journal of the proceedings of their respective Houses. This is an official and correct account of all the transactions of each body, is examined by the presiding officer, and read before the members for criticism and approval. They cause this journal to be printed and a copy be delivered to each member at the commencement of every session of Congress, as also to the Executive and to each branch of the Legislature of every State. So also they arrange, cause to be printed, and distribute to the members all the current documents of each House that may be useful to them in the discharge of their duties, as often as the case requires. All contracts for furnishing anything required by Congress, or for any labor done for it, are made with, or approved by, the Clerk of the House and Secretary of the Senate.

3. They act also as treasurers of the special, or contingent funds of Congress, from which payments are made on their order, after the accounts, on which the order is based, are approved by the Committee of Accounts; and give bonds in a large sum for the faithful use of these funds, making a detailed report of all expenditures.

THE SERGEANT-AT-ARMS

4. Is a kind of police and executive officer, who aids or acts under the direction of the presiding officer in keeping order, and executes the commands of Congress. All arrests ordered by Congress are made by him or his deputies, and all legal processes served by him. He bears a mace as the symbol of his office when on duty. He keeps the accounts of the pay and mileage of the members of Congress, prepares checks, and draws and pays the money to them.

5. The other officers are a Doorkeeper—whose business it is to see that only the proper persons gain admission to the sessions of Congress, and watches over, and is responsible for, the furniture contained in the rooms of the capitol placed in his charge—and a postmaster, whose business it is to superintend a postoffice kept in the capitol for the accommodation of members of Congress. Various clerks, deputies, and messengers are employed under most of these officers, to aid them in the discharge of their duties.

CHAPTER LII.

CONGRESS AT WORK.

1. Congress is required by the Constitution to assemble on the first Monday in December of each year. It may, by a law duly made to that effect, change that time, but no permanent change

has ever been made. As soon after that time as a quorum of its members, which the Constitution declares shall be a majority of each House, has assembled each House proceeds to the election of officers (which, however, is done only every other year,) and the arrangement of its committees, and it is ready for work.

2. As soon as the organization is ascertained to be complete the other House of Congress and the President are informed of the fact, after which propositions, or bills as they are called, of new laws, or repeals or revisals of old ones are entertained. Of these there is never any lack. They are taken up in regular order, referred to an appropriate committee for examination, a report is in due time made by the committee, discussed at such length as the members see cause for, in a regular manner, and finally are voted on. Sometimes, if the members are not satisfied with the information presented on some point or points, they return them to the committee with instructions to investigate further, and make another report; sometimes they “lay them on the table,” that is, put them aside for future action; or they accept, amend, or change them to meet their views, and then accept or reject them altogether.

3. When a bill has reached a vote and been accepted by the House in which it originated, it is sent to the other House, by which it is taken up, referred to a committee, usually passing through substantially the same course and form of consideration as in the first case, laid aside, amended, accepted or rejected according to circumstances, and returned to the former House. If it is accepted by both they then send it to the President, who carefully considers it. If it meets his approbation, he signs and returns it to Congress, and it becomes the Law of the Land, and all to whom it refers are bound to obey it, it being the duty of the President to see that it is enforced. It is called an “Act of Congress,” because it is the proper exercise of its law making authority, and because all such laws are preceded by the clause, “Be it enacted by the Senate and House of Representatives of the United States of America, in Congress assembled.”

4. If the President does not think it a suitable law, and is unwilling to assume the responsibility of signing it, he returns it to Congress, with his reasons for not doing so. If Congress is not satisfied with these reasons it may take another vote on it, and if the members in its favor amount to two-thirds of each House, it becomes a law without the signature of the President. This power of the President to decline to sign a law of Congress is called his “Veto.” Sometimes it is carried over the veto, and sometimes it fails for lack of the requisite number in its favor.

5. The larger part of Congressional laws are passed in this way, which is the regular Parliamentary form; but sometimes its authority is expressed by a Resolution instead of a bill. This is a kind of informal way of passing a law, though it usually takes that form because of the peculiar character of the subject of the Resolution; as an amendment to the Constitution would be commenced by a resolution passed by both Houses; but, as Congress has not the sole power over that question, it requiring the concurrence of three fourths of the States, it is put in that form. When some demand is to be made by Congress on the President, or on various officers of the government, and in a variety of other cases, a resolution has the force of law, disobedience to which would involve a penalty. Many resolutions merely express the views of Congress, and are of force and value only on account of the respectability and dignity of the body expressing them. Some resolutions require to be passed in both Houses to acquire legal force, and are then called Concurrent Resolutions.

A bill must pass through the regular forms of printing, reference to a committee, report, placing in order on the records, and calling up at a proper time for consideration and decision. This is very proper to avoid hasty action before all the bearings of the case have been examined; but would consume too much time if required in every case. A resolution may be debated and decided at once, and it facilitates the progress of business, in the class of cases to which it is applicable.

6. The amount of business to be done by Congress is immense. Each branch of the executive department makes a yearly report to it, which must be considered and suitable laws passed; many hundreds of laws are commonly asked to be passed, repealed, or revised, by the President or the people; and all the interests of a great and growing country looked after. Those who are at a distance cannot always judge accurately of the difficulties it meets with in endeavoring to give satisfaction to all, nor of the different appearance which questions may present when closely examined and looked at on all sides, and Congress has a great deal of short-sighted criticism to bear.

Congressmen cannot always tell what is best more than other people, nor always find themselves able to do what they prefer, or judge to be best, and the account to which they are held is sometimes unjust; yet, on the whole they have always respected, and sought to serve, the views and interests of the people as a whole, and deserve much praise. The country has become prosperous and free under their legislation, and what the majority of the people clearly call for is always done for them.

7. The more carefully the people whom they represent watch them at work, and study the subjects they are required to legislate on, the less reason will they find for denunciation of them, and the more intelligently will they be able to lay out their work for them. They are the servants of the people, notwithstanding they seem to command and order, and are liable to be dismissed and turned out of place if they do not give satisfaction. They are men like ourselves, with interests, temptations, and weaknesses. We should aid them in their work, and assist them to walk uprightly by our intelligence and careful regard for reason and right. Our representatives will always, in character and conduct, present a fair statement of what we are ourselves. If we are just, honest, and high-minded they will not dare to be otherwise than faithful and true, and if we are intelligent we shall never put ignorant and vile men in office. So the Congress of the United States of America will always be a truly Representative Body.

CHAPTER LIII.

PUBLIC PRINTING.

1. Among the Institutions of the government is that heading this chapter. The amount of printing required to be done for Congress, the various branches of the government, and for the benefit of the people, is very great indeed. All the proceedings of both Houses of Congress as recorded by the secretaries are required to be printed under authority; since many copies are required by the members and for general purposes. All the laws are printed in great numbers for circulation among the many millions interested; and when a bill is proposed it requires to

be printed for the use of the several hundred members who need it for examination and study, although it often never becomes a law.

2. The President's Messages, and all the reports of heads of departments and bureaus; the reports and commissions of army and navy officers, of investigating committees, of various superintendents, agents, and government employees, and many other things are printed, sometimes only for use of Congress; sometimes for extensive circulation. Thus it is easily seen that the government printing is a heavy expense, and a very large part is indispensable; though many believe that a judicious selection of documents and a careful study as to the number of some of them printed might largely reduce the expense, without injury to the public welfare. We do not wish to pay for the printing of documents that are never read. It is a waste of the people's money; yet, we must not forget that it is of the utmost importance that the people should become intimately acquainted with all the affairs of the government. Perhaps Congress is sometimes wiser than the people, and that many documents are wisely printed, and unwisely left unread by those most interested. Economy and intelligence are to be equally regarded.

3. Until 1860, the government hired men to do this work, and a printer was employed by each house of Congress. But great complaints were made of the enormous expense to which the country was subjected in this item of its expenditures; and at the date named, Congress passed an act establishing a government printing office, to be under the direction of a superintendent of public printing. The sum of \$150,000 was appropriated for the purchase of necessary buildings, machinery, and materials for the purpose. By the provisions of the act it was made the superintendent's duty to overlook all the public printing and binding, not only of Congress, but of all the departments, and of the United States courts; to purchase all necessary materials and to employ all the workmen required. And that Congress may know how the establishment is conducted and at what expense, the superintendent is required to report to Congress at the commencement of every session, the work done, the number of hands employed, and the exact state and condition of the establishment. He is prohibited from paying more for work done in this office than is given for the same services in private printing offices in Washington.

4. The superintendent is also charged with the duty of procuring all blank books, maps, drawings, diagrams, views, and charts, which may be ordered by Congress, or by the heads of departments and bureaus. But the superintendent himself is not left to act always as he may think proper, for in many cases he must have the approval of the joint committee on printing of both Houses of Congress.

5. This is a very proper effort to curtail expenses. It remains to be seen how successful it may be. The constant watchful oversight of the Sovereign People can alone succeed in keeping all things in due order. When the representatives of the people become careless and wasteful the admonition of the people is never without its effect.

CHAPTER LIV.

THE SIGNAL SERVICE.

1. The present organization of this institution dates from the beginning of the civil war, and was originally purely military in its aims and purposes. It is still conducted by the War Department, and partly for its own purposes; but its value to agricultural and commercial interests is constantly becoming more apparent and more extensive, and will probably, in the end, so overshadow its military relations as to reduce them to a very subordinate place in importance. The civil uses of this service are based on the science of meteorology, which is largely occupied with weather changes, the origin, progress, and laws of Storms. Its value to the people consists in its accurate prediction of changes in the weather, and the warning it is able to give, sometimes many hours or even days in advance, of dangerous storms. Its estimate of weather probabilities, based on observations reported daily from prominent points covering the whole country, are published in all the daily papers, usually found accurate, and are of great value to certain classes of the people. When a storm threatens to endanger the safety of shipping a signal is displayed in the port to give warning, and much property and many lives are often saved. It makes an accurate and scientific study of the weather and all the laws controlling its changes, by a large corps of enlightened and trained observers, all whose facts, constantly reported, systematized, and studied by competent persons, are likely to produce, in time, a most important and useful body of knowledge on that subject.

2. The objects of the Signal Service require its officials to be connected with the United States army, to have the use of the Electric Telegraph, to be familiar with Meteorology, and skillful in the use of the scientific instruments employed in the study of atmospheric changes. By means of the telegraph, the army, though scattered over the whole country, and especially the frontiers and more inaccessible parts, may be almost instantaneously, and all at the same time, communicated with. It would be possible, by telegraphs, signals, and railroads, to concentrate the whole army from the numerous points where its fragments are located, from Maine to Texas, and the Atlantic to the Pacific, at one point in as short a time as it formerly took a body of soldiers to march a hundred miles.

3. It is a singularly striking instance of the vigor and effectiveness of control supplied by science, invention, and modern progress, by which our vast increase in numbers and in extent of territory are neutralized, the interests, sentiments, and habits of the people unified so that sectional jealousies and contests are made rare and slight, and the people of remote parts of the country made practically better acquainted with each other than formerly were the inhabitants of adjoining States.

4. Subordination and thoroughness of system are secured by its connection with the army, which probably also secures its advantages to the country at much less cost than would be the case were it an independent institution. The army is ambitious to be as useful as possible to the country. There is a Signal School of Instruction and Practice at Fort Whipple, in Va., which is to this Service what the Military and Naval Academies are to the Army and Navy. The most suitable persons are selected from the army or especially enlisted, and carefully schooled and tested through a sufficiently long period to render them fully competent for the delicate duties imposed on them.

5. There are about 90 Signal Stations, a few being located in Canada and the West Indies. The whole is under the direction of the Chief Signal Officer, who reports to the Secretary of War. There is a large and carefully arranged organization, under constant supervision by competent persons. Several Boards of Examination are employed in selecting suitable persons

for the different duties required in the Service, and in testing their advancement toward a thorough fitness for each position to be occupied.

The first or lowest grade is for the “field” signal service, requiring a knowledge of army signals and telegraphy—this being the original military value of the institution—the second grade includes those who are competent to act as assistants to observers in the scientific or meteorological part of the work; and the third (called Observer Sergeants) includes those who have so complete a knowledge of the scientific principles involved and of the use of the instruments employed as to be fitted to take charge of Stations of Observation, and make the constant and minute reports on which the conclusions of the Central Office are based.

The Stations are from time to time inspected, and the whole system kept in the most accurate order. Very much depends on the intelligence and unremitting attention of the Observers.

This is, probably, the beginning of a work of the greatest practical value to commerce and agriculture. It will continually expand and grow more exact and useful, and from its relations to the diffusion of important and useful knowledge we have placed it with

THE SMITHSONIAN INSTITUTION.

1. Though there are no doubt many minor failures to meet the wishes, and secure the interests of the people and some, perhaps, that are really serious—though in these the people bear a good share of the blame—the government has pursued an enlightened policy in respect to the encouragement of Science, and the diffusion of useful knowledge. What it can properly do in the interest of the whole people has been done. The Smithsonian Institution is not wholly a government establishment; but the official machinery by which it was at first set in motion, and is continued in operation, belongs to the government. The funds with which it was founded, were furnished by an individual, and he a foreigner. The history runs thus: A noble-hearted Englishman, whose name was John Smithson, residing in the city of London, bequeathed all his property to the United States of America, for the purpose of founding in Washington an establishment to be known as the “Smithsonian Institution,” for the purpose of increasing and diffusing knowledge among men. The United States accepted the bequest, and in 1846 passed an act for the purpose of carrying out the beneficent design of Mr. Smithson. This act created “an establishment,” as it is denominated in the act, by the name before stated. It might have been called a corporation, for it has perpetual succession, and many of the powers incident to a corporation.

2. By this act the President and Vice-President of the United States, the Secretary of State, the Secretary of the Treasury, the Secretary of War, the Secretary of the Navy, the Postmaster General, the Attorney General, and Chief Justice, the Commissioner of the Patent Office, and the Mayor of Washington—during the time they shall hold their respective offices, together with such other persons as they may elect honorary members—were constituted the establishment under the name of the Smithsonian Institution.

3. It is located at Washington, and is managed by a board of regents, composed of the Vice-President of the United States, the Chief Justice of the United States, the Mayor of Washington, three members of the Senate, and three members of the House of Representatives;

together with six other persons. The board choose their own officers, and report their proceedings to Congress at each session thereof.

4. In order to carry out Mr. Smithson's noble design of founding this institution, rooms have been prepared for the reception of all objects of art, natural history, plants, and geological and mineralogical specimens which now or hereafter may belong to the United States, and such as may hereafter be obtained. These are classified and arranged so as to facilitate their examination and study. A vast collection has already been obtained and deposited in the institution, and it is constantly increasing by donations, by the researches and industry of its professors, and by exchanges made with kindred institutions at home and abroad. These are open to the examination of the public, and offer an opportunity to students and others to extend their scientific knowledge. This, together with the reports of its professors, of experiments and new discoveries, make it indeed an institution "for the increase and diffusion of knowledge among men."

CHAPTER LV.

REPORTS.

1. Congress being the law-making power of the government, it is evident that, to know precisely what laws it is important to enact, to change, or to repeal, they should be kept well informed of all that is done by government officials, and the precise condition of every branch of the public service. The President's Messages are of the nature of reports made by the Chief Executive to the legislative body for its information and guidance. So it is enacted that the Secretaries of State, Treasury, War, Navy, Interior, and Postmaster General, together with the commissioners of the different bureaus, and boards attached to these departments, shall annually report to Congress. Heads of departments report directly to Congress. So do many of the commissioners who are at the head of bureaus. Boards report to the heads of departments to which they are attached.

2. In this way Congress is kept advised of whatever is done in every department, bureau, or board, to which any of the public business is entrusted. These reports not only furnish the law-making power with such information as it needs, but serve as a check to any official misconduct. The annual reports of the Secretaries of the Treasury, War, and Navy, together with that of the Postmaster General, are State papers which rank in importance next to the annual message of the President. To them the people look for a detailed account of the state and condition of those great departments over which these Secretaries preside, and which so materially affect the pecuniary and other great interests of the nation.

3. The foregoing remarks upon reports, throw light upon the movements of the machinery by which the government is operated, and show how officials are held responsible to the superior power.

In this connection we may notice another kind of reports, which come from another source. After each Congress has convened and organized, the President of the Senate and the Speaker of the House appoint what are denominated the standing committees of each of these bodies.

When bills are presented to be passed into laws, or petitions are sent in, they are always referred to the appropriate committee, which examines them and reports to the body (of the Senate or House) their conclusions upon the merits or demerits, propriety or impropriety, of granting the petition, or of passing the bill under consideration.

These reports generally govern the action of Congress when they come to vote upon the passage of the law. But that is not always the case; the body of either House may think differently from its committee, and act contrary to its recommendations.

CHAPTER LVI.

IMPEACHMENT.

1. In the second article, section four, of the Constitution, these words are found: “The President, Vice-President, and all civil officers of the United States, shall be removed from office on impeachment for, and conviction of treason, bribery, or other high crimes and misdemeanors.”

2. Impeachment is a procedure against office holders only, for the purpose of removing them from office. It inflicts no other punishment; but the guilty party may afterwards be prosecuted for his crime in a court of law, and punished in such manner as the law directs.

3. The House of Representatives alone can present charges looking to the trial of an officer of the government by impeachment. Its action, in such a case, is similar to that of a Grand Jury. It charges that the official has violated the law and should be tried, in order, if guilty, to be removed from office. It appoints a committee to conduct the prosecution before the Senate, to which these charges are presented.

4. The Senate alone has the power to try the accused party. When trying a case of impeachment it acts as a court, and from its decision there is no appeal. The President cannot pardon a criminal who has been impeached. When the President of the United States is tried, the Chief Justice of the Supreme Court presides, but in no other case. No person can be convicted in a trial of impeachment, unless two-thirds of the Senate concur in finding the accused guilty of the alleged offense.

THE JUDICIAL DEPARTMENT.

This is the third Branch of the government, as determined by the Constitution, and is of supreme importance and dignity. Its sphere is to interpret the Constitution, to decide controversies, to try offenders and to pronounce sentence on them, to enforce rights, and to keep the whole organism of the government in proper place and proportion. It is attached to the governmental machinery as a Regulator. Without it the other Departments must be the judges of the extent of their own powers; the Constitution would be practically inoperative to prevent

inharmonious or mischievous legislation; and the executive would possess the authority to try as well as punish offenses.

The officers of this Department of the government are expected to be men of much weight and dignity of character, of wide legal culture, and are selected for, and continued in, office under such circumstances as to guarantee, to a fair extent, the requisite distinction and impartiality.

All this we shall see as we proceed to analyze its different branches. These consist of the United States Supreme Court, the Circuit Courts, the District Courts, and the Court of Claims. The local courts in the District of Columbia, and the Territorial Courts, though similar to the State Judiciaries, are connected, by their relations to the General Government, with this Department.

The importance of this branch of the government has become more evident as time has passed, and the conflict of parties has put the whole to test. The acrimonious party spirit of our early post revolutionary history, which continued into Monroe's administration, was, in great part, the result of a want of due confidence in, and respect for, the judiciary. Experience showed that our people were law abiding, and that the Legislative and Executive powers, equally with the people, were willing to submit to the official interpretation of the Constitution, and all ready to join hands to maintain its authority.

CHAPTER LVII.

THE SUPREME COURT.

1. This is the highest tribunal in the United States. If the whole government be figuratively regarded as an arch this is the "Key Stone of the Arch" without which the whole structure would crumble and fall. In all cases of dispute as to the meaning of the Constitution and the range of powers it confers, or implies, it has sovereign power to decide; and from that decision there is no appeal. Its declaration, as to the meaning and application of the Constitution and the body of statutes enacted under it, becomes the law of the land. It is the great bulwark against tyrannical use of power, and conflicting enactments, whether by National or State Legislatures.

2. This court has one Chief Justice and nine Associate Justices, all appointed by the President, by and with the advice and consent of the Senate. They are appointed for life, or during good behavior; they may be impeached for bribery or other high crimes, and then removed from office. They may also resign; but if they conduct themselves properly and choose to retain their offices, there is no power by which they can be removed, except the power of death. The Constitution itself makes this provision, in order that the judges may be removed as far as possible from the influence of party politics. It is therefore expected that their decisions will not be biased by party or political considerations; and it may not be amiss to say that the provisions for keeping the judges of the United States Courts in office for life, meets with almost universal approbation; and has caused many to hope that the States would alter their Constitutions and adopt the same plan; believing it to be the surest way of preserving a pure and independent Judiciary, on which depend the rights and liberties of every citizen of the commonwealth.

3. This court holds but one term in a year, which commences on the first Monday of December, and sits until it has disposed of the business before it. Its sessions are always held at Washington, the capital of the nation; there it has access to the Congressional and Law Libraries, and to all the departments and records of the government when necessary.

There is a class of causes which may be commenced in this court. In these cases it has original jurisdiction. They are such as affect ambassadors, other public ministers, and consuls; and those in which a State shall be a party. In other cases it has only appellate jurisdiction. The greater part of its business is to hear and determine appeals from inferior courts, mainly from the United States Circuit Courts; and in some instances from the highest State courts.

4. It has not only original, but exclusive jurisdiction in causes where a State is a party, and when proceedings or suits against ambassadors, or other public ministers or their servants, are instituted. Its power to try appeals from lower courts, called *appellate* jurisdiction, gives it the position of the highest court in the nation.

It has power also to restrain or to prohibit proceedings in the United States District Courts, when acting as courts of Admiralty; or in cases of maritime jurisdiction. The judges of this court hold the Circuit Courts, and allot themselves among the judicial circuits.

The practice and rules of procedure in this court are very similar to those of the Courts of Chancery and King's Bench, in England. Issues of fact are tried by jury, the same as in other courts.

OFFICERS OF THE COURT.

5. The officers of this tribunal are the Judges, the Attorney General, a clerk, a crier, and a reporter. The three last named are appointed by the court. It is the duty of the Marshal of the District of Columbia to attend this court, and to serve process issuing from it.

An Attorney or Counsellor-at-Law, to be admitted to practice in this court, must have been a practitioner in the Supreme Court of the State where he lives.

6. The following are the names of all the Chief Justices of the Supreme Court of the United States, from its establishment to the present time; with the dates of their appointments, and the States from which they were appointed:

John Jay, N. Y., Sept. 26, 1789.

John Rutledge, S. C., July 1, 1795.

William Cushing, Mass., Jan. 27, 1796.

Oliver Ellsworth, Ct., March 4, 1796.

John Jay, N. Y., Dec. 19, 1800.

John Marshall, Va., Jan. 27, 1801.

Roger B. Taney, Md., Dec. 28, 1835.

Salmon P. Chase, O., Dec. 1864.

Morrison R. Waite, O., Jan. 21, 1874.

7. The following are the names of the Associate Justices with the dates of their appointment and the States from which they were appointed:

John Rutledge, S. C., 1789.
William Cushing, Mass., 1789.
Robert H. Harrison, Md., 1789.
James Wilson, Pa., 1789.
John Blair, Va., 1789.
James Iredell, N. C., 1790.
Thomas Johnson, Md., 1791.
William Paterson, N. J., 1793.
Samuel Chase, Md., 1796.
Bushrod Washington, Va., 1798.
Alfred Moore, N. C., 1799.
William Johnson, S. C., 1804.
Brockholst Livingston, N. Y., 1807.
Thomas Todd, Va., 1807.
Gabriel Duvall, Md., 1811.
Joseph Story, Mass., 1811.
Smith Thompson, N. Y., 1823.
Robert Trimble, Ky., 1823.
John McLean, O., 1829.
Henry Baldwin, Pa., 1830.
James M. Wayne, Ga., 1835.
Philip P. Barbour, Va., 1836.
John McKinley, Ala., 1837.
John Catron, Tenn., 1837.
Peter V. Daniel, Va., 1841.
Samuel Nelson, N. Y., 1845.
Levi Woodbury, N. H., 1845.
Robert C. Grier, Pa., 1846.
Benjamin R. Curtis, Mass., 1851.
James A. Campbell, Ala., 1853.

Nathan Clifford, Me., 1858.
Noah H. Swayne, O., 1862.
Samuel F. Miller, Iowa, 1862.
Stephen J. Field, Cal.
David Davis, Ill., 1862.
William Strong, Pa., 1870.
Joseph P. Bradley, N. J., 1870.
Ward Hunt, N. Y., 1873.

CHAPTER LVIII.

CIRCUIT COURTS.

The next in dignity, power, and jurisdiction are the United States Circuit Courts. While the Supreme Court is always held in Washington, these are held in every State at such times and places as special law of Congress directs. These are often changed so as to accommodate both the people in the States and the judges of the Court. As now arranged, the whole Union is divided into nine circuits, each circuit comprising several States, according to the size and population of the States. The places are arranged with reference to convenience of access by all the people in the circuit.

This Court is similar in design and authority to the Supreme Court; indeed it is but a branch of it; the same officers presiding, and the same class of questions being adjudicated by it, viz.: those involving Constitutional Law; and this authority, so important to uniformity of interpretation of constitutional provisions, and to the enjoyment of rights guaranteed by that instrument to citizens of all the States, is made pervading—is carried within the reach of all.

2. The Circuit Courts are held by the Judges of the Supreme Court, who allot the circuits among themselves, and then travel each through his own circuit, until he has visited and held a session in every State which lies within it. A Judge of the Supreme Court is the presiding and supreme magistrate in every Circuit Court, but the Judge of the District Court of the district in which the Circuit is held, sits with the Judge of the Supreme Court, as Associate Justice.

JURISDICTION.

3. These Courts have both original and appellate jurisdiction. Causes may be appealed from the District Courts to the Circuit. They also have concurrent jurisdiction with the State courts, where the matter in dispute exceeds the sum of \$500, and the United States are plaintiffs; or where an alien is a party, or where the suit is between citizens of different States. They have exclusive jurisdiction in all cases of crimes against the United States, except where the law especially confers the power on other courts. It extends to all cases under the revenue laws of the United States.

4. There is also a certain class of cases (too tedious to be described here in detail,) which may be removed from State and from District Courts, into these courts, and be tried and determined in the same manner as if they had been commenced here.

The officers of Circuit Courts are, first, the Judges; second, the District Attorney of the district in which the court is held; third, the Marshal of the district; and fourth, a Clerk, who is appointed by the court.

5. It may be interesting, and perhaps useful to know how the different circuits are formed, and what States lie in each. They have been from time to time increased in number, as the number of the States increased. In some cases States have been at first placed in one circuit, and afterwards detached and placed in another.

6. By the Acts of 1862 and 1863, the circuits were arranged as follows:

First Circuit—Rhode Island, Massachusetts, Maine and New Hampshire (by Act of 1820).

Second Circuit—Vermont, Connecticut, New York (Act of 1837).

Third Circuit—New Jersey and Pennsylvania.

Fourth Circuit—Maryland, Virginia, Delaware and North Carolina.

Fifth Circuit—South Carolina, Georgia, Alabama, Mississippi and Florida.

Sixth Circuit—Louisiana, Texas, Arkansas, Kentucky and Tennessee.

Seventh Circuit—Ohio and Indiana.

Eighth Circuit—Michigan and Illinois.

Ninth Circuit—Wisconsin, Missouri, Kansas, Iowa and Minnesota.

Tenth Circuit—California and Oregon.

But in 1866 this arrangement of the circuits was again changed; and this was done, we suppose, to make the circuits approximate nearer to the number of Associate Justices, as reduced from nine to six by the same act; for, it was then enacted that hereafter there should be no more Associate Justices of the Supreme Court appointed, until they were reduced (by death or resignation), to six.

7. The circuits by this last act were reduced to nine, and were arranged as follows:

First and Second Circuits to remain as before.

The Third was made up of the States of Pennsylvania, New Jersey and Delaware.

The Fourth, of Maryland, Virginia, West Virginia, North Carolina and South Carolina.

The Fifth, of Georgia, Florida, Alabama, Mississippi, Louisiana and Texas.

The Sixth, of Ohio, Michigan, Kentucky and Tennessee.

The Seventh, of Indiana, Illinois and Wisconsin.

The Eighth, of Minnesota, Iowa, Missouri, Kansas and Arkansas.

The Ninth, of California, Oregon and Nevada.

We have inserted both of these circuit arrangements, because one new State (Nebraska), has been admitted since the act passed. Others will soon come in, and very probably the old number of circuits and judges will be restored.

CHAPTER LIX.

DISTRICT COURTS.

1. We come now to the lowest grade of United States courts, excepting the local courts in the District of Columbia, and the Territorial Courts. A United States District Court is held by a District Judge in every district. Every State constitutes at least one district, several of the larger States are divided into two, and some into three. There are at the present time fifty-nine Judicial Districts, and consequently the same number of District Judges, District Attorneys, District Clerks and Marshals. The Judges, Attorneys and Marshals are all appointed by the President and Senate; the Clerks by the respective courts.

TERMS.

2. By the law of 1789 every District Judge was required to hold four sessions a year, at such times and in such places as Congress directed. This is done to this day in a great majority of the States; but by later laws, in some of the districts only two or three sessions a year are required.

JURISDICTION.

3. These courts have exclusive jurisdiction in all admiralty and maritime causes. These relate to maritime contracts, and to crimes against the laws of the United States, committed on the sea and on navigable lakes and rivers. It embraces in this country all contracts respecting vessels and navigation; such as chartering, repairing, and fitting them out, seamen's wages, &c. They have in some cases concurrent jurisdiction with the Circuit Courts, as in cases of piracy, and exclusive cognizance of cases where seizures are made for a violation of the revenue laws, or laws relating to imports and navigation; and causes against consuls and vice consuls where the amount claimed does not exceed \$100. In short, they have concurrent jurisdiction with the Circuit Courts, of all crimes against the laws of the United States, the punishment of which is not capital. The trial of issues of fact in all causes except civil causes of admiralty and maritime jurisdiction, must be by jury.

4. Appeals are taken from these courts to the Circuit Courts. The judges are appointed like those of the Supreme Court, for life, or during good behavior, and receive various amounts as salary, some more and some less, according to the amount of services to be performed in their respective districts.

5. When vessels are captured in time of war, either by the public armed vessels or by private armed ships, the facts and circumstances of the capture must be brought before a United States Circuit or District Court for adjudication; when the vessel and cargo are either condemned as a

prize, or restored to their owners. When either of these courts adjudicate such cases, it is called a Prize Court.

We give the number of Judicial Districts in each State as they now exist, and the total number in all the States. They are as follows:

Alabama, 3.
Arkansas, 2.
California, 2.
Connecticut, 1.
Mississippi, 2.
Missouri, 2.
Nevada, 1.
New Hampshire, 1.
Delaware, 1.
Florida, 2.
Georgia, 2.
Illinois, 2.
Indiana, 1.
Iowa, 1.
Kansas, 1.
Kentucky, 1.
Louisiana, 2.
Maine, 1.
Maryland, 1.
Massachusetts, 1.
Michigan, 2.
Minnesota, 1.
District of Columbia, 1.
New Jersey, 1.
New York, 3.
North Carolina, 3.
Nebraska, 1.
Ohio, 2.
Oregon, 1.

Pennsylvania, 2.
Rhode Island, 1.
South Carolina, 2.
Tennessee, 3.
Texas, 2.
Vermont, 1.
Virginia, 1.
West Virginia, 1.
Wisconsin, 1.
Total, 59.

CHAPTER LX.

ADMIRALTY AND MARITIME JURISDICTION.

In ancient times—and long before this government existed—civilized and commercial nations had codes or laws which related especially to transactions upon the sea. Those respecting ships of war and warlike operations at sea were called the laws of Admiralty; those respecting vessels engaged in commercial affairs were called Maritime laws; and the courts empowered with jurisdiction to hear and try causes, or to take any judicial proceedings in those cases, were styled Courts of Admiralty and Maritime Jurisdiction. These laws, in many respects, differed so materially from the laws relating to affairs on land, that the authority and power to take proceedings in and adjudicate upon them was conferred upon a particular class of courts. Hence we see the origin of the names of such tribunals.

In this country the United States District Courts have been designated by the laws as the courts which shall have original and exclusive authority to adjudicate this class of causes; yet an appeal from the District to the Circuit Courts may be taken.

KIND OF CASES.

The word Maritime designates that which relates to the sea. Yet, in the United States, cases which come within Admiralty and Maritime jurisdiction are not restricted to the sea, or to transactions relating to business or crimes done on it, but are made to embrace those which occur on navigable lakes and rivers, and include seizures made for the violation of the laws of impost, navigation, or trade, suits for the recovery of seamen's wages, contracts for building, repairing or fitting out vessels, and, briefly, all contracts where the subject-matter relates to the navigation of the sea. The District Courts have Admiralty and Maritime jurisdiction in all these cases, without regard to the amount claimed, and in criminal as well as in civil suits.

The foregoing remarks show the workings of our judicial system, as it applies to business done, and crimes committed upon the high seas.

CHAPTER LXI.

COURT OF CLAIMS.

1. This court was established by act of Congress in 1855. The law reads thus: “A court shall be established to be called the Court of Claims, to consist of three judges, to be appointed by the President and Senate, and to hold their offices during good behavior; and the said court shall hear and determine all claims founded upon any law of Congress, or upon any regulation of an Executive department, or upon any contract express or implied, with the government of the United States; which may be suggested to it by a petition filed therein; and also all claims which may be referred to said court by either house of Congress.”

2. On the third of March, 1863, the jurisdiction of this court was enlarged, and two additional judges appointed (making five), from the whole number of which the President was authorized to appoint one a Chief Justice for said court.

3. The mode of commencing proceeding before this tribunal is by petition; in which the claimant must fully set forth his claim, how it arose, its amount, and the parties interested therein. After the case has been heard and determined, the court reports to Congress what its decision is, and if favorable to the claimant, a bill is passed for his relief.

4. It holds one session a year, in Washington, commencing on the first Monday in October, and continuing as long as the business before it requires. It not only tries claims against the government, but by its enlarged jurisdiction, conferred in 1863, it also tries counter claims and set-offs which the United States may have against the claimant. Appeals are taken from the Court of Claims to the Supreme Court of the United States, when the amount in controversy exceeds \$3,000.

5. Before the establishment of this court, the only remedy persons having claims upon the government had, was by petitioning to Congress for relief; which experience proved to be a long, tedious, and expensive mode of obtaining their dues. The petition now goes to this court, where it is heard and adjudicated in the same form, and by the same rules of procedure which are observed in other courts; for Congress has conferred upon it all the powers commonly possessed by other courts of law. It also has a seal.

6. It has greatly facilitated the settlement of claims against the government, and has relieved Congress of a great amount of labor, which was urgently pressed upon it at every session.

7. In addition to the five judges, it has a Solicitor, an Assistant Solicitor, and a Deputy Solicitor, all of whom are appointed by the President and Senate; and are officers of the court, whose duty it is faithfully to defend the United States in all matters and claims before this court.

A bailiff, a clerk, a crier and messenger, all of whom are appointed by the court, make up the remaining officials.

The claimants stand in the relation of plaintiffs, and the government in that of defendant.

CHAPTER LXII.

DISTRICT ATTORNEYS.

These officers are next in rank to the Judges of the Circuit and District Courts with which their duties are connected. Their relation to the government, in the class of cases that come before those courts, is the same as that of the Attorney General in the Supreme Court. They are its official legal counselors in all cases involving the interests of the General Government before the Circuit and District Courts in their several districts. They are appointed in the same manner; that is, nominated by the President, and confirmed by the Senate. It is their duty “to prosecute in such district all delinquents for crimes and offences cognizable under the authority of the United States, and all civil actions in which the United States shall be concerned.” They are his clients, and he must enforce their rights, and defend them, in the same manner that any attorney protects and defends his client in any of the State courts. In case of necessity, he may appoint a substitute to act in his place. All fees over and above what he is allowed as compensation for his services, he must report and pay into the United States Treasury.

3. He must defend collectors of the customs and other revenue officers in his district, when suits are brought against them in their official capacity, and must report to the Solicitor of the Treasury the number of suits determined and pending in his district. And when prize cases have been determined, or are pending in the District Court of his district, he must report the state and condition of each case to the Secretary of the Navy.

District Attorneys are appointed for four years, but may be removed at the pleasure of the President. Their compensation depends on the amount of business to be done in their respective districts. When important ports of entry, such as New York or Boston, lie in their districts, their duties are very numerous, and they receive a corresponding compensation.

CHAPTER LXIII.

UNITED STATES MARSHALS.

1. United States Marshals are the ministerial officers of the United States courts. Their duties and responsibilities are very similar, and nearly identical with the duties and responsibilities of sheriffs in the courts of the several States. They are appointed by the President and Senate, for a term of four years. They appoint their own deputies, and their compensation consists of fees instead of a salary; and depends entirely upon the amount of business they have to transact. There is a Marshal in every Judicial District in the United States, and there are fifty-nine of these districts in all. Every State forms at least one district, while the larger States are divided into two or three.

2. A District Court is held in every district; and it is the Marshal’s duty to attend the sittings of these courts, and also those of the United States Circuit Courts, when they happen to sit in his district. The Marshal for the District of Columbia must also attend the sittings of the Supreme Court, and execute its precepts. We have said that they are the ministerial officers of the United States courts; for it is their duty to serve all writs and precepts emanating from

them, whether of a civil or criminal character; and to execute the judgments and decrees of these tribunals; and for this purpose they are authorized by law, (if necessary,) to command such assistance as they may need in the execution of their duties. Before they enter upon the duties of their office, they must be bound to the United States for the faithful performance of them, and must solemnly swear to do them, without malice or partiality; and that they will take only lawful fees. They are also held answerable for the delivery to their successors of all prisoners who may be in their custody at the time of their removal, or at the expiration of their term of office.

3. They also have the custody of all vessels and goods seized by any officer of the revenue. It is their duty also to summon, and to pay jurors and witnesses in behalf of any prisoner to be tried for a capital offense, under the laws of the United States. In the remarks made under the head "Census," we stated that it was made the duty of the Marshals to superintend and direct the enumeration of the people; and to collect such statistical facts as the law requires. This they do through deputies, whom they appoint for that special purpose.

The United States Marshal is also required, on the first day of January and July of each year, to make a return of all the fees and emoluments of his office to the Secretary of the Interior; and if they amount to more than \$6,000 per year, he must pay the surplus into the Treasury of the United States.

CHAPTER LXIV.

GRAND JURY.

1. By turning to the fifth article of the amendments to the Constitution, you will find these words: "No person shall be held to answer for a capital or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury; except in cases arising in the land or naval forces, or in the militia, when in actual service, in time of war or public danger." This constitutional provision makes a Grand Jury a very important agent or instrumentality in the execution of the laws, and also a safeguard of the liberties and rights of the people. It secures every person from the expense and disgrace of a trial for infamous crimes, unless a Grand Jury of his countrymen shall find upon inquiry and investigation, that there are good reasons for believing that the person so charged has committed the alleged offense.

2. This provision not only protects those who are charged with these crimes against the laws of the United States, but those also who may be charged with such offenses against the laws of any State; for no State can arrest and try any person for a capital or infamous crime without these preliminary proceedings of a Grand Jury; and should it do so, the United States Supreme Court would set its laws aside, as contrary to the Constitution of the United States. Here we see that the government is just as careful to protect its citizens from injustice by hasty judicial proceedings as it is to punish them after a fair and impartial trial.

3. A Grand Jury, when called to take cognizance of violations of the laws of the United States, to find indictments against those who are charged with them, is summoned by a judge of a United States court in the circuit or district where the alleged crime has been perpetrated; and it must take notice of all crimes against the laws of the United States, which may be

brought to its knowledge, within the circuit or district in which it sits. Hence, if ordered by a Circuit Judge, its powers extend over all those States which lie in that circuit. But when ordered by a District Judge, its powers extend only to that district in which it sits, and a district never embraces more than one State, and in many cases a State is divided into two or three districts.

4. This shows us how much more extensive is the jurisdiction of a Grand Jury, when acting under the laws of the United States, than when acting under State laws. In the former it extends generally all over a State, and sometimes over several States. But in the latter it is confined to the county in which it sits.

GRAND AND PETIT JURIES.

A Grand Jury never acts but in criminal cases. A Petit Jury acts in both criminal and civil cases. The finding or conclusion arrived at by a Grand Jury is called a presentment, or an indictment. The finding of a Petit Jury is called its verdict.

5. Second, a Grand Jury sits alone (not in the presence of the court), and deliberates upon such matters of a criminal character as it possesses knowledge of, or which may be brought to its notice by the court or by other persons; and when it finds that great evils exist, and wrongs have been perpetrated, it presents them to the court, and calls the attention of the law officers to them; which is equivalent to a recommendation that judicial proceedings should be commenced to abate the evil, or to punish the wrong-doer. This is called a presentment of the Grand Jury.

And when they find, upon such evidence as they have, that a great crime has been perpetrated, or that they have good reason so to believe, and that it has been perpetrated by some person specified, they report their finding or conclusion to the Court. This is called an indictment by the Grand Jury; after which the person so charged is arrested, if at large, and can be found, and is either imprisoned or held to bail for his appearance at court to stand trial.

6. A Grand Jury never tries a case. It only says to the court by its presentment or indictment, that the case presented, or the person indicted, ought to be brought before the court, and tried for the alleged wrong or crime.

A Petit Jury sits with the court, hears the pleadings and arguments of counsel on both sides, listens to the evidence of witnesses; and then hears the charge of the judge, as to the law applicable to the case; after which they withdraw and deliberate alone upon the case, and if they agree in a criminal case, their verdict is "Guilty," or "Not Guilty;" if in a civil suit, they say how much one party is indebted (if any), to the other.

7. The object aimed at in that article of the Constitution which stands at the head of this chapter, is to protect persons from false charges of crime, and hasty adjudication of such charges; for it substantially amounts to a declaration that no person shall be punished for a capital or infamous crime, unless one jury, before trial, shall, upon information and belief, charge him with the offense; and another, after trial, shall find him guilty of the alleged crime.

The above remarks are as applicable to Grand and Petit Juries, acting under State, as those which act under the United States laws.

CHAPTER LXV.

LOCAL GOVERNMENTS.

1. The Supreme power in the United States is lodged in the general government, with its three branches: Legislative, Executive, and Judicial. The authority of this government, however, is restricted to the powers expressly conferred on it by the Constitution; all other power being reserved to the States, or the people. The States also are sovereign in their own limits, over all questions not expressly assigned to the General Government. Instead of conflict of authority there is true harmony. The people elect the members of both the classes of legislators and executives, and both are equally employed in attending to the interests of the people confided to their care; the first to General, the second to Local interests. All the members and officers of each are the servants of the Sovereign People.

2. As soon as the general government was organized under the Constitution, there arose two parties. One wished to render the General Government prominent in order to secure concentration of strength and vigor of action; the other desired to exalt the State governments in the fear that the general government might prove ambitious of too much power, and disregard the welfare of the people. As in almost all party platforms, both these seemed to take too narrow a view. Washington was held to sympathize more with the first, Jefferson was the acknowledged leader of the second. Together they secured a very fair mingling of both these principles in the administration and general policy of the country. A strict adherence to the meaning and spirit of the Constitution would not seem to give special favor to either, or allow a conflict of interests.

3. The Supreme Court, or the Judiciary, is the regulating, or reconciling element, which the Constitution set over the whole to see that no undue or improper action should defeat its purposes, and that no collisions of authority should occur. Its decision is final, it being the last resort in cases of appeal; and, as the only final and authoritative interpreter of Constitutional Law, it may revise the action of all other branches of both general and local government, and put them in harmony.

4. It is plain that the authors of the Constitution intended to fuse the separate elements, or States, into one whole, where general matters were concerned; and to leave those elements perfectly free and absolute control of all questions involving only their separate and local concerns. The *People*, and their welfare, are the aim and end of both organizations. The possession of power for ambitious ends by general, State, or municipal organizations, or by individuals, was apparently as foreign to the thought of the whole Constitutional convention of 1787 as it seems always to have been to the mind of Washington. That great man was the leader of clear-sighted and pure-minded statesmen, and whatever weaknesses and faults have existed at any time (and there have always been an abundance of them, as there were in the times of Washington) among political leaders, it must be allowed that the Fathers had worthy sons who knew how to work correctly the problems left them by their predecessors. A single question proved quite unmanageable to the sons, as it had before to the fathers, and had to be settled by an appeal to arms; but it demonstrated the strength of the people and the ability of our institutions to withstand the severest shocks.

5. The original States adopted the Constitution after deliberate study, and all the States since admitted virtually do the same. Their general structure in their legislative, executive, and judicial arrangements is substantially the same as that of the General Government. The State Legislatures consist of two Houses, chosen in different ways, and for different terms; the relations between them being similar to those of Congress. Every State has a governor, answering to the President of the United States, who is the executive officer of the State government. The courts in all are organized on the same principle as the Supreme Court of the general government. Although there are small variations from the model, in various States, they do not affect the general resemblance; and, due allowance being made for the different subjects to be treated, the analysis of the general, or of any of State governments, will give a sufficiently correct view of all.

6. A State cannot make treaties with a foreign power, nor declare war against it. It cannot raise a revenue by duties on imports, nor control the postal service, or matters involving the interests of other States. It has therefore no Department for Foreign relations, its Secretary of State dealing only with State affairs. It has no Department of War, or Navy, and no Postmaster General. The Governor's signature is necessary to the validity of laws passed by the two branches of the legislature, and in most of the States he has a veto power similar to that of the President. He has an executive council answering to the Cabinet. The courts are more numerous than those of the general government, to meet the wants of all classes of the people; ranging from a Supreme or Constitutional court, whose office it is to interpret and apply the constitution of the State; through all grades, of Common Pleas, Circuit, District, Police, and Recorder's courts down to neighborhood courts held by Justices of the Peace, or Aldermen. There are various others in different States for special purposes.

7. States are subdivided for purposes of local government into counties and towns; and these into smaller portions for educational and other purposes.

Thus the whole is like an extensive system of machinery, wheel being fitted to wheel. From the lowest to the highest the people of each local division have entire control over the subjects in which they only are interested; and there is very little opportunity for the exercise of arbitrary power. Executive officers may be changed by election, or impeachment, if they do not give satisfaction, or prove unfaithful; and as many securities as it is possible to devise are provided against abuses, or, if a majority in any State (or the United States) believe that an improvement can be made, there are constitutional and legal methods for securing it.

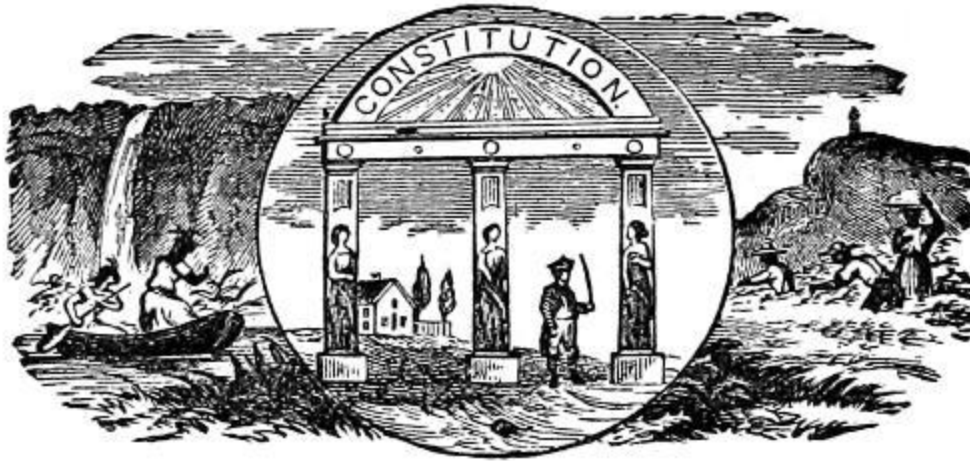
Thus our country is insured against serious discontents for which no remedy is at hand; and from the revolutions and internal disturbances that interrupt the progress, and destroy the resources of so many other countries. It is a government *of, for, and by* the people. The value of any institution or office in the United States, from the school district and director to State legislature, Congress, governor, or President, is determined by the relation it bears to the Public Welfare; and when it ceases to be useful there are, as there ought to be, legal means for laying it aside.

CHAPTER LXVI.

INDIVIDUAL STATES.

The original thirteen States are here arranged in the order of size—the one having the largest area being placed first. They are ranked according to their *present* area, the claims of some of them at first extending to territory since erected into States; and one, Virginia, has been divided. Her former area would have ranked her as first.

The States that follow are placed in the order of their admission into the Union.



GEORGIA.

This State was the last settled of the original thirteen. It was founded in the benevolent anxiety of Gen. James Oglethorpe and others to relieve the distresses of the poor in England. Those imprisoned for debt were sent out in large numbers. With this object was connected the desire to prevent the extension of the Spanish settlements in Florida, and the English government favored the undertaking. This class of settlers proving indolent and improvident, a better was attracted by laying off many towns, in the best locations, and offering fifty acres free to every actual settler. Many Scotch and German emigrants improved this opportunity, to the great advantage of the colony.

Gen. Oglethorpe imitated the wise conduct of Penn, in his treaties with the Indians.

He commenced his settlement at Savannah, in 1733, cheerfully assisted by the South Carolinians, who were pleased to see a barrier placed between them and the Spaniards. Oglethorpe had several conflicts with them, and succeeded in protecting his colony. The introduction of slaves was at first forbidden; but, as the colony seemed to fall behind the neighboring provinces for want of laborers, the restriction was removed. In 1752 the company gave up their charter, and Georgia became a royal province. It took part with the other colonies in resistance to the aggressions of the English ministry, at the Revolutionary period, and its condition during the war was similar to that of North and South Carolina. Being new, and on the frontier, it was not conspicuous.

The northern part of the State is uneven, the central and lower sections productive under a wise and careful culture, but easily exhausted under bad management. She has long navigable rivers, and her manufacturing and commercial capabilities are excellent. The system of slave-labor and the misfortunes of the Civil War have embarrassed her progress, but the energy of her people is fast raising her to her proper rank as a flourishing State.

Georgia has an area of 52,009 square miles, equal to 33,285,760 acres. She was named after George II.

The population in 1870 was 1,200,000, which entitles her to nine Representatives in Congress.

The State lies in the fifth judicial circuit, and has two judicial districts; also four ports of entry—Savannah, Brunswick, St. Mary's, and Hardwicke; and two ports of delivery—Augusta and Sunbury.

The capital is Atlanta. The State election is held on the first Tuesday in August. The Legislature meets on the second Wednesday in January.

The enacting clause of her laws is: "Be it enacted by the Senate and House of Representatives of the State of Georgia in General Assembly met; and it is hereby enacted by the authority of the same."

UNITED STATES SENATORS.

William Few,	from	1789	to	1793.
James Gunn,	"	1789	"	1801.
James Jackson,	"	{	1793	" 1795.
			1801	" 1806.
George Walton,	"		1795	" 1796.
Josiah Tatnall,	"		1796	" 1799.
A. Baldwin,	"	{	1796	" 1805.
			1805	" 1807.
J. Melledge,	"		1806	" 1809.
George Jones,	"		1807	" 1807.
W. H. Crawford,	"		1807	" 1813.
Charles Tait,	"	{	1809	" 1813.
			1813	" 1819.

W. B. Bullock,	”	1813	”	1813.
William W. Bibb,	”	1813	”	1816.
G. M. Troup,	”	{ 1815	”	1818.
		1829	”	1833.
John Forsyth,	”	{ 1819	”	1819.
		1829	”	1837.
F. Walker,	”	1819	”	1821.
John Elliot,	”	1819	”	1821.
Nicholas Ware,	”	1821	”	1823.
T. W. Cobb,	”	1824	”	1828.
O. H. Prince,	”	1828	”	1829.
John P. King,	”	1833	”	1837.
W. Lumpkin,	”	1837	”	1841.
J. M. Berrien,	”	{ 1825	”	1829.
		1841	”	1851.
A. Cuthbert,	”	1837	”	1843.
W. T. Colquitt,	”	1843	”	1849.
H. V. Johnson,	”	1848	”	1849.
W. C. Dawson,	”	1849	”	1855.
Robert Toombs,	”	1853	”	1861.
R. M. Charleton,	”	1852	”	1853.
Alfred Iverson,	”	1855	”	1861.
Joshua Hill,	”	1871	”	1873.
Foster Blodgett,	”	1871	”	1871.
Thomas M. Norwood,	”	1871	”	1877.
John B. Gordon,	”	1873	”	1879.



NORTH CAROLINA.

A Florentine navigator, sent out by Francis I., King of France, first published an account of this region. He visited it in 1524. Ribault, a French protestant, sent out with a colony by Admiral Coligni, in 1564, named the southern coast Carolina, from Charles IX. (in Latin Carolus), King of France. The colony was not permanent. In 1585 Sir Walter Raleigh made an unsuccessful attempt to establish a colony on Roanoke Island. Some fifty years later the colonists of Virginia made a settlement in the limits of this State, called Albemarle. This territory was patented to a company of noblemen. The first colony, founded before this patent was issued, and enjoying entire liberty, became an asylum from the religious intolerance, almost universal at that time. In 1666 they numbered 800.

Many French Huguenots, attracted by this freedom and the mild climate and extreme fertility of the soil, settled here and added greatly to the industrious and virtuous elements of the population. The revolutionary struggle was singularly bitter and bloody in this State and South Carolina, from the number and sanguinary character of the royalists and tories, and from the partisan or guerrilla mode of warfare adopted.

The majority were, however, determined and valiant patriots, and rendered it impossible for the British to establish a firm control over this part of the country.

The eastern surface is low, the western mountainous, and much of the midland is covered with pine forests which produce large quantities of

turpentine. The soil is favorable to agriculture. Yams, rice, and cotton, in addition to the cereals, are raised with success. The fisheries in Albemarle Sound are an important source of wealth. A large number of minerals are found in the State. Like most of the Southern States, its resources have been but partially developed.

This is one of the original thirteen States, and has an area of 50,704 square miles, equal to 32,450,560 acres, with a population of 1,069,614 (one-third colored), and entitled to eight members of Congress. North Carolina, by act of 1866, was located in the fourth judicial circuit, which is composed of Maryland, Virginia, West Virginia, North Carolina, and South Carolina; and is divided into three judicial districts, called the districts of Albemarle, Pamlico, and Cape Fear. The collection districts, and the ports of entry and delivery in this State have been so often modified and discontinued that there is some uncertainty as to the number. There are, as near as we can determine, ten districts, ten ports of entry, and nine ports of delivery.

Raleigh is the capital. There the Legislature meets biennially on the first Monday in November. The State election is held on the first Thursday in August.

The enacting clause of the laws is as follows: "Be it enacted by the General Assembly of the State of North Carolina, and it is hereby enacted by the authority of the same."

UNITED STATES SENATORS.

Samuel Johnson,	from	1789	to	1793.
Benjamin Hawkins,	"	1789	"	1795.
Alexander Martin,	"	1793	"	1799.
Timothy Bloodworth,	"	1795	"	1801.
Jesse Franklin	"	{ 1799	"	1805.
		1807	"	1813.
David Stone,	"	1801	"	1813.
James Turner,	"	1805	"	1816.
Nathaniel Macon,	"	1815	"	1828.
James Iredell,	"	1828	"	1831.

Montford Stokes,	”	1816	”	1823.
John Branch,	”	1823	”	1829.
Bedford Brown,	”	1829	”	1840.
Willie P. Mangum,	”	1840	”	1853.
	{	1831	”	1836.
Robert Strange,	”	1836	”	1840.
William A. Graham,	”	1840	”	1843.
William H. Haywood,	”	1843	”	1846.
George E. Badger,	”	1846	”	1855.
Asa Biggs,	”	1854	”	1858.
David S. Reed,	”	1855	”	1859.
Thomas L. Clingman,	”	1858	”	1861.
Thomas Bragg,	”	1859	”	1861.
Joseph C. Abbott,	”	1868	”	1871.
John Pool,	”	1868	”	1873.
Zebulon B. Vance,	”	1871	”	1873.
Matthew W. Ransom,	”	—	”	1877.
Augustus S. Merriman,	”	1873	”	1879.



NEW YORK.

The “Empire State” is very fortunately situated for the promotion of all the interests that form the basis of prosperity of a Nation. It contains the commercial metropolis of the country, which is connected, by its great

navigable river, the Hudson, and the Erie canal, with the fertile interior and the commerce of the chain of great lakes in the west; while Lakes Ontario and Champlain furnish the means of profitable trade with Canada on the north. As its natural commercial facilities are unrivaled, so also, every auxiliary that can be furnished by art is employed to develop its resources and to attract trade and manufactures.

Its river was discovered by the celebrated navigator, Captain Henry Hudson, in 1609, and he gave it his name. He was employed, at this time by the Dutch, who claimed and settled the territory in the following year. They established posts on Manhattan Island, where New York now stands, and at Albany—calling the country in general, New Netherlands. They held it until 1644; laying claim, also, to Connecticut and New Jersey. Their rule was despotic, and when the Duke of York, afterward James II., King of England, sent a squadron to enforce English claims to it, the inhabitants declined to resist, and it became an English colony without a struggle. The city and colony received the name of New York and continued henceforth in English hands. Its position favored a steady-growth in population and wealth; and it took an active part in the Revolution. Its central position made it the pivot of the war, the leading struggles taking place in or near it. New York city was held by the British during most of the war, but the skillful strategy and watchfulness of Washington, and the valor of his officers and troops preserved the river in American hands throughout. It ratified the Constitution July 26th, 1788, and soon outstripped every State in all things, except education, no State being able to compare with Massachusetts in that respect.

New York is the largest and richest city in the Union. The State abounds in salt and mineral springs, and its central and western parts are unexcelled for agriculture; while the eastern, more mountainous, but nearer to markets, and more abundant in water power, is equally favorable to grazing and manufactures.

Its area is 47,000 square miles, equal to 30,080,000 acres. The population in 1870 was larger than that of any other State, being officially stated at 4,364,411. It has thirty-three Members of Congress.

It forms part of the second judicial circuit, and has three judicial districts; eleven ports of entry, and fourteen ports of delivery, with the privilege of

eight or nine others if the President of the United States deems them necessary.

The Capital is Albany. The State elections are held on the Tuesday after the first Monday in November, and the Legislature meets on the first Tuesday in January in each year. The style of the enacting clause is: "Be it enacted by the people of the State of New York represented in Senate and Assembly."

UNITED STATES SENATORS.

Philip Schuyler,	from	1789	to	1791.
Rufus King,	"	{ 1789	"	1796.
		1813	"	1825.
Aaron Burr,	"	1791	"	1797.
John Lawrence,	"	1796	"	1800.
John S. Hobart,	"	1798	"	1798.
William North,	"	1798	"	1798.
James Watson,	"	1798	Resigned.	
Gouverneur Morris,	"	1800	"	1803.
John Armstrong,	"	{ 1800	"	1802.
		1803	"	1804.
DeWitt Clinton,	"	1802	"	1803.
Theodore Bailey,	"	1803	"	1804.
Samuel L. Mitchell,	"	1804	"	1809.
John Smith,	"	1804	"	1813.
Obadiah German,	"	1809	"	1815.
Nathan Sanford,	"	{ 1815	"	1821.
		1825	"	1831.
Martin Van Buren,	"	1821	"	1829.
Charles Dudley,	"	1829	"	1833.
William L. Marcy,	"	1831	"	1833.
Nath'l P. Tallmadge,	"	1833	"	1844.
Silas Wright,	"	1833	"	1844.
Daniel S. Dickinson,	"	1844	"	1851.
Henry A. Foster,	"	1844	"	1845.

John A. Dix,	”	1845	”	1849.
William H. Seward,	”	1849	”	1861.
Hamilton Fish,	”	1851	”	1857.
Preston King,	”	1857	”	1863.
Ira Harris,	”	1861	”	1867.
Edwin D. Morgan,	”	1863	”	1869.
Roscoe Conkling,	”	1867	”	1879.
Reuben E. Fenton,	”	1869	”	1875.
Francis Kernan,	”	1875	”	1881.



PENNSYLVANIA.

“The Keystone State” has been eminently fortunate in three various ways. Its founder, William Penn, happily united benevolence and high political wisdom, with a thrifty and prudent economy, and possessed sufficient influence and tact to infuse his colony with his own qualities to a large degree, and the advantages acquired in the beginning, have shed their favoring influence on all its future, to the present time.

Penn, as proprietor of his province, had almost kingly power; yet, as a law-giver, he acknowledged the liberties of the people, and accustomed them to many of the forms of self-government afterward incorporated into the Constitution of the United States. His just and conciliatory conduct toward the Indians, and the exemption of Pennsylvania from barbarous Indian wars, in consequence, proves the utility of the practice of unvarying justice and kindness toward them; and stands in strong and significant

contrast with the opposite course, so often pursued, and with results so distressing.

A colony was established by Penn in the southeastern part of the State, in the year 1682. The government was conducted by a governor, a council of three, and a House of Delegates, chosen by the people. The largest religious liberty was allowed, and punishment of crime was mitigated from the severity, customary in those times, to something like the mildness now practiced among us.

The colony enjoyed seventy years of enlightened government, and prospered greatly. A large immigration of hardy and thrifty Germans and Swedes spread over the State and supplied, in Revolutionary times, the “fighting material” which the religious principles of the Quakers forbade them to furnish.

The second eminent advantage of the State, was in its central position, the facilities furnished to commerce and trade by the Delaware river on its eastern boundary, and the Ohio, on the west, connecting it with the valley of the Mississippi.

The third superiority, later in development in some of its features, relates to its wealth of resources. Lying midway between north and south, its climate is temperate and mild. Its soil on the eastern border and along the valleys of its numerous rivers is of great fertility; while its inexhaustible coal deposits are far more valuable in promoting the steady growth of her citizens in wealth than mines of gold. Iron, copper, zinc, marble and slate are, apparently, inexhaustible. Her railroads and canals furnish a suitable means for the development of these resources, and the transportation for all her valuable commodities to profitable markets, and prove her later citizens to have inherited the economic wisdom and thrift of the founder of their State.

Pennsylvania valiantly bore the share in the struggles and sacrifices of the Revolution to which her position, her wealth and numbers, called her. Philadelphia—“The City of Brotherly Love” (the name means this,) was the first capital of the Republic. It was there that the Declaration of Independence was originated and signed.

Its area is 46,000 square miles, equal to 29,440,000 acres. The population in 1870 was 3,515,993, entitling her to twenty-seven Representatives in Congress.

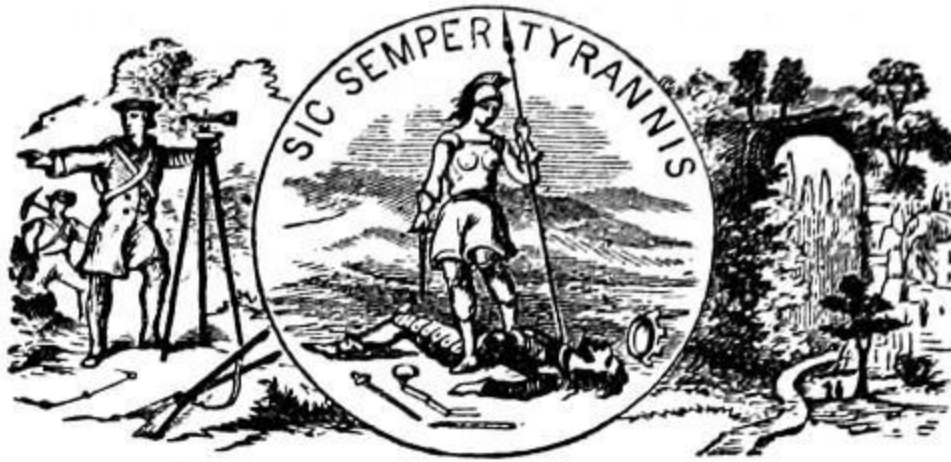
It is in the third judicial circuit; and forms two judicial districts. There are two ports of entry, and two collection districts. Harrisburg is the capital; the Legislature assembling on the first Tuesday in January, the State elections being held the second Tuesday in October.

The enacting clause of her laws is: "Be it enacted by the Senate and House of Representatives of the Commonwealth of Pennsylvania in General Assembly met; and it is hereby enacted by the authority of the same."

UNITED STATES SENATORS.

William Maclay,	from	1789	to	1791.
Robert Morris,	"	1789	"	1795.
Albert Gallatin,	"	1793	"	1794.
James Ross,	"	1794	"	1803.
William Bingham,	"	1795	"	1801.
Peter Muhlenburgh,	"	1801	"	1802.
Samuel Maclay,	"	1803	"	1808.
Michael Leib,	"	1808	"	1814.
Andrew Gregg,	"	1807	"	1813.
Abner Lacock,	"	1813	"	1819.
Jonathan Roberts,	"	1814	"	1821.
Walter Lawrie,	"	1819	"	1825.
William Findlay,	"	1821	"	1827.
William Marks,	"	1825	"	1831.
Isaac D. Barnard,	"	1827	"	1831.
George M. Dallas,	"	1831	"	1833.
William Wilkins,	"	1831	"	1834.
Samuel McKean,	"	1833	"	1839.
James Buchanan,	"	1834	"	1845.
Daniel Sturgeon,	"	{	1839	" 1851.
			1845	" 1849.

Simon Cameron,	"	{ 1857	" 1861.
		1867	" 1873.
James Cooper,	"	1849	" 1855.
Charles E. Buckalew,	"	1863	" 1869.
Richard Broadhead,	"	1851	" 1857.
William Bigler,	"	1855	" 1861.
Edgar Cowan,	"	1861	" 1867.
David Wilmot,	"	1861	" 1863.
John Scott,	"	1869	" 1875.
Simon Cameron,	"	1873	" 1879.
Wm. A. Wallace,	"	1875	" 1881.



VIRGINIA.

“The Old Dominion,” as this State has been called, in familiar style, has certain high claims to such a distinctive appellation. It was the colony in which the first permanent settlement was made, and for fourteen years before the perils of the wilderness were encountered by the Puritan Fathers of New England, it confronted famine and Indian hostility. Its people were quite different in character from those of most of the other colonies. While many were from the lowest classes, a goodly number of the gentry and nobility of England were transplanted to this colony. Some were men of wealth, character and influence; and the hereditary value of that element became conspicuous when revolutionary times came, and the colonial government, which had been from the first, kept closely dependent on the

royal will, being set aside, permitted to this class a free field of action. None were more eloquent, more zealous, more valiant or wise, during the “time that tried men’s souls.” The talents, patriotism, and wisdom of Washington, Jefferson, Madison, Monroe, and many others almost equally useful, attest the quality of the Virginian stock of patriots, and shed honor on their native State.

It was settled in 1607, at Jamestown. The infant colony was long exposed to danger of destruction by Indian hostility; but, favored by circumstances, grew up to strength, and became a protection to others. An almost constant struggle was maintained with the royal governors, who were disposed to encroach on their liberties. Notwithstanding the number of decayed and worthless *gentlemen*, and the dregs of the English populace, who entered as components into her population, as a whole, they proved worthy of the republic they so largely helped to rear. Their best blood was spilled in its cause, and their material support was never withheld in time of need.

This State is much varied in surface. In the southeast it is low and level; in the west and northwest mountainous, with numerous large streams and fertile vallies, and a charming climate. Its mineral wealth of coal, iron and salt is very great; its water power for manufacturing purposes unsurpassed; and its commercial position everything to be desired. None of these advantages have been more than partially improved; and the future of the State is destined to be exceedingly brilliant. Old and nourishing colleges testify to the interest taken in education; and railroads and other means of internal development have already prepared the way for its greatness. She exports tobacco, flour, oysters, and cotton, and her agricultural wealth is constantly improving.

Virginia is also one of the original thirteen States, and had an area previous to the division in 1862, of 61,352 square miles, equal to 39,265,280 acres; but after West Virginia was set off as a separate State, there were but 38,352 square miles left of this once great State, equal to 24,545,280 acres.

The population in 1860 amounted to 1,596,318, which entitles the State to nine Members of Congress. By the division the number of Representatives was cut down to nine; the new State receiving three out of the twelve. Population in 1870, 1,224,830.

Virginia lies in the fourth judicial circuit, which by the act of 1866, was composed of this State, Maryland, West Virginia, and North Carolina and South Carolina. There were two judicial districts in this State, anterior to the division; the Eastern and the Western. There is now but one.

There were also twelve collection districts in this State, and twelve ports of entry, all of which remain the same as they were before West Virginia was cut off, for they were all located on the Atlantic coast, or on the bays and rivers running into the Atlantic Ocean; there are also ten ports of delivery.

Richmond is the capital. The State election is held on the Tuesday after the first Monday in November. The Legislature meets on the first Monday in December.

The enacting clause of the laws of Virginia is: "Be it enacted by the General Assembly."

UNITED STATES SENATORS.

William Grayson,	from	1789	to	1790.
Richard H. Lee,	"	1789	"	1792.
John Walker,	"	1790	"	1790.
James Monroe,	"	{	1790	" 1794.
			1792	" 1794.
John Taylor,	"	{	1803	" 1805.
			1822	" 1824.
Stephen T. Mason,	"		1794	" 1803.
John Tazewell,	"		1794	" 1799.
Wilson C. Nichols,	"		1799	" 1804.
Abraham B. Venable,	"		1803	" 1804.
William B. Giles,	"		1804	" 1815.
Andrew Moore,	"		1804	" 1809.
Richard Brent,	"		1809	" 1815.
James Barbour,	"		1815	" 1825.
Armistead T. Mason,	"		1816	" 1817.
John W. Eppes,	"		1817	" 1819.

James Pleasant,	”	1819	”	1822.
John Randolph,	”	1825	”	1827.
Littleton W. Tazewell,	”	1824	”	1832.
John Tyler,	”	1827	”	1836.
William C. Rives,	” {	1832	”	1834.
		1836	”	1845.
Benjamin W. Leigh,	”	1834	”	1836.
Richard E. Parker,	”	1836	”	1837.
William H. Roane,	”	1837	”	1841.
William S. Archer,	”	1841	”	1847.
Isaac S. Pennybacker,	”	1845	”	1847.
James M. Mason,	”	1847	”	1861.
R. M. T. Hunter,	”	1847	”	1861.
John W. Johnston,	”	1870	”	1877.
John F. Lewis,	”	1870	”	1875.
Robert E. Withers,	”	1875	”	1881.



SOUTH CAROLINA.

The first permanent settlement in this State was made in 1670, at Port Royal, where the French Huguenots had failed three-quarters of a century before. The noble company who had received a charter for the settlement and government of the Carolinas employed the celebrated philosopher, John Locke, to draw up a philosophical plan of government, which they

attempted to carry into effect to the great annoyance of the colonists. It proved impracticable, and was finally abandoned.

The French introduced the culture of the vine with success, and rice was brought at an early day from Madagascar, the cultivation of which became extensive.

Many vexations were endured by the colonists by the injudicious management of the proprietary government, and at length they, by petition, obtained a revocation of the charter, receiving, in 1720, a governor appointed by the crown. They endured for many years all the horrors of warfare with the Tuscarora Indians, whom they finally defeated and expelled. Rutledge, Sumpter, and Marion were distinguished leaders of the patriots during the occupation of the State by the British forces; employing with success a partisan warfare, and defying the efforts of a superior British force to hold the State in subjection.

The climate has been likened to that of Italy, and the products of the north and of the tropics are equally cultivated. The State abounds in agricultural and manufacturing resources, and has a fine commercial position.

South Carolina is one of the original thirteen States, and has an area of 29,385 square miles, making 18,806,400 acres, with a population, in 1870, of 728,000, (over half colored,) which gives her five Members of Congress.

By an act of 1866, South Carolina was located in the fourth judicial circuit; it is divided into two judicial districts, called the Eastern and Western.

There are three collection districts in this State, and four ports of entry, to-wit: Georgetown, Charleston, Beaufort and Port Royal; but no ports of delivery.

The capital is Columbia. The State elections are held on the fourth Monday in November. The Legislature meets on the third Wednesday in October.

The enacting clause of the laws is as follows: "Be it enacted by the Honorable the Senate and House of Representatives, now met and sitting in General Assembly, and by authority of the same."

UNITED STATES SENATORS.

Pierce Butler,	from {	1790	to	1796.
		1802	"	1804.
Ralph Izard,	"	1789	"	1795.
Jacob Read,	"	1795	"	1801.
John Hunter,	"	1796	"	1798.
Charles Pinckney,	"	1798	"	1801.
Thomas Sumpter,	"	1801	"	1810.
John E. Calhoun,	"	1801	"	1802.
John Gaillard,	"	1804	"	1826.
John Taylor,	"	1810	"	1816.
William Smith,	" {	1816	"	1823.
		1826	"	1831.
William Harper,	"	1826	"	1826.
Robert J. Hane,	"	1823	"	1832.
Stephen D. Miller,	"	1831	"	1833.
John C. Calhoun,	" {	1832	"	1842.
		1845	"	1850.
William C. Preston,	"	1833	"	1842.
Daniel E. Huger,	"	1842	"	1845.
George McDuffie,	"	1842	"	1846.
Andrew P. Butler,	"	1846	"	1857.
Franklin H. Elmore,	"	1850	"	1850.
Robert W. Barnwell,	"	1850	"	1852.
William Desaussure,	"	1852	"	1852.
Josiah Evans,	"	1852	"	1858.
James H. Hammond,	"	1857	"	1860.
James Chestnut,	"	1858	"	1861.
Arthur P. Hayne,	"	1858.		
Thomas J. Robertson,	"	1868	"	1877.
Frederick A. Sawyer,	"	1868	"	1873.
John J. Patterson,	"	1873	"	1879.



MARYLAND.

This territory at first was included in the patent to the Virginia colony; but was, in 1632, re-patented to Lord Baltimore, an English nobleman, who had embraced the catholic faith, and sought, in the American wilderness, an asylum where he and his co-religionists might enjoy the freedom from persecution denied them in England. It was called Maryland from the queen of Charles I., King of England. A part of this patent was covered by that subsequently made to William Penn, and produced much trouble between the descendants of these men, and their respective colonies. A settlement was commenced, mainly by catholic gentlemen, in 1634, and called St. Mary's, on a branch of the Potomac.

The wise liberality that distinguished the settlement of Pennsylvania marked all the earlier history of Maryland. They cultivated friendly relations with the natives and with their neighbors. Lord Baltimore was liberal in his expenditures for the growing colony, and gave them a liberal government. When the civil war commenced in England, resulting in the death of Charles I. and the rise of Cromwell to power, the first troubles of the colonists of Maryland began, and continued until 1716, when the heirs of the original proprietor resumed their rights and maintained them until the Revolution.

This State was one of the original thirteen, and gave a hearty support to the patriot side during the war for freedom.

The surface of the country is, in great part, low and sandy; the climate agreeable and the soil favorable to agricultural pursuits. Her commercial position is excellent, being situated on either side of Chesapeake bay and bounded by the Potomac river on the west. The District of Columbia, containing the National Capital, was located on the last named river within her limits.

Maryland has an area of 11,124 square miles—equal to 7,119,360 acres. The population in 1870 was 780,806, which gives her six Representatives in Congress. By an act of Congress, passed in 1866, this State was put in the fourth judicial circuit, which is composed of Maryland, Virginia, West Virginia, North and South Carolina. Maryland constitutes one judicial district; has ten ports of entry, viz.: Baltimore, Chester, Oxford, Vienna, Snow-Hill, Annapolis, Nottingham, St. Mary's, Georgetown, and Havre de Grace; and twelve ports of delivery.

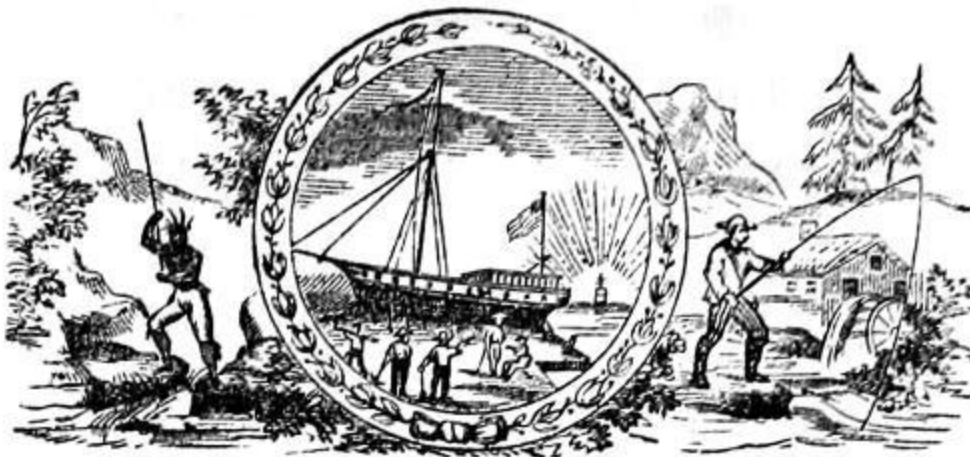
Annapolis is the capital. The State election is held on the Tuesday after the first Monday in November. The Legislature meets on the first Wednesday in January.

The enacting clause of the laws is as follows: "Be it enacted by the General Assembly of Maryland."

UNITED STATES SENATORS.

Charles Carroll, (of Carrollton)	from	1789	to	1793.
John Henry,	"	1789	"	1797.
Richard Potts,	"	1793	"	1796.
John E. Howard,	"	1796	"	1803.
James Lloyd,	"	1797	"	1800.
William Hindman,	"	1800	"	1801.
Robert Wright,	"	1801	"	1806.
Samuel Smith,	"	1803	"	1815.
		1822	"	1833.
Philip Reed,	"	1806	"	1813.
R. H. Goldsborough,	"	1813	"	1819.
		1835	"	1836.
Robert G. Harper,	"	1816	"	1816.

Alexander C. Hanson,	”	1816	”	1819.
William Pinckney,	”	1819	”	1822.
Edward Lloyd,	”	1819	”	1826.
Ezekiel F. Chambers,	”	1826	”	1835.
Joseph Kent,	”	1833	”	1838.
John S. Spence,	”	1836	”	1841.
William D. Merrick,	”	1838	”	1845.
John Leidsker,	”	1841	”	1843.
James A. Pearce,	”	1843	”	1862.
Reverdy Johnson,	” {	1845	”	1851.
		1863	”	1868.
David Stuart,	”	1849	”	1850.
Thomas G. Pratt,	”	1850	”	1857.
Anthony Kennedy,	”	1857	”	1863.
Thomas H. Hicks,	”	1862	”	1864.
John A. J. Cresswell,	”	1865	”	1867.
Philip F. Thomas,	”	—	”	1867.
George Vickers,	”	1868	”	1873.
William T. Hamilton,	”	1869	”	1875.
George R. Dennis,	”	1873	”	1879.
Wm. Pinckney Wythe,	”	1875	”	1881.



NEW HAMPSHIRE.

This State is often called “The Old Granite State,” as well from its mountainous character as the resolute spirit of its inhabitants. It is small, having an area of only 9,280 square miles, which make 5,939,200 acres. Its population in 1870 was 318,300, entitling it to three Representatives in Congress.

The first settlement was founded at Dover, in 1624, by the English. It suffered much from Indian wars, and its growth was slow. It was made a separate province in 1680, having previously been under the jurisdiction of Massachusetts. It was one of the original thirteen States, and took an active and vigorous part in the Revolutionary War.

Its soil is light and unfavorable to agriculture, but furnishes good pasturage and produces fine cattle. It contains the White Mountains, the highest in New England. Its streams are utilized for manufacturing purposes. Quarries of marble and granite abound. Minerals, and precious stones of several varieties are found in various parts of the State. The hardy and enterprising sons to whom it has given birth are to be found in every State in the Union.

It lies in the first judicial circuit; constitutes one judicial district; and is embraced in one collection district, and therefore has but one port of entry. There are three ports of delivery.

The capital is Concord. The Legislature assembles on the first Monday in June, the State election being held the second Tuesday in March.

The enacting clause of the laws runs thus: “Be it enacted by the Senate and House of Representatives in General Assembly convened.”

UNITED STATES SENATORS.

Paine Wingate,	from	1789	to	1793.
John Langdon,	”	1789	”	1801.
Samuel Livermore,	”	1793	”	1801.
Simeon Olcott,	”	1801	”	1805.
James Sheafe,	”	1801	”	1802.
William Plummer,	”	1802	”	1807.
Nicholas Gilman,	”	1805	”	1814.

Nahum Parker,	”	1807	”	1810.
Charles Cutts,	”	1810	”	1813.
Jeremiah Mason,	”	1813	”	1817.
Thomas W. Thompson,	”	1814	”	1817.
David L. Morrill,	”	1817	”	1823.
Clement Storer,	”	1817	”	1819.
John F. Parrott,	”	1819	”	1825.
Samuel Bell,	”	1823	”	1835.
Levi Woodbury,	”	1825	”	1831.
	{	1841	”	1845.
Isaac Hill,	”	1831	”	1835.
Henry Hubbard,	”	1835	”	1841.
John Page,	”	1836	”	1837.
Franklin Pierce,	”	1837	”	1842.
Leonard Wilcox,	”	1842	”	1842.
Charles G. Atherson,	”	1843	”	1849.
	{	1852	”	1853.
Benning W. Jenness,	”	1845	”	1846.
Joseph Cilley,	”	1846	”	1847.
John P. Hale,	”	1847	”	1853.
	{	1855	”	1865.
Moses Norris,	”	1849	”	1855.
Jared W. Williams,	”	1853	”	1854.
John S. Wells,	”	1855	”	1855.
James Bell,	”	1855	”	1857.
Daniel Clark,	”	1857	”	1866.
George C. Fogg,	”	1866	”	1867.
James W. Paterson,	”	1867	”	1873.
Aaron H. Cragin,	”	1867	”	1877.
Bainbridge Wadleigh,	”	1873	”	1879.



NEW JERSEY.

This State was first settled at Bergen by the Swedes sent over by the Christian hero-king, Gustavus Adolphus, in the year 1638. They, however, soon fell under the control of the Dutch, who claimed the territory. The next settlement was made at Elizabethtown, from Long Island, in 1664. New Jersey came into the hands of the English along with New Netherlands, but soon became an independent province; Philip Carteret becoming its first governor, in 1665. It was for some time under the control of the celebrated Quaker, William Penn, received a liberal form of government, and, not suffering from the Indians enjoyed prosperity for many years. Afterwards it passed through various vicissitudes in its government, was for a time joined to New York, but recovered its independent existence in 1738; and was one of the original thirteen States, taking a very prominent part in the Revolution. Its territory, lying between New York and Philadelphia, was the field on which the hostile armies fought and manouvered, for some years. It ratified the Constitution unanimously, December 18th, 1787. It has been rewarded for its patriotism and devotion to liberty by unbroken prosperity. Its manufactures are in a flourishing state. Its vicinity to the great commercial centres of the Atlantic coast; the mildness of its climate, and the adaptation of its soil to the growth of fruit and vegetables have made it the Garden State of the Union. Its agricultural wealth is much increased by its abundant beds of marl and peat. The extreme north is hilly and the extreme south low and sandy. Education receives much attention.

It has an area of 8,320 square miles, or 5,324,800 acres. The population, by the census of 1870, was 905,794, which gives her seven Representatives in Congress.

This State lies in the third judicial circuit, and forms one judicial district. There are six ports of entry, and as many collection districts; and also eight ports of delivery.

Its capital is Trenton. The State election is held on the Tuesday after the first Monday in November, and the Legislature assembles the second Tuesday in January.

The form of the enacting clause is as follows: "Be it enacted by the Senate and General Assembly of the State of New Jersey."

UNITED STATES SENATORS.

Jonathan Elmer,	from	1789	to	1791.
William Patterson,	"	1789	"	1790.
Philemon Dickerson,	"	1790	"	1793.
John Rutherford,	"	1791	"	1798.
Fred'k Frelinghuysen,	"	1793	"	1796.
Richard Stockton,	"	1796	"	1799.
Franklin Davenport,	"	1798	"	1799.
James Schureman,	"	1799	"	1801.
Jonathan Dayton,	"	1799	"	1805.
Aaron Ogden,	"	1801	"	1803.
John Condit,	"	1803	"	1811.
Aaron Kitchell,	"	1805	"	1809.
John Lambert,	"	1809	"	1815.
Mahlon Dickerson,	"	1817	"	1833.
James J. Wilson,	"	1815	"	1821.
Samuel L. Southard,	"	1821	"	1823.
		1833	"	1841.
Joseph McIlvaine,	"	1823	"	1826.
Thos. Frelinghuysen,	"	1829	"	1835.
Ephraim Bateman,	"	1826	"	1829.

Garret D. Wall,	”	1835	”	1841.
Jacob Miller,	”	1841	”	1853.
William L. Dayton,	”	1842	”	1851.
John B. Thompson,	”	1853	”	1863.
William Pennington,	”	1858	”	1858.
William Wright,	”	1853	”	1859.
	{	1863	”	1866.
Robert F. Stockton,	”	1851	”	1853.
John C. Ten Eyck,	”	1859	”	1865.
Richard S. Field,	”	1862	”	1863.
James W. Wall,	”	1863	”	1863.
John P. Stockton,	”	1865	”	1866.
F. T. Frelinghuysen,	”	1867	”	1869.
Alexander G. Cattell,	”	1866	”	1871.
John P. Stockton,	”	1869	”	1875.
F. T. Frelinghuysen,	”	1871	”	1877.
Thos. F. Randolph,	”	1875	”	1881.



MASSACHUSETTS.

The “Bay State,” so named from the deep encroachments of the sea on her eastern border, was settled in 1620, at Plymouth, by English Puritans; a class of sternly pious men, who abandoned England to find freedom of worship in the savage wilds of America. They were men of great resolution

and intelligence, and succeeded in imbuing the new colony with a fair degree of their own virtue. They suffered much, at first, from deprivation of the comforts they had left in England, and from the hostility of the Indians. They were too much in earnest to be tolerant, and persecutions of pretended witches, of Quakers and Baptists, have given them an unenviable notoriety.

This State was a leading one among the original thirteen, and the first to take up arms and to be invaded by the British forces at the commencement of the War of the Revolution. Her influence on the national character has been great.

This State is the first in the Union for cotton and woolen manufactures, its cotton mills alone employing about twenty-five thousand hands. In extent of all its manufactures it is third in the Union. The soil is sterile in great part, but the energy of the people finds abundant other sources of wealth. Commerce and fisheries receive much attention, and produce much wealth.

Education is carefully attended to, and its public school system a model for other States. She has an area of 7,800 square miles. Her population in 1870 was 1,457,351, and entitles her to eleven Members of Congress. It is in the first judicial circuit, and forms one judicial district. There are fourteen ports of entry, and twenty-five ports of delivery in this State.

Boston is the Capital, the metropolis of New England, and an important center of intellectual and business energy. The Legislature meets on the first Wednesday in January, and the State elections are held on the Tuesday after the first Monday in January.

The enacting clause is: "Be it enacted by the Senate and House of Representatives, in General Court assembled, and by the authority of the same, as follows:"

UNITED STATES SENATORS.

Tristram Dalton,	from	1789	to	1791.
Caleb Strong,	"	1789	"	1796.
George Cabot,	"	1791	"	1796.
Theo. Sedgewick,	"	1796	"	1799.
Benj. Goodhue,	"	1796	"	1800.

Samuel Dexter,	”	1799	”	1800.
Dwight Foster,	”	1800	”	1803.
Jonathan Mason,	”	1800	”	1803.
John Q. Adams,	”	1803	”	1808.
Timothy Pickering,	”	1803	”	1811.
James Lloyd,	” {	1808	”	1813.
		1822	”	1826.
Joseph B. Varnum,	”	1811	”	1817.
Christopher Gore,	”	1813	”	1816.
Eli P. Ashmun,	”	1816	”	1818.
Harrison Gray Otis,	”	1817	”	1822.
Prentiss Mellen,	”	1818	”	1820.
Elijah H. Mills,	”	1820	”	1827.
Nathaniel Silsbee,	”	1826	”	1835.
Daniel Webster,	” {	1827	”	1841.
		1845	”	1850.
Rufus Choate,	”	1841	”	1845.
John Davis,	” {	1835	”	1841.
		1845	”	1853.
Isaac C. Bates,	”	1841	”	1845.
Robert C. Winthrop,	”	1850	”	1851.
Robert Rantoul,	”	1851	”	1851.
Edward Everett,	”	1853	”	1854.
Julius Rockwell,	”	1854	”	1855.
[2] Henry Wilson,	”	1855	”	1873.
Charles Sumner,	”	1851	”	1874.
George S. Boutwell,	”	1873	”	1877.
William Washburn,	”	1874	”	1875.
Henry L. Dawes,	”	1875	”	1881.

[\[2\]](#) Elected Vice President, and when inaugurated Mr. Boutwell was elected to fill out the unexpired term.



CONNECTICUT.

This State takes its name from its principal river, which, entering from the north, runs through the State nearly in the center. It was settled in 1633 from Massachusetts, the fertility of the valley of the Connecticut attracting them to brave the perils of conflict with the Indians, and with the Dutch, settled where New York now stands, who laid claim to it. The Dutch withdrew, the Indians were subdued in many bloody battles, and a Puritan State—exceeding, if possible, the religious strictness of the Massachusetts colony, and not behind her in energy, in virtue, in attention to education, and love of liberty—soon grew up to wealth and prosperity.

A decisive battle in 1636, on the Mystic river, annihilated the Pequod Indians.

Connecticut, in 1700, followed the example set by Massachusetts in 1638, by founding Yale college, which, to this day, very fairly rivals Harvard in the former State. Both have contributed largely to the intelligence and culture of the American people. It took a leading part in the Revolution; ratified the constitution June 9th, 1788; and has displayed the zeal in promoting the public good that has been so prominent in the cultivation of her educational and material interests.

The surface of the State is uneven and rocky. Manufactures and commerce are the leading interests, although agriculture is not neglected. It is rich in minerals. Gold, silver, lead, iron, copper and bismuth are found, while marble, of fine quality, and granite abound.

Its area is small, embracing only 4,674 square miles, or 2,991,360 acres. It has four representatives in Congress. The population in 1870 was 537,418. It is part of the second judicial circuit, and constitutes one judicial district. She has five ports of entry, and five collection districts, with twenty-two ports of delivery.

It has had two capitals ever since the first two colonies, established at Hartford and New Haven, were united; and holds her State election on the first Monday in April. The Legislature meets the first Wednesday in May.

The enacting clause runs thus: "Be it enacted by the Senate and House of Representatives in General Assembly convened."

UNITED STATES SENATORS.

Oliver Ellsworth,	from	1789	to	1796.
William S. Johnson,	"	1789	"	1791.
Roger Sherman,	"	1791	"	1793.
S. M. Mitchell,	"	1793	"	1795.
Jonathan Trumbull,	"	1795	"	1796.
Uriah Tracey,	"	1796	"	1807.
J. Hillhouse,	"	1796	"	1810.
C. Goodrich,	"	1807	"	1813.
S. W. Dana,	"	1810	"	1821.
David Doggett,	"	1813	"	1819.
James Lanman,	"	1819	"	1825.
E. Boardman,	"	1821	"	1823.
H. W. Edwards,	"	1823	"	1827.
Calvin Willey,	"	1825	"	1831.
Samuel A. Foot,	"	1827	"	1833.
G. Tomlinson,	"	1831	"	1837.
Nathan Smith,	"	1833	"	1835.
John M. Niles,	"	{	1835	" 1839.
			1843	" 1849.
Perry Smith,	"	1837	"	1843.
Thaddeus Betts,	"	1839	"	1840.

J. W. Huntington,	”	1840	”	1847.
R. S. Baldwin,	”	1847	”	1851.
Truman Smith,	”	1849	”	1855.
Isaac Toucey,	”	1852	”	1857.
Francis Gillette,	”	1854	”	1856.
L. S. Foster,	”	1855	”	1867.
James Dixon,	”	1857	”	1869.
Orris S. Ferry,	”	1867	”	1879.
W. A. Buckingham,	”	1869	”	1875.
Wm. W. Eaton,	”	1875	”	1881.



DELAWARE.

The first settlement of Delaware was made by the Swedes, in pursuance of the policy of the valiant Gustavus Adolphus, king of Sweden. European wars, in which he was engaged, and in which he lost his life in 1633, deferred the project, but it was carried into effect in 1638, near the present city of Wilmington. They extended their settlements from the entrance of Delaware bay far up the river, until the Dutch, from New Netherlands, who claimed the country, attacked and reduced them to submission, uniting New Sweden, as it had been called, to their own colony, in the year 1655. It fell, with that colony, into the hands of the English in 1664. It was included in the grant made to William Penn, in 1692. It was long attached to Pennsylvania, but in 1703 received permission to form a separate

government, on the wise and liberal plan pursued by Penn. This form of government continued through the Revolutionary war.

The surface of the State is level, or gently undulating, the climate is agreeable, except that, in winter, the sea breeze is somewhat harsh; the soil is sandy but fertile. Grain and fruit are raised, peaches being produced in great profusion. Her commercial and manufacturing business is limited, and she is destitute of mineral wealth.

It is next to Rhode Island in size, containing the small area of 2,120 square miles, or 1,356,800 acres. Population 125,015.

UNITED STATES SENATORS.

George Read,	from	1789	to	1793.
R. Bassett,	"	1789	"	1793.
John Vining,	"	1793	"	1798.
Kensey Johns,	"	1794	"	1795.
Henry Latimer,	"	1795	"	1801.
Joshua Clayton,	"	1798	"	1799.
W. H. Wells,	"	{ 1799	"	1804.
		1813	"	1817.
Samuel White,	"	1801	"	1810.
J. A. Bayard,	"	1804	"	1813.
O. Horsey,	"	1810	"	1821.
N. Van Dyke,	"	1817	"	1826.
C. A. Rodney,	"	1822	"	1823.
		1824	"	1827.
T. Clayton,	"	{ 1837	"	1847.
D. Rodney,	"	1826	"	1827.
H. Ridgely,	"	1827	"	1829.
L. McLane,	"	1827	"	1829.
		1829	"	1837.
J. M. Clayton,	"	{ 1845	"	1849.
A. Naudain,	"	1830	"	1836.
R. H. Bayard,	"	1836	"	1845.

P. Spruance,	”	1847	”	1853.
John Wales,	”	1849	”	1851.
J. A. Bayard,	”	1851	”	1864.
M. W. Bates,	”	1857	”	1859.
J. P. Comeygs,	”	1856	”	1857.
W. Saulsbury,	”	1859	”	1871.
G. R. Riddle,	”	1864	”	1867.
J. A. Bayard,	”	1867	”	1869.
Thomas F. Bayard,	”	1869	”	1881.
Eli Saulsbury,	”	1871	”	1877.



RHODE ISLAND.

This is the smallest of the States, having an area of but 1,306 square miles, or 835,840 acres.

It was settled in 1636 by Roger Williams, and became an avowed place of refuge for persecuted christians of all names, but especially for Baptists, among whom Mr. Williams was a leader. It was chartered as a separate colony in 1644, and the excellent constitution framed under it lasted until 1818. It was one of the original thirteen States and took an earnest share in the struggles of the revolution, though it was not represented in the convention that framed the Constitution, and did not ratify it until 1790.

Its citizens are mainly engaged in the manufacturing and commercial pursuits for which their excellent harbors and streams furnish eminent

facilities. It has always been prosperous, its people being distinguished for industry and activity. Its population was, in 1870, 217,356.

Rhode Island forms part of the first judicial circuit; constitutes one judicial district; and has three ports of entry, and seven of delivery. It has two capitals, having been originally formed of two separate colonies. These are Providence and Newport. The election for State officers is held on the first Wednesday in April. The Legislature is held twice in the year, in May and January. The style of her enacting clause is: "It is enacted by the General Assembly, as follows."

UNITED STATES SENATORS.

Theodore Foster,	from	1790	to	1803.
Joseph Stanton,	"	1790	"	1793.
William Bradford,	"	1793	"	1797.
Ray Green,	"	1797	"	1801.
Charles Ellery,	"	1801	"	1805.
Samuel L. Potter,	"	1803	"	1804.
Benjamin Howland,	"	1804	"	1809.
James Fenner,	"	1805	"	1807.
Elisha Matthewson,	"	1807	"	1811.
Francis Malbone,	"	1809	"	1809.
C. G. Champlin,	"	1809	"	1811.
Jeremiah B. Howell,	"	1811	"	1817.
William Hunter,	"	1811	"	1831.
James Burrill,	"	1817	"	1821.
James D'Wolf,	"	1821	"	1825.
Nehemiah R. Knight,	"	1821	"	1841.
Asher Robbins,	"	1825	"	1839.
Nathan F. Dixon,	"	1839	"	1842.
James F. Simmons,	"	{ 1841	"	1847.
		1857	"	1862.
William Sprague,	"	1842	"	1844.
John B. Francis,	"	1844	"	1845.
Albert C. Green,	"	1845	"	1851.

John H. Clarke,	”	1847	”	1853.
Charles T. James,	”	1851	”	1857.
Philip Allen,	”	1853	”	1859.
Samuel G. Arnold,	”	1862	”	1863.
Henry B. Anthony,	” {	1859	”	1865.
		1865	”	1877.
William Sprague,	”	1862	”	1875.
Ambrose E. Burnside,	”	1875	”	1881.



VERMONT.

This State received its name from the French name of its range of mountains, (“verd mont” meaning “Green Mountain.”) It was settled in 1731, and was at first considered part of New Hampshire, and afterwards claimed by New York. These claims were vigorously resisted, but it had no organized government until 1777. It did good service in the Revolution; but was not admitted into the Union until 1791, making the fourteenth State. Col. Ethan Allen at the head of 270 “Green Mountain Boys” took possession of Forts Ticonderoga and Crown Point in the name of the Continental Congress, in 1775, and thus assured the northern water communication with Canada to the Americans.

The climate of Vermont though cold, is pleasant and even, the soil fertile in the valleys, and the streams supply excellent water power, which, however, is little used. Maple sugar is produced in abundance, while its facilities for raising stock are equal to those of New Hampshire. Granite,

marble of fine quality, and slate quarries abound. Its provision for education is very liberal.

It has three representatives in Congress; forms part of the second judicial circuit, and constitutes one judicial district. One port of entry and two of delivery are authorized to be named by the President of the United States.

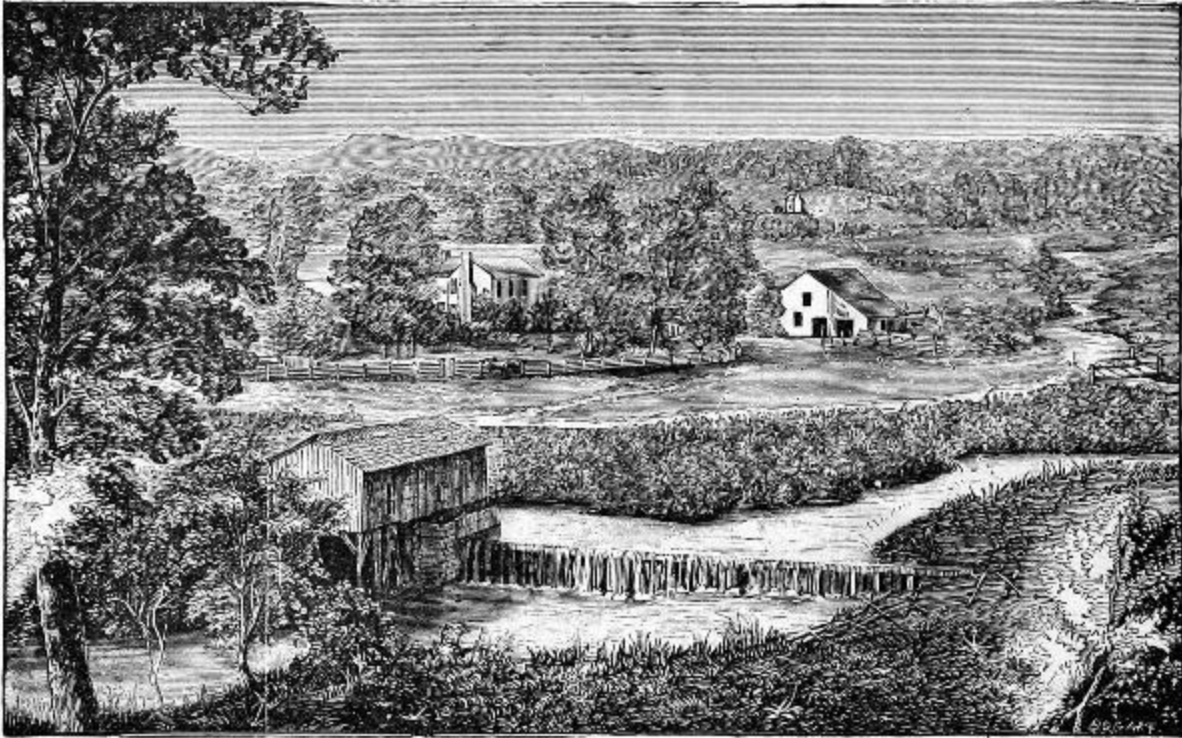
Montpelier is the capital. The State election is held on the first Tuesday in September, and the Legislature meets on the first Wednesday in October.

The enacting clause begins: "It is hereby enacted by the General Assembly of the State of Vermont."

UNITED STATES SENATORS.

Moses Robinson,	from	1791	to	1796.
Stephen R. Bradley,	"	{ 1791	"	1795.
		1801	"	1813.
Elijah Paine,	"	1795	"	1801.
Isaac Tichenor,	"	{ 1796	"	1797.
		1815	"	1821.
Nathaniel Chipman,	"	1797	"	1803.
Israel Smith,	"	1803	"	1807.
Jonathan Robinson,	"	1807	"	1815.
Dudley Chase,	"	{ 1813	"	1817.
		1825	"	1831.
James Fisk,	"	1817	"	1818.
William A. Palmer,	"	1818	"	1825.
Horatio Seymour,	"	1821	"	1833.
Samuel Prentiss,	"	1831	"	1842.
Benjamin Swift,	"	1833	"	1839.
Samuel S. Phelps,	"	1839	"	1851.
Samuel C. Crafts,	"	1842	"	1843.
William Upham,	"	1843	"	1855.
Solomon Foote,	"	1851	"	1866.
Samuel S. Phelps,	"	1853	"	1854.
Lawrence Brainard,	"	1854	"	1855.

Jacob Collamer,	”	1855	”	1865.
Luke P. Poland,	”	1865	”	1867.
George F. Edmunds,	”	1866	”	1881.
Justin S. Morrill,	”	1867	”	1879.



VIEW IN THE BLUE GRASS REGION, KENTUCKY.



KENTUCKY.

Kentucky was formed from the territory of Virginia, and in point of seniority is the fifteenth State of the American Union, having been admitted on the first of June, 1792.

The *sobriquet* of “dark and bloody ground” applied to Kentucky is very suggestive of the sanguinary conflicts of her pioneer population with the aboriginal lords of the soil. The celebrated Daniel Boone was among the first white men to explore the wilderness of Kentucky. The first white settlement was commenced at Boonesborough, about the year 1769. The area of the State is 37,680 square miles, equal to 24,115,200 acres.

The climate is mild, and adapted to the production of cereals, grapes, and fruits. The soil is very fertile. The surface presents a varied aspect in its several portions. The southeastern part of the State is mountainous, the central and northern portions are undulating, sometimes hilly. The river bottoms are very productive. The State is well timbered. Apple, pear, peach, plum and various other fruit trees are cultivated with great success. The staple products are corn, tobacco and hemp. Horses, mules and cattle are raised. Kentucky abounds in bituminous coal, lead, iron pyrites, marble, freestone, gypsum, and cliff limestone.

The population in 1870 was 1,321,000. She is entitled to ten representatives in Congress, is in the sixth judicial circuit and forms one judicial district, has one port of entry, Louisville, and two ports of delivery, viz.: Paducah and Columbus. Frankfort is the capital.

The State elections are held on the first Monday in August. The Legislature meets on the first Monday in December, and is composed of two houses—the Senate consisting of 38 members elected for four years; and a House of Representatives elected for two years. The enacting clause of the laws is: “Be it enacted by the General Assembly of the Commonwealth of Kentucky.”

UNITED STATES SENATORS.

John Brown,	from	1792 to 1805.
John Edwards,	”	1792 ” 1795.
Humphrey Marshall,	”	1795 ” 1801.
John Breckenridge,	”	1801 ” 1805.

Buckner Thurston,	”	1805	”	1810.
		1805	”	1806.
John Adair,	”	{ 1806	”	1807.
		1810	”	1811.
Henry Clay,	”	{ 1831	”	1842.
		1849	”	1855.
John Pope,	”	1807	”	1813.
George M. Bibb,	”	{ 1811	”	1814.
		1829	”	1835.
Jessie Bledsoe,	”	1813	”	1815.
George Walker,	”	1814	”	1814.
William T. Barry,	”	1814	”	1816.
Isham Talbot,	”	{ 1815	”	1819.
		1820	”	1825.
		1816	”	1817.
Martin D. Hardin,	”	{ 1817	”	1819.
		1835	”	1841.
John J. Crittenden,	”	{ 1842	”	1849.
		1855	”	1861.
Richard M. Johnson,	”	{ 1819	”	1823.
		1823	”	1829.
William Logan,	”	1819	”	1820.
John Rowan,	”	1826	”	1831.
James T. Moorehead,	”	1841	”	1847.
Jos’h R. Underwood,	”	1847	”	1853.
Thomas Metcalf,	”	1848	”	1849.
Archibald Dixon,	”	1852	”	1855.
David Meriwether,	”	1852	”	1852.
J. B. Thompson,	”	1853	”	1859.
Lazarus W. Powell,	”	1859	”	1865.
J. C. Breckenridge,	”	1861	”	1861.
Garrett Davis,	”	1861	”	1873.
James Guthrie,	”	1865	”	1868.
Thomas C. McCreery,	”	1868	”	1879.

John W. Stevenson, " 1871 " 1877.



TENNESSEE.

Tennessee belonged to the territory of North Carolina while a colony, and was settled by emigrants from it in 1757. They built Fort Loudon in East Tennessee, but were destroyed, or driven away, by the Indians, in 1760. Settlement was soon resumed, but continually harrassed by Indian attacks. In 1774 Col. Lewis and Capt. Shelby attacked and defeated them. They remained quiet until after the Declaration of Independence, when the Cherokees were stirred up by British emissaries. From 1776 to 1779 three several expeditions were made against them, the Indians being decisively defeated each time. The Cherokees and Shawnees were warlike tribes, and continued, for some years, to make occasional attacks on the settlements, which did not, however, prevent their steady growth.

In 1789 North Carolina renounced her claim to the territory, and in 1790 it became a separate province, being admitted into the Union as a Sovereign State in 1796, making the sixteenth, or the third admitted after the Revolutionary war—Vermont, in 1791, being the first; and Kentucky, in 1792, the second.

This State has an area of 45,600 square miles, or 29,184,000 acres. It had a population in 1870 of 1,257,983.

Tennessee is very agreeably diversified with mountain, hill and dale, containing within its limits fertility of soil, beauty of scenery, and a

delightfully temperate climate. The State is generally healthy. The soil in the main is good, and while among the mountains it is not arable, it is favorable for grazing, and stock is largely exported.

Indian corn, tobacco, and cotton are the great staples.

Gold has been found in the south-east portion of the State. Among the other minerals found here are iron in abundance, some lead, silver, zinc, marble of very fine quality, and various others. The State is entitled to ten Representatives in Congress; is in the sixth judicial circuit; has three judicial districts; and has two ports of delivery—Memphis and Knoxville.

Nashville is the capital. The State election is held on the first Monday in August, and the Legislature meets on the first Monday in October, once in two years. The Legislature consists of a Senate of twenty-five members, and a House of Representatives of seventy-five members.

The enacting clause of the laws of this State is: “Be it enacted by the General Assembly of the State of Tennessee.”

UNITED STATES SENATORS.

William Blount,	from	1796	to	1797.
William Cocke,	”	{ 1796	”	1797.
		1799	”	1805.
Andrew Jackson,	”	{ 1797	”	1798.
		1823	”	1825.
Joseph Anderson,	”	1797	”	1815.
Daniel Smith,	”	1797	”	1809.
Jenkin Whiteside,	”	1809	”	1811.
George W. Campbell,	”	1811	”	1818.
Jesse Wharton,	”	1814	”	1815.
John Williams,	”	1815	”	1823.
John H. Eaton,	”	1818	”	1829.
Hugh L. White,	”	1825	”	1840.
Felix Grundy,	”	1829	”	1840.
Ephraim H. Foster,	”	{ 1838	”	1839.
		1843	”	1845.

A. O. P. Nicholson,	”	1840	”	1843.
Alexander Anderson,	”	1840	”	1841.
Spencer Jarnagin,	”	1841	”	1847.
Hopkins L. Turney,	”	1845	”	1851.
John Bell,	”	1847	”	1853.
James C. Jones,	”	1851	”	1857.
Andrew Johnson,	”	1857	”	1863.
David T. Patterson,	”	1865	”	1869.
J. S. Fowler,	”	1865	”	1871.
William G. Brownlow,	”	1869	”	1875.
Henry Cooper,	”	1871	”	1877.
Andrew Johnson,	”	1875	”	1881.



OHIO.

The first permanent settlement in this important State was made on the 7th day of April, 1788. Though this fine territory lay nearest to the most populous and enterprising of the original States, the intrigues of the French before the Revolution, the hostility to which they excited the Indians, and the difficulties arising from the various claims of different States to the lands, which rendered titles insecure, prevented any permanent settlement until about the time when the present Constitution of the United States was originated. All these difficulties were now removed, and emigration, long restrained, rushed like a flood down the Ohio. 20,000 persons, during this year (1788), passed down the river in pursuit of new homes. Cincinnati and

many other places were settled about this time. From 1790 to 1795 there was much suffering from the hostility of the Indians; but this period having passed, the settlements multiplied and grew apace.

The settlers were, in large part, from New England; accustomed to wring a thrifty living from a rocky soil; and their industry soon brought great results from this more generous field. The population increased rapidly. In 14 years it amounted to 72,000; and was admitted into the Union with that number Nov. 29th, 1802.

The climate is healthy and mild, the soil generally very fertile, and her inhabitants have made the most of it. Coal, iron, and marble are very abundant. Manufactures have not been much developed in this State, but they are steadily growing. The lake on the north, and the river on the south, with more than 5,000 miles of railway and canals, furnish all the elements of a great and steady growth.

It was, on its admission, the seventeenth State in the Union.

It has an area of 39,964 square miles, equal to 25,576,960 acres. The population in 1870 was 2,622,214, entitling her to twenty Members of Congress.

It is in the sixth judicial circuit, and forms two judicial districts, the Northern and Southern.

This State has three ports of entry—Cleveland, Toledo, and Portland; and four ports of delivery, to be located where the President directs.

The capital of this State is Columbus. The State election is now held on the second Tuesday of October. The Legislature meets on the first Monday of January, biennially.

The enacting clause of the laws is as follows: “Be it enacted by the General Assembly of the State of Ohio.”

UNITED STATES SENATORS.

John Smith,	from	1803	to	1808.
Thos. Worthington,	”	{	1803	” 1807.
			1810	” 1814.

Edward Tiffin,	"	1807	"	1809.
Return J. Meigs,	"	1808	"	1810.
Stanley Griswold,	"	1809	"	1809.
Alexander Campbell,	"	1809	"	1813.
Jeremiah Morrow,	"	1813	"	1819.
Joseph Kerr,	"	1814	"	1815.
Benjamin Ruggles,	"	1815	"	1833.
William A. Trimble,	"	1819	"	1821.
Ethan A. Brown,	"	1822	"	1825.
Wm. Henry Harrison,	"	1825	"	1828.
Jacob Burnett,	"	1828	"	1831.
Thomas Ewing,	"	{ 1831	"	1837.
		1850	"	1851.
Thomas Morris,	"	1833	"	1839.
William Allen,	"	1837	"	1849.
Benjamin Tappan,	"	1839	"	1845.
Thomas Corwin,	"	1845	"	1851.
Salmon P. Chase,	"	1849	"	1855.
Benjamin F. Wade,	"	1851	"	1869.
George Ellis Pugh,	"	1851	"	1861.
John Sherman,	"	1861	"	1879.
Allen G. Thurman,	"	1869	"	1881.



LOUISIANA.

The Spaniards, who found so much gold in other parts of the American continent, made repeated explorations of the region lying near the mouths of the Mississippi in the hope of discovering it there. Failing in this, they made no settlements. The French planned the establishment of a vast empire covering the best territory now in the bounds of the United States, and explored the Mississippi and its tributaries with untiring courage and zeal, both from the Great Lakes and from the mouth of the river. A few years after La Salle had perished in his bold wandering, a French naval officer, Lemoine D'Iberville, formed the first settlement in Louisiana (so named after the French King, Louis XIV., by La Salle.) This was in 1699; but no great progress was made until the Mississippi Company was formed in France, under the idea that Louisiana was rich in gold and diamonds; when, in 1718, eight hundred persons emigrated from France and settled at New Orleans. In 1732 the colony contained, in all, seven thousand five hundred persons, and continued to prosper until 1763, when, by the peace of Paris, all the French possessions in America except the territory west of the Great River, were given up to England. This remnant soon passed to the Spaniards, and again to the French, from whom it was bought by President Jefferson for \$15,000,000, in 1803.

This purchase was regarded, even by Jefferson, as probably exceeding the powers of the government, under the Constitution; but it was essential to the development, unity, and greatness of the country. The Mississippi Valley is the heart of North America, and the use of the river as necessary to the value of the prairie States lying east of it, as to the defense and strength of the country. The possession of it could, alone, make the United States a great power among nations. Napoleon Bonaparte, then First Consul of the French Republic, designed, in ceding it to the United States, to give England, his relentless enemy, a powerful rival; but even his keen foresight could not have anticipated the wonderful growth in which the Louisiana Purchase was so necessary an element.

The surface of Louisiana is low, and the southern part often overflowed by the high water of the rivers. Many islands of great fertility and beauty lie along the coast; one of them consisting of an immense bed or mine of rock salt. Fruits grow to great perfection and orange trees are specially fruitful, a single tree often bearing 5,000 oranges. Cotton and cane sugar are the principal staples. New Orleans has an extensive commerce, and

manufactures will sometime find in it a profitable field. The palmy days of this, as of all the other Southern States, is in the future; her most valuable resources having been scarcely touched. New Orleans will naturally become the third great commercial city of the Union, New York and San Francisco, only, being likely to take precedence of her.

Louisiana was admitted into the Union April 8th, 1812, making the eighteenth State.

She has an area of 46,431 square miles, equal to 29,715,840 acres. The population in 1870 numbered 732,731; she has six Representatives in Congress.

Louisiana forms a part of the fifth judicial circuit, and constitutes two judicial districts, viz.: the eastern and western districts of Louisiana. This State has one collection district, denominated the district of New Orleans; which city is the only port of entry. The shores of the river Ohio, and all the rivers emptying into the Mississippi, are attached to the district of New Orleans, though most of them do not lie in the State. Several of the cities and towns on these rivers are made ports of delivery. Collection districts are not always confined to one State.

New Orleans is the capital. The Legislature meets on the first Monday in January, once in two years. The State election is held on the first Monday in November.

The enacting clause of her laws is as follows: "Be it enacted by the Senate and House of Representatives of the State of Louisiana, in General Assembly convened."

UNITED STATES SENATORS.

Thomas Posey,	October to December, 1812.			
James Brown,	from	{	1812 to 1817.	
			1819 " 1824.	
Allan B. Macgruder,	"		1812 " 1813.	
Eligius Fromentin,	"		1813 " 1819.	
W. C. C. Claiborne,	"		1817 " 1818.	
Henry Johnson,	"	{	1818 " 1824.	

		1843	”	1849.
William Kelly,	”	1822	”	1825.
Dominique Bouligny,	”	1824	”	1829.
Josiah S. Johnston,	”	1824	”	1833.
Edward Livingston,	”	1829	”	1831.
Geo. A. Waggaman,	”	1831	”	1835.
Alexander Porter,	”	1833	”	1837.
Robert C. Nichols,	”	1833	”	1841.
Alexander Morton,	”	1838	”	1842.
Alexander Barrow,	”	1841	”	1847.
Charles M. Conrad,	”	1842	”	1843.
Pierre Soulé,	” {	1847	”	1847.
		1849	”	1855.
Solomon W. Downs,	”	1847	”	1853.
John Slidell,	”	1853	”	1861.
Judah P. Benjamin,	”	1853	”	1861.
John S. Harris,	”	1868	”	1871.
Wm. Pitt Kellogg,	”	1868	”	1873.
J. R. West,	”	1871	”	1877.



INDIANA.

1. Indiana was first explored by the enterprising French Jesuits, who highly appreciated the beauty, resources, and grand future of the vast

Mississippi valley. Wiser than their sovereign, Louis XIV., they would have taken firm and effectual possession of all this region, from the Great Lakes to the Gulf, but Louis was too much occupied with his palaces, the splendor of his court, the banishment of Protestants, and war with his neighbors to lend a due support to their plans. They explored the region in 1682, formed a settlement at Vincennes in 1730, and made friends of the Indians. The career of the French, in Europe and America, was checked by the extravagance of the Court, and disastrous wars; and this little colony remained for nearly three generations solitary and stationary in the wilderness; fraternizing with the Indians and enjoying life as only the French can under such dreary circumstances.

2. After the Revolution all this region was included in the Northwest Territory. The grim earnestness of the Americans in pushing their fortunes alarmed, without conciliating, the Indians, and for a long time a deadly struggle alone could preserve the growing settlements from total extinction. The brave and talented Tecumseh and his twin brother, the Prophet, made a desperate effort to drive back or exterminate the settlers; but they were conquered, and the Indians retreated, step by step, before the advancing flood of emigration. In 1809 Indiana was erected in to a separate Territory, and admitted into the Union as a separate State on the 11th of Dec., 1816. It is 275 miles long by 135 in width. The surface is mainly level or gently undulating; the irregularities in the southern part, seldom rising more than two hundred feet, but with a rocky foundation to the soil, presenting many advantages to manufactures along the streams; these facilities are increased by the extent and value of bituminous coal deposits which underlie nearly one-fourth of the area of the State.

3. Indiana has a happier mixture of prairie and woodland than any other western State. Its commercial facilities are great. Reaching Lake Michigan on the northwest, Chicago forms a fine metropolis for the northern parts; while the Ohio on the south furnishes cheap transportation to Cincinnati and Pittsburg toward the east, or New Orleans to the southwest. Lying between the fertile and busy regions west and the great eastern markets, it is crossed in all directions by railroads. It is in the centre of the most highly favored part of the Union, and its advantages and resources seem boundless. Its staple in agriculture is corn, but all the grains, vegetables, and fruits of the temperate zone are raised with success. The climate is mild, but it lies in the

region of variableness in weather characterizing all the western States in its latitude.

The resources of the State have been in a course of rapid and uninterrupted development for 60 years, but they are so great, and there are so many other inviting fields luring emigrants further west, that a comparatively small part of its wealth has yet been reached. There is a magnificent provision for education, and its intelligent and enterprising citizens are worthy of the Great Republic.

4. Indiana was the nineteenth State in the Union. She has an area of 33,809 square miles, equal to 21,637,760 acres. Her population in 1870 was 1,673,046, which entitles her to thirteen Representatives in Congress. Indiana is the seventh judicial circuit, and forms one judicial district. There is no port of entry in this State; but there are three ports of delivery, to-wit: Evansville, New Albany, and Madison which are attached to the New Orleans collection district.

The capital is Indianapolis. The State election is held on the second Tuesday of October. The Legislature meets only once in two years, on the first Wednesday of January.

The enacting clause of her laws is in these words: "Be it enacted by the General Assembly of the State of Indiana."

UNITED STATES SENATORS.

James Noble,	from	1816	to	1831.
W. Taylor,	"	1816	"	1825.
W. Hendricks,	"	1825	"	1837.
N. Hanna,	"	1831	"	1833.
John Tipton,	"	1833	"	1839.
O. H. Smith,	"	1837	"	1843.
A. S. White,	"	1839	"	1845.
E. A. Hannegan,	"	1843	"	1849.
J. D. Bright,	"	1845	"	1852.
J. Whitcomb,	"	1849	"	1855.
C. W. Cathcart,	"	1852	"	1853.

John Pettit,	”	1853	”	1855.
G. N. Fitch,	”	1857	”	1861.
H. A. Lane,	”	1861	”	1867.
D. Turpee,	”	1863	”	1863.
J. A. Wright,	”	1862	”	1863.
T. A. Hendricks,	”	—	”	1869.
O. P. Morton,	”	1867	”	1879.
Daniel D. Pratt,	”	1869	”	1875.
Joseph E. McDonald,	”	1875	”	1881.



MISSISSIPPI.

This State was explored by De Soto, a companion of Pizarro, in his cruel conquest of Peru, in 1541, and later by the enterprising French governor of Canada, La Salle, in 1684. The first settlement was made by the French, at Natchez, in 1716. It was one of a chain of settlements by which they proposed to connect the basins of the St. Lawrence and the great lakes with the Mississippi valley and the Gulf of Mexico.

The Natchez Indians gave the early colonists great trouble, but were finally so completely conquered that the national name became extinct, the few remnants surviving, becoming incorporated with other tribes. They were supposed to have anciently emigrated from Mexico or South America, some of their customs being similar to those of the Peruvians.

In 1763 the French ceded all this territory to England, except that of Louisiana, which became the possession of Spain.

The Choctaw Indians held possession of the northern part of the State for a long time, and became considerably civilized.

The northern part of the State is prairie, the soil being extremely rich, while the south is sandy. The surface is generally level or undulating. Commerce and agriculture form its principal resources; though neither have been highly developed. Cotton is the principal staple. It is remarkably well adapted to the growth of fruit, though it has been very little cultivated. The State is well supplied with railroads, which, with the Mississippi flowing the whole length of her western boundary, furnish ample transportation for all the produce of her fertile soil.

The Territory of Mississippi became a State in 1817; making the twentieth State. The area is 47,156 square miles, equal to 30,179,840 acres. The population in 1870 numbered 834,170; which entitles her to six Representatives in Congress. The State lies in the fifth judicial circuit, and is divided into two judicial districts, viz.: the Northern and Southern districts of Mississippi. She has three ports of entry, viz.: Natchez, Vicksburg, and one near the mouth of Pearl river, to be established whenever the President may direct; also three ports of delivery, viz.: Grand Gulf, Ship Island and Columbus.

Jackson is the capital. The State election is held on the Tuesday after the first Monday in November, and her Legislature meets biennially on the Tuesday after the first Monday in January.

The enacting clause of the laws is in these words: "Be it enacted by the Senate and House of Representatives of the State of Mississippi in General Assembly convened."

UNITED STATES SENATORS.

Walter Leake,	from	1817	to	1820.
Thomas H. Williams,	"	1817	"	1829.
	{	1838	"	1839.
David Holmes,	"	1820	"	1825.
Powhattan Ellis,	"	1825	"	1833.

Thomas B. Reed,	”	1826	”	1829.
Robert Adams,	”	1830	”	1830.
George Poindexter,	”	1830	”	1835.
John Black,	”	1832	”	1838.
R. J. Walker,	”	1835	”	1845.
James F. Trotter,	”	1838	”	1838.
John Henderson,	”	1839	”	1845.
Jesse Speight,	”	1845	”	1847.
Joseph W. Chambers,	”	1845	”	1847.
Jefferson Davis,	”	{ 1847	”	1851.
		1857	”	1861.
Henry S. Foote,	”	1847	”	1853.
John W. Rea,	”	1851	”	1851.
Walter Brooks,	”	1852	”	1852.
Albert G. Brown,	”	1854	”	1861.
Stephen Adams,	”	1852	”	1857.
Henry R. Revels,	”	1869	”	1871.
James L. Alcorn,	”	1871	”	1877.
Adelbert Ames,	”	—	”	1875.
Henry R. Pease,	”	—	”	1877.
Branch K. Bruce,	”	1875	”	1881.



ILLINOIS.

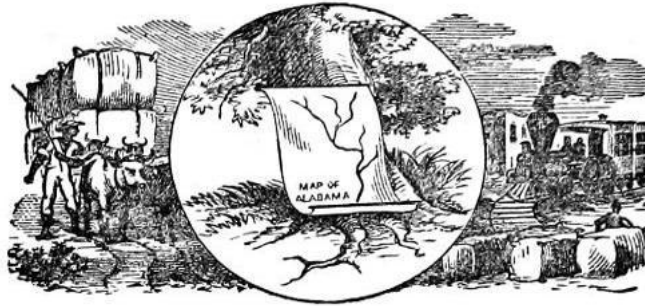
Illinois was first visited by Europeans in the persons of French Jesuit missionaries in the year 1672, who explored eastern Wisconsin and northern Illinois in that year. The oldest permanent settlement in the valley of the Mississippi was made at Kaskaskia, in this State, in the year 1720, by the French. The name of the State is derived from the aboriginal inhabitants. In the Indian dialect it was “Illini,” and signified a perfectly formed man. The French settlers changed the name to Illinois. This State was formed from what was known as the Northwestern territory, and was the twenty-first of the American Union. It was admitted and became an independent State on the 3d day of December, 1818. It has an area of 55,405 square miles, equal to 35,459,200 acres. Its population in 1870 was 2,539,638. Extending through more than five degrees of latitude, Illinois has quite a variety of climate. The surface is level. The soil is fertile and the agricultural capabilities of this State are not surpassed by any sister State, if indeed by any portion of earth’s surface, of equal extent. Her staple products are corn, wheat, oats, potatoes, hay, and products of the dairy, besides large quantities of fruit. The State is rich in minerals. A large portion of the lead producing region of the country is in this State. Bituminous coal is found in almost every county in the State. Copper is found in large quantities in the north, and iron in both south and north. Lime, zinc, marble of excellent quality, freestone, gypsum, and other minerals, are found in various parts.

The State is entitled to nineteen representatives in Congress, and forms a part of the seventh judicial circuit. It forms two judicial districts, viz.: northern and southern. It has one port of entry, Chicago, and four ports of delivery, viz.: Alton, Quincy, Cairo, and Peoria. The capital is Springfield. The State election is held on the Tuesday after the first Monday in November. The legislature meets biennially on the first Monday in January. The enacting clause of the laws is as follows: “Be it enacted by the people of the State of Illinois represented in the General Assembly.”

UNITED STATES SENATORS.

J. B. Thomas,	from	1818 to 1829.
N. Edwards,	”	1818 ” 1824.
	”	1824 ” 1825.
John McLean,	{	1829 ” 1830.

D. J. Baker,	”	1830	1 month.
E. K. Kane,	”	1825	to 1836.
J. M. Robinson,	”	1830	” 1841.
W. L. D. Ewing,	”	1835	” 1837.
R. M. Young,	”	1837	” 1843.
S. McRoberts,	”	1841	” 1843.
J. Semple,	”	1843	” 1847.
Sidney Breese,	”	1843	” 1849.
S. A. Douglas,	”	1847	” 1861.
James Shields,	”	1849	” 1855.
L. Trumbull,	”	1855	” 1873.
O. H. Browning,	”	1861	” 1863.
W. A. Richardson,	”	1863	” 1865.
Richard Yates,	”	1865	” 1871.
John A. Logan,	”	1871	” 1877.
Richard J. Oglesby,	”	1873	” 1879.



ALABAMA.

This State was, at first, held by Georgia under her colonial charter, but was given up to the general government, in 1802, for the sum of \$1,250,000. It then became a part of the Mississippi territory, but was separated when Mississippi became a State, in 1817.

It was settled in 1711, at Mobile, by the French, it being a part of the territory explored and claimed for France by La Salle in 1684. The Indian name of Alabama means "Here we rest." Its soil can scarcely be excelled for fertility in the world. It has every variety of climate, from the high and stern severity of a mountain region in the north, through all gradations, to the heat and luxuriant vegetation of the tropics along the southern coast. The center abounds in coal and iron, and various other minerals are found in abundance. Until the Revolution it was a hunting ground for the Indians. Being then stirred up by British emissaries, and threatening the security of the frontiers, they were severely chastised. After the return of peace, when the growing wealth and population of the original States excited them to enterprise, the territory invited population by its surpassing fertility, and it graduated to the importance of a sovereign State by admission into the Union, Dec. 14th, 1819, forming the twenty-second State.

It has an area of 50,722 square miles, equal to 32,462,080 acres, and had a population in 1870 of 966,988, by which she is entitled to eight Representatives.

It forms a part of the fifth judicial circuit, and is divided into three judicial districts, the Northern, Middle and Southern.

It has one port of entry, (Mobile,) and two ports of delivery, viz.: Tuscumbia and Selma.

The capital of the State is Montgomery.

The State election is held on the Tuesday after the first Monday in November. The Legislature meets on the third Monday in November.

The enacting clause of its laws is as follows: "Be it enacted by the Senate and House of Representatives of the State of Alabama, in General Assembly convened."

UNITED STATES SENATORS.

William R. King,	from {	1819	to	1844.
		1846	"	1852.
John W. Walker,	"	1819	"	1822.
Henry Chambers,	"	1825	"	1826.
Israel Pickens,	"	1826.	Superseded the same year by—	
		1826	"	1831.
John McKinley,	" {	1837	"	1841.
Gabriel Moore,	"	1831	"	1837.
Clement C. Clay,	"	1837	"	1841.
Arthur P. Bagby,	"	1841	"	1849.
Dixon H. Lewis,	"	1844	"	1847.

Benjamin Fitzpatrick,	"	1852	"	1861.
Jeremiah Clemens,	"	1849	"	1853.
Clement C. Clay, Jr.,	"	1853	"	1861.
Willard Warner,	"	1868	"	1871.
George Goldthwaite,	"	1871	"	1877.
George E. Spencer,	"	1868	"	1879.



MAINE.

This State forms the northeastern boundary of the Republic; Canada and New Brunswick lying north and east. It was at first a province, granted by charter to Sir Ferdinand Gorges, by the King of England, in 1638; but was united with Massachusetts by purchase in 1652. It was settled by the English, at Bristol, in 1625. It was admitted as a State into the Union March 15th, 1820, being the twenty-third in order of admission. It contains 31,766 square miles, or 20,330,240 acres in area. In 1870 the population was 626,463.

It has now five Representatives in Congress.

The northern part of this State is almost a wilderness, and furnishes large quantities of lumber, which are floated down her large rivers, and supplied, in great abundance, to the Atlantic seaports, and the West Indies. Ship-building is an extensive branch of industry, the great length and irregular line of coast forming numerous harbors. It has extensive fisheries, and a large sea-faring population. Its numerous streams are highly favorable to manufactures, though comparatively little has as yet been done in this direction. The climate is severe and the soil somewhat sterile, so that it ranks low as an agricultural State. It has received comparatively few additions to its population by foreign immigration; and its inhabitants are mainly from the old English stock, and the State ranks high in morality. It depletes itself by furnishing, like many other of the older States, annually, a large number of vigorous, enterprising young men to settle the new and fertile regions of the west.

It forms part of the first judicial circuit, and constitutes one judicial district. It has thirteen ports of entry, and thirty-two ports of delivery.

The capital is Augusta, on the Kennebec river.

The State elections are held on the second Monday of September; and the Legislature meets on the first Wednesday of January in each year.

The enacting clause of its laws is: "Be it enacted by the Senate and House of Representatives, in Legislature assembled."

UNITED STATES SENATORS.

John Holmes,	from	1820	to	1833.
John Chandler,	"	1820	"	1829.
Albion P. Harris,	"	1827	"	1829.
Peleg Sprague,	"	1829	"	1835.
Ether Shepley,	"	1833	"	1836.
John Ruggles,	"	1835	"	1841.
Judah Dana,	"	1836	"	1837.

Reuel Williams,	"	1837	"	1843.
George Evans,	"	1841	"	1847.
John Fairfield,	"	1843	"	1847.
Wynan B. S. Moore,	"	1848	"	1848.
James W. Bradbury,	"	1847	"	1853.
		1848	"	1857.
Hannibal Hamlin,	"	1857	"	1861.
		1869	"	1881.
Amos Nourse,	"	1857	"	1857.
William P. Fessenden,	"	1853	"	1864.
		1865	"	1869.
Lot M. Morrill,	"	1861	"	1877.
Nathan A. Farwell,	"	1864	"	1865.



MISSOURI.

This State was first settled by the French, at or near the present capital, in the year 1719. Here a fort was established, called Fort Orleans, and the neighboring lead mines were worked the next year. St. Genevieve, the oldest town in the State, was settled in 1755, and St. Louis in 1764. In 1763 it, with all the territory west of the Mississippi, was assigned by treaty to Spain. This territory was ceded back to France in 1801, and with Louisiana was purchased by the United States in 1803. It remained a part of Louisiana until the admission of the State of that name, when the remaining portion of that purchase was called Missouri. In 1821 it was admitted into the Union, forming the twenty-fourth State. This State has an area of 67,380 square miles, equal to 43,123,200 acres.

Her population in 1870 was 1,715,000, entitling her to thirteen Representatives in Congress.

The climate of Missouri is variable; in winter the thermometer sinks below zero; the summers are excessively hot; the air is dry and pure. The State is quite as healthful as any in the west. The soil is good and of great agricultural capabilities. The great staple is Indian corn. The other products cultivated largely are hemp, wheat, oats, tobacco. Sheep and cattle are considerably raised, and fruit culture is successful.

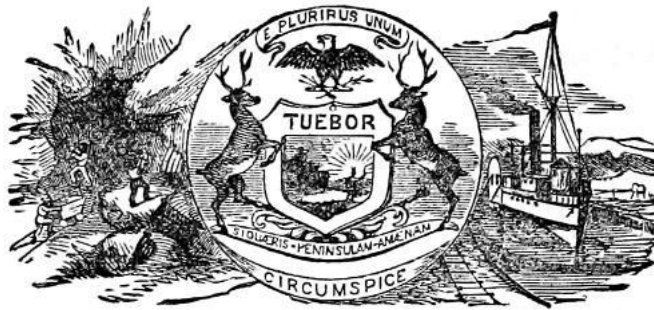
This State is in the eighth judicial circuit; and forms two judicial districts, the Eastern and Western. It has no port of entry, and but one port of delivery, Hannibal.

The capital is Jefferson City. The State election is held on the Tuesday after the first Monday in November, and the Legislature meets on the last Monday of December. The enacting clause of the laws is: "Be it enacted by the General Assembly of the State of Missouri as follows."

UNITED STATES SENATORS.

Thomas H. Benton,	from	1821	to	1851.
David Barton,	"	1821	"	1831.
Alexander Buckner,	"	1831	"	1833.
Lewis F. Linn,	"	1833	"	1843.
David R. Atchison,	"	{ 1843	"	1849.

		1849	"	1855.
Gratz B. Brown,	"	1863	"	1867.
Henry S. Geyer,	"	1851	"	1857.
Trusten Polk,	"	1857	"	1861.
James S. Green,	"	1856	"	1861.
Waldo P. Johnson,	"	1861	"	1862.
John B. Henderson,	"	1862	"	1869.
Charles D. Drake,	"	1867	"	1871.
Carl Schurz,	"	1869	"	1875.
Francis P. Blair,	"	1871	"	1873.
Lewis V. Boggy,	"	1873	"	1879.
Frank M. Cockrell,	"	1875	"	1881.



MICHIGAN.

The name of this State is a contraction of two words in the Chippewa language, meaning "Great Lake," and was applied, by the Indians, to the two surrounding the lower peninsula. It was explored by Jesuit missionaries, who established numerous missions among various Indian tribes, and pushed their way, through perils and fatigues, west to the Mississippi, which, they followed far north and south; to be soon outstripped by the adventurous La Salle. Detroit was founded about 1701. The settlements made little progress under French rule; and when, in 1763, it passed under English control, the conspiracy of Pontiac nearly destroyed them. It was not till 1796 that the United States government took possession of the territory. Its growth was much retarded by the war of 1812, when it endured, for two years, all the barbarities of Indian war.

A territorial government was organized in 1805. In 1818 the lands were brought into the market, since which its prosperity has been uninterrupted. It is remarkable in its position, and eminently so by its resources. The southern peninsula is very productive. The northern peninsula contains the richest copper mines in the world, and unlimited supplies of iron, while the quantity of the finest lumber, and the facilities for transporting it are superior. The fish taken in its lakes are excellent and abundant; its people are enterprising and intelligent; and its State authorities have established one of the best Universities in the Union. Its future promises to become equal at least to that of the most favored State.

The Territory of Michigan was changed into a State preliminarily June 15, 1836, and was fully admitted to an equality with all the States January 26, 1837, making the twenty-fifth State (Arkansas was admitted on the same day). Her area is 56,243 square miles, equal to 35,995,520 acres. The population in 1870 was 1,184,296, which entitles her to nine Representatives in Congress. By an act of 1866, Michigan was located in the sixth judicial circuit; and forms two judicial districts, and has four collection districts and four ports of entry, viz.: Detroit, Port Huron, Grand Haven, and Michilimackinac; also five ports of delivery (if the President deem them necessary).

The capital is Lansing. The State election is held on the Tuesday after the first Monday in November. The Legislature meets biennially on the first Wednesday in January.

The enacting clause of the laws is as follows: "The people of the State of Michigan enact."

Lucius Lyon,	from	1836	to	1839.
John Norvall,	"	1836	"	1841.
Augustus S. Porter,	"	1839	"	1845.
William Woodbridge,	"	1841	"	1847.
Lewis Cass,	"	1845	"	1857.
Alpheus Felch,	"	1847	"	1853.
Thomas Fitzgerald,	"	1848	"	1849.
Charles E. Stewart,	"	1853	"	1859.
Zachariah Chandler,	"	1857	"	1875.
Kinsley S. Bingham,	"	1859	"	1861.
Jacob M. Howard,	"	1862	"	1871.
Thomas W. Ferry,	"	1871	"	1877.
Isaac P. Christiancy,	"	1875	"	1881.



ARKANSAS.

Arkansas was originally a portion of the Territory of Louisiana. It remained a part of that territory until 1812, when the present State of Louisiana was admitted into the Union. The remainder of the territory was then formed into the Missouri Territory, and so remained until 1821 when Missouri was admitted into the Union, and Arkansas was erected into a separate territory, bearing the present name. In 1836, a State constitution was formed at Little Rock, and Arkansas became a State in the Union. It constituted the twenty-sixth State. It has an area of 52,193 square miles, equal to 33,406,720 acres. The population in 1870 was 483,197, which entitles her to four Representatives in Congress. The eastern portion of the State, extending back one hundred miles from the Mississippi, is generally a vast plain covered with marshes, swamps, and lagoons. The Ozark mountains which enter the northwest part of the State divide it into two unequal parts, of which the northern has the climate and productions of the Northern States, while the southern portion, in climate and productions, resembles Mississippi and Louisiana. The lowlands of Arkansas are unhealthy, while the more elevated portions of the State will compare favorably with the most healthful and invigorating portions of the Northwest. There is a great variety of soil in this State. While some portions, like the river bottoms, are exceedingly fertile, other parts are sterile and barren.

The staple products are Indian corn, cotton and live stock. Arkansas gives indications of rich mineral resources.

This State lies in the eighth judicial circuit, and forms two judicial districts, the eastern and western. It has no ports of entry or delivery.

The capital of the State is Little Rock. She holds her State election the first Monday in November. The Legislature meets but once in two years, on the first Monday in January. The enacting clause of the laws is: "Be it enacted by the General Assembly of the State of Arkansas."

UNITED STATES SENATORS.

William S. Fulton,	from	1836	to	1844.
Ambrose H. Sevier,	"	1836	"	1848.
Chester Ashley,	"	1844	"	1847.
William K. Sebastian,	"	1848	"	1861.

Solon Borland,	"	1848	"	1853.
Robert W. Johnson,	"	1853	"	1861.
Charles B. Mitchell,	"	1861	"	1861.
Alexander McDonald,	"	1868	"	1871.
Benjamin F. Rice,	"	1868	"	1873.
Powell Clayton,	"	1871	"	1877.
Stephen W. Dorsey,	"	1873	"	1879.



FLORIDA.

This peninsula was discovered by Ponce de Leon, a companion of Columbus, in 1512, on Easter Sunday, called by the Spaniards Pascua Florida, which, with the profusion of flowers found at this early season in that tropical region, caused him to name it Florida—"the flowery land." It was first colonized by French Huguenots, for whom Admiral Coligni desired to find an asylum in the new world, from the fierce bigotry of the times. The first settlers (1564) became discouraged and returned; the second colony, established in 1566, was destroyed by the Spaniards. These founded a settlement in 1565 at St. Augustine, which was the oldest town in the United States settled by Europeans. It remained in their hands until 1763, when, by the terms of the "Peace of Paris," it fell into the hands of the English. It was returned to Spain in 1783.

It was acquired from Spain by treaty made with the United States in 1819, but the American authorities did not take possession until July, 1821. The consideration given by our government was about five million dollars. It is a point running out from the Southeast border of our territory, of but little elevation above the sea level, and swampy, but covered with an exuberant growth of vegetation with a chain of lakes from south to north through the center. The warmth of the climate, where no winter is ever known, promotes the growth of the rarest and most beautiful flowers; the clustering vines and dense foliage render its forests almost impenetrable, and its delicate mosses are the wonder and delight of the naturalist; while the splendid plumage of its tropical birds, flitting among the lemon and orange groves, laden at once with bud, flower and fruit, combine to add the scenery of the equatorial regions to the homely but more useful vegetable growth and beauty of our temperate zone. It is a resort of invalids during the rigors of the northern winter, its otherwise excessive heat being tempered by the sea breezes from either side. With its marshes drained and its vegetable growth subdued and guided by the industrious agriculturist, its supply of the fruits and other production of warm climates would be inexhaustible. It is but partially settled, and its agricultural, commercial, and manufacturing facilities but slightly developed. Its wealth of resources remain to reward the enterprise and industry of the future. The railroad connections between its cities and other States furnish a sufficient basis for improvement.

Florida was admitted into the Union, March 3, 1845; making the twenty-seventh State. This State has an area of 59,268 square miles, equal to 37,931,520 acres. The population in 1870 amounted to 187,756. She has two Representatives in Congress.

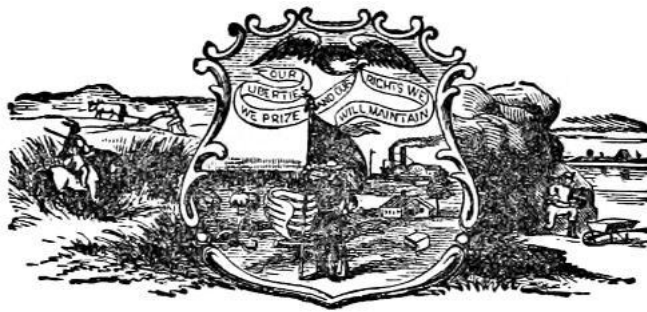
Florida lies in the fifth judicial circuit, and forms two judicial districts; and has seven ports of entry—St. Augustine, Key West, Apalachicola, Pensacola, Magnolia, St. John's River, and Fernandina; and two ports of delivery—Palatka and Bay Port.

The capital is Tallahassee. The State election is held on the Tuesday after the first Monday in November. The Legislature meets on the Tuesday after the first Monday in January.

The enacting clause of the laws is: "Be it enacted by the Senate and House of Representatives of the State of Florida, in General Assembly convened."

UNITED STATES SENATORS.

David L. Yulee,	from	1845	to	1861.
J. D. Wescott,	"	1845	"	1851.
Jackson Morton,	"	1849	"	1855.
S. R. Mallory,	"	1851	"	1861.
A. S. Welch,	"	1868	"	1869.
Thomas W. Osborn,	"	1868	"	1873.
Abijah Gilbert,	"	1869	"	1875.
Simon B. Conover,	"	1873	"	1879.
Chas. W. Jones,	"	1875	"	1881.



IOWA.

1. The name of this State in the Indian tongue is said to mean "*This is the Land.*" Few States have a surface, soil, and position so uniformly excellent for all their different sections. A high rolling prairie, well drained by streams, of great fertility, and almost no sterile or waste land; beautiful to look upon in its alternations of rise and fall, of prairie, stream, and timber; bounded on its extremes by the two mighty branches of the "Father of Waters," with numerous smaller rivers hundreds of miles in length within its limits; its southern region underlaid by a vast bed of coal, its northern rich in deposits of lead; a climate free from the severity of Minnesota and Wisconsin winters, and from the intemperate heats of Missouri and Kentucky summers, it is a land to be satisfied with; and justifies the picturesque name given it by its ancient appreciative owners.

2. It was first visited by Europeans in 1673. Marquette and Joliet, two French Jesuit missionaries, whom the vast magnitudes of the North American continent seemed to stimulate like new wine, roamed alone over these immense distances, preserved by their characteristic French cordiality from the suspicion and hostility of the numerous warlike Indian tribes—who everywhere received them with hospitality, treated them with respect, and dismissed them with assistance—passed, in that year, down the Mississippi, and, landing a little above the mouth of the Moingona—which, from the similarity of sound, they corrupted into Des Moines, (Monk's River)—they fearlessly followed an Indian trail fourteen miles into the interior to an Indian village. Some tradition or prophecy had forewarned the Indians of venerable white visitors, and they were received at once as expected and honored guests. The new religion they announced, and the authority of the king of France which they proclaimed, raised no remonstrance or hostile feeling, and they were sent on their way down the river with the "Pipe of Peace." The grand visions of the future entertained by these and other French explorers were never realized by that nation. It was more than a hundred years later that the first settlement was made by Julian Du Buque on the site of the present city of that name. He obtained a grant of 180,000 acres from the Indians, established a trading post, and worked the lead mines, with great profit; but the time had not come for dispossessing the Indians, and almost fifty years more passed before any other settlement was attempted.

3. In 1832 the Winnebagoes, Sacs, and Foxes united under the Winnebago chief, Black Hawk, to invade and repossess the lands in Illinois which they had ceded to the government. Gen. Atkinson met and defeated them on the Upper Iowa, taking Black Hawk and his son prisoners. They were taken east, kindly treated, and set at liberty;

and in the following year a treaty was made which ultimately extinguished the Indian title to the whole of Iowa, the Indians removing west of the Missouri. In the same year a settlement was made at Burlington. The time for Iowa had come. In 1834 it was joined to the Territory of Michigan, in 1837 was reorganized as part of the Wisconsin territory, and, in 1838, became a separate territory with the capital at Burlington. March 3d, 1845, it was conditionally, and Dec. 28th, 1846, fully admitted into the Union as a Sovereign State. In 1840 it had a population of over 40,000, in 1850 of nearly 200,000. A steady growth followed, and she has now, probably, a million and a half of inhabitants. Four parallel lines of railroad pass entirely across the State from east to west, three from north to south, and various others are in process of building or form intersecting lines. She is scarcely yet fully launched into her career of greatness. When her virgin soil shall all be broken up and its hidden wealth evoked by her intelligent and skillful agriculturists, when the full tide of commerce on her two great rivers shall have set in to supplement her railroads, and mature organization shall have made all her resources available, she will take her proper place in the first rank of States in the Union, and her citizens will repeat with satisfaction and pride the Indian declaration, "This is the Land."

Iowa was the twenty-eighth State, on its admission, in 1845. It has an area of 55,045 square miles, equal to 35,228,800 acres. The population in 1870 was 1,191,802, which entitles her to nine Representatives in Congress. This State lies in the eighth judicial circuit, and makes one judicial district. She has no port of entry, but has three ports of delivery, to-wit: Burlington, Keokuk, and Dubuque; all of which are attached to the collection district of New Orleans, in the State of Louisiana.

Des Moines is the capital. The State election is held on the second Tuesday of October. The Legislature meets biennially on the second Monday in January.

The enacting clause of her laws is in these words: "Be it enacted by the General Assembly of the State of Iowa."

UNITED STATES SENATORS.

George W. Jones,	from	1848	to	1859.
Augustus C. Dodge,	"	1848	"	1855.
James Harlan,	"	1856	"	1865.
	{	1867	"	1873.
James W. Grimes,	"	1859	"	1869.
Samuel J. Kirkwood,	"	1866	"	1867.
James B. Howell,	"	1870	"	1871.
George G. Wright,	"	1871	"	1877.
William B. Allison,	"	1873	"	1879.



TEXAS.

This State forms the southwestern portion of the United States. The first settlement in Texas was made on Matagorda bay, under the French led by La Salle, in 1685. It passed into the possession of the Spanish in the year 1690.

After the independence of Mexico, in 1822, Texas remained a Mexican province until the revolution of 1836, when it gained its independence. It continued an independent republic, modeled on the United States, until 1845, when, the Texan Congress having accepted the conditions imposed by the Congress of the United States, it became

the 29th State in the Union. It has an area of 237,504 square miles, equal to 152,002,560 acres. The population in 1870 was 797,500, which entitles her to six members of Congress.

This State embraces every variety of surface; mountain, plain, hill, and desert waste lie within its limits. The climate is free from the extremes of both the temperate and torrid zones, producing, in the north, many of the products of the temperate, and in the south many of those of the torrid zone. The variation in the temperature from the season of winter to that of summer is quite small, giving the State as equable a climate as any in the world. While it shares the genial climate of the “sunny South” it is free from all the deadly swamp exhalations of the lower Mississippi States. The soil, on the whole, is as fertile as any in the world. It furnishes the very best natural pasture all the year round. Cotton in large quantities—Indian corn, wheat, rye, oats and other small grains—tobacco, indigo and rice, are the staple products. The grape, mulberry and the vanilla, are indigenous and abundant. Cayenne pepper is grown in vast quantities. Fruit is no less various and abundant than its other products. The peach, nectarine, fig, plum, quince and a great variety of berries flourish here. Oranges, lemons, limes and melons, grow well. Live stock of all varieties and in vast numbers fatten on the plains, and are shipped in all directions to supply every demand.

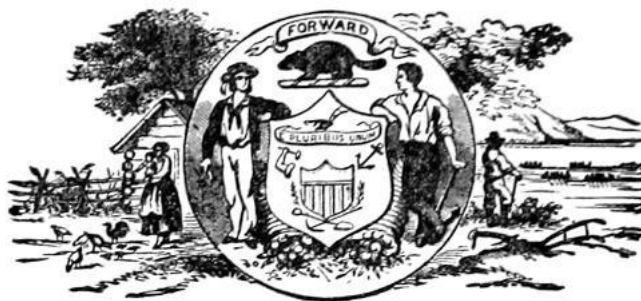
Texas abounds in minerals. Rich silver mines are already worked successfully at San Saba. Gold in small quantities has been found west of the Colorado river. Coal is abundant. Iron is found in many parts of the State. There are also salt lakes and salt springs, copper, alum, lime, agates, chalcedony, jasper and a white and red sandstone.

Texas lies in the fifth judicial circuit, and makes two judicial districts, the eastern and the western. There are three collection districts in the State. The respective ports of entry for these districts are Galveston, La Salle, and Brazos Santiago. To these are attached nine ports of delivery.

The capital is Austin. The Legislature is composed of a Senate, elected for four years, and a House of Representatives, elected for two years. The sessions of the Legislature are biennial and are held in December. The Governor is elected for four years.

UNITED STATES SENATORS.

Thomas F. Rusk,	from	1846	to	1856.
Samuel Houston,	”	1846	”	1859.
Pinckney J. Henderson,	”	1857	”	1858.
Matthias Ward,	”	1858	”	1861.
John Hemphill,	”	1869	”	1871.
Lewis T. Wigfall,	”	1859	”	1861.
J. W. Flannagan,	”	1869	”	1875.
Morgan C. Hamilton,	”	1871	”	1877.
Samuel B. Maxey,	”	1875	”	1881.



WISCONSIN.

1. This State was visited and crossed by the early French explorers about 1665, and a settlement was made at Green Bay in 1669 and soon after on the Mississippi, at Prairie du Chien. It was the policy of these enterprising men to connect the French settlements on the lower St. Lawrence by a chain of stations on the lakes and rivers

with the mouth of the Mississippi. This would have passed through the heart of the country and have laid open its chief resources at once. It was a bold conception. We see it nowhere among the English explorers and settlers, who seemed not to like to lose sight of their ships; but it is quite in keeping with the grand and rapid genius of the French; and, as in so many other cases, by attempting too much they lost the whole. The English, if slower, were sure, and consolidated their possessions on the coast, gradually pushing westward as they were able to hold their ground.

2. The French explorers have left traces of their untiring activity in the names of rivers and places, and even Indian tribes, but the attention of their home government was soon withdrawn from them. No further extension was given to settlement for near 150 years, notwithstanding it was so easy of access from the south by the Mississippi river, and from the east by the chain of great lakes. Very fortunately, as it now seems, all this vast and valuable territory in the heart of the continent, equal, perhaps in its natural wealth, to the original resources of the whole of Europe, was reserved to reward the labors and consolidate the beneficent power of a Nation of Freemen, carefully trained and adapted to their high destiny.

3. The tide of emigration flowed westward by way of the Ohio river, and the States south were settled and admitted into the Union long before Wisconsin received even a Territorial government. This occurred in 1836, and in 1840 the census gave it but little over 30,000 inhabitants. Population now flowed steadily to it and we find, in 1850, over 300,000 inhabitants. It was admitted into the Union in 1848, making the thirtieth State. Its high latitude probably had something to do with this deferred settlement, the milder winters of the more southern range of States attracting the emigrants first. The climate, however, has important advantages over the States in question, being drier, less changeable, and not so subject to extremes. It is very healthy, and probably the oldest man in the country was living, hale and hearty, in this State, a few years ago, at the patriarchal age of 139. The climate is milder than in the same latitude farther east.

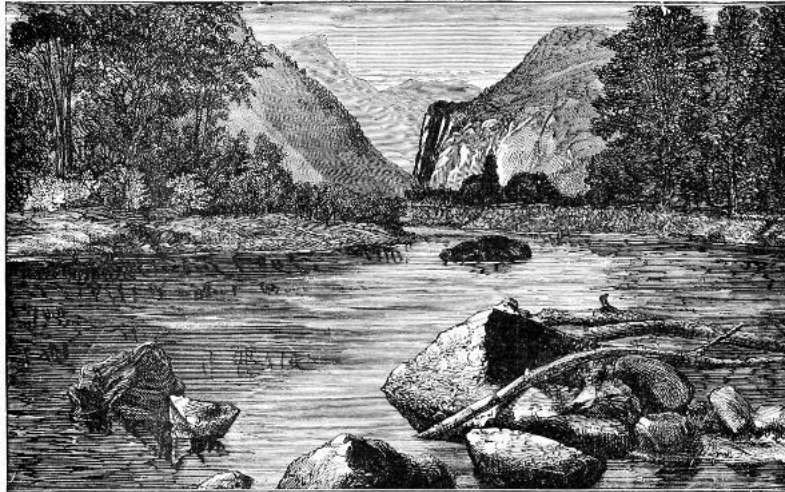
4. The surface is a high rolling prairie, open and mostly treeless, except near streams and bodies of water in the south, but in the north covered with timber. Vast forests of pine grow on the northern slope, which is some 1,200 feet above the level of the sea. Some parts of the State fall 600 feet below that elevation; and a succession of ridges having a general direction east and west, separate the rivers flowing into Lake Superior, Green Bay, and Lake Michigan, while many streams flow southwest into the Mississippi. The State is 285 miles long by 255 wide. Its beautiful prairies, gratefully returning a bountiful harvest to the intelligent farmer; its numerous charming lakes and ponds; its remarkable commercial advantages by lakes and rivers, supplemented by canals and railroads; its great manufacturing facilities, and valuable mineral deposits, give great promise to its future. Wheat is the leading agricultural staple, but all the grains, vegetables, and fruits of the Northern States well reward cultivation. It has an area of 52,924 square miles, equal to 34,511,360 acres. In 1870 the population amounted to 1,055,167, which gave her eight Members of Congress. Wisconsin lies in the seventh judicial circuit (which is composed of Wisconsin, Indiana and Illinois,) and forms one judicial district. It has one collection district, one port of entry (Milwaukee,) and five ports of delivery, viz.: Southport, Racine, Sheboygan, Green Bay and Depere.

The capital of the State is Madison. The Legislature meets on the second Wednesday in January. The State election is on the Tuesday after the first Monday in November.

The enacting clause of her laws is as follows: "The people of Wisconsin, represented in Senate and Assembly, do enact as follows."

UNITED STATES SENATORS.

Henry Dodge,	from	1848	to	1857.
Isaac P. Walker,	"	1848	"	1855.
Charles Durkee,	"	1855	"	1861.
James R. Doolittle,	"	1857	"	1869.
Timothy O. Howe,	"	1861	"	1875.
M. H. Carpenter,	"	1869	"	1875.
Angus Cameron,	"	1875	"	1881.



THE DOMES OF THE YOSEMITE.



CALIFORNIA

Is said to have been visited by the Spaniards in 1542, and by Sir Francis Drake, a celebrated English navigator, in 1578. The first mission was founded by Spanish Catholics in 1769. It was sparsely settled by Mexican rancheros, who occupied themselves chiefly in raising cattle. In 1846 Fremont, who had been conducting an exploring party across the great plains and the Rocky Mountains, defeated in conjunction with Commodore Stockton, the Mexican forces in California, and took possession of it in the name of the United States; to which it was definitely ceded by the treaty of Guadalupe Hidalgo, Feb. 2nd, 1848; the United States government paying Mexico for that territory and New Mexico \$15,000,000, besides paying \$3,500,000 indemnity, due from Mexico to citizens of the United States.

Scarcely had this arrangement been made, when it was published that California was rich in gold, and adventurers from all sections of the Union, and various countries of the Old World, rushed in like a flood. For some years, society there, composed in large part, of the wildest and most ungovernable elements of old communities, was like a seething volcano; but, to the immortal honor of American citizens, it was subdued by the superior resolution and summary vigor of the better class of emigrants from the States, and was admitted into the Union on the 7th of Sept. 1850, with a clause in its Constitution prohibiting slavery. The discussion in Congress on this point came near precipitating the Civil War that broke out ten years later. The difficulty between the slavery and anti-slavery parties was adjusted by compromise measures, for the time, but only served to allay the agitation produced by conflict of interests and opinions, which was irreconcilable.

California "The Golden," proved extraordinarily rich in precious metals and other minerals, as quicksilver, platinum, asphaltum, iron, lead, and rare qualities of marble. Its gold mines alone from 1858 to 1868 produced over \$800,000,000.

It is a broken country, traversed by two ranges of mountains. The valleys are exceedingly productive. They are unexcelled for wheat; all kinds of fruit grow in the greatest perfection; and the grape culture promises to equal, if not to excel, the products of the most famous vineyards of Europe. Surprising as is her mineral wealth, her

agricultural possibilities are far greater, and her commerce is already immense, and bids fair, from her position and relations to Eastern Asia, and the western parts of South America, to rival that of the Atlantic States.

The world was ripe for the discovery of these unparalleled treasures, and civilization was prepared to use them for the good of mankind. The ready passage across the vast and inhospitable deserts of the American continent, by means of railways, has already changed (and will probably change still more in the future) the course of commerce; and San Francisco and New York may hope to rule, in large part, the commerce of the world.

California is remarkable for the salubrity of its climate, where the rigors of winter (save on the mountains), and the excessive heats of summer are equally unknown, and for the variety and magnitude of its natural curiosities. Of the last the Yosemite valley and the Big Trees are the most prominent. She has near 1,000 miles of railroad, and has made ample provision for education.

California was the thirty-first State. It has an area of 188,982 square miles, equal to 120,948,480 acres. The population in 1870 was 560,285, entitling her to four Representatives in Congress.

By act of 1866, this State, with Oregon and Nevada, constitutes the ninth judicial circuit, and forms two judicial districts. California has seven ports of entry, viz.: San Francisco, Monterey, San Diego, Sacramento, Sonoma, San Joaquin and San Pedro; also, one port of delivery, Santa Barbara. California was obtained from Mexico by conquest in 1846.

The capital is Sacramento. She holds her State election on the first Tuesday in September. Her Legislature meets on the first Monday in December, but meets only once in two years.

The enacting clause of her laws is: "The people of the State of California, represented in Senate and Assembly, do enact as follows."

UNITED STATES SENATORS.

John C. Fremont,	from	1850	to	1851.
William M. Gwin,	"	1850	"	1861.
John B. Weller,	"	1851	"	1857.
H. P. Haun,	"	1859	"	1862.
David C. Broderick,	"	1856	"	1859.
Milton S. Latham,	"	1860	"	1866.
John Conness,	"	1863	"	1869.
Cornelius Cole,	"	1867	"	1873.
J. A. McDougall,	"	1861	"	1867.
Eugene Casserly,	"	1869	"	1875.
Aaron A. Sargent,	"	1873	"	1879.
John S. Hagar,	"	—	"	1875.
Newton Booth,	"	1875	"	1881.



DELLS OF THE ST. CROIX RIVER, MINN.



MINNESOTA.

This State might be called the Mother of Rivers, since it contains the high watershed, or tableland, where the rivers sending their waters to two oceans, in three directions, have their sources. The head waters of the Mississippi, the St. Lawrence, and the streams flowing into the frozen ocean of the north are all found here. In 1680 the unwearied La Salle visited the head waters of the Mississippi, but this region was long left to the sole occupation of the Indians.

Fort Snelling, near St. Paul, was built in 1819. No other territory was acquired, by extinction of the Indian title to the soil, until 1837; and in 1849 the civilized population gathered about the trading posts and missions amounted to less than 5,000. It then received a Territorial government. A considerable portion of the State having in 1851 been ceded, by treaty with the Indians, to the government, was immediately entered on by the settlers; and in 1858 it was prepared to take rank among the sovereign States. It was admitted in May of this year, by act of Congress.

In 1862 the State passed through the appalling crisis of an Indian massacre of the outlying settlements. It began without warning, in the midst of fancied security, and before adequate protection could be forwarded, some 500 men, women, and children were murdered with all the accompaniments of savage cruelty. Some \$3,000,000 of

property was destroyed. In a short time sufficient force was gathered to overpower the savages, and they were in large part removed from the State.

The surface is undulating and high, and the soil, in good part, extremely fertile. Portions are open and rolling prairie; the remainder heavily wooded. Though the winters are long and cold, the air is dry and invigorating, and the climate healthy. It is specially favorable to the growth of wheat. Commerce is favored by the Mississippi, navigable to St. Paul, and by good harbors on Lake Superior, as well as by numerous railways. Its provision for education is excellent, and a State University at St. Anthony's Falls promises to form a suitable crown to its intellectual advantages.

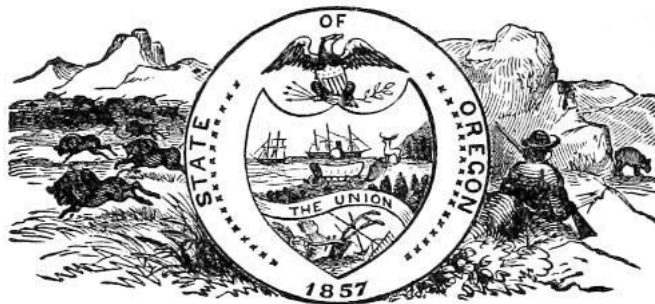
This State was admitted into the Union on the 11th day of May, 1858, and made the thirty-second State. It has an area of 83,531 square miles, equal to 53,459,840 acres. The population in 1870 amounted to 435,511. This State is entitled to three Members of Congress.

It lies in the eighth judicial circuit, which is composed of Missouri, Iowa, Kansas, Arkansas and Minnesota. Minnesota forms one judicial district, and has no ports of entry or delivery.

St. Paul is the capital. The Legislature meets annually on the Tuesday after the first Monday in November. The State election is held on the Tuesday after the first Monday in January.

UNITED STATES SENATORS.

Henry M. Rice,	from	1857	to	1863.
James Shields,	"	1857	"	1859.
Alex. Ramsey,	"	1863	"	1875.
Daniel Norton,	"	1865	"	1871.
Mort. S. Wilkinson,	"	1859	"	1865.
William Windom,	"	1871	"	1877.
S. J. R. McMillan,	"	1875	"	1881.



OREGON.

Was discovered by Spanish adventurers in the sixteenth century. In 1792 Capt. Grey, of Boston, discovered the Columbia river and entered it, securing the sovereignty of the country to the United States by right of first exploration. It was more thoroughly explored by Lewis and Clark, appointed for that purpose by the United States government, in 1804-5-6. The northern part, (now Washington Territory,) was claimed by Great Britain, and the conflicting claims produced long and dangerous diplomatic contention, which was finally peaceably ended in favor of the United States.

In 1811 a fur trading company established a fort and settlement at the mouth of the Columbia, which was taken possession of by the English in the latter part of 1813. The country was claimed by them until 1846, when the boundaries were settled by treaty; giving Oregon to the United States. Settlement from the States, however, commenced in 1839, and continued to increase until 1848, when a territorial government was organized. The excitement consequent on the discovery of gold in California drew off many of its citizens; but was, in part, counteracted by the extraordinary inducements made to actual settlers. A State constitution was adopted by the people Nov. 9th, 1857, but it was not admitted, by act of Congress, into the Union, until Feb. 14th, 1859, making the thirty-third State.

The surface of the country is divided by three ranges of mountains, the Cascade, Blue and Rocky mountains. The Cascade Range has the highest peaks found in the United States. The climate is mild near the coast, but more severe in higher eastern parts. The high eastern regions are volcanic, containing vast tracts of lava, entirely sterile; the middle is well adapted to grazing, in many parts. The valuable farming lands are in the western division, along the various tributary streams of the Columbia. Wheat is the great staple; rye, oats, and vegetables, are grown with success. Fruit is also produced in abundance. Its supply of coal and copper is said to be unlimited; and it is specially celebrated for its extensive forests of gigantic trees. Manufactures and commerce are, as yet, undeveloped; but will be important in the future. Little has been done in the way of internal improvement.

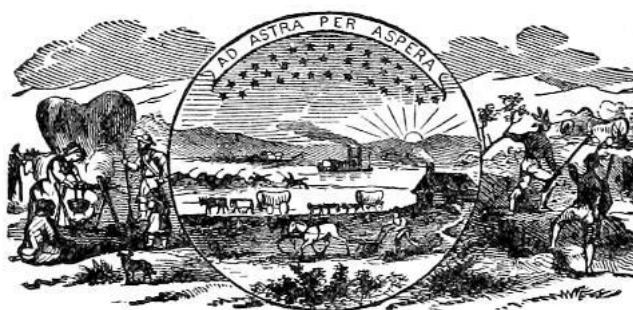
Oregon has experienced the disadvantage of growing up in the shade of her splendid neighbor, California, but has a solidly prosperous future before her.

It has an area of 95,274 square miles, equal to 60,975,360 acres. The population amounted in 1870 to 90,922, which did not reach the number required to entitle it to a Member of Congress according to the fixed ratio. But every State is entitled to one member, whatever its population may be. By act of 1866, the States of Oregon, Nevada and California were constituted the ninth judicial circuit. Oregon forms one judicial district, and has one collection district, and one port of entry.

The capital is Salem, where her Legislature meets once in two years, on the second Monday of September. The State election is held on the first Monday in June.

UNITED STATES SENATORS.

Joseph Lane,	from	1859	to	1861.
Delazon Smith,	"	1859	"	1860.
Edward D. Baker,	"	1861	"	1861.
Benj. F. Harding,	"	1862.		
James W. Nesmith,	"	1861	"	1867.
Benjamin Stark,	"	1861	"	1862.
Geo. H. Williams,	"	1865	"	1871.
Henry W. Corbett,	"	1867	"	1873.
James K. Kelly,	"	1871	"	1877.
John H. Mitchell,	"	1873	"	1879.



KANSAS.

1. Nearly every State in the American Union has some advantage that is peculiar to it, or that it shares in a degree so eminent as to distinguish it from all others. Kansas is not an exception, and some of these are exceedingly attractive. They enter, to some extent, into the painful and bloody history of its first settlement; the mighty tragedy of the Civil War having enacted its prelude on her fertile plains. The Kansas and Nebraska Bill, in 1854, repealed the Missouri Compromise, and this territory was opened to a trial of strength between Freedom and Slavery; the contest being transferred from the floors of Congress and the Representatives of the people to the settlers of the soil, who were to determine whether slavery should, or not, exist in it, as a State. The attraction of a decisive political struggle was added to the many favorable features of position, climate, and intrinsic value. Southern people sought to introduce their peculiar institution, and northern people resisted. There was much disorder and bloodshed. Every effort was made, by strategy and force, on the one side and the other. The southern

party was signally defeated and there was henceforth no hope of preserving to the slave States a balance of power in the national government, and the civil war followed, almost as a natural consequence.

2. Kansas is larger by more than 3,000 square miles than the whole of New England. It lies very near the geographical centre of the country, and stretches a friendly hand, by the Pacific Railroads, to both the Atlantic and Pacific States. A good part of her soil is declared to be much superior to that of ordinary prairie land in richness, and to average four feet in depth. It is fairly watered and timbered, and freely produces everything, except the proper tropical products of the extreme south, that is grown in the United States. The climate is that of Virginia, without its excessive heat; which may, perhaps, be considered balanced by its occasional excessively sharp and cutting winds in winter. These, however, are tolerably rare, and the winters, for the most part, short and mild, the climate being, on the whole very healthy. Its deposits of salt are exceedingly rich, and other minerals abound in various parts. Its commercial position is excellent, and its manufacturing capabilities all that the future will be likely to require. Its resources, under suitable development, cannot be considered inferior to any other equal area in the country; which is speaking in the strongest language we can command, considering what may be said of so many different localities.

3. The eastern surface is a succession of waves, or undulations, the valleys generally extending north and south. A narrow section west of it, stretching across the State is more level and the soil lighter. Beyond this long reaches of level, fertile, and well watered lands are adapted to flocks and herds. These are much higher than the river beds, the valleys of which abound in bottoms, beautiful in appearance and situation, and of inexhaustible fertility. Vast beds of coal, a good quality and abundant quantity of iron ore, and petroleum and lead have been discovered. Corn and wheat are the leading staples, and it is believed that fruit culture will soon become a leading interest of this promising State.

Kansas was admitted into the Union as a State, Jan. 29, 1861, making the thirty-fourth State. Kansas has an area of 78,841 square miles, equal to 50,187,520 acres. The population in 1870 was 362,812, giving her three Representatives in Congress. This State is in the eighth judicial circuit, and forms one judicial district. It has no ports of entry or delivery.

Topeka is the capital. The State election is held on the Tuesday after the first Monday in November. The Legislature meets on the second Tuesday in January.

The enacting clause of the laws is as follows: "Be it enacted by the Legislature of the State of Kansas."

UNITED STATES SENATORS.

James Henry Lane,	from	1861	to	1866.
Samuel C. Pomeroy,	"	1861	"	1873.
E. G. Ross,	"	1866	"	1871.
Alexander Caldwell,	"	1871	"	1877.
[3] Robert Crozier,	"	1877.		
James M. Harvey,	"	—	"	1877.
John J. Ingalls,	"	1873	"	1879.

[\[3\]](#) Appointed by Governor to fill vacancy.



WEST VIRGINIA.

This is the only State ever formed, under the Constitution, by the division of an organized State. The interests of West Virginia were always different from those of the eastern part; and when, at the commencement of the Civil War, the eastern part seceded, the western remained loyal and was erected into a separate State; thus realizing the ancient wish of its citizens.

The act of Congress organizing it as a State was passed December 31st, 1862, with condition that it should take effect 60 days after proclamation of its admission by the President of the United States. This proclamation was issued April 21st, 1863; and it was admitted to representation in Congress as a sovereign State June 20th thereafter. A temporary government without representation in Congress had been formed in May, 1862. It was the thirty-fifth State admitted into the Union.

It is varied in surface, from high mountain ranges, hilly and undulating midlands, to level and rich river bottoms; and is nearly all available either for cultivation or grazing; while its valuable deposits of coal lie very near the surface in nearly all parts of the State. Iron abounds, and timber of the best quality. Its manufacturing facilities are great; and its canals and railroads, with the Ohio river on its northwestern border, furnish the means of making it one of the richest States in the Union. The climate is healthy, and the scenery picturesque, and in places it rises to wild grandeur.

It has an area of 23,000 square miles, or 14,720,000 acres.

The population, in 1870 was 445,616. This State has now three Members of Congress. West Virginia was subsequently put into the fourth judicial circuit, and constitutes one judicial district. Parkersburg, also, was made a port of delivery.

Charleston is the capital. The State election is held on the fourth Thursday in October. The Legislature meets on the second Tuesday in January.

UNITED STATES SENATORS.

Peter G. Van Winkle,	from	1863	to	1869.
Waitman T. Willey,	"	1863	"	1871.
Arthur J. Boreman,	"	1868	"	1875.
H. G. Davis,	"	1871	"	1877.
Allen T. Caperton,	"	1875	"	1881.



NEVADA.

"The Snowy Land" derives its name from the Sierra Nevada, or Snowy Range of mountains forming the eastern boundary of California. It lies in the western part of the basin of the Great Salt Lake and among those mountains, in whose rocky bosom was found the stimulus that has changed so much of the Pacific slope, and the Rocky Mountain region, from a wild and dismal waste to populous and thriving States.

Gold was found in moderate quantities among the mountains, and population began to scatter slowly over them about 1850, and soon settlers began to improve the valleys at the foot of the mountains on the east for agricultural purposes. Carson county was organized by the territorial government of Utah in 1854; but in June, 1859, rich deposits of silver were found; and emigration began to pour in rapidly. In March, 1861, the Territory of Nevada was organized, and the same month, three years later, it was admitted into the Union, making the thirty-sixth State.

The history of these States, so rich in precious metals, puts to the blush the fantastic fables of the Arabian Nights. The silver mines of Nevada are believed to be the richest in the world. The celebrated silver mines of Potosi, in South America, never produced over \$10,000,000 a year, while in 1867, one mine in Nevada produced \$17,500,000, and is thought to be almost, or quite, inexhaustible. The climate, like that of California, is healthy; the seasons are divided into wet and dry, and agriculture is dependent on irrigation. With time and pains its products will be considerable. It has much wild and sublime scenery, and some natural curiosities; as Lake Mono, with its waters so sharply acid as to destroy cloth and leather immersed in it. Its gloomy surroundings, and the great distance from the tops of the precipitous rocks surrounding its shores to the surface of the water lend an impressive and fearful character to its severe desolation. It lies below the reach of the winds, and no living thing can exist in its waters.

It has an area of 63,473 square miles, or 40,622,720 acres. The population in 1860, while yet a Territory, was 6,857. In 1870 it had increased to 42,491. In conformity with the Constitutional provision that every State shall have one Representative in Congress, Nevada has one. This State lies in the ninth judicial circuit, and forms one judicial district, called the district of Nevada.

Carson City is the capital. The State election is held on the first Tuesday in November; and the Legislature meets on the first Monday in January.

The enacting clause of the laws is in the following words: "The people of the State of Nevada, represented in Senate and Assembly, do enact as follows."

UNITED STATES SENATORS.

James W. Nye,	from	1865	to	1873.
William M. Stewart,	"	1865	"	1875.
John P. Jones,	"	1873	"	1879.
Wm. Sharon,	"	1875	"	1881.



NEBRASKA.

1. Formed a part of the Louisiana Purchase from the French government in 1803. It received a Territorial government in 1854, and was, by the provisions of the Kansas-Nebraska Bill, equally with Kansas, exposed to the introduction of slavery; but the Southern people limited their efforts in that direction to Kansas, and Nebraska did not share in its disorder and bloodshed.

2. The greater portion of the country consists of a high, rolling prairie. The soil in the eastern part of the State is nearly the same as that of the adjoining portions of Iowa and Kansas. It is a rich loam, finely pulverized, and admirably adapted to cultivation. The second district, near the center of the State, is strictly pastoral. The third, or western section, has a fair soil, but is destitute of timber, and insufficiently supplied with water.

Throughout the fertile portion of the State, wheat, corn, oats, and other cereals, and vegetables and fruits yield largely. Vast herds of buffaloes formerly roamed over its prairies; but they are now mostly exterminated. The altitude of Nebraska secures to it a dry, pure, and salubrious atmosphere. Rain is not abundant, but, in the eastern part, is sufficient for the purposes of the agriculturist. Salt, limestone, and coal are found in various localities, and not improbably other minerals will be found in paying quantities. The State is too new to fully estimate all its resources and capabilities.

3. The educational advantages are good. The Common School System, modeled on that of Ohio, is well supplied with funds, embracing one-sixteenth of the public land, or 2,500,000 acres. 90,000 acres were given to endow a State Agricultural College, and 46,081 acres to the State University.

Its commercial facilities are supplied by the Missouri River, the Pacific and other railroads, and are amply sufficient to develop its resources. The future of the State has many elements of promise. No public debt impedes its growth, and within the last few years it has increased in wealth and population more rapidly than any of the adjoining States or Territories. An unknown, but certainly not limited, amount of wealth still lies locked up in its soil, and its relation to ocean commerce by the mighty Missouri, and to inter-State trade by lying in the great traveled route between the Atlantic and Pacific States, with a remarkably fine, healthy climate, and the ease with which its soil is worked, contribute to form a powerful attraction to labor and capital, and we have no reason to suspect any decrease in its rapid progress.

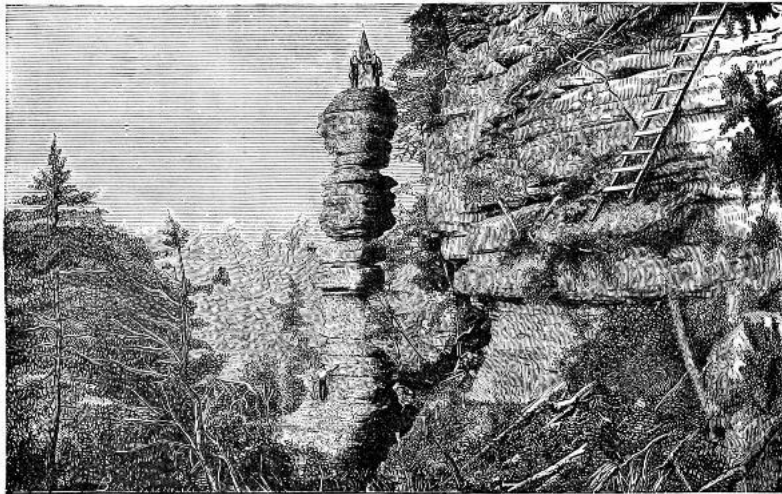
4. On its admission, in 1867, it was the thirty-seventh State. It has an area of 122,007 square miles, or 78,084,480 acres.

Population in 1870, 123,000. It forms the ninth judicial district, and has no ports of entry or delivery.

The capital is Lincoln. The State election is held on the second Tuesday in October. The Legislature meets on the Thursday after the first Monday in January.

UNITED STATES SENATORS.

John M. Thayer,	from	1867	to	1871.
Thomas W. Tipton,	"	1867	"	1875.
Phineas W. Hitchcock,	"	1871	"	1877.
Algernon S. Paddock,	"	1875	"	1881.



CHIMNEY ROCKS OF THE WEST.



COLORADO

Was formed from parts of Kansas, Nebraska and Utah. Its Territorial government was organized by act of Congress, March 2nd, 1861. It is situated west of Kansas, on the great route from the Pacific to the Atlantic States, and on the dividing ridge, or backbone, of the continent. The rivers that find their head waters within the territory run southeast and south to the Gulf of Mexico, and southwest to the Gulf of California. The surface is nearly equally divided between a plain, gently descending from the abrupt mountain wall of rock constituting the eastern flank of the Rocky Mountains, and the mighty mass of that chain, with its peaks, rising nearly three miles above the surface of the sea, now forming an elevated plateau, and again sending off spurs and lateral ranges containing beautiful valleys, or, in a more lavish and genial mood, taking a wide circuit inclosing an immense sunken plain containing hundreds of square miles of charming, well watered farming land called parks. Of these there are seven. It is a magnificent region, and contains all the elements of extreme mineral and agricultural wealth. It has mines of gold, silver, copper, lead, and iron. Coal abounds in all parts, oil flows from the wells with a little encouragement, and salt is easily obtained in some parts. An immense soda-fountain is found near Colorado City, called Fontaine qui Bouille (boiling fountain) and there are indications of cinnabar, platina, and precious stones.

The climate is fine, the general temperature like Southern Pennsylvania or Maryland; and, from the elevation, the air is very dry and pure. The plain rises by imperceptible degrees to 5,000 feet, (about one mile,) above the level of the sea, at the foot of the mountains. The numerous valleys, the parks, and much of the sloping plain, form as fine an agricultural region, with proper irrigation, as any State possesses, and much of the remainder furnishes excellent pasturage through the entire year. Occasionally heavy snow falls and for a few days extreme cold prevails, but these are exceptional years; and it does not lie long. Its effects can be guarded against with prudent care. Corn, wheat, and other small grains and vegetables reach their greatest perfection here.

It furnishes excellent manufacturing facilities along the unfailing mountain streams in the valleys, and will no doubt ultimately unite with Montana and Southwestern Dacotah to supply the immense central part of our domain with all the products of manufacturing genius and skill.

Denver the capital and principal city, is situated near the eastern base of the mountains, where these put on their severest and sublimest aspect. Clear lakes are set like stars, here and there, and the beautiful and grand in scenery are nowhere more striking, or more agreeably combined.

The Territory contains 106,475 square miles in area, and the population in 1870 numbered 29,706.

Several attempts have been made to obtain the admission of Colorado as a State into the American Union. An act to enable the people to form a constitution and State Government was passed by Congress, March, 1864. The constitution, framed under this act, was rejected by the people of the territory. Another constitution was framed and adopted in 1865, but a bill, passed by Congress for its admission, was vetoed by the President. Another attempt made in 1867 likewise failed by the President's veto; since which time it quietly remained under its Territorial government, until March 3, 1875, when it was admitted by Act of Congress.

CHAPTER LXVII.

MOTTOES AND NAMES OF THE STATES.

UNITED STATES—*E Pluribus Unum*, "Out of Many, One."

ALABAMA—Has no motto. Name, from its principal river, means "Here we rest," and denotes the satisfaction of the Indians with its agreeable landscape and climate.

ARKANSAS—*Regnant populi*—"The people rule." Has the Indian name of its river. Is called the "Bear State."

CALIFORNIA—*Eureka*, her Greek motto, means "I have found it." Derives her name from the bay forming the peninsula of lower California.

COLORADO—Latin motto, *Nil sine numine*, means "Nothing can be done without divine aid." Named from the river.

CONNECTICUT—*Qui transtulit Sustinet*, "He who brought us over sustains us." Name from her river, which means, in the Indian tongue, "The long river." Is called the "Nutmeg State."

DELAWARE—Motto, Liberty and Independence. Was named from Lord Delaware, an English statesman. Is called “The Blue Hen.”

FLORIDA—Motto, “In God is our trust.” Name from the abundance of flowers when discovered, on Easter Sunday. In Spanish Florida means flowery.

GEORGIA—Motto, “Wisdom, justice and moderation.” Named from George II, King of England when it was settled.

ILLINOIS—Motto, “State Sovereignty, National Union.” Name derived from an Indian tribe, also applied by them to Lake Michigan and her largest inland river. Means “We are the men.” Is called the “Sucker State.”

INDIANA—Has no motto. Name suggested by its numerous Indian population. It is called the “Hoosier State.”

IOWA—Motto, “Our liberties we prize, our rights we will maintain.” Its Indian name means “This is the Land.” Is called the “Hawk Eye State.”

KANSAS—Motto, *Ad astra per aspera*, “To the stars through difficulties.” Name means “Smoky water,” and is derived from one of her rivers.

KENTUCKY—Motto, “United we stand, divided we fall.” Bears the Indian name of one of her rivers. The Indians termed it the “dark and bloody ground.” It was the battle field of Northern and Southern Indians. Is called the “Blue Grass State.”

LOUISIANA—Motto, “Union and confidence.” Named from Louis XIV, King of France. It is called “The Creole State.”

MAINE—Latin motto, *Dirigo*, “I direct;” indicative of sovereignty. Was named for a province of France. Is called “The Pine Tree State.”

MARYLAND—Latin motto, *Crescite et multiplicamini*, “Increase and multiply.” Name from the Queen of England, the wife of Charles I.

MASSACHUSETTS—Latin motto, *Ense petit placidam sub libertate quietem*, “By the sword she seeks placid rest in liberty,” or “Conquers a peace.” The name was acquired from an Indian tribe and the bay on her coast. Is called the “Bay State” from her numerous bays.

MICHIGAN—Latin motto, *Tuebor*, and, *Si quæris peninsulam amœnam circumspice*. “I will defend.” “If you seek a pleasant peninsula, look around you.” The name is derived from two Indian words meaning “Great Lake,” by them applied to Huron and Michigan lakes. Is called “The Wolverine State.”

MINNESOTA—French motto, *L’Etoile du Nord*, “The Star of the North.” The name, meaning whitish water, (foam of the falls,) is derived from the Indians.

MISSOURI—Latin motto, *Salus populi suprema lex esto*, “Let the welfare of the people be the supreme law.” Named from her great river. It means “Muddy water.”

MISSISSIPPI—Has no motto. It is named from the river, whose name signifies “The Father of Waters.”

NEBRASKA—Motto, “Equality before the law.” Its name is derived from one of its rivers, meaning “broad and shallow, or low.”

NEW HAMPSHIRE—Has no motto. It is named from a county in England. Familiar name is “The Old Granite State.”

NEW JERSEY—Motto, “Liberty and Independence.” Named for the Island of Jersey on the coast of England.

NEW YORK—Latin motto, *Excelsior*, “Higher.” Named from the Duke of York. Is called “The Empire State.”

NORTH CAROLINA—Has no motto. It was named for Charles IX, King of France. It is called “The old North,” or “The Turpentine State.”

NEVADA—Latin motto, *Volens et potens*, “Willing and Able.” It was named from its mountains. Spanish name means “Snowy.”

OHIO—Latin motto, *Imperium in imperio*, “An empire in an empire.” It took its name from the river on its south boundary. It is familiarly called “The Buckeye State.”

OREGON—Latin motto, *Alis volat propriis*, “She flies with her own wings.” Name is derived from her principal river.

PENNSYLVANIA—Motto, “Virtue, liberty and independence.” Named from Wm. Penn, “Penn’s woods.” Is called the “Keystone State.”

RHODE ISLAND—Her motto is “Hope.” Named from the Island of Rhodes, in the Mediterranean Sea. Is familiarly called “Little Rhody.”

SOUTH CAROLINA—Latin motto, *Animis opibusque parati*, “Ready in will and deed.” Has the Latin name of Charles IX, of France (Carolus). Is known as the “Palmetto State.”

TENNESSEE—Motto, “Agriculture, Commerce.” Has the Indian name of one of her rivers. She is called “The Big Bend State.”

TEXAS—Has no motto. Has preserved its Mexican name. Is called “The Lone Star State.”

VERMONT—Motto, “Freedom and Unity.” Has the French name of her mountains (*Verd Mont*, “Green Mountains”).

VIRGINIA—Latin motto, *Sic semper tyrannis*, “So always with tyrants.” Was named from Elizabeth of England, the “Virgin” Queen. It is called “The Old Dominion.”

WEST VIRGINIA—Latin motto, *Montani semper liberi*, “Mountaineers are always free.” Retained the former name, when divided from Virginia.

WISCONSIN—Latin motto, *Civilitas successit barbarum*, “The civilized man succeeds the barbarous.” Has the Indian name of one of her rivers. It is called “The Badger State.”

CHAPTER LXVIII.

THE NATIONAL DOMAIN.

1. When the War of Independence closed, and the people and government had leisure to look about them and estimate their situation, they found the organized States covering the coast from Nova Scotia to Florida, (then in possession of Spain.) There was no vacant territory near the ocean; but west of the States—which run back only a few hundred miles—was a vast region, peopled by a few tribes of Indians and, in Kentucky and Tennessee, by a few hundred whites. These with singular hardihood and self reliance, had not hesitated to brave a thousand perils to get possession of the charming valleys and fertile savannahs of the eastern part of the great Mississippi Valley. The settlements were made near the mountains that skirted the western boundaries of the original States. Beyond, to the Mississippi river, extended as beautiful and fertile a territory as any land could boast; many times larger than the original territory, whose people, poor and few as they were, had fought for and won it by persistent bravery. It lay in virgin beauty and wealth, the prize of their strong hands and courageous hearts. The future of the new government once determined, and the fundamental Law of the Land adopted, they prepared to take possession by organizing a government over those already there, surveying and laying off the unsettled lands, and bringing them into market for sale and settlement.

2. The States had owned all the property, and held all the real power, up to the adoption of the present Constitution. It was now agreed that the unsettled lands should be considered as the common property of the whole country, and be administered by the General Government. It was not without much difficulty, and many severe contests, that this point was so settled. There were two parties; one headed by Alexander Hamilton who wished a strong, consolidated central government; the other, afraid to confer on it too much power lest it should prove a tyrannical master, wished to preserve most of the substance of power in the State governments. They were led by Thomas Jefferson. The adoption of the Constitution was difficult, and the struggle over it perilous to the confederation. It embraced the main views of the first party. But for the personal influence of Washington, who had presided over the Convention that framed it, and had, as it were, been its father, it could not have received the approval of the majority of the people. The people allowed their fears to be overruled by their trust in his wisdom and prudence.

He alone it has been believed could have put its machinery in successful operation; and the admirable manner in which the statesmen, in Congress and the executive offices, infused the spirit of freedom and moderation into the administration, following in the lead of the revered "Father of his Country," settled it in the confidence and affections of the people.

3. We have dwelt on this point because it is intimately related to the organization and government of the Territories, and to the provision made for the increase of States. It was important that they should be in harmony with the original ones, and there were no means of securing this and providing against the future growth of governments, differing from those of the original States, but by giving the central power a general control over them. The Constitution conferred it on Congress. Ohio, and all the territory north of the Ohio river, was obliged to wait till this point was settled, before it could be opened to the entrance of emigrants. This region was early erected into a separate government, by Congress, called the Northwest Territory. The region south of the river was treated in the same manner a little later. In 1800 the Mississippi Territory was organized; thus covering all the ground originally belonging to the New Republic. These were, as population increased, divided into sections, of convenient size for the purpose of local self government, and states created as fast as the requisite number of citizens had collected within such limits; and the remainder continued under the preliminary territorial rule.

4. In 1802, the vast region west of the Mississippi was bought of the French government. This extended the National Domain from the mouth to the head waters of this river, and westward, north of the Spanish possessions, to the Pacific ocean. Many new States and Territories have been formed from it. The process of multiplication has not yet ceased in this region. In 1819 Florida was purchased; a part of Mexico was obtained in 1848, and again in 1853; and the increase of territory continued by the acquisition of Alaska in 1867. This policy has become, in a manner, traditional, and it is not unlikely that it may be continued to some extent in the future.

5. The government of the territories is established by act of Congress; the President nominates and the Senate confirms the Governor, Secretary, and Judges of the courts; and Congress passes all the general laws for the government of the inhabitants. A Territorial Legislature is elected by the inhabitants, which takes charge of all the local interests of the Territory. All these laws and organizations are temporary, and pass away when a State government is founded. Commonly, an act of Congress authorizes the election of Delegates to a Convention for framing a State Constitution; though the Territorial Government sometimes takes the initiative. This constitution is then submitted to the popular vote of the citizens in the Territory; and if they favor it, presented to Congress for its approval. If it is in harmony with our usages, and republican principles, Congress accepts it, and, if the President does not see cause to veto it, a new State has come into existence. In this manner the number of the States has become nearly three times as numerous as at the beginning.

CHAPTER LXIX.

THE INDIVIDUAL TERRITORIES.

The territories are here arranged in the order of seniority, the one which first received a territorial government taking the lead. The District of Columbia is older than any of them as acknowledged National property, the Louisiana Purchase having been made since it was ceded to the general Government; but it was the last to receive a territorial organization, Congress governing it directly without giving it representation until 1871. It is placed last for that reason.

NEW MEXICO

Was visited at an early period by Spaniards, who, excited by the success of the followers of Cortez and Pizarro in discovering rich mines of gold and silver, sought the wealth in the dangers and hardships of travel which is more often, if more slowly, found as the reward of patient toil. An expedition from Florida made the formidable overland journey to New Mexico, in 1537; and another from Mexico, after visiting the Gila River, passed eastward beyond the Rio Grande in 1540. In 1581 its mineral wealth became known and a mission was attempted; but no settlement was made until 1600, when formal possession was taken by an adequate army. The missions now became very successful and the mines were worked. Many of the natives were considerably advanced in some of the arts of civilization. In 1680 the natives revolted, from the severe servitude to which they were subjected, and drove the Spaniards out of the country. They only recovered it in 1698. It was never very numerously peopled by whites. In

1846 it was conquered by General Kearney, and in 1848 ceded to the United States by the treaty of Guadalupe Hidalgo. The difficulties of transportation and the wild and lawless character of the inhabitants has prevented any extensive emigration to it by Americans. It is an elevated table-land, nearly 7,000 feet above the surface of the sea, crossed by several ranges of mountains sometimes rising 10,000 feet above the general surface of the country. The atmosphere is dry; little rain falls; and agriculture is usually successful only with irrigation. In the valleys, where this is employed, the fertility of the soil is marvelous. Often two crops are raised, on the same land, in the year. Wheat and other grains are raised in great perfection. Cotton is successful in some parts, fruit can be raised in abundance, and the soil is said to be specially favorable to the grape, the wine rivaling that of France.

Gold and silver abound, but the mines have never been effectively worked for want of transportation and the requisite capital. Stock raising is a profitable occupation in this Territory. Much of the land unfit for cultivation produces grass which cures in drying during the hot months, and preserves all its nutritious qualities. Sheep and mules are extensively raised. When the Pacific railroad shall open the country to immigration, and order, industry, and capital make the most of its resources, it will be ranked among the favored parts of the Union.

It has many natural curiosities, and much wild and beautiful scenery. The length of the Rio Grande, in its windings in the Territory, is about 1200 miles; and its valley from one to twelve miles wide. Its Territorial government was organized in 1850. The population, in 1870, was 91,878. Many tribes of Indians roam over the territory and through Texas, Arizona, and northern Mexico. Most of the people are Roman Catholics. It includes an area of about 100,000 square miles. Every free white male inhabitant living in the territory at the time of its organization had the right of suffrage, that right being regulated in other respects by its legislative Assembly.

UTAH

Was formerly a part of the Mexican territory of Upper California, and was acquired by the United States in 1848, by the treaty of Guadalupe Hidalgo. It was too distant, desolate, and dangerous a region for much settlement by Mexicans, and has little known history anterior to the explorations of Fremont between 1843 and 1846.

The first American settlement was made by the Mormons, in July, 1847, and was supposed by them to be out of the territory of the United States, and beyond the reach of possible interference. Here, in the depths of the desert, they determined to build up a peculiar religious society embracing customs abhorrent to the views and institutions of modern civilized States. Their success was a surprise to the world, and probably to themselves; the capacity of the depths of the Great American Desert, as it was called, for cultivation, exceeding all previous expectation. But the war with Mexico, then in progress, threw this, before inaccessible, desert into the limits of the American Union; and the discovery of gold in the neighboring territory of California, throwing them almost midway between the old western settlements and the new Eldorado, subjected them to contact with, and interference by, the tide of modern civilization, as it flowed toward the setting sun; and in ten years from their first appearance in the Great Central Basin of the continent, they came again into hostile conflict with the established authorities they thought to have finally escaped. Though their conflict with the United States government, imbued with the habits and prejudices with which they antagonized, was deferred by the troubles which precipitated the Civil War, and their institutions remained substantially intact until that was past; the Pacific Railroad was then built through their territory, and, if they are no longer persecuted, and their peculiarities opposed by deadly force, the moral influence and dissolving power introduced by numbers is more surely wasting away the foundations of their political and religious edifice.

Utah was organized as a territory by act of Congress Sept. 9th, 1850. Brigham Young, the head of the Mormon church, became the first governor. In 1854 it was vainly attempted to remove him; and in 1857 an army was sent to enforce Federal authority. A final conflict was avoided by compromise. In 1862 the Mormons attempted to get admission into the Union as a State, with their "peculiar institutions," but failed. A Territorial Government exists, but has little force, or vitality, while the Mormons are large in numbers. According to the habits of our people, conflict is avoided so far as possible, to await the more peaceable and natural solution of the difficulty by moral forces.

Utah is unique in one respect; though lying nearly a mile above the surface of the sea, and having a complete system of lakes and rivers, there is no visible connection of these with the ocean. It is a continent embosomed within the depths of a continent. The Great Salt Lake is 100 miles long by 50 broad, and its waters are very salt—three parts of the water producing one of pure salt. No fish can live in it. It receives the contents of many considerable streams. Whether they are kept in subjection by evaporation alone, or have a concealed outlet to the ocean is unknown. The soil, though in its natural state an apparent desert, is extremely fertile when irrigated, and

produces wheat and other cereals in great profusion. Its mountains are believed to be rich in silver and gold; but the Mormons have discouraged mining, and very little has been done in that direction.

Cotton is highly successful in the southern settlements, and experiments with flax and silk culture have been very favorable. The climate is mild and healthy.

Utah is a highly promising section of our national domain. Its population in 1870 was 86,786; its area about 87,500 square miles.

WASHINGTON TERRITORY

Was organized in 1853, and then contained a much larger area. It was at first a part of Oregon, and its meagre early history was the same. The Straits of San Juan de Fuca were visited and named by a Spanish navigator in 1775. The English government claimed the territory north of the Columbia and for some years there was a joint occupation by both nations by special agreement. The difficulties concerning this boundary came near involving the two nations in war, but it was settled in 1846, giving the United States the territory to the 49th parallel of latitude. Vancouver Island was assigned to Great Britain.

Washington is estimated to contain, west of the Columbia river, where it flows down from British America, 22,000 square miles of arable land. There is much that is adapted only to grazing, and vast quantities covered with forests in the wild mountain regions of the eastern part of the territory.

It has an almost inexhaustible supply of coal, and more or less of the precious metals. The great distinction of Washington territory is its forests. The warm ocean currents from the Indian ocean, after traversing the eastern coasts of Asia, are thrown across the North Pacific against the western shores of North America, and effect an important modification in the severity and humidity of the temperature of our Pacific slope. The climate is much milder and more equable than in the same latitude east of the mountains, and the moisture is highly favorable to forest growth. It is the best ship building timber in the world. The trees are immense, often reaching a height of 300 feet with a diameter of 8 to 12 feet.

The portion of Washington territory lying west of the Cascade mountains is rich farming land, heavily timbered; while east of the Cascades the country is open prairie, well watered, with small and thinly wooded valleys. The land immediately about Puget Sound is sandy, not valuable for farming though producing timber, but a little way back is unrivaled in richness.

Corn does not thrive well, but wheat, oats, potatoes, &c., are very prolific. Large quantities of butter, cheese, and wool are produced. There is little snow in the winter and that soon melts away, except far up in the mountains. Washington shares with Oregon the possession and use of the Columbia river. There are fine fisheries on the coast and excellent oysters, and these produce a considerable trade. Immense quantities of lumber are exported to all parts of the Pacific coast of both North and South America, and even to Buenos Ayres on the South Atlantic. The French come here for their best and cheapest masts and spars. Thus we see that this corner of the Republic brings to the common stock of national treasures some of its best and most valuable material of wealth, and is prepared to whiten the Pacific with the sails of the unlimited commerce which is already beginning to grow up between us and the Asiatics. Puget Sound can float with ease the navies of the world on its peaceful bosom. The Northern Pacific railroad will originate here, probably, another great commercial emporium. Washington will, in due time, become a great and wealthy State.

Its area is about 70,000 square miles; and the population in 1870 was 23,901.

DACOTAH.

This territory received an organization and government in 1861. It contains 240,000 square miles; and is greater in extent than all New England together with the great and wealthy States of New York and Pennsylvania; and possesses some peculiar advantages.

The Missouri River passes from southeast to northwest diagonally through it, navigable for its whole length, a distance of more than a thousand miles; the Red River of the North skirts its eastern line, its valley being unrivalled for its richness, and adaptation to the growth of wheat. Except the extreme northern part it is said to have the dry, pure, and healthy climate of Southern Minnesota, with the soil of Central Illinois.

It is free from the damp, raw, and chilly weather prevailing in Iowa and Illinois, and from the embarrassments to agriculture often experienced in these States from excessive spring rains; while, in late spring and early summer, copious showers supply sufficient moisture to promote a rapid vegetable growth. The surface east and north of the Missouri is an undulating prairie, free from marsh, swamp, and slough, traversed by many streams and dotted with innumerable lakes, of various sizes, whose woody and rocky shores and gravel bottoms supply the purest water, and lend the enchantment of extreme beauty to the landscape.

It has all the conditions of climate, soil, and transportation, for the most profitable production of the two great staples of American agriculture, wheat and corn. West of the Missouri the country becomes more rolling, then broken and hilly, until the lofty chain of the Rocky Mountains is reached. These mountains cross the southwestern section. A most desirable stock raising region is furnished here, and mining will flourish in the mountains. In 1870 it had a population of 14,181. Yankton is the capital.

ARIZONA.

The Spaniards visited the valley of the Colorado at an early day; but the distance from Mexico, and the warlike character of the Indians, did not favor settlement beyond what was gathered about the few missions that were constructed so as to answer for fortresses.

The part of this territory lying between Sonora, (of which it formed part,) and California was acquired to the United States by the Gadsden treaty, made with Mexico Dec. 30th, 1853. The American government paid \$10,000,000 for it. A Territorial government was organized Feb. 24th, 1863, and embraced part of New Mexico, containing, altogether, an area of 121,000 square miles, or 77,440,000 acres.

Efforts had been made previously to settle the country and develop its mines; and an overland mail stage route was established. This proved a success; but the fierce hostility of the Apache Indians, and the desperate character of such whites as had gathered there, fleeing from justice in California and Sonora, discouraged the immigration of law-abiding citizens; and the breaking out of the Civil War withdrew the soldiers in garrison there for the protection of the country. After the war the main stream of emigration followed the line of the newly opened Pacific railroad. The development of the mines required capital and machinery and, though they are thought to be the richest in the world, nothing could be extracted from them by individuals without means. So the population has increased slowly, the census of 1870 giving 9,658.

It is a strange and somewhat fearful land; in great part a region of desolate mountains and deep canons. There are many sections susceptible of cultivation that would produce immense returns under irrigation, but most of the efforts in this direction have miscarried from the desolating ravages of the Indians. The rainless season reduces the whole country to the semblance of a desert. It is, however, declared to have more arable land in proportion to its surface than New Mexico, or California; and will probably, in time, have a large and prosperous farming community. Cotton is easily cultivated, and sugar cane, in the lower parts, produces abundantly. Grains, vegetables, and melons are produced in the greatest possible perfection, and mature in an incredibly short space of time.

When the Apaches are subdued, and society is reduced to order, it will become a favorite resort of the thrifty farmers of the older States, and the diligent German and other foreign immigrants.

It contains many traces of a race that has disappeared; some of their dwellings yet remaining in a partially ruinous state. They were probably Aztecs, the race that ruled Mexico before the conquest by Cortez, or are more ancient still. Hideous idols are found, and various indications of a barbarous worship.

The completion of the Southern Pacific railway will introduce the hum of industry among its desolate mountains and along its numerous fertile valleys, and the acquisition of the mouth of the Colorado, a large river opening into the head of the Gulf of California, will give it a profitable commerce. Arizona lies south of Utah, to which it is superior in the number and size of its streams, its larger quantity of timber, and the amount of rain-fall in some parts, which is deemed, in some sections, sufficient to dispense with the necessity of irrigation.

IDAHO.

This territory was organized March 3rd, 1863. It originally embraced a vast territory lying on both sides of the main chain of the Rocky Mountains; but the eastern portion has since been erected into the territory of Montana. It has about 90,000 square miles of territory, and had, in 1870, 14,998 inhabitants.

Idaho has very little history prior to the organization of its Territorial government. Its chief attraction to settlers lies in its mines, as yet, and the population is floating, and, in large part, rough and sometimes disorderly. The difficulty of reaching it has prevented its rapid growth. It is exceedingly rich in the precious metals and this will, in time, attract a large population. The eastern and northern parts are very mountainous, abounding in wild and striking scenery and in natural curiosities. The soil in the southern, central, and western parts, is fertile, producing wheat and other small grain, and vegetables very successfully, but is unfavorable for corn from the late frosts of spring and the early cold of autumn. Snow falls to a great depth in the mountains; but the streams are numerous, and there is much choice farming land, which may, ultimately, serve to support its mining population.

It runs from the northern boundary of Utah to the south line of British America; Washington Territory and Oregon, lying west. When railroads shall render it accessible, and open the way for its treasures to a market, it will be filled with an industrious and hardy population who will find all the elements of a prosperity as great as any section of the Union enjoys. It has three beautiful lakes—the Coeur d’Aline, the Pen d’Oreille, and the Boatman—of some size, and navigable for steamers. Boise City is the capital.

MONTANA TERRITORY

Was organized May 26th, 1864. It lies among the Rocky Mountains, in part on the western slope, but extending into the eastern valleys; and contains the sources of the streams forming the Missouri river; while Idaho lies west among the Blue mountains where the tributaries of the Columbia rise.

Montana abounds in mines of gold and silver; and these are said to be much richer than those of California. The average yield of ores in the latter State is \$20 per ton, but the average in Montana is stated to be four times that amount. Great as is the yield of gold mines here it is declared that the ease with which silver is separated from its combinations in the ore will make that branch of mining more profitable. Copper also abounds. This territory has several eminent advantages over other mining districts. It is reached by steamboats on the Missouri river, from St. Louis, without transshipment: navigation being free to Ft. Benton, in the heart of Montana. The river voyage from St. Louis to Ft. Benton, is made in 28 days.

There is a large and constant supply of water, a point of great difficulty in most of the other mining regions; and the country everywhere furnishes easy natural roads, the principal range of the Rocky Mountains not presenting the broken and rugged character of most other ranges. Associated with this point is the important fact of great agricultural capability. It is one of the best grazing regions west of the Mississippi. Small grain and fruit are grown with the greatest ease, as also the more important vegetables. There is abundance of timber for all purposes of home consumption.

The area is stated at 153,800 square miles. The population in 1870 was 20,594.

ALASKA TERRITORY

Was acquired to the United States by treaty with Russia in the year 1867, for \$7,200,000. It is a vast region containing 394,000 square miles, with 24,000 inhabitants.

It was first explored by command of Peter the Great of Russia in 1728. A government was first established on Kodiak island in 1790. In 1799 the Russian American fur company was chartered by the Emperor Paul.

The northern portion is a tolerably compact body of mainly level country about 600 miles square, and a line of coast runs south for a long distance, including many islands. The Aleutian group of islands is included. The principal value of the region to Russia was the fur trade. The annual export of these amounted to only a few hundred thousand dollars. American thrift will probably make much more of it.

The country is much warmer than its high latitude would seem to imply—Sitka in the southern part having about the same mean temperature, by the thermometer, as Washington! It is, however, extremely damp. In one year there were counted only 66 entire days without rain or snow. The coast is broken with mountains. The peninsula of Alaska has some very high mountains—Mt. St. Elias and Mt. Fairweather being estimated at 15,000 to 18,000 feet above the sea. The islands of the Aleutian group are volcanic in origin. There are several rivers, the largest, the Yukon, or Kwickpak being 2,000 miles long, and navigable for 1,500 miles. There are vast supplies of timber, much being pine, found nowhere else on the Pacific coast. Vegetables, and some grains, may be raised without difficulty, and the soil, in parts, is rich. Abundant supplies of coal are believed to exist. The precious metals and iron, it is thought, are to be found there, but the country has been very imperfectly explored.

In the lively and extensive trade that is likely to grow up with Japan, China, and the East Indies, it will no doubt be found of great value, and its resources contribute to the wealth of our country.

WYOMING TERRITORY

Was organized by act of Congress July 25th, 1868, and is the youngest of the territories. Its area is stated at 100,500 square miles, and it had a population, in 1870, of 9,118.

The Pacific railroad passes through it, to which its settlement is probably mainly due. Montana lies on the north; Dacotah and Nebraska on the east; Colorado and Utah on the south, with the northern part of Utah and Idaho on the west.

The main chain of the Rocky Mountains crosses it from northwest to southeast which maintain here the same general characteristic as in Montana, viz.: that of a rolling upland. Its outlying ranges are more broken. Most of the country is good arable, or grazing land, sufficiently fertile to give excellent returns for labor, though, in large part, requiring irrigation. A few regions are remarkably sterile, but they are limited in comparison with the fertile lands.

Gold mining has been successful, to a considerable extent; coal is extremely abundant and accessible; the supplies for the Pacific railroad being obtained in this territory. Iron has been found in considerable quantities, together with lead and copper ores. Oil and salt springs promise to be productive.

Thus without, as yet, developing any eminent specialty, the resources of this Territory seem to promise all the requisites of prosperity to a large population; while the climate is mild and extremely healthy, and the great thoroughfare between the east and the west furnishes all necessary facilities for transporting its supplies to the best markets. More intimate knowledge of its mineral deposits may perhaps give it a higher rank as a mining State.

THE DISTRICT OF COLUMBIA.

The first Congress convened under the new Constitution in 1789, held its session in New York. The seat of government was then removed to Philadelphia. There was much dissension as to where it should be permanently located. The North and the South, were each equally obstinate in their desire to locate it in their own section, and the quarrel threatened a rupture of the confederacy. The great political question of the time was the debts of the States contracted in carrying on the War of Independence. The South, disliking a strong central-government, opposed giving the charge of the finances of the country into its hands; while the North, strongly approved the plan of clothing it with authority to concentrate the strength of the nation to a reasonable extent, so that it might be able to act with vigor, and make the country formidable to its enemies. The reservation of as much power as possible to the individual States was a vital question with the South, since it wished to maintain Slavery, and it was always foreseen that the north must preponderate, ultimately, in the general government; and the north was unfriendly to slavery. The Constitution could make its way in the South only by compromise as to slavery.

The question was a very difficult and delicate one to adjust, but with much tact Jefferson and Hamilton, usually antagonists in politics, united to urge a compromise; the North conceding the location of the national capital, and the South the assumption, by the general government, of the State debts. This was accomplished in 1790, and Washington selected the site on his own Potomac, Virginia and Maryland uniting to give a tract ten miles square, extending to both sides of the river. A new city was laid out, and buildings erected which were occupied for the first time in 1800. This small territory, the government and control of which was lodged wholly in Congress, was called "Columbia." This possession of its own capital was considered important in order to avoid a possible conflict of Federal and State authority.

The capital city was located on the Maryland side, and called Washington. The territory on the Virginia side was, in 1846, re-ceded to Virginia. On Feb. 21st, 1871, the District was made a territory, with a legislature for its internal government, and the right to be represented by one member in the House of Representatives.

The population in 1870 was 131,706. Washington is adorned with many immense buildings erected for the various departments of the government, and the capitol itself is one of the largest in the world, and cost \$5,000,000. It is worthy of the great nation represented in its halls.

CHAPTER LXX. THE ANNEXATION POLICY.

1. The original States of the American Union were all on the Atlantic seaboard. The central States were separated from the fertile valleys and plains of the Mississippi and its tributaries by mountains, while those lying at the northern and southern extreme found, in the vast forests filled with fierce and hostile savages, a still greater barrier against settlement westward. The "Old Thirteen" found their hands and thoughts sufficiently occupied with the establishment of their liberties, and the ultimate western boundaries of the country were left to be settled in future years. Fortunately for us England was too much occupied with the immense debt the useless American war had cost her to make difficulties over the cession of the western regions to us; and, at the peace, we were in possession of the whole region from the Atlantic ocean to the Mississippi river. That was enough and more for the present; but the people were enterprising. We offered a home, freedom, and great opportunities to the oppressed and poor of other lands, and that region was soon sufficiently peopled to show what other regions were required to secure the prosperity of all.

2. It soon became clear that the development of the Western States east of the Mississippi required the possession of the lower part of the river and the territory on its western bank. Circumstances were favorable to its acquisition, and Louisiana, extending from the mouth of the river far up toward its head waters, including several hundred thousand square miles of as valuable land as was to be found on the continent, was purchased. It entered into the vindictive policy of Napoleon Bonaparte to injure England by strengthening America, and it was obtained for the comparatively insignificant sum of fifteen million dollars. This annexation was altogether essential to the security and development of the larger part of the original territory.

3. Florida was discovered and settled by the Spaniards, who claimed the coast along the Gulf of Mexico to the Mississippi river. Though it was not commercially or agriculturally important to us, it became in the hands of a power not very friendly, the support and refuge of the barbarous and resolutely hostile Indians of our southern border. It was necessary to nearly exterminate them to obtain peace, but no absolute security could be assured while the Spanish territory protected them in their retreat before our armies. Peace, security against the Indians, and freedom from the intermeddling of a European Power required the acquisition of that peninsula and the Gulf Coast. After twenty years of occasional negotiation it was purchased for five millions of dollars. This was the most convenient way, also, of settling an account for spoliation on our commerce which we held against Spain, and the only means she then possessed of making payment. Thus another annexation was made under the pressure of circumstances.

4. By this time a sufficient degree of expansion and strength had been acquired by the New Nation to inspire in it great confidence in itself and grand views of its future, and the "Monroe Doctrine," that the United States would refrain from all meddling with the politics of Europe, but would resolutely oppose the meddling of any European power with the politics of this continent, was adopted. This doctrine did not propose any interference with other governments already established here, but America was to be left to its present possessors, and European ambition was to look elsewhere for kingdoms to conquer or found. A tacit protectorate over all America was assumed, in order to prevent the entrance of any other element that might build up a system hostile to our interests and progress. It was a legitimate conclusion from the principles and necessities that had led to the inauguration of the annexation policy. The nation claimed that it had a right to keep the ground clear from obstacles to its natural development. It was a system of growth and protection involving no ideas of conquest by force, and no menace to governments already established.

5. The third addition to our territorial area took place under circumstances which all true Americans will ever regret. If stated by our enemies it would be said that, after encouraging the settlement of the territory of a neighbor by our own citizens, and giving them covert support in withdrawing that territory from its proper owners, we took possession of it, and when they naturally undertook to protect, or recover it, we made a war of invasion on them, employed our superior skill and vigor to disarm their State, and took as much more of their territory as suited our purposes; in short, that we picked a quarrel, and being the strongest bound and robbed them.

6. It cannot be agreeable to lovers of justice and defenders of equal rights, that there should be so much of truth in this statement as to render it impossible to clearly and distinctly prove the contrary. There was, however, an element of the necessary and unavoidable, even in this, that was more in harmony with the previous system of acquisition than appeared on the surface. Texas presented, perhaps, the finest climate and the greatest facilities for money-making on the continent. The Mexicans inherited the religion and hatred of protestants with the haughty, repelling spirit of the Spaniards, and wished to preserve the old Spanish policy of separating themselves from us

by a broad barrier of desert and wilderness. They did not wish to settle Texas themselves, nor feel willing that any one else should. It is inevitable that enterprise and strength, impelled by self-interest, will disregard such wishes. Americans are neither perfect nor magnanimous enough to stand on ceremony when their interests are concerned. The best that can be said of them is that they are more moderate and self-contained than any other people. The necessities of the institution of slavery required more territory to balance the rapid increase of free States, and this precipitated the movement that was inevitable sooner or later from other causes. Indeed the first patent of territory obtained in Texas, from the Mexican government, was by a native of Connecticut. The rapid growth of commerce in the Pacific ocean, the agreeable climate and fertile soil of California, and the unsettled, wilderness state of that region, caused the commercial nations of Europe to look at it with longing eyes. The Monroe doctrine was in danger of being violated. England had fully prepared to plant a colony there when it was taken possession of by the American forces.

7. Thus the enterprise and energy of the nation, which had still further developed its instinct, or anticipations and plans, of future greatness, required to use the vast resources of the Gulf region, and to extend settlements to the Pacific Slope in order to develop the mineral resources of that region and prepare to build up its commerce with Eastern Asia. The northern parts of Mexico were useless to her, since she had neither population to occupy them, nor strength to subdue the Indians who roamed over them in scattered bands. There is a justice and propriety which has the force of Natural Law in allowing the active and vigorous to take possession of the natural resources that others can not or will not develop. The earth was made for mankind as a whole, and what cannot benefit one race, another, that is able to employ it for its own and the general good, has some show of right in entering upon. That, at least, must be the justification of our ancestors in intruding themselves upon the lands and hunting grounds of the aboriginal inhabitants of America, and our only excuse for making war with the Indians, forcing them to part with their lands, confining them to reservations, and denying to King Philip, Powhattan, and Tecumseh the admiration and esteem we give to the patriotic defenders of our native land and natural rights.

8. It is to be regretted that the vast and valuable territory acquired from Mexico should be the spoil of conquest rather than the fruit of peaceful negotiation; but the eagerness of the speculator, the unreasonable pride and selfishness of the Mexican, and the peculiar requirements of our internal conflict over slavery put to silence, for a time, the voice of moderation and equity, and we annexed near 1,000,000 square miles of territory by force. The payment of \$18,500,000, when we might have taken it without, was an indication that our ordinary sense of justice was not altogether quenched.

9. We may reasonably consider that this was exceptional, and that the confusion of judgment and the disorder consequent on the life and death struggle of the institution of slavery, which were in a few years to produce the most terrible civil war known to history, led us into the comparatively moderate aggression and violence that marked this annexation to our territorial area. Our traditional policy is to acquire peaceably, and with a satisfactory remuneration, such territory as the national progress and development demand. It is contrary to the spirit of our institutions to oblige the majority of the inhabitants of any region not within our boundaries to form a part of the Republic.

10. Two annexations have been made since the Mexican war. Arizona was obtained by treaty and purchase from Mexico, in 1854, and Alaska by treaty and purchase from Russia, in 1867. The first is valuable for its mineral treasures. It was useless to Mexico, though we gave \$10,000,000 for it. It will ultimately be worth to us hundreds of millions, and its ruins of an ancient people will be replaced by a thriving population of intelligent freemen. Alaska is specially valuable in relation to our future commerce with Asia, and for its fisheries and fur trade. Its internal resources are, as yet, scarcely known.

11. The superior stability of American institutions and the love of law and order of the American people may make annexation desirable and profitable to the more volatile and unsteady Southern States of America, but it is probable that no labored efforts to induce annexation will be tolerated by the mass of the people. We may fairly judge that we have reached our natural boundaries; that the advancement of neighboring governments in order and intelligence will suffice to give protection to the comparatively small numbers who may find a better field for their energies without than within the Union; and that if any future annexations are made it will be by the purchase of uninhabited regions that may be more valuable to us than to their owners; or that, if any inhabited regions are incorporated into the Union, it will be at the instance and desire of its own inhabitants rather than of our people. We are the special champions of popular and all other rights, and shall never be likely to forget ourselves again so far as to repeat the Mexican war, however pressing our desires.

Colorado	—	—	—	—	—	—	—	—	36,538
Dakota	—	—	—	—	—	—	—	—	2,576
Idaho	—	—	—	—	—	—	—	—	—
Montana	—	—	—	—	—	—	—	—	—
New Mexico	—	—	—	—	—	—	—	61,547	83,009
Utah	—	—	—	—	—	—	—	11,380	40,699
Washington	—	—	—	—	—	—	—	—	11,168
Wyoming	—	—	—	—	—	—	—	—	—
Dist. of Columbia	—	—	14,093	24,023	33,039	39,834	43,712	51,687	75,080

Total population in	1790	3,929,827
”	1800	5,305,937
”	1810	7,239,814
”	1820	9,638,131
”	1830	12,866,020
”	1840	17,069,453
”	1850	23,191,876
”	1860	31,747,514
”	1870	38,538,180

To which add Indians and
others in Indian territory,
not included in Census
Grand total in 1870 38,842,372

NOTE.—Returns of the colored population of the United States received at the Census Office show a total in all the States and Territories of 4,857,000, being an increase of 9.35-100 per cent. since 1860. The State of Georgia has the largest colored population; Virginia, Alabama, Mississippi, South Carolina, North Carolina and Louisiana follow next in order.

As shown in the last census (1870), the seven leading States rank, according to population, as follows: (1) New York; (2) Pennsylvania; (3) Ohio; (4) Illinois; (5) Missouri; (6) Indiana; (7) Massachusetts. Thus *four* out of the seven most populous States are “new States;” that is, they were not included in the original “thirteen.” In 1789, the four States at the head of the list were: (1) Virginia; (2) Pennsylvania; (3) North Carolina; (4) Massachusetts. At present, Virginia (if the State had not been divided) would have ranked in the seventh place, or next *after* Indiana. In absolute increase of inhabitants, Pennsylvania heads the list of the old States in the last decade: and the total population of said State is about equal to that of the thirteen States of Connecticut, Arkansas, West Virginia, Minnesota, Kansas, Vermont, New Hampshire, Rhode Island, Florida, Delaware, Nebraska, Oregon and Nevada. The aggregate population of the six New England States of Massachusetts, Maine, Connecticut, New Hampshire, Vermont and Rhode Island falls considerably short of that of Pennsylvania. The States west of the Mississippi, including the Pacific States, have about *one-sixth* of the whole population of the United States.

The ratio of increase in population from 1790 to 1800 was 35.02 per cent.; from 1800 to 1810, 36.45 per cent.; from 1810 to 1820, 33.13 per cent.; from 1820 to 1830, 33.49 per cent.; from 1830 to 1840, 32.67 per cent.; from 1840 to 1850, 38.57 per cent.; from 1850 to 1860, 37.75 per cent.; from 1860 to 1870, 22.34 per cent. Supposing the increase during this decade (since 1870) to be 30 per cent. there would be in 1875 nearly 45,000,000 inhabitants. We have reason to suppose it to be at least 35 per cent. This, in 1880, would give 52,437,192.

PART THIRD.

THE PEOPLE AND THE GOVERNMENT.

1. All government is professedly for the good of the people; but in point of fact, nearly every government that has ever been instituted has been in the interest of an individual, a family, or a class. American statesmen, in forming our government, admitted the superior rights of no man or class of men. It was carefully organized to exclude all claims or pretenses of that kind, with a single exception, at first, which afterward disappeared in the tempest of a civil war. The executive, the various members of the government, and the law makers depend on the people for their elevation. At first they possessed only the dignity, privileges, and rights of the people at large, and, their term of office expired, they return to the same level, honored, indeed, if they have been faithful servants; if not, carrying to their dishonored graves the reproaches and contempt of their fellow-citizens, but retaining, in neither case, a vestige of the power and exaltation over others that clothed them when in office, the contrary of which so often makes an unworthy man respectable in a different form of government.

2. That the masses of the people would be able to exercise a true sovereignty without abusing it was always doubted until the trial was made in this country. A very respectable class of statesmen in the early days of the Republic, sympathized in this doubt, and it even crept into the Constitution in the form of electors who were to choose the President; intimating a distrust of the wisdom and sound discretion of the voters in the choice of the Chief Magistrate. The liberty allowed to the Legislatures of the States to determine the manner in which electors should be chosen, while it recognized State authority on one side, on the other implied a hesitation to trust so important a matter directly to the people; and for a long time they were only indirectly consulted as to the choice of a President.

3. It was not, however, caused by a desire to keep power from them, but rather to avoid the unhappy effect of popular heat and rashness, so often observed in popular governments before attempted. This distrustful party first took control of the government, retained it during three presidential terms, and for many years afterwards formed an influential minority whose criticisms were of importance in establishing a traditional policy for the government. This party—the Federalists, headed by Washington and Hamilton—sought to found a strong and stable government that should be able to fully protect the country from foreign interference and domestic discord. Their control over the administration was somewhat abruptly closed by acts considered arbitrary, interfering with full freedom of speech and of the press—the “Sedition Laws” as they were called. Jefferson and the Republican party demanded the largest popular freedom, and had the conduct of the government for twenty-four years, impressing on its habits and policy the respect for the opinions of the people at large that has ever since characterized it. The people gradually gained control of presidential elections and practically set the electors aside, making and enforcing their own choice in general elections.

4. The exercise of popular sovereignty has gradually been enlarged, no qualification but that of age and nativity being now generally required, and the government may fairly be considered to represent the views of a majority of the people, and not only of the native, but also of the foreign born; since the great mass of the latter are, by naturalization, absorbed into the mass of citizens. They come to make a permanent home with us, from a preference, as it is fair to assume, for republican institutions; and it is considered right that they should have a voice in the conduct of them. Nor have the American people seen cause to regret their liberality in this respect. Citizens of foreign birth have usually proved as thoughtful and wise as the rest of the population, and as worthy of citizenship. They bring to us wealth in their labor if not in their purses, and soon become thoroughly American in their habits and sympathies. The government and the people cordially welcome them, and find themselves the stronger and richer by so doing.

5. It must not be forgotten that the strongest fears of popular influence on the government, the stability of our institutions, and the maintenance of the good order necessary to the security of property and the general prosperity, were entertained at the first; that the prophecies of the foreseers of evil have been almost uniformly false during its whole course; and that the relation between the people and the general government has constantly grown closer, to the great advantage of both. The first war into which the country was plunged after the Revolution—that of 1812—was comparatively a failure, in its earlier part, for want of this mutual confidence. Later the people and the government have been more closely allied, and the government has been strong while the people have seen their cherished ends gained.

There has been continual advance in liberality of administration, in efficiency of organization, and in the completeness of social order. We have no reason to suppose that a tendency, continued through a hundred years and favored by so many circumstances that are common to all nations in our generation to a degree never before known, will be changed. Rather we may confidently expect that with increased intelligence, experience, and prosperity that tendency will be strengthened.

CHAPTER I. SUFFRAGE AND CITIZENSHIP.

1. The right pertaining to citizenship, to vote for such officers as are elected by the people, is called suffrage. When that right is acquired with respect to one class of officers it always extends to the whole, from petty town or city officials, to high officers of the State and United States government—all, in short, who obtain office directly from the people.

2. The Constitution defines who shall be regarded as citizens of the United States, and all such are declared by it to be also citizens of the State in which they reside. It declares “all persons, born, or naturalized in the United States, and subject to its jurisdiction” to be citizens. Indian tribes are mostly regarded as foreign nations, and have such rights as treaties give them, but are not taxed and do not vote; therefore they are not regarded as citizens.

3. Yet suffrage does not belong to *all* citizens. The special regulation of the voting prerogative was not assumed by the Constitution, nor delegated to Congress, and it is generally conceded that it belongs to the State governments. The regulations in the States are not uniform, but in no State do women or minors vote. This cuts off a large part of the citizens, nearly three-fourths belonging to these classes. Minors are supposed, however, to be represented, as to their interests, by their guardians, and females by husbands or brothers. Some of the States make minor restrictions as to length of residence in the State, and require a certain amount of property to constitute a voter, and in some naturalization is not required—so that the range of the right of suffrage varies within small limits, in different States. Whatever rule is adopted by the States has been accepted as the basis of suffrage for that State by the general government, when members of Congress and President and Vice-President are voted for.

4. It seems to be a loose point in the regulations, otherwise so admirable, since it may work a considerable inequality under given circumstances; and, in some cases, might change the policy of the government. It is a question worthy of consideration whether there should not be an amendment to the Constitution establishing uniformity of suffrage in all the States. This point has caused much discussion in the State governments and various changes have been, from time to time, made in many of them. These have been, usually, in the direction of liberality—tending to enlarge the scope of suffrage. The property qualification, quite common in earlier times, is now rare. The fifteenth amendment, recently adopted, has largely increased the number of voters.

5. The experience of the Republic, thus far, has been in favor of the doctrine that it is safe to trust the people with their own interests, and that the responsibilities of self-government, when they are laid on them under the favorable circumstances that exist among us, tend to improvement instead of disorganization. Whether this will always be the case it may not be safe to assume, and a prudent regard to possibilities should not be neglected; but we should not forget that those who founded American liberty ran great risks of anarchy in the eyes of their contemporaries. We ought to be able safely to continue a policy of suffrage which they introduced with results so fortunate.

6. Education needs to be encouraged, and this has always received much attention. It is probable that but for the very liberal provision made in this respect, the fate of our government would have been very different. Many foreigners who had no early education, have been naturalized, and the colored people born in the country have been made citizens. If the remainder of the people had not been intelligent, it would no doubt have been extremely dangerous. It has led to some serious local interruptions of order and prosperity, but they have been, so far, temporary; and the general effect has been to awaken ambition for education; the children of new-made citizens have enjoyed the same facilities as others to acquire intelligence necessary to a citizen; and the right of suffrage, when extended to the ignorant and degraded has seemed to produce the general effect of destroying a dangerous class by raising them gradually to intelligence and self-respect and respect for the laws, by making them the political equals of those who are socially and intellectually far above them.

7. As we grow in numbers all influences like this take a wider range, and acquire more power, and sometimes produce different results, when they become extensive, from what was the case when more limited, from the difference of influence in modifying causes; and there has always been fear of trouble from the extension of suffrage to too many ignorant persons. It is well to be cautious; but we ought to venture as far as possible for the sake of improving and elevating all classes of our people.

8. It is also a question worthy of attention if women who own property that is taxed ought not to possess the right of suffrage. The war that made us a Nation was begun because we refused to be taxed unless we could be represented, and have a vote in the body laying the taxes. The principle appears to be precisely the same; and what we fought for then should not be denied now.

CHAPTER II.

OUR CITIZENS OF FOREIGN BIRTH.

Whatever fault we may sometimes find with the conduct of our government; however much self-seeking to the neglect of the public good there may be among officials; however many weaknesses, errors, and violations of law may call for our severest reprobation, and, in moments of depression, lead us to look gloomily and doubtfully toward the future; yet it is not to be denied that the Home of real Freedom is with us. Mismanagement is but temporary, or limited, and easily admits of remedy, with time and care; our advantages are permanent and extensive. In eighty years the population has become nearly twelve times as numerous as at the beginning of that period, and this rapid growth in numbers has been made up largely from the disposition of foreigners to make a permanent home among us. Those who are oppressed, who suffer restraint in their interests or belief, or wish for a wider career for themselves or their families—who want a free field for business enterprise, for mental and moral development, or full play for their abilities to influence their fellow men, come to us. Here they find fair opportunity for what may be lacking elsewhere. They come here by millions; the poor, by industry, become rich; the oppressed leave persecutions and galling burdens behind them; and genius finds full play for its aspirations in whatever direction its energies may be turned.

At the time of the last Census there were 5,566,546 persons in the Union, and forming part of our population, of foreign birth. A large part of these have become citizens by Naturalization. The remainder, or their descendants, if they remain here, will become citizens by that process, or by lapse of time.

After they have become familiar with our institution, ideas, and habits, they are incorporated with the body of our citizens and are a part of the Nation. The naturalized citizen may become, in time, a State officer, or member of Congress, if he can make himself acceptable to his fellow citizens; or he may possibly live to see his son President of the United States.

Congress alone has power, under the Constitution, to enact naturalization laws. Suffrage, or the right of voting, is left to the regulation of the States, within certain limits; but every citizen, made such by law of the General Government, is also a citizen of the State in which he resides, and will acquire, within such times as State regulations shall determine, the right to vote.

State laws regarding suffrage vary. Some States even admit aliens who are not citizens of the United States to the right of suffrage and to other privileges; and most require any citizen to reside a prescribed length of time in the State before he can vote. A uniform regulation in all the States would be desirable.

HOW TO BECOME A CITIZEN.

Any alien, having arrived in the United States after the age of eighteen years, may be admitted to the rights of citizenship, after a declaration, upon his part, or oath or affirmation, before the Supreme, Superior, District, or Circuit Court of, or any court of record having common law jurisdiction in, any of the United States, or of the territories thereto belonging, or before a Circuit or District Court of the United States, or the Clerk or Prothonotary of any of the aforesaid courts, two years at least before his admission, that it is his *bona fide* intention to become a citizen of the United States, and to renounce forever all allegiance and fidelity to any foreign prince, potentate, State or sovereignty whatever, and particularly by name, the prince, potentate, State, or sovereignty, whereof such

alien may at any time have been a citizen or subject; if such alien has borne any hereditary title, or been of any of the orders of nobility in the kingdom or State from which he came, he must, moreover, expressly renounce his title or order of nobility, in the court in which his application is made, which renunciation is to be recorded in such county; and the court admitting such alien must also be satisfied that he has continuously resided in the United States for five years, at least, immediately preceding his naturalization, and also within the State or Territory wherein such court is at the time held, at least one year immediately previous to such naturalization; and that during such five years he has been of good moral character, attached to the principles of the Constitution of the United States, and well disposed to the good order and happiness of the same; the oath of at least two citizens of the United States is requisite to prove the fact of such residence; and, at the time of his application to be admitted to citizenship, he must make, upon oath or affirmation, the same declaration of renunciation and abjuration of allegiance to any foreign power, and also make oath or affirmation to support the Constitution of the United States; all of which proceedings are to be recorded by the Clerk or Prothonotary of the proper court.

If any alien, having legally filed his declaration of intention to become a citizen and taken the necessary oath or affirmation, die before he is actually naturalized, his widow and children are entitled to all the rights and privileges of citizens, upon taking the required oaths or affirmations.

Any alien arriving in the United States under the age of eighteen years, and continuously residing therein until the time of his application for citizenship, may, after reaching the age of twenty-one years, and having been a resident within the United States for five years, including the three years of his minority, be admitted a citizen, without making the formal declaration of intention required in other cases; but at the time of his admission he must make such declaration, and further satisfy the court, upon oath or affirmation, that, for the three years immediately preceding, it had been his *bona fide* intention to become such citizen, and in all other respects must comply with the naturalization laws of the United States.

Severe penalties for counterfeiting any evidence of citizenship, or disposing of a certificate of naturalization to any person other than the one for whom it was issued, are imposed by act of Congress.

CHAPTER III. ELECTIONS.

1. A pure democracy is a government in which all the people who have the proper qualifications for voting personally take part—or have the right to do so—in the discussion of public measures, and enactment of the laws. This is not practicable unless the State consist of a small number of persons; and a representative democracy is substituted, in which the masses of the people exercise the voting and ruling prerogative by appointing a small number of substitutes to act in their place and represent them. This appointment of representatives is for the most part the only direct way in which the people of this country are able to take part in the government. Though the theory is that the people alone are sovereign, this is the only way in which sovereignty can exert itself. Even if present in a legislative assembly, they cannot discuss or vote unless they are Representatives, duly elected.

2. Elections, then, are of the highest importance. If a citizen would exert his sovereign authority, as one of the depositaries of power, he must take part in them. Representatives elected to make laws are expected to express the will of the majority of the people whom they represent. They are pledged, expressly or tacitly, to do so. If they disobey the will of their constituents, there is no immediate redress. They can be displaced only at the close of the term for which they were elected. There is some inconvenience and danger attending this method; though the fear of the displeasure of their constituents is usually sufficient to secure faithfulness. Where the people are numerous, (there are now more than 135,000 persons to each representative,) it becomes a matter of much interest to know what is their will. It is ascertained by the elections. The people vote for a candidate, or nominee, known to hold certain political principles. As men do not often see or think alike there is generally more than one principle, or system of views, regarding public measures, involved in every election, and therefore more than one candidate. The result of the vote shows the will of the majority. The same question generally occupies the attention of the whole country, and the elections to Congress determine the policy of the government, so far as legislation is concerned.

3. The same remarks apply to the election of the President and the members of the State governments. The choice of men for the State legislatures determines the policy and political principles of the State government, and

as the majority in State legislatures appoint the Senators, the character of Congress and its measures are influenced by State elections. The choice of the President is not, in theory, made directly, since Electors are chosen, who afterwards vote for the President; but it is understood that they will vote for a certain man; and it has been so invariably their custom to do so, that the result is considered as settled by the direct vote of the people. Should the Electors do otherwise the people would be very much surprised and displeased, and those Electors would have little prospect of appointment to office again. Very few men in office are willing to seriously offend their constituents, so that practically, the people vote directly for the President and Vice-President they prefer.

4. Of all our elections none is considered of so much importance as the Presidential. These come every four years, because the Constitution provides that the term for which a President is chosen, shall be four years. Our elections, both for the general and State governments, are by ballot, instead of *viva voce*, (the living voice,) as in some countries.

The ballot is a small piece of paper, with the name of the candidate or candidates printed or written upon it, and then folded in such a manner as to hide them, so that no one but the voter can tell what names are on his ballot. A vote by *viva voce*, is when the voter, in the presence of the inspectors of the election, audibly and clearly calls out the name of the candidate for whom he votes, and thus proclaims in the hearing of all present how he votes. But the ballot enables the voter to vote secretly if he chooses to do so.

CHAPTER IV. RATIO OF REPRESENTATION.

1. The ratio of representation simply means the ratio between the whole population of the United States, and the whole number of their Representatives in Congress; and this of course includes the ratio between the people of any individual State, and the Representatives it is entitled to; both being estimated upon the same basis, and determined by the same rule.

2. The distinctive characteristic of our government is, that it is a *popular* government. Its power is vested in the people. They elect their rulers, who are the servants of the people, and these rulers are expected to carry out the people's wishes. Upon such a system, it is a matter of the first importance, to distribute this power equally among all the people, and after having fixed upon the ratio between the whole population and the whole number of Representatives; or, in other words, after having determined how many members shall compose the lower House of Congress, the next step is to apportion these members among all the States in the ratio of their population. If one State has twice the number of inhabitants that another has, it will be entitled to twice the number of Representatives in Congress. If one has ten times the inhabitants that another has, it will be entitled to ten times the number of Representatives, and so on; with this one exception, which is, that by a provision in the Constitution, every State, without regard to its population, is entitled to one Representative in the lower House.

3. The adjustment of this matter is all provided for in the Constitution, that is, in its general features; but it devolves upon Congress in every tenth year to re-adjust and re-apportion the Representatives among the several States, according to the population of each State as shown by the last census, which is taken every tenth year; and when the apportionment is once made, it remains the same for the next ten years, when the census is taken again, and a new apportionment is made.

4. Up to the present time (1874,) this has been done nine times. It was done the first time by the convention which formed the Constitution. That apportionment is found in the Constitution, and is as follows:

To New Hampshire,	3
Massachusetts,	8
Pennsylvania,	8
Delaware,	1
Rhode Island,	1
Connecticut,	5
New York,	6
New Jersey,	4

Maryland,	6
Virginia,	10
North Carolina,	5
South Carolina,	5
Georgia,	3

By this it will be seen that the first Congress consisted of but 65 members.

The Constitution also provided that Representatives should not exceed one to every 30,000 people. The next year after the government went into operation, (1790,) the first census was taken, and as soon as the result was known, a new apportionment was made. This was done in 1792, and was made upon the ratio of one Representative to every 33,000 of representative^[4] population.

[4] The Representative population includes all free persons, white or black; to which (according to the provisions of the Constitution), three-fifths of all the slaves were to be added. But this proviso, now that slavery is abolished, has become a nullity.

5. In 1800, the second census was taken; and when Congress made the apportionment, which was done in 1803, it did not change the ratio, but left it at one Representative to every 33,000 of the representative population.

In 1810, the third census was taken, and in 1811 the ratio was fixed at one Representative for every 35,000 of the population.

In 1820, the fourth census was taken, and in 1822 Congress fixed the ratio at one Representative for every 47,000 of the population.

In 1830, the fifth census was taken, and in 1832 the ratio was fixed at one Representative to every 47,000 of the population.

In 1840, the sixth census was taken, and in 1842 Congress again declared that the ratio should be one Representative to every 70,000 of the population.

6. In 1850, the seventh census was taken, and in conformity with the law passed this year, the number of members was for the first time limited; the limit being 233; and the Secretary of the Interior was ordered to take the census returns, and divide the whole representative population by the number 233, and to make the quotient the ratio between the Representatives and the people.

7. We have never seen the result of the Secretary's estimate, but, taking the population of 1850 and dividing it by 233, would produce a quotient of nearly 94,000; and this we take as the ratio, after the time when it was done, 1852; that is, one Representative to every 94,000 of the population.

8. The eighth census was taken in 1860, and on it an apportionment was based, which allowed one Representative for every 127,000 of the population.

In 1850 Congress adopted the principle of permanently fixing the number of members of Congress, to save the trouble of doing it as heretofore, every ten years. An act was passed limiting it to 233; but notwithstanding this limitation, it was provided that if any new State came in, it should have its

member, which would add to the number. But this increase was to continue no longer than until the next apportionment, when the number was to fall back again to the old figure.

In 1862 the law was modified to make the whole number of members consist of 241 after the 3d of March, 1863. In 1870 the ninth census was taken, and in 1872 Congress decided that after March 3d, 1873, the Representatives should comprise 292 members, being one Representative for every 135,239 of the population and apportioned them among the several States as follows:

Alabama,	8
Arkansas,	4
California,	4
Connecticut,	4
Delaware,	1
Florida,	2
Georgia,	9
Mississippi,	6
Missouri,	13
Nebraska,	1
Nevada,	1
New Hampshire,	3
New Jersey,	7
New York,	33
North Carolina,	8
Ohio,	20
Illinois,	19
Indiana,	13
Iowa,	9
Kansas,	3
Kentucky,	10
Louisiana,	6
Maine,	5
Maryland,	6
Massachusetts,	11

Michigan,	9
Minnesota,	3
Oregon,	1
Pennsylvania,	27
Rhode Island,	2
South Carolina,	5
Tennessee,	10
Texas,	6
Vermont,	3
Virginia,	9
West Virginia,	3
Wisconsin,	8

9. But it must be borne in mind that Congress has the power to alter all this, and to enact that Congress shall consist of any other number of members, although it is not probable that this will be done soon.

10. The foregoing statements will show the general plan upon which the House of Representatives is constituted, and how the several States are constantly changing the number of their Representatives, and their relative power and influence in Congress. This can be readily understood by remembering the fact that new States come into the Union every few years, and that the population increases much more rapidly in the Western States than in the Eastern, and that, consequently, the West is rapidly gaining power in Congress, while the Atlantic States are losing it.

11. In the apportionment no regard is had to the Territories or to their population. In this adjustment, the States and their population only are regarded, and the number of members is all given to the States. Every Representative from a Territory is an addition to that number, but it must be remembered that a Territorial member has no right to vote on any question, but has only the right to debate; and for this reason he is not, in the fullest sense, a member, and is not counted in adjusting the number of which the House is made to consist.

CHAPTER V.

OATHS AND BONDS.

1. An oath is an appeal to God, by him who makes it, that what he has said, or what he shall say, is the truth. It is the most solemn form under which one can assert or pronounce anything. To utter a falsehood while under oath is perjury, a crime of the darkest hue. One which God has declared he will punish, and one which is made infamous, and punishable by fine and imprisonment by the laws of the land.

2. The Constitution (Art. 6, Sec. 3) requires that Senators and Representatives, and members of the several State Legislatures, and all executive and judicial officers, both of the United States, and of the several States, shall be bound by oath or affirmation to support the Constitution. Then in the second article, section eight, the form of the oath required of the President before he enters upon his duties, is given in these words:

“I do solemnly swear (or affirm) that I will faithfully execute the office of President of the United States, and will to the best of my ability preserve, protect and defend the Constitution of the United States.”

3. This is all the Constitution says about oaths; but it is enough to show that no man (unless he commit perjury,) can accept office, either under the United States or any State government, unless he in good faith will support the Constitution.

But in the laws enacted by Congress, we find that not only official oaths are required; but in a great variety of other cases, men who transact business with the government are required to verify their accounts and statements with an oath. This is particularly the case with those who do business with the custom house; such as merchants, shipowners, and masters of vessels. Many oaths must be put in the form of affidavits; that is, the oath must be written and signed by the deponent, that the statements made may be preserved.

4. The form of official oaths varies according to the nature of the duties to be performed by the deponent. The oath must be taken before the officer enters upon his duties. Should he neglect or refuse to do this, his acts will be illegal, and he would make himself liable to punishment.

After the late civil war broke out, Congress for the purpose of preventing those who had voluntarily taken part in the rebellion, from holding thereafter any office under the government, passed an act requiring every one before he could accept any office, either in the civil, military, or naval departments, to take an oath in the following form:

5. "I, A. B., do solemnly swear (or affirm) that I have never voluntarily borne arms against the United States, since I have been a citizen thereof; that I have voluntarily given no aid, countenance, counsel or encouragement to persons engaged in armed hostility thereto; that I have neither sought, nor accepted, nor attempted to exercise the functions of any office whatever, under any authority or pretended authority in hostility to the United States; that I have not yielded a voluntary support to any pretended government, authority, power or Constitution, within the United States, hostile or inimical thereto. And I do further swear (or affirm) that to the best of my knowledge and ability, I will support and defend the Constitution of the United States, against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; that I take this obligation freely, without any mental reservation or purpose of evasion, and that I will well and faithfully discharge the duties of the office on which I am about to enter. So help me God."

So strong and comprehensive an oath as this was never before required from any officer of the government. It answers the requirements of the Constitution, and substantially comprehends all contained in any other forms heretofore used. It is at once an oath of allegiance, an oath of support of the Constitution, and an oath to discharge faithfully the duties of the office taken. This goes by the name of the TEST oath, and frequently "The Iron-clad Oath."

6. The object of the test oath was, during the Civil War, to prevent the entrance into any office of a person who might be secretly unfriendly to the government, and use his position to the advantage of its enemies. So comprehensive and minute an oath would allow no chance of mental evasion to a conscientious person, and would lay the offender under the liability of severe punishment. It is evidently proper to bind all officers of the general and State governments under the strongest and most solemn obligation to a faithful and honest discharge of their duties.

7. Whoever receives an office in the United States, which is connected with the revenue in any way, so that public money passes through his hands, is required to give a bond as security for such money. These bonds give the government a claim on their property if the money is not accounted for according to the directions of the law. They are signed by one or more persons who must show that they have the means to pay the amount for which they become security. The amount of security required depends on the sums of money that are to pass through the hands of the official, or which is likely at any time to accumulate in his possession. The government takes all the care it can that there shall be no risk of loss of the public property, and the bond is designed to afford adequate security for all that any officer may have charge of.

8. By this means two important ends are gained. No person can get an office who has no friends and no reputation for uprightness sufficient to induce those that know him to risk their own property on his honesty and faithfulness. It was designed to be a sure means for the government of finding out who were to be trusted. If he has not property himself, so that he can secure his bondsmen to their satisfaction, he must have so high a character for integrity that they are willing to risk their money in his hands, or he cannot obtain an office. Security for public funds, and a high degree of personal worth are both expected to be gained by this requirement.

On the whole, this works very well indeed, in both respects, but there seems no security, that is quite infallible, against roguery, unless it be in the extreme care of the people, and their constant watchfulness over all the affairs of the country and all the men who represent them. It is difficult to make a house so strong that a thief cannot get into it by force or stratagem, and rogues who wish to steal from the public funds may band together and help one another to get into office and then divide what spoil they can secure; or unforeseen events may bring more money than was properly secured into an officer's hands, or those whose duty it is to see that he disburses the funds at the right times may be careless or dishonest.

9. The only sure way is to take care that none but men of proved integrity get into office, and to take all pains to cultivate honesty in the community at large. The money lost by the government is probably much less in proportion than in the private business of the country. Great watchfulness is really exercised, and when such a case occurs it is immediately known

through the whole country. Not many men are willing to run so much risk of punishment and public reprobation. Too much care, however, cannot be taken to prevent corruption in public life. It destroys the purity and soundness of *character* on which our institutions are founded. A republic cannot exist without a high standard of virtue.

10. Every official is required to take an oath, or make a solemn affirmation to discharge the duties of his office faithfully. Though we cannot expect to be quite secure against the trickery and insincerity of false and corrupt men, yet we have reason, on the whole, to congratulate ourselves on the general security of public property, and the watchfulness of the people over their servants in places of trust.

CHAPTER VI.

GOVERNMENT PRISONS.

1. The United States government has always endeavored to continue, as it commenced, to rule with vigor, and to preserve a wholesome respect for its own authority and the rights of all its citizens, while it has, beyond all other governments, probably, that have ever existed sought to avoid arbitrariness and severity; keeping in mind the principle lying at the foundation of its institutions that it exists, not for itself, but for the good of the people. It has assumed that the people generally would not require coercion to submit to its regulations, and has not, therefore, made that ample provision for punishment and intimidation that is usual among governments.

In confirmation of this we call attention to the fact that the general government does not own, and has never built, prisons for the confinement of offenders against its laws. Imprisonment, as the mildest form of punishment, has, indeed, very often been inflicted, more often than any other form of punishment. How does this occur when they own no prisons? The answer is that they use the prisons of the States wherever they will allow it. This arrangement between the general and State governments has been made in nearly if not all the States; the United States paying for the support of their prisoners.

2. But in case any State should refuse to make such an agreement, the United States marshal of any district where a prisoner is to be confined, is authorized to procure some building where the prisoners may be safely confined in the district where they have been tried and convicted, or where they have been arrested and are held for trial.

This is a far more economical plan than it would be for the United States to build prisons all over the country, and then to employ keepers of them. It exemplifies the friendly relations existing between the States and the general government.

CHAPTER VII.

PROCLAMATIONS.

1. A Proclamation is an official notice published by one high in authority, for the purpose of giving reliable and authoritative information to the people that something has been done, or will soon be done, which is important for them to know, that they may act, or refrain from acting according to the information contained in the proclamation. These proclamations are made known to the country through the most extensive channels of information that can be used for conveying intelligence to everybody in the Republic. In our day, and in our country, the newspapers are the best means that can be used for this purpose. But in ancient times, and before the art of printing was known, swift riders or runners were dispatched to every part of the kingdom or country over which the proclamation was to be made known. These messengers carried it with them, and proclaimed it in the ears of all the people.

2. These documents are official acts brought before the people in due form and solemnity. Sometimes they are only recommendations; at others they have all the force of organic law, or the acts of Congress.

It has, for some years, been the custom of the Executive to designate some day toward the close of the year as a day of thanksgiving, recommending the day to be observed in a religious manner. Important

changes in the commercial affairs between us and some foreign country are made known by the same method.

3. A memorable proclamation was made by President Lincoln, in 1862, by which he made known to the country, and especially to the Southern States, that if they continued their war against the United States for one hundred days after its issuance, he would then, in virtue of his authority as commander-in-chief of the army and navy, liberate the slaves in all the seceded States. At the expiration of the time, which was on the first of January, 1863, he issued another proclamation, in and by which he did emancipate all the slaves in every State which had warred against the United States government.

The blockading of our ports at the commencement of the civil war, and the imposition of an embargo upon our shipping, previous to the last war with England, were both subjects which brought out proclamations from the President who then filled the Executive chair.

4. The above examples show the character of the cases which cause proclamations to be issued. In some instances they have the authority of law; in others they are merely recommendations; and in others only communicate important intelligence in regard to our public affairs at home or abroad.

CHAPTER VIII.

COMMISSIONERS.

1. As it is one purpose of this work to give a clear and complete account of the mode of conducting the affairs of the general government, we have thought it best to call attention to the class of officers named at the head of this chapter; and especially since persons acting under this title are assigned to a variety of duties, sometimes permanent and sometimes temporary. In the first place, they act as heads of bureaus in the various departments. These commissioners are permanent officials of the government, established and provided for by law; such are the commissioners of the land office, patent office, pension office, &c.

2. Another class of commissioners can hardly be considered officers, but rather temporary or special agents. In the multifarious duties devolving upon Congress, the President, and all the departments, it not unfrequently happens that it is impracticable for them to do certain things necessary to be done. The business to be transacted may be at a great distance from the capital, even in a foreign country. In these cases commissioners are appointed to do such business. They have been appointed to negotiate a peace, to make treaties of various kinds between us and other powers, and to negotiate with the Indians for the purchase of their lands. The United States courts appoint them to take bail, or to take testimony to be used on trials, and do various other things necessary in trials and proceedings before them.

3. Congress frequently appoints commissioners to obtain information, or to investigate some matter on which they expect to legislate. In all cases they must report their proceedings, either to Congress, to the President, or to the head of the department under whose instruction they act. Permanent commissioners report once a year, or oftener if required, that Congress may know the condition of affairs in their respective bureaus. Special commissioners, after they have performed the work assigned, make their report; after which their duties cease, and their commission comes to an end.

4. The lowest grade of diplomatic agents are called commissioners. We are thus represented at the present time in the Republics of Hayti and Liberia.

5. By recent acts of Congress, the powers of commissioners in some cases have been enlarged. They now examine persons charged with crimes against the laws of the United States; hold them to bail, discharge them, or commit them to prison; and do other magisterial acts, preliminary to the trial of the accused. When acting in such cases, they are clothed with some of the powers of a court.

CHAPTER IX.

OFFICIAL REGISTER.

1. Congress, in 1816, passed an act authorizing and requiring the Secretary of State, once in two years, to print and publish a book called “the official register,” in which he was ordered to register the name of every officer and agent of the government, in the civil, military and naval departments, including cadets and midshipmen, together with the compensation received by each; the names of the State and county where born; and the name of the place where employed, whether at home or abroad.

To the list of persons employed in the Navy Department, the Secretary of the Navy is required to subjoin the names, force and condition of all the ships and vessels belonging to the United States, and when and where built.

This work has been published and distributed, as the law directs, ever since the passage of the act, and is sometimes denominated “the blue book.” It is a very convenient and useful publication, as it shows in compact form the whole official force of the government in each department, together with the cost of maintaining it.

As it contains only names and dates and facts relating to persons, comparatively few would take the pains to read it, and but a small number is published. It can be found in the Congressional library at Washington, where twenty-five copies of each edition are deposited.

CHAPTER X.

THE STARS AND STRIPES.

A nation’s Flag represents its sovereignty. It is adopted by its supreme authority as a symbol or sign of itself, and wherever it waves the fact of the substantial control of that authority, at that point, is thereby asserted. If there is a struggle between two powers for control, the presence of the flag proves that the authority it represents still maintains itself, and its subjugation is declared by lowering its flag and by the substitution of another in its place.

The flag is, therefore, an expression to the eye of the condition of things; and attracts the sympathies and antipathies, the joys and sorrows, the hopes and fears of those interested in the sovereignty it represents. It is the rallying point of sentiment and of energy. The affection and reverence bestowed on our country will light up into a patriotic flame at sight of its flag. It is associated with all the heroic deeds and achievements that adorn our national history, and with the loss of all those we honored and loved who followed and fought for it, and gave their lives in its defense. Our “Star Spangled Banner” has been a thousand times baptized in blood dearer to us than our own, and the sight of it recalls all these sacrifices so cheerfully made to establish or to preserve our institutions. The flag of the United States may well call forth more enthusiastic affection, pride, and hope than any other in the world; for it symbolizes not only home, country, and associations dear to Americans, but the justice, liberty, and right of self government that are dear to all mankind. Humanity at large has a deep interest in it.

Its history is this: Soon after the Declaration of Independence the Continental Congress appointed a committee to confer with Gen. Washington and “design a suitable flag for the nation.” After the painful and depressing defeat on Long Island, the retreat through the Jerseys and across the Delaware, when everything seemed lost for the new government, Washington suddenly struck the vigorous blows at Trenton and Princeton that confounded the enemy and drove him back to Staten Island. Congress and the country were cheered with a hope and a resolution that never afterwards failed them; for in the next campaign occurred the capture of Burgoyne, followed by the treaty with France; and the close of the war in our favor was henceforth only a question of time.

In the month of May or early June, 1777, following the staggering blow Washington had given the British army in Jersey, the committee referred to above, and Washington, completed the design for a flag. This was accomplished and the first flag made at the house of a Mrs. Ross, in Arch St., Philadelphia. The house is still standing—No. 239. She had a shop where she followed the “upholder” trade, as it was then called—the same as our upholstering. One day the Commander-in-chief, Hon. Geo. Ross, a relative of hers, and certain members of Congress, called on her, with a design for a flag—thirteen red and white stripes, alternate with thirteen six

pointed stars—and requested her to make the flag. She consented but suggested that the stars would be more symmetrical and more pleasing to the eye if made with five points, and folded a sheet of paper and produced the pattern by a single cut. This was approved and she finished a flag the next day. Mrs. Ross was given the position of manufacturer of flags for the government, which descended to her children.

This was the flag that led our armies to victory during the remainder of the war, waved over the crestfallen soldiers of Burgoyne and Cornwallis, and at the mast head of John Paul Jones on the English coast. In 1794 this flag was changed, though its chief features were retained. Congress then ordered that the flag should consist of fifteen stripes, alternate red and white, and fifteen stars, white on a blue field. There were then fifteen States. The stars and stripes were equal, and a stripe and a star were added with the advent of each new State. This was changed in 1818, as the States increased and the flag threatened to become too large, by reducing the stripes to thirteen, representing the original Union, and the stars were made equal to the number of States. No change has since been made except to add a star whenever the union increased by the admission of a State.

“The Star Spangled Banner,” a stirring patriotic song which is to Americans what the “Marseillaise” is to the French, was composed by the author during the cannonade of Fort McHenry, near Baltimore, by the British fleet co-operating with an army which was to attack it, simultaneously with the fall of the fort, by land, Sept. 13th, 1814. The poet had gone on board the fleet under a flag of truce before the attack began, to negotiate about some prisoners, and was obliged to remain until the next day, the cannonade continuing during the night. If the fort surrendered Baltimore would be taken; and the fate of Washington, pillaged and burned a few days before, filled the people with the anxiety which is expressed by the poet, to know if the flag still waved in the morning “over the Land of the Free and the Home of the Brave.” The joy of all America may be conceived when Admiral Cockrane drew off his fleet and took the British army on board, while the “Stars and Stripes” continued to float gaily on the breeze over Fort McHenry.

CHAPTER XI.

THE GREAT SEAL OF THE UNITED STATES.

1. The use of seals to give authority to documents, and to establish their genuineness, comes down to us from a remote antiquity. It is much easier to counterfeit a signature alone, than the impression of a seal, and when both occur on a document it is considered fairly safe to be relied on as a sign of authority.

They are usually emblematic of some event, or sentiment attaching to the history or prevailing tendency and feeling of a country. They are used on documents or papers issued by the government. Some of the Departments have a special seal for their own use, in cases where the signature of the President is not required. If it is not affixed to the proper papers they fail to become legal and have no authority.

2. The usual mode of affixing the seal formerly was by placing melted wax on the paper and pressing the seal on it giving a fac simile or perfect representation of it. As this required time and business increased with the growth of the country, Congress passed an act making it lawful to affix the seal by making the impression directly on paper.

The custody of the Great Seal is with the Secretary of State, whose duty it is to affix it to all civil commissions issued to officers of the United States appointed by the President and Senate, or by the President alone. But it is forbidden to be affixed before the President has signed it. The seal alone without the signature has no value. It is used to show the genuineness of the President's signature.

3. The Secretary of State and all the other secretaries of the great departments, each have a seal of office which is affixed to commissions, and to other instruments emanating from their respective offices.

Several of the most important bureaus are required by law to have seals of office; for example, the Land Office and the Patent Office. When the United States gives a patent (title) to land, it must be sealed by the Land Office seal. A patent right must be issued under the seal of the Patent Office.

4. One of the most common and important uses of seals arises from the necessity people are often under to have copies of records, maps, and various other papers, the originals of which are in some of the departments at Washington, to be used as evidence in courts, where trials and other legal proceedings are pending. In order to provide for this necessity, Congress has enacted that copies of such records, maps and papers belonging to any of the government offices, under the signature of the head of such office, or of its chief clerk, with the seal affixed, shall be as competent evidence in all cases as their originals would be.

HISTORY OF THE GREAT SEAL.

1. Soon after the formal establishment of the Republic by the Declaration of Independence, Benjamin Franklin, John Adams, and Thomas Jefferson were appointed a committee to prepare a seal. They employed an artist and furnished various devices; Jefferson combining them all at the request of the others. The paper still exists in the office of the Secretary of State at Washington. They reported Aug. 10th, 1776, but for some unknown reason, probably neglect, it was not acted on.

In 1779 another committee was appointed, to make a device. They reported May 10th, 1780. It was not acceptable, and was recommitted, being again reported a year afterwards, but not adopted. In 1782 a third committee was appointed, but could not satisfy Congress in their report. It was then referred to the Secretary of Congress, Charles Thomson, who procured various devices that were unsatisfactory.

After vainly striving to perfect a seal which should meet the approval of Congress, Thomson finally received from John Adams, then in London, an exceedingly simple and appropriate device, suggested by Sir John Prestwitch, a baronet of the West of England, who was a warm friend of America, and an accomplished antiquarian. It consisted of an escutcheon bearing thirteen perpendicular stripes, white and red, with the chief blue, and spangled with thirteen stars; and, to give it greater consequence, he proposed to place it on the breast of an American eagle, displayed, without supporters, as emblematic of self-reliance. It met with general approbation, in and out of Congress, and was adopted in June, 1782; so it is manifest, although the fact is not extensively known, that we are indebted for our

national arms to a titled aristocrat of the country with which we were then at war. Eschewing all heraldic technicalities, it may be thus described in plain English: Thirteen perpendicular pieces, white and red; a blue field; the escutcheon on the breast of the American eagle displayed, holding in his right talon an olive-branch, and in his left a bundle of thirteen arrows, and in his beak a scroll, inscribed with the motto *E Pluribus Unum*. For the crest, over the head of the eagle, which appears above the escutcheon, a golden glory breaking through a cloud, and surrounding thirteen stars, forming a constellation of white stars on a blue field.

Reverse.—A pyramid unfinished. In the zenith, an eye in a triangle, surrounded with a glory. Over the eye, the words *Annuit Cœptis*—"God has favored the undertaking." On the base of the pyramid, are the numeral Roman letters MDCCLXXVI; and underneath the motto, *Novus Ordo Seclorum*—"A New Series of Ages"—denoting that a new order of things had commenced in the Western hemisphere. Thus, after many fruitless efforts, for nearly six years, a very simple seal was adopted, and yet remains the arms of the United States.

CHAPTER XII.

THE ORIGIN OF LAW.

1. The origin of law varies with the character or class of the government under which it is made. Where all authority is concentrated in the hands of one man his will becomes law whenever expressed, or when expressed in some regular and formal way. More generally laws are originated, in our days, in civilized countries where there is a monarchical government, by the ruler in conjunction with representatives of the people or some classes of them. In point of fact, rulers are always obliged to regard the habits, traditions, and feelings of the people more or less, or they may be obliged by a revolution, or the intrigues of the ambitious founded on their discontent, to retire to private life. The real prominence of the people in their governments is constantly becoming greater in all civilized lands, and it seems highly probable that, before many generations have passed, all

governments not founded on an acknowledgment of the Sovereignty of the People will be incapable of maintaining themselves.

2. In the United States of America the source of all authority, and the origin of all law, is in the people alone. The fact that laws are made by Representatives does not alter the principle at all. They are simply the substitutes or agents of the people. Where there are many people any other than a Representative Democracy is impossible. These are chosen from among their equals, and when their term of office has expired return to the common level. If they are ambitious of more than one term of office they must take special care not to offend the majority that first elected them.

3. The first signal exercise of the law making power by the people was in the adoption of the Constitution as the Fundamental Law. This established the character of the government, prescribed the duties and limits of the legislative and executive branches, and organized a third branch to watch over the action of the other two and keep it in harmony with the Constitution. This Instrument then became the source or foundation of all *special law*. It is a comprehensive statement of the will of the people, but it may be changed or enlarged in a prescribed way. It is binding on all legislators and executives. Whatever may be enacted or done by them not in accord with it is null and void; the Supreme Court being bound so to announce when the fact shall be proved before it. The Constitution is the Law of the Land. Any laws enacted by Congress, or by State Legislatures, not contrary to it, are valid and binding; but any attempt to set aside any of its provisions, or disregard its true intent, would be usurpation and a violation of the rights of the people. The term State Sovereignty can, consequently, be true only in a limited and secondary sense, this being a higher Sovereignty still.

4. The larger part of the general laws by which we are governed are made by Congress, that body having been instituted to that special end. It is composed of a popular House, or one chosen directly by the people, and one more select, chosen by the State Legislatures to represent their States as a whole. If the Legislature represents the will of the people of the State accurately, as it always does unless some change in popular opinion takes place suddenly after it has been elected, the Senators as well as Representatives will embody the views of the people in their respective States. So we see that the people are Sovereign and law really originates

with them. Laws, indeed, may be made by their agents that do not suit them; but, if they cannot induce them to repeal such laws by petition, remonstrance, or otherwise, at once, by waiting a little until the terms of such members expire they can replace them by others pledged to carry out their views. Thus the general policy of the government is determined by the people at the general elections. They give the law to the law makers, and appoint the executives who will administer them in the spirit they approve. The whole matter is within their control as a point of power, and still more so from the natural deference the Representatives of the people feel toward the wishes of those on whose favor they depend. The deep indignation or contempt of their fellow men will seldom be incurred, even if they have no ambition for further electoral honors.

5. The treaties made by the President, which require to be ratified by the Senate to become binding, and the approval of the House of Representatives if money is required to carry them into effect—since only that branch can dispose of the property of the country, or originate laws for raising money—have also the force of general laws. The whole country is bound to act in conformity with their provisions. We have, then, three kinds of law, or laws from three different sources that are alike binding on the whole country: the Constitution, which is unchangeable except by vote of the Legislatures or conventions of three-fourths of the States; the laws of Congress, which may be made and repealed at their pleasure; and treaty law, which involves the consent of a foreign State, but requires the assent of the President and one or both bodies of Congress, and which may be abrogated or modified at the united pleasure of all the parties concerned in making it.

6. There is a fourth species of law more general still and more or less of which is often involved in treaties with foreign governments. This is the Law of Nations, or the principles acknowledged by all civilized nations as binding on them in their intercourse with each other. The only binding force it possesses is in the general practice of mankind, and the authority of public opinion. This is commonly effective, since all law depends really on the approval of the people for its efficacy, or at least on their silent submission if they disapprove.

7. In every State in the Union the people elect a Legislative body which makes such local laws as the people wish to be governed by, and as their

special circumstances require; but they are not permitted to legislate on general questions, to make any law contrary to the Constitution, or to the laws of Congress, nor are its laws binding on any but the citizens of the State in which they are made, or such others as may be residing there. Each State has a Constitution which determines the special organization of its government, and limits and defines the powers of its different branches; but it is required to be in harmony with the Constitution of the United States. The Constitution, Legislature and officers of a State are determined by vote of its people.

8. After this examination we reach this conclusion: That there is no institution in the United States that has not been virtually established by the people, its fundamental law was adopted by them of their own free will and may be changed when they see fit; and that if all the laws, of whatever kind, that are binding on them, are not such as they prefer, they are, at least, originally responsible for them, and have in their hands the means of changing them within a reasonably short period. In fact their demand or the zeal of their Representatives for their interests usually originates whatever laws are made. The constant general prosperity of the country since the establishment of the present government, the increase of intelligence and self respect among the people, and the beneficial influence exerted by the United States on the world tend to confirm and settle its principles and laws on a permanent foundation.

CHAPTER XIII.

THE LAW OF NATIONS.

1. The laws of any nation are the rules by which it is governed, a violation of which renders the offender liable to the infliction of certain penalties. These laws, in many nations, are carefully and systematically arranged in the beginning, as in the United States; in others, as in England, they are gradually produced, the course taken in dealing with the first of a class of similar cases furnishing a precedent that is equal in force to a general law.

2. From very early times the different nations who had intercourse with each other began to follow certain rules, which commonly originated in the mode last mentioned above; and many of them became generally recognized as the proper guide in international intercourse. These customs came, at length, to be called the Law of Nations. Writers of eminence carefully investigated them, and studied the principles on which they were founded. These writers are held to be authorities as to this law, and the principles they have laid down are generally acknowledged, by civilized nations in modern times, as the standard of International Law.

3. There is no possibility, in the present state of the world, of organizing a tribunal with authority to impose penalties for violations of this law by individual nations; though it is to be hoped that may some time be the case. The only representative of such a tribunal is the general opinion of the civilized world; and nations must, themselves, act as supreme judges and executors of the law as it applies (or as they choose to hold it as applying) to their disputes. When they cannot come to an agreement with their adversaries, they commonly Declare War, and endeavor to right themselves by force.

4. This is not, by any means, an equitable or satisfactory way of avenging wrongs. The aggressor may be the strongest; and the offense, in that case, will be greatly increased. It causes the penalty, in any case, to fall very heavily on many innocent heads, and produces lamentable and wide-spread desolation. Yet it is sometimes better than tame submission; and the right to make war when grievous wrong has been suffered, or indignity offered to the national honor, is recognized by the Law of Nations; and certain rules are applied by it as a guide in honorable warfare. There is nothing but self-respect, and respect for the opinions of the civilized world, to keep belligerent nations within the limits of these rules. They are, however, continually becoming better defined, and Public Opinion has more and more weight in each succeeding generation.

5. Some of the more important features of International Law (or the Law of Nations) are, that every nation has the right to regulate her own internal affairs without interference from others, unless some of these regulations may seriously affect the interests of a foreign power; that national boundaries are to be respected; that bodies of water lying within a national territory, and the seacoast for three miles from the shore, are under its

exclusive jurisdiction; and that a nation may take measures to protect its own citizens who may be traveling or doing business in other countries, unless they violate its laws; and then it may first examine the case before the accused is given up for trial and punishment to a foreign court. There are many other rules. These will serve as examples.

6. One class of these laws requires special mention, because they are often more carefully defined than most other international customs. These are Neutrality Laws. Those now in force in the United States were enacted in 1818. They are only a formal recognition by our highest legislative authority—Congress—of the Law of Nations as generally accepted by other governments. The leading regulations are, that our citizens shall not interfere, but at their own risk and peril, in contests between other nations; that no armament shall be fitted out in our territory for the purpose of making war on any power with which we are at peace; and making it unlawful for an American vessel to carry “Contraband of War” (or war material) to either of two warring nations. It forbids granting to one nation rights not allowed to the other with which it is at war. Neutrality Laws are designed to avoid causes of unfriendly feeling, and to prevent the improper interference of our citizens in the quarrels of other nations.

7. Our government believed itself wronged in the course of the recent Civil War by England. It claimed that the English government had not been at proper pains to preserve a neutral attitude; and complaint being made, the two governments agreed to appoint a Commission to examine and arbitrate the case—the decision, whatever it might be, to be accepted by both parties. This was done, at Geneva, in Switzerland; and probably prevented a war between the two countries. It is to be hoped that all national disputes may hereafter be settled in this reasonable and Christian way.

8. Treaties are international laws binding on the two or more parties making the contract; and our Foreign Representatives (as ambassadors, ministers resident, etc.) deal with International Law as arranged by treaties and the Laws of Nations.

CHAPTER XIV.

RELATION OF GOVERNMENT TO RELIGION.

1. Religion has always exerted so much influence on men that it has been customary for governments to assume more or less control over it; and, as the leaders of religious systems have commonly been glad to get the support of governments, there has usually existed what is called a “Union of Church and State,” the government endorsing the views of some special religious system, and giving more or less support to its officials; sometimes, even refusing to tolerate any other; or, if tolerated, reserving its special recognition and favors, and whatever material support it chose to give to religious establishments to that termed National, alone; that church returning the favor by using its great influence with the people to support the measures of the government.

It is very distasteful to many men who differ from the views of the favored system to be required to support it, and to be frowned upon by the government if they do not feel inclined to connect themselves with it.

2. The Founders of our government were wise enough to leave the people to arrange religious questions according to their pleasure. They were not unbelievers in religion, but thought, as most of our citizens now think, that entire liberty should be left to all to act in religious matters as they felt able and inclined. All religious systems are equally tolerated—no government support is given specially to any. Some people do not approve of religious oaths (an affirmation in the name of God, or calling God to witness that what is said is true,) and from such persons a solemn affirmation or statement, answers the purposes of the law.

Although neither the Constitution, nor Congress in its laws, prescribe a religious profession of any kind, and the Constitution prohibits Congress from making laws respecting the establishment of a State religion, or interfering with the free exercise of it, and declares that “no religious test shall ever be required, as a qualification to any office or public trust, under the United States,” neither do they discourage religion. Respect is shown, in many ways, to religion. Congress usually appoints a chaplain, now of one denomination, and now of another; it allows chaplains in the army and navy, and provides them a salary; and, of late years, the President

recommends a day of National thanksgiving to God once a year, for the blessings we enjoy, and sometimes proclaims a day of fasting and prayer. It shows all due respect to the religious beliefs among the people, but leaves all free to practice any form of it, or to reject them all.

3. Entire religious liberty is a rarity in the world, and is much more favorable to the purity and weighty influence of religious teachings than a State religion. Many of the colonies that afterwards became States, were founded by persons who fled from religious persecution in the countries of the Old World, and multitudes have emigrated here to secure freedom in the enjoyment of their religious views and practices, or even entire freedom to reject all religion if they could not believe in any, though that is seldom the case.

Our example has been much approved and is having much influence on other nations.

TOLERATION OF OPINIONS,

4. Is characteristic of the American Government. Liberty of the Press, or freedom to state any views a man may entertain, is as complete as liberty in religious matters. Very severe things are sometimes written and published of the government, and sometimes things that would do much harm if they were generally believed, and no notice is taken of it, unless some one sees fit to contradict it or prove it to be incorrect.

If a man injures another's character by writing things that are false, he can be tried, and, if convicted, punished by the courts. Vile and indecent writings are prohibited; but otherwise there is entire freedom. Falsehood and error are left to be destroyed in a natural way by the truth.

This is a great gain to the truth since error has often been protected, in other countries, by government authority, on the conviction that it was the truth, to the great prejudice of truth itself.

5. Although, during the Civil War, there was some restraint put upon the freedom of publishing things that might be hurtful to the government, the instances were not very numerous, and, at the close of the war the spirit of toleration was shown in a way very creditable to our people, and very praiseworthy in our government, which left the way open to a speedier

reunion of sentiment and sympathy in the sections that had fought each other so bravely.

The brave and resolute can afford to be just to each other, and to allow entire freedom of opinion to all. In this respect we have fairly earned the right to call ourselves a nation of freemen.

CHAPTER XV.

CHAPLAINS.

1. Regard to the religious habits of a large number of the people has led Congress to appoint, or permit the appointment, of chaplains to supply such religious instruction and services in the army and navy as might be felt desirable by those concerned.

Though chaplains are not properly officers of the government, they are employees of it, for they are appointed by its authority, and paid from its treasury. Those in the army receive the same pay and emoluments as a major of infantry; or this was the compensation allowed by act of Congress in 1812. But by an act of 1862, it was fixed at \$100 per month, and two rations per day, for those in the army or hospitals. By the act of 1812, one chaplain was allowed to every brigade; but by an act of 1861 (during the civil war,) one for every regiment was allowed.

Navy chaplains, in 1835, received \$1,200 per year. But in 1860 this was raised to a lieutenant's pay; and this in 1862 was \$1,800 per annum.

Chaplains in Congress receive \$750 per annum.

2. The United States also employ a chaplain in the military academy at West Point.

From the foregoing it will be seen that in time of war, with one chaplain for every regiment, and one for every ship of war, and others in hospitals and military posts, quite a large number of clergymen are employed by the government.

This provision for the religious instruction of those who cannot, from their peculiar position, attend the preaching of the Gospel, or other religious services, is certainly an indication that our government respects religion, and looks after the spiritual as well as the temporal interests of its army and navy.

3. In the appointment of chaplains, the government pursues a liberal course. No particular preference is given to any denomination, but they are appointed from almost every religious sect, and allowed to conduct religious services after the forms of the church to which they respectively belong.

Every body knows what the duties of a chaplain are. So we need not explain them here, and will only add that a faithful chaplain in the army in time of war has much to do besides preaching and holding regular services. The wounded, the sick, and the dying, should be the particular objects of his attention. He should not only minister religious instruction and consolation to them, but look after their physical comforts. Many of these clergymen, during the late most unfortunate civil war, distinguished themselves by their exertions to promote the bodily comforts of those unfortunate men, as well as to give them religious instruction, not refusing to nurse the sick and wounded wherever they could relieve their pains or mitigate their sufferings.

CHAPTER XVI.

COMPROMISES.

1. In a large and prosperous country there are very likely to arise antagonisms of interest and sentiment which will require the strong pressure of some common and more imperative interest to overawe and reconcile by a process of mutual concession, called Compromise.

The States of the two sections—North and South—were unlike in several general respects; but it was in nothing so marked as in regard to Slavery. This system was introduced in Virginia in the same year that the Plymouth colony was founded in Massachusetts, and spread to all the colonies, in

time; but never was much practiced north of Maryland. In all the Southern colonies it took deep root from the first. It formed the subject of the most difficult

COMPROMISE OF THE CONSTITUTION.

2. This compromise consisted of concessions made by each section. The North conceded the return of fugitives from their Southern masters, when escaped to the north, and an enumeration of three-fifths of the slave population in computing the representation in Congress. This was a great sacrifice for that section to make, for its people were, at heart, deeply hostile to Slavery. Both their interests and sentiments made it important to exclude it from the new States where they were likely to settle in considerable numbers. But a close and strong union of the States was a vital point with them. Commerce, trade, and manufactures, to which they were largely given, required resources and vigor in the central government, to maintain the public credit at home, and secure respect and safety abroad. The South conceded the final close of the Slave Trade at a given time (1808). Outside of the Constitution it, at the same time, conceded the "Ordinance of 1787," by which Slavery was excluded from the territory north of the Ohio river. Thus the North and South divided the country between them.

3. This was, however, a very troublesome subject, and affected so many legislative questions as to be constantly coming up for debate. The sentiments of the Northern people grew more hostile to the institution, and the South stood on guard with growing apprehension and anger, as this state of feeling developed in the North; and, at the same time, it became evident that the more rapid growth of the northern population gave them an increasing preponderance in Congressional representation. They jealously watched over the rights of the State governments from their fear of Congressional or executive interference, and industriously sought means to extend their area and increase the number of Slave States. They were always much assisted by a large party in the north of those who cherished the Union and were fearful of its dissolution. They were ever pouring oil on the troubled waters, and mediating between the two extremes.

THE MISSOURI COMPROMISE.

4. The arrangement of the Slavery question so termed was made in 1820, and took effect as to the State of Missouri in 1821. In the five years that followed the close of the last war with England there was great activity in settlement of the unoccupied territory, and the country gave indications of the power of rapid development that has so strongly characterized it since. The South foresaw the loss of its balance of power if too many of the new States were organized as free. Missouri had included a clause in her Constitution, presented for the approval of Congress, prohibiting slavery. This clause the South demanded should be stricken out. It produced great excitement and hot discussion throughout the country, and seemed to threaten the stability of the Union. Both sections were resolute in maintaining their principle, but both appreciated the necessity of strength in the government and harmony between the sections, and each made a sacrifice for the sake of these. Missouri was required to admit slavery, and the condition was annexed that no more Slave States should be formed north of its southern line. This was a concession trying to both sides. The North became a party to the extension of Slavery, and the South gave definite limits to her power of expansion. Each, however, gained something: the South a State above the limits before virtually fixed, and the North a definite and final limit to the extension of a hated institution. This was quite generally satisfactory, and for many years set that question at rest.

5. "Mason and Dixon's Line" was the term applied to the boundary between the Free and Slave States. This name originated in colonial times. The royal grants to colonial proprietors or companies were often very carelessly made, and those to Lord Baltimore, the founder of Maryland, and William Penn, the proprietor of Pennsylvania, were specially indefinite, giving rise to adverse claims that nearly produced war along the border. Commissioners were at length appointed, who employed Mason and Dixon, eminent English astronomers and surveyors, to establish the boundary, which they did satisfactorily. The importance of the question settled, and the reputation of the surveyors for scientific accuracy, attached their name to the boundary permanently. It acquired political significance afterwards, as the boundary between Maryland, the most northern of the slave States, and Pennsylvania, the most southern of the original free States. When new

States were formed, with the Ohio river as a boundary from its point of departure out of Pennsylvania, that name was extended in its application to the whole dividing line between the free and slave States—south or north of Mason and Dixon's Line meaning, in slave or free territory.

6. After some years the southern statesmen began again to feel apprehensive of a loss of their equality of power in the general government, so rapidly did the northern territories fill up. They began to look for more territory, and favored the settlement, independence, and annexation of Texas. Though long resisted, they succeeded in the election of 1844, with this annexation and a probable war with Mexico as test questions, and added not only Texas but New Mexico and California to the territory wherein slavery, by the Missouri Compromise, would be admissible.

7. Their satisfaction was not very durable. The discovery of gold in California filled it with inhabitants so soon, and these so largely from the free States, that in two years from its definite acquisition it petitioned for admission into the Union with a clause in its Constitution prohibiting Slavery. This was very exasperating to the South, and after a long and violent contest could be carried by the North only by the passage of the Fugitive Slave Law—a re-enactment of a part of the Compromise of the Constitution with provisions so vigorous and effective, could they have been enforced, as to be, in the highest degree, offensive to a considerable part of the northern people. Utah was given a Territorial government as a concession to the South, and the Slave Trade was abolished in the District of Columbia as her corresponding concession to the North. These were the four compromise measures of 1850, the result of a discussion lasting nearly a year, engendering great bitterness on both sides, and failing to satisfy either.

8. The attempt to enforce the Fugitive Slave Law proved ineffectual, in the end; the rooted aversion of the Northern people to Slavery, kept in abeyance before by less offensive compromises, being fully aroused. This produced in the Southern people a bitter indignation as showing a disposition to rebel against a constitutional provision in their favor. They procured, in 1854, the repeal of the Missouri Compromise in the famous "Kansas and Nebraska Bill," and sought to introduce Slavery into Kansas. A civil war in that Territory followed, which resulted in the triumph of the Northern party. The extinction of Slavery was now apparently but a

question of time, the hostility to it in the North becoming so out-spoken and averse to Compromises acceptable to the South, that they began to look forward to separation, which they endeavored to accomplish from 1860-5. A civil war, such as only Americans could wage, was carried on during these years. The resolution, bravery, and military talents of either side were never excelled; but the resources of the North seemed inexhaustible. Her numbers, activity, and the inventive genius of her skilled artisans gave her an immense superiority. This war is a cause at once of pride and grief to every true American. In the contest Slavery, the cause of it, disappeared, the Constitution was amended, and the necessity of Compromises on this question forever ceased.

CHAPTER XVII.

TREASON.

1. This is an offense aiming at the existence of the government; and in all other governments it has ever been customary to punish it with extreme severity. Many things are considered to be of the nature of treason, and, as such, severely punished in most countries. The Constitution defines treason to be “levying war against the United States, or adhering to their enemies, giving them aid and comfort;” so that the highest or capital crime alone may be pursued with its penalties. This is another evidence of the extreme moderation of the founders of the government, which we have had occasion to notice so often in our examination.

2. An act of Congress passed April 30th, 1790, defines it in the same sense and orders that the convicted offender shall be hung.

By another act passed 17th July, 1862, it was made discretionary with the court trying the case to put the offender to death, or to imprison him for not less than five years, and to fine him for a sum not less than ten thousand dollars. The penalty for this crime, even in its mildest form, is very severe; thus showing how atrocious this offense is considered.

3. None but a person owing allegiance to the United States can commit treason against them. The same acts which would be treason in a citizen

would not be treason if perpetrated by a foreigner.

“Misprision of treason” is the concealment of it by a person who knows it has been committed. This also is a grave offense, and is punishable by a seven years’ imprisonment, and a fine not exceeding one thousand dollars.

4. Any person tried for treason, must be indicted by a grand jury, and tried by a petit jury in the Circuit Court of the United States within three years after the crime has been committed; otherwise it is barred by limitation—or, in other words, outlawed.

CHAPTER XVIII.

POLITICAL GEOGRAPHY OF THE UNITED STATES.

1. Geography proper describes the general character of a country, as its rivers, bays, gulfs, plains, mountains and natural divisions. Leaving this to other works we confine ourselves to those divisions made by the government for convenience in administering its affairs.

Formerly there was a separation into North and South, by “Mason and Dixon’s Line,” between which there existed a marked difference of governmental, social, and industrial policy. The States south of that line might hold slaves, while in those north of it that institution was illegal. That difference was abolished by the thirteenth amendment to the Constitution, as a result of the Civil War. The next largest—and these exist now—are those made by the

CIRCUIT COURTS.

2. These often comprise several States and are changed, by act of Congress, when the convenience of the Associate Judges of the Supreme Court, who preside over them requires it. The next largest political divisions are

THE STATES.

3. These exercise sovereign powers in all matters where control has not been expressly delegated by the Constitution to the National Congress. The other political boundaries are ever liable to change, to meet the requirements of changing circumstances. These are definitely fixed, any change being very rare and unlikely after they are duly organized and admitted into the Union as States. Each of the original thirteen colonies became States, with the boundaries they had as colonies at the time of the Revolutionary War. The others received such boundaries as suited the convenience and wishes of the people when they were admitted. Their object is to prevent the centralization of too much power in the general government, and to render legislation on local affairs and interests more convenient, and more satisfactory to the people of each State. The State having the least number of inhabitants numbers between 40,000 and 50,000; the one having the largest number contains between 4,000,000 and 5,000,000. The number of the States determines the number of Senators in Congress, two being allotted to each; so that a State may be considered as a Senatorial District.

DISTRICT COURTS

4. Produce another class of political divisions. These attend to legal differences involving the laws of the general government, but of a secondary class. They are more numerous than the Circuit Courts. In some States there is but one, and some have several, according to size and population.

COLLECTION DISTRICTS.

5. Another class of districts has been formed, for the purpose of collecting the duties on imported goods. These are called "collection districts." They extend along, and embrace the whole sea coast and the shores of navigable lakes and rivers. In a few instances they are located inland, at points where goods may be brought into the United States by land. Each collection district has a port of entry, and very often several ports of delivery; also a collector of customs, and generally a custom house.

6. Another class of collection districts was formed during the late civil war. They grew out of the war, and were established for the collection of the tax termed the “internal revenue,” which had to be levied to pay the war expenses. These districts differ entirely, both in their objects and in the territory embraced within them, from those established for the purpose of collecting duties on imports, and correspond as far as practicable with the Congressional districts in each State.

LAND DISTRICTS.

7. Land districts may also be noticed among these divisions. In every State and Territory where there are public lands for sale, after they are surveyed and mapped, they are divided into districts—two, three or four, in each State and Territory—as convenience and economy may dictate. In each district a land office is established for the sale of the lands in said district.

LIGHT HOUSE DISTRICTS.

8. Again, the whole of our sea coasts, both on the Atlantic and Pacific oceans, together with the shores of the navigable lakes and rivers, are divided into twelve light house districts (or their number must not exceed that,) for the purpose of building, repairing, illuminating and superintending the light houses on all the coasts and shores wherever located. These are the principal divisions we have to notice. It is important to have a knowledge of them, for with such knowledge we can better understand how government affairs are conducted.

CHAPTER XIX.

CHRONOLOGY OF THE U. S. FROM 1783 TO 1812.

1783.

Washington's army had lain in camp at Newburg, N. Y., since the surrender of Cornwallis. The Preliminary treaty of peace was signed Jan. 20th, at Paris; but it was not officially announced in the camp at Newburg, until April 19th; just eight years from the Battle of Lexington that commenced it!

July—Congress prepared to disband the army, and Washington to resign his commission as Commander-in-Chief.

” 21—The great difficulty Congress had to contend with was raising money to pay the troops. Congress had no authority, under the Confederation, to lay taxes or impose duties. It exhausted its own credit in the issue of paper money which soon became of little value. It made some foreign loans, and persuaded the States, which alone could lay taxes, to raise a small sum. But this did not suffice to pay the army at last. There was much suffering and discontent.

On this day a body of soldiers, in large part new recruits, who had comparatively little to complain of, without muskets, but wearing side arms, beset the doors of Congress in Philadelphia, for three hours. No violence was offered. Congress adjourned to Princeton, N. J.

Sept. 3—The final and definite Treaty of Peace between England, France, and the United States, in which the independence of the latter was acknowledged, its boundaries defined, and various matters of interest arranged to the profit of the United States, was signed at Paris.

Nov. 2—A proclamation is issued by Congress for disbanding the army.

” 25—The British troops evacuate New York, and it is occupied by American troops under Gen. Knox.

Dec. 4—Long Island and Staten Island abandoned by the British. Washington takes leave of his officers, at New York.

” 25—He resigns his commission to Congress, in a public audience, given him at Annapolis, Md., where Congress was then sitting, and goes home to Mt. Vernon.

Cæsar Rodney, a signer of the Declaration of Independence, died this year.

1784.

The want of public credit was very much felt. There was no authority sufficient to raise money to meet the interest, even, on the debt; and this produced great distress.

Nov. 1—The Continental Congress meets at Trenton, N. J. Richard Henry Lee, of Va., is chosen President.

Oct. 4—A treaty with the Six Nations, who had sided with the British during the war, was made at Ft. Schuyler (formerly Ft. Stanwix—now Utica, N. Y.).

Commerce begins to revive. Reciprocity treaties were made, and trade with eastern Asia commenced this year by a voyage to China, from New York.

1785.

Jan.—Congress adjourns to New York, where it continued to hold its sessions for some years.

Mar. 10—Thomas Jefferson appointed to fill the place of Franklin, as Minister to France; Franklin wishes to return home. He had been there nine years.

July—Commercial treaties negotiated with Prussia, Denmark, Portugal, and Tuscany.

The treaty with Prussia stipulated that, in case of war between that country and the United States, there should be no privateering.

” 13—Stephen Hopkins, of R. I., a signer of the Declaration of Independence, died.

” 28—Wm. Whipple, of N. H., a signer of the Declaration of Independence, died.

” ”—Treaties made with the Cherokees, Choctaws, and Chickasaws.

1786.

Financial troubles were now approaching a crisis. In 1784-5 the importations from England had amounted to \$30,000,000. The exportations to only \$9,000,000. Paper money was depreciated so much as to be of little value. Debt oppressed government and people; want of vigorous authority was everywhere felt; and many disorders in Tennessee, Kentucky and elsewhere, begin to threaten the internal peace of the country.

June 19—Gen. Nathaniel Greene, an able commander in the Revolutionary armies, died. He manouvered against Cornwallis in North and South Carolina with great ability.

Dec. 5—Shay's Rebellion broke out in Mass. That State wished to raise money to aid Congress in paying the interest on the federal debt. The people felt unable to pay it. They mobbed the courts but were dispersed by troops under Gen. Lincoln. Three were killed and one wounded, in an attack the insurgents made on an arsenal. There was little other fighting. Fourteen persons were tried and condemned to death but afterwards pardoned.

1787.

These and other events convinced the people that an important change in the government was necessary. It became clear that a vigorous central authority, alone, could answer the purpose. The States were nearly independent of each other; but this produced conflicts and want of harmony, which nearly ruined them all.

A congress of deputies to consider commercial questions, called by Va. had, in Sept., 1786, recommended a convention to revise the Articles of Confederation.

Feb. 2—The Continental Congress assembled, electing Gen. St. Clair, President.

” 12—Congress approves the call for a Constitutional Convention.

May 25—The convention assembled in Philadelphia, and elected Gen. Geo. Washington, President.

July 11—The Continental Congress organize the Northwest Territory—north of the Ohio river. Preparations were immediately made for settling it.

Sept. 28—The Constitution, as signed by the members of the convention, laid before Congress, which sends it to the State Legislatures for approval.

Arthur Middleton of S. C., and Thomas Stone of Md., signers of the Declaration of Independence, died, Jan. 1st and Oct. 5th, respectively.

Dec. 7—Delaware ratifies the Constitution.

” 12—Pennsylvania accepts the Constitution.

1788.

July 4—The anniversary of Independence is kept with great display, in Philadelphia, in special honor of the adoption of the new Constitution.

By the close of July nine more States had ratified the Constitution, and it went into operation.

Sept. 13—Congress selects the first Wednesday of Jan. (1789) for the appointment of Presidential electors; the first Wednesday in February for their appointment of President and Vice-President; and March 4th (the first Wednesday that month) for the new government to go into operation.

1789.

Jan. 4—Thomas Nelson, of Va., signer of the Declaration of Independence, died.

Feb. 13—Ethan Allen, of Revolutionary fame, died.

April 30—Washington inaugurated as first President.

May 12—A Tariff Bill for raising a revenue reported in Congress. This became a law, and went into effect Aug. 1st, 1789.

” 20—The Department of Foreign Affairs (afterwards called State Department,) organized.

The Treasury Department is next established, followed by the War Department, to which the Navy was joined for the present.

The Judiciary was then constituted. Salaries, and the rules for parliamentary procedure were determined. The Postmaster general had long been an officer of the government, and required less change than most of the others. This made a very busy session. Congress also passed a resolution to add ten amendments to the Constitution—which were submitted to the States and afterward ratified. Congress adjourned the last of September.

The democratic tone of the government, and the spirit applied to the interpretation of the Constitution by the first Congress, has generally prevailed ever since. That tone and spirit were truly republican.

Nov. 8—The President made a tour through New England.

” 13—North Carolina ratified the Constitution.

Many Indian treaties were made this year.

1790.

Jan. 8—Congress reassembled. This session was scarcely inferior in interest and importance to the first from the variety of new questions required to be settled, and the more perfect development given to former ones.

Feb. 8—Provision was made for payment of the foreign debt.

Mar. 1—An act ordering a census to be taken was passed.

” 24—A naturalization law was originated.

Apr. 15—A patent law was constructed.

” 30—Treason was defined and the penalty determined on.

May 29—The Constitution ratified by Rhode Island; making up the whole number of thirteen States.

” 31—“An act to encourage learning” secured copyrights to authors.

July 16—Three very exciting debates that had occupied much of the time of Congress, had a bearing on the location of the National Capital, which was this day permanently settled. The President was authorized to determine the site on the Potomac, and have the buildings erected so as to be ready for occupation in 1800. Agreeably to this act Maryland and Virginia ceded the District of Columbia to the United States.

Gen. Putnam, a brave Revolutionary soldier, Benjamin Franklin, of Pa., Wm. Hooper, of N. C., and Francis Hopkinson, of N. J., all except Putnam signers of the Declaration of Independence, died this year.

The Territory South of the Ohio was organized this year. The financial system of the country was established, the slavery question debated and settled in accordance with the compromise of the Constitution, and the State debts transferred to the United States.

Aug. 12—Congress adjourned to meet next in Philadelphia and thereafter until 1800.

” 13—A treaty with the Creek Indians solemnly ratified by Washington.

Dec. 6—The Third Session of Congress commenced. The President congratulates Congress on the improvement of the finances, and the prosperity of the country.

1791.

Feb.—The United States Bank established. It was to have a capital of \$10,000,000—its charter to run twenty years.

” 4—Kentucky voted admission into the Union in the next year (Jan. 1st, 1792).

” 18—Vermont having (Jan. 20th) ratified the Constitution and asked admission into the Union, it is granted this day. The immediate prosperity that followed the adoption of the Constitution of 1787, the

strength, vigor, and moderation seen to be combined in its arrangement of the government, led most of the States to remodel their State Constitutions on it, in a short time.

July—The subscription to the stock of the National Bank is all taken in a few hours after the books are opened.

Aug.—Great Britain first sends a minister to the United States Government.

Sep. 17—An expedition of 2,000 troops, under Gen. St. Clair, starts from Ft. Washington against the Indians in the Northwest Territory.

Nov. 4—Gen. St. Clair is surprised and defeated by the Indians. There were 600 killed—the whole loss amounted to upward of 900. Several other smaller expeditions had been sent against the Indians in the course of the year. One, Gen. Harmer's, had been defeated. Internal taxes on spirits were first commenced this year. Benj. Harrison, of Va., a signer of the Declaration of Independence, died this year. A voyage around the world, by way of Oregon, China, and the Cape of Good Hope, had opened wide fields to commerce. The first census was now completed. The Second Congress, assembled at Philadelphia, Oct. 24, was occupied in arranging the new ratio of Representatives. It was a very difficult matter to settle from the sectional struggles that entered into the question.

1792.

Feb. 16—A bounty for fishing vessels provided.

” 20—The Post Office Department reorganized.

Apr. 2—The establishment and regulations of the U. S. Mint are embodied in a law.

” 14—Act apportioning Representatives passed. This gave the next House of Representatives in Congress 105 members.

May 8—Laws organizing the Militia are passed.

Dec. 8—Henry Laurens, first President of the Continental Congress, died. The second presidential election this year resulted in the re-

election of Washington and Adams. Washington received all the electoral votes—the anti-federalists opposing only Mr. Adams, whose electoral vote was 77, the candidate of the opposition receiving 50. Much seditious opposition was made in North Carolina and Pennsylvania to the excise law,—the tax on spirits. The President issued a proclamation against them, Sept. 29th.

1793.

Jan. 24—The proclamation of the French Republic is greeted in Boston with a celebration in its honor. The close and friendly relations of the United States with France, arising from their aid to us in the Revolutionary War, led the French minister, Genet, to a course of conduct inconsistent with the existence of our friendly relations with England. The U. S. Government decided to proclaim neutrality—the people sympathized strongly with France. Washington and his cabinet pursued a strict neutral course, in which the people finally acquiesced, and Genet's recall was solicited and obtained.

Feb. 12—A Fugitive Slave law passed.

July 23—Roger Sherman, signer of the Declaration of Independence, died.

Oct. 8—John Hancock, of Mass., the first signer of the Declaration of Independence, died. This year laid the foundation of the policy of neutrality or non-interference with the European wars, that became the settled policy of the United States.

The year was also distinguished by the violence of party feeling.

Dec. 2—Congress assembles at Philadelphia.

" 31—Jefferson resigns his seat in the Cabinet. He was Secretary of State.

1794.

Mar. 11—An act is passed for building four ships of war, which laid the foundation of our present navy.

Some hostile English “Orders in Council” led to arrangements for fortifying the harbors of the country.

” 22—The Slave trade is regulated by law, no American vessel being allowed to supply slaves to another nation. The importation of slaves into this country had been allowed until the year 1808, by Art. 1st, Sec. 9th, of the Constitution.

” 26—As a retaliation on the British “Orders in Council” for seizing all goods going to France in American vessels, an embargo was laid on all shipping which was continued 60 days. This stopped all commerce for the present.

June 5—A law relating to neutrality passed in Congress.

” 19—Richard Henry Lee, of Va., died; Abraham Clark, of N. J., and John Witherspoon, of N. J., later, all signers of the Declaration of Independence, died.

July 16—An insurrection breaks out against the excise law in western Pennsylvania, by an armed attack on the officers of the law. An army of 15,000 men was raised and marched into that region, the appearance of which immediately restored order.

Aug. 20—Gen. Wayne inflicts a thorough chastisement on the Indians of Ohio, on the Maumee river.

Nov. 4—Congress again assembles.

” 28—Baron Steuben, a German, who had done us great service as an officer in the Revolutionary war, died, aged 61.

1795.

This year a commercial treaty was negotiated with England, which was the cause of violent demonstrations of the two parties. Only the firmness and moderation of Washington and his supporters saved the country from war with that power.

Jan. 23—Gen. Sullivan died. He had been an able Maj. Gen. in the Revolutionary war.

” 29—A more stringent naturalization law passes.

May 19—Josiah Bartlett, of N. H., signer of the Declaration of Independence, died.

Aug. 3—A Treaty with the Northwestern Indians concluded, which closed the Indian war.

Sept 5—A treaty is concluded with Algiers, which closed a war with those pirates, whose attacks had been so disastrous to our commerce.

Oct 20—A treaty of boundaries, and which opened the Mississippi to navigation, is concluded with Spain.

Dec. 7—The fourth Congress meets.

1796.

March 24—The U. S. House of Representatives require the President to send them the papers relating to the British treaty. The President declines, denying that they form part of the treaty making power.

April 30—The exciting struggle on the British treaty is closed, by a provision made by the House of Representatives for carrying it into effect.

June 1—An act is passed admitting Tennessee into the Union.

” 29—A new treaty is made with the Creek Indians, and the Southern, as well as the Northern Indians, are pacified.

Sept. 19—Washington’s Farewell address is issued, to let the people know that he would not accept office again. A presidential election was held this autumn, in which John Adams was elected President. Serious difficulties began to rise with France, which took great offense at the treaty with Great Britain.

1797.

Feb. 3—Mr. Pinckney, American Minister to France, was refused a reception, by the French government, and obliged this day to leave

the country. Much violence was done about this time, to American commerce, by the French.

Mar. 4—John Adams is inaugurated President of the United States.

” 25—A special session of Congress is called to consider the threatening posture of our relations with France.

June 14—Congress imposed a fine of \$10,000 and ten years imprisonment on any American who should engage in privateering, in any way, against a nation with whom we were at peace.

July 3—The President transmits to Congress information of Spanish troubles on the southern and western frontier. These were afterwards discovered to have aimed at detaching the Mississippi and Ohio valleys from the United States, and erecting them into an independent power, in close alliance with Spain.

Two new envoys are sent to France. These envoys spent many months in Paris, treated with insolence and neglect.

In this year Francis L. Lee, of Va., Carter Braxton, of Va., and Oliver Wolcott, of Conn., signers of the Declaration of Independence, died.

1798.

The French government continues to labor to draw the United States into a war with them against England. Two of the three Commissioners are required to leave France.

April 3—The Mississippi Territory organized.

” 14—The navy is taken from the control of the Secretary of War, and a Navy Department with a Secretary, organized.

June 12—All commercial intercourse with France suspended. In anticipation of war the naturalization law is amended; an “Alien Act” passed; and the navy and army largely strengthened.

” 21—The President announces the failure of the Commissioners sent to France, to make peace.

July 8—A limited naval warfare with France is authorized, and several U. S. vessels of war go to sea.

” 16—An additional naval armament provided for.

” 17—Washington accepts the appointment of Commander-in-Chief of the Army, which is being raised in expectation of war.

” —About this time some 365 armed vessels had been commissioned by the U. S. government, besides the regular navy, to make war on the armed vessels of France. This armament was, however chiefly used for defense.

Lewis Morris, of N. Y., James Wilson, of Pa., and Geo. Read, of Del., signers of the Declaration of Independence, died this year.

1799.

At the commencement of this year Congress provided for the raising of an army of 40,000 men.

Feb. 18—By invitation of the French government, the President nominates another embassy to France.

Feb. 7—The French frigate l’Insurgente captured in the West Indies by the U. S. frigate Constellation.

April—The Legislature of New York abolishes Slavery in that State.

Dec. 14—Gen. Washington’s death, in the 68th year of his age.

Wm. Paca, of Md., a signer of the Declaration of Independence, died this year.

A change in the government of France, and the vigorous action of the U. S. government in arming for war, induced the French to retreat from their unfriendly position and offer to arrange the difference. The refusal of our government to entangle themselves with European politics became a settled principle, of great value to us; though it was strongly opposed by the Anti-Federalists.

1800.

Jan. 23—Edward Rutledge, of S. C., signer of Dec. of Ind. died.

Feb. 1—The U. S. frigate Constellation beats without capturing the French frigate La Vengeance.

April 4—General bankruptcy law passed by Congress.

May 7—The Territory of Indiana organized by act of Congress.

” 10—An act authorizing the election of a Territorial Assembly in the Territory of Mississippi, organized some years before, was passed.

July—The government is moved to the new capital at Washington.

Oct. 1—The envoys to France arrange a convention, or temporary treaty, which prevents the formal outbreak of war, though it had long continued to be waged on the sea. More than 50 vessels had been captured from the French this year. The gratitude of Americans to France for her aid, formerly, made a large part of the people very unwilling to declare war; but her arrogant demands and war on our commerce had the good effect to separate the country from all close alliances in Europe.

Nov.—The fourth presidential election resulted in the defeat of the Federalist party, by the election of Thomas Jefferson as President. Its opponent, the anti-federalist, or Republican party, feared a strong central government; yet when they came into power they adopted the same policy. Any other policy would have ruined the country.

1801.

Feb. 16—The Convention with France, to remain in force eight years, ratified.

Mar. 3—The Sixth Congress terminates, and with it the administration of President Adams.

” 4—Jefferson inaugurated President. The trial of the Constitution was now past. It was permanently settled in the respect of the people, and had made the country respected by other nations. The “Sedition Laws” passed in July, 1798, became inoperative at this time, by the provision accompanying them. They had been framed for the

suppression of dangerous political intrigues in time of war. Party spirit was exceedingly bitter at this time, and these laws produced much excitement, but contributed to the safety of the government.

June 10—The Basha of Tripoli declares war on the United States.

” 14—Benedict Arnold died in London.

Aug. 6—The U. S. vessel of war Experiment, captures a Tripolitan vessel in the Mediterranean sea.

Dec. 7—The Seventh Congress assembles. The reaction, at this time, in public sentiment, produced by the French Revolution, the excesses of which resulted in a military despotism under Napoleon Bonaparte, infused a spirit of moderation and caution into the politics of the United States under the new party now in power, that was highly beneficial. Extreme views were checked, and no serious change was made in the general policy of the country.

1802.

Jan. 4—The reapportionment of Representatives in Congress by the census of 1800, was made. No change in the number of inhabitants to one Representative (one to every 33,000) was introduced. The foundation of a Military Academy at West Point, N. Y., was laid at this time.

April 14—The Naturalization Laws, made very stringent in the last administration to correspond with a state of war, were liberalized.

April 30—An act authorizing the formation of a State Constitution in Ohio, preparatory to its admission into the Union, is passed.

May 3—Washington, D. C., incorporated as a city.

Oct. 16—Commerce on the Mississippi by American citizens, suspended by the Spanish authorities at New Orleans.

It became evident that the possession of the Mississippi River and territory near it was of the highest importance to the welfare of the West, and measures looking toward the acquisition of it began to be taken.

A large reduction was made this year in the public debt, and the policy of economy in public expenditure became a leading feature of the administration.

1803.

March 3—The anxiety of the people in regard to the navigation of the Mississippi leads Congress to invest the President with extraordinary authority to negotiate, or use force, in his discretion. He was authorized to call on the States to furnish 80,000 men, if need be.

April 30—A treaty is concluded with Napoleon Bonaparte for the purchase of the whole of the Louisiana Territory for \$15,000,000.

Aug. 13—By a treaty with the Kaskaskia Indians a large part of Illinois is opened to settlement.

Oct. 31—The U. S. frigate Philadelphia ran on a sunken rock in the harbor of Tripoli, and was captured. The American fleet had captured or destroyed several Tripolitan vessels of war during the summer.

Dec. 20—The President takes possession of Louisiana.

1804.

Feb. 2—Geo. Walton, of Geo., signer of the Declaration of Independence, died.

” 15—New Jersey passes a law freeing all the slaves born in the State after the next 4th of July.

” 16—Lieut. Decatur, of the U. S. Navy, ran into the harbor of Tripoli in the night and burned the Philadelphia—captured by the Tripolitans, some time before. This done he withdrew in safety, in the sloop he had employed for the bold enterprise.

July 11—Alexander Hamilton, an eminent statesman, was killed in a duel with Aaron Burr, Vice-President of the United States. He was 48 years old and his death was considered as a public calamity.

Aug. 3—Com. Preble attacks Tripoli, sinks two vessels, captures three more, and bombards the city.

The city was blockaded during the remainder of the year and through the winter.

Nov. 18—Gen. Philip Schuyler died at Albany, N. Y.

Jefferson was re-elected President in this month.

1805.

Great commercial prosperity marked this period. France and England were at war and most of the carrying trade fell to American vessels. The peaceful acquisition of Louisiana, and the prosperity of the west in consequence, contributed much to the development of the country. The grand era of progress in the United States began to dawn, though overcast by threatening difficulties with Spain and England.

March—Chief Justice Chase having been impeached by the House of Representatives, was acquitted by the Senate.

” 4—Jefferson’s second inauguration as President.

June 3—A treaty of peace made with Tripoli.

A Territorial Legislature is authorized in the Territory of Orleans, and the Territory of Louisiana organized.

June 11—The Territory of Michigan is organized. It was very thinly settled, but separated by so great a distance from the inhabited parts of Indiana Territory as to require a separate government.

July 4—Large cessions of land are obtained, by treaty and purchase, from the Indians. Most of their lands in Ohio, Indiana, and along the Ohio River were acquired in an equitable manner. Large cessions are obtained this year from the Creeks and Cherokees, who received a fair equivalent.

Sept. 12—Wm. Moultrie, a distinguished Revolutionary soldier, died.

Measures are set on foot to purchase Florida from the Spaniards. There seemed no alternative but such a purchase or a war. Difficulties

with England began to increase. Several American vessels with valuable cargoes are seized by the British.

1806.

Jan. 16—Two million dollars are voted that the President may commence negotiations with Spain for Florida. The British continue to violate our flag by impressing seamen on our vessels.

March 26—A retaliatory law was enacted by Congress forbidding the importation of certain English goods, to take effect in November in order to give time for negotiation. Provision was also made for increasing the army and navy.

The summer of this year was disturbed, in the west, by rumors of a design to separate the Louisiana Territory and Western States from the Union, by the establishment of an independent government.

Apr. 10—Gen. Horatio Gates, an officer of the Revolution, died.

Dec.—The session of Congress commencing the first of this month was largely occupied with a law forbidding the slave trade after 1808. There was much violent debate but the law was enacted early in the next year.

Robt. Morris, of Pa., on the 8th of May; Geo. Wythe, of Va., on the 8th of June; James Smith, of Pa., on the 11th of July, signers of the Declaration of Independence; and Gen. Henry Knox, an officer of the Revolution, on the 25th of Oct., died. Gen. Knox was Secretary of War during Washington's administration.

1807.

Feb. 10—An act for commencing the Coast Survey, and appropriating \$50,000 for that purpose, is passed.

The English had defeated and almost annihilated the French and Spanish navies, and became very tyrannical toward neutral nations, which begins to injure our commerce. Bonaparte retaliates in the same spirit which doubles the difficulty.

Mar. 18—A treaty made by American ambassadors with England was rejected by our government because the British refused to allow that British born citizens could become American citizens by naturalization. These the English government claimed the right of impressing from our vessels, which we denied.

June 22—A British ship of war, the Leopard, fires into the American frigate Chesapeake while unprepared to resist, and took several men from her. Three Americans were killed, and eighteen wounded. It greatly exasperated the Americans.

July 2—The President ordered all English ships of war to leave American waters.

Aug. 25—Com. Preble, of the U.S. navy, died.

Sept. 15—Aaron Burr tried for treason, (he was the leader of the conspiracy believed to have endeavored to detach the Mississippi Valley from the Union,) was acquitted for want of evidence, though generally believed guilty.

Nov. 26—Oliver Ellsworth, U. S. Chief Justice, died.

Dec. 17—Bonaparte's "Milan Decree" subjects American commercial vessels to seizure.

" 22—This and like British "Orders in Council" caused Congress to lay an embargo, forbidding any vessels to sail from our ports.

1808.

Jan. 1—The act of Congress, passed in the previous session, to carry out the provision of the Constitution to abolish the slave trade at this time, goes into effect to-day.

Apr. 17—Bonaparte orders the seizure and confiscation of all American vessels in France, or that should afterwards arrive there.

Nov. 7—The tenth Congress assembles again. Much discussion is had over the embargo, but it is finally determined to make it still more stringent and place the country in a state of defense.

” —A presidential election this month results in the choice of James Madison for the next term. He was a republican, or democrat, in politics.

1809.

Jan. 9—An act is passed “more effectually to enforce the embargo.”

Feb. 3—Illinois organized under a Territorial Government.

” 27—The embargo is partially repealed.

Mar. 3—The Tenth Congress closes, at the same time as the Administration of Jefferson. Madison was inaugurated the next day. He served two terms. A war with Great Britain was commenced in his first, and ended in his second term.

” 9—Thos. Haywood, of S. C., signer of the Declaration of Independence, died.

Apr. 19—An arrangement of the difficulties with England concluded with the British Minister, Erskine, and, in the expectation of permanent peace, the Embargo and Non-intercourse acts cease by proclamation of the President.

May 22—An extra session of the eleventh Congress meets.

July 20—News arrives of the rejection by the English government of the Erskine treaty.

Aug. 9—The President forbids, by proclamation, all intercourse with Great Britain and France.

Nov. 8—A new English minister having been sent, his arrogant tone causes the U. S. government to decline further intercourse with him.

1810.

Mar. 23—Bonaparte orders the sale and confiscation of 132 American vessels (detained in France by previous decree) and their cargoes, and the same confiscation is ordered of all American vessels

afterward entering French ports. The 132 vessels and their cargoes were worth \$8,000,000.

Aug. 5—The French government announces the revocation of their confiscation act, to take effect Nov. 1. A deadly struggle had been, for many years, going on between Napoleon Bonaparte and England. This hostility of France to American commerce was in retaliation, of the British “Orders in Council” against neutral commerce trading with France. England had nearly destroyed the French navy and considered herself mistress of the seas. She wished to reduce American commerce to the condition of colonial times, which, with impressment of seamen, was the cause of the present struggle. Our commerce was constantly growing, our people spirited, and resolved to have their rights and Flag respected.

1811.

Feb. 26—An act passed establishing naval hospitals.

May 16—The American frigate *President*, and the British sloop of war *Little Belt*, fire into each other. The *Little Belt* is disabled. This was a retaliation of the firing of the British ship *Leopard* on the American *Chesapeake*, four years before, and also of the capture of an American merchantman bound to France, off New York, by a British vessel about this time. Several instances of impressment, by the British, from American vessels, had lately occurred, and there was a feeling of great exasperation toward England. The English government had not yet made any atonement for the attack on the *Chesapeake*.

June 1—Gen. Eaton, prominent in the war with Tripoli, died.

” 19—Samuel Chase, Chief Justice of the U. S., died.

Aug. 2—Wm. Williams, of Conn., died. The two last were signers of the Declaration of Independence.

The relief of American commerce from outrages by the French proved delusive, and many grievous wrongs are suffered this year.

Nov. 7—Two twin brothers of the Shawanese tribe of Indians (Tecumseh and the Prophet) had been for some years engaged in forming a conspiracy among a large number of Indian tribes on the Northwestern frontier to exterminate the whites. Gen. Harrison's army is attacked by the Indians this day, at Tippecanoe. They are defeated by Gen. Harrison.

Dec. 2—The ratio of Representation is revised on the census of 1800, and fixed at 35,000.

1812.

Jan.—Various acts are passed for putting the army and navy in a condition for war.

Apr. 4—An embargo is laid on American shipping, by act of Congress.

” 8—Louisiana admitted into the Union as a State.

” 20—Geo. Clinton, Vice-President of the United States, died.

June 4—The Territory of Missouri organized.

” 23—The British government repeal the obnoxious “Orders in Council,” but refuse to give up the right of search and impressment on American vessels. The American government refuses to be satisfied with this; besides, it had already declared war, June 18th.

CHAPTER XX. THE WAR OF 1812.

We have stated in connection with the appropriate events, the causes of this war which had accumulated during the last five years at a rapid rate. The seizure and captures of American vessels by Great Britain amounted to 917; by France to 558. Upwards of 6,000 cases of impressments were recorded in the American Department of State; and in all these our Flag had

been violated. It was estimated that about as many more had been made, of which no official information had been received. The Americans were averse to war and had long borne these injuries in the hope that a settlement might be reached by negotiation; but they insisted on the inviolability of our Flag, and the right of naturalization. On the commencement of hostilities 2,500 of these impressed sailors, claiming to be American citizens, refused to fight against America, and were imprisoned by the English government, where most of them were kept to the close of the war.

Aug. 24—The English government, however, had the magnanimity, when news arrived of the Declaration of War by the United States, to allow all American vessels then in their ports six weeks to dispose of their lading and to depart undisturbed.

The great success of the war on the American side was on the sea, where it was much more seriously detrimental and mortifying to the English than victories on the land would have been. The land forces were generally inefficiently conducted, though the close of the war was signalized by the victory of Gen. Jackson, at New Orleans, which was extremely gratifying to American pride.

July 12—Gen. Hull, with 1,800 troops, invades Canada.

Aug. 8—After various mishaps, Hull retreats to Detroit.

” 9—Col. Miller defeats Tecumseh and a body of British troops at Maguaga.

” 15—Ft. Dearborn (now Chicago) was abandoned by its small garrison, by the orders of Hull. During their retreat they were attacked, and most of them massacred by the Indians.

” 16—Gen. Hull surrendered Detroit and all the military forces and stores in the territory to the British. He was afterward sentenced to death by a court-martial, but pardoned by the president, though degraded from all military command.

” 19—The U. S. frigate Constitution, Capt. Hull, does great honor to the American arms by the capture of the English frigate Guerriere. This vessel had challenged the American vessels in a contemptuous way. She had 79 killed and wounded, the Constitution only 13. There were 10 impressed American seamen on the Guerriere.

Sept. 7—The U. S. frigate Essex captures the Alert in 8 minutes.

Oct. 13—In another invasion of Canada by Gen. Van Rensselaer, though much gallantry was displayed, an unexpected British reinforcement obliged the surrender of 700 men after 160 had been killed and wounded.

” 18—The U. S. sloop of war Wasp captures the British sloop of war Frolic, which was the strongest vessel. The Frolic had 100 killed and wounded, the Wasp but 10. Both were captured by a British 74 pounder the same day.

” 25—Capt. Decatur, of the frigate United States, captures the Macedonian, a British frigate. British loss 104, American only 7.

Nov. 22—The U. S. brig Vixen is captured by the English frigate Southampton. Both were afterward shipwrecked.

A presidential election in this month secured the re-election of Madison.

Dec. 29—The U. S. frigate Constitution, Commodore Bainbridge, captures the British frigate Java, off the coast of Brazil. American loss 44, British 151. These naval victories with so little loss produced much exultation in America, and much surprise and mortification in England. The Americans were able seamen, and had long burned to avenge the insults and contempt of the English navy. Americans are capable of extraordinary vigor when thoroughly aroused. The operations on land had been much interfered with by the strenuous and almost treasonable opposition of the anti-war party, and this continued to be an embarrassment during nearly its whole course. The general disfavor with which this violent opposition was regarded, however, and the sympathy felt for the President, so embarrassed, procured his re-election.

1813.

Military operations this year were, in part, more creditable and encouraging. The regular force amounted to about 55,000 men; an act had

been passed authorizing the construction of four 74 gun ships, and six forty-fours; and for an increase of the navy on the lakes.

Jan. 22—A disastrous enterprise at Frenchtown (now Monroe, Mich.) results in the loss of nearly 900 American troops under Winchester. The wounded were left by Gen. Proctor, the British commander, to be massacred by the Indians.

” 23—Geo. Clymer, of Pa., signer of the Declaration of Independence, died.

” 26—An act of Congress authorizes the President to borrow \$16,000,000.

” 27—He is authorized to issue Treasury notes to the amount of \$5,000,000.

Feb. 24—The Hornet captures the British brig Peacock, on the coast of South America.

The Delaware and Chesapeake bays are blockaded by the British about this time.

Mar. 4—Madison is inaugurated for his second term.

” 8—The emperor of Russia having offered his services as mediator between the United States and England, the President appoints commissioners to treat for peace.

Apr. 10—The British attack Lewiston, Del., but are repulsed after having bombarded it several days.

” 27—Americans under Gen. Pike, capture York, Upper Canada, with a large quantity of stores. Gen. Pike is killed.

May 1—The British Gen. Proctor besieges Gen. Harrison in Fort Meigs.

” 5—Gen. Clay coming to his assistance Proctor retreats. Col. Dudley, making a sortie from Ft. Meigs, is drawn into an ambushade and loses 650 men. He is himself mortally wounded.

The British Admiral Cockburn barbarously ravages the shores of Chesapeake bay.

” 27—Ft. George, at Niagara, surrenders to the Americans, and Sir Geo. Prevost is repulsed from Sacketts Harbor, N. Y., by Gen. Brown.

June 1—The U. S. frigate Chesapeake captured by the British frigate Shannon. American loss 133; British loss about half as many. Capt. Lawrence of the Chesapeake is mortally wounded.

” 6—Gens. Chandler and Winder surprised in the night by the enemy they were going to attack. The two generals are taken prisoners, but their troops repulse the enemy and retire.

” 23—Col. Boerstler, in command of an American force of 600 men, is surrounded by a superior force at Beaver Dams and compelled to surrender.

” 25—Admiral Cockburn, failing in his attack on the American forces at Craney Island, Va., lands at Hampton and commits many outrages.

July 31—American Com. Chauncy lands at York, U. C., captures and destroys stores, and the British do the same at Plattsburg, on lake Champlain.

Aug. 2—Gen. Proctor with 1,000 British and Indians attacks Col. Croghan with 160 men, at Ft. Stephenson, Lower Sandusky, O., and is repulsed with a loss of 150.

About this time the American frigate Essex, Capt. Porter, cruising in the Pacific ocean, captured 12 armed British whalers.

” 13—The American sloop-of-war Argus, cruising in the English Channel, captured 21 British merchantmen, but was herself captured by the Pelican after a severe engagement.

” 30—Tecumseh had stirred up the Creek Indians to war, and they attacked Ft. Mims, which they set on fire and captured, massacring all but 20 out of 400 men, women and children.

Sept. 3—The American brig Enterprise captures the Boxer on the coast of Maine.

” 10—Perry’s victory on Lake Erie. He captures the whole fleet (6 vessels) of the enemy. His laconic dispatch to Gen. Harrison was, “We have met the enemy, and they are ours.”

Oct. 5—Battle of the Thames (Upper Canada). Gen. Harrison, commanding the Americans, defeated the British and Indians, under Gen. Proctor and Tecumseh. The latter was slain. The British lost about 600 in killed, wounded and prisoners; the Americans 17 killed and 30 wounded.

” ”—Commodore Chauncy captures 5 British vessels on Lake Ontario.

Nov. 2—Gen. Coffee attacks the Creek Indians at Tallushatches, Ala. 200 warriors are killed.

” 9—Gen. Jackson defeats the Indians at Talladega, Ala., killing 290 of them. Two other battles with the Indians occurred this month, and one in Dec. in which they were defeated with great slaughter, and little loss to the Americans. Yet so spirited and resolute were they as to require to be almost exterminated before they would make peace.

” 11—1,200 Americans, under Gen. Boyd, engage 2,000 British, under Lt. Col. Morrison, and are repulsed with a loss of 339. British loss 180.

Dec. 10—Ft. George, at Niagara, evacuated and the town of Newark burned by the Americans.

” 19—Ft. Niagara is taken by the British and Indians who massacre the garrison. Youngstown, Lewistown, the Tuscarora Indian village, and Manchester, all in N. Y., are burned, in retaliation of the destruction of Newark.

” 30—The British burn Black Rock, Buffalo, three vessels of Perry's fleet, and large quantities of provisions. Gen. Proctor justifies it as a proper retaliation. The burning of Newark was barbarous, but was avenged tenfold. Naturalized Irishmen, taken by the British in our armies this year, were sent to England to be tried for treason. An equal number of English officers were imprisoned by the American government and notice given to the governor of Canada that they should receive the same treatment and fate as our Irish soldiers. This had its effect, and the latter remained simply prisoners of war. This claim, and corresponding action on the part of the English government, which was one of the principal causes of the war, was,

from this time, practically relinquished. In December an embargo was laid by Congress on American goods and provisions, to prevent their being employed to supply the British blockading force and armies. It produced great discontent in New England, where a large part of the people were dependent on commerce, and were thrown into great distress. There was much factious, and even seditious, opposition to the government.

1814.

The army operations had been unsuccessful in Canada during the last of the campaign, owing, it was thought, to the inefficiency of the commanders, and perhaps partly to the want of experience of their subalterns. Changes, that were proved much for the better, were made, and the campaign of this year, in this quarter, showed a more honorable record. Since the commencement of the war till this year, the English government had been carrying on an immense European war, which was closed by the abdication of Bonaparte and his banishment to the island of Elba. They prepared for a more vigorous effort in America, by sending considerable armies of the veterans of Wellington, who had conquered in Europe. They had received, the impression that the opposition to the war and the republican party, would coöperate with them, and that they might re-establish their dominion over their former colonies.

But they did not comprehend American character. Party politics have always been conducted in a bitter and hostile spirit, but that hostility has not been directed against their *institutions*. Extreme attachment to these, and jealous care to preserve all rights guaranteed by the Constitution, has always led the opposition to a close and sharp criticism of all measures of the party in power differing from their own interpretation of Constitutional rights. When these institutions are really in danger all parties unite in a defense, the obstinacy and vigor of which carries everything before it. It stops at no obstacles, hesitates before no sacrifices, and counts no odds. This became apparent to the British during the summer, dispelled forever their dream of conquest, and led to a peace at the close of the campaign. The British sent 14,000 troops to Canada this spring, which was supported, in July and August, by a large reinforcement. A strong naval force, with a

large body of troops, was sent to invade the heart of the country and capture Washington. After failing in maintaining their ground here, they were directed against the gulf coast and the Mississippi river, ending in their decisive defeat by Gen. Jackson, at New Orleans, Jan. 8th, 1815, nine days before the treaty of peace, signed at Ghent, in Belgium, Dec. 24, was known in America.

Mar. 24—A loan of \$25,000,000 authorized by Congress.

” 27—Gen. Jackson’s defeat of the Indians at Great Horseshoe Bend, Ala. This battle accomplished the subjection of the Creek Indians. Jackson had fought them on the 21st, 24th and 27th of Jan., when they came near defeating him, but notwithstanding their fierce and obstinate bravery, he conquered each time, and finally, nearly exterminated them.

” 28—The brilliant career of the U. S. frigate Essex, in the Pacific ocean, is terminated by its capture, at Valparaiso, Chili, by the British frigate Phebe and another sloop of war.

” 30—Gen. Wilkinson is repulsed in an advance into Canada, at La Colle, and is afterwards tried by court martial. Gen. Brown is given the command of the Niagara frontier, and Gen. Izard of northern N. Y.

April 21—The U. S. sloop of war Frolic captured by the British frigate Orpheus.

” 27—The U. S. sloop of war Peacock captures the British brig-of-war Epervier with \$118,000 specie on board.

May 7—A British force captures and destroys the American fort at Oswego, N. Y., and carries off several guns.

” 29—The Americans capture a British force at Sandy Creek, N. Y.

June 9—The U. S. sloop of war Rattlesnake captured by a British 50 gun ship.

” 12—The U. S. sloop Syren captured by a British 74.

” 28—The U. S. sloop of war Wasp captures the British sloop of war Reindeer, in the British Channel.

July 3—Gen. Brown captures Ft. Erie, near Niagara, U. C.

” 5—Battle of Chippewa, Canada. Gens. Brown, Scott, and Ripley, with about 3,000 men, were opposed by the British Gen. Riall with an equal number of the veterans of Waterloo. Gen. Scott attacked them with such prudence and valor as to conquer a largely superior force before Gen. Ripley could come up to his aid. It was a splendid test of American mettle. Loss of the British 514, of Scott 328. The British fall back to Ft. George.

” 11—The British make a descent on the coast of Maine.

” 25—Gen. Scott engages a British force of seven times his number, and holds his ground for some hours when Gen. Ripley comes to his aid, and they drive the British from the field; but having only 1,600 men left, while the British have 5,000, they retire next day. The British lost 878, the Americans 860.

Aug. 4—Americans besieged in Ft. Erie.

” 8—First meeting of the U. S. and English commissioners to treat for peace, who arranged the terms at the close of this year. The English were very high in their demands till the failure of their much vaunted veteran troops.

” 9—The British make an unsuccessful attack on Stonington, Conn. A treaty is made with the Creek Indians.

” 15—The British repulsed from Ft. Erie with the loss of 962 men. The Americans lost 84.

” 20—A British force landed from the fleet in the Chesapeake, marches on Washington.

” 24—The battle of Bladensburg, near Washington. The Americans, much inferior in numbers, were defeated. The British, under Gen. Ross, entered Washington the same day. They destroyed much private property, as well as public stores, buildings and documents.

Not deeming it prudent to remain, the British retreated from Washington to their vessels, leaving the people greatly exasperated at conduct unworthy of the army of a civilized nation.

” 27—Alexandria, Va., delivers up the public stores and shipping there and much merchandise as a ransom from plunder and burning.

Sept. 1—The U. S. sloop of war Wasp captures the British sloop Avon. After taking three other prizes in European waters, she disappeared and was never again heard of—supposed to have foundered at sea. The British Gen. Prevost advances toward Plattsburg, N. Y., with 12,000 veteran troops.

” 11—The battle of Plattsburg. Com. McDonough, American, with 4 vessels, 10 gun boats and 850 men, captures the British Com. Downie’s fleet of 4 vessels, 12 gun boats and 1,000 men. A simultaneous attack by Prevost on Plattsburg miscarried by the failure of the fleet and panic of the soldiers. They return, in disorder, to Canada.

” 12—The British who had captured Washington, appear near Baltimore and land a force which repulses the Baltimore militia, and, next day advances toward the city; but the attack seems so formidable to them that they retreat in the night to their vessels and depart. The British admiral could not reduce Ft. M’Henry so as to co-operate in an attack on the city by water. The patriotic song, “The Star Spangled Banner,” was written during this bombardment of Fort M’Henry. Gen. Ross, the British commander, was killed soon after the landing of the troops.

About this time various attacks are made at different places on the coast of New England, and the British pretend, by proclamation, to take possession of all of Maine east of the Penobscot river and annex it to New Brunswick.

” 17—A sortie is made from Ft. Erie and the works of the enemy surprised and taken with a loss to him of 1,000 men in killed, wounded and prisoners.

Thus, in the midst of ravages and alarms on the coast, the destruction of our commerce, the stagnation of business, the financial difficulties of the government that almost amounted to bankruptcy, and the complaints of the peace party, (which produced much alarm by the calling of a convention of the New England States, in December of

this year, at Hartford, Conn.,) the honor of the United States was preserved. The formidable armies in Canada had been baffled and defeated, the capture of Washington followed immediately by the withdrawal of the invaders, and a strong point made which had its effect in substantially gaining the cause that had brought on the war, for the Americans, in the treaty negotiations in progress. The British now turned their attention to the Mississippi river and the coast of the gulf of Mexico.

Nov. 7—Gen. Jackson takes Pensacola from the British, who were laboring to raise the Indians to war again.

Dec. 15—A British fleet captures the flotilla on Lake Borgne, La.

” 22—12,000 British troops land below New Orleans, and repulse the Americans.

” 24—The treaty of peace is signed at Ghent, but is not known in America until Feb. following.

1815.

Jan. 8—Gen. Jackson, with only 6,000 men, had intrenched himself in front of the British, who now made an assault on his position. They were repulsed with great slaughter, losing their general, Packingham, and near 2,000 men. Jackson lost but 7 killed and 6 wounded. The British retreated to their vessels.

” 15—The U. S. frigate President captured by four English vessels.

Feb. 18—Ft. Bowyer, near Pensacola, Fla., invested by the British fleet. It surrenders on the 21st.

” 17—The treaty of peace which arrived at New York on the 11th by the British sloop of war Favorite, ratified by the American government and Peace proclaimed.

” 24—Congress authorizes the loan of \$18,400,000, and the issue of treasury notes to the amount of \$25,000,000.

” 28—The naval war was continued some time longer. The U. S. frigate Constitution captures two British vessels of war, the frigate

Cyane and the sloop *Levant*, off the island of Madeira. In March the U. S. frigate *Hornet* captured the British brig *Penguin*, on the coast of Brazil.

The British government, elated by their triumph over Bonaparte, their large army accustomed to conquer in Europe, and the fleets set free from the blockade of the Continent, thought to make an easy conquest of America. But all their attempts were defeated. Had peace been made a little later the Americans might have obtained much better terms.

This war had been waged under many difficulties by the American administration. The country and its institutions, were new, and there was no such reserved fund of wealth and credit, as is always found in an old and well organized state. They depended largely on commerce, which was almost destroyed by the great naval force of Great Britain, and the embargo policy. Our navy was gallant and successful; but the government lacked the means, and the unanimous support of the people, requisite to increase it to the necessary strength. The administration did not act with the vigor and efficiency calculated to bring all sections and classes to its support, and the people had not yet the experience and knowledge of the value and strength of their own institutions needful to inspire confidence, so that they were critical and difficult to please, and this spirit impaired the efficiency of nearly all government measures. What they undertook could be only imperfectly done. The old soldiers of the Revolution were dead or unfit by age for good service, and time was necessary to train others and ascertain who had the necessary military capacity for conducting operations with success. Yet, under all these great difficulties, the United States came out of the war with the respect of the world, such as it had never before enjoyed. It became formidable to Europe as a great and vigorous power with which it was not safe to trifle.

This was still more clear when the government declared war on the Dey of Algiers, one of the pirate princes of the North of Africa, which, for hundreds of years, had made war on the commerce of all nations almost with impunity. Having violated their treaty with us, the President sent out an adequate naval force

June 17-19—which captured two Algerine vessels of war, and threatened Algiers. The Dey, intimidated, immediately made peace, giving liberty to all prisoners without ransom, and full satisfaction for the injuries done to our commerce. No European nation had before so humbled these pirates, and it at once raised the credit of our government, and gained us respect and esteem.

June 30—The last hostile act at sea took place in the Straits of Sunda, in the East Indies, where the U. S. brig of war Peacock captured the Nautilus, a British sloop of war. Thus the three American vessels at sea when the war closed, each came home crowned with laurels. The British vessels captured during the war numbered 1,750—the American 1,683. The spirit and energy of the Americans, under all their embarrassments, gave an unmistakable indication of the future greatness and power of the United States.

1816.

The last two years' experience had taught the government and the people many important lessons by which they hastened to profit. The coast was fortified, the navy increased, manufactures and commerce encouraged, and the best measures that the wisdom of the times could suggest, employed to restore the finances. The violently factious opposition of parties was much moderated by the confidence gained to our government and institutions, and the evident folly of excessive fears. The Second U.S. Bank was chartered for 20 years, with a capital of \$35,000,000.

Nov. 5—Gouverneur Morris, an eminent and excellent American statesman died.

Dec. 11—Indiana admitted into the Union as a State. James Monroe was, this autumn, elected President.

CHAPTER XXI.

HISTORY OF THE U. S. FROM 1817 TO 1846.

MONROE'S ADMINISTRATION.

A new era for America commenced with this administration, or rather, reached its period of uninterrupted development; for the whole past history of the country had been a preparation for it, but especially so the late war and its results. The failure of the French revolution, and, finally, the failure of Napoleon Bonaparte and the re-establishment of the old monarchy in France, as a result of the excesses, first of the French republic, and then of the military interference of Bonaparte with the existing state of things in Europe, had an important influence in modifying the politics of the republican party in the United States; so that they came partially in Jefferson's administration, and completely by the close of Madison's, to follow the wise and vigorous policy pursued by Washington and the federal party; while the general government and the institutions of the country became deeply imbued with the regard to popular rights, and attention to the interests and will of the people that formed the leading idea of Jefferson and the original democrat, or, as it was then called, the republican party. Thus the two points of supreme importance, vigor in the general government, and security to the people, were happily mingled and wrought into the spirit and form of our institutions.

The leading events of Monroe's two administrations were the attention given to internal improvements—among which may be mentioned the Erie canal in New York, and the encouragements to manufactures—the acquisition of Florida from Spain, and a definite settlement of the slavery

question (for the next thirty years only, as it proved,) by the Missouri compromise. The people now began to feel and act together, as a single nation, and material progress was rapid.

1817.

Mar. 3—The observance of the neutrality laws strictly enjoined on citizens of the United States by Congress.

” 4—James Monroe, the fifth President, inaugurated. With his administration commences “the era of good feeling,” as it was called. The bitterness of party controversy ceased.

June 24—Thos. McKean, of Del., signer of the Declaration of Independence, died.

Dec.—Mississippi admitted into the Union, and Alabama erected into a territory.

” —A war broke out with the Seminole Indians, on the borders of Florida. It came near involving us in a war with Spain. Internal taxes are abolished by Congress.

1818.

Mar. 18—A law enacted giving pensions to indigent officers and soldiers.

April 4—The Flag of the U. S. rearranged; the stripes to represent the thirteen original States, the stars the present number of States.

” 18—Illinois is authorized to form a state constitution.

May 24—Gen. Jackson took Pensacola, Fla., from the Spaniards on account of the support given by them to the Indians.

Oct. 20—A treaty of commerce and for settling boundaries is made with England.

1819.

Feb. 23—A treaty for the session of Florida ratified by Congress, but not by the king of Spain until Oct. 20th, 1820.

Mar. 2—Arkansas organized into a territory.

Dec. 14—Alabama admitted into the Union.

In this year commenced the discussion on the balance between the north and the south in relation to slavery. Missouri and Maine both desire admission as States. The discussion resulted in a settlement of the whole question Feb. 27th, 1821, by the application of the "Missouri Compromise" to the admission of that State.

1820.

Feb. 15—Wm. Ellery, of R. I., signer of the Declaration of Independence, died.

Mar. 15—Maine admitted into the Union.

Aug. 23—Com. Perry, the hero of Lake Erie, died in the West Indies.

The 4th census was taken in this year.

1821.

Mar. 4—James Monroe inaugurated on his second term.

" 22—Com. Decatur died at Washington.

Aug. 22—Gen. Jackson takes possession of Florida as its Governor. The U. S. government paid \$5,000,000 for Florida. The Spanish officers were reluctant and dilatory in giving up their places, and Gen. Jackson had occasion for his remarkably decisive action in dealing with them. The governor, Don Cavalla, refusing to give up certain papers according to the treaty, he sent him to prison until all the papers were produced, and banished six other Spanish officers who interfered with him.

1822.

June—A commercial treaty is negotiated with France. Capt. Allen, of the U. S. schooner Alligator, engages a band of pirates in the West Indies, captures one of their schooners, and recaptures five American vessels. Capt. Allen is killed.

The ports of the West India islands are opened to American commerce by the English government.

Com. Truxton, a meritorious naval officer—Gen. Stark, the hero of Bennington, Vt.,—and Wm. Lowndes, a statesman of S. C., died this year.

A new arrangement of the ratio of Representation gives one member of Congress to 40,000 inhabitants.

1823.

Com. Porter makes a successful expedition against the West Indian pirates.

This year our government acknowledged the independence of the South American Republics, and ministers were appointed to Mexico, Columbia, Buenos Ayres, and Chili.

A treaty for the mutual suppression of the slave trade was made by Great Britain and the United States.

1824.

April—American and Russian commissioners settle the boundaries between the two countries.

Aug. 15—Lafayette arrives from France. He was everywhere received as the guest of the people with the utmost affection and reverence. He spent a year visiting all parts of the Union.

A presidential election this autumn does not result in a choice, and the House of Representatives made selection of John Quincy Adams, from the candidates, according to a provision of the Constitution, anticipating such a case. A protective tariff was made this year to encourage cotton manufactures.

ADMINISTRATION OF JOHN QUINCY ADAMS.

1825.

Mar. 4—J. Q. Adams inaugurated sixth President.

” ”—An act of Congress establishes a navy yard at Pensacola, Fla.

June 11—Dan. D. Tompkins, Vice-President with Monroe, died.

Nov. 10—Com. McDonough, the hero of Lake Champlain, died.

1826.

July 4—John Adams and Thos. Jefferson, whose lives were identified with the foundation and development of our institutions, simultaneously died on this day.

Sept. 11—Wm. Morgan, an anti-mason, mysteriously disappears, and is never again heard of.

1827.

An Anti-Mason party is formed, opposing secret societies. Much “political capital” is made of it.

Jan.—The first considerable railroad was begun, and completed in May. It was nine miles long, a beginning of the wonderful transformation that was to be produced by this agent.

1828.

Feb. 11—De Witt Clinton, governor of N. Y. and originator of the Erie canal, died.

The tariff was amended and enlarged this year. This tariff was violently opposed in the South and produced the “Nullification Ordinances” of S. C., some time later.

In the fall of this year Gen. Andrew Jackson was elected President.

1829.

Feb. 29—The Virginia Legislature passes a resolution denying the right of Congress to pass a protective tariff law.

Mar. 4—Andrew Jackson inaugurated as President.

Dan. Webster makes his great speech against nullification.

JACKSON'S ADMINISTRATION.

1829.

May 19—A treaty of friendship and commerce concluded with Brazil.

” ”—John Jay, ex-President of the Continental Congress, Chief Justice of the U. S., Governor of N. Y., etc., died. In purity of patriotism, moderation, and soundness of judgment, he came nearer to Washington than any of his contemporaries. He was above the reach of the violent party spirit that prevailed after Washington's retirement from public life.

1830.

May 7—A treaty made with Turkey gives U. S. commerce the freedom of the Black sea. The vigorous dealing of our government with the Barbary States secured the respect and friendship of Turkey.

The important movement and interests of this year were connected with the progress of railroads (the first American built locomotive was made this year,) and the rapid rise of that great interest, and with the agitation produced by the nullification proceedings of South Carolina. That State claimed the right to pronounce upon, and disregard the enactments of Congress. This was subversive of the Constitution. It drew the “Key Stone” from the arch, and the whole structure of the Union would have fallen. No decisive action was reached till the year 1832.

May 29—The office of Solicitor of the Treasury created.

1831.

Jan. 10—The King of the Netherlands, being accepted as arbitrator of the northern boundary between the United States and the British Possessions, by the two governments, decides the question in our favor.

July 4—James Monroe, ex-President of the U. S., died, aged 73.

Oct. 1—A free trade convention meets at Philadelphia.

” 26—A tariff convention meets at New York. There were over 500 delegates. It was the absorbing political topic of the time.

1832.

April 1—The Black Hawk war breaks out by the attack of the Winnebagoes, Sacs, and Foxes from the west bank of the Mississippi on the settlers in Illinois, under the Indian chief, Black Hawk.

” 2—The Creek Indians sell all their lands east of the Mississippi river to the U. S.

May 5—A commercial and boundary treaty concluded with Mexico.

” 27—A new ratio of representation based on the 5th census gives one member of Congress to 47,700 inhabitants.

June 1—Gen. Sumter, a South Carolina hero of the Revolution, died.

” 9—The cholera breaks out at Quebec, Lower Canada. It swept over the country, following the lakes and rivers and routes of travel, with fearful violence.

July—The cholera breaks up Gen. Scott's army, on the way to meet Black Hawk while in vessels on the lakes.

” 9—Congress creates the office of Commissioner of Indian affairs.

” 10—Naval hospitals established at Charlestown, Mass., Brooklyn, N. Y., and Pensacola, Fla.

” ”—The President vetoes the bill rechartering the U. S. Bank.

Aug. 27—Gen. Atkinson defeats the Indians and takes Black Hawk prisoner.

Nov. 14—Chas. Carroll, of Carrollton, Md., last surviving signer of Dec. of Ind., dies.

” 19—An anti-tariff convention in S. C. issues the famous “Nullification Ordinance.”

” 24—The Unionists of S. C. meet and protest against this ordinance.

Dec. 10—President Jackson issues a proclamation against the nullifiers. He followed word with deed, garrisoning the forts, and sending vessels of war into the harbor of Charleston. His well known vigor left the nullifiers no hope of success, and they finally submitted.

” 18—A commercial treaty concluded with Russia.

” 20—Gov. Hayne, of S. C., defies the President in a counter proclamation.

” 28—J. C. Calhoun, of S. C., the Vice-President, resigns his office. President Jackson is reëlected this fall. His anti-nullification measures made him very popular.

1833.

Feb. 12—Henry Clay introduces a bill on the tariff compromising the points at issue between the manufacturing States and the South.

Mar. 3—It becomes a law, and gives general satisfaction.

” 4—President Jackson reinaugurated on his second term.

May 20—The death of La Fayette, in France.

June 1—Oliver Wolcott, Sec. of the Treasury under Washington, dies.

July 27—Com. Bainbridge, a famous naval commander, dies.

Sept. 30—President Jackson removes his Sec. of Treas. W. J. Duane, for refusing to carry out his policy in regard to the U. S. Bank. The presence of the Indians in Mississippi, Alabama, Georgia, and

Florida, produces so much conflict and so frequent a necessity for chastising them that they are in danger of total extermination. Gen. Jackson persuades Congress and the Indians to arrange for their removal to lands west of the Mississippi. Some of the Indians quietly remove this year. Many resist, but all are finally persuaded to this course by Gen. Scott and others, except the Seminoles of Fla.

1834.

Mar. 28—Congress formally censures the President for his course in regard to the U. S. Bank.

Oct. 28—A conditional treaty made with the Seminoles at Payne's Landing, May 9, 1832, for their removal to the Indian Territory west of the Mississippi, was afterwards confirmed by the chiefs but rejected by the people. Gen. Thompson was sent, at this time, by President Jackson to insist on their carrying out the treaty.

Dec. 28—A council of the Indians, called by Gen. Thompson, seemingly accept the terms of the President.

1835.

Mar. 3—Congress establishes branch mints in La., N. C., and Ga.

May 14—A treaty with the Cherokees purchases all their lands east of the Mississippi for \$5,262,251, and ample lands in exchange in the Indian Territory.

June 3—Osceola, a Seminole chief, imprisoned by Gen. Thompson.

July 6—Chief Justice Marshall dies, aged 80.

Dec. 16—A destructive fire in New York. \$17,000,000 worth of property consumed.

" 28—The Seminoles killed their chief, Mathla, who had been prominent in making the obnoxious treaty, and suddenly attack a U. S. force under Maj. Dade. But one man out of 110 escaped. He was wounded and afterwards died. The same day Gen. Thompson and others were surprised and massacred.

” 31—Gen. Clinch is attacked by the Indians at Withlacoochee. He repulses them and retires.

1836.

Early in this year the Indians laid waste the whole country, burning the buildings and killing all who had not taken refuge in the forts.

Jan. 20—A treaty of friendship and commerce concluded with the republic of Venezuela, South America.

Feb.—The U. S. Bank was chartered by the Legislature of Pa.

” 11—Gen. Gaines lands an army at Tampa Bay. He is surrounded by the Indians on his march toward Fort King. He repulsed them, but his army is nearly starved. While the army is held here the tribe remove their families and effects into the impenetrable swamps of the interior.

Mar. 2—The Texans proclaim their independence.

Apr. 26—Wisconsin receives a territorial government.

” 21—Battle of San Jacinto. Santa Anna taken prisoner.

June 15—Michigan erected into a State, conditionally.

” ”—Arkansas admitted into the Union.

” 23—A surplus revenue having accumulated it is loaned to the States.

” 28—James Madison, the ex-President, dies, aged 86.

July 4—Office of Commissioner of Patents created.

Sept. 15—Aaron Burr, an able but dishonest and disloyal statesman, formerly Vice-President, dies, aged 81.

The Creek Indians commenced hostilities in May of this year, in their usual fierce and barbarous manner. Gen. Scott and the State authorities of Geo. subdue them early in the summer.

In the presidential election this fall Martin Van Buren was elected.

Dec. 15—The General Post Office and Patent Office, with many records and articles of value, are destroyed by fire.

1837.

Jan. 16—The U. S. Senate repealed and expunged its resolution of March 24th, 1834, censuring President Jackson, as having exceeded his Constitutional powers when he ordered the public funds to be withdrawn from the U. S. Bank.

Mar. 4—Van Buren inaugurated President.

Speculation having been carried to an extreme length for some time, and somewhat arrested by the “specie circular” requiring payments for public lands to be made in coin, a revulsion, producing great distress, and suspension of payments by the banks, occurred this spring.

May 3—The merchants of New York present a memorial to the President urging him to remit the regulations of the “specie circular.” The President declines, but calls an extra session of Congress.

Aug. 4—Texas proposes annexation to the U. S. The President declines to entertain the proposition.

” 13—The banks resume specie payments.

Sept. 4—Congress assembled in extra session. A portion of the surplus revenue, which, by law of June 23d, 1836, was to be loaned to the States, is reclaimed to meet the current expenses of the government.

” 29—A treaty made with the Sioux Indians for the purchase of their lands, 5,000,000 acres, for \$1,000,000.

Oct. 1—The Winnebagoes sell their lands for \$1,500,000.

” 12—Congress authorizes the issue of \$10,000,000 in Treasury notes.

” 21—Osceola, the Seminole chief, with 70 of his warriors, visits the camp of Gen. Jessup. They are detained, and Osceola was imprisoned in Ft. Moultrie, S. C., where, in a few months, he died.

Dec. 25—The battle of Okee-cho-bee fought with the Seminoles in the swamps of Florida, by Col. Zachary Taylor. The Indians are defeated.

The Magnetic Telegraph was patented in this year.

1838.

Jan. 5—The President issues a proclamation enjoining neutrality on American citizens, during the “Patriot war,” or insurrection in Canada.

June 12—Iowa receives a Territorial government.

Aug. 19—An Arctic exploring expedition, with six vessels, sails from Hampton Roads, Va.

The Cherokee Indians completed their emigration to the Indian Territory this year.

1839.

Gen. Macomb makes a treaty early in this year with the Seminoles, which they very imperfectly kept.

A difficulty with England in regard to our northeast boundary narrowly avoids war, but is, at length, peaceably adjusted.

Dec. 2—Congress assembles.

” 4—A Whig Convention prepares for the contest of the coming year by the nomination of Wm. H. Harrison for the Presidency. Great discontent was felt with the financial policy of Van Buren’s administration, and lively interest taken in the coming election, which made the campaign the most stirring and the noisiest ever experienced in this country.

1840.

May 5—The Democrats renominate Van Buren for the Presidency.

This year was chiefly memorable for the “Log Cabin and Hard Cider” election gatherings, and the extreme interest of the people in the elections, on financial grounds.

June 30—Congress passes the sub-treasury bill recommended by President Van Buren, in 1837, but then rejected.

Nov.—W. H. Harrison elected President, and John Tyler Vice-President.

1841.

Jan. 14—Imprisonment for debts due the U. S. abolished.

Mar. 4—Harrison inaugurated ninth President.

” 11—The steamer President sails from New York but is never again heard of. She had 109 passengers.

” 17—The President calls an extra session of Congress to consider financial questions.

Apr. 4—President Harrison died and John Tyler became acting President.

May 31—Congress convenes.

June 25—Gen. Macomb died.

July 6—The proceeds of the public lands ordered to be distributed to the States.

” 21—Congress orders a loan of \$12,000,000.

Aug. 9—The Sub Treasury act repealed.

” 16—President Tyler vetoes the National Bank bill.

” 18—A general bankrupt law passed.

Sept. 9—A Second Banking Bill vetoed. This was the fourteenth time the veto power had been used; by Washington twice, Madison four times, Monroe once, Jackson five times.

Oct. 11—Failure of U. S. Bank under the Pennsylvania charter.

1842.

June 25—The new Ratio of Representation, based on the census of 1840, gives one Member of Congress for every 70,600 inhabitants.

July 23—Bunker Hill Monument finished and dedicated. The corner stone was laid by Lafayette 17 years before.

Aug. 20—The Ashburton treaty with England, settling the N. E. Boundary, ratified by the U. S. Senate.

” 28—The U. S. fiscal year ordered to commence with July 1st.

Oct. 2—The U. S. sloop of war Concord wrecked on the African coast.

” 14—The Ashburton-Webster treaty ratified in England.

1843.

Mar. 3—Congress appropriates \$30,000 for building Morse’s electric telegraph from Washington to Baltimore. It was the beginning of that magnificent enterprise.

Com. Porter, minister to Turkey, dies in Constantinople.

Apr. 18—Commences “Dorr’s rebellion” in Rhode Island.

Aug. 26—The U. S. frigate Missouri burned, at Gibraltar, Spain.

1844.

Feb. 28—A large cannon on board the war steamer Princeton, bursts while the President and others are visiting the vessel, killing Messrs. Upshur and Gilmer, secretaries of war and navy, and others.

May 6—The “Know-nothing” or American excitement produces a serious riot in Philadelphia.

July 7—Jo. Smith, the originator of the Mormons, killed at Carthage, Ill.

Nov.—The Democratic party elected James K. Polk for President. The chief question entering into the election was on the annexation of

Texas. It had been sought for some years but had been declined as certain to bring on a war with Mexico, which, as a sister republic, and much weaker than ourselves, had been considered to be an unworthy act. The Whigs, with Henry Clay as their candidate for President, opposed it. It was carried, in great part as a pro-slavery measure, although the bitter and barbarous conduct of the Mexicans toward Texans and American citizens had something to do with it.

1845.

Jan. 16—A treaty made with China, ratified by the U. S. Senate.

” 23—An act of Congress orders presidential elections to be held in all the States on the first Tuesday after the first Monday in November.

Feb. 28—Congress annexes Texas to the Union, by a joint resolution of both Houses.

Mar. 3—Florida admitted into the Union.

” 4—Mr. Polk inaugurated the tenth President.

June 18—Andrew Jackson died.

The Congress of Texas accepted the conditions of the U. S. and it became a State in the American Union.

July 30—Gen. Taylor ordered to the frontier of Texas.

Sept. 10—Judge Joseph Story, of the U. S. Supreme Court, died, aged 66.

Dec. 15—A misunderstanding had long existed between the U. S. and England as to the northern boundary of Oregon. Much excitement is now produced by a speech and resolution of Mr. Cass, which seemed the prelude to war with Great Britain.

1846.

June 18—A treaty was negotiated by Mr. Packenham and Mr. Buchanan settling the northwest boundary satisfactorily.

CHAPTER XXII.

THE MEXICAN WAR.

Texas was a nearly uninhabited part of Mexico, lying between Louisiana and the Rio Grande river. It was a fertile region, with a fine climate. The Spanish possessors of Mexico, in the bigoted and bitter spirit that was traditional with the Spaniards toward protestants, and deeply hostile in feeling from the rather high-handed and vigorous proceedings of Gen. Jackson before and after the cession of Florida, did not encourage the settlement of Texas; preferring to be separated by a wilderness from the United States. In 1821 the Mexicans finally threw off the Spanish yoke and established an independent government.

About this time the Americans, and especially those of the South, foreseeing the probable spread of the northern part of the Republic to the Pacific, began to look with covetous eyes on the fine Savannas of Texas, as an excellent field for land speculations, and also for extending the Southern area, so as to keep its balance in the number of slave States equal to the free States of the North, as they had been provided for by the Missouri Compromise. It was believed to be the plan of Mr. Calhoun, an able and far-seeing statesman, thoroughly in earnest in the maintenance of slavery, and the political equality of the slave with the free States. A settlement was made by people from the United States. In a few years they grew to be numerous, and came in conflict with the rigid Spanish Catholic laws, still maintained by the Mexicans. The United States government made advances toward purchasing Texas, but the Mexicans were resolute in their purpose to hold it, and bring its people under the dominion of strict Mexican law. The Americans resisted this with the settled determination of ultimate separation from Mexico, and probable annexation to the United States.

The Mexicans undertook to reduce them to submission. The Texans, supported by bold and fearless adventurers from the Southern States, resisted. The war commenced Oct. 2d, 1835, by a battle at Gonzalez, followed by various others. March 2d, 1836, the Texans formally declared Independence, which they maintained by force of arms. March 3d, 1837, the United States government recognized the Independence of Texas.

England did the same in 1842. Propositions of annexation had been made to Presidents Jackson, Van Buren, and Tyler, successively, by the Texas government, but as often rejected by them as tending necessarily to a war with Mexico; that power having distinctly and repeatedly declared that she should regard such a step as a declaration of war.

The Democratic party regaining the ascendancy in the election of 1844, made this annexation the issue of the presidential campaign. A majority of the people were in favor of it.

The Southern view, however, was not alone in its influence on this decision. Indignities and injuries had been inflicted by the Mexicans on American citizens in that country; its haughty, exclusive, and unfriendly spirit awakened strong indignation; and the Pacific coast of California, with the mining regions of the northern interior of Mexico, both nearly uninhabited, were objects of desire to the American people. Thus a wish to extend the bounds of the Republic, and to chastise an insolent neighbor, combined with the ardent wishes of the pro-slavery interest, to lead the nation to determine on a war, somewhat ungenerously, with a neighbor notoriously too weak and disorganized for effectual resistance to the whole strength of the United States. The whole plan, as afterward carried out, was arranged in the cabinet at Washington almost before hostilities had actually commenced.

1846.

Mar. 28—Gen. Taylor takes position with a small army at the mouth of the Rio Grande opposite Matamoras. This the Mexican government regard as a declaration of war, for which they had prepared and were waiting.

Apr. 24—Hostilities commence by an attack on Capt. Thornton. He loses 16 men out of 63, and surrenders.

May 8—The battle of Palo Alto. Gen. Taylor with 2,300 men defeats 6,000 Mexicans. Mexican loss 100 killed, 300 wounded; American 4 killed, 40 wounded.

” 9—The battle of Resaca de la Palma. The Mexicans are totally defeated with a loss of about 600; the Americans lose about 160. Gen.

La Vega, (Mexican,) taken prisoner. The Mexicans fled in total rout across the Rio Grande. The object of the war, so far as Texas was concerned, was gained; but the Mexicans were still spirited, and California, Utah, and New Mexico were not gained. An invasion and march on the city of Mexico were the next steps.

” 12—Congress ordered the raising of 50,000 men, and voted \$10,000,000 to carry on the war.

July 6—Monterey, on the California coast is taken by the American navy under Com. Sloat.

” 9—Congress re-cedes the Virginia portion of the District of Columbia to that State.

” 30—The tariff on imported goods is reduced.

Aug. 3—President Polk vetoes the River and Harbor Bill.

” 8—He vetoes the French Spoliation Bill.

” 18—Gen. Kearney takes possession of Santa Fe, New Mexico, and declared the U. S. authority established over the people.

” 22—California is at this time entirely in the possession of U. S. forces.

Sept. 5—Gen. Taylor, with 6,000 men, commences his march on Monterey.

” 21—Gen. Worth, with 650 men, fights the Mexicans near Monterey.

” 22—The “Bishops Palace,” strongly fortified, is stormed and taken.

The previous attacks were directed on the rear of Monterey. An advance is now made in front with success.

” 23—The defenses are assaulted in front and rear. The city surrenders. Gen. Ampudia, the Mexican commander, had about 10,000 men and very strong fortifications. A truce of some weeks was agreed upon. Gen. Santa Anna having recently come into power, it was thought peace would be made. This proved delusive.

Oct. 25—Tobasco bombarded by the U. S. fleet, and the Mexican vessels in the port taken or destroyed.

Nov. 14—Tampico surrenders to Com. Connor.

Dec. 25—Battle of Bracito. Col. Doniphan, with 500 men, defeats a Mexican force of 1,200. Mexican loss 200, American but 7 wounded, none killed.

1847.

Jan. 8—The Mexican Congress votes \$15,000,000 to carry on the war, to be raised on the property of the church.

Feb. 23—The larger part of Gen. Taylor's army was withdrawn from him to support Gen. Scott in his march from Vera Cruz on the city of Mexico. Gen. Taylor, with only 4,500 men, is attacked by Santa Anna with 20,000 men. Santa Anna is completely defeated with a loss in killed and wounded of 2,000. American loss 264 killed, 450 wounded, 26 missing.

Mar. 1—Gen. Kearney proclaims California annexed to the United States.

" 3—A bill admitting Wisconsin into the Union passed.

" 9—Gen. Scott landed 12,000 men at Vera Cruz.

" 18—The cannonade of Vera Cruz commences.

" 26—Vera Cruz capitulates to Gen. Scott.

Apr. 18—The battle of Cerro Gordo. Santa Anna is defeated. He had 12,000 men. Gen. Scott 8,500. The Mexicans lost 1,100 in killed and wounded, and 3,000 prisoners. Gen. Scott lost in killed and wounded, 430. The Mexicans were vigorously pursued April 19, and the city of Jalapa taken possession of.

" 22—Gen. Worth takes possession of the town and castle of Perote.

May 15—Puebla is entered. It is the second city in Mexico. Offers of peace were now made by the Americans but rejected by the Mexicans.

Aug. 11—The army advances to the neighborhood of the city of Mexico.

” 19—The battle of Contreras. Americans successful in cutting the enemy’s communications. The Americans march in the night to attack a fortified camp which is carried at sunrise. American force 4,500, Mexican 7,000. Mexican loss in killed, wounded and prisoners, about 4,000; American, 66.

” 20—Cherubusco, a fortified hill, stormed and taken by Gen. Worth with 9,000 men. An armistice is now agreed on, and peace offered, but the Mexicans still hold to their first terms, and refuse to give up territory.

Sept. 8—The Mexicans determine to yield only to absolute force, and the American army again advances. Battles of Molinos del Rey, and Casa Mata. The Mexicans are largely superior in numbers and fight with determined valor, but are overcome. American loss 800.

” 13—Battle of Chapultepec. This fortress was the last exterior defense to the City of Mexico. It was once the site of the “Palace of the Montezumas.” The Mexican force within and outside the fortress 20,000. The American force 7,180. Mexican loss in killed, wounded, prisoners and deserted, about 14,000; American, 900. A part of the army gained a foothold in the City of Mexico.

” 14—Gen. Scott enters Mexico in triumph.

Oct. 9—Battle of Huamantla. Santa Anna again defeated.

” 18—Again at Attixco, with heavy loss. Santa Anna is now deserted by his troops, and resigns his office.

Nov. 11—The Mexican Congress assembles, and appoints commissioners to treat for peace.

1848.

Feb. 2—A treaty of peace signed at Guadalupe Hidalgo (a town four miles from Mexico).

” 23—John Quincy Adams expires at Washington.

May 20—The treaty having been ratified by the President and Senate of the U. S., March 10, it was followed by that of the Mexican

government on this day.

” 23—Peace was proclaimed in the American camp.

The war was now over. The Mexicans relinquished all claim to Texas, and ceded Upper California and New Mexico to the United States. In return the United States gave them \$18,500,000 of which \$3,500,000 was due by a former treaty to citizens of this country and paid them by our government.

It will not be easy for an American to wholly condemn an act that gave us California and the fertile valleys and vast mining territory of the Pacific slope as well as New Mexico, or the chastisement which the Mexicans had merited for their barbarity; though he may blame the eagerness for the acquisition of territory and the support of slavery that led us to invade another country and humble her pride. The ability of Americans as soldiers would appear by this war to be unrivalled, and, in that view arouses our pride. The moral sense of the world must ever be shocked by war, though there seem many cases in which it is far the least of two evils. Our government was fairly generous so far as it dared be in dealing with the vanquished, as soon as its demands for territory were satisfied. It is also evident that this territory will be better developed and governed than would have been the case under Mexican rule.

Aug. 14—Oregon receives a Territorial government.

Nov.—Gen. Taylor was elected President this month and Millard Fillmore Vice President.

1849.

Jan. 26—Postal treaty with England concluded.

Mar. 3—Minnesota receives a Territorial government.

” 4—Gen. Taylor inaugurated President.

May 7—Gen. Worth, a very gallant officer of the Mexican war, died.

Sept.—A State Constitution is formed by the people of California, which excludes slavery.

Dec. 31—The House of Representatives ballots 63 times for a speaker, and now elects Howell Cobb, of Geo.

Gold was discovered in California, in Feb. 1848, and through 1849 emigrants—gold seekers—were arriving there by tens of thousands. By the end of this year it was a populous region. The mass of American immigrants were from the northern States, and disapproved of slavery, while the special end of the Mexican war was to procure more territory for that institution. At this time a violent contest was waged in Congress over that admission. It was not ended until late in the following year.

1850.

Jan.—Gen. Twiggs obtains the consent of the Seminoles of Florida to emigrate to the Indian Territory.

Feb. 13—President Taylor sends the constitution of California to Congress. There were many threats of secession in case California was admitted free.

Mar. 7—Mr. Webster's great speech for the Union.

May 8—The "Omnibus Bill" reported by Henry Clay.

" 18—A private expedition from the south under command of Lopez invades Cuba. They are driven off with a loss of 30 killed and executed as pirates, on the 19th. The remainder returned to Key West on the 22d of the same month.

July 9—Death of President Taylor. Fillmore becomes acting President.

Sept. 9-20—A committee of thirteen, of which Henry Clay was chairman, had been appointed Apr. 19th, and they had prepared four measures forming a compromise between the North and South as to slavery, which were debated and passed into laws, receiving the concurrence of the President: First, the South conceded to the North the admission of California as a free State, and the abolition of the slave trade in the District of Columbia; Second, the North conceded to the South a stringent Fugitive Slave Law, and the organization of

Territorial Governments in New Mexico and Utah without mention of slavery, but in the understanding that they were finally to form slave States. The real gain was to the North, as anti-slavery was advanced two steps, while the Fugitive Law could not be generally enforced in the North from the invincible aversion of the people to it, and the Southern people were not sufficiently migratory in their habits to introduce slavery into distant regions not naturally adapted to that institution. Still the question was laid aside for the present.

Nov. 19—Richard M. Johnson, a former Vice-President of the U. S., died.

Dec. 16—A treaty of Amity and Commerce ratified with Switzerland.

1851.

Mar. 3—A cheap postage law passed by Congress.

John C. Calhoun, the most eminent of Southern Statesmen, died.

1852.

June 28—Henry Clay, orator and Statesman, died.

July 3—A branch mint established at San Francisco, Cal.

Oct. 24—Daniel Webster died. These three were the ablest and most esteemed statesmen of their day.

Nov.—The seventeenth presidential election occurred. Franklin Pierce was elected. He was the Democratic nominee. Gen. Scott, Whig, was defeated.

1853.

Mar. 4—Pierce inaugurated President.

Aug. 11—Proclamation of President Pierce against the invasion of Cuba by armed Americans.

1854.

Mar. 23—An important treaty of commerce negotiated with the empire of Japan by Com. Perry, which opened a new era in the progress of that country, and of United States commerce and influence in Asia.

May 30—The failure of the compromise measures of 1850 to realize the hopes of the South from the rapid development of anti-slavery views in the North caused the subject to be again agitated, and the Missouri Compromise, which stopped the formation of slave States north of its south boundary line, was repealed; the question of the admission of slavery into Kansas and Nebraska, both being north of that line, being referred by the famous “Kansas-Nebraska Bill” to the “squatters,” or first settlers. This was called “squatter sovereignty.” This measure gave satisfaction to the South, but was strongly reprobated by many of the Northern people. Both sides prepared to renew the contest there, and civil war raged in Kansas for near three years. Each side sought to secure its end which terminated in favor of the North. The South could not compete with it in numbers nor drive the extra numbers away. This was the last hope of the South for preserving equilibrium in the general government.

The Democratic party in the North, anxious to soothe and conciliate the South, and not holding so advanced opinions against slavery, was still strong enough to maintain itself in power in the administration; but the Republican party, formed about this time by the dissolution of the Whig party, constantly grew in numbers and influence, and, by the end of the next administration its numbers were so large and the ultimate result so certain that the South resolved on secession rather than give up their favorite institution.

1855.

Feb. 24—The Court of Claims, an important relief to Congress and to claimants against the government, was established in Washington, by Congress.

1856.

Mar. 4—A Free State Legislature assembles in Kansas. It adopted a constitution and prepared to apply for admission into the Union.

Nov.—The eighteenth presidential election took place. James Buchanan was elected against J. C. Fremont and Millard Fillmore. Buchanan was the Democratic candidate; Fremont, Republican, and Fillmore, American, or “know nothing” candidate.

1857.

Feb. 2—Nathaniel Banks of Mass., a Republican, is elected Speaker of the House of Representatives. It had required two months and 133 ballotings to settle this point; indicating the nearly equal balance of parties, and the final success of the Republican element in the popular branch of Congress.

Mar. 4—Buchanan inaugurated President.

The next three years (after the decision of the Kansas troubles) were marked by the unnatural quiet that forebodes the storm. Anti-slavery feeling was maturing in the North, and discontent and secession tendencies in the South.

1858.

May 11—Minnesota admitted into the Union as a State.

1859.

Feb. 14—Oregon admitted into the Union as a State. The admission of these two without any corresponding ones in the South indicated the strength of Northern sentiment, and that the South had given up the struggle in that way. John Brown’s raid on Harper’s Ferry, in this year, as showing the tone of Northern feeling, still further estranged the South from the Union.

CHAPTER XXIII.

THE CIVIL WAR

Was the inevitable result of an antagonism of interests, sentiments, and social structure in the two great sections of the Union—the North and the South. The foundation of these tendencies was laid before the formation of the Union, in early colonial times. The conflict commenced as soon as a close union was attempted, and the Constitution was adopted only through the personal influence of Washington and other statesmen of that time, and from the general conviction that it was essential to the protection of the new nation from England and other European powers. Some provisions of the Constitution involved a compromise between the North and the South; and a constant series of compromises was required to be arranged from time to time, down to this period.

The institution of slavery it was believed by many of the revolutionary fathers, would expire of itself at no distant time; but the value of the cotton cultivated at the South, and the intimate relations that slavery bore to the social life, made it profitable and agreeable to that section, and they held to it with great tenacity. Meanwhile the compromises of the Constitution grew more and more disagreeable to the North. The requirement of that instrument—that persons held to service in the South, and becoming fugitives in the North, should be returned by them—was objected to on humane and religious grounds, and they found slavery an industrial embarrassment. The enterprise and vigor of the northern population gave their section a more rapid growth, and its political power became continually greater.

But three ways of peacefully avoiding the conflict were open: the North must fully carry out the spirit of concession that gave birth to the Union, the South must consent, sooner or later, to abolish its peculiar institutions, or they must agree to separate. Interest, habit, and the aristocratic pride of the South forbade the second; while, in the North, interest, religious sentiment, and the workingman's pride as decidedly forbade the first. The natural relation of the two sections, especially by the Mississippi and Ohio rivers, so essential to the commercial interests of the Western States: the

improbability of maintaining amicable intercourse, with slavery in the South, and fugitives from it to produce constant irritation; the apparent probability that, if the right of dissolution were conceded, the West, and the Pacific States would follow this example; and the conviction that the true interests of the whole country, internal and external, required an indissoluble Union, inspired the majority of the northern people to resist disunion at every cost. On the other hand, the South claimed the right to depart in peace. Thus, war was inevitable; nor can it be correctly affirmed that any party, or any generation, or either section of the Union, was properly responsible for so lamentable a result. Each section, generation, and party follows the line of its own interest, ideas, and habits. It is a law of humanity, and each sees therein its duty and pleasure. While interests do not clash very seriously, while ideas are not sharply and clearly defined, and while habits are yet unsettled, compromises may be readily effected. Humanity, taken together, in the most advanced society heretofore known to men, is not yet capable of views so high, liberal, and far-seeing as to free it from the possibility of such conflicts. It will, however, reach that height, in the course of time.

We could not reasonably have expected either the North or the South to have acted differently from what they did. While so gigantic a war was an immense evil; to allow the right of peaceable secession would have been ruin to the enterprise and thrift of the industrious laborer, and keen-eyed business man of the North. It would have been the greatest calamity of the age. War was less to be feared.

The Southerner, generous, warm blooded, accustomed to rule and make his own will the law of others in his home, courageous and fiery, could not give way. Besides secession would be less damaging to him. He would own the outlets to much of Northern commerce, he had a bond of union of the Southern States in the common institution of slavery, and a monopoly of the world's cotton that must soon secure profitable alliances in Europe. Secession was commenced peaceably, and the Southern government fairly consolidated before the trumpet sounded to battle. The Democratic party, then in possession of the administration of the general government, had long been in close relations with the South. It was impossible for it to realize the momentous character of the crisis, or to help sympathizing more or less with the views and feelings of the South; it was near the close of its

period of rule; and it left the active management of the herculean difficulties of the situation to the incoming administration of the Republican party. The whole country was quiet, failing, perhaps, as well as the Democrats, to realize the significance of the events taking place. It was a period of breathless waiting for what would come next. The signal was given by the South. Fort Sumpter in South Carolina, a national fort, was bombarded April 12th, 1861. It was an electric shock. The North answered the summons by a note of defiance, and mustered for war.

The South was better prepared, more alert, more accustomed to arms, and secured, at first, many advantages. She also had the advantage of being on the defensive when the contest became close. But, as the months ran into years, the courage and iron resolution of the North did not falter. She had the advantage of numbers, of the general government, of wealth, and of naval force. Step by step she conquered, holding all she gained, grew skillful and wise by defeat, and, April 8th, 1865, the main army of the Confederates surrendered, and the war was over; the gallant South succumbed to the plucky North. It was a predestined conclusion. The free States were necessarily the strongest, and their strength was supported and inspired by religious sentiment and enthusiasm. The Union, so important to the world and to civil liberty, was preserved, but at fearful cost.

Probably 500,000 lives were sacrificed altogether, on both sides; and eight or nine billions of dollars. The desolation of the South, which had been mainly the theater of these mighty conflicts; the extreme change in pecuniary circumstances and social life there; the affliction, to freemen, of the subjection, however mild and temperate, necessary under the circumstances to be imposed, for the time, by the federal government; the great loss of valuable life to both sides; the immense debt of the government, with the unavoidable demoralization of certain parts of society, everywhere, by the license of war, and many other evils form the dark side of the picture.

Yet, nothing could outweigh the value of the Union especially when freed from the discordant element that now disappeared. It must be long before all wounds can be healed. When that time shall come both North and South will be recompensed for all they have suffered.

1860.

Nov. 6—Four parties contested this election: the Republicans voted for Abraham Lincoln—the Democrats for Stephen A. Douglas and J. C. Breckenridge. The old Whigs or Peace party, ignoring the dangerous political strife, voted for John Bell. Lincoln was elected. A simple majority of electoral votes would have been 157. He received 180.

” 7—News of Lincoln’s election received in South Carolina with cheers for a Southern Confederacy.

” 9—An attempt made to seize the arms in Ft. Moultrie.

” 10—South Carolina Legislature propose to raise 10,000 men.

Election of convention to consider secession ordered.

Jas. Chester, U. S. Senator from South Carolina, resigned.

” 11—Senator Hammond, of South Carolina, resigned.

” 15—Governor Letcher, of Virginia, calls an extra session of the Legislature.

” 18—Georgia Legislature appropriate \$1,000,000 to arm the State.

Major Anderson sent to Ft. Moultrie to relieve Col. Gardiner.

” 19—Gov. Moore calls an extra session of Louisiana Legislature.

Dec. 1—Florida Legislature order the election of a convention.

Great secession meeting in Memphis, Tennessee.

” 3—Congress assembles. President Buchanan denies the right of a State to secede, and asserts the propriety of coercion.

” 5—Election of secession delegates to South Carolina Convention.

” 10—Howell Cobb, U. S. Sec. of Treasury, resigned; P. F. Thomas, of Maryland, appointed in his place. Senator Clay, of Ala., resigned. Louisiana Legislature orders the election of a Convention, and appropriates \$500,000 to arm the State.

” 13—Extra session of the Cabinet held to consider if Ft. Moultrie shall be reinforced. President opposed, and reinforcements not sent.

” 14—Gen. Lewis Cass, U. S. Sec. of State, resigns. J. S. Black, of Pa., appointed.

” 17—South Carolina Convention assembles.

” 18—Crittenden Compromise proposed in U. S. Senate.

” 19—Gov. Hicks, of Maryland, refuses to receive Mississippi Commissioners.

” 20—South Carolina Convention unanimously adopts a Secession Ordinance.

” 22—Crittenden Compromise rejected in Senate Committee.

” 24—People of Pittsburg, Pa., stop shipment of military stores, from the arsenal there, to Southern forts.

Gov. Moore calls extra session of Alabama Legislature. Election to Alabama Convention; secession majority over 50,000.

South Carolina Members of U. S. House of Representatives resign.

” 25—Maj. Anderson abandons Ft. Moultrie for Ft. Sumter, Charleston Harbor. He has only 111 men.

South Carolina Commissioners arrive in Washington. President Buchanan declines to receive them.

” 28—South Carolina authorities seize Castle Pinckney, Ft. Moultrie, U. S. Custom-House, and other government property; at Charleston.

” 29—John B. Floyd, U. S. Sec. of War, resigns. Joseph Holt, of Ky., appointed.

” 31—South Carolina sends Commissioners to Slave States to arrange the organization of a Southern Confederacy.

1861.

Jan. 2—Gov. Ellis, of North Carolina, takes possession of Ft. Macon.

Georgia troops seize Fts. Pulaski and Jackson, and U. S. Arsenal, at Savannah.

” 4—Gov. Moore, of Ala., seizes Ft. Morgan, and U. S. Arsenal at Mobile.

Fast Day by proclamation of President.

” 7—State Conventions of Alabama and Mississippi, and State Legislatures of Virginia and Tennessee assemble.

” 8—Jacob Thompson, U. S. Sec. of Interior, resigns. Fts. Johnson and Caswell, North Carolina, seized by State authorities.

” 9—U. S. steamer, Star of the West, fired on in Charleston Harbor and driven away.

Mississippi Convention adopt Secession Ordinance. Vote 84 to 15.

” 10—Florida Convention secedes by vote of 62 to 7. Florida authorities seize Ft. McRae.

” 11—Alabama secedes by vote in Convention of 61 to 39. P. F. Thomas, U. S. Sec. of Treasury, resigns. John A. Dix appointed. The Governor of Mississippi seizes Forts Philip and Jackson, on the Mississippi river; Forts Pike and Macomb, on Lake Pontchartrain; and U. S. Arsenal at Baton Rouge.

” 13—Florida takes possession of Pensacola Navy Yard and Ft. Barrancas. Lieut. Slemmer, in command of Ft. Pickens, ordered by Com. Armstrong to deliver the Fort to Florida, refuses, and preserves that important post to the government of the Union.

” 16—Legislature of Arkansas calls a Convention. Col. Hayne, of South Carolina, demands of the President the surrender of Ft. Sumter, and is refused. Missouri Legislature order a convention to consider secession.

” 18—The Legislature of Virginia appropriate \$1,000,000 for the defense of the State.

” 19—Georgia adopts Secession Ordinance by vote of 208 to 89.

” 21—Members of Congress from Alabama resign.

” ”—Jefferson Davis resigns his seat in the U. S. Senate.

” 23—Georgia members of Congress resign.

” 24—U. S. Arsenal, Augusta, Geo., seized.

” 26—Louisiana Legislature passes Secession Ordinance. Vote 113 to 17.

” 29—Kansas, the thirty-fourth State, admitted into the Union.

” 30—North Carolina Legislature submits the question of calling a Convention to the people.

” ”—Revenue cutters Cass, at Mobile, and McClelland, at New Orleans, surrendered to Southern authorities.

Feb. 1—Texas Convention passes Secession Ordinance, to be submitted to the people. Vote, 166 to 7. Louisiana government seize the U. S. Mint and Custom House, at New Orleans.

” 4—Peace Convention of Delegates from eighteen States, assembles at Washington; ex-President Tyler presides.

” ”—Delegates from seceded States meet at Montgomery, Ala., to organize a Confederate Government.

” ”—John Slidell and Judah P. Benjamin, U. S. Senators from Louisiana, resign their seats.

” 9—Jefferson Davis and Alexander H. Stevens elected provisional President and Vice-President of Confederate States, for one year.

” 13—Electoral vote counted. Abraham Lincoln received 180 votes; S. A. Douglas, 12; J. C. Breckenridge, 72; John Bell, 39. Majority required to elect, 157.

” 18—Ft. Kearney, Kansas, seized by Southern forces.

” 23—Gen. Twiggs, U. S. commander in Texas, delivered his army prisoners of war, and U. S. property valued at \$1,200,000 to Confederate authorities.

” 28—Territorial Government organized in Colorado.

Mar. 1—Gen. Twiggs expelled from the army. Peace Congress adjourned.

” 2—Territorial government organized in Dacotah and Nevada.

” ”—Revenue cutter Dodge surrendered to the South, at Galveston, Texas.

” 4—Abraham Lincoln inaugurated 14th regular President of the United States.

” ”—The people of Texas having voted for the Secession Ordinance by 40,000 majority, the Convention declared the State out of the Union.

” 5—Gen. Beauregard takes command of Southern forces, at Charleston.

” 6—Ft. Brown, on the Rio Grande, surrenders to Confederate troops. Federal troops evacuated the fort and sailed for Key West, Florida.

” ”—Confederate Senate confirm nominations of President Davis to his Cabinet, viz.: R. Toombs, of Geo., Sec. of State; C. S. Memminger, of South Carolina, Sec. of Treasury; L. P. Walker, of Ala., Sec. of War; S. R. Mallory, of Fla., Sec. of Navy; J. H. Reagan, of Texas, Postmaster Gen.; J. P. Benjamin, of La., Attorney General.

” 11—The Constitution of Confederate States adopted in convention at Montgomery, Ala.; afterwards ratified by the several States.

” 28—Vote of Louisiana on secession—20,448 for, 17,926 against—made public.

” 30—Mississippi Convention ratifies the Confederate Constitution, by 78 to 70.

Apr. 3—South Carolina Convention ratifies Confederate Constitution, by 114 to 6.

Apr. 4—Virginia Convention refuse to present a Secession Ordinance to the people, by a vote of 89 to 45.

” 7—Intercourse between Ft. Sumter and Charleston stopped by order of Gen. Beauregard.

CHAPTER XXIV.

FIRST PHASE OF THE WAR.

Each side hesitated to strike the first blow; but the South, being best prepared, and to end a suspense that threatened to be hurtful to their cause, opened the conflict by the bombardment of Ft. Sumter. Each now hastened preparations with vigor. Yet so long had been the intimate, friendly relations, that neither could believe in a long, deadly struggle. More than three months passed, during which frequent skirmishes occurred; but the leaders avoided bringing on a general battle. The Southern forces advanced toward Washington, but stopped short of an attack, sending out small bodies to make trial efforts, and get possession of important points.

The battle of Bull Run was the first great, serious combat. The brilliant bravery of Southern troops would have been overcome but for an opportune reinforcement at the decisive moment. The leaders did not feel it safe to pursue the vanquished Federals to Washington. There was a large reserve force there. Thus, if they won a battle they lost the object sought—the capture of the national Capital—and the Union forces, though defeated, gained the most important point—the protection of Washington.

Both sides now recognized the magnitude of the undertaking; the indomitable resolution of their opponents; and the need of thoroughly disciplining their troops, of organizing all branches of the military and naval service, and gathering stores, and distributing forces in accordance with the plan proposed by each.

This period continued until Feb., 1862. The U. S. Navy was increased from 42 vessels at the beginning of the war to about 300 at the close of this preparatory period. These blockaded the South and served for transport and attack. Two series of operations were planned by the U. S. government for the land forces: one in the Mississippi Valley and one in Virginia. In the meantime the Confederate leaders saw that it was impossible to invade the North as they had proposed without long preparation and large armies. They organized with speed but were thrown on the defensive.

Apr. 7—Steamer Atlantic, with troops and supplies for Ft. Sumter, sailed from New York.

” 8—The Federal Government notified South Carolina that provisions would be sent to Maj. Anderson, by force, if necessary. U. S. State Department refused to recognize the Commissioners from the Confederate States.

” 11—Troops are gathered in Washington, and oath of allegiance administered. Confederate Commissioners leave Washington.

Gen. Beauregard demands the surrender of Ft. Sumter. Maj. Anderson refuses.

BOMBARDMENT OF FT. SUMTER.

” 12—This was the real commencement of the Civil War. Batteries were constructed on Morris and Sullivan islands, and Cumming’s Point. The Confederate forces employ Ft. Moultrie, and a floating battery, in addition, against Ft. Sumter.

The South Carolina Legislature appropriate \$500,000 to arm the State.

Ft. Pickens is reinforced by the U. S. government.

” 14—Fort Sumter was reduced to a mass of ruins, its fire silenced, and Maj. Anderson capitulated with the honors of war, and evacuated the fort, sailing for New York.

Gov. Yates, of Illinois, called an extra session of Legislature to meet April 22.

” 15—The President issues a proclamation commanding all in arms against the government to disperse in 20 days; calling also for 75,000 volunteers to defend Washington; and the New York Legislature authorizes the raising of \$3,000,000 for their equipment and support.

The President calls an extra session of Congress, for July 4.

” 16—The governors of Kentucky, Virginia, Tennessee, and Missouri refuse to furnish troops, under the President’s proclamation.

The Confederate government calls for 32,000 men.

” 17—The Virginia Convention, in secret session, adopt a Secession Ordinance, to be submitted to the people in May. The vote was 60 to 53.

Virginia forces sent to seize U. S. Arsenal at Harper’s Ferry, and Gosport Navy Yard, at Portsmouth.

All the military power of the State of Virginia placed under the control of President Davis.

Jefferson Davis issues a proclamation offering Letters of Marque and Reprisal to privateers against Federal commerce.

” 18—U. S. Arsenal at Harper’s Ferry destroyed by Federal troops, to prevent its falling into the hands of the enemy.

Col. Coke, with 400 of 25th Penn. regiment, arrives in Washington for its defense.

” 19—U. S. steamer Star of the West seized at Indianola, Texas.

Massachusetts troops on the way to Washington, attacked by a mob in Baltimore. Troops fired on the mob. Blood shed on both sides.

President issues a proclamation declaring the coast from North Carolina to Texas in a state of blockade.

Military department of Washington covering Maryland, Delaware, and Pennsylvania, put under command of Gen. Patterson.

City Council of Philadelphia appropriate \$1,000,000 to equip volunteers, and support their families.

” 20—Governor of North Carolina seizes U. S. Branch Mint, at Charlotte.

Bridges and railroads in Maryland destroyed by Secessionists, to prevent passage of troops to Washington.

U. S. Navy Yard, at Gosport, and property worth \$25,000,000, destroyed by the Federals in charge, to prevent their falling into the hands of the enemy. Eight vessels of war were destroyed, and one, the Cumberland, was towed out.

Massachusetts troops arrive at Fortress Monroe.

Gov. Curtin calls special meeting of Penn. Legislature, for April 30th.

” 21—Federal government takes possession of Philadelphia and Baltimore railroad.

Senator Andrew Johnson mobbed at Lynchburg, Va.

” 22—U. S. Arsenals in North Carolina and Arkansas seized.

” 24—Fort Smith Arkansas, seized. Cairo, Ill., occupied by Union troops.

Maj. Sibley surrenders 450 U. S. troops to Col. Van Dorn, in Texas.

” 26—Gov. Brown, of Geo., forbids payment of debts to Northern people.

” 27—A steamer at Cairo, loaded with military stores for the South, seized.

Blockade extended to ports of Virginia and North Carolina.

” 29—The Maryland House of Delegates votes against secession, 63 to 13.

Governors Harris of Tennessee and Moore of Louisiana seize government property.

May 1—The Legislature of N. C. and Tenn. prepare for formal secession.

” 3—President Lincoln calls for 82,714 additional troops.

Fourteen companies of Kentucky troops offer themselves to the government, though the Governor had refused a levy.

” 4—Gen. McClellan takes command of the department of the Ohio.

” 6—Virginia admitted into the Confederacy. Tennessee and Arkansas pass Ordinances of Secession.

” 10—A rebel force in St. Louis surrenders to Capt. Lyon.

Gen. R. E. Lee takes command of Southern troops in Virginia.

” 13—Convention called at Wheeling to organize a new State.

” 14—Vessels with stores and property for the South seized at Baltimore.

” 15—Massachusetts offers U.S. Government \$7,000,000 to carry on the war.

” 16—Gen. Scott orders the fortification of Arlington Heights.

” 17—Confederates commence fortifying Harpers Ferry.

” 18—Gen. Butler takes command of Department of Virginia.

” 19—Sewalls Pt. attacked by U S. steamers. Two schooners, with Southern troops, captured.

” 20—North Carolina formally secedes. Kentucky proclaimed neutral.

” 21—Southerners blockade the Mississippi at Memphis.

” 24—Alexandria and Arlington Heights occupied by Union troops.

” 26—Western Virginia voted largely in favor of the Union.

” 27—One hundred slaves fled to Fortress Monroe. Gen. Butler declared them “contraband” of war.

” ”—Two steamers engage the rebel batteries at Acquia Creek.

June 1—Various skirmishes between parties of the hostile armies.

” 3—Senator S. A. Douglas, of Illinois, died.

Battle of Philippi, Va. Union Col. Kelly wounded but victorious. Gen. Beauregard assumed command of Confederate forces at Manassas Junction. Voluntary contributions of northern States in aid of the Government over \$32,000,000.

BATTLE OF BIG BETHEL.

” 10—Three Federal regiments defeated. 16 killed, 41 wounded.

” 11—Skirmish at Romney. Wheeling Convention meets.

” 14—Harper’s Ferry evacuated and burnt by Southern forces.

” 15—Confederate privateer, Savannah, brought, a prize, to New York.

” 17—Wheeling Convention of Unionists determine to make West Virginia an independent State.

” 18—Battle of Booneville, Mo. Gen. Lyon defeats Confederate Gen. Price.

” 20—At Cole Camp, Mo., Union men defeated; at Liberty, Mo., Southerners overcome.

” 23—Forty-eight locomotives of Baltimore and Ohio R. R. destroyed by Southern forces; value, \$400,000.

” 26—President Lincoln recognizes the Wheeling government as that of Virginia.

” 29—Southern privateer, Sumter, escapes through blockade at New Orleans.

July 2—Battle near Martinsburg, Va., Gen. Patterson, Union, and Gen. Jackson, Confederate.

” 3—Southern men captured at Neosho, Mo. Consisted of 94 men.

” 4—Southern forces seize Louisville and Nashville railroad.

” 5—Congress assemble at Washington. President calls for 400,000 volunteers, and \$400,000,000 to put down the rebellion.

Battle of Carthage, between Sigel, Union, and Gen. Jackson, Southern. Gen. Sigel retreated.

” 11—Nine Southern Senators expelled from U. S. Congress.

” 12—Battle of Rich Mountain, Va. Col. Rosecrans, Union, defeated Col. Pegram, taking 800 prisoners and his camp stores.

” 13—Confederates under Gen. Garnett, defeated at Carrick’s Ford, by Gen. Morris. Gen. Garnett killed.

” 15—Col. Stuart, commanding Confederate cavalry, attacks Union forces at Bunker Hill, Va., and is defeated.

” 16—Skirmishes at Millville, Mo., and Barboursville, Va.

” 18—Outposts of the two armies fight at Blackburn’s Ford, on Bull Run, some 20 miles from Washington. Southern troops withdraw.

BATTLE OF BULL RUN.

” 21—This was the first great battle. The Confederate government aims at the capture of Washington. Their forces, under Gen. Beauregard, about 22,000, afterwards strengthened by 6,000, are attacked by Union army under Gen. McDowell, with 28,000 men. It turns in favor of McDowell until arrival of Confederate reinforcement of 6,000, when Union army was totally defeated, the fugitives flying in great disorder to the defenses of Washington. Yet Confederates lost more in wounded, and failed to take the National Capital, the preservation of which was the supreme point to the Union forces. The South gained the *battle*, and the Union gained the *cause*.

” 25—Gen. McClellan takes command of the Army of the Potomac.

Aug. 1—Confederate forces at Harpers Ferry retreat to Leesburg.

” 2—Congress authorized the raising of 500,000 men and \$500,000,000 to suppress the insurrection, providing for the last by tax and tariff.

Gen. Lyon repulses the Confederates at Dug Spring, Mo.

” 5—Commodore Allen bombarded Galveston, Texas.

” 7—Hampton, Va., burned by Southern forces.

BATTLE OF WILSON’S CREEK, MO.

” 10—Gen. Lyon, (Union,) with about 5,000 men, attacked Gen. McCullough, (Confederate,) with over 10,000. Gen. Lyon killed. Federal losses in killed, wounded, and missing, 1,211; Southern losses over 1,600. Union forces retreated to Springfield. McCullough too much shattered to follow.

” 12—President Lincoln proclaimed Sept. 30, a Fast Day.

” 14—Gen. Fremont declared martial law in St. Louis.

” 15—President Davis ordered all northern men to leave the South in 40 days.

” 16—President Lincoln forbids commercial intercourse with the South.

” 23—Cherokee Indians take part with the South.

” 28—Capture of Forts Hatteras and Clark, N. C., by Gen. Butler and Com. Stringham.

” 31—Gen. Fremont proclaims freedom of slaves and confiscates property of disunionists in Missouri. President Lincoln countermands it.

Sept. 1—Southerners defeated at Boonville, Va., and town destroyed.

” 4—Confederate Gen. Polk occupies Columbus, Ky. Southern forces, attempting to cross Potomac at Great Falls, repulsed.

” 10—Gen. Banks attacks Confederate Gen. Floyd, in intrenched camp, at Carnifex Ferry. Gen. Floyd retreats in the night.

” 12—Battle of Cheat Mountain, a Union victory. Col. J. A. Washington killed.

” 18—Secession members of Maryland Legislature imprisoned.

” 19—Arrest of Gov. Morehead and others for treason, in Louisville, Ky.

” 20—Col. Morehead, Union, besieged, at Lexington, Mo., and compelled to surrender with over 2,000 men, after a fight of four days.

Oct. 2—Battle of Chapmanville, Va. Confederates defeated.

” 3—Battle of Greenbriar, Va. Federal success.

” 4—Confederate success at Chicamacomico, Va. Federals retreated.

” 5—Steamer Monticello drives Southern forces from Chicamacomico.

” 7—Confederate Iron Clad Merrimac appears at Fortress Monroe.

” 11—Confederate Commissioners Slidell and Mason escape from Charleston, S. C.

” 16—U. S. troops recapture Lexington, Mo. Battle of Pilot Knob, Mo. Unionists successful.

” 21—Battle of Balls Bluff. U. S. forces under Col. Baker, member of Congress, 1,900 strong, defeated with loss of 918 men. Col. Baker killed.

Gen. Zollicoffer defeated by U. S. troops at Camp Wild Cat, Ky.

” 25—Gen. Kelly gains a battle against Confederates at Romney, Va.

” 29—U. S. naval and military force of 27,000 men and 75 vessels leave Fortress Monroe for the South.

Nov. 1—Gen. Scott retires from command of the Union army. Gen. McClellan appointed Gen. in Chief. Gen. Floyd fails in his attack on Gen. Rosencranz, at Gauley, Va.

” 2—Gen. Fremont superseded by Gen. Hunter in Mo.

” 4—Houston, Mo., taken by Union troops.

” 7—Com. Dupont and Gen. Sherman capture Forts Walker and Beauregard, S. C., and occupy Beaufort and Hilton Island.

Gen. Grant captured Confederate camp at Belmont, Mo., opposite Columbus. Reinforcements arriving he retired.

” 8—Mason and Slidell, Confederate Commissioners to Europe, were taken from British steamer Trent, by U. S. ship San Jacinto. On subsequent demand of the English government they were given up.

” 10—Union soldiers having been killed by inhabitants of Guyandotte, Va., the town was burnt in retaliation.

” 15—The San Jacinto arrived at Fortress Monroe with Slidell and Mason.

” 28—Bombardment of Pensacola, Fla., by Ft. Pickens and U. S. war vessels.

” 27—Gen. McClellan orders observance of the Sabbath in the army.

” 29—Skirmish at Warsaw, Mo. Town partly destroyed.

” 30—Fight at Salem, Mo. Southern forces defeated.

Dec. 3—Congress met at Washington.

” 4—Two Congressmen and Senator Breckenridge of Ky., expelled for treason.

” 5—Naval engagement at Cape Hatteras.

Forces of U. S. army and navy reported very near 700,000 men.

” 9—Confederate Congress declares Kentucky a State in the Southern Confederacy.

” 13—Gen. Milroy defeats Confederate Col. Johnson, at Camp Alleghany.

” 16—Platte City, Mo., burnt by Southern forces.

” 17—More than 20 vessels, filled with stone, sunk at the entrance of Charleston and Savannah harbors.

” 18—Gen. Pope captured 1,300 Southerners and 1,000 stand of arms at Millford, Mo.

” 31—U. S. navy increased from 42 vessels at beginning of the war to 246, of all kinds, up to this date.

1862.

Jan. 1—Mason and Slidell leave Ft. Warren, Boston Harbor, for England.

” 2—Success of Unionists on Port Royal Island, near Charleston, S. C.

” 4—Gen. Milroy defeats Confederates at Huntersville, Va.

” 7—Confederate defeat at Romney. U. S. troops capture stores in Tucker Co., Va.

” 8—Union victory by Gen. Palmer at Silver Creek, Mo.

” 10—Humphrey Marshall defeated by Union troops in Kentucky.

Senators Johnson and Polk of Mo., expelled from the U. S. Senate.

” 11—Simon Cameron, U. S. Sec. of War, resigned; E. M. Stanton appointed.

Naval engagement on the Mississippi near the mouth of the Ohio; Union vessels superior.

” 12—125 vessels and 15,000 troops, under Gen. Burnside, sail for the South.

” 18—Ex-President Tyler dies.

” 19—Union victory at Mill Spring, Ky., by Gen. Schoepf over Gen. Zollicoffer and Gen. Crittenden. Much spoil taken; Gen. Zollicoffer killed.

” 27—Bishop Ames and Gov. Fish of New York appointed to visit prisons in the South, to look after the interests of Union prisoners. Confederate authorities refuse to receive them.

CHAPTER XXV.

THE SECOND PHASE OF THE WAR.

The previous period, though abounding in battles, so-called, were really skirmishes of detached bodies without any well defined plan. It covered much of the surface of all the Border States, but especially Virginia and Missouri, and was a trial of bravery and strategy in which both parties learned how to fight, and of what metal their opponents were made.

The Second Period covered about eleven months—from the advance of the Federal armies on the South in West and East, in Feb., to the close of the year.

This period is defined in its commencement, by the surrounding of the southern territory on nearly all sides by the Union forces, both naval and military; and the inauguration of aggressive movements both by sea and land; and in its close by the failure of the two southern Generals, Bragg in

the West, and Lee in the East, in the endeavor to break through this beleaguering line. It was an immense and desperate conflict.

In the West it began by the attack of Grant on Fts. Henry and Donelson, followed up by the battle of Pittsburg Landing, and various other operations in Tennessee and Mississippi; the advance of McClellan on Richmond, and his campaign in the Peninsula, his failure and return to Washington; the strengthening of the Southern Army, and the advance of Lee northward into Maryland and his defeat there. The disasters to the Union army in Virginia served to check the successes of the Western Army under Grant, Sherman, Buell, Rosecranz and others; the Confederate forces in the West were increased under Bragg, who checked the advance of U. S. troops eastward at Chattanooga, and he himself assumed the offensive, by invading Kentucky. He was compelled to retreat again to Chattanooga. Thus there was an alternation of great successes and great reverses on both sides.

The Union Army commenced with about 600,000 men, and the Southern with about 400,000. They both largely added to these during the campaign.

Meanwhile the navy was not idle. A foothold was gained in South Carolina, and in North Carolina, as well as at Norfolk, Virginia, the mouth of the Mississippi was opened by Admiral Farragut, and New Orleans captured. The compression of a vast naval and land force was applied in all directions, even west of the Mississippi. Missouri had been quieted by driving the organized forces into the border of Arkansas, and inflicting on them a heavy blow at Pea Ridge. This, however, was not followed up; the disasters to the Union cause in Virginia, and the rebound of the Confederates in East Tennessee, requiring concentration.

The South had shown the most determined bravery, and great steadiness in disaster; and activity, and ability in making the most of circumstances. The speed with which she collected other levies and armies and used them within the campaign greatly impressed the authorities and people of the Federal government. They were convinced that the blacks left at home to till the ground, or employed in the fortifications and other labor of the war, contributed much to the strength of the South; enabling them to concentrate all their resources on a given point with extreme rapidity, and to use all their best fighting material. After so vast an outlay, to see their immense armies defied and the Northern States threatened with invasion was discouraging.

Hitherto slavery had not been interfered with much, in deference to the sentiment in the Border States, and the views of the democratic party. The Union administration determined to weaken the South by abstracting as much as possible of the slave element from it and to use it themselves. The issue of the Proclamation of Emancipation marks a Third Phase of the War.

1862.

Feb. 3—The Federal government decides to treat crews of privateers taken in arms, not as pirates, but as prisoners of war.

” 5—Jesse D. Bright, of Indiana, expelled from the U. S. Senate.

” 6—Com. Foote, acting in concert with Gen. Grant, advances up the Tennessee river in Ky., and captures Fort Henry.

” 8—Gen. Burnside and Com. Goldsborough capture forts, forces and war material on Roanoke Island, in Albemarle Sound, N. C.

” 10—Gunboats of Confederate government taken or destroyed.

” 12—Gen. Grant invests Ft. Donelson, on Cumberland river, Ky.

” 13—Gen. Curtis advances to Springfield, Mo.

U. S. Congress determine to construct 20 iron clad gunboats.

” 15—Bowling Green, Ky., evacuated by Southern forces.

” 16—Gen. Grant captures Ft. Donelson, with 13,300 prisoners.

” 18—Gen. Curtis drives Confederates out of Missouri into Arkansas.

Confederate Congress assemble at Richmond Va.

” 19—Jefferson Davis and A. H. Stevens elected permanent President and Vice-President of Confederate States for six years.

” 21—Defeat of Union forces at Clarksville, New Mexico.

” 23—Nashville, Tenn., occupied by Union forces.

” 27—Columbus, on the Mississippi, in Ky., evacuated by Confederates.

Mar. 2—Severe encounter between Union gunboats and Confederate battery at Pittsburg Landing, Tennessee. Union success.

” 3—Gen. Beauregard assumes command of Southern army in Mississippi.

” 6-8—Gen. Curtis defeats Gen. McCullough at Pea Ridge, Ark. Curtis’ army 22,000, McCullough’s 35,000. McCullough killed.

” 9—First trial of Monitors. The formidable Merrimac, a Confederate iron clad vessel, conquered by the Monitor.

” 11—Gen. McClellan’s command confined to the army of the Potomac.

” 12—Com. Dupont takes possession of Jacksonville, Florida.

” 13—Confederates evacuate New Madrid, Mo., in haste, leaving \$1,000,000 of military stores.

” 14—Newburn, N. C., captured by Gen. Burnside. Immense stores taken.

” 18—Confederate fortifications at Acquia Creek, Va., evacuated.

” 23—Battle of Winchester, Va. Southern forces defeated.

” 28—Fight at Union Ranch, New Mexico. Union troops 3,000, Texans 1,100. Result undecided.

Apr. 6-7—Battle of Pittsburg Landing, or Shiloh. First day’s battle fought by Beauregard and Johnston, Confederate Generals, with 40,000 available troops, by Gen. Grant with 33,000. He was supported by gunboats in the Tennessee river. Attack and defense desperate, and the slaughter fearful. The second day Beauregard had no more than 20,000 effective men. Grant was reinforced by Buell, and his effective force was 45,000. It was great honor to Union troops not to recognize defeat on the 6th, and highly creditable to Confederates to make a desperate stand and inflict an immense loss on Federals on the 7th. They were almost annihilated but retreated without immediate pursuit.

” 8—Island No. 10, Mississippi river, captured.

” 11—Ft. Pulaski captured by Gen. Hunter, commands entrance to Savannah, Geo. Gen. Mitchell occupies Huntsville, Ala.

” 12—Gen. Mitchell captures 2,000 prisoners at Chattanooga, East Tennessee.

” 16—Slavery abolished in the District of Columbia, by U. S. Congress.

” 18—Gen. McClellan’s advance attacked on the Peninsula, Va.

” 19—Successes of Union Gens. Burnside and Reno, in North Carolina.

” 25—Com. Farragut, passing the forts, captures New Orleans.

” 28—Forts Jackson and St. Philip, at mouth of Mississippi below New Orleans, surrender.

” 29—Gen. Mitchell defeats Confederates at Bridgeport, Ala.

May 1—Union cavalry captured at Pulaski, Tenn.

” 3—Yorktown evacuated by Southern troops. Occupied by McClellan.

” 5—Battle of Williamsburg, Va. Lasts all day. Unionists successful.

” 7—Southern Gen. Lee attacks McClellan’s army but is repulsed.

” 8—Union Gen. Milroy repulsed at McDowell’s, Va., after a five hour’s fight.

” 9—Pensacola, Fla. evacuated by Southern forces.

” 10—Norfolk, Va., occupied by Union forces. The Merrimac, Gosport Navy Yard, and vast quantities of stores destroyed by retreating Confederates.

” 15—The Agricultural Department created by Congress.

” 12—Natchez, on the Mississippi river, surrendered to Farragut.

” 17—Union forces drive Confederates over the Chickahominy, Va.

” 24—Southern success at Front Royal, Va., over Col. Kenley.

” 25—Gen. Banks, defeated at Winchester, Va., retreats across the Potomac.

” 27—Confederates defeated at Hanover, Va.

” 30—Union troops occupy Corinth, Mississippi.

” 31—Battle of Fair Oaks. Union troops repulsed.

June 1—Battle of Fair Oaks renewed. Southern forces repulsed with heavy loss.

” 6—Gunboats capture Memphis, Tenn., and Confederate vessels.

” 8—Battle of Cross Keys, Va. Gen. Fremont defeats Stonewall Jackson.

” 14—Union forces defeated on James Island, near Charleston, S. C.

” 18—Union troops occupy Cumberland Gap, Tenn.

” 19—Congress prohibits slavery in the Territories.

” 26—Six days fight before Richmond commenced at Mechanicsville. Union forces repulsed.

” 27—Bombardment of Vicksburg. Gen. Fremont relieved of command. Battle before Richmond renewed.

” 28—Severe battles before Richmond; enemy repulsed at night. Unionists fall back.

” 29—Battles of Peach Orchard and Savage’s Station, Va. Federal repulse.

” 30—Battle of White Oak Swamp. McClellan continues to retreat toward James river. Confederates repulsed with loss.

July 1—Battle of Malvern Hill. Southern forces repulsed. End of 6 days fight.

President Lincoln calls for 600,000 volunteers.

Internal Revenue Bill passed Congress. Polygamy forbidden in the United States.

Union Pacific Railroad chartered by Congress.

” 7—Fight at Bayou Cache, Ark. Gen. Curtis, Union, defeats Gen. Pike, Southern.

” 9—Hamilton, N. C., captured by Federal troops.

” 11—Southern Gen. Morgan enters Glasgow, Ky. Gen. Halleck appointed Commander-in-Chief of the U. S. armies.

” 13—Southern forces capture Murfreesborough, Tenn. Stores and prisoners taken.

” 17—Cynthiana, Kentucky, captured.

” 18—Southern raid into Indiana. Gen. Twiggs died.

” 22—Siege of Vicksburg abandoned by U. S. forces.

This month is generally disastrous to eastern and western Union armies. Confederate armies become strongly aggressive, and advance north into Ky., and toward Maryland.

Aug. 3—Gen. Jeff. Thompson, Confederate, defeated near Memphis, Tenn.

” 4—U. S. Sec. of War ordered a draft of 300,000 men to serve for nine months.

” 5—Battle of Baton Rouge, La. Gen. Breckinridge defeated.

” 10—Battle of Cedar Mountain. Gen. Jackson fails to drive Gen. Banks.

” 16—Gen. McClellan evacuates the Peninsula.

” 21—Gen. Sigel obtains an important and bloody advantage on the Rappahannock.

” 26—Confederate Gen. Ewell drives Unionists from Manassas, Va.

Union expedition up the Yazoo river, Mississippi, is successful.

” 27—Gen. Pope defeats Gen. Ewell at Haymarket, Va.

” 28—Battle of Centreville. Gen. Jackson repulsed.

” 29—Battle of Groveton, near Bull Run, Va. Confederates repulsed, but renewed the fight next day and Gen. Pope withdrew.

” 30—Battle near Richmond, Ky. Union Gen. Nelson defeated with heavy loss.

” 31—Battle of Weldon, Va., a Union victory. The general operations of this month by the main armies east and west largely in favor of the South, notwithstanding heavy losses inflicted and successes gained in detached engagements by the U. S. troops. The armies under Lee and Bragg pressed on northward with incredible vigor. No repulses or defeats could stop their headlong rush.

Sept. 1—The last of Gen. Pope’s battles in Va., near Washington. Two of his generals were killed, Kearney and Stevens. The enemy retired, leaving their dead and wounded. In 6 days Pope had lost near 10,000 in killed and wounded.

Battle at Britton’s Lane, Tenn. Confederates fled.

Union Army evacuate Lexington, Ky. Fight at Jackson, Tenn.

” 2—McClellan put in command of army for the defense of Washington.

” 5—Confederate army cross the Potomac to Frederick, Maryland.

Attack on Union troops at Washington, N. C. It is repulsed.

” 6—Col. Lowe recaptured Clarksville, Tenn.

” 8—Gen. Lee issues a proclamation to the Marylanders.

” 9—Col. Grierson overcomes Southern forces at Coldwater, Miss.

Union forces repel the enemy at Williamsburgh, Va.

Fredericksburg, Va., evacuated by Southern forces.

” 10—Great fears of invasion in Pennsylvania and Ohio. Philadelphia and Cincinnati begin to prepare for an attack.

” 11—Ganby, Va., Maysville, Ky., and Bloomfield, Mo., taken by Southern forces.

” 12—Charleston, S. C., bombarded and partially burnt. Fight on Elk river, Va., and at Middletown, Maryland.

” 13—Harper’s Ferry, Va., besieged. It surrendered on the 15th with 11,500 men.

” 14—McClellan engages Lee’s army at South Mountain, Md. Lee retired toward the Potomac. The invasion of the North was stopped, for this time, in the East.

” 16—Munfordsville, Ky., captured by Confederates and 4,000 prisoners taken.

” 17—Lee unwilling to give up his plan of invasion, makes another stand at Antietam creek, and a great battle was fought. Near 100,000 men on each side. The result was indecisive, the losses nearly equal, both in the neighborhood of 13,000. Lee retreated across the Potomac in the night, and Harper’s Ferry was evacuated.

” 20—Gen. Rosecrans defeats the Southerners with great loss at Iuka, Miss.

” 22—President Lincoln issues an Emancipation Proclamation, declaring all the slaves free, unless the Southern States discontinued the war within 100 days.

” 27—U. S. garrison at Augusta, Ky., surrender after a very gallant fight.

Oct. 3—Battle of Corinth, Miss. Confederates defeated with great loss.

” 8-9—Battle of Perryville, Ky. Southern army having been arrested in its advance and obliged to retreat before Gen. Buell, turned on his advance and inflicted a severe blow, but are forced to resume their retreat.

” 10—Confederate cavalry, under Stuart, make a raid on Chambersburg, Penn. They capture 500 horses and many stores and hastily return to Virginia.

” 14—One hundred thousand dollars sent to Sanitary Commission from San Francisco.

” 15—Battle near Richmond, Ky.

” 19—Gen. Forrest defeated by Union forces, near Gallatin, Texas.

” 22—Southern defeat at Maysville, Ark., by Gen. Blunt.

” 24—An English steamer bringing military stores to the South, captured.

” 28—Confederates defeated by Gen. Herron, at Fayetteville, Ark.

” 30—Gen. Rosecrans supersedes Buell in Kentucky. Gen. Mitchell, the astronomer, died in S. C.

Nov. 5—Gen. McClellan relieved of command in Va. by Gen. Burnside.

Attack on Nashville by Confederates. They are repulsed.

” 11—Southern defeat at Garrettsburg, Ky., by Gen. Ransom.

Exchange of prisoners effected.

” 16—President Lincoln enjoins on soldiers in camp and garrison observance of the Sabbath.

” 17—Cavalry fight near Kingston, N. C. Southerners beaten.

” 22—All political State prisoners released by U. S. government.

” 25—Newbern, N. C. attacked by Southern troops. They soon retire.

” 28—Battle of Cane Hill, Ark. A Union victory.

Dec. 1—The Pittsburg Battery, captured on the Peninsula, retaken by a Union force sent from Suffolk, Va.

” 5—Battle of Coffeeville, Miss. Southern loss was heavy.

” 6—Gen. Banks’ expedition for the South sailed for New Orleans.

” 7—At Prairie Grove, Ark., Gens. Blunt and Herron defeated Confederates.

Confederate Gen. Morgan captured several regiments of Western troops.

” 8—Steamer Lake City destroyed by Southerners.

” 9—U. S. troops burn Concordia, on the Mississippi.

” 13—Battle of Fredericksburg. A severe repulse to the Union army.

Gen. Foster makes a cavalry raid into the interior of N. C., a success.

Commodore Parker destroys Confederate salt works, five schooners and two sloops.

” 17—Gen. Banks captures Baton Rouge, the capital of Louisiana.

” 19—Confederates retake Holly Springs, Miss., and large stores with 4,000 bales of cotton.

” 26—Indians, engaged in the Minnesota massacre, hung—38 in number.

” 27—Vicksburg attacked by Gen. Sherman and gunboats, unsuccessfully.

” 31—Battle of Murfreesboro, or Stone River, commenced with a Federal repulse.

The Monitor that conquered the Merrimac, foundered at sea.

Act of Congress admitting West Virginia into the Union as a sovereign State. This was to take effect 60 days after the President’s proclamation making this announcement.

CHAPTER XXVI.

CAMPAIGN OF 1863.

The preliminary Proclamation of Emancipation, issued Sept. 22d, 1862, was not to take effect for 100 days, or until Jan. 1st, 1863. Meanwhile the final details of the great operations, undertaken on both sides during 1862, were wound up. The bold efforts of the South, in the East and West, to transfer the war into the North, and indemnify themselves for the strict blockade of the coast by drawing supplies from the enemy, had resulted in defeat and withdrawal; not unaccompanied with booty, especially in the west, where Bragg’s train of supplies was said to have been 40 miles long. The southern people had failed in the main point, yet they had gained much. Federal reverses in the east had stopped the victories in the west in mid career, both by withdrawing from those armies to the east, and adding to the

Confederates from the same region. Grant and Sherman failed at Vicksburg, and Buell at Chattanooga.

Yet these reverses to the Union arms served to stimulate the north, and to demonstrate the energy, resources, and indomitable resolution of the National government, and to undeceive the South as to the real sentiments of the great body of the Democratic party from which they had hoped aid on an invasion in force. Several of the European Powers, who would have liked to support the South, seeing the formidable character of the General Government, drew back in fear. The South might have foreseen that her cause was really hopeless; but she was too American not to feel an unconquerable resolution to carry her point or perish. She strengthened her armies and prepared for another invasion.

The Federal armies were now (Jan. 1863,) about 800,000 strong; her navy consisted of near 450 vessels, a large number being iron-clads. The great events of the campaign were Lee's invasion of Pennsylvania and his retreat after the battle of Gettysburg, and Grant's success at Vicksburg and Chattanooga. The resolution of the South, enveloped in the embrace of so mighty an antagonist, was wonderful; the unfaltering spirit, and readiness of the northern people to furnish whatever was required for success was still more so. The whole South, at least every State, was the theater of many contests of more or less importance; but the main interest centered on the Mississippi river, at Chattanooga and its vicinity, and on Gen. Lee's army in Virginia or Pennsylvania. It was a contest of giants; yet, struggle as she might, the South was doomed. At the end of this year she was still strong, her armies were veterans, her spirit unbroken. The Federal Government had gained much, but it was step by step, inch by inch; and, in some parts, as in Virginia, what had been gained many times over, in territory, had been as often lost. Her general gain over the Confederate States lay most largely in the fatal process of exhaustion to which the vast operations of the Federal government forced the South. Increase of numbers made the battles more bloody and wasteful of life. The three leading events in this campaign—the capture of Vicksburg, (the battle of Chickamauga was a Confederate victory, but balanced by that of Chattanooga,) the battle of Gettysburg, and the battle of Chattanooga—were all decisive against the Confederates, yet leaving her strength for a long and vigorous contest of more than a year and a half.

1863.

Jan. 1—The year opened with a Confederate success at Galveston, Texas. An attack by sea and land resulted in the capture of 300 troops, the destruction of one vessel with its crew, and the capture of another, the Harriet Lane. Com. Renshaw was blown up with his vessel.

Confederate defeat at Lexington, Tenn., after an obstinate fight.

Proclamation of Emancipation issued by President Lincoln.

Long, but indecisive battle of Stone River. Federal killed and wounded, 8,000.

” 3—Union army withdraws from before Vicksburg. Southern army retreats at Murfreesborough, Tenn.

” 7—Springfield, Mo., successfully defended by Unionists.

” 9—20,000 prisoners exchanged.

” 11—A combined attack on Fts. Hindman and Arkansas Post by gunboats and land forces, resulted in Union success—over 7,000 prisoners.

” 12—Three Federal transports and a gunboat captured on Cumberland river.

” 13—The Southern steamer, Florida, escapes from Mobile.

” 17—\$100,000,000 issued by the U. S. government in notes to pay the army.

” 20—Blockading vessels captured by Confederates, at Sabine City, Texas.

” 22—Attack on Vicksburg resumed. Gen. Porter dismissed from U. S. army.

” 25—A regiment of colored soldiers organized at Port Royal, S. C.

” 26—Gen. Hooker succeeds Gen. Burnside, in command of the Union Army of the Potomac, and Gens. Sumner and Franklin are relieved from duty.

The Confederate war steamer, Alabama, destroys one vessel and captures another.

Feb. 1—A second unsuccessful gunboat attack on Ft. McAllister.

” 5—Destruction of transports on Red River, La. Ft. Donelson repels Southern troops.

” 12—The Florida captures the Union merchant vessel, Jacob Bell.

” 13—The iron-clad, Indianola, runs the blockade at Vicksburg, and is captured.

” 18—Vicksburg bombarded by gunboats—ineffectually.

” 21—The Alabama, a Confederate cruiser, destroys two vessels on the African coast.

” 25—The Bureau of Currency and National Banks established by U. S. Congress.

” 26—The Cherokees return to the Union, and abolish slavery.

Twenty-eight cars, with stores, destroyed by Confederates, in Kentucky.

” 28—Confederate iron-clad, Nashville, destroyed in Ogeechee river, Geo.

Mar. 1—Third fruitless Union attack on Ft. McAllister, Geo.

” 2—U. S. Generals increased to 358.

” 3—Congress authorizes loan of \$900,000,000. These are called *ten-forty's*.

The President authorized to suspend the writ of Habeas Corpus.

U. S. Assistant Treasurer provided by act of Congress.

Territorial government organized in Idaho.

Two U. S. gunboats destroyed.

” 5—Van Dorn (Confederate) captures Springfield, Tenn., and many prisoners.

” 6—Van Dorn captures a considerable Union force at Franklin, Tenn.

” 7—Gen. Minty captures a Confederate cavalry force at Unionville, Tenn.

” 10—Colored troops captured Jacksonville, Florida.

” 14—Port Hudson, Mississippi river, attacked by the Union gunboat fleet under Com. Farragut. The flag ship disabled and burnt.

” 17—Gallant and successful exploit of Union cavalry at Kelly’s Ford, Va.

” 19—An English steamer with arms for the South destroyed off Charleston.

” 20—Defeat of Morgan (Confederate) at Milton, Tenn.

” 25—Two Union vessels lost before Vicksburg.

” 28—Confederate steamer Iris captured near Charleston, S. C.

Apr. 1—Admiral Farragut passes the batteries of Grand Gulf.

Great scarcity of many things in the Confederacy from the strictness of the blockade, and extreme depreciation of Confederate money. No cotton could be sold.

” 7—An attack on Fort Sumter by nine Union iron clads. They are worsted.

The Alabama Confederate cruiser captures the U. S. ship Morning Star.

” 10—Two Union gunboats destroyed on Cumberland river.

Van Dorn repulsed by Union General Granger, at Franklin, Tenn.

” 16—Com. Porter runs the batteries at Vicksburg successfully.

” 17—Gen. Banks vanquished Southern troops at La Teche and Grand Lake, La.

” 22—The Queen of the West captured on Grand Lake. Grigsby, Confederate, surprised at McMinnville, Tenn. Banks occupied Opelousas and Washington, Miss.

” 23—Gen. Hunter informs Confederate authorities that colored soldiers must be treated as other prisoners of war, on pain of retaliation.

” 24—Union defeat at Beverly, Va., and victories at Weber Falls, Ark., and on Iron Mountain Railroad, Mo.

May 1—Gen. Grant defeated the Southern troops at Port Gibson.

Gen. Pegram, Confederate, defeated at Monticello, Ky.

A third defeat of Southern troops, at South Quay, Va.

Unionists defeated at La Grange, Ark. Battle of Chancellorsville, Va., begins.

” 2—Col. Grierson, of U. S. army, finished a daring and successful raid through the interior of Miss. Traveled 800 miles in 16 days. Battle of Chancellorsville continued. It was a Federal repulse. Loss each side 15,000.

” 3—Capture of Grand Gulf, Miss., by Admiral Porter.

” 2—Vallandigham arrested in Ohio for treason. He was sent South. 100 Secessionists of St. Louis sent South for treason.

” 10—Stonewall Jackson, an able and brilliant Southern general, died of wounds received in battle.

” 11—Gen. Logan, Union, defeats Gen. Grigg at Farnden’s Creek, Miss. Each had about 5,000 men.

” 12—Gen. McPherson captured Raymond, Miss., from Confederates.

” 13—Yazoo City, and \$2,000,000 property, captured by Union gunboats. Gen. Grant defeats Confederate army and captures Jackson, Miss.

” 16—Gen. Grant defeats Pemberton at Baker’s Creek, Miss., with heavy loss. Each had about 25,000 men. Pemberton lost 4,000 men and next day 2,000 more.

” 18—Grant commences siege of Vicksburg, Miss.

” 26—Gen. Breckenridge, Confederate, suffered defeat in Tennessee.

” 29—An immense train arrives in Gen. Banks’ lines near Port Hudson: 600 wagons, 3,000 horses and mules, 1,500 cattle, 6,000 negroes. Gen. Banks fails in several attacks on Port Hudson.

June 3—A brilliant raid by a colored regiment in South Carolina.

” 11—Forrest, of Confederate cavalry, defeated at Triune, Tenn.

” 15—President Lincoln calls for 120,000 militia, to repel Lee’s invasion of Penn.

” 18—About 100,000 Southern forces enter Penn., near Chambersburg.

” 20—West Virginia admitted as a State into the Union. Missouri Legislature abolishes slavery.

In this month the great events of the campaign, the taking of Vicksburg and opening the Mississippi river, and the failure of Gen. Lee’s invasion by his loss of the battle of Gettysburg, are rapidly approaching the grand crisis.

July—The first days of this month formed the crisis of the war.

” 3—Gen. Lee, with 100,000 men, was defeated by Gen. Meade at Gettysburg, Pa., with about equal numbers. Lee retreated into Virginia. The Union losses at Gettysburg were 23,000. Lee had lost in his 17 days in the Free States 60,000 men altogether.

” 4—Vicksburg surrendered to Gen. Grant, after a siege of 41 days. In the battles immediately preceding, under Grant, and in this siege and capitulation, the South lost near 50,000 men. Grant’s losses were about 9,000.

Gen. Prentice defeated a greatly superior force at Helena, Ark.

” 8—Port Hudson surrenders to Gen. Banks, with 7,000 men.

Morgan, of Confederate cavalry, invades Indiana and Ohio with 5,000 men. He is captured before he can return.

” 13—Great riot in New York city.

” 17—Gen. Sherman defeats Johnson, and occupies Jackson, Miss.

” 20—Two successful Union cavalry expeditions, in N. C. and Va.

” 23—Battle of Manassas Gap. Unionists defeat a superior force.

A Confederate victory at Richmond, Ky.

” 31—Confederates beaten in Kentucky.

Aug. 1—Two cavalry battles in Va.

” 4—Disastrous loss of U. S. steamer Ruth, on the Mississippi, by fire.

” 12—Gen. Gilmore bombarded Ft. Sumter and Charleston most of the month.

” 17—Successful cavalry raid into Mississippi to destroy stores.

” 20—Lawrence, Kansas, attacked and destroyed by guerillas.

A guerilla war was carried on very largely this month, both east and west of the Mississippi.

Sept. 1—Knoxville, Tenn., captured by Gen. Burnside.

Gen. Blunt defeated the Confederates, and captured Ft. Smith, Ark.

” 6—Fts. Wagner and Gregg captured by Gen. Gilmore, Charleston, S. C.

” 8—Cumberland Gap taken by Gen. Burnside. 2,000 prisoners.

” 10—Little Rock occupied by Union forces.

” 19-20—A terrible battle is fought at Chickamauga (in Indian the “River of Death,”) in which Gen. Rosecrans with some 50,000 to 60,000 troops is severely defeated by Bragg, with about 45,000. Federal losses about 15,000. Yet Bragg did not capture Chattanooga.

” 22—Severe battle at Madison Court House, Va. Union victory.

” 28—Gen. Burnside repulses Confederates at Knoxville, Tenn.

Oct. 3—Union troops throw Greek fire into Charleston, S. C.

” 5—Chattanooga bombarded by Bragg.

” 9—Defeat of Wheeler’s Confederate cavalry, in Tenn.

” 14—Battle at Bristoe Station, Va. Favorable to U. S. troops.

” 16—Gen. Grant takes command of the Western armies.

” 17—The President calls for 300,000 more troops.

” 21—A battle in Alabama, in Mississippi, and in Tennessee.

” 27—Battle of Brown’s Ferry, near Chattanooga. Confederates beaten.

” 28—Gen. Hooker takes Lookout Mountain.

” 31—Gen. Hooker gains the battle of Shell Mound.

Nov.—The main interest of the month gathers about the great and decisive battle of Chattanooga, between Gens. Grant and Bragg. All the forces to be spared on either side were concentrated here. Chattanooga has been called, “The back door of the Confederacy.”

Nov. 5—Chattanooga bombarded by the Southern forces.

Gen. Avery gains a Union victory at Lewisburg, Va.

” 6—The North is thrilled with indignation at barbarities ascertained to have been perpetrated in Southern prisons.

” 7—Gen. Meade drives Southern army across the Rappahannock.

” 11—The British government makes known an intended invasion of the North from Canada, by Confederates.

” 15—Gen. Banks takes Corpus Christi, Texas.

” 17—Charleston continues to be shelled.

Gen. Longstreet detached from Confederate army at Chattanooga, with 15,000 men, to attack Burnside.

” 19—National Cemetery consecrated, at Gettysburg.

” 23-26—Battles of Chattanooga and Lookout Mountain. Southern forces about 60,000, Grant’s about 80,000. Confederate losses 10,000, Union, 5,616. It was a blow never recovered by the Confederacy.

” 28—Gen. Longstreet attacks Knoxville and is repulsed with loss.

CHAPTER XXVII.

CAMPAIGN OF 1864.

There was a lull, for a time, in the tempest of war. The Confederate forces had lost ground that they could hardly hope to regain. The Mississippi river and Eastern Tennessee, both of supreme importance to the Confederacy, were in possession of the Union armies, which grew ever stronger. They were now about 1,000,000 men, and the navy had increased to over 600 vessels. This force was soon put in vigorous hands, that gripped fast what they once held. The misfortune of many commanders and continual changes, from political rather than military considerations, began to be well understood. Grant had gained so uniformly when others had failed, he was recognized as so tenacious and unwearied, that he received and held the confidence of the people and the government. This was a point of great importance for shortening the war; for the Southern people were still resolute, had still a vast country, were on the defensive in a smaller region than before, and could resist more effectively with a smaller army. It still made a most gallant and determined resistance which the vast resources of the national government did not enable them to overcome for a year and a half. The country was still covered with detached bodies of troops. A desultory war was maintained where strong armies failed to hold the ground, or were concentrated at a few points. The great movements were in Virginia and Georgia. The secondary in Tennessee, in Mississippi, and Texas.

It took a year to break the will of the Southern people after they were really conquered. This period covers the year 1864; 1865 furnishes only the dying struggles of the Confederacy, already mortally wounded.

1864.

The bombardment of Charleston continued during the preceding month. Some cavalry movements were made, the President of the U. S. offered amnesty to all who would take an oath of allegiance, and Gen. Butler announced that the Confederate government refused to receive any more supplies for Union prisoners from the North.

Jan. 7—Three blockade runners captured.

” 11—Two more were destroyed, making 22 in a few months.

” 25—Mr. Vanderbilt, having presented a steamer worth \$800,000 to the U. S. government, received the thanks of Congress.

Feb. 1—The President of the U. S. ordered a draft of 500,000 men.

” 5—Two English steamers, with supplies for the South, captured.

” 9—Cotton worth \$700,000 burned at Wilmington, N. C.

” 20—Negro troops cover the retreat of a defeated white Union force at Olustee, Fla.

” 28—The large armies being broken up or concentrated, and the lines of communication very much interrupted, many Union cavalry raids, aiming to break the lines of communication by railroad completely, to lay waste the country, and to free the negroes, who were raising supplies for the Southern armies, in the far interior, were undertaken. That of Sherman to Meridian, in Miss., and of Grierson and Smith, and many smaller ones, were executed during this month. The damage to railroads and the supplies destroyed were incalculable. 18 blockade runners and other vessels bringing supplies to the South were destroyed during the month.

Mar. 2—Gen. Grant made Lt. General; the only one who had reached that dignity since Gen. Washington—Gen. Scott being Lt. Gen. only by brevet.

” 12—Gen. Grant made Commander-in-chief of the U. S. armies.

” 15—The President of the U. S. calls for 200,000 more men.

” 25—Confederate Gen. Forrest makes three assaults on Paducah, Ky., with loss of 1,500 men, in vain.

” 28—A severe defeat inflicted on Southern forces at Cane River, La.

Apr. 4—Gen. Marmaduke defeated by Gen. Steele, Unionist, at Little Missouri, Ark.

” 8—Gen. Banks suffers reverses on the Red River, and retreats with loss.

” 12—Gen. Forrest takes Ft. Pillow and massacres the garrison, many being negroes.

” 21—Salt works in North Carolina destroyed—value \$100,000. As salt was indispensable to army operations, the utmost effort was made to ruin as many as possible.

” 23—Governors of Western States offer the U.S. government 85,000 men for 100 days. President accepts them.

May 2—400 Union prisoners are brought to Annapolis nearly starved.

” 4—Gen. Grant crosses the Rapidan in Va. and commences operations in the Wilderness. He, with 140,000 men, confronts Lee, who has 60,000.

” 5—Fighting in the Wilderness for two days without decided result. Costs Grant 30,000 (5,000 were prisoners) and Lee 10,000. Lee was intrenched and familiar with the ground, which was highly unfavorable to the Union army.

” 6—Gen. Sherman confronts Gen. Joe Johnson near Chattanooga. Sherman has near 100,000; Johnson 60,000.

” 7—Lee retreats toward Spottsylvania Court-House. Union army follows, fighting.

To this date 150,000 Southern soldiers had been made prisoners during the course of the war.

May 8—Battle of Spottsylvania; result indecisive.

” 10—Battle of Spottsylvania continued. Still indecisive. Losses to each side 10,000 men.

” 12—Lee and Grant fight again, without victory by either.

” 13—Sheridan destroyed Lee’s depot of supplies in his rear, at Beaver Dam.

” 15—Sherman drives Johnson from Resaca after two days’ fighting.

” 21—Lee is flanked at Spottsylvania, and retires to the North Anna.

” 23—Morgan (Confederate cavalry) enters Ky. with 4,000 men.

” 25—Sheridan rejoins Grant, after a brilliant series of daring deeds in the rear of Lee. Gen. Stuart, a very able Confederate cavalry leader, is killed in this raid.

” 27—Grant again flanked Lee, crossing the Pamunky to Hanover town.

June 1—Battle of Cold Harbor, north of, and near, Richmond. It was fought with the utmost bravery and obstinacy, but gained no more decisive end than the destruction of men and material involved. This was very severe on Lee, from the smaller number he had to fall back on.

” 7—Abraham Lincoln renominated for the presidency of the U. S.

” 14—Gen. Polk (a Southern bishop) killed.

” 15—An unsuccessful assault for three days on Petersburg. Union losses 10,000 men.

” 18—To this time Grant had lost 64,000 men—Lee 38,000 during this campaign.

” 19—Steamer Kearsarge sinks the famous Alabama, on the coast of France.

” 20—Petersburg strongly reinforced by Lee.

” 27—Sherman, pushing Johnson at Keneshaw, meets a severe repulse. In one month he had driven Johnson 100 miles, fought six battles, and killed, wounded or taken prisoner 17,000 men. He followed Grant’s principle, and “flanked” him. A retreat was the result.

July 1—Public debt over \$1,740,000,000.

” 9—Gen. Early, with 20,000 Confederate troops, passes into Grant’s rear, and makes a hasty march north into Maryland. This day he gained a victory over Gen. Wallace, but his losses were so great that he was hindered in his design of capturing Washington, though within six miles of it at one time. He retreats, but soon turns back.

” 18—President Lincoln calls for 500,000 more troops.

” 19—Gen. Averill (Union) gives Early a check, but finally falls back.

” 20-22—Severe battles in the neighborhood of Atlanta, Geo. Gen. Sherman victorious. Confederate losses in all over 15,000; Union about 5,500. Union Gen. McPherson killed.

” 22—A mine, made under the fortifications of Petersburg, completed. It was charged with 8,000 lbs. of powder.

” 28—Early sent a detachment into Penn., which burnt Chambersburg.

” 30—Gen. Stoneman defeated and taken prisoner at Macon, Geo., by Confederates.

The mine exploded at Petersburg, blowing up a fort and its garrison; but, from unskillful management, proved a Union disaster; 4,000 men were lost in killed, wounded and prisoners. A constant artillery attack was kept up on Petersburg through this month.

Aug. 2—Gen. Banks puts all the negroes in his region in the army (Grand Gulf, La.).

” 3—Constant fighting at Atlanta. Hood (Confederate) repulsed.

” 5—Admiral Farragut enters Mobile bay with 18 vessels, and captures or destroys the vessels and forts. It was the last seaport of the Confederacy.

” 7—Union Gen. Averill gains a complete victory at Moorfield, West Va.

” 9—Atlanta, Geo., bombarded by Sherman’s army.

” 11—The Confederate vessel Tallahassee burns 5 vessels, and 5 more in the course of Aug.

” 13—Mosby, Confederate, captures an immense supply train at Berryville, Va.

” 19—Success of Southern forces before Petersburg. Took 2,000 prisoners.

” 21—Lee fails to dislodge Warner, who is destroying the Weldon R. R. In three days Grant lost 4,500 men in this undertaking.

” 31—Gen. Howard, of Sherman’s army, gains a decided victory at Jonesborough, Geo.

Sept. 2—Gen. Hood evacuates Atlanta, Geo., a very important place, which Sherman at once occupies. Sherman had lost 30,000 men in this campaign, the Confederates 42,000.

” 5—Gen. Morgan, an active Southern cavalry officer, is killed at Granville, Tenn.

” 12—Sherman sends away all the families and burns a good part of Atlanta, preparatory to great and brilliant operations.

” 13—General Sheridan in the Shenandoah Valley, Va.

” 16—A strong force of Confederate cavalry drive off 2,500 beeves belonging to the Union army on James river.

” 19—Sheridan defeats Early, (at Oquequan, Shenandoah valley,) inflicting a loss of 8,000 men.

” 22—Sheridan again inflicts a loss of near 4,000 on Early, at Fisher’s Hill, Va.

” 29—Gen. Grant advances to within ten miles of Richmond, on the north.

Gen. Price again invades Missouri.

” 30—The blockading force captured and destroyed 50 vessels this month.

Oct. 5—A repulse of the Southern forces at Allatoona, Geo.

” 7—The Confederate steamer Florida captured by the Wachusett, on the coast of Brazil.

Sheridan, having laid waste the Shenandoah valley, returns South.

” 8—Sheridan defeats the Confederates again in the Shenandoah valley.

” 11—Maryland votes for a constitution abolishing slavery.

” 19—Sheridan annihilated Early, at Cedar Creek, by his famous “ride from Winchester,” and rallying his men, after they had been defeated.

Confederate refugees from Canada rob a bank in St. Albans, Vt.

” 23—Gen. Price defeated at Blue river, Missouri.

” 27—Gen. Grant closes the active campaign by an extensive reconnaissance.

” 28—Gen. Blunt defeats Price and drives him out of Missouri. He returns no more.

Nov.—Gen. Hood, in command of the forces in Georgia, withdrew from the neighborhood of Atlanta, for the purpose of destroying Sherman’s base of supplies, and invading Tennessee and Kentucky. He had now about 40,000 men. Gen. Thomas was sent into Tennessee, by Sherman, with a strong force, to contend with him; and Sherman, breaking away from his northern connections, commences his celebrated “march to the sea,” in which he is lost to his friends for 40 days, but reaches Savannah in safety.

” 4—Johnsonville, Tenn., bombarded. 3 gunboats and 8 transports, with \$1,500,000 of stores destroyed.

” 8—President Lincoln re-elected. Gen. McClellan resigns his commission.

” 11—A gunboat, the Tulip, blows up on Potomac river. Her boiler burst.

” 13—Gen. Breckenridge attacks Gillem, near Morristown, Tenn., capturing his artillery, and several hundred prisoners.

” 14—Atlanta completely destroyed by Sherman, before his march South.

” 16—Gen. Stoneman attacks Breckenridge, at Marion, Tenn., and captures his artillery and 200 prisoners.

Gen. Sherman starts for Savannah through the heart of the Confederacy, with over 65,000 troops. He destroys railroads and lays the country waste wherever he is treated in a hostile manner.

” 22—Sherman’s army reach Milledgeville, the capital of Georgia. The Gov. and Legislature hastily retire. The soldiers amuse themselves by holding a mock legislature, passing loyal resolutions, &c.

” 24—The Union army in Va., receive nearly 100,000 pounds of turkeys, sent from the North to supply them a Christmas dinner.

” 25—An attempt to fire New York city miscarries.

” 30—Gen. Hood, Confederate, with 40,000 men, attacks Schofield, 18 miles from Nashville. Gen. Schofield had only 17,000 men. Hood made four attacks, and was each time repulsed. He lost 6,000 men. At midnight Schofield retreated to Nashville, and joined Thomas, followed by Hood’s army.

Dec. 1—The U. S. navy has 671 vessels, carrying over 4,000 guns, and 51,000 men. It has captured 324 vessels during the year—during the war, 1,379—267 being steamers.

” 5—65 blockade runners, ships and cargoes worth \$12,000,000, have been captured or destroyed by the U. S. navy, at Wilmington, N. C.

” 6—Mr. Chase, ex-Sec. of the U. S. Treasury, appointed Chief Justice of the Supreme Court.

” 12—Gen. Sherman’s army reaches the rear of Savannah, Geo., which is occupied by the Confederate Gen. Hardee, with 15,000 men.

” 13—Gen. Hazen, of Sherman’s command, captures Ft. McAllister, near Savannah. It had been frequently attacked by gunboats, in vain.

” 15—Gen. Rousseau defeats the Southern forces under Forrest at Murfreesborough, Tenn., with great loss.

” 15-16—Battle of Nashville, Tenn., in which Gen. Hood is completely defeated by Gen. Thomas, Federal commander. Hood’s flying troops pursued 200 miles. It was one of the most fatal blows of the war for the South.

” 19—President Lincoln calls for 300,000 volunteers to finish the war.

” 20—Gen. Stoneman, Unionist, captures forts and destroys salt works, lead mines, and railway bridges at Saltville, East Tennessee.

Gen. Sherman summons Savannah to surrender. Gen. Hardee retreated in the night. Gen. Sherman takes possession next day.

CHAPTER XXVIII.

CONCLUDING CAMPAIGN.

The year 1864 closed in general disaster to the Confederacy. Sherman had broken the Confederate power in Georgia, destroyed its communications with the Mississippi States, and taken Savannah. Gen. Thomas had broken up Hood’s army, in Tennessee, and Grant had closely beleaguered the Southern army in Virginia within Richmond and its defenses; while Sheridan had dealt blow after blow on Early, in the Shenandoah Valley, and quite ruined his army.

The future operations required the subjugation of the interiors of North and South Carolina, the taking of a few forts on the coast, and the capture of Lee’s army in Richmond. The only other army of strength, the remnant of Hood’s forces, was in the Southern interior. The Federal government was stronger than ever, both by sea and land. The Southern people were much discouraged; their finances ruined; their fighting men mostly disabled, scattered, forced into submission, or, hopeless of ultimate success, had voluntarily withdrawn from the contest in so large numbers that the Confederate forces were everywhere inferior, and only upheld by the indomitable pride and bravery inherent in the Anglo-American. They would submit only when necessity absolutely compelled them; and thus saved their honor, in their own eyes. They had made a fatal mistake, and they reaped the full harvest of ruin. Yet, their prolonged resistance served to utterly annihilate slavery; raised the negroes to the honorable position of Defenders of the Union; and, the last of Jan., 1865, an amendment to the U. S. Constitution was prepared forever abolishing slavery in the country. In the end the blacks became citizens. We have now but a short record to complete our View of the Civil War. The South had still over 100,000 men

in arms, but they were surrounded, cut off from supplies, outnumbered, and pressed with relentless vigor. This was Grant's policy.

1865.

Jan. 14—Vessels are sent from Boston and New York with large supplies from the charitable, for Southern sufferers in Savannah, Geo.

” 15—Ft. Fisher, on the coast of N. C., captured by Gen. Terry, in conjunction with the U. S. fleet. It is the last stronghold of the South on the sea.

Edward Everett died, at Boston, Mass.

” 16—The magazine at Ft. Fisher exploded, killing and wounding 300 Union men.

” 17—A Federal monitor blown up by torpedoes, in Charleston Harbor, S. C.

” 20—Corinth, Miss., evacuated by Southern troops.

” 23—Gen. Hood surrenders his command in the Southern army to Gen. Taylor.

” 28—Gen. Breckenridge becomes Confederate Sec. of War.

” 29—Southern Commissioners seek an interview with President Lincoln at Fortress Monroe, in the interest of Peace. They failed to make any satisfactory terms.

” 31—Joint resolution of Congress to amend the U. S. Constitution abolishing slavery (14th Amendment).

Feb.—Nine States ratify the Constitutional Amendment in this month.

” 5—Grant suffers a repulse at Hatcher’s Run. Loss 2,000 men.

” 17—Columbia, S. C., accidentally burned on its evacuation by Southern troops. A Confederate dollar (paper) worth but two cents in Richmond, Va.

” 18—Union troops take possession of Charleston, S. C., as a result of Sherman’s march from Savannah north-eastward toward Richmond. Many buildings in Charleston burned in the destruction of Confederate stores by the retiring army.

Gen. Lee in favor of arming the negroes for the defense of the South. It is declined by the Confederate government, until too late.

” 25—800 Southern soldiers desert, and come into Union lines.

Mar. 2—Sheridan completely routs Gen. Early again, taking 1,700 troops prisoners.

” 4—President Lincoln inaugurated for his second term.

” 10—Gen. Bragg defeated, at Kingston, N. C.

” 15—Gen. Hardee (Confederate) defeated by Sherman’s army.

” 18—The Confederate Congress adjourned. It never met again.

Battle of part of Sherman’s army with Johnston, Confederate, 24,000 strong. Southern forces made six assaults which were withstood. After fighting and manouvering 3 days, Johnston retreated having lost 3,000 men. Sherman lost 1,646.

” 25—Ft. Steadman, near Petersburg, Va., captured by Confederates, but was immediately retaken, with 2,000 prisoners. This attack was made by Lee, preparatory to evacuating Richmond. Grant had about 120,000 troops, Lee 70,000.

” 29—Sheridan commences an expedition to the rear of Richmond to cut off Lee’s retreat South.

” 31—Sheridan attacked and hard pushed by Lee’s forces, but at night they fall back.

Apr. 1—Sheridan, in turn, follows the Confederates, and drives them toward Richmond. He takes more than 5,000 prisoners. This was the battle of Five Forks. It was fatal to Lee’s retreat.

” 2—Grant’s forces make a grand assault. It is successful, and Lee prepares to evacuate Richmond. President Davis leaves his capital in haste, for Danville, N. C. Gen. Lee commences his retreat in the night.

” 3—Richmond occupied by colored Federal troops. They find the city in flames.

” 4—President Davis endeavors to make a stand against disaster. He issues a proclamation from Danville.

” 9—Terms of surrender arranged by Gens. Grant and Lee.

” 10—Gen. Lee issues his farewell address to his army.

” 12—Confederate army yielded prisoners of war at Appomattox Court House, Virginia. 27,805 Confederate soldiers paroled.

Gen. Stoneman defeats a Confederate force, at Salisbury, N. C.

Gen. Canby, Union, occupies Mobile, Ala.

” 14—President Lincoln assassinated in Washington, by J. Wilkes Booth.

Mr. Seward stabbed in bed, but not killed.

” 15—Abraham Lincoln died at 7 A. M. The whole country is in mourning.

Andrew Johnson assumes the office of President of the U. S.

” 18—Paine, or Powell, who endeavored to assassinate Sec. Seward, arrested at Mrs. Surratt’s house in Washington. Mrs. Surratt arrested.

Gen. Sherman arranges preliminaries for the surrender of all the remaining Confederate forces, with Gen. Johnston, commanding Southern army in N. C., with consent of Confederate Sec. of War and Jeff. Davis. It includes the basis of a general peace, and a policy of reconstruction. It is sent to the Federal government for their approval or rejection.

” 19—Funeral ceremonies of President Lincoln, at Washington. Funeral services are held all over the North. The body is carried in state to Springfield, Ill., stopping at prominent places on the route; and visited by great numbers of the people. 700,000 were said to have been in the procession at New York.

” 21—Gen. Sherman’s arrangement with Johnston disapproved by the government, and he is ordered to resume hostilities. Steamboat Sultana blows up on the Mississippi, and about 1,300 U. S. soldiers returning home were killed.

” 24—Gen. Grant visits Sherman.

” 25—J. W. Booth, the assassin of the President, taken prisoner near Port Royal, Va. Refusing to surrender, a soldier shot him, contrary to orders. He died in 4 hours. No assassin ever met with more universal execration than Booth. Its necessary effect was to render the Reconstruction policy much more stern and painful to the South.

” 26—Johnston surrenders to Gen. Sherman all the Confederate troops in his command, on the terms granted Gen. Lee.

” 29—Arms and stores of Gen. Johnston’s army delivered to U. S. authorities, at Greensboro, N. C.

May 2—Reward offered for capture of Jeff. Davis, of \$100,000. He was, at first, believed accessory to the murder of President Lincoln.

” 3—President Lincoln’s remains arrive at Springfield, Ill.

” 4-9—All the Confederate forces disbanded, or surrendered to U. S. officers, east and west of Mississippi river.

” 10—Jeff. Davis captured in Geo., in woman’s clothes.

GENERAL DATA.

The number of volunteer troops to be mustered out of the Union army, May 1st, 1865, was 1,034,064. They were mostly discharged and paid in the next three months. The entire enlistments in the Federal army, during the whole war, were 2,688,523. Many were re-enlistments. It is believed that the whole number of individuals forming the armies was only 1,500,000. 75 per cent. were native Americans, 9 per cent. Germans, and 7 per cent. Irish. Various nationalities made up the remaining 9 per cent.

Of this million and a half 56,000 were killed in battle, 35,000 died in hospitals of their wounds received in battle, and 184,000 died in hospitals of disease. Many afterwards died, and others were ruined in health for life.

It has been stated by the Adjutant General of the Confederate army, since the close of the war, that the available Confederate force during the entire war was 600,000, and that they never had more than 200,000 in the field at any one time. This would seem likely to be an underestimate, but is the nearest to official data that we have. He states the entire force opposing the 1,000,000 men in the closing campaign to have been 100,000. There is reason to believe that the Confederates killed, and the wounded and sick who died in hospital, was about 300,000.

The entire amount expended by the National government, by States, counties and towns, and contributed in other ways to the comfort or sustenance of the army, is computed at \$4,000,000,000. The support of the Southern army cannot be ascertained, but it is thought that those expenses and the destruction of property inflicted about an equal loss on them.

These losses in life and property are fearful; but they are the price of Freedom and of Nationality. The general prosperity of the country has made it richer than

before, while natural increase and immigration have filled the places vacant by death.

The South was hopeless and exhausted at the close of the war. It had been feared that a guerrilla war, the most desolating and bloody of all wars, would follow the defeat of the great armies. It could result only in destruction of what remained to the Southern people, and they submitted quietly to their fate. Various excesses and deeds of blood were indeed committed, but they were not sympathized with by the mass of the people. It was only the desperate and lawless class that came to the surface naturally in war.

Many of the influential Southern leaders counseled submission to inevitable necessity, and themselves set the example. The policy of reconstruction adopted by the National government, excluded, at first, all who had taken a part in the rebellion from political influence. The loyal element, small as it was, was alone to restore the Southern States to their place in the Union. It was, however, proposed to admit others, both individuals and classes, to participation in political action as they proved themselves trustworthy and loyal to the new order of things. After some years, and when it was felt to be quite safe, these disabilities were nearly all removed.

The most distasteful act of the General Government, to the people of the South, was clothing the blacks with the rights of citizens. They received the elective franchise, and assisted to rule over their former masters. It was considered necessary, since they had now no masters to be interested in them, to give them the power to protect themselves, and to elevate them to something of influence and respectability by force of the ballot. That advantage given them, they must take their chances with others, and win their own way. They had been loyal to the Union, which strongly recommended this policy to the government. The Northern people who now settled in the South and the blacks mainly reorganized the State governments. This was the chief punishment inflicted on the Southern people in retaliation for the war they had waged with such fearful energy. It was a clemency quite unexampled in history. No blood was shed after they laid down their arms. The assassination of the beloved President Lincoln made the North thoroughly angry, but no vengeance was taken except on those believed to be immediately connected with the atrocious deed. The most lively indignation had long been felt at the dreadful treatment experienced by prisoners of war in some of the prisons of the South; but the government and the people contented themselves with the punishment of the governor of Andersonville prison, on due civil trial and conviction.

On the whole, the conduct of the Northern people was extremely magnanimous. The dissolution of the Union would have been an irreparable loss to them; they resolved not to suffer it; and, with extraordinary energy, they put in the field more than a million and a half of men, and near 700 vessels, to subdue it, and suffered no reverses to discourage them until this was done. When resistance ceased and the Union was secure, they exacted only the pledges necessary to keep it safe. Appreciating the unfortunate condition to which nearly all the before prosperous classes of the South were reduced, they aided them in their distress, ceased at once all hostile action, and left them to recover from their disasters under as favorable circumstances as their own conduct warranted. The South naturally felt an affection for her Lost Cause, proportionate to the sacrifices she had made and the suffering she had endured for it. Time, and busy care to develop the vast resources that slavery had, in great part, neglected, would gradually restore them to right feeling, and the state of mind fitting them for citizenship. This, in part, has already taken place, and, by and by, the Bonds of the Whole Union will be more firmly cemented than ever before. May it be soon.

CHAPTER XXIX.

HISTORY OF THE U. S. FROM 1865 TO 1874.

May 13—During the week ending with this day there was subscribed to the U. S. seven-thirty loan \$98,000,000. It was an expression of the enthusiastic confidence of the people in the government and its resources.

” 22-23—Grand review of Gen. Sherman’s army at Washington. There were 200,000 men.

” 26—Kirby Smith, the last leader of a Southern military organization, surrendered his command.

” 30—The great Sanitary Fair opened at Chicago.

” 31—Gen. Hood and his staff surrendered prisoners of war.

June 1—A day of fasting and national humiliation for the death of President Lincoln.

" 4—Toombs, of Georgia, prominent in the early days of secession, shot himself to avoid arrest. Yet no one was capitally punished for treason.

" 5—The four confederates of Booth, the assassin of President Lincoln, were found guilty. They were hanged on the 6th and 7th. These were Harold, Atzerott, Powell and Mrs. Surratt.

" 11—Gen. R. E. Lee appointed president of the Washington College, Va. It was done by Southern people as a mark of respect, and to furnish him a support; he having lost his property in the war.

Sept. 20—The marking of the graves of 12,000 of the unfortunate Andersonville prisoners completed.

" 29—Cession of 1,000,000 acres of land to the government by the Osage Indians, for \$300,000.

Oct. 20—Champ Ferguson, noted for his crimes in guerilla warfare, hung at Nashville, Tenn.

Nov. 10—Henry Wirz, the inhuman keeper of Andersonville prison, hung, after trial and condemnation.

Dec. 18—Secretary Seward officially announces that the 13th Amendment to the Constitution, abolishing slavery in the United States, has been adopted by three-fourths of the States, and it is now the law of the land.

1866.

Jan. 1—Third anniversary of Emancipation celebrated by the colored people.

" 2—Funeral of Hon. Henry Winter Davis, U. S. Senator, at Baltimore.

" 12—The Kentucky University purchases the homestead of Henry Clay.

" 23—The 13th Constitutional Amendment reconsidered by the Legislature of New Jersey and passed. It had been rejected in the previous year.

" 25—Kentucky refused to pass the 13th Amendment.

” 31—Commissary and quartermaster warehouses burned, at Ft. Riley, Kansas. \$1,000,000 lost.

Feb. 2—The Civil Rights bill passed the Senate.

” 11—The U. S. Sanitary Commission closed with an anniversary meeting at Washington.

” 12—Memorial services in honor of President Lincoln held in the capitol, at Washington; address delivered by the Hon. Geo. Bancroft, statesman and historian.

” 19—President Johnson vetoed the Freedmen’s Bureau bill.

” 22—The 134th anniversary of Washington’s birthday celebrated.

” 26—Meeting held at Richmond to ratify President Johnson’s policy.

Mar. 10—North Carolina passes a Negro Rights bill.

” 12—North Carolina passes a Negro Testimony bill.

Texas Convention declares their Secession ordinance null and void.

” 13—The Civil Rights bill passed the House of Representatives.

” 19—The Reciprocity Treaty with Canada expires.

” 27—The Civil Rights bill vetoed by President Johnson.

April 2—Gen. Hawley elected republican governor of Connecticut.

” 4—Gen. Burnside elected governor of Rhode Island.

” 6-7—Civil Rights bill passed Congress over the veto.

” 30—Two churches of colored people burned by incendiaries in Richmond, Va.

May 15—The President vetoes the bill admitting Colorado as a State.

” 29—Gen. Scott died at West Point, N. Y.

June 3—Gen. Meade goes to Buffalo to prevent the Fenians (Irish Patriots) from invading Canada.

” 6—President Johnson issues a proclamation forbidding belligerent operations against Canada from the United States.

” 8-13—The 14th Constitutional Amendment passed by Congress.

July 4—Great fire at Portland, Me. Loss, \$15,000,000. The U. S. government a heavy loser by this fire.

” 23—Tennessee readmitted as a State in the Union, by joint resolution of Congress. This was the first State readmitted after the war.

” 25—Lieut. Gen. Grant nominated General—the highest grade known in our military organization—never before occupied. Vice Admiral Farragut nominated Admiral.

” 27—Hon. J. H. Harlan, Sec. of the Interior, resigns. O. H. Browning appointed.

” 28—The Great Eastern reaches Hearts Content, Newfoundland, with the Atlantic Telegraphic Cable, which proved successful. It had failed in the previous year. Great rejoicings. It was one of the most important events of this century.

” 30—Great riot at New Orleans, in which many were killed. It was thought the result of President Johnson’s policy of reconstruction, which was not in harmony with the system adopted by Congress.

Aug. 1—Gen. Sherman commissioned as Lieut. General.

” 8—Queen Emma, wife of the late King of the Sandwich Islands, arrives at New York, and is received as a National Guest.

” 12—Telegraphic communication between New York and Europe complete, by the Atlantic Cable.

” 31—American and English naval forces unite to break up piracy by Chinese junks in the East Indies.

Sept. 6—The monument to S. A. Douglas, at Chicago, inaugurated. President Johnson made many speeches on his journey to attend this celebration, which were indiscreet, and disrespectful to Congress. It was called his “Swinging around the Circle,” in derision; a figure employed in one of his speeches.

Oct. 9—Gen. Geary elected governor of Pennsylvania.

” 23—Dedication of The Stonewall Jackson Cemetery, at Winchester, Va.

Nov. 6—State elections in 12 States are held to-day.

” 20—The Grand Army of the Republic, formed of the present and previous officers of the U. S. Army serving in the late war, hold a convention at Indianapolis, Ind.

” 22—Raphael Semmes, former Commander of the Confederate war steamer Alabama, appointed Professor of Moral Philosophy in the Louisiana State Seminary.

Dec. 7—The Louisiana Legislature rejects the 14th Amendment to the Constitution.

” 13—Territorial Legislature of Colorado organized.

” 16—The U. S. frigate New Ironsides burned at League Island.

” 22—Massacre of nearly a hundred soldiers near Ft. Kearney.

” 24—U. S. Minister John A. Dix enters on his duties in France.

1867.

Jan. 7—A suffrage bill for the Dist. of Columbia vetoed by President Johnson, but passed over the veto by Congress. Congress was laboring to harmonize the laws of the country with the changes produced by the war. President Johnson did his utmost to prevent the success of this policy. Congress, however, succeeded in carrying its point. This is an important and interesting history, since it shows how the Representatives of the People may check and neutralize the power of a President when his designs conflict with the interests of the country and the purposes of the people.

” 8-10—14th Amendment ratified by two States (Missouri and New York) and rejected by another (Virginia).

” 28—Nebraska bill vetoed, but passed over the veto.

Most of the Northern States ratified the 14th Amendment in this month.

Feb. 20—Military government bill passed Congress.

Mar. 1—Nebraska proclaimed a State by the President.

” 2—The President vetoes the Military Government and Civil Tenure of Office Bills. They are passed over his veto.

” 4—The 39th Congress ends, and the 40th is organized.

" 11—Military governors assigned to various districts in the South.

" 30—The President announces the ratification of the treaty with Russia, by which the United States bought all her North American Possessions for \$7,200,000.

Apr. 3—Gen. Burnside re-elected governor of Rhode Island.

May 13—Jeff. Davis admitted to bail in \$100,000; Horace Greeley and others furnish the bonds.

June 19—The Arch Duke Maximilian, Titular Emperor of Mexico, shot by order of the Mexican Republican government. The remonstrances of the U. S. government obliged the French to withdraw their support from Maximilian.

July 13—The steamer Dunderberg, bought by France, sailed for Cherbourg.

Aug. 1—Gov. Brownlow re-elected governor of Tennessee.

" 5—The President requires Mr. Stanton, Sec. of War, to resign. He refuses, when the President suspends him and appoints Gen. Grant.

" 23—Grand ovation to Admiral Farragut, by Russian officers at Cronstadt.

Sept. 17—The National Cemetery at Antietam dedicated.

Dec. 4—The Patrons of Husbandry, or Farmers' Grange, organized, in Washington.

" 7—A resolution in the House of Representatives to impeach President Johnson fails by three votes.

1868.

Jan. 1—Fifth Emancipation Anniversary celebrated by the colored people in various places.

" 6—Censure of the President by Congress for removing Gen. Sheridan from command of the 5th Military District.

Feb. 7—The resignation of U. S. Minister to England, Hon. C. F. Adams, announced.

” 19—Senate refuse his seat to P. F. Thomas, of Maryland, on account of disloyalty.

” 20—The Legislature of New Jersey withdraws its ratification of the 14th Amendment. Ohio and Oregon did the same. This action, considered as absurd as Secession, was not recognized.

” 21—President Johnson expels Mr. Stanton, Sec. of War, and appoints Gen. Thomas. This is done in defiance of the Senate, by whose “advice and consent” the Constitution requires it to be supported.

” 24—The House of Representatives adopt articles of impeachment of the President presented by Thaddeus Stephens, of Pa., by a vote of 126 to 57. This was 12 more than the requisite two-thirds.

Mar. 5—The Senate is organized as a Court of Impeachment, Chief Justice Chase presiding.

May 16—The impeachment trial terminated by a vote in the Senate of 35 for, to 19 against. As a two-thirds vote was necessary the impeachment failed by three votes. A few Republican Senators incurred great odium by voting for the President’s acquittal.

” 20—Gen. Grant nominated for President by the Republican Convention at Chicago.

” 22—A Chinese embassy, headed by Hon. Anson Burlingame, who had been U. S. Minister to China and acquired the confidence of the government of China to such an extent as to be chosen by them as the leader of their embassy to this country and the governments of Europe, arrived at New York.

” 29—Gen. Schofield appointed Sec. of War.

June 5—Mr. Burlingame and the Chinese embassy presented to the President.

” 6—A Bill for the re-admission of Arkansas passes Congress.

” 9—Bills for the re-admission of North Carolina, South Carolina, Georgia, Louisiana, Alabama and Florida are passed.

” 12—Hon. Reverdy Johnson appointed Minister to England.

” 20—Bill for re-admission of Ark. vetoed by the President, but passed over his veto by a two-thirds vote.

” 24—The Bill for the admission of the other States being vetoed by the President was likewise passed over his veto.

July 4—Horatio Seymour of N. Y. and F. P. Blair of Mo. nominated for President and Vice-President by the Democrats.

A political amnesty proclamation issued by the President.

” 16—Admiral Farragut received with distinguished honor by the Queen of England.

” 20—A Bill to exclude the electoral votes of the Southern States not re-admitted vetoed by the President and passed by Congress over the veto.

” 21—The 14th Amendment declared ratified, and a part of the Constitution.

” 28—Military government ceases in Arkansas, North and South Carolina, Louisiana, Georgia, Florida and Alabama.

Aug. 6—Jefferson Davis lands in Liverpool, England.

” 13—U. S. steamers Wateree and Fredonia destroyed during an earthquake at Lima, Peru; 40,000 lives were lost in this dreadful catastrophe.

Sept. 7—Negro members of the Georgia Legislature expelled on account of race, contrary to the 14th Amendment.

” 18—Battle with the Indians on Republican River. Lt. Beecher and others killed.

” 19—Riot at Camilla, Geo., caused by hostility of Southern people to the political privileges of the blacks. Many negroes killed.

” 29—Gen. Reynolds, military governor of Texas, forbids the election in that State for President, Texas not having been re-admitted. This was in accordance with the law of Congress passed the 20th of July.

Oct. 17—The Legislature of Oregon withdraws its assent once given to the 14th Amendment.

Nov. 3—U. S. Grant and Schuyler Colfax elected President and Vice-President. Popular majority 309,722. Electoral votes for Grant and Colfax, 214; for Seymour and Blair, 80. Virginia, Mississippi and Texas did not vote, and Nevada was not counted in. The whole

popular vote was 5,722,984. In Florida the electors were chosen by the Legislature.

” 27—The Indians defeated by Gen. Custer, on the Washita river. Black Kettle, the chief, and more than a hundred warriors killed.

Dec. 1—Ft. Lafayette, N. Y., destroyed by fire.

” 3—Political troubles in Arkansas, in which many murders are committed.

” 7—Third session of the 40th Congress begins.

” 15—A social gathering of the Union soldiers at Chicago.

1869.

Jan. 7—John Minor Botts, a statesman of Va., imprisoned by the Confederate government during the war for his Union sentiments, died.

Feb. 27—A joint resolution of Congress recommends to the States the adoption of the 15th Amendment to the Constitution.

Mar. 4—Gen. Grant inaugurated eighteenth President.

” ”—First session of the 41st Congress commenced.

” 13—James Guthrie, a statesman of Ky., died.

” 25—Hon. E. Bates, of Mo., Att’y Gen’l under Lincoln, died.

May 15—The Union Pacific Railroad was completed by joining the two ends at Ogden, Utah. Distance from Omaha to San Francisco 1904 miles. This completed the line of railroad joining the Atlantic and Pacific. The greatest triumph of engineering yet known was accomplished in the Nevada Mts., by carrying the road to a height of over 7000 feet in 105 miles.

July 30—Hon. I. Toucey, of Conn., who had filled many offices in the State and United States government, died.

Sept. 8—William B. Fessenden, of Me., a statesman of reputation, died.

” 10—John Bell, of Ky., candidate for the Presidency in 1860, died.

” 6—Gen. J. A. Rawlins, Sec. of War, died. He had been Gen. Grant’s Chief of Staff during the war.

Oct. 8—Franklin Pierce, of N. H., ex-President, died.

Nov. 7—Rear Admiral Stewart, of U. S. Navy, died.

Dec. 24—Edwin M. Stanton, of Pa., Sec. of War during most of the civil war, died.

This year closes a most important era in the history of the United States, and of the world. The account with the civil war was definitely closed, and the final seal set on the policy of reconstruction by the inauguration of Gen. Grant, and the continuance of the Republican party in power by the people, together with the readmission of most of the Southern States and the possibility of the reversal of the decision in regard to slavery done away by the adoption of the fifteenth Amendment to the Constitution, giving the elective franchise to the colored population. Much emphasis was given to all these things by the prosperity of the country, and the rapid reduction of the debt, by the generally wise conduct of the Southern people, and the slowly increasing prosperity of that section. These results reacted in other countries to strengthen the tendency to freer and more popular governments, and seem, in some respects to have introduced the Era of Republicanism. However slow may be the changes in this direction, they are sure to be made.

1870.

Jan. 1—Ten years ago the cloud of civil war settled densely over the country, and threatened its destruction. To-day that tornado has been passed by nearly six years, and its ruins are almost buried under the new and more thrifty growth of all interests and industries even in the South.

” 20—H. R. Revels, of Miss., is chosen the first colored Senator who ever represented a State in Congress.

” 23—The U. S. steamer Oneida sunk by collision with another vessel on the coast of Japan. 176 lives lost.

Feb. 22—Hon. Anson Burlingame, head of the Chinese embassy to the powers of Christendom, died at St. Petersburg, Russia.

Mar. 28—Gen. G. H. Thomas dies in San Francisco, Cal.

” 30—The Sec. of State proclaims the ratification of the 15th Amendment to the U. S. Constitution by three-fourths of the States.

June 15—Death of Jerome Napoleon Bonaparte, at Baltimore, Md.

July 12—Death of Admiral Dahlgren, at Washington, D. C.

” 20—Death of M. Prevost Paradol, French Minister at Washington.

Aug. 14—Death of Admiral Farragut, at Portsmouth, N. H.

Sept. 7—Recognition of the French Republic by the U. S. government.

Oct. 12—Death of Gen. R. E. Lee, formerly of the Confederate army.

1871.

Great changes have been taking place in Europe. The Emperor, Napoleon III. taken prisoner by the Germans, his government was set aside by the people of France who founded a Republic.

Jan. 1—At this time the German army, under the lead of the King of Prussia (about this time made Emperor of Germany), is besieging Paris, the capital of France.

” 17—The San Domingo Commission sail from New York.

” 28—Paris capitulates to the Germans, which ends the Franco-Prussian war, terms of peace being soon arranged.

Feb. 12—Alice Carey, the authoress, died at New York.

” 16—An important Japanese mission to the U. S. and other governments arrives at San Francisco.

Mar. 1—The Germans make a triumphal entry into Paris.

” 20—British House of Commons votes \$265,000 for the relief of Paris.

Apr. 20—A Bill against the Kuklux, a secret organization of Southern conspirators and murderers, passed in Congress.

May 1—The Legal Tender Act declared Constitutional by the U. S. Supreme Court.

” 31—The French government does not imitate our clemency to prisoners taken in rebellion. The soldiers of the Commune are slaughtered by thousands, by order of the Court Martial of the government army.

June 18—An earthquake on Long and Staten Islands, N. Y.

” 20—The first Atlantic Cable of 1865, which soon broke and became useless, is recovered and worked.

July 5—Earthquake at Visalia, Cal.

” 12—Irish Catholic riot in New York; 51 killed, 30 wounded.

” 30—Steamer Westfield explodes, killing near 100 people.

Sept. 17—The Mont Cenis Tunnel, opening a passage for a railroad $7\frac{3}{5}$ ths miles long through the Alps from France to Italy, inaugurated. It had been many years building.

Oct. 2—Brigham Young, the head of the Mormons in Utah, arrested for bigamy.

” 8—A fire nearly consumes Chicago, destroying property worth \$200,000,000 and many lives. Fires rage in the forests of Wisconsin and Michigan. Much property, some towns, and many persons are burned.

” 17—South Carolina placed under martial law.

\$2,050,000 received in aid of the people of Chicago.

Nov. 15—Cholera appears on vessels at New York.

” 18—The Grand Duke Alexis, of Russia, arrives at New York. He travels through the country for some months.

Dec. 9—Commissioners of the English and U. S. governments meet in Washington to settle the difficulties between the two governments arising from the spoliation of the Alabama.

” 16—Catacazy, the Russian Minister, called home at the request of our government.

” 29—Investigation of abuses in the New York city government commences. W. M. Tweed surrenders to the sheriff.

Jan. 2—Brigham Young arrested on a charge of murder.

Mar. 7—Trial and conviction of Kuklux prisoners in Ala.; 3 sentenced to imprisonment for 20 years.

Apr. 1—The colored people celebrate the adoption of 15th Amendment.

May 3—Horace Greeley nominated for President by a convention at Cincinnati, O.

” 22—The General Amnesty Bill signed by the President.

” 30—Graves of the Union soldiers decorated throughout the country.

June 6—Grant and Wilson nominated for President and Vice-President.

” 26—Trial of Stokes for the murder of Fisk begun. After several trials he was condemned to imprisonment for murder.

July 24—Spotted-Tail and other western Indians visit Washington.

Aug. 16—Yellow Fever appears at New York.

Sept. 2—Father Hyacinthe, a liberal French Catholic priest, marries an American lady.

” 14—The arbitrators of the Alabama Claims, to whom the case had been submitted, and who had been two months sitting at Geneva, Switzerland, announced their award. The United States was to receive \$15,500,000 in gold.

Oct. 14—Wm. H. Seward, one of our most distinguished statesmen, is this day buried at Auburn, N. Y.

” 25—About this time the Horse disease commences, and spreads rapidly over the whole country.

Nov. 5—In the presidential election on this day President Grant is re-elected.

” 9—A great fire in Boston, Mass. Loss \$75,000,000 in buildings and merchandise. Insurance \$50,000,000.

In this month and December following storms of extreme severity caused great loss of life and property. An overflow of the river Po, in Italy, rendered 40,000 persons homeless. In the Baltic Sea 80 vessels

were wrecked, some islands were inundated, and all their inhabitants drowned. It was not less severe on the coasts of England and Ireland.

” 29—Horace Greeley, recent candidate for President of the U. S., died, aged 62 years.

Dec. 11—The King of the Sandwich Islands, Kamehameha V., died, leaving no heir.

” 12—The actor, Edwin Forrest, dies, at Philadelphia.

” 17—Edward A. Pollard, editor and author, died.

Important investigations of abuses in New York city and in the conduct of the Pacific Railway are made this winter, and many healthy reforms inaugurated. The order of Patrons of Husbandry becomes popular among agriculturists, and spreads rapidly, through the coming year.

1873.

Jan. 7, 8, 9—A dreadful snow storm occurs in Minnesota, by which 70 lives are lost.

” 9—The ex-Emperor Napoleon III. dies at Chiselhurst, in England, aged 64 years.

” 31—At Chicago, Ill., Joel A. Matteson, ex-governor of Illinois, died.

Feb. 1—M. F. Maury, formerly distinguished in the U. S. Naval service, dies at Lexington, Va.

” 9—J. W. Geary, ex-Governor of Penn., died at Harrisburg.

” 15—Steamer Henry A. Jones burned in Galveston Bay, Texas. 21 lives lost.

Mar. 3—Congress enacted a law increasing their pay, that of the President, and various officers of the government. It extended over the whole previous term of the 42d Congress, commencing March 4th, 1871. This law was very offensive to the mass of the people.

” 4—The wreck of the Alaska mail steamer, Geo. S. Wright, is reported at Portland, Oregon. All on board, 23 persons, perished.

” 16—The Boston steamer, Grace Irving, foundered. 8 lives lost.

" 17—Great fire at Lawrenceburg, Ky.

" 19—San Salvador, Central America, destroyed by an earthquake. Property destroyed estimated at from \$12,000,000 to \$20,000,000; and 500 lives lost.

Apr. 1—Steamer Atlantic wrecked near Halifax, N. S. 535 lives lost.

May 5—James Orr, American Minister to Russia, died, at St. Petersburg, aged 51.

" 4—An iron bridge at Dixon, Ill., crowded with people witnessing a baptism, fell, killing and drowning 100 persons.

" 7—Salmon P. Chase, Chief Justice of the U. S., died in New York, aged 65.

" 8—Hon. Oakes Ames, M. C., died at North Easton, Mass., aged 69.

John Stuart Mill, a celebrated English philosopher and author, died at Avignon, France.

" 30—A second great fire in Boston, Mass.

June 28—Hon. Horace F. Clark, prominent in railway enterprises, died in New York.

" 27—Hiram Powers, the distinguished American sculptor, died in Florence, Italy.

" 29—Jesse R. Grant, father of the President, died.

July 4—Severe storm, very destructive to crops in Ohio, Indiana, Wisconsin and Missouri. 20 persons drowned in Green Lake, Wisconsin.

Aug. 2—Great fire at Portland, Oregon. Loss \$1,500,000.

" 24—A storm of unprecedented severity raged on the coast of British America, and, at the same time, on the coast of Mexico. More than 100 vessels were destroyed in and near the gulf of St. Lawrence. Some populous islands were quite laid waste. 176 sailing vessels and 12 steamers were lost in the Gulf of Mexico.

Sept. 15—The propeller Ironsides foundered in Lake Michigan. 31 lives lost.

The Patrons of Husbandry organize about this time at the rate of near 1,000 granges a month.

In this month commenced a most serious financial panic at New York, that spread over the whole country.

Oct. 26—J. C. Heenan, the prize fighter, died on the Union Pacific R. R.

Nov. 6—Gen. Sickles, U. S. Minister to Spain, telegraphs to Washington the capture of the *Virginius* by the Cubans.

" 8—Stephen R. Mallory, former Sec. of the Confederate Navy, died, aged 63.

" 19—John P. Hale, of N. H., a statesman of some celebrity, died.

" 22—The steamship *Ville du Havre* run into and sunk by the *Loch Earn* in mid ocean. 226 lives lost.

" 27—Richard Yates, ex-U. S. Senator and ex-Governor of Illinois, died at St. Louis, aged 55.

Dec. 1—The 43rd Congress assembles for its first session.

" 14—Louis Agassiz, a distinguished naturalist and man of science, died at Cambridge, Mass.

1874.

Jan.—The U. S. government narrowly escaped a war with Spain on account of the taking of the *Virginius* by Cuban authorities. That vessel was sailing under the American flag which was violated by its capture. 54 men were shot as pirates, some of them American citizens. The Spanish government disavowed the act, and gave up the vessel, Dec. 16th, 1873. It was so much damaged as to sink while on the way to the United States.

" 2—A Revolution in Spain overthrows the government of Señor Castelar.

" 5—The President sends a message to Congress concerning the Spanish difficulty, now substantially settled.

" 8—U. S. Senate repeals the bill of March 3rd, 1873, increasing the pay of members of Congress.

" 9—Hon. Caleb Cushing nominated Chief Justice of the U. S. Supreme Court.

” 14—Nomination of Caleb Cushing recalled.

” 17—Death of the Siamese twins.

” 19—Morrison R. Waite, of Ohio, was nominated by the President as Chief Justice and confirmed afterward by the Senate.

” 27—Reliable intelligence of the death of David Livingstone, the African explorer, reaches England.

Feb. 4—The seventh annual meeting of the National Grange of the Patrons of Husbandry occurs in St. Louis, Mo. 8,000 subordinate granges have been added during the year. The Executive Committee state that farmers had saved \$8,000,000 during the year by their co-operative system.

Mar. 8—Ex-President Fillmore died, in Buffalo, N. Y.

” 11—Death of Hon. Charles Sumner, a distinguished statesman and Senator from Mass., in Washington. He was born in Boston, Mass., Jan. 6th, 1811, and was 63 years old. He was of a patriotic race which originated in the county of Kent, England. His grandfather was a Major distinguished for valor in the Revolutionary army. Charles Sumner graduated from Harvard College in 1830, was admitted to the bar in 1834, and became highly distinguished as a lawyer. He succeeded Daniel Webster in the U. S. Senate in 1851, in which he remained till his death, being always conspicuous as one of the foremost leaders in public affairs.

” 24—A bill increasing the currency to \$400,000,000 passed in the U. S. House of Representatives by 168 to 77.

Apr. 1—The U. S. debt officially stated to be \$2,152,690,728.62. Decrease of debt during March, 1874, \$2,189,338.46.

” 14—The Senate bill increasing the currency passes the House of Representatives. Many protests from different parts of the country are presented against it as injurious to the credit and interests of the country. The discussion of this measure has occupied much of the time of Congress for some months.

” 18—The funeral of Livingstone, the lamented African explorer, takes place in London, England, where his remains had arrived. He was interred in Westminster Abbey, as a mark of distinguished honor.

” 17—Gov. Wm. B. Washburn is elected by the Mass. Legislature to represent the State in the U. S. Senate, made vacant by the death of Charles Sumner.

” 22—President Grant vetoes the Currency Bill increasing the issues of paper money, which defeats the measure, its friends in Congress not being numerous enough to pass it over the veto.

” 24—The Congressional committee on Transportation, after long and careful investigation, advised government *oversight* of Railroads, but against government *ownership*.

” 28—Congress voted \$90,000 in aid of sufferers by the inundation of the lower Mississippi.

May 7—\$100,000 were added to the above sum for the same purpose.

” 19—The system of payments to informers in customs revenue cases, repealed. That system appeared to have been very grossly abused.

” ”—The conflict in Arkansas ended in the retreat of Brooks and the reinstatement of Gov. Baxter.

” ”—The New York Legislature passed a Compulsory Education Bill, which became a law in that state.

June 1—Mr. Richardson, Secretary of the Treasury, resigned. Gen. Benj. H. Bristow of Ky., was appointed to succeed him.

” ”—The number of subordinate Granges of the Patrons of Husbandry is 19,492. The number of Patrons who are voters is estimated at 1,000,000.

” 23—Congress adjourned. The sums appropriated at this session for carrying on the government amounted to \$189,784,346.25. The largest item was for the Post Office Department—over \$41,000,000.

” 24—Postmaster-General, John A. J. Creswell resigned, and Hon. Marshall Jewell was appointed in his place.

” 25—Telegraphic communication between the United States and Brazil introduced by congratulatory messages between the Emperor of Brazil and the President of the U. S.

July 8—Message of Gov. Davis of Minnesota to the Sec. of War, announcing the entire destruction of crops in many counties of that state by grasshoppers.

” 14—Another great fire in Chicago. Loss over \$4,000,000.

Gen Custer, commanding an exploring expedition in the Black Hills of Dacotah, reported discoveries of rich gold mines there.

” 27—An International Congress for mitigating the sufferings of war by means of an International Code of Laws, convened at Brussels, in Belgium.

Aug. 19—A riot between whites and blacks in Kentucky, resulted in several murders of blacks. The Gov. called out the militia to restore order.

Sept. 2—400 Mormons sail from England for this country en route to Utah.

” 5—Gen. Sherman orders Military head quarters of the U. S. Army removed from Washington to St. Louis, Mo.

” 5—The one hundredth anniversary of the first meeting of the Continental Congress in Philadelphia, celebrated.

” 7—Great fire at Meiningen, Germany. Loss in buildings alone, \$3,000,000.

” 13—Guizot, a celebrated French author and statesman, died, aged 87.

” 14—The white League, a secret organization opposed to the enfranchisement of the colored people, produced a conflict in New Orleans. 17 were killed and 32 wounded in a street fight, and the State government completely overthrown.

” 16—President Grant interfered by proclamation and the government

” 18—was surrendered to the regular authorities, under protest.

Oct. 13—Elections held in 6 states returned 12 democratic Congressmen more than the previous number.

Nov. 3—Elections in 23 states give a strong democratic gain, indicating a reaction against the government. A sense of the necessity of reform in various ways, and of greater purity and integrity of

administration was wide spread. It had caused, in part, the rapid growth of the Patrons of Husbandry, and was again expressed by political reaction. It was a significant rebuke to those in power. A typhoon, or hurricane at Hong Kong, China, Sept. 22-23, destroyed 30,000 lives and \$50,000,000 of property.

Europe is making great political improvements. In France, during the last three years, out of 184 elections to fill vacancies in the National Assembly, 152 have been republican—only 32 monarchists, and in Russia the government has decided to enforce compulsory education.

Dec. 1—The number of Granges in the United States is 21,472.

” 7—The last session of the forty-third Congress commenced. The President’s Message strongly recommends early resumption of specie payments.

” 12—Kalakaua, King of the Sandwich Islands, reached Washington on a visit. He was received by the President on the 15th and by Congress on the 18th.

” 21—Disturbances at Vicksburg, Miss., called out a proclamation from the President.

” 28—Gerrit Smith, a distinguished abolitionist and philanthropist, died in New York, aged 78.

1875.

Jan. 1—Monarchy was restored in Spain. Alphonso XII, son of the ex-queen Isabella, was proclaimed King, and received the support of the army and navy. It was only a few months before that most of the European governments recognized the Spanish Republic.

” 4—Gen. Sheridan took command of the Department of the Gulf, at New Orleans. On that day the Legislature of Louisiana was organized, and United States troops, acting under the orders of the speaker and of Gov. Kellogg, ejected several members who, it was alleged, were not entitled to seats. It produced much excitement throughout the country, the opposition denouncing it as an unexampled interference of the Federal Executive with State government. Congress sustained the action of the President, but

exerted its influence to quiet the excitement in Louisiana, and a compromise was effected under which it gradually ebbed away.

” 12—Toung-tchi, Emperor of China, died, aged 19 years.

The emigrants arriving at the port of New York during the year 1874, numbered 149,762; a decided falling off, the arrivals having for some years, amounted to 250,000. The governments of Germany are endeavoring to remove the causes of emigration which threatens to affect their resources seriously.

Feb. 3—A proposed reciprocity treaty with Canada, was rejected by the Senate.

” 5—The civil rights Bill, adopted by the Senate during the last session, was amended by an omission relating to schools and adopted by the House. It was accepted by the Senate Feb. 27th, and signed by the President, March 1st.

” 25—A Republic was definitely recognized in France.

Mar. 2—A Bill increasing the Tariff was passed by the Senate.

Gen. Lorenzo Thomas of the U. S. army died, aged 71.

” 3—A law admitting Colorado as a state was passed.

” 4—A law, passed in haste in the last hours of the session, restored the Franking Privilege to members of Congress until Dec. 1, and increased the postage on newspapers and packages for the people. The forty-third Congress came to a close.

” 5—The Senate convened in extra session in accordance with a call previously made by the President. G. S. Orth was confirmed U. S. Minister to Austria, and Horace Maynard U. S. Minister to Turkey.

” 10—A new treaty with Belgium was ratified.

” 18—The Senate ratified the treaty with Hawaii, which renders the interests of the Sandwich Islands substantially identical with those of the United States.

” 20—A destructive tornado in Georgia caused great loss of life and property.

” 24—The Senate, after officially approving the action of the President in Louisiana, closed its special session.

F. E. Spinner, United States Treasurer, resigned, and John C. New, of Ind. was appointed his successor.

Apr. 19—The centennial anniversary of the battle of Lexington was celebrated with great interest. This battle was the first decisive step in the War of Independence. Its scenes and their consequences were dwelt on by some of the most distinguished literary Americans, and honored by the presence of the President of the United States and many of its most eminent authorities.

” 23—Three Steamers burned at New Orleans, in which fifty lives were lost.

” 28—A fire at Oshkosh, Wis., destroyed a square mile of the city. Loss in property over \$2,000,000.

May 7—A Bill for suppressing religious orders introduced into the German Parliament. It subsequently became a law.

The Steamship Schiller was wrecked on the coast of Great Britain. Three hundred and eleven lives were lost.

” 10—Centennial anniversary of the capture of Fort Ticonderoga by Ethan Allen.

” 15—Attorney General Williams resigned and Judge Edwards Pierpont was appointed his successor.

” 17—John C. Breckenridge, formerly Vice President of the United States, and a general in the Confederate army during the Civil War, died, aged 54.

” 18—A fearful earthquake in New Granada, South America. The city of Cucuta was completely destroyed; between two and three thousand lives were lost and more than \$8,000,000 of property destroyed.

” 20—Celebration of the Mecklenburg, N. C., Declaration of Independence, with great enthusiasm.

” 30—The Steamer Vicksburg, on a voyage from Canada to England, was wrecked in a field of ice. 80 lives were lost.

June 17—Centennial anniversary of the battle of Bunker Hill was celebrated with great eclat. Its most interesting feature was the fraternal spirit manifested by the North and South toward each other. Several Southern States were represented by bodies of soldiers.

” 30—Business failures since Jan. 1, of this year reported at 3,377, with liabilities amounting in all to \$74,940,869.

July 8—Gen. Frank P. Blair, Jun., died in St. Louis, aged 54.

” 18—Lady Franklin, widow of Sir John Franklin, the unfortunate Arctic Explorer, died in England, aged 70.

Great loss of life and property has been caused in France by floods. In two cities alone the damage is estimated at \$20,000,000, and in the south of France at \$75,000,000. Other parts of Europe have suffered heavily from the same cause.

” 23—Isaac Merrit Singer, inventor of the Sewing Machine of that name, died in London, England, aged 64.

The most prominent political issue of the time is hard money and currency. A Democratic convention in Md., and a Republican convention in Minn., each, yesterday and to-day, adopted a hard money platform. Ohio and Pa. democratic conventions afterwards declared for paper money.

” 31—Ex-President Andrew Johnson died in Tenn., aged 67. He was recently elected U. S. Senator from Tennessee.

Aug.—The Gov. of Tenn. appointed Hon. D. M. Key, to fill the vacancy in the Senate caused by Andrew Johnson's death.

” 4—Republican government in France was strengthened by the passage of a Bill constituting a Senate.

The census of population in Louisiana, gives 850,390, an increase of over 15 per cent. since 1870. The excess of increase of colored over white population has been 45,668.

The census in Wisconsin gives a population of 1,236,090, being an increase of $17\frac{1}{3}$ per cent. since 1870.

” 26—The Bank of California suspended payment. It has long been the leading bank in the Pacific States.

” 27—W. C. Ralston, president of the Bank of California, was drowned while bathing.

Sept. 1—Violent disturbances in Mississippi between whites and blacks result in many deaths.

” 7—The Governor of Miss. called on the President for federal aid to protect citizens and restore order.

CHAPTER XXX. PARLIAMENTARY RULES.

We give in this chapter the Standing Rules and Orders for conducting business in the House of Representatives of the United States, as a proper compend of parliamentary rules for the people of the United States. They are naturally a standard of procedure in all public bodies in this country so far as the circumstances are parallel; they have been carefully compiled and adopted by our highest popular Legislative Body during the course of more than three-quarters of a century, and may therefore be considered thoroughly well adapted to the genius of our people and the character of our institutions; and they were originally based on Jefferson’s Manual, compiled by him for the use, and at the request of the Senate when, as Vice-President of the United States, he became its presiding officer, and was digested by him from the usages of the English Parliament and other Legislative bodies in Europe.

The value of this manual is attested by its use continued to the present day, so far as it is applicable. The Rules of the House are therefore representative of the wisdom of the Old World on this point as well as of the usages of the New.

They deserve to be carefully studied by American citizens above any other body of parliamentary rules for several reasons besides those mentioned above. Hardly any other will be likely to contain so many points of adaptation to popular use; every one should be fairly acquainted with the prevailing usages that he may be ready to act his part well if called on to preside in any public meeting; all who read the reports of congressional doings require such acquaintance with parliamentary usage to fully appreciate many points in such reports, and these Rules are a fine illustration of the spirit of our government and the genius of the American people.

We see, in the most impressive manner, that the utmost pain is taken to make Legislative work orderly, decorous, and as rapid as is consistent with due care that what is done shall be well and carefully done; that no pains are spared, *in regulations*, that every legislator shall have the means of knowing all that is his special business to know; and we discover that proper care is taken to see that

economy and faithfulness are constantly observed by all the officers of the government. If this is not always actually the case there is, at least, no fault in the *arrangements, rules and orders* to that effect. All the people should know to what they may properly hold their Representatives accountable, and they will be prepared to judge of the extent of obedience or transgression. The Rules are just and good. Let the people see that they are properly observed.

The House of Representatives has 160 Rules, the Senate 52, and the Joint Rules of the House and Senate, regulating their intercourse with each other, number 22. Whatever of difference exists between them is unimportant after due allowance is made for the different character and constitution of the two bodies. The principles on which they are founded are identical.

STANDING RULES AND ORDERS FOR CONDUCTING BUSINESS IN THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES.

THE DUTY OF THE SPEAKER.

1. He shall take the chair every day precisely at the hour to which the House shall have adjourned on the preceding day; shall immediately call the members to order; and, on the appearance of a quorum, shall cause the journal of the preceding day to be read.

2. He shall preserve order and decorum; may speak to points of order in preference to other members, rising from his seat for that purpose; and shall decide questions of order, subject to an appeal to the House by any two members—on which appeal no member shall speak more than once, unless by leave of the House.

3. He shall rise to put a question, but may state it sitting.

4. Questions shall be distinctly put in this form, to wit: “As many as are of opinion that (as the question may be) say *Aye*,” and after the affirmative voice is expressed, “As many as are of the contrary opinion say *No*.” If the Speaker doubt, or a division be called for, the House shall divide; those in the affirmative of the question shall first rise from their seats, and afterwards those in the negative. If the Speaker still doubt, or a count be required by at least one-fifth of the quorum of the members, the Speaker shall name two members, one from each side, to tell the members in the affirmative and negative—which being reported, he shall rise and state the decision to the House.

5. The Speaker shall examine and correct the journal before it is read. He shall have a general direction of the hall, and the unappropriated rooms in that part of the capitol assigned to the House shall be subject to his order and disposal until the further order of the House. He shall have a right to name any member to perform the duties of the chair, but such substitution shall not extend beyond an adjournment.

6. No person shall be permitted to perform divine service in the chamber occupied by the House of Representatives, unless with the consent of the Speaker.

7. In all cases of ballot by the House, the Speaker shall vote; in other cases he shall not be required to vote, unless the House be equally divided, or unless his vote, if given to the minority, will make the division equal; and in case of such equal division, the question shall be lost.

8. All acts, addresses, and joint resolutions, shall be signed by the Speaker; and all writs, warrants, and subpoenas, issued by order of the House, shall be under his hand and seal, attested by the clerk.

9. In case of any disturbance or disorderly conduct in the galleries or lobby, the Speaker (or Chairman of the Committee of the Whole House,) shall have power to order the same to be cleared.

OF THE CLERK AND OTHER OFFICERS.

10. There shall be elected at the commencement of each Congress, to continue in office until their successors are appointed, a clerk, sergeant-at-arms, doorkeeper, and postmaster, each of whom shall take an oath for the true and faithful discharge of the duties of his office, to the best of his knowledge and abilities, and to keep the secrets of the House; and the appointees of the doorkeeper and postmaster shall be subject to the approval of the Speaker; and, in all cases of election by the House of its officers, the vote shall be taken *viva voce*.

11. In all cases where other than members of the House may be eligible to an office by the election of the House, there shall be a previous nomination.

12. In all other cases of ballot than for committees, a majority of the votes given shall be necessary to an election; and where there shall not be such a majority on the first ballot, the ballots shall be repeated until a majority be obtained. And in all ballotings blanks shall be rejected, and not taken into the count in enumeration of the votes, or reported by the tellers.

13. It shall be the duty of the clerk to make and cause to be printed and delivered to each member at the commencement of every session of Congress, a list of the reports which it is the duty of any officer or department of the government to make to Congress; referring to the act or resolution and page of the volume of the laws or journal in which it may be contained, and placing under the name of each officer the list of reports required to be made, and the time when the report may be expected.

14. It shall be the duty of the clerk of the House at the end of each session, to send a printed copy of the journals thereof to the Executive, and to each branch of the Legislature of every State.

15. All questions of order shall be noted by the clerk, with the decision, and put together at the end of the journal of every session.

16. The clerk shall, within thirty days after the close of each session of Congress, cause to be completed the printing and primary distribution to members and delegates, of the Journal of the House, together with an accurate index of the same.

17. There shall be retained in the library of the clerk's office, for the use of the members there, and not to be withdrawn therefrom, two copies of all the books and printed documents deposited in the library.

18. The clerk shall have preserved for each member of the House an extra copy, in good binding, of all the documents printed by order of either House at each future session of Congress.

19. The clerk shall make a weekly statement of the resolutions and bills (Senate bills inclusive) upon the Speaker's table accompanied with a brief reference to the orders and proceedings of the House upon each, and the date of such order and proceedings; which statement shall be printed for the use of the members.

20. The clerk shall cause an index to be prepared to the acts passed at every session of Congress, and to be printed and bound with the acts.

21. All contracts, bargains, or agreements, relative to the furnishing any matter or thing or for the performance of any labor for the House of Representatives, shall be made with the clerk, or approved by him, before any allowances shall be made therefor by the Committee of Accounts.

22. It shall be the duty of the sergeant-at-arms to attend the House during its sittings; to aid in the enforcement of order under the direction of the Speaker; to

execute the commands of the House from time to time; together with all such process, issued by authority thereof, as shall be directed to him by the Speaker.

23. The symbol of his office (the mace) shall be borne by the sergeant-at-arms when in the execution of his office.

24. The fees of the sergeant-at-arms shall be for every arrest, the sum of two dollars; for each day's custody and releasement, one dollar; and for traveling expenses for himself or a special messenger, going and returning, one-tenth of a dollar for each mile necessarily and actually traveled by such officer or other person in the execution of such precept or summons.

25. It shall be the duty of the sergeant-at-arms to keep the accounts for the pay and mileage of members, to prepare checks, and, if required to do so, to draw the money on such checks for the members, (the same being previously signed by the Speaker, and endorsed by the member,) and pay over the same to the member entitled thereto.

26. The sergeant-at-arms shall give bond, with surety, to the United States, in a sum not less than five nor more than ten thousand dollars, at the discretion of the Speaker, and with such surety as the Speaker may approve, faithfully to account for the money coming into his hands for the pay of members.

27. The doorkeeper shall execute strictly the 134th and 135th rules, relative to the privilege of the hall. And he shall be required, at the commencement and close of each session of Congress, to take an inventory of all the furniture, books, and other public property in the several committee and other rooms under his charge, and shall report the same to the House; which report shall be referred to the Committee on Accounts, who shall determine the amount for which he shall be held liable for missing articles.

28. The postmaster shall superintend the post-office kept in the capitol for the accommodation of the members.

OF THE MEMBERS.

29. No member shall vote on any question in the event of which he is immediately and particularly interested, or in any case where he was not within the bar of the House when the question was put. And when any member shall ask leave to vote, the Speaker shall propound to him the question, "Were you within the bar before the last name on the roll was called?" and if he shall answer in the negative the Speaker shall not further entertain the request of such member to

vote: Provided, however, that any member who was absent by leave of the House, may vote at any time before the result is announced.

30. Upon a division and count of the house on any question, no member without the bar shall be counted.

31. Every member who shall be in the house when the question is put, shall give his vote unless the House shall excuse him. All motions to excuse a member from voting, shall be made before the house divides, or before the call of the yeas and nays is commenced; and the question shall then be taken without debate.

32. The name of a member who presents a petition or memorial, or who offers a resolution for the consideration of the House, shall be inserted on the journals.

33. No member shall absent himself from the service of the House unless he have leave, or be sick and unable to attend.

OF CALLS OF THE HOUSE.

34. Any fifteen members (including the Speaker, if there be one), shall be authorized to compel the attendance of absent members.

35. Upon calls of the House, or in taking the yeas and nays on any question, the names of the members shall be called alphabetically.

36. Upon the call of the House, the names of the members shall be called over by the clerk, and the absentees noted; after which the names of the absentees shall again be called over; the doors shall then be shut, and those for whom no excuse or insufficient excuses are made may, by order of those present, if fifteen in number, be taken into custody as they appear, or may be sent for and taken into custody, wherever to be found, by special messengers to be appointed for that purpose.

37. When a member shall be discharged from custody, and admitted to his seat, the House shall determine whether such discharge shall be with or without paying fees; and in like manner whether a delinquent member, taken into custody by a special messenger, shall or shall not be liable to defray the expenses of such special messenger.

ON MOTIONS, THEIR PRECEDENCE, ETC.

38. When a motion is made and seconded, it shall be stated by the Speaker; or, being in writing, it shall be handed to the chair and read aloud by the clerk, before debated.

39. Every motion shall be reduced to writing if the Speaker or any member desire it. Every written motion made to the House shall be inserted on the journals, with the name of the member making it, unless it be withdrawn on the same day on which it was submitted.

40. After a motion is stated by the Speaker, or read by the clerk, it shall be deemed to be in the possession of the House, but may be withdrawn at any time before a decision or amendment.

41. When any motion or proposition is made, the question, “Will the House now consider it?” shall not be put unless it is demanded by some member, or is deemed necessary by the Speaker.

42. When a question is under debate, no motion shall be received but to adjourn, to lie on the table, for the previous question, to postpone to a certain day, to commit or amend, to postpone indefinitely; which several motions shall have precedence in the order in which they are arranged; and no motion to postpone to a certain day, to commit, or postpone indefinitely, being decided, shall be again allowed on the same day, and at the same stage of the bill or proposition.

43. When a resolution shall be offered, or a motion made, to refer any subject, and different committees shall be proposed, the question shall be taken in the following order:

The Committee of the Whole House on the state of the Union; the Committee of the Whole House; a Standing Committee; a Select Committee.

44. A motion to adjourn, and a motion to fix the day to which the House shall adjourn, shall be always in order; these motions and the motion to lie on the table, shall be decided without debate.

45. The hour at which every motion to adjourn is made shall be entered on the journal.

46. Any member may call for the division of a question before or after the main question is ordered, which shall be divided if it comprehend propositions in substance so distinct that, one being taken away, a substantive proposition shall remain for the decision of the House. A motion to strike out and insert shall be deemed indivisible; but a motion to strike out being lost, shall preclude neither amendment nor a motion to strike out and insert.

47. Motions and reports may be committed at the pleasure of the House.

48. No motion or proposition on a subject different from that under consideration shall be admitted under color of amendment. No bill or resolution shall, at any time, be amended by annexing thereto, or incorporating therewith, any other bill or resolution pending before the House.

49. When a motion has been once made, and carried in the affirmative or negative, it shall be in order for any member of the majority to move for the reconsideration thereof, on the same or succeeding day; and such motion shall take precedence of all other questions, except a motion to adjourn, and shall not be withdrawn after the said succeeding day without the consent of the House; and thereafter any member may call it up for consideration.

50. In filling up blanks, the largest sum and longest time shall be first put.

ORDER OF BUSINESS OF THE DAY.

51. As soon as the journal is read, and the unfinished business in which the House was engaged at the last preceding adjournment has been disposed of, reports from committees shall be called for and disposed of; in doing which the Speaker shall call upon each standing committee in regular order, and then upon select committees; and if the Speaker shall not get through the call upon the committees before the House passes to other business, he shall resume the next call where he left off, giving preference to the report last under consideration: Provided, That whenever any committee shall have occupied the morning hour on two days, it shall not be in order for such committee to report further until the other committees shall have been called in their turn. On the call for reports from committees on each alternate Monday, which shall commence as soon as the journal is read, all bills reported during the first hour after the journal is read shall be committed, without debate, to the Committee of the Whole, and together with their accompanying reports, printed; and if during the hour all the committees are not called, then, on the next alternate Monday, the Speaker shall commence where such call was suspended: Provided, That no bill reported under the call on alternate Mondays, and committed, shall be again brought before the House by a motion to reconsider.

52. Reports from committees having been presented and disposed of, the Speaker shall call for resolutions from the members of each State and delegate from each Territory, beginning with Maine and the Territory last organized, alternately; and they shall not be debated on the very day of their being presented, nor on any day assigned by the House for the receipt of resolutions, unless where the House shall direct otherwise, but shall lie on the table, to be

taken up in the order in which they are presented; and if on any day the whole of the States and Territories shall not be called, the Speaker shall begin on the next day where he left off the previous day: Provided, That no member shall offer more than one resolution, or one series of resolutions, all relating to the same subject, until all the States and Territories shall have been called.

53. A proposition requesting information from the President of the United States, or directing it to be furnished by the head of either of the Executive departments, or by the Postmaster General—shall lie on the table one day for consideration, unless otherwise ordered by the unanimous consent of the House, and all such propositions shall be taken up for consideration in the order they were presented, immediately after reports are called for from select committees, and when adopted the clerk shall cause the same to be delivered.

54. After one hour shall have been devoted to reports from committees and resolutions, it shall be in order, pending the consideration or discussion thereof, to entertain a motion that the House do now proceed to dispose of the business on the Speaker's table, and to the orders of the day—which being decided in the affirmative, the Speaker shall dispose of the business on his table in the following order, viz.:

1st. Messages and other Executive communications.

2d. Messages from the Senate, and amendments proposed by the Senate to bills of the House.

3d. Bills and resolutions from the Senate on their first and second reading, that they be referred to committees and put under way; but if, on being read a second time, no motion being made to commit, they are to be ordered to their third reading unless objection be made; in which case, if not otherwise ordered by a majority of the House, they are to be laid on the table in general file of bills on the Speaker's table, to be taken up in their turn.

4th. Engrossed bills and bills from the Senate on their third reading.

5th. Bills of the House and from the Senate on the Speaker's table, on their engrossment, or on being ordered to a third reading, to be taken up and considered in the order of time in which they passed to a second reading.

The messages, communications and bills on his table having been disposed of, the Speaker shall then proceed to call the orders of the day.

55. The business specified in the 54th and 130th rules shall be done at no other part of the day, except by permission of the House.

56. The consideration of the unfinished business in which the House may be engaged at an adjournment shall be resumed as soon as the journal of the next day is read, and at the same time each day thereafter until disposed of; and if, from any cause, other business shall intervene, it shall be resumed as soon as such other business is disposed of. And the consideration of all other unfinished business shall be resumed whenever the class of business to which it belongs shall be in order under the rules.

OF DECORUM AND DEBATE.

57. When any member is about to speak in debate, or deliver any matter to the House, he shall rise from his seat and respectfully address himself to “Mr. Speaker”—and shall confine himself to the question under debate, and avoid personality.

58. Members may address the House or committee from the clerk’s desk, or from a place near the Speaker’s chair.

59. When two or more members happen to rise at once, the Speaker shall name the member who is first to speak.

60. No member shall occupy more than one hour in debate on any question in the House, or in committee; but a member reporting the measure under consideration from a committee may open and close the debate, provided that when debate is closed by order of the House, any member shall be allowed, in committee, five minutes to explain any amendment he may offer, after which any member who shall first obtain the floor shall be allowed to speak five minutes in opposition to it, and there shall be no further debate on the amendment; but the same privilege of debate shall be allowed in favor of and against any amendment that may be offered to the amendment; and neither the amendment nor an amendment to the amendment shall be withdrawn by the mover thereof, unless by the unanimous consent of the committee. Provided further, that the House may, by the vote of a majority of the members present, at any time after the five minutes’ debate has taken place upon proposed amendments to any section or paragraph of a bill, close all debate upon such section or paragraph, or at their election upon the pending amendments only.

61. If any member in speaking or otherwise, transgress the rules of the House, the Speaker shall, or any member may call him to order; in which case the member so called to order shall immediately sit down, unless permitted to explain; and the House shall, if appealed to, decide on the case, but without debate; if there be no appeal the decision of the chair shall be submitted to. If the decision be in favor of the member called to order, he shall be at liberty to proceed; if otherwise, he shall not be permitted to proceed, in case any member object, without leave of the House; and if the case require it, he shall be liable to the censure of the House.

62. If any member be called to order for words spoken in debate, the person calling him to order shall repeat the words excepted to, and they shall be taken down in writing at the clerk's table; and no member shall be held to answer, or be subject to the censure of the House, for words spoken in debate, if any other member has spoken, or other business has intervened, after the words spoken, and before exception to them shall have been taken.

63. No member shall speak more than once to the same question without leave of the House, unless he be the mover, proposer or introducer of the matter pending; in which case he shall be permitted to speak in reply, but not until every member choosing to speak shall have spoken.

64. If a question depending be lost by adjournment of the House, and revived on the succeeding day, no member who shall have spoken on the preceding day shall be permitted again to speak without leave.

65. While the Speaker is putting any question, or addressing the House, none shall walk out of or across the House; nor in such case, or when a member is speaking, shall entertain private discourse; nor while a member is speaking, shall pass between him and the chair. Every member shall remain uncovered during the session of the House. No member or other person shall visit or remain by the clerk's table while the ayes and noes are calling, or ballots are counting.

66. All questions relating to the priority of business to be acted on shall be decided without debate.

OF COMMITTEES.

67. All committees shall be appointed by the Speaker, unless otherwise specially directed by the House, in which case they shall be appointed by ballot; and if upon such ballot the number required shall not be elected by a majority of the votes given, the House shall proceed to a second ballot, in which a plurality

of votes shall prevail; and in case a greater number than is required to compose or complete a committee shall have an equal number of votes, the House shall proceed to a further ballot or ballots.

68. The first named member of any committee shall be the chairman; and in his absence, or being excused by the House, the next named member, and so on, as often as the case shall happen, unless the committee, by a majority of their number, elect a chairman.

69. Any member may excuse himself from serving on any committee at the time of his appointment, if he is then a member of two other committees.

70. It shall be the duty of a committee to meet on the call of any two of its members, if the chairman be absent, or decline to appoint such meeting.

71. The several standing committees of the House shall have leave to report by bill or otherwise.

72. No committee shall sit during the sitting of the House without special leave.

73. No committee shall be permitted to employ a clerk at the public expense, without first obtaining leave of the House for that purpose.

74. Thirty-one standing committees shall be appointed at the commencement of each Congress, viz.:

TO CONSIST OF NINE MEMBERS EACH.

A Committee of Elections.—Nov. 13, 1789.

A Committee of Ways and Means.—Jan. 1802.

A Committee on Appropriations.—March 2, 1865.

A Committee on Banking and Currency.—March 2, 1865.

A Committee on the Pacific Railroad.—March 2, 1865.

A Committee on Claims.—Nov. 13, 1794.

A Committee on Commerce.—Dec. 14, 1795.

A Committee on Public Lands.—Dec. 17, 1805.

A Committee on the Post Office and Post Roads.—Nov. 9, 1806.

A Committee for the District of Columbia.—Jan. 27, 1808.

A Committee on the Judiciary.—June 3, 1813.

A Committee on Revolutionary Claims.—Dec. 22, 1813.
A Committee on Public Expenditures.—Feb. 26, 1814.
A Committee on Private Land Claims.—April 29, 1816.
A Committee on Manufactures.—Dec. 8, 1819.
A Committee on Agriculture.—May 3, 1820.
A Committee on Indian Affairs.—Dec. 18, 1821.
A Committee on Military Affairs.—March 13, 1822.
A Committee on Militia.—Dec. 10, 1835.
A Committee on Naval Affairs.—March 13, 1822.
A Committee on Foreign Affairs.—March 13, 1822.
A Committee on the Territories.—Dec. 13, 1825.
A Committee on Revolutionary Pensions.—Dec. 9, 1825.
A Committee on Invalid Pensions.—Jan. 10, 1831.
A Committee on Railways and Canals.—Dec. 15, 1831; April 9, 1869.
A Committee on Mines and Mining.—Dec. 19, 1865.
A Committee on Freedmen's Affairs.—Dec. 4, 1866.
A Committee on Education and Labor.—March 21, 1867.

TO CONSIST OF FIVE MEMBERS EACH.

A Committee on Patents.—Sept. 15, 1837.
A Committee on Public Buildings and Grounds.—Sept. 15, 1837.
A Committee of Revisal and Unfinished Business.—Dec. 14, 1795.
A Committee on Accounts.—Nov. 7, 1804.
A Committee on Mileage.—Sept. 15, 1837.

TO CONSIST OF SEVEN MEMBERS.

A Committee on Coinage, Weights and Measures.—Jan. 21, 1864: March 2, 1867.

75. It shall be the duty of the Committee of Elections to examine and report upon the certificates of election, or other credentials, of the members returned to serve in this House, and to take into their consideration all such petitions and other matters touching elections and returns as shall or may be presented or come into question, and be referred to them by the House.

76. It shall be the duty of the Committee on Appropriations to take into consideration all Executive communications and such other propositions in regard to carrying on the several departments of the government as may be presented and referred to them by the House.

In preparing bills of appropriations for other objects, the Committee on Appropriations shall not include appropriations for carrying into effect treaties made by the United States; and where an appropriation bill shall be referred to them for their consideration, which contains appropriations for carrying a treaty into effect, and for other objects, they shall propose such amendments as shall prevent appropriations for carrying a treaty into effect being included in the same bill with appropriations for other objects.

77. It shall also be the duty of the Committee on Appropriations, within thirty days after their appointment, at every session of Congress, commencing on the first Monday of December, to report the general appropriation bills for legislative, executive, and judicial expenses; for sundry civil expenses; for consular and diplomatic expenses; for the army; for the navy; for the expenses of the Indian Department; for the payment of invalid and other pensions; for the support of the Military Academy; for fortifications; for the service of the Postoffice Department, and for mail transportation by ocean steamers; or, in failure thereof, the reasons of such failure. And said committee shall have leave to report said bills (for reference only) at any time.

78. It shall be the duty of the Committee of Claims to take into consideration all such petitions and matters or things touching claims and demands on the United States as shall be presented, or shall or may come in question, and be referred to them by the House; and to report their opinion thereupon, together with such propositions for relief therein as to them shall seem expedient.

79. It shall be the duty of the Committee on Commerce to take into consideration all such petitions and matters or things touching the commerce of the United States as shall be presented, or shall or may come into question, and be referred to them by the House; and to report, from time to time, their opinion thereon.

80. It shall be the duty of the Committee on the Public Lands to take into consideration all such petitions and matters or things respecting the lands of the United States as shall be presented, or shall or may come in question, and be referred to them by the House; and to report their opinion thereon, together with such propositions for relief therein as to them shall seem expedient.

81. It shall be the duty of the Committee on the Post-Office and Post-Roads to take into consideration all such petitions and matters or things touching the post-office and post-roads as shall be presented, or shall come in question, and be referred to them by the House; and to report their opinion thereon, together with such propositions relative thereto as to them shall seem expedient.

82. It shall be the duty of the Committee for the District of Columbia to take into consideration all such petitions and matters or things touching the said District as shall be presented or shall come in question, and be referred to them by the House; and to report their opinion thereon, together with such propositions relative thereto as to them shall seem expedient.

83. It shall be the duty of the Committee on the Judiciary to take into consideration such petitions and matters or things touching judicial proceedings as shall be presented or may come in question, and be referred to them by the House, and to report their opinion thereon, together with such propositions relative thereto as to them shall seem expedient.

84. It shall be the duty of the Committee on Revolutionary Claims to take into consideration all such petitions and matters or things touching claims and demands originating in the Revolutionary war, or arising therefrom, as shall be presented, or shall or may come in question, and be referred to them by the House, and to report their opinion thereupon, together with such propositions for relief therein as to them shall seem expedient.

85. It shall be the duty of the Committee on Public Expenditures to examine into the state of the several public departments, and particularly into laws making appropriations of money, and to report whether the moneys have been disbursed conformably with such laws; and also to report from time to time such provisions and arrangements as may be necessary to add to the economy of the departments, and the accountability of their officers.

86. It shall be the duty of the Committee on Private Land Claims to take into consideration all claims to land which may be referred to them, or shall or may come in question; and to report their opinion thereupon, together with such propositions for relief therein as to them shall seem expedient.

87. It shall be the duty of the Committee on Military Affairs to take into consideration all subjects relating to the military establishment and public defense which may be referred to them by the House, and to report their opinion thereupon; and also to report, from time to time, such measures as may contribute to economy and accountability in the said establishment.

88. It shall be the duty of the Committee on the Militia to take into consideration and report on all subjects connected with the organizing, arming and disciplining the militia of the United States.

89. It shall be the duty of the Committee on Naval Affairs to take into consideration all matters which concern the naval establishment, and which shall be referred to them by the House, and to report their opinion thereupon; and also to report, from time to time, such measures as may contribute to economy and accountability in the said establishment.

90. It shall be the duty of the Committee on Foreign Affairs to take into consideration all matters which concern the relations of the United States with foreign nations, and which shall be referred to them by the House, and to report their opinion on the same.

91. It shall be the duty of the Committee on the Territories to examine into the legislative, civil and criminal proceedings of the Territories, and to devise and report to the House such means as in their opinion may be necessary to secure the rights and privileges of residents and non-residents.

92. It shall be the duty of the Committee on Revolutionary Pensions to take into consideration all such matters respecting pensions for services in the Revolutionary war, other than invalid pensions, as shall be referred to them by the House.

93. It shall be the duty of the Committee on Invalid Pensions to take into consideration all such matters respecting invalid pensions as shall be referred to them by the House.

94. It shall be the duty of the Committee on Roads and Canals to take into consideration all such petitions and matters or things relating to roads and canals, and the improvement of the navigation of Rivers, as shall be presented or may come in question, and be referred to them by the House, and to report thereupon, together with such propositions relative thereto as to them shall seem expedient.

95. It shall be the duty of the Committee on Patents to consider all subjects relating to patents which may be referred them; and report their opinions thereon, together with such propositions relative thereto as may seem to them expedient.

96. It shall be the duty of the Committee on Public Buildings and Grounds to consider all subjects relating to the public edifices and grounds within the city of Washington which may be referred to them; and report their opinion thereon, together with such propositions relating thereto as may seem to them expedient.

97. It shall be the duty of the Committee of Revisal and Unfinished Business to examine and report what laws have expired, or are near expiring, and require to be revived or further continued; also to examine and report, from the journal of last session, all such matters as were then depending and undetermined.

98. It shall be the duty of the Committee of Accounts to superintend and control the expenditures of the contingent fund of the House of Representatives; also to audit and settle all accounts which may be charged thereon.

99. It shall be the duty of the Committee on Mileage to ascertain and report the distance to the sergeant-at-arms for which each member shall receive pay.

100. There shall be referred by the clerk to the members of the Committee on Printing on the part of the House, all drawings, maps, charts, or other papers which may at any time come before the House for engraving, lithographing, or publishing in any way; which committee shall report to the House whether the same ought, in their opinion, to be published; and if the House order the publication of the same, that said committee shall direct the size and manner of execution of all such maps, charts, drawings, or other papers, and contract by agreement, in writing, for all such engraving, lithographing, printing, drawing, and coloring, as may be ordered by the House; which agreement, in writing, shall be furnished by said committee to the Committee of Accounts, to govern said committee in all allowances for such works, and it shall be in order for said committee to report at all times.

101. It shall be in order for the Committee on Enrolled Bills and the Committee on Printing to report at any time.

102. Seven additional standing committees shall be appointed at the commencement of the first session in each Congress, whose duties shall continue until the first session of the ensuing Congress.

COMMITTEES, TO CONSIST OF FIVE MEMBERS EACH.

1. A committee on so much of the public accounts and expenditures as relates to the Department of State;

2. A committee on so much of the public accounts and expenditures as relates to the Treasury Department;

3. A committee on so much of the public accounts and expenditures as relates to the Department of War;

4. A committee on so much of the public accounts and expenditures as relates to the Department of the Navy;

5. A committee on so much of the public accounts and expenditures as relates to the Post Office;

6. A committee on so much of the public accounts and expenditures as relates to the Public Buildings; and

7. A committee on so much of the public accounts and expenditures as relates to the Interior Department.

103. It shall be the duty of the said committees to examine into the state of the accounts and expenditures respectively submitted to them, and to inquire and to report particularly—

Whether the expenditures of the respective departments are justified by law;

Whether the claims from time to time satisfied and discharged by the respective departments are supported by sufficient vouchers, establishing their justness both as to their character and amount.

Whether such claims have been discharged out of funds appropriated therefor, and whether all moneys have been disbursed in conformity with appropriation laws; and

Whether any, and what, provisions are necessary to be adopted, to provide more perfectly for the proper application of the public moneys, and to secure the government from demands unjust in their character or extravagant in their amount.

And it shall be, moreover, the duty of the said committees to report, from time to time, whether any, and what, retrenchment can be made in the expenditures of the several departments, without detriment to the public service; whether any, and what, abuses at any time exist in the failure to enforce the payment of moneys which may be due to the United States from public defaulters or others; and to report, from time to time, such provisions and arrangements as may be necessary to add to the economy of the several departments and the accountability of their officers.

It shall be the duty of the several committees on public expenditures to inquire whether any officers belonging to the branches or departments, respectively,

concerning whose expenditures it is their duty to inquire, have become useless or unnecessary; and to report from time to time, on the expediency of modifying or abolishing the same; also to examine into the pay and emoluments of all officers under the laws of the United States; and to report from time to time such a reduction or increase thereof as a just economy and the public service may require.

OF COMMITTEES OF THE WHOLE.

104. The House may at any time, by a vote of a majority of the members present, suspend the rules and orders for the purpose of going into the Committee of the Whole House on the State of the Union; and also for providing for the discharge of the Committee of the Whole House, and the Committee of the Whole House on the State of the Union, from the further consideration of any bill referred to it, after acting without debate on all amendments pending and that may be offered.

105. In forming a Committee of the Whole House, the Speaker shall leave his chair, and a chairman to preside in committee shall be appointed by the Speaker.

106. Whenever the Committee of the Whole on the State of the Union, or the Committee of the Whole House, finds itself without a quorum, the chairman shall cause the roll of the House to be called, and thereupon the committee shall rise, and the chairman shall report the names of the absentees to the House, which shall be entered on the journal.

107. Upon bills committed to a Committee of the Whole House, the bill shall be first read throughout by the clerk, and then again read and debated by clauses, leaving the preamble to be last considered; the body of the bill shall not be defaced or interlined; but all amendments, noting the page and line, shall be duly entered by the clerk on a separate paper, as the same shall be agreed to by the committee, and so reported to the House. After report, the bill shall again be subject to be debated and amended by clauses, before a question to engross it be taken.

108. All amendments made to an original motion in committee shall be incorporated with the motion, and so reported.

109. All amendments made to a report committed to a Committee of the Whole House shall be noted and reported, as in the case of bills.

110. No motion or proposition for a tax or charge upon the people shall be discussed the day on which it is made or offered, and every such proposition

shall receive its first discussion in a Committee of the Whole House.

111. No sum or quantum of tax or duty, voted by a Committee of the Whole House, shall be increased in the House until the motion or proposition for such increase shall be first discussed and voted in a Committee of the Whole House; and so in respect to the time of its continuance.

112. All proceedings touching appropriations of money shall be first discussed in a Committee of the Whole House.

113. The rules of proceedings in the House shall be observed in a Committee of the Whole House, so far as they may be applicable, except the rule limiting the times of speaking; but no member shall speak twice to any question until every member choosing to speak shall have spoken.

114. In Committee of the Whole on the State of the Union, the bills shall be taken up and disposed of in their order on the calendar; but when objection is made to the consideration of a bill, a majority of the committee shall decide, without debate, whether it shall be taken up and disposed of, or laid aside; provided, that general appropriation bills, and, in time of war, bills for raising men or money, and bills concerning a treaty of peace, shall be preferred to all other bills at the discretion of the committee; and when demanded by any member, the question shall first be put in regard to them; and all debate on special orders shall be confined strictly to the measure under consideration.

OF BILLS.

115. Every bill shall be introduced on the report of a committee, or by motion for leave. In the latter case, at least one day's notice shall be given of the motion in the House, or by filing a memorandum thereof with the clerk, and having it entered on the journal; and the motion shall be made, and the bill introduced, if leave is given, when resolutions are called for; such motion, or the bill when introduced, may be committed.

116. Every bill shall receive three several readings in the House previous to its passage; and the bills shall be dispatched in order as they were introduced, unless where the House shall direct otherwise; but no bill shall be twice read on the same day, without special order of the House.

117. The first reading of a bill shall be for information, and if opposition be made to it, the question shall be, "Shall this bill be rejected?" If no opposition be made, or if the question to reject be negatived, the bill shall go to its second reading without a question.

118. Upon the second reading of a bill, the Speaker shall state it as ready for commitment or engrossment; and if committed, then a question shall be, whether to a select or standing committee, or to a Committee of the Whole House; if to a Committee of the Whole House, the House shall determine on what day; if no motion be made to commit, the question shall be stated on its engrossment; and if it be not ordered to be engrossed on the day of its being reported, it shall be placed on the general file on the Speaker's table, to be taken up in order. But if the bill be ordered to be engrossed, the House shall appoint the day when it shall be read the third time.

119. General appropriation bills shall be in order in preference to any other bill of a public nature unless otherwise ordered by a majority of the House.

And the House may, at any time, by a vote of the majority of the members present, make any of the general appropriation bills a special order.

120. No appropriation shall be reported in such general appropriation bills, or be in order as an amendment thereto, for any expenditure not previously authorized by law, unless in continuation of appropriations for such public works and objects as are already in progress, and for the contingencies for carrying on the several departments of the government.

121. Upon the engrossment of any bill making appropriations of money for works of internal improvement of any kind or description, it shall be in the power of any member to call for a division of the question, so as to take a separate vote of the House upon each item of improvement or appropriation contained in said bill, or upon such items separately, and others collectively, as the members making the call may specify; and, if one-fifth of the members present second said call, it shall be the duty of the Speaker to make such divisions of the question, and put them to vote accordingly.

122. The bills from the Court of Claims shall, on being laid before the House, be read a first and second time, committed to a Committee of the Whole House, and, together with the accompanying reports, printed.

123. A motion to strike out the enacting words of a bill shall have precedence of a motion to amend; and, if carried, shall be considered equivalent to its rejection. Whenever a bill is reported from a Committee of the Whole, with a recommendation to strike out the enacting words, and such recommendation is disagreed to by the House, the bill shall stand recommitted to the said committees without further action by the House.

124. After commitment and report thereof to the House, or at any time before its passage, a bill may be recommitted; and should such recommitment take place

after its engrossment, and an amendment be reported and agreed to by the House, the question shall be again put on the engrossment of the bill.

125. All bills ordered to be engrossed shall be executed in a fair round hand.

126. No amendment by way of rider shall be received to any bill on its third reading.

127. When a bill shall pass, it shall be certified by the clerk, noting the day of its passage at the foot thereof.

LOCAL OR PRIVATE BUSINESS.

128. Friday and Saturday of every week shall be set apart for the consideration of private bills and private business, in preference to any other, unless otherwise determined by a majority of the House.

129. On the first and fourth Friday and Saturday of each month the calendar of private bills shall be called over (the chairman of the Committee of the Whole House commencing the call where he left off the previous day,) and the bills to the passage of which no objection shall then be made shall be first considered and disposed of. But when a bill is again reached, after having been once objected to, the committee shall consider and dispose of the same, unless it shall again be objected to by at least five members.

OF BILLS ON LEAVE AND RESOLUTIONS.

130. All the States and Territories shall be called for bills on leave and resolutions on each alternate Monday during each session of Congress; and, if necessary to secure the object on said days, all resolutions which shall give rise to debate shall lie over for discussion, under the rules of the House already established; and the whole of said days shall be appropriated to bills on leave and resolutions, until all the States and Territories are called through. And the Speaker shall first call the States and Territories for bills on leave; and all bills so introduced during the first hour after the journal is read shall be referred, without debate, to their appropriate committees; provided, however, that a bill so introduced and referred shall not be brought back into the House upon a motion to reconsider.

OF PETITIONS AND MEMORIALS.

131. Members having petitions and memorials to present, may hand them to the clerk, indorsing the same with their names, and the reference or disposition to be made thereof; and such petitions and memorials shall be entered on the journal, subject to the control and direction of the Speaker; and if any petition or memorial be so handed in, which, in the judgment of the Speaker, is excluded by the rules, the same shall be returned to the member from whom it was received.

OF THE PREVIOUS QUESTION.

132. The previous question shall be in this form: "Shall the main question be now put?" It shall only be admitted when demanded by a majority of the members present; and its effect shall be to put an end to all debate, and to bring the House to a direct vote upon a motion to commit if such motion shall have been made; and if this motion does not prevail, then upon amendments reported by a committee, if any; then upon pending amendments, and then upon the main question. But its only effect, if a motion to postpone is pending, shall be to bring the House to a vote upon such motion. Whenever the House shall refuse to order the main question, the consideration of the subject shall be resumed as though no motion for the previous question had been made. The House may also, at any time, on motion seconded by a majority of the members present, close all debate upon a pending amendment, or an amendment thereto, and cause the question to be put thereon; and this shall not preclude any further amendment or debate upon the bill. A call of the House shall not be in order after the previous question is seconded, unless it shall appear, upon an actual count by the Speaker, that no quorum is present.

133. On a previous question there shall be no debate. All incidental questions of order arising after a motion is made for the previous question and pending such motion, shall be decided, whether on appeal or otherwise, without debate.

OF ADMISSION ON THE FLOOR.

134. No person except members of the Senate, their secretary, heads of departments, the President's private secretary, foreign ministers, the Governor for the time being of any State, Senators and Representatives elect, and Judges of the Supreme Court of the United States and of the Court of Claims, shall be admitted within the hall of the House of Representatives, or any of the rooms upon the same floor or leading into the same.

OF REPORTERS.

135. Stenographers and reporters, other than the official reporters of the House, wishing to take down the debates, may be admitted by the Speaker to the reporters' gallery over the Speaker's chair, but not on the floor of the House; but no person shall be allowed the privilege of said gallery under the character of stenographer or reporter without a written permission of the Speaker, specifying the part of said gallery assigned to him; nor shall said stenographer or reporter be admitted to said gallery unless he shall state in writing for what paper or papers he is employed to report; nor shall he be so admitted, or, if admitted, be suffered to retain his seat, if he shall become an agent to prosecute any claim pending before Congress; and the Speaker shall give his written permission with this condition.

UNFINISHED BUSINESS OF THE SESSION.

136. After six days from the commencement of a second or subsequent session of any Congress, all bills, resolutions, and reports which originated in the House, and at the close of the next preceding session remained undetermined, shall be resumed and acted on in the same manner as if an adjournment had not taken place. And all business before committees of the House at the end of one session shall be resumed at the commencement of the next session of the same Congress as if no adjournment had taken place.

MISCELLANEOUS.

137. Whenever confidential communications are received from the President of the United States, the House shall be cleared of all persons, except the members, clerk, sergeant-at-arms, and doorkeeper, and so continue during the reading of such communications, and (unless otherwise directed by the House) during all debates and proceedings to be had thereon. And when the Speaker, or any other member, shall inform the House that he has communications to make which he conceives ought to be kept secret, the House shall, in like manner, be cleared till the communication be made; the House shall then determine whether the matter communicated requires secrecy or not, and take order accordingly.

138. The rule for paying witnesses summoned to appear before this House, or either of its committees, shall be as follows: for each day a witness shall attend, the sum of two dollars; for each mile he shall travel in coming to or going from the place of examination, the sum of ten cents each way; but nothing shall be paid for traveling home when the witness has been summoned at the place of trial.

139. Maps accompanying documents shall not be printed, under the general order to print, without the special direction of the House.

140. No extra compensation shall be allowed to any officer or messenger, page, laborer, or other person in the service of the House, or engaged in or about the public grounds or buildings; and no person shall be an officer of the House, or continue in its employment, who shall be an agent for the prosecution of any claim against the government, or be interested in such claim otherwise than an original claimant; and it shall be the duty of the Committee of Accounts to inquire into and report to the House any violation of this rule.

141. When the reading of a paper is called for, and the same is objected to by any member, it shall be determined by a vote of the House.

142. When a question is postponed indefinitely, the same shall not be acted upon again during the session.

143. Every order, resolution, or vote, to which the concurrence of the Senate shall be necessary, shall be read to the House, and laid on the table, on a day preceding that in which the same shall be moved, unless the House shall otherwise expressly allow.

144. The rules of parliamentary practice, comprised in Jefferson's Manual, shall govern the House in all cases to which they are applicable, and in which they are not inconsistent with the standing rules and orders of the House, and joint rules of the Senate and House of Representatives.

145. No standing rule or order of the House shall be rescinded or changed without one day's notice being given of the motion therefor; nor shall any rule be suspended, except by a vote of at least two-thirds of the members present; nor shall the order of business, as established by the rules, be postponed or changed, except by a vote of at least two-thirds of the members present; nor shall the Speaker entertain a motion to suspend the rules, except during the last ten days of the session, and on Monday of every week at the expiration of an hour after the journal is read, unless the call of the States and Territories for bills on leave and resolutions has been earlier concluded, when the Speaker may entertain a motion to suspend the rules.

146. All election of officers of the House, including the Speaker, shall be conducted in accordance with these rules, so far as the same are applicable; and pending the election of a Speaker, the clerk shall preserve order and decorum, and shall decide all questions of order that may arise, subject to appeal to the House.

147. These rules shall be the rules of the House of Representatives of the present and succeeding Congresses unless otherwise ordered.

148. An additional standing committee shall be appointed at the commencement of each Congress, whose duties shall continue until the first session of the ensuing Congress, to consist of five members, to be entitled a "Committee on a Uniform System of Coinage, Weights, and Measures;" and to this committee shall be referred all bills, resolutions, and communications to the House upon that subject.

149. The names of members not voting on any call of the ayes and noes shall be recorded in the journal immediately after those voting in the affirmative and negative, and the same record shall be made in the Congressional Globe.

150. It shall be the duty of the Committee on the Pacific Railroad to take into consideration all such petitions and matters or things relative to railroads or telegraph lines between the Mississippi valley and the Pacific coast, as shall be presented or shall come in question, and be referred to them by the House, and to report their opinion thereon, together with such propositions relative thereto as to them shall seem expedient.

151. It shall be the duty of the Committee of Ways and Means to take into consideration all reports of the Treasury Department, and such other propositions relative to raising revenue and providing ways and means for the support of the government as shall be presented or shall come in question, and be referred to them by the House, and to report their opinion thereon by bill or otherwise, as to them shall seem expedient; and said committee shall have leave to report for commitment at any time.

152. It shall be the duty of the Committee on Banking and Bank Currency to take into consideration all propositions relative to banking and the currency as shall be presented or shall come in question, and be referred to them by the House, and to report thereon by bill or otherwise.

153. It shall be the duty of the Committee on Mines and Mining to consider all subjects relating to mines and mining that may be referred to them, and to report their opinion thereon, together with such propositions relative thereto as may seem to them expedient.

154. The allowance of stationery to each member and delegate shall be of the value of seventy-five dollars for a long session, and forty-five dollars for a short session of Congress.

155. The hall of the House shall not be used for any other purpose than the legitimate business of the House, nor shall the Speaker entertain any proposition to use it for any other purpose, or for the suspension of this rule: Provided, That this shall not interfere with the performance of divine service therein, under the direction of the Speaker, or with the use of the same for caucus meetings of the members, or upon occasions where the House may, by resolution, agree to take part in any ceremonies to be observed therein.

156. There shall be appointed at the commencement of each Congress a standing Committee on Freedmen's Affairs, to consist of nine members, whose duty it shall be to take charge of all matters concerning freedmen, which shall be referred to them by the House.

157. When an act has been approved by the President, the usual number of copies shall be printed for the use of the House.

158. Messages from the Senate and the President of the United States, giving notice of bills passed or approved, shall be reported forthwith from the clerk's desk.

159. Estimates of appropriations, and all other communications from the executive departments, intended for the consideration of any of the committees of the House, shall be addressed to the Speaker and by him submitted to the House for reference.

160. There shall be appointed to each Congress a Committee on Education and Labor, to consist of nine members, to whom shall be referred all petitions, bills, reports, and resolutions on those subjects, and who shall from time to time report thereon.

161. Pending a motion to suspend the rules the Speaker may entertain one motion that the House do now adjourn; but after the result thereon is announced, he shall not entertain any other dilatory motion till the vote is taken on suspension.

162. Whenever a question is pending before the House, the Speaker shall not entertain any motion of a dilatory character except one motion to adjourn and one motion to fix the day to which the House shall adjourn; but the previous question on the engrossment and third reading of any bill or joint resolution shall not be ordered during the first day of its consideration, unless two thirds of the members present shall second the demand: provided, that this rule shall not apply to House resolutions offered in the morning hour of Monday: and provided further, that it shall not apply to any proposition to appropriate the money, the

credit, or other property of the United States, except the regular annual appropriation bills.

CHAPTER XXXI.
THE STATISTICS OF THE WORLD.

COUNTRY.	Population.	Square miles.	Title of Ruler.	Capital.
NORTH AMERICA.				
Arctic Region	—	600,000	—	None.
Bermuda	12,000	46	Governor	Hamilton.
Columbia (Brit.)	54,600	230,000	Governor	N. Westminster.
Costa Rica	150,000	16,250	President	San Jose.
Greenland	10,000	380,000	Inspector	Lichtenfels.
Guatemala	1,180,000	44,778	President	Guatemala.
Honduras	500,000	47,092	President	Comayagua.
Honduras (Brit.)	25,635	13,500	Lt. Gov	Belize.
Mexico	8,743,614	773,144	President	Mexico.
Mosquito	16,000	26,000	King	Blewfields.
New Britain	200,000	1,800,000	—	York Factory.
New Brunswick	285,777	27,720	Lt. Gov.	Fredericton.
Newfoundland	146,536	40,200	Governor	St. John's.
Nicaragua	400,000	58,169	President	Managua.
Nova Scotia	387,800	19,650	Lt. Gov.	Halifax.
Ontario	1,620,842	180,000	Lt. Gov.	Toronto.
Prince Edward Island	93,338	2,173	Lt. Gov.	Charlottetown.
Quebec	1,190,505	210,000	Lt. Gov.	Quebec.
San Salvador	750,000	7,230	President	San Salvador.
St. Pierre	2,250	120	Com.	St. Pierre.
United States	40,000,000	3,578,392	President	Washington.
SOUTH AMERICA.				
Argentine Confederacy	1,800,000	826,828	President	Buenos Ayres.

Bolivia	1,987,352	535,760	President	Chuqueaca.
Brazil	11,780,000	3,231,047	Emperor	Rio Janeiro.
Cayenne	27,560	30,000	Governor	Cayenne.
Chili	2,084,945	139,335	President	Santiago.
Colombia	2,794,470	357,179	President	S. Fe de Bogota.
Demerara, etc.	148,900	76,000	Governor	Georgetown.
Ecuador	1,040,371	218,984	President	Quito.
Falkland Islands	686	7,600	Governor	Port Louis.
Paraguay	1,337,431	126,352	President	Asuncion.
Patagonia	120,000	315,000	—	None.
Peru	3,374,000	510,107	President	Lima.
Surinam	64,270	38,500	Governor	Parimaraibo.
Uruguay	387,421	66,716	President	Monte Video.
Venezuela	1,565,000	426,712	President	Caracas.
WEST INDIA ISLANDS				
Antigua	36,412	183	Governor	St. John's.
Bahamas	35,287	3,021	Governor	Nassau.
Barbadoes	152,127	166	Governor	Bridgetown.
Burmudas	11,796	—	Governor	Hamilton.
Curacoa	30,000	580	—	Williamstadt.
Cuba	1,500,000	43,383	Capt. Gen.	Havana.
Dominica	26,882	290	Lt. Gov.	Rosseau.
Grenada	36,672	133	Lt. Gov.	St. George.
Guaduloupe, etc.	134,544	534	—	Basse Terre.
Hayti	572,000	11,718	President	Port au Prince.
Jamaica	441,255	6,400	Capt. Gen.	Spanish Town.
Martinique	121,145	322	—	Port Royal.
Montserrat	7,645	47	President	Plymouth.
Nevis	9,822	50	Adminis.	Charlestown.
Porto Rico	620,000	3,895	Capt. Gen.	San Juan.
St. Bartholomew's	10,000	25	—	Gustavia.
St. Christopher, etc.	26,940	103	Lt. Gov.	Basse Terre.
St. John's	3,000	72	—	

St. Lucia	29,519	250	Adminis.	Castries.
St. Martin's (S.)	3,500	11		
St. Thomas	13,463	37		
St. Vincent	31,755	131	Lt. Gov.	Kingston.
San Domingo	136,500	18,000	President	San Domingo.
Santa Cruz etc.	35,000	81	—	Christianstadt.
Tobago	15,410	97	Lt. Gov.	Scarboro.
Trinidad	84,438	1,754	Governor	Port Espana.
Turk's Island	4,372	450	President	Grand Turk.
Virgin Islands	6,051	57	President	Road Town.
EUROPE.				
Andorra	12,000	149	Rep.	Andorra.
Austria	35,677,455	240,381	Emperor	Vienna.
Belgium	4,984,451	11,373	King	Brussels.
Denmark	1,608,362	14,734	King	Copenhagen.
Faroe and Iceland	75,909	40,258		
France	38,192,064	209,428	President	Paris.
Germany				
<i>Northern Confederation</i>				
Anhalt	197,041	1,026	Duke	Dessau.
Bremen	109,572	74	Burgom	Bremen.
Brunswick	302,792	1,425	Duke	Brunswick.
Hamburg	305,196	156	Burgom	Hamburg.
Hesse Darmstadt (N.)	257,479	1,280	G. Duke	Darmstadt.
Lippe Detmold	111,352	438	Prince	Detmold.
Lippe Schaumburg	31,186	171	Prince	Buckburg.
Lubeck	48,538	107	Burgom	Lubeck.
Mecklenburg Schwerin	560,618	5,190	G. Duke	Schwerin.
Mecklenburg Strelitz	98,770	1,052	G. Duke	New Strelitz.
Oldenburg	315,622	2,469	G. Duke	Oldenburg.
Prussia	24,039,668	136,806	King	Berlin.
Reuse Greiz	43,889	145	Prince	Greiz.
Reuss Schleiz	88,097	320	Prince	Schleiz.
Saxe Altenburg	141,426	510	Duke	Altenburg.
Saxe Coburg Gotha	168,851	760	Duke	Coburg.
Saxe Meiningen	180,335	956	Duke	Meiningen.

Saxe Weimar	282,928	1,404	G. Duke	Weimar.
Saxony	2,423,401	5,779	King	Dresden.
Schwarzb. Rudolstadt	75,116	374	Prince	Rudolstadt.
Swarzb. Sondershausen	67,533	332	Prince	Sonderhausen.
Waldeck	56,807	433	Prince	Corbach.
<i>Southern Confederation</i>				
Baden	1,434,970	5,912	G. Duke	Carlsruhe.
Bavaria	4,824,421	29,373	King	Munich.
Hesse Darmstadt (S.)	565,659	1,690	G. Duke	Darmstadt.
Lichtenstein	8,320	62	Prince	Lichtenstein.
Wurtemberg	1,778,396	7,532	King	Stuttgardt.
Great Britain	31,817,108	120,769	Queen	London.
Gibraltar	24,175	2	Governor	Gibraltar.
Heligoland	2,300		Governor	Heligoland.
Malta	143,003	115	Governor	Malta.
Greece	1,096,810	18,347	King	Athens.
Ionian Islands	251,712	1,006		
Italy	25,766,217	114,389	King	Rome.
Monaco	1,887	15	Prince	
Netherlands	3,652,070	12,685	King	Hague.
Luxemburg	199,958	991		
Portugal	3,829,618	36,494	King	Lisbon.
Azores and Madeira	363,658	1,483		
Russia	78,400,000	7,862,568	Czar	St. Petersburg.
San Marino	5,770	22	Repub	San Marino.
Spain	16,302,625	195,607	Repub	Madrid.
Sweden	4,158,757	128,776	King	Stockholm.
Norway	1,712,628	120,295		
Switzerland	2,510,494	15,722	President	Berne.
Turkey	10,510,000	131,295	Sultan	Constantinople.
Montenegro	196,238	1,709	Prince	Cettinge.
Roumania	3,864,848	46,710	Prince	Bucharest.
Servia	1,078,281	21,218	Prince	Belgrade.
ASIA.				
Anam (C. China)	9,000,000	198,043	Emperor	Hue.
Arabia	4,000,000	1,026,040		Muscat.

Borneo	25,000,000	300,000		
British India	192,012,137	1,545,336	Gov. Gen.	Calcutta.
Burmah	4,000,000	190,517	Comm.	Ava.
Ceylon	2,081,395	24,454	Governor	Colombo.
China	477,500,000	4,695,334	Emperor	Pekin.
Japan	35,000,000	149,399	Mikado	Yeddo.
Java	14,168,416	51,336	Gov. Gen.	Batavia.
Persia	11,000,000	562,344	Schah	Teheran.
Siam	6,298,990	309,024	King	Bangkok.
Tartary	7,870,000	640,516		Bokhara.
Turkey in Asia	16,463,000	660,870		
AFRICA.				
Abyssinia	3,000,000	148,392	Emperor	Gondar.
Algeria	2,921,846	259,313	Gov. Gen.	Algiers.
Cape of Good Hope	566,158	200,610	Governor	Cape Town.
Egypt	7,465,000	659,081	Viceroy	Cairo.
Gambia	6,939	21	Adminis.	Bathurst.
Gold Coast	262,000	6,000	Adminis.	Cape C'st Castle.
Lagos	110,000			Lagos.
Liberia	717,500	9,567	President	Monrovia.
Madagascar	5,000,000	232,315	Queen	Antinarivo.
Morocco	2,750,000	672,300	Sultan	Fez.
Natal	193,103	16,150	Lt. Gov.	Port Natal.
Sierra Leone	41,497	468	Governor	Freetown.
St. Helena	6,444	47	Governor	James Town.
Tripoli	750,000	61,760	Bey	Tripoli.
Tunis	2,000,000	50,000	Bey	Tunis.
Zanzibar	380,000	1,600	Sultan	Zanzibar.
AUSTRALIA.				
New South Wales	447,620	323,437	Governor	Sydney.
Queensland	109,897	678,600	Capt. Gen.	Port Denison.

South Australia	176,298	383,328	Governor	Adelaide.
Tasmania	98,455	26,215	Governor	Hobart Town.
Victoria	703,817	86,831	Capt. Gen.	Melbourne.
Western Australia	21,065	978,000	Governor	
POLYNESIA.				
Feejee Islands	200,000	8,033	King	
New Guinea	1,000,000	275,518		
New Zealand	220,092	106,261	Governor	Auckland.
Philippine Islands	2,250,000	56,000		Manilla.
Sandwich Islands	62,959	7,633	King	Honolulu.
Society Islands	15,000	700	Queen	Tahiti.

STATISTICS OF THE RACE.

The earth is inhabited by about 1,380,000,000 of inhabitants, namely:

380,000,000 of the Caucasian race,
580,000,000 of the Mongolian,
200,000,000 of the Ethiopian,
220,000,000 of the Malay races, and
1,000,000 of the American Indian.

All these respectively speak 3064 languages, and possess 1,000 different religions.

The amount of deaths per annum is 33,333,333, or 91,954 per day, 3730 per hour, 60 per minute, or one per second. This loss is compensated by an equal number of births.

The average duration of life throughout the globe is thirty-three years. One-fourth of its population dies before the seventh year, and one-half before the seventeenth. Out of 10,000 persons only one reaches his hundredth year; only one in 500 his eightieth; and only one in 100 his sixty-fifth.

Married people live longer than unmarried ones, and a tall man is likely to live longer than a short one. Until the fiftieth year women have a better chance of life than men; but beyond that period the chances are equal.

Sixty-five persons out of one thousand marry. The months of June and December are those in which marriages are most frequent.

Children born in spring are generally stronger than those born in other seasons.

Births and deaths chiefly occur at night.

The number of men able to bear arms is but one-eighth of the population.

AFRICANS IN AMERICA.

It is estimated that there are some 14,580,000 persons of African descent on this continent. In the United States they number 4,880,000; Brazil 4,200,000; Cuba and Porto Rico 1,500,000; South and Central American Republics 1,100,000; Hayti 1,350,000; British Possessions 800,000; French, 250,000; Dutch and Mexican 400,000.

CREEDS OF THE WORLD.

The population of the world is religiously distributed very nearly in the following proportions:

Christians	388,600,000
Buddhists	360,000,000
Other Asiatic religions	260,000,000
Pagans	200,000,000
Mohammedans	165,000,000
Jews	7,000,000

In Europe, America, Australia, and many of the Polynesian Islands, *Christianity* is the prevailing creed of every State. In Africa the only independent Christian States are Abyssinia and Liberia, while Christianity prevails in several European colonies. The largest empire of Asia—Russia—is also a Christian country. India, the third country in point of extent, is under the rule of a Christian government, and so is a large portion of Farther India.

The *Mohammedan* countries in Asia are Turkey, Persia, Afghanistan, and the Khanates of Central Asia; in Africa—Morocco, the dependencies of Turkey (Egypt, Tunis, Tripoli) and a number of interior States.

Buddhism prevails in India, Farther India, in many parts of China, and in Japan. The governments of Burmah and Siam are Buddhist; the government of

China adheres to the religion of Confucius; the religion of Japan is *Sintooism*.

Judaism is represented throughout the civilized world. The *Handbuch der Vergleichenden Statistik* of G. Von Kolb (Leipzig, 1868) gives the following as the number of Jews in the countries named: Germany, 478,500; Austria, 1,124,000; Great Britain, 40,000; France, 80,000; European Russia, 2,277,000; Italy, 20,200; Switzerland, 4,200; Belgium 1,500; Netherlands, 64,000; Luxemburg, 1,500; Denmark, 4,200; Sweden, 1,000; Greece, 500; European Turkey, 70,000. The Jews in Portugal are estimated at 3,000; in Syria and Asiatic Turkey, 52,000; in Morocco and North Africa, 610,000; in Eastern Asia, 500,800; in America, 500,000.

SUPPLEMENT.
BY JUDGE J. C. POWER
OF THE FIRST DISTRICT OF IOWA.

LEGAL FORMS.

FORM OF WILL.

In the name of God, Amen.

I, (give name of testator) of (residence), being of sound mind and memory, do hereby make, publish, and declare this to be my last Will and Testament, hereby revoking and making void all former Wills by me at any time heretofore made.

First—I order and direct my Executors, as soon after my decease as practicable, to pay off and discharge all the debts, dues, and liabilities that may exist against me at the time of my decease.

Second—I give and bequeath unto my wife (name). (Here state property bequeathed.)

Third—I give and bequeath unto my son (name). (Here state property bequeathed.)

Same form for each legacy.

Fourth—I hereby nominate and appoint. (Here give name of person or persons selected as Executors.)

In Witness Whereof I have hereunto subscribed my name this ____ day of ____ A. D.

____ Name.

The above and foregoing instrument was at the date thereof signed, sealed, published, and declared, by the said (name of testator), as and for his last Will and Testament, in presence of us, who, at his request, and in his presence, and in the presence of each other, have subscribed our names as witnesses.

Name. ____ Residence.

Name. ____ Residence.

Note.—Must be signed by the testator before acknowledged by him to be his will—and must be signed by testator in presence of witnesses—or acknowledged by him in presence of witnesses. Two witnesses are necessary.

ARTICLES OF CO-PARTNERSHIP.

This agreement, made and entered into this ____ day of ____, 187_, by and between ____ of ____, and ____, of ____

Witnesseth: that the said parties hereby agree to become partners in the business of ____ at ____ for the term of ____ years from the date hereof, under the firm name of ____.

Said parties have each contributed the sum of ____ dollars as the capital stock of said firm.

Both parties are to devote their entire time and skill for the common benefit.

All expenses of the business and all losses are to be borne in common, and the profits are to be equally divided.

Books of account are to be kept, in which shall be entered all money received or paid, all purchaser and sales of goods, and all matters of account relating to the business of the firm, which shall at all times be accessible to both.

No money or other property shall be withdrawn by either partner, or applied to his own use, except with the written consent of the other partner; and in every such case the same shall be charged, and his share of the profits shall be reduced in proportion to the amount withdrawn.

Once in each year a correct account shall be taken and stated on the ledger of all stock property and assets of the firm, and of all debts and liabilities.

At the close of the partnership a like account shall be taken and stated, and the stock and property, and the debts, shall be equally divided after payment of the liabilities of the firm.

No debt or claim of the firm shall be released or settled without payment in full, unless by consent of both partners.

Neither partner shall have power to bind the firm as surety in any case; and neither partner shall become surety for another without the written consent of the other partner.

Witness our hands and seals this the day and date above written.

Name ____ [SEAL.]

Name ____ [SEAL.]

AGREEMENT TO CONTINUE A CO-PARTNERSHIP.

As the partnership existing between the undersigned will expire on the ____ day of ____, 187_, it is hereby agreed that said co-partnership shall continue upon the same terms and conditions as provided in the original articles of co-partnership for the further term of ____ from the date of the expiration of said co-partnership as fixed by the said articles.

Witness our hands (as in articles, giving date).

AGREEMENT for DISSOLUTION of CO-PARTNERSHIP.

The undersigned hereby agree that the co-partnership existing between them, as is witnessed by the Articles of Co-partnership signed by us, be, and the same is hereby, dissolved, except for the purpose of final settlement of the business thereof, which may be settled by _____. And upon such settlement, then said co-partnership shall be wholly dissolved.

Witness, etc. (as above).

POWER OF ATTORNEY.

Know all men by these presents, that I ____ of ____, hereby make, constitute, and appoint ____ of ____, my true and lawful Attorney, for me, and in my name, place, and stead, to (here state duty of Attorney) granting unto my said Attorney full power and authority to do and perform each and every thing necessary and proper to be done in the performance of his duty, as fully as I might or could do if personally present, hereby ratifying and confirming all the lawful acts of my said Attorney, done under and by virtue hereof.

Witness my hand and seal this ____ day of ____ A. D. 187_.

Name ____ [SEAL.]

Note.—To be signed and acknowledged as a deed for the conveyance of real estate.

FORM OF SUBMISSION TO ARBITRATION.

Know all men by these presents, that whereas a controversy is now existing between (name), of (residence), and (name), of (residence), touching (here state nature of controversy):

Now, therefore, we, the said (here give names of parties), do hereby submit said controversy to the decision and arbitration of (here give names of three persons selected as arbitrators), of (here state residences), and do covenant each with the other that we will faithfully keep and abide by the decision and award that they, or any two of them, may make in writing—said award to be made and signed on or before (here give date).

And it is agreed by the parties hereto, that the party that shall fail to abide by and observe said award, made in accordance with the foregoing submission, shall forfeit and pay to the other the sum of (here insert amount).

Witness our hands this ____ day of ____ A. D. ____.

____ Name.

____ Name.

AWARD OF ARBITRATORS.

The undersigned to whose arbitration was submitted the matters in controversy between (here give names of parties) as more fully appears by their written submission hereto attached, Report that on the day of ____ A. D. 18__, after having been duly sworn according to law, and having given both parties ____ day's notice in writing of the time and place of our meeting to consider said matter, we proceeded to the discharge of our duty; said (name of party) appearing in person (if by Att'y also so state,) and said (name of party) appearing in person (if by Att'y also so state.) And having heard the allegations and proofs of said parties, and the witnesses introduced by them, and having examined the matter in controversy submitted by them, do make and declare this as and for our award.

Here state findings of Arbitrators.

Witness our hands this ____ day of ____ A. D. ____.

____ Name.

____ Name.

____ Name.

GENERAL FORM FOR AGREEMENT.

This Agreement made this ____ day of ____ 187_, by and between ____ of ____ and ____ of _____. Witnesseth: That the said ____ for the consideration of (here state nature of consideration) to be (if money paid,) (if work or labor or delivery of property) to be performed or delivered as hereafter provided, hereby agrees that (state agreement of this party fully.)

And for the consideration above mentioned the said ____ hereby agrees, that (state agreement of this party fully.)

In witness whereof, we hereto subscribe our names and affix our seal this day and date first above written.

Name ____ [SEAL.]

Name ____ [SEAL.]

AGREEMENT FOR SALE OF PERSONAL PROPERTY.

This Agreement, made this ____ day of ____ 187_, between ____ of ____ and ____ of _____. Witnesseth: That the said ____ in consideration of the agreements on the part of ____ hereafter named, agrees to and with the said ____ that on or before the ____ day of ____, 187_, he will deliver to the said ____ at (state place of delivery,) the following property (state kind of property).

And the said ____ in consideration of the aforesaid agreements and promises on the part of the said ____, hereby promises and agrees to and with the said ____, that he will pay to him (state price to be paid) said payments to be made as follows (state how and when.)

In witness whereof, we hereto subscribe our names and affix our seals this the day and year first above written.

Name ____ [SEAL.]

Name ____ [SEAL.]

AGREEMENT FOR THE SALE OF REAL ESTATE.

This Agreement, made this ____ day of ____ 187_, by and between ____ of ____ and ____ of _____. Witnesseth: That for and in consideration of the sum of ____ dollars, to be paid by the said ____ to the said ____ as follows (state manner of payment), the said ____ hereby promises and agrees to convey by (state nature of conveyance, whether warranty or quit claim), the following

described real estate situate in ____ county, State of _____. (Give description of land.) And the said ____ hereby promises to pay said ____ the sum of ____ dollars as above provided.

And upon the payment in full of said amount, then said conveyance is to be executed and delivered.

In witness whereof, we hereunto subscribe our names and affix our seals this the day and date above written.

Name ____ [SEAL.]

Name ____ [SEAL.]

Note.—To be executed and acknowledged as a deed for real estate.

FORM OF LEASE.

Agreement of Lease, made this ____ day of ____, between ____ of and ____ of ____, Witnesseth: That the said ____ agrees to pay to ____, ____ dollars per ____ for the rent of the house and premises on (description of land.)

The said ____ agrees to use said premises for no other purpose than ____, and not underlet the same without the written consent of _____. This lease to commence on the ____ day of ____ 187_, and continue until the ____ day of ____ 187_. The rent to be paid (*state how*) to the said ____ at _____. A failure to pay the rent as agreed, or to comply with any of the stipulations of their lease by ____, shall authorize the said ____ to consider the same forfeited; and he may take possession of the premises without notice and without process of law, or he may bring his action as allowed by law to recover possession.

In witness whereof, we hereunto subscribe our names and affix our seals this the day and date first above written.

Name ____ [SEAL.]

Name ____ [SEAL.]

FORM OF DEED.

This Deed, made this ____ day of ____ 187_, Witnesseth: That for the consideration of ____ dollars, we ____ of ____ county, State of ____, hereby sell and convey unto ____ of ____ county, State of ____, all the following described real estate, situate in ____ county, State of Iowa. (Here give a description of the

land) together with all the estate, title, and interest, dower, and right of dower of the said grantors, or either of them.

And we hereby warrant the title to said premises against all persons whomsoever (or if quit claim say), and we hereby quit claim all our right, title and interest in and to said premises to the grantees herein.

Witness our hands and seals this the day and date above written.

Name ____ [SEAL.]

Name ____ [SEAL.]

The State of ____ }
____ County. } ss.

Be it Remembered, That on this ____ day of ____ 187_, before me a ____ within and for said county and State, personally appeared ____, who personally known to me to be the identical person whose name ____ affixed to the foregoing deed as grantor, and she acknowledged the same to be her voluntary act and deed, and the said ____, having been made acquainted with the contents hereof, and the nature of the above instrument having been fully explained to her, and having been examined by me separate and apart from her husband, acknowledged that she signed and executed the said deed freely and voluntarily, and without compulsion, and that she does not desire to retract the same.

In witness whereof, I hereto set my hand and ____ seal this the day and date last above written.

Name ____ [SEAL.]

Note.—It is better in all cases to have two witnesses to the signatures, as the fact that such signatures are witnessed will never invalidate the conveyance; and in some States the instrument is void without such witnesses.

MORTGAGE DEED.

This Deed, made this ____ day of ____, 187_, Witnesseth: That for the consideration of ____ dollars, we ____ of ____ county, State of ____, hereby sell and convey unto ____ of ____ all the following described real estate, situate in ____ county, State of ____ to-wit: (Here describe real estate.)

And we hereby warrant the title to said premises against all persons whomsoever.

This deed to be void, however, on condition ____ pay. (State nature of indebtedness, time and manner of payment.)

(If homestead say), and the property conveyed being our homestead, we hereby expressly waive all benefit of the homestead and exemption laws, and consent that said property shall be liable for the payment of said indebtedness. Otherwise of force and virtue.

Witness our hands and seals this the day and date above written.

Name ____ [SEAL.]

Name ____ [SEAL.]

NEGOTIABLE NOTE.

CHICAGO, Ill., May 1st, 1873.

\$200

One year after date, I promise to pay to the order of Felix Welty, two hundred dollars, with ten per cent. interest from date, for value received.

Name ____

NON-NEGOTIABLE NOTE.

CHICAGO, Ill., May 1st., 1873.

\$200

One year after date. I promise to pay Felix Welty, two hundred dollars, with ten per cent. interest from date, for value received.

Name ____

NOTE TRANSFERABLE BY DELIVERY.

CHICAGO, May 1st, 1873.

\$200

One year after date, I promise to pay Felix Welty or bearer, two hundred dollars, with ten per cent. interest from date, for value received.

Note.—If joint note say “we.” If joint and several say “we or either of us.”

Name _____

DUE BILL.

Due Felix Welty, two hundred dollars, value received. May 1st, 1873.

Name _____

RECEIPT.

CHICAGO, Ill., May 1st, 1873.

Received of Willis Moran one hundred dollars, in full of all claims or demands, of each and every kind held by me against him.

Name _____

Note.—If in satisfaction or payment of any particular claim, to state.

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